# Copyright Law OF THE United States

***and Related Laws Contained in Title 17 of the United States Code***

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circular 92

# Copyright Law of the United States

*and Related Laws Contained in Tıtle 17 of the United States Code*

december 2024

*The Congress shall have Power To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inven the exclusive Right to their respective Writings and Discoveries.*

united states constitution , article i , section 8

## dedication

This edition of *Copyright Law of the United States* is dedicated to t
thousands of U.S. Copyright Office employees who, since copyrigh
administration was first brought into the Copyright Office in 1870,
worked tirelessly to fulfill copyright's Constitutional mandate.

# Preface

This publication contains the text of Title 17 of the *United States Code*, inc
all amendments enacted by Congress through December 23, 2024. It inc
the Copyright Act of 1976 and all subsequent amendments to copyright la
Semiconductor Chip Protection Act of 1984, as amended; and the Vessel
Design Protection Act, as amended. The Copyright Office is responsible fo
istering intellectual property claims under all three.

The United States copyright law is contained in chapters 1 through 8 an
through 12 of Title 17 of the *United States Code*. The Copyright Act of 197
provides the basic framework for the current copyright law, was enacted o
ber 19, 1976, as Pub. L. No. 94-553, 90 Stat. 2541. The 1976 Act was a co
sive revision of the copyright law in Title 17. Listed below in chronological
of their enactment are the Copyright Act of 1976 and subsequent amendr
to Title 17.

Chapters 9 and 13 of Title 17 contain two types of design protection tha
independent of copyright protection. Chapter 9 of Title 17 is the Semicond
Chip Protection Act of 1984 (SCPA), as amended. The SCPA was enacted a
III of Pub. L. No. 98-620, 98 Stat. 3335, 3347, on November 8, 1984. Chap
of Title 17 is the Vessel Hull Design Protection Act (VHDPA), as amended.
VHDPA was enacted on October 28, 1998, as Title V of the Digital Millenniu
Copyright Act (DMCA), Pub. L. No. 105-304, 112 Stat. 2860, 2905. Subsequ
amendments to the Title 17 provisions for SCPA and the VHDPA are also
cluded in the list below, in chronological order of their enactment.

In some cases, statutory enactments affecting copyright law are not co
Title 17. For transitional and supplementary provisions that do not amend
17, see the appendices.

This edition adds three pieces of copyright legislation enacted since the
printed edition of the circular in May 2021: the Artistic Recognition for Tal
Students Act, signed into law in October 2022, the James M. Inhofe Nation
fense Authorization Act for Fiscal Year 2023, signed into law in December
and the Servicemember Quality of Life Improvement and National Defens
thorization Act for Fiscal Year 2025, signed into law in December 2024.

Shira Perlmutter
*Register of Copyrights and Director of the United States Copyright Office*

## Statutory Enactments Contained in Title 17 of the *United States Code*

- [Copyright Act of 1976], Pub. L. No. 94-553, 90 Stat. 2541 (for the revision of copyright law, Title 17 of the *United States Code*, and purposes), October 19, 1976.
- Legislative Branch Appropriation Act, 1978, Pub. L. No. 95-94, 91 Stat. 6 (amending §203 and §708, Title 17, *United States Code*, regarding the d of moneys by the Register of Copyrights in the Treasury of the United S enacted August 5, 1977.
- [Copyright Amendments], Pub. L. No. 95-598, 92 Stat. 2549, 2676 (ame §201(e), Title 17, *United States Code*, to permit involuntary transfer und Bankruptcy Law), enacted November 6, 1978.
- [Copyright Amendments], Pub. L. No. 96-517, 94 Stat. 3015, 3028 (ame §101 and §117, Title 17, *United States Code*, regarding computer enacted December 12, 1980.
- Piracy and Counterfeiting Amendments Act of 1982, Pub. L. No. 97-180, Stat. 91, 93 (amending §506(a), Title 17, *United States Code*, and Title 1 *United States Code*), enacted May 24, 1982.
- [Copyright Amendments], Pub. L. No. 97-215, 96 Stat. 178 (amend manufacturing clause in chapter 6, Title 17, *United States Code*), enacte 13, 1982.
- [Copyright Amendments], Pub. L. No. 97-366, 96 Stat. 1759 (amending and §708, Title 17, *United States Code*, regarding the redesignation of r tion fees as filing fees, and the exemption from copyright liability of cer performances of nondramatic literary or musical works), enacted O 25, 1982.
- Record Rental Amendment of 1984, Pub. L. No. 98-450, 98 Stat. 1727 (a ing §109 and §115, Title 17, *United States Code*, with respect to rental, lending of sound recordings), enacted October 4, 1984.
- Semiconductor Chip Protection Act of 1984, Title II, Pub. L. No. 98-620, 98 Stat. 3335, 3347 (adding chapter 9, Title 17, *United States Code*, to design protection for semiconductor chips), November 8, 1984.
- [Copyright Amendments], Pub. L. No. 99-397, 100 Stat. 848 (amending and §801, Title 17, *United States Code*, to clarify the definition of the loc vice area of a primary transmitter in the case of a low power television s enacted on August 27, 1986.
- [Amendments to the Semiconductor Chip Protection Act of 1984], Pub. L No. 100-159, 101 Stat. 899 (amending chapter 9, Title 17, *United States*

regarding protection extended to semiconductor chip products of f entities), enacted November 9, 1987.

- Berne Convention Implementation Act of 1988, Pub. L. No. 100-568, 102 2853, enacted October 31, 1988. (See Appendix Q for certain provisions Act that do not amend Title 17 of the *United States Code*.)
- [Copyright Amendments], Pub. L. No. 100-617, 102 Stat. 3194 (extendi an additional eight-year period certain provisions of Title 17, *United Sta Code*, relating to the rental of sound recordings and for other pu enacted November 5, 1988.
- Satellite Home Viewer Act of 1988, Title II of Pub. L. No. 100-667, 102 Stat. 3935, 3949, enacted November 16, 1988.
- Judicial Improvements and Access to Justice Act, Pub. L. No. 100-702, 1 4642, 4672 (amending §912, Title 17, *United States Code*), enacted Nov 19, 1988.
- Copyright Fees and Technical Amendments Act of 1989, Pub. L. No. 101 104 Stat. 287, enacted on July 3, 1990.
- Copyright Royalty Tribunal Reform and Miscellaneous Pay Act of 1989, L. No. 101-319, 104 Stat. 290, enacted July 3, 1990.
- Copyright Remedy Clarification Act, Pub. L. No. 101-553, 104 Stat. 2749 acted November 15, 1990.
- Visual Artists Rights Act of 1990, Title VI of the Judicial Improvements Act of 1990, Pub. L. No. 101-650, 104 Stat. 5089, 5128, enacted December 1,
- Architectural Works Copyright Protection Act, Title VII of the Judicial Improvements Act of 1990, Pub. L. No. 101-650, 104 Stat. 5089, 5133, ena cember 1, 1990.
- Computer Software Rental Amendments Act of 1990, Title VIII of the Judicial Improvements Act of 1990, Pub. L. No. 101-650, 104 Stat 5089, 5134, e December 1, 1990.
- Semiconductor International Protection Extension Act of 1991, Pub. 102-64, 105 Stat. 320 (amending chapter 9, Title 17, *United States Cod* ing protection extended to semiconductor chip products of foreign entit enacted June 28, 1991.
- Copyright Amendments Act of 1992, Pub. L. No. 102-307, 106 Stat. 264 (amending chapter 3, Title 17, *United States Code*, as described immed below and by deleting subsection 108(i)), enacted June 26, 1992. (Also, an independent provision that does not amend Title 17 of the *United St Code*, the Act established the National Film Registry. Under Title I, the National Film Preservation Act of 1992.)

- Copyright Renewal Act of 1992, Title I of the Copyright Amendments Ac 1992, Pub. L. No. 102-307, 106 Stat. 264 (amending chapter 3, Title 17, *States Code*, by providing for automatic renewal of copyright for copyrighted between January 1, 1964, and December 31, 1977), enacte 26, 1992.
- [Copyright Amendments], Pub. L. No. 102-492, 106 Stat. 3145 (amendi Title 17, *United States Code*, regarding unpublished works), enacted Oc 24, 1992.
- [Copyright Amendments], Pub. L. No. 102-561, 106 Stat. 4233 (am §2319, Title 18, *United States Code*, regarding criminal penalties for co infringement), enacted October 28, 1992.
- Audio Home Recording Act of 1992, Pub. L. No. 102-563, 106 Stat. 4237 ding Title 17 of the *United States Code* by adding a new chapter 10), en October 28, 1992.
- North American Free Trade Agreement Implementation Act, Pub. L. No. 182, 107 Stat. 2057, 2114 and 2115 (amending §109, Title 17, *United S* and adding a new §104), enacted December 8, 1993.
- Copyright Royalty Tribunal Reform Act of 1993, Pub. L. No. 103-198, 10 2304 (amending, *inter alia*, chapter 8, Title 17, *United States Code*), en December 17, 1993.
- Satellite Home Viewer Act of 1994, Pub. L. No. 103-369, 108 Stat (amending, *inter alia*, §111 and §119, Title 17, *United States Code*, relat definition of a local service area of a primary transmitter), enacted Oct 18, 1994.
- Uruguay Round Agreements Act, Pub. L. No. 103-465, 108 Stat. 4809, 4 (amending, *inter alia*, §104, Title 17, *United States Code*, and ad chapter 11), enacted December 8, 1994. (See Appendix R for the text o provisions of this Act that do not amend Title 17 of the *United States Co*
- Digital Performance Right in Sound Recordings Act of 1995, Pub. L. No. 39, 109 Stat. 336 (amending, *inter alia*, §114 and §115, Title 17, *United Code*), enacted November 1, 1995.
- Anticounterfeiting Consumer Protection Act of 1996, Pub. L. No. 104-15 Stat. 1386, 1388 (amending §603(c), Title 17, *United States Code,* Title 18, *United States Code*), enacted July 2, 1996.
- Legislative Branch Appropriations Act, 1997, Pub. L. No. 104-197, 110 S 2416 (amending, *inter alia*, Title 17, *United States Code*, by adding a ne concerning the limitation on exclusive copyrights for literary works in sp ized format for the blind and disabled), enacted September 16, 1996.

- [Copyright Amendments and Amendments to the Semiconductor C
Protection Act of 1984], Pub. L. No. 105-80, 111 Stat. 1529 (making tech
amendments to certain provisions of Title 17, *United States Code*)
November 13, 1997.
- No Electronic Theft (NET) Act, Pub. L. No. 105-147, 111 Stat. 2678, enacted
December 16, 1997.
- Sonny Bono Copyright Term Extension Act, Title I of Pub. L. No. 105-298
Stat. 2827 (amending chapter 3, Title 17, *United States Code*, to extend
of copyright protection for most works to life plus 70 years), enacted Oc
27, 1998.
- Fairness in Music Licensing Act of 1998, Title II of Pub. L. No. 105-298, 112 Stat.
2827, 2830 (amending, *inter alia*, §110, Title 17, *United States Code*, an
§513 to provide a music licensing exemption for food service and drinki
establishments), enacted October 27, 1998.
- Digital Millennium Copyright Act, Pub. L. No. 105-304, 112 Stat. 2860, 2
(Title IV amending §108, §112, §114, chapter 7, and chapter 8, Title 17, *U
States Code*), enacted October 28, 1998. (This Act also contains four se
acts within Titles I, II, III, and V that amended Title 17 of the *United States
Code*. These four acts are each separately listed below. See Appe
additional provisions of this Act that do not amend Title 17 of the *Unite
States Code*.)
- WIPO Copyright and Performances and Phonograms Treaties Implement
tion Act of 1998, Title I of the Digital Millennium Copyright Act, Pub. L. No.
105-304, 112 Stat. 2860, 2861 (amending Title 17 of the *United S
inter alia*, to add a new chapter 12 which prohibits circumvention of cop
right protection systems and provides protection for copyright manage
information), enacted October 28, 1998.
- Online Copyright Infringement Liability Limitation Act, Title II of the Digital
Millennium Copyright Act, Pub. L. No. 105-304, 112 Stat. 2860, 2877 (a
ing Title 17 of the *United States Code* to add a new §512), enacted Oct
28, 1998.
- Computer Maintenance Competition Assurance Act, Title III of the Digital
Millennium Copyright Act, Pub. L. No. 105-304, 112 Stat. 2860, 2886 (a
ing §117, Title 17, *United States Code*), enacted October 28, 1998.
- Vessel Hull Design Protection Act, Title V of the Digital Millennium Copyright
Act, Pub. L. No. 105-304, 112 Stat. 2860, 2905 (adding chapter 13, Title
*States Code*, to provide design protection for vessel hulls), enacted Oct
28, 1998.

- [Copyright Amendments and Amendments to the Vessel Hull Design Pro
  tion Act], Pub. L. No. 106-44, 113 Stat. 221 (making technical correctior
  Title 17 of the *United States Code*), enacted August 5, 1999.
- Satellite Home Viewer Improvement Act of 1999, Title I of the Intellectual
  Property and Communications Omnibus Reform Act of 1999, Pub. L. No.
  113, 113 Stat. 1501, app. I (amending chapters 1 and 5 of Title 17 of th
  *States Code* to replace the Satellite Home Viewer Act of 1994 and amer
  chapters 12 and 13 of Title 17), enacted November 29, 1999.
- Digital Theft Deterrence and Copyright Damages Improvement Act of 19
  Pub. L. No. 106-160, 113 Stat 1774, (amending chapter 5 of Title 17 of t
  *States Code* to increase statutory damages for copyright infringement),
  December 9, 1999.
- Work Made for Hire and Copyright Corrections Act of 2000, Pub. L. No. 1
  379, 114 Stat. 1444 (amending the definition of works made for hire in T
  of the *United States Code*; amending chapter 7 of Title 17, including cha
  the language regarding Copyright Office fees; and making other technic
  conforming amendments to Title 17), enacted October 27, 2000.
- Intellectual Property and High Technology Technical Amendments Act
  2002, Division C, Title III, Subtitle B of the 21st Century Department of Justic
  Appropriations Authorization Act, Pub. L. No. 107-273, 116 Stat. 1758,
  (making technical corrections both to Title 17, *United States Code*, and,
  scribed in footnotes where appropriate, to Title I of the Intellectual Prop
  and Communications Omnibus Reform Act of 1999, entitled the Satellit
  Home Viewer Improvement Act of 1999, Pub. L. No. 106-113, 113 Stat.
  app. I), enacted November 2, 2002.
- Technology, Education, and Copyright Harmonization Act of 2002, Divis
  C, Title III, Subtitle C of the 21st Century Department of Justice Appropria
  tions Authorization Act, Pub. L. No. 107-273, 116 Stat. 1758, 1910 (ame
  chapter 1, Title 17, *United States Code*, to incorporate provisions relatir
  of copyrighted works for distance education), enacted November 2, 200
- Small Webcaster Settlement Act of 2002, Pub. L. No. 107-321, 116 Stat.
  (amending chapter 1, Title 17, *United States Code*, to incorporate new l
  into section 114), enacted December 4, 2002.
- Copyright Royalty and Distribution Reform Act of 2004, Pub. L. No. 108-
  118 Stat. 2341 (revising chapter 8, Title 17, *United States Code*, in its e
  enacted November 30, 2004.
- Individuals with Disabilities Education Improvement Act of 2004, Title
  Pub. L. No. 108-446, 118 Stat. 2647, 2807 (amending section 121, Title

*States Code*, to further expand authorized reproduction of copyrighted w
for the blind or people with other disabilities), enacted December 3, 200

- Satellite Home Viewer Extension and Reauthorization Act of 2004, Title IX, Division J of the Consolidated Appropriations Act, 2005, Pub. L. No. 108-
118 Stat. 2809, 3393 (amending section 119, Title 17, *United Sta*
throughout and by extending for an additional five years the statutory l
for satellite carriers retransmitting over-the-air television broadcast stat
to their subscribers), enacted December 8, 2004.
- Anti-counterfeiting Amendments Act of 2004, Title I of the Intellectual Prop-
erty Protection and Courts Amendments Act of 2004, Pub. L. No. 108-4
118 Stat. 3912 (amending section 2318, Title 18, *United States Code,* co
trafficking in counterfeit or illicit labels in connection with stolen copyrig
works), enacted December 23, 2004.
- Fraudulent Online Identity Sanctions Act, Title II of the Intellectual Property
Protection and Courts Amendments Act of 2004, Pub. L. No. 108-482, 1
Stat. 3912, 3916 (amending section 504(c), Title 17, *United States Code*
language making it a criminal violation to knowingly provide false cont
information for a domain name that is used in connection with copyrig
infringement when registering the domain name with authorities), enac
December 23, 2004.
- Artists' Rights and Theft Prevention Act of 2005 (also known as the "*ART Act*"),
Title I of the Family Entertainment and Copyright Act of 2005, Pub. L. No
109-9, 119 Stat. 218 (amending chapter 113, Title 18, *United States Co*
new section 2319B authorizing criminal penalties for unauthorized reco
of motion pictures; amending section 506(a), Title 17, *United States Co*
entirety; amending section 2319, Title 18, *United States Code*, by addin
nal penalties for section 506(a); amending section 408, Title 17, *United*
*Code*, by adding new language authorizing preregistration of works be
prepared for commercial distribution; and directing the United States S
tencing Commission to establish policies and guidelines for intellectual
erty crimes), enacted April 27, 2005.
- Family Movie Act of 2005, Title II of the Family Entertainment and Copyright
Act of 2005, Pub. L. No. 109-9, 119 Stat. 218, 223 (amending section 11
*United States Code*, to add a new exemption from infringement for impe
skipping of audio and video content in motion pictures), enacted April 2
- Preservation of Orphan Works Act, Title IV of the Family Entertainment and
Copyright Act of 2005, Pub. L. No. 109-9, 119 Stat. 218, 226 (amending
108(i), Title 17, *United States Code*, to add orphan works to the list of w
are exempt from certain limitations on uses by libraries and archives), e
April 27, 2005.

- Copyright Royalty Judges Program Technical Corrections Act, Pub. L. No 303, 120 Stat. 1478 (to make clarifying and technical corrections to cha 17, *United States Code*, and related conforming amendments), enacted 6, 2006.
- Prioritizing Resources and Organization for Intellectual Property Act of 2 Pub. L. No. 110-403, 122 Stat. 4256 (amending civil and criminal provis chapters 4, 5, and 6, Title 17, *United States Code*, and related provision 28, *United States Code*), enacted October 13, 2008.
- Vessel Hull Design Protection Amendments of 2008, Pub. L. No. 110-434 Stat. 4972 (amending definitions in section 1301), enacted October 16,
- Webcaster Settlement Act of 2008, Pub. L. No. 110-435, 122 Stat. 4974 ing section 114 to implement the webcaster settlement agreement), e October 16, 2008.
- Webcaster Settlement Act of 2009, Pub. L. No. 111-36, 123 Stat. 1926 ( section 114 to authorize 30-day negotiation period for webcasters and right holders), enacted June 30, 2009.
- Department of Defense Appropriations Act, 2010, Pub. L. No. 111-118, 1 3409 (amending section 119, Title 17, *United States Code*, to extend ce periods to February 28, 2010, and to repeal section 4(a) of the Satellite Viewer Act of 1994), enacted December 19, 2009.
- Temporary Extension Act of 2010, Pub. L. No. 111-144, 124 Stat. 42 (am ing section 119, Title 17, *United States Code*, to extend certain time per March 28, 2010) enacted March 2, 2010.
- Satellite Television Extension Act of 2010, Pub. L. No. 111-151, 124 Stat (amending section 119, Title 17, *United States Code*, to extend certain periods to April 30, 2010) enacted March 26, 2010.
- Continuing Extension Act of 2010, Pub. L. No. 111-157, 124 Stat. 1116 ( section 119, Title 17, *United States Code*, to extend certain time periods 31, 2010) enacted April 15, 2010.
- Satellite Television Extension and Localism Act of 2010, Pub. L. No. 111 124 Stat. 1218 (amending sections 111, 119, 122, 708, and 804 of Title *States Code*) enacted May 27, 2010.
- Copyright Cleanup, Clarification, and Corrections Act of 2010, Pub. L. No 295, 124 Stat. 3180 (making miscellaneous clarifying, conforming, and cal corrections throughout Title 17, *United States Code,* and section 231 18, *United States Code*, and repealing section 601, Title 17, *United Stat* enacted December 9, 2010.

- STELA Reauthorization Act of 2014, Pub. L. No. 113-200, 128 Sta (amending sections 111, 119, and 122 of Title 17, *United States Code*), December 4, 2014.
- Marrakesh Treaty Implementation Act, Pub. L. No. 115-261, 132 Stat. 3 (amending section 121 and adding section 121A of Title 17, *United Stat* enacted October 10, 2018.
- Orrin G. Hatch–Bob Goodlatte Music Modernization Act, Pub. L. No. 115 264, 132 Stat. 3676 (amending sections 114, 115, 301, 801, 803, and 8 17, *United States Code*; adding chapter 14 to Title 17, *United States Co* amending section 137, of Title 28, *United States Code*), enacted Octobe
- National Defense Authorization Act for Fiscal Year 2020, Pub. L. No. 116 133 Stat. 1198 (amending section 105 of Title 17, *United States Code*), December 20, 2019.
- Satellite Television Community Protection and Promotion Act of 2019, T XI of the Further Consolidated Appropriations Act, 2020, Pub. L. No. 116 133 Stat. 2534 (amending sections 119 and 501 of Title 17, *United Stat* enacted December 20, 2019.
- Library of Congress Technical Corrections Act of 2019, Title XII of the Further Consolidated Appropriations Act, 2020, Pub. L. No. 116-94, 133 Sta (amending sections 701, 802, and 803 of Title 17, *United States Code*), December 20, 2019.
- Coronavirus Aid, Relief, and Economic Security Act, Pub. L. No. 116-136 Stat. 281 (adding section 710 to Title 17, *United States Code*), enacted 27, 2020.
- Consolidated Appropriations Act, 2021, Pub. L. No. 116-260, 134 Stat. (adding section 2319C to Title 18, *United States Code*, regarding crimin alties for copyright infringement; adding chapter 15 to Title 17, *United S Code*), enacted December 27, 2020.
- Artistic Recognition for Talented Students Act, Pub. L. 117-201, 136 Sta (amending section 708 of Title 17, *United States Code*), enacted Octob 2022.
- James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 L. No. 117-263, 136 Stat. 2395, 3068-3069, 3504 (amending section 10 17, *United States Code*), enacted December 23, 2022.
- Servicemember Quality of Life Improvement and National Defense Auth zation Act for Fiscal Year 2025, Pub. L. No. 118-159, 138 Stat. 2518 (am section 105 of Title 17, *United States Code*), enacted December 23, 202

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# Chapter 1

## Subject Matter and Scope of Copyright


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## §101 · Definitions[2]

Except as otherwise provided in this title, as used in this title, the followin
and their variant forms mean the following:

An “anonymous work” is a work on the copies or phonorecords of which
natural person is identified as author .

An “architectural work” is the design of a building as embodied in any t
medium of expression, including a building, architectural plans, or drawin
work includes the overall form as well as the arrangement and composition
es and elements in the design, but does not include individual standard fe[3]

“Audiovisual works” are works that consist of a series of related images
are intrinsically intended to be shown by the use of machines or devices s
projectors, viewers, or electronic equipment, together with accompanying
if any, regardless of the nature of the material objects, such as films or ta
which the works are embodied .

The “Berne Convention” is the Convention for the Protection of Literary
Artistic Works, signed at Berne, Switzerland, on September 9, 1886, and a
protocols, and revisions thereto .[4]

The “best edition” of a work is the edition, published in the United State
any time before the date of deposit, that the Library of Congress determin
be most suitable for its purposes .

A person’s “children” are that person’s immediate offspring, whether le
or not, and any children legally adopted by that person .

A “collective work” is a work, such as a periodical issue, anthology, or e
pedia, in which a number of contributions, constituting separate and indep
dent works in themselves, are assembled into a collective whole .

A “compilation” is a work formed by the collection and assembling of pr
ing materials or of data that are selected, coordinated, or arranged in suc
that the resulting work as a whole constitutes an original work of authorsh
term “compilation” includes collective works .

A “computer program” is a set of statements or instructions to be used
or indirectly in a computer in order to bring about a certain result .[5]

“Copies” are material objects, other than phonorecords, in which a wor
fixed by any method now known or later developed, and from which the w
can be perceived, reproduced, or otherwise communicated, either directly
the aid of a machine or device . The term “copies” includes the material o
other than a phonorecord, in which the work is first fixed .

“Copyright owner”, with respect to any one of the exclusive rights comp
in a copyright, refers to the owner of that particular right .

A “Copyright Royalty Judge” is a Copyright Royalty Judge appointed unc
section 802 of this title, and includes any individual serving as an interim
right Royalty Judge under such section .[6]

A work is “created” when it is fixed in a copy or phonorecord for the firs
where a work is prepared over a period of time, the portion of it that has b
fixed at any particular time constitutes the work as of that time, and wher
work has been prepared in different versions, each version constitutes a s
work .

A “derivative work” is a work based upon one or more preexisting works
as a translation, musical arrangement, dramatization, fictionalization, mot
picture version, sound recording, art reproduction, abridgment, condensat
any other form in which a work may be recast, transformed, or adapted . A
consisting of editorial revisions, annotations, elaborations, or other modif
tions, which, as a whole, represent an original work of authorship, is a “de
work” .

A “device”, “machine”, or “process” is one now known or later develope

A “digital transmission” is a transmission in whole or in part in a digital
other nonanalog format .[7]

To “display” a work means to show a copy of it, either directly or by me
of a film, slide, television image, or any other device or process or, in the
of a motion picture or other audiovisual work, to show individual images n
sequentially .

An “establishment” is a store, shop, or any similar place of business ope
the general public for the primary purpose of selling goods or services in w
the majority of the gross square feet of space that is nonresidential is use
that purpose, and in which nondramatic musical works are performed pub[8]

The term “financial gain” includes receipt, or expectation of receipt, of a
thing of value, including the receipt of other copyrighted works .[9]

A work is “fixed” in a tangible medium of expression when its embodim
in a copy or phonorecord, by or under the authority of the author, is suffic
permanent or stable to permit it to be perceived, reproduced, or otherwise
municated for a period of more than transitory duration . A work consistin
sounds, images, or both, that are being transmitted, is “fixed” for purpose
title if a fixation of the work is being made simultaneously with its transmi

A “food service or drinking establishment” is a restaurant, inn, bar, tave
any other similar place of business in which the public or patrons assembl
the primary purpose of being served food or drink, in which the majority o
gross square feet of space that is nonresidential is used for that purpose,
which nondramatic musical works are performed publicly .[10]

The “Geneva Phonograms Convention” is the Convention for the Protect
of Producers of Phonograms Against Unauthorized Duplication of Their Pho
grams, concluded at Geneva, Switzerland, on October 29, 1971 .[11]

The “gross square feet of space” of an establishment means the entire
space of that establishment, and any adjoining outdoor space used to serv
trons, whether on a seasonal basis or otherwise .[12]

The terms "including" and "such as" are illustrative and not limitative .

An "international agreement" is—

(1) the Universal Copyright Convention;

(2) the Geneva Phonograms Convention;

(3) the Berne Convention;

(4) the WTO Agreement;

(5) the WIPO Copyright Treaty;[13]

(6) the WIPO Performances and Phonograms Treaty;[14] and

(7) any other copyright treaty to which the United States is a party .[15]

A "joint work" is a work prepared by two or more authors with the inten
that their contributions be merged into inseparable or interdependent par
a unitary whole .

"Literary works" are works, other than audiovisual works, expressed in w
numbers, or other verbal or numerical symbols or indicia, regardless of th
ture of the material objects, such as books, periodicals, manuscripts, phon
cords, film, tapes, disks, or cards, in which they are embodied .

The term "motion picture exhibition facility'' means a movie theater, sc
ing room, or other venue that is being used primarily for the exhibition of
copyrighted motion picture, if such exhibition is open to the public or is m
to an assembled group of viewers outside of a normal circle of a family an
social acquaintances .[16]

"Motion pictures" are audiovisual works consisting of a series of related
which, when shown in succession, impart an impression of motion, togeth
accompanying sounds, if any .

To "perform" a work means to recite, render, play, dance, or act it, eith
rectly or by means of any device or process or, in the case of a motion pic
other audiovisual work, to show its images in any sequence or to make th
accompanying it audible .

A "performing rights society" is an association, corporation, or other en
that licenses the public performance of nondramatic musical works on beh
of copyright owners of such works, such as the American Society of Comp
Authors and Publishers (ASCAP), Broadcast Music, Inc. (BMI), and SESAC, Inc.[17]

"Phonorecords" are material objects in which sounds, other than those a
panying a motion picture or other audiovisual work, are fixed by any meth
known or later developed, and from which the sounds can be perceived, r
duced, or otherwise communicated, either directly or with the aid of a ma
or device . The term "phonorecords" includes the material object in whic
sounds are first fixed .

"Pictorial, graphic, and sculptural works" include two-dimensional and th
dimensional works of fine, graphic, and applied art, photographs, prints a
art reproductions, maps, globes, charts, diagrams, models, and technical
ings, including architectural plans . Such works shall include works of arti

craftsmanship insofar as their form but not their mechanical or utilitarian
pects are concerned; the design of a useful article, as defined in this secti
be considered a pictorial, graphic, or sculptural work only if, and only to t
extent that, such design incorporates pictorial, graphic, or sculptural feat
that can be identified separately from, and are capable of existing indepe
of, the utilitarian aspects of the article .[18]

For purposes of section 513, a "proprietor" is an individual, corporation,
nership, or other entity, as the case may be, that owns an establishment o
service or drinking establishment, except that no owner or operator of a r
television station licensed by the Federal Communications Commission, ca
system or satellite carrier, cable or satellite carrier service or programmer
vider of online services or network access or the operator of facilities the
telecommunications company, or any other such audio or audiovisual serv
programmer now known or as may be developed in the future, commercia
scription music service, or owner or operator of any other transmission se
shall under any circumstances be deemed to be a proprietor .[19]

A "pseudonymous work" is a work on the copies or phonorecords of whi
author is identified under a fictitious name .

"Publication" is the distribution of copies or phonorecords of a work to th
public by sale or other transfer of ownership, or by rental, lease, or lendin
offering to distribute copies or phonorecords to a group of persons for pur
of further distribution, public performance, or public display, constitutes p
lication . A public performance or display of a work does not of itself const
publication .

To perform or display a work "publicly" means—

(1) to perform or display it at a place open to the public or at any pla
where a substantial number of persons outside of a normal circle of a fa
and its social acquaintances is gathered; or

(2) to transmit or otherwise communicate a performance or display o
work to a place specified by clause (1) or to the public, by means of any
or process, whether the members of the public capable of receiving the
formance or display receive it in the same place or in separate places a
same time or at different times .

"Registration", for purposes of sections 205(c)(2), 405, 406, 410(d), 41
and 506(e), means a registration of a claim in the original or the renewed
extended term of copyright .[20]

"Sound recordings" are works that result from the fixation of a series of
spoken, or other sounds, but not including the sounds accompanying a m
picture or other audiovisual work, regardless of the nature of the material
such as disks, tapes, or other phonorecords, in which they are embodied .

"State" includes the District of Columbia and the Commonwealth of Puert
and any territories to which this title is made applicable by an Act of Cong

A “transfer of copyright ownership” is an assignment, mortgage, exclus
cense, or any other conveyance, alienation, or hypothecation of a copyrig
any of the exclusive rights comprised in a copyright, whether or not it is li
in time or place of effect, but not including a nonexclusive license .

A “transmission program” is a body of material that, as an aggregate, h
produced for the sole purpose of transmission to the public in sequence a
a unit .

To “transmit” a performance or display is to communicate it by any de
or process whereby images or sounds are received beyond the place from
they are sent .

A “treaty party” is a country or intergovernmental organization other th
United States that is a party to an international agreement .[21]

The “United States”, when used in a geographical sense, comprises the
States, the District of Columbia and the Commonwealth of Puerto Rico, an
organized territories under the jurisdiction of the United States Governme

For purposes of section 411, a work is a “United States work” only if—

(1) in the case of a published work, the work is first published—

(A) in the United States;

(B) simultaneously in the United States and another treaty party or
ties, whose law grants a term of copyright protection that is the same
longer than the term provided in the United States;

(C) simultaneously in the United States and a foreign nation that is
a treaty party; or

(D) in a foreign nation that is not a treaty party, and all of the auth
of the work are nationals, domiciliaries, or habitual residents of, or in
case of an audiovisual work legal entities with headquarters in, the U
States;

(2) in the case of an unpublished work, all the authors of the work ar
nationals, domiciliaries, or habitual residents of the United States, or, in
case of an unpublished audiovisual work, all the authors are legal entiti
headquarters in the United States; or

(3) in the case of a pictorial, graphic, or sculptural work incorporated
a building or structure, the building or structure is located in the Unite
States.[22]

A “useful article” is an article having an intrinsic utilitarian function that
not merely to portray the appearance of the article or to convey informati
article that is normally a part of a useful article is considered a “useful art

The author’s “widow” or “widower” is the author’s surviving spouse unc
law of the author’s domicile at the time of his or her death, whether or no
spouse has later remarried .

The “WIPO Copyright Treaty” is the WIPO Copyright Treaty concluded at
Geneva, Switzerland, on December 20, 1996 .[23]

The "WIPO Performances and Phonograms Treaty" is the WIPO Performances and Phonograms Treaty concluded at Geneva, Switzerland, on December 20, 1996.[24]

A "work of visual art" is—

(1) a painting, drawing, print, or sculpture, existing in a single copy, in a limited edition of 200 copies or fewer that are signed and consecutively numbered by the author, or, in the case of a sculpture, in multiple cast, carved, or fabricated sculptures of 200 or fewer that are consecutively numbered by the author and bear the signature or other identifying mark of the author; or

(2) a still photographic image produced for exhibition purposes only, existing in a single copy that is signed by the author, or in a limited edition of 200 copies or fewer that are signed and consecutively numbered by the author.

A work of visual art does not include—

(A)(i) any poster, map, globe, chart, technical drawing, diagram, model, applied art, motion picture or other audiovisual work, book, magazine, newspaper, periodical, data base, electronic information service, electronic publication, or similar publication;

(ii) any merchandising item or advertising, promotional, descriptive, covering, or packaging material or container;

(iii) any portion or part of any item described in clause (i) or (ii);

(B) any work made for hire; or

(C) any work not subject to copyright protection under this title.[25]

A "work of the United States Government" is a work prepared by an officer or employee of the United States Government as part of that person's official duties.

A "work made for hire" is—

(1) a work prepared by an employee within the scope of his or her employment; or

(2) a work specially ordered or commissioned for use as a contribution to a collective work, as a part of a motion picture or other audiovisual work, as a translation, as a supplementary work, as a compilation, as an instructional text, as a test, as answer material for a test, or as an atlas, if the parties expressly agree in a written instrument signed by them that the work shall be considered a work made for hire. For the purpose of the foregoing sentence, a "supplementary work" is a work prepared for publication as a secondary adjunct to a work by another author for the purpose of introducing, concluding, illustrating, explaining, revising, commenting upon, or assisting in the use of the other work, such as forewords, afterwords, pictorial illustrations, maps, charts, tables, editorial notes, musical arrangements, answer material for tests, bibliographies, appendixes, and indexes, and an "instructional text" is a literary, pictorial, or graphic work prepared for publication and with the purpose of use in systematic instructional activities.

In determining whether any work is eligible to be considered a work ma
hire under paragraph (2), neither the amendment contained in section 10
of the Intellectual Property and Communications Omnibus Reform Act of 1
as enacted by section 1000(a)(9) of Public Law 106-113, nor the deletion
words added by that amendment—

(A) shall be considered or otherwise given any legal significance, or

(B) shall be interpreted to indicate congressional approval or disappr
of, or acquiescence in, any judicial determination,

by the courts or the Copyright Office . Paragraph (2) shall be interprete
both section 2(a)(1) of the Work Made for Hire and Copyright Corrections
of 2000 and section 1011(d) of the Intellectual Property and Communicati
Omnibus Reform Act of 1999, as enacted by section 1000(a)(9) of Public
106-113, were never enacted, and without regard to any inaction or awar
the Congress at any time of any judicial determinations .[26]

The terms "WTO Agreement" and "WTO member country" have the mean-
ings given those terms in paragraphs (9) and (10), respectively, of section
Uruguay Round Agreements Act .[27]

## § 102 · Subject matter of copyright: In general[28]

(a) Copyright protection subsists, in accordance with this title, in origin
works of authorship fixed in any tangible medium of expression, now kno
or later developed, from which they can be perceived, reproduced, or oth
communicated, either directly or with the aid of a machine or device . Wo
authorship include the following categories:

(1) literary works;

(2) musical works, including any accompanying words;

(3) dramatic works, including any accompanying music;

(4) pantomimes and choreographic works;

(5) pictorial, graphic, and sculptural works;

(6) motion pictures and other audiovisual works;

(7) sound recordings; and

(8) architectural works .

(b) In no case does copyright protection for an original work of authorsh
extend to any idea, procedure, process, system, method of operation, co
principle, or discovery, regardless of the form in which it is described, exp
illustrated, or embodied in such work .

## § 103 · Subject matter of copyright: Compilations and derivative works

(a) The subject matter of copyright as specified by section 102 includes pilations and derivative works, but protection for a work employing preexi material in which copyright subsists does not extend to any part of the wo which such material has been used unlawfully .

(b) The copyright in a compilation or derivative work extends only to th material contributed by the author of such work, as distinguished from the existing material employed in the work, and does not imply any exclusive in the preexisting material . The copyright in such work is independent of, does not affect or enlarge the scope, duration, ownership, or subsistence copyright protection in the preexisting material .

## § 104 · Subject matter of copyright: National origin

(a)Unpublished Works.—The works specified by sections 102 and 103, while unpublished, are subject to protection under this title without regard the nationality or domicile of the author .

(b)Published Works.—The works specified by sections 102 and 103, whe published, are subject to protection under this title if—

(1) on the date of first publication, one or more of the authors is a na or domiciliary of the United States, or is a national, domiciliary, or sover authority of a treaty party, or is a stateless person, wherever that perso be domiciled; or

(2) the work is first published in the United States or in a foreign nati on the date of first publication, is a treaty party; or

(3) the work is a sound recording that was first fixed in a treaty party

(4) the work is a pictorial, graphic, or sculptural work that is incorpora in a building or other structure, or an architectural work that is embodie a building and the building or structure is located in the United States o treaty party; or

(5) the work is first published by the United Nations or any of its spec agencies, or by the Organization of American States; or

(6) the work comes within the scope of a Presidential proclamation . W ever the President finds that a particular foreign nation extends, to wo authors who are nationals or domiciliaries of the United States or to wo are first published in the United States, copyright protection on substan same basis as that on which the foreign nation extends protection to w its own nationals and domiciliaries and works first published in that nati President may by proclamation extend protection under this title to wor

which one or more of the authors is, on the date of first publication, a n
domiciliary, or sovereign authority of that nation, or which was first pub
that nation . The President may revise, suspend, or revoke any such pro
or impose any conditions or limitations on protection under a proclamat
For purposes of paragraph (2), a work that is published in the United Sta
or a treaty party within 30 days after publication in a foreign nation that is
treaty party shall be considered to be first published in the United States o
treaty party, as the case may be .

(c)Effect of Berne Convention.—No right or interest in a work eligible for protection under this title may be claimed by virtue of, or in reliance u provisions of the Berne Convention, or the adherence of the United States Any rights in a work eligible for protection under this title that derive from title, other Federal or State statutes, or the common law, shall not be expa reduced by virtue of, or in reliance upon, the provisions of the Berne Conv or the adherence of the United States thereto .

(d)Effect of Phonograms Treaties.—Notwithstanding the provisions of subsection (b), no works other than sound recordings shall be eligible protection under this title solely by virtue of the adherence of the United S to the Geneva Phonograms Convention or the World Intellectual Property Organization Performances and Phonograms Treaty .

## §104A · Copyright in restored works

(a)Automatic Protection and Term.—

(1)Term.—

(A) Copyright subsists, in accordance with this section, in restored and vests automatically on the date of restoration .

(B) Any work in which copyright is restored under this section shal subsist for the remainder of the term of copyright that the work woul otherwise been granted in the United States if the work never entere public domain in the United States .

(2)Exception.—Any work in which the copyright was ever owned or administered by the Alien Property Custodian and in which the restored right would be owned by a government or instrumentality thereof, is no restored work .

(b)Ownership of Restored Copyright.—A restored work vests initially in the author or initial rightholder of the work as determined by the law of source country of the work .

(c) Filing of Notice of Intent to Enforce Restored Copyright Against Reliance Parties.—On or after the date of restoration, any person who owns a copyright in a restored work or an exclusive right therein may

with the Copyright Office a notice of intent to enforce that person's copyri
exclusive right or may serve such a notice directly on a reliance party . Ac
of a notice by the Copyright Office is effective as to any reliance parties b
not create a presumption of the validity of any of the facts stated therein
on a reliance party is effective as to that reliance party and any other rel
parties with actual knowledge of such service and of the contents of that

(d)Remedies for Infringement of Restored Copyrights.

(1) Enforcement of copyright in restored works in the absence of a reliance party.—As against any party who is not a reliance party, th remedies provided in chapter 5 of this title shall be available on or after date of restoration of a restored copyright with respect to an act of infri ment of the restored copyright that is commenced on or after the date restoration .

(2)Enforcement of copyright in restored works as against reliance parties.—As against a reliance party, except to the extent provide in paragraphs (3) and (4), the remedies provided in chapter 5 of this tit be available, with respect to an act of infringement of a restored copyri or after the date of restoration of the restored copyright if the requirem of either of the following subparagraphs are met:

(A)(i) The owner of the restored copyright (or such owner's agent) owner of an exclusive right therein (or such owner's agent) files with Copyright Office, during the 24-month period beginning on the date restoration, a notice of intent to enforce the restored copyright; and

(ii)(I) the act of infringement commenced after the end of the 1 month period beginning on the date of publication of the notice in Federal Register;

(II) the act of infringement commenced before the end of the 12-month period described in subclause (I) and continued after end of that 12-month period, in which case remedies shall be av able only for infringement occurring after the end of that 12-mo period; or

(III) copies or phonorecords of a work in which copyright has been restored under this section are made after publication of notice of intent in the Federal Register .

(B)(i) The owner of the restored copyright (or such owner's agent) owner of an exclusive right therein (or such owner's agent) serves up reliance party a notice of intent to enforce a restored copyright; and

(ii)(I) the act of infringement commenced after the end of the 1 month period beginning on the date the notice of intent is received

(II) the act of infringement commenced before the end of the month period described in subclause (I) and continued after the of that 12-month period, in which case remedies shall be availab

only for the infringement occurring after the end of that 12-mont
period; or

(III) copies or phonorecords of a work in which copyright has
been restored under this section are made after receipt of the no
of intent .

In the event that notice is provided under both subparagraphs (A) and (
12-month period referred to in such subparagraphs shall run from the earl
publication or service of notice .

(3) Existing derivative works.—

(A) In the case of a derivative work that is based upon a restored w
and is created—

(i) before the date of the enactment of the Uruguay Round Agre
ments Act, if the source country of the restored work is an eligible
try on such date, or

(ii) before the date on which the source country of the restored w
becomes an eligible country, if that country is not an eligible count
on such date of enactment,

a reliance party may continue to exploit that derivative work for th
duration of the restored copyright if the reliance party pays to the ow
of the restored copyright reasonable compensation for conduct whic
would be subject to a remedy for infringement but for the provisions
this paragraph .

(B) In the absence of an agreement between the parties, the amou
such compensation shall be determined by an action in United States
trict court, and shall reflect any harm to the actual or potential marke
or value of the restored work from the reliance party's continued exp
tion of the work, as well as compensation for the relative contribution
expression of the author of the restored work and the reliance party t
derivative work .

(4) Commencement of infringement for reliance parties.—For
purposes of section 412, in the case of reliance parties, infringement sh
deemed to have commenced before registration when acts which would
constituted infringement had the restored work been subject to copyrig
commenced before the date of restoration .

(e) Notices of Intent to Enforce a Restored Copyright.—

(1) Notices of intent filed with the Copyright Office.—

(A)(i) A notice of intent filed with the Copyright Office to enforce a
stored copyright shall be signed by the owner of the restored copyrig
the owner of an exclusive right therein, who files the notice under sub
tion (d)(2)(A)(i) (hereafter in this paragraph referred to as the "owner
by the owner's agent, shall identify the title of the restored work, and
include an English translation of the title and any other alternative tit

known to the owner by which the restored work may be identified, ar
address and telephone number at which the owner may be contacted
notice is signed by an agent, the agency relationship must have beer
tuted in a writing signed by the owner before the filing of the notice .
Copyright Office may specifically require in regulations other informa
to be included in the notice, but failure to provide such other informa
shall not invalidate the notice or be a basis for refusal to list the resto
work in the Federal Register .

(ii) If a work in which copyright is restored has no formal title, it s
be described in the notice of intent in detail sufficient to identify it

(iii) Minor errors or omissions may be corrected by further notice
any time after the notice of intent is filed . Notices of corrections fo
minor errors or omissions shall be accepted after the period establ
in subsection (d)(2)(A)(i) . Notices shall be published in the Federal
ister pursuant to subparagraph (B) .

(B)(i) The Register of Copyrights shall publish in the Federal Regist
commencing not later than 4 months after the date of restoration fo
particular nation and every 4 months thereafter for a period of 2 year
identifying restored works and the ownership thereof if a notice of int
to enforce a restored copyright has been filed .

(ii) Not less than 1 list containing all notices of intent to enforce s
be maintained in the Public Information Office of the Copyright Offi
and shall be available for public inspection and copying during regu
business hours pursuant to sections 705 and 708 .

(C) The Register of Copyrights is authorized to fix reasonable fees b
on the costs of receipt, processing, recording, and publication of noti
intent to enforce a restored copyright and corrections thereto .

(D)(i) Not later than 90 days before the date the Agreement on Tra
Related Aspects of Intellectual Property referred to in section 101(d)(
the Uruguay Round Agreements Act enters into force with respect to
United States, the Copyright Office shall issue and publish in the Fede
Register regulations governing the filing under this subsection of noti
intent to enforce a restored copyright .

(ii) Such regulations shall permit owners of restored copyrights t
simultaneously for registration of the restored copyright .

(2)Notices of intent served on a reliance party.

(A) Notices of intent to enforce a restored copyright may be served
a reliance party at any time after the date of restoration of the resto
copyright .

(B) Notices of intent to enforce a restored copyright served on a re
party shall be signed by the owner or the owner's agent, shall identify
restored work and the work in which the restored work is used, if any

detail sufficient to identify them, and shall include an English translat
the title, any other alternative titles known to the owner by which the
may be identified, the use or uses to which the owner objects, and ar
and telephone number at which the reliance party may contact the o
If the notice is signed by an agent, the agency relationship must have
constituted in writing and signed by the owner before service of the n

(3) Effect of material false statements.—Any material false statement knowingly made with respect to any restored copyright identified notice of intent shall make void all claims and assertions made with res to such restored copyright .

(f) Immunity from Warranty and Related Liability.—

(1) In general.—Any person who warrants, promises, or guarantees tha a work does not violate an exclusive right granted in section 106 shall be liable for legal, equitable, arbitral, or administrative relief if the warr promise, or guarantee is breached by virtue of the restoration of copyri under this section, if such warranty, promise, or guarantee is made be January 1, 1995 .

(2) Performances.—No person shall be required to perform any act if such performance is made infringing by virtue of the restoration of copy under the provisions of this section, if the obligation to perform was unc taken before January 1, 1995 .

(g) Proclamation of Copyright Restoration.—Whenever the President finds that a particular foreign nation extends, to works by authors wh nationals or domiciliaries of the United States, restored copyright protecti substantially the same basis as provided under this section, the President by proclamation extend restored protection provided under this section to work—

(1) of which one or more of the authors is, on the date of first publica a national, domiciliary, or sovereign authority of that nation; or

(2) which was first published in that nation .

The President may revise, suspend, or revoke any such proclamation or im any conditions or limitations on protection under such a proclamation .

(h) Definitions.—For purposes of this section and section 109(a):

(1) The term “date of adherence or proclamation” means the earlier date on which a foreign nation which, as of the date the WTO Agreement enters into force with respect to the United States, is not a nation adher the Berne Convention or a WTO member country, becomes—

(A) a nation adhering to the Berne Convention;

(B) a WTO member country;

(C) a nation adhering to the WIPO Copyright Treaty;[32]

(D) a nation adhering to the WIPO Performances and Phonograms Treaty;[33] or

(E) subject to a Presidential proclamation under subsection (g) .

(2) The "date of restoration" of a restored copyright is—

(A) January 1, 1996, if the source country of the restored work is a
tion adhering to the Berne Convention or a WTO member country on
such date, or

(B) the date of adherence or proclamation, in the case of any other
country of the restored work .

(3) The term "eligible country" means a nation, other than the United
that—

(A) becomes a WTO member country after the date of the enactment o
the Uruguay Round Agreements Act;

(B) on such date of enactment is, or after such date of enactment
comes, a nation adhering to the Berne Convention;

(C) adheres to the WIPO Copyright Treaty;

(D) adheres to the WIPO Performances and Phonograms Treaty;

(E) after such date of enactment becomes subject to a proclamatio
der subsection (g) .

(4) The term "reliance party" means any person who—

(A) with respect to a particular work, engages in acts, before the so
country of that work becomes an eligible country, which would have
ed section 106 if the restored work had been subject to copyright pro
and who, after the source country becomes an eligible country, conti
to engage in such acts;

(B) before the source country of a particular work becomes an eligi
country, makes or acquires 1 or more copies or phonorecords of tha
work; or

(C) as the result of the sale or other disposition of a derivative work
ered under subsection (d)(3), or significant assets of a person describ
subparagraph (A) or (B), is a successor, assignee, or licensee of that

(5) The term "restored copyright" means copyright in a restored work
this section .

(6) The term "restored work" means an original work of authorship th

(A) is protected under subsection (a);

(B) is not in the public domain in its source country through expirat
of term of protection;

(C) is in the public domain in the United States due to—

(i) noncompliance with formalities imposed at any time by Unite
States copyright law, including failure of renewal, lack of proper no
or failure to comply with any manufacturing requirements;

(ii) lack of subject matter protection in the case of sound recordi
fixed before February 15, 1972; or

(iii) lack of national eligibility;

(D) has at least one author or rightholder who was, at the time the was created, a national or domiciliary of an eligible country, and if p lished, was first published in an eligible country and not published in United States during the 30-day period following publication in such e gible country; and

(E) if the source country for the work is an eligible country solely b virtue of its adherence to the WPPT, the WIPO Performances and Phonograms Treaty, is a sound recording.[36]

(7) The term "rightholder" means the person—

(A) who, with respect to a sound recording, first fixes a sound reco with authorization, or

(B) who has acquired rights from the person described in subparag (A) by means of any conveyance or by operation of law .

(8) The "source country" of a restored work is—

(A) a nation other than the United States;

(B) in the case of an unpublished work—

(i) the eligible country in which the author or rightholder is a na tional or domiciliary, or, if a restored work has more than 1 author rightholder, of which the majority of foreign authors or rightholders nationals or domiciliaries; or

(ii) if the majority of authors or rightholders are not foreign, the n tion other than the United States which has the most significant co with the work; and

(C) in the case of a published work—

(i) the eligible country in which the work is first published, or

(ii) if the restored work is published on the same day in 2 or mor eligible countries, the eligible country which has the most significa contacts with the work .

## § 105 Subject matter of copyright: United States Government wo[37]

(a) In General .—Copyright protection under this title is not available for any work of the United States Government, but the United States Governm not precluded from receiving and holding copyrights transferred to it by a ment, bequest, or otherwise .

(b) Copyright Protection of Certain Works.—Subject to subsection (c), the covered author of a covered work owns the copyright to that covered

(c) Use by Federal Government.—

(1) Secretary of defense authority .—With respect to a covered autho produces a covered work in the course of employment at a covered inst tion described in subparagraphs (A) through (K) of subsection (d)(2) ar

subparagraph (L) of such subsection when the Coast Guard is operating service in the Navy, the Secretary of Defense may direct the covered au to provide the Federal Government with an irrevocable, royalty-free, wo wide, nonexclusive license to reproduce, distribute, perform, or display covered work for purposes of the United States Government .

(2) Secretary of the department in which the coast guard is operating it is not operating as a service in the navy authority .—With respect to a ered author who produces a covered work in the course of employmen the covered institution described in subsection (d)(2)(L), the Secretary o Department in which the Coast Guard is operating when it is not operat as a service in the Navy may direct the covered author to provide the F Government with an irrevocable, royalty-free, worldwide, nonexclusive to reproduce, distribute, perform, or display such covered work for purp of the United States Government .

(3) Director of national intelligence authority .—With respect to a cov author who produces a covered work in the course of employment at t covered institution described in subsection (d)(2)(M), the Director of Na Intelligence may direct the covered author to provide the Federal Gover with an irrevocable, royalty-free, worldwide, nonexclusive license to rep distribute, perform, or display such covered work for purposes of the Un States Government .

(4) Secretary of transportation authority .—With respect to a covered thor who produces a covered work in the course of employment at the institution described in subsection (d)(2)(N), the Secretary of Transporta may direct the covered author to provide the Federal Government with irrevocable, royalty-free, worldwide, nonexclusive license to-reproduce tribute, perform, or display such covered work for purposes of the Unit States Government .

(d)Definitions.—In this section:

(1) Covered author .—The term “covered author” means a civilian me of the faculty of a covered institution .

(2) Covered institution .—The term “covered institution” means the lowing:

(A) National Defense University .

(B) United States Military Academy .

(C) Army War College .

(D) United States Army Command and General Staff College .

(E) United States Naval Academy .

(F) Naval War College .

(G) Naval Postgraduate School .

(H) Marine Corps University .

(I) United States Air Force Academy .

(J) Air University.
(K) Defense Language Institute.
(L) United States Coast Guard Academy.
(M) National Intelligence University.
(N) United States Merchant Marine Academy.

(3) Covered work.—The term "covered work" means a literary work p
duced by a covered author in the course of employment at a covered in
tion for publication by a scholarly press or journal.

## § 106 · Exclusive rights in copyrighted works

Subject to sections 107 through 122, the owner of copyright under this
the exclusive rights to do and to authorize any of the following:

(1) to reproduce the copyrighted work in copies or phonorecords;
(2) to prepare derivative works based upon the copyrighted work;
(3) to distribute copies or phonorecords of the copyrighted work to
public by sale or other transfer of ownership, or by rental, lease, or le
(4) in the case of literary, musical, dramatic, and choreographic wor
pantomimes, and motion pictures and other audiovisual works, to perfo
the copyrighted work publicly;
(5) in the case of literary, musical, dramatic, and choreographic work
tomimes, and pictorial, graphic, or sculptural works, including the indivi
images of a motion picture or other audiovisual work, to display the co
righted work publicly; and
(6) in the case of sound recordings, to perform the copyrighted work
licly by means of a digital audio transmission.

## § 106A · Rights of certain authors to attribution and integrity

(a) Rights of Attribution and Integrity.—Subject to section 107 and
independent of the exclusive rights provided in section 106, the author of
of visual art—

(1) shall have the right—
(A) to claim authorship of that work, and
(B) to prevent the use of his or her name as the author of any work
visual art which he or she did not create;
(2) shall have the right to prevent the use of his or her name as the a
of the work of visual art in the event of a distortion, mutilation, or othe
modification of the work which would be prejudicial to his or her honor
reputation; and

(3) subject to the limitations set forth in section 113(d), shall have th
(A) to prevent any intentional distortion, mutilation, or other modi
fication of that work which would be prejudicial to his or her honor o
reputation, and any intentional distortion, mutilation, or modification
that work is a violation of that right, and
(B) to prevent any destruction of a work of recognized stature, and
intentional or grossly negligent destruction of that work is a violation
that right .

(b)Scope and Exercise of Rights.—Only the author of a work of visual art has the rights conferred by subsection (a) in that work, whether or not author is the copyright owner . The authors of a joint work of visual art a coowners of the rights conferred by subsection (a) in that work .

(c)Exceptions.—(1) The modification of a work of visual art which is the result of the passage of time or the inherent nature of the materials is not tion, mutilation, or other modification described in subsection (a)(3)(A) .

(2) The modification of a work of visual art which is the result of cons tion, or of the public presentation, including lighting and placement, of work is not a destruction, distortion, mutilation, or other modification de scribed in subsection (a)(3) unless the modification is caused by gross ne

(3) The rights described in paragraphs (1) and (2) of subsection (a) s not apply to any reproduction, depiction, portrayal, or other use of a wo in, upon, or in any connection with any item described in subparagraph or (B) of the definition of "work of visual art" in section 101, and any s reproduction, depiction, portrayal, or other use of a work is not a destru distortion, mutilation, or other modification described in paragraph (3) subsection (a) .

(d)Duration of Rights.—(1) With respect to works of visual art created o or after the effective date set forth in section 610(a) of the Visual Artists R of 1990, the rights conferred by subsection (a) shall endure for a term co of the life of the author .

(2) With respect to works of visual art created before the effective da forth in section 610(a) of the Visual Artists Rights Act of 1990, but title which has not, as of such effective date, been transferred from the auth rights conferred by subsection (a) shall be coextensive with, and shall e the same time as, the rights conferred by section 106 .

(3) In the case of a joint work prepared by two or more authors, the r conferred by subsection (a) shall endure for a term consisting of the life last surviving author .

(4) All terms of the rights conferred by subsection (a) run to the end calendar year in which they would otherwise expire .

(e)Transfer and Waiver.—(1) The rights conferred by subsection (a) may not be transferred, but those rights may be waived if the author expressly

to such waiver in a written instrument signed by the author . Such instru
shall specifically identify the work, and uses of that work, to which the wa
applies, and the waiver shall apply only to the work and uses so identified
case of a joint work prepared by two or more authors, a waiver of rights u
this paragraph made by one such author waives such rights for all such au

(2) Ownership of the rights conferred by subsection (a) with respect t
work of visual art is distinct from ownership of any copy of that work, or
a copyright or any exclusive right under a copyright in that work . Trans
of ownership of any copy of a work of visual art, or of a copyright or an
exclusive right under a copyright, shall not constitute a waiver of the rig
conferred by subsection (a) . Except as may otherwise be agreed by the
in a written instrument signed by the author, a waiver of the rights conf
by subsection (a) with respect to a work of visual art shall not constitute
transfer of ownership of any copy of that work, or of ownership of a cop
or of any exclusive right under a copyright in that work .

## § 107 · Limitations on exclusive rights: Fair use

Notwithstanding the provisions of sections 106 and 106A, the fair use of a
copyrighted work, including such use by reproduction in copies or phonore
or by any other means specified by that section, for purposes such as criti
comment, news reporting, teaching (including multiple copies for classroo
scholarship, or research, is not an infringement of copyright . In determin
whether the use made of a work in any particular case is a fair use the fac
be considered shall include—

(1) the purpose and character of the use, including whether such use
commercial nature or is for nonprofit educational purposes;

(2) the nature of the copyrighted work;

(3) the amount and substantiality of the portion used in relation to th
righted work as a whole; and

(4) the effect of the use upon the potential market for or value of the
righted work .

The fact that a work is unpublished shall not itself bar a finding of fair u
such finding is made upon consideration of all the above factors .

## § 108 · Limitations on exclusive rights: Reproduction by libraries and archives

(a) Except as otherwise provided in this title and notwithstanding the pr
sions of section 106, it is not an infringement of copyright for a library or a

or any of its employees acting within the scope of their employment, to re
no more than one copy or phonorecord of a work, except as provided in su
tions (b) and (c), or to distribute such copy or phonorecord, under the con
specified by this section, if—

(1) the reproduction or distribution is made without any purpose of di
or indirect commercial advantage;

(2) the collections of the library or archives are (i) open to the public,
available not only to researchers affiliated with the library or archives o
the institution of which it is a part, but also to other persons doing resea
in a specialized field; and

(3) the reproduction or distribution of the work includes a notice of co
right that appears on the copy or phonorecord that is reproduced under
provisions of this section, or includes a legend stating that the work ma
protected by copyright if no such notice can be found on the copy or ph
record that is reproduced under the provisions of this section .

(b) The rights of reproduction and distribution under this section apply t
three copies or phonorecords of an unpublished work duplicated solely for
poses of preservation and security or for deposit for research use in anoth
brary or archives of the type described by clause (2) of subsection (a), if—

(1) the copy or phonorecord reproduced is currently in the collections
the library or archives; and

(2) any such copy or phonorecord that is reproduced in digital format
otherwise distributed in that format and is not made available to the pu
that format outside the premises of the library or archives .

(c) The right of reproduction under this section applies to three copies o
norecords of a published work duplicated solely for the purpose of replace
of a copy or phonorecord that is damaged, deteriorating, lost, or stolen, o
existing format in which the work is stored has become obsolete, if—

(1) the library or archives has, after a reasonable effort, determined t
unused replacement cannot be obtained at a fair price; and

(2) any such copy or phonorecord that is reproduced in digital format
made available to the public in that format outside the premises of the
or archives in lawful possession of such copy .

For purposes of this subsection, a format shall be considered obsolete if
machine or device necessary to render perceptible a work stored in that fo
is no longer manufactured or is no longer reasonably available in the com
marketplace .

(d) The rights of reproduction and distribution under this section apply t
copy, made from the collection of a library or archives where the user ma
or her request or from that of another library or archives, of no more than
article or other contribution to a copyrighted collection or periodical issue
a copy or phonorecord of a small part of any other copyrighted work, if—

(1) the copy or phonorecord becomes the property of the user, and t
library or archives has had no notice that the copy or phonorecord woul
used for any purpose other than private study, scholarship, or research
(2) the library or archives displays prominently, at the place where or
accepted, and includes on its order form, a warning of copyright in acc
with requirements that the Register of Copyrights shall prescribe by reg

(e) The rights of reproduction and distribution under this section apply t
entire work, or to a substantial part of it, made from the collection of a lib
archives where the user makes his or her request or from that of another
or archives, if the library or archives has first determined, on the basis of
able investigation, that a copy or phonorecord of the copyrighted work ca
be obtained at a fair price, if—

(1) the copy or phonorecord becomes the property of the user, and t
library or archives has had no notice that the copy or phonorecord woul
used for any purpose other than private study, scholarship, or research
(2) the library or archives displays prominently, at the place where or
are accepted, and includes on its order form, a warning of copyright in
cordance with requirements that the Register of Copyrights shall presc
by regulation .

(f) Nothing in this section—

(1) shall be construed to impose liability for copyright infringement u
a library or archives or its employees for the unsupervised use of reproc
equipment located on its premises: *Provided,* That such equipment disp
notice that the making of a copy may be subject to the copyright law;
(2) excuses a person who uses such reproducing equipment or who r
a copy or phonorecord under subsection (d) from liability for copyright i
fringement for any such act, or for any later use of such copy or phonor
if it exceeds fair use as provided by section 107;
(3) shall be construed to limit the reproduction and distribution by ler
of a limited number of copies and excerpts by a library or archives of ar
visual news program, subject to clauses (1), (2), and (3) of subsection (a
(4) in any way affects the right of fair use as provided by section 107
contractual obligations assumed at any time by the library or archives w
obtained a copy or phonorecord of a work in its collections .

(g) The rights of reproduction and distribution under this section extend
the isolated and unrelated reproduction or distribution of a single copy or
norecord of the same material on separate occasions, but do not extend t
where the library or archives, or its employee—

(1) is aware or has substantial reason to believe that it is engaging i
related or concerted reproduction or distribution of multiple copies or p
records of the same material, whether made on one occasion or over a

of time, and whether intended for aggregate use by one or more indivic
or for separate use by the individual members of a group; or

(2) engages in the systematic reproduction or distribution of single or
tiple copies or phonorecords of material described in subsection (d): *Pro*
That nothing in this clause prevents a library or archives from participat
in interlibrary arrangements that do not have, as their purpose or effect
the library or archives receiving such copies or phonorecords for distrib
does so in such aggregate quantities as to substitute for a subscription
purchase of such work .

(h)(1) For purposes of this section, during the last 20 years of any term
right of a published work, a library or archives, including a nonprofit educa
institution that functions as such, may reproduce, distribute, display, or pe
facsimile or digital form a copy or phonorecord of such work, or portions t
for purposes of preservation, scholarship, or research, if such library or ar
has first determined, on the basis of a reasonable investigation, that none
conditions set forth in subparagraphs (A), (B), and (C) of paragraph (2) ap

(2) No reproduction, distribution, display, or performance is authoriz
under this subsection if—

(A) the work is subject to normal commercial exploitation;

(B) a copy or phonorecord of the work can be obtained at a reason
price; or

(C) the copyright owner or its agent provides notice pursuant to reg
tions promulgated by the Register of Copyrights that either of the con
tions set forth in subparagraphs (A) and (B) applies .

(3) The exemption provided in this subsection does not apply to any s
sequent uses by users other than such library or archives .

(i) The rights of reproduction and distribution under this section do not a
to a musical work, a pictorial, graphic or sculptural work, or a motion pictu
other audiovisual work other than an audiovisual work dealing with news,
that no such limitation shall apply with respect to rights granted by subse
(b), (c), and (h), or with respect to pictorial or graphic works published as
tions, diagrams, or similar adjuncts to works of which copies are reproduc
distributed in accordance with subsections (d) and (e) .

## § 109. Limitations on exclusive rights: Effect of transfer of particular copy or phonorecord

(a) Notwithstanding the provisions of section 106(3), the owner of a par
copy or phonorecord lawfully made under this title, or any person authoriz
such owner, is entitled, without the authority of the copyright owner, to se
otherwise dispose of the possession of that copy or phonorecord . Notwith

the preceding sentence, copies or phonorecords of works subject to restor
right under section 104A that are manufactured before the date of restoration
of copyright or, with respect to reliance parties, before publication or serv
notice under section 104A(e), may be sold or otherwise disposed of without the
authorization of the owner of the restored copyright for purposes of direct
indirect commercial advantage only during the 12-month period beginnin

(1) the date of the publication in the Federal Register of the notice of
filed with the Copyright Office under section 104A(d)(2), or

(2) the date of the receipt of actual notice served under section 104A(e)(2)
(B), whichever occurs first .

(b)(1)(A) Notwithstanding the provisions of subsection (a), unless autho
by the owners of copyright in the sound recording or the owner of copyrig
computer program (including any tape, disk, or other medium embodying
program), and in the case of a sound recording in the musical works embo
therein, neither the owner of a particular phonorecord nor any person in p
session of a particular copy of a computer program (including any tape, d
or other medium embodying such program), may, for the purposes of dir
or indirect commercial advantage, dispose of, or authorize the disposal of
possession of that phonorecord or computer program (including any tape,
or other medium embodying such program) by rental, lease, or lending, o
any other act or practice in the nature of rental, lease, or lending . Nothin
preceding sentence shall apply to the rental, lease, or lending of a phonor
nonprofit purposes by a nonprofit library or nonprofit educational institutio
The transfer of possession of a lawfully made copy of a computer program
nonprofit educational institution to another nonprofit educational institutio
or to faculty, staff, and students does not constitute rental, lease, or lendi
direct or indirect commercial purposes under this subsection .

(B) This subsection does not apply to—

(i) a computer program which is embodied in a machine or produ
and which cannot be copied during the ordinary operation or use o
machine or product; or

(ii) a computer program embodied in or used in conjunction with
limited purpose computer that is designed for playing video games
may be designed for other purposes .

(C) Nothing in this subsection affects any provision of chapter 9 of
title .

(2)(A) Nothing in this subsection shall apply to the lending of a compu
program for nonprofit purposes by a nonprofit library, if each copy of a
puter program which is lent by such library has affixed to the packaging
taining the program a warning of copyright in accordance with requiren
that the Register of Copyrights shall prescribe by regulation .

(B) Not later than three years after the date of the enactment of t
Computer Software Rental Amendments Act of 1990, and at such tir
thereafter as the Register of Copyrights considers appropriate, the Re
of Copyrights, after consultation with representatives of copyright ow
and librarians, shall submit to the Congress a report stating whether
paragraph has achieved its intended purpose of maintaining the inte
of the copyright system while providing nonprofit libraries the capabi
to fulfill their function . Such report shall advise the Congress as to a
information or recommendations that the Register of Copyrights cons
necessary to carry out the purposes of this subsection .

(3) Nothing in this subsection shall affect any provision of the antitru
laws . For purposes of the preceding sentence, "antitrust laws" has the
given that term in the first section of the Clayton Act and includes secti
the Federal Trade Commission Act to the extent that section relates to
methods of competition .

(4) Any person who distributes a phonorecord or a copy of a compute
gram (including any tape, disk, or other medium embodying such progr
in violation of paragraph (1) is an infringer of copyright under section 5
this title and is subject to the remedies set forth in sections 502, 503, 5
505 . Such violation shall not be a criminal offense under section 506 or
such person to be subject to the criminal penalties set forth in section 2
of title 18 .

(c) Notwithstanding the provisions of section 106(5), the owner of a par
copy lawfully made under this title, or any person authorized by such own
entitled, without the authority of the copyright owner, to display that copy
licly, either directly or by the projection of no more than one image at a ti
viewers present at the place where the copy is located .

(d) The privileges prescribed by subsections (a) and (c) do not, unless a
rized by the copyright owner, extend to any person who has acquired pos
of the copy or phonorecord from the copyright owner, by rental, lease, loa
otherwise, without acquiring ownership of it .

(e) Notwithstanding the provisions of sections 106(4) and 106(5), in the
of an electronic audiovisual game intended for use in coin-operated equip
the owner of a particular copy of such a game lawfully made under this tit
entitled, without the authority of the copyright owner of the game, to pub
perform or display that game in coin-operated equipment, except that this
section shall not apply to any work of authorship embodied in the audiovi
game if the copyright owner of the electronic audiovisual game is not also
copyright owner of the work of authorship .

## § 110 Limitations on exclusive rights: Exemption of certain performances and displays

Notwithstanding the provisions of section 106, the following are not infr
ments of copyright:

(1) performance or display of a work by instructors or pupils in the co
of face-to-face teaching activities of a nonprofit educational institution
a classroom or similar place devoted to instruction, unless, in the case
motion picture or other audiovisual work, the performance, or the disp
of individual images, is given by means of a copy that was not lawfully
under this title, and that the person responsible for the performance kn
had reason to believe was not lawfully made;

(2) except with respect to a work produced or marketed primarily for
formance or display as part of mediated instructional activities transmit
digital networks, or a performance or display that is given by means of
or phonorecord that is not lawfully made and acquired under this title, a
transmitting government body or accredited nonprofit educational insti
knew or had reason to believe was not lawfully made and acquired, the
mance of a nondramatic literary or musical work or reasonable and limi
portions of any other work, or display of a work in an amount comparab
that which is typically displayed in the course of a live classroom sessio
in the course of a transmission, if—

(A) the performance or display is made by, at the direction of, or u
der the actual supervision of an instructor as an integral part of a cla
session offered as a regular part of the systematic mediated instruct
activities of a governmental body or an accredited nonprofit educati
institution;

(B) the performance or display is directly related and of material as
tance to the teaching content of the transmission;

(C) the transmission is made solely for, and, to the extent technolo
feasible, the reception of such transmission is limited to—

(i) students officially enrolled in the course for which the transmi
sion is made; or

(ii) officers or employees of governmental bodies as a part of the
official duties or employment; and

(D) the transmitting body or institution—

(i) institutes policies regarding copyright, provides informational
terials to faculty, students, and relevant staff members that accur
describe, and promote compliance with, the laws of the United Sta
lating to copyright, and provides notice to students that materials u
connection with the course may be subject to copyright protection;

(ii) in the case of digital transmissions—

(I) applies technological measures that reasonably prevent—

(aa) retention of the work in accessible form by recipients o the transmission from the transmitting body or institution for longer than the class session; and

(bb) unauthorized further dissemination of the work in acces sible form by such recipients to others; and

(II) does not engage in conduct that could reasonably be expe to interfere with technological measures used by copyright owne prevent such retention or unauthorized further dissemination;

(3) performance of a nondramatic literary or musical work or of a dra musical work of a religious nature, or display of a work, in the course of vices at a place of worship or other religious assembly;

(4) performance of a nondramatic literary or musical work otherwise in a transmission to the public, without any purpose of direct or indirec commercial advantage and without payment of any fee or other compe for the performance to any of its performers, promoters, or organizers,

(A) there is no direct or indirect admission charge; or

(B) the proceeds, after deducting the reasonable costs of producing performance, are used exclusively for educational, religious, or charit purposes and not for private financial gain, except where the copyri owner has served notice of objection to the performance under the fo ing conditions:

(i) the notice shall be in writing and signed by the copyright own or such owner's duly authorized agent; and

(ii) the notice shall be served on the person responsible for the p mance at least seven days before the date of the performance, and state the reasons for the objection; and

(iii) the notice shall comply, in form, content, and manner of ser vice, with requirements that the Register of Copyrights shall prescr by regulation;

(5)(A) except as provided in subparagraph (B), communication of a tr mission embodying a performance or display of a work by the public re of the transmission on a single receiving apparatus of a kind commonly in private homes, unless—

(i) a direct charge is made to see or hear the transmission; or

(ii) the transmission thus received is further transmitted to the p

(B) communication by an establishment of a transmission or retra mission embodying a performance or display of a nondramatic musi work intended to be received by the general public, originated by a ra or television broadcast station licensed as such by the Federal Comm tions Commission, or, if an audiovisual transmission, by a cable syste satellite carrier, if—

(i) in the case of an establishment other than a food service or d
ing establishment, either the establishment in which the communic
occurs has less than 2,000 gross square feet of space (excluding sp
used for customer parking and for no other purpose), or the establi
ment in which the communication occurs has 2,000 or more gross
square feet of space (excluding space used for customer parking a
no other purpose) and—

(I) if the performance is by audio means only, the performance
communicated by means of a total of not more than 6 loudspeak
of which not more than 4 loudspeakers are located in any 1 roon
adjoining outdoor space; or

(II) if the performance or display is by audiovisual means, any
visual portion of the performance or display is communicated by
means of a total of not more than 4 audiovisual devices, of which
more than 1 audiovisual device is located in any 1 room, and no
audiovisual device has a diagonal screen size greater than 55 in
and any audio portion of the performance or display is commun
cated by means of a total of not more than 6 loudspeakers, of wh
not more than 4 loudspeakers are located in any 1 room or adjoi
outdoor space;

(ii) in the case of a food service or drinking establishment, either
establishment in which the communication occurs has less than 3,7
gross square feet of space (excluding space used for customer par
and for no other purpose), or the establishment in which the comm
nication occurs has 3,750 gross square feet of space or more (exclu
space used for customer parking and for no other purpose) and—

(I) if the performance is by audio means only, the performance
communicated by means of a total of not more than 6 loudspeak
of which not more than 4 loudspeakers are located in any 1 roon
adjoining outdoor space; or

(II) if the performance or display is by audiovisual means, any
portion of the performance or display is communicated by mean
total of not more than 4 audiovisual devices, of which not more t
1 audiovisual device is located in any 1 room, and no such audio
device has a diagonal screen size greater than 55 inches, and an
portion of the performance or display is communicated by mean
a total of not more than 6 loudspeakers, of which not more than
loudspeakers are located in any 1 room or adjoining outdoor spa

(iii) no direct charge is made to see or hear the transmission or
transmission;

(iv) the transmission or retransmission is not further transmitted
yond the establishment where it is received; and

(v) the transmission or retransmission is licensed by the copyrig
owner of the work so publicly performed or displayed;

(6) performance of a nondramatic musical work by a governmental b
or a nonprofit agricultural or horticultural organization, in the course of
annual agricultural or horticultural fair or exhibition conducted by such
or organization; the exemption provided by this clause shall extend to a
ability for copyright infringement that would otherwise be imposed on s
body or organization, under doctrines of vicarious liability or related inf
ment, for a performance by a concessionaire, business establishment, c
person at such fair or exhibition, but shall not excuse any such person f
liability for the performance;

(7) performance of a nondramatic musical work by a vending establis
open to the public at large without any direct or indirect admission char
where the sole purpose of the performance is to promote the retail sal
copies or phonorecords of the work, or of the audiovisual or other devic
utilized in such performance, and the performance is not transmitted be
the place where the establishment is located and is within the immedia
where the sale is occurring;

(8) performance of a nondramatic literary work, by or in the course o
a transmission specifically designed for and primarily directed to blind
other handicapped persons who are unable to read normal printed mat
as a result of their handicap, or deaf or other handicapped persons who
unable to hear the aural signals accompanying a transmission of visual
if the performance is made without any purpose of direct or indirect co
mercial advantage and its transmission is made through the facilities of
a governmental body; or (ii) a noncommercial educational broadcast st
(as defined in section 397 of title 47); or (iii) a radio subcarrier authoriz
defined in 47 CFR 73 .293–73 .295 and 73 .593–73 .595); or (iv) a cable sy
(as defined in section 111 (f));

(9) performance on a single occasion of a dramatic literary work publ
at least ten years before the date of the performance, by or in the cours
transmission specifically designed for and primarily directed to blind or
handicapped persons who are unable to read normal printed material a
result of their handicap, if the performance is made without any purpos
direct or indirect commercial advantage and its transmission is made th
the facilities of a radio subcarrier authorization referred to in clause (8)
*Provided,* That the provisions of this clause shall not be applicable to m
than one performance of the same work by the same performers or und
auspices of the same organization;

(10) notwithstanding paragraph (4), the following is not an infringem
of copyright: performance of a nondramatic literary or musical work in t
course of a social function which is organized and promoted by a nonpr

veterans' organization or a nonprofit fraternal organization to which the
eral public is not invited, but not including the invitees of the organizati
if the proceeds from the performance, after deducting the reasonable c
producing the performance, are used exclusively for charitable purpose
not for financial gain . For purposes of this section the social functions o
college or university fraternity or sorority shall not be included unless th
function is held solely to raise funds for a specific charitable purpose; a

(11) the making imperceptible, by or at the direction of a member of
private household, of limited portions of audio or video content of a mo
picture, during a performance in or transmitted to that household for pr
home viewing, from an authorized copy of the motion picture, or the cr
or provision of a computer program or other technology that enables su
making imperceptible and that is designed and marketed to be used, at
direction of a member of a private household, for such making imperce
if no fixed copy of the altered version of the motion picture is created b
computer program or other technology .

The exemptions provided under paragraph (5) shall not be taken into a
count in any administrative, judicial, or other governmental proceeding to
or adjust the royalties payable to copyright owners for the public performa
or display of their works . Royalties payable to copyright owners for any p
performance or display of their works other than such performances or dis
as are exempted under paragraph (5) shall not be diminished in any respe
result of such exemption .

In paragraph (2), the term "mediated instructional activities" with respe
the performance or display of a work by digital transmission under this se
refers to activities that use such work as an integral part of the class expe
controlled by or under the actual supervision of the instructor and analog
the type of performance or display that would take place in a live classroo
ting . The term does not refer to activities that use, in 1 or more class sess
a single course, such works as textbooks, course packs, or other material
media, copies or phonorecords of which are typically purchased or acquire
the students in higher education for their independent use and retention o
typically purchased or acquired for elementary and secondary students fo
possession and independent use .

For purposes of paragraph (2), accreditation—

(A) with respect to an institution providing post-secondary education,
be as determined by a regional or national accrediting agency recogniz
the Council on Higher Education Accreditation or the United States Dep
ment of Education; and

(B) with respect to an institution providing elementary or secondary e
cation, shall be as recognized by the applicable state certification or lic
procedures .

For purposes of paragraph (2), no governmental body or accredited nor
educational institution shall be liable for infringement by reason of the tra
or temporary storage of material carried out through the automatic techn
process of a digital transmission of the performance or display of that mat
as authorized under paragraph (2) . No such material stored on the syster
work controlled or operated by the transmitting body or institution under t
paragraph shall be maintained on such system or network in a manner or
accessible to anyone other than anticipated recipients . No such copy sh
maintained on the system or network in a manner ordinarily accessible to
anticipated recipients for a longer period than is reasonably necessary to
the transmissions for which it was made .

For purposes of paragraph (11), the term "making imperceptible" does
clude the addition of audio or video content that is performed or displaye
or in place of existing content in a motion picture .

Nothing in paragraph (11) shall be construed to imply further rights unc
tion 106 of this title, or to have any effect on defenses or limitations on rig
granted under any other section of this title or under any other paragrap
this section .

## § 111 · Limitations on exclusive rights: Secondary transmissio broadcast programming by cable

(a) Certain Secondary Transmissions Exempted.—The secondary
transmission of a performance or display of a work embodied in a primary
mission is not an infringement of copyright if—

(1) the secondary transmission is not made by a cable system, and c
entirely of the relaying, by the management of a hotel, apartment hous
similar establishment, of signals transmitted by a broadcast station lice
the Federal Communications Commission, within the local service area o
station, to the private lodgings of guests or residents of such establishm
no direct charge is made to see or hear the secondary transmission; or

(2) the secondary transmission is made solely for the purpose and un
the conditions specified by paragraph (2) of section 110; or

(3) the secondary transmission is made by any carrier who has no dir
indirect control over the content or selection of the primary transmissio
the particular recipients of the secondary transmission, and whose activ
respect to the secondary transmission consist solely of providing wires,
other communications channels for the use of others: *Provided,* That th
sions of this paragraph extend only to the activities of said carrier with
secondary transmissions and do not exempt from liability the activities
with respect to their own primary or secondary transmissions;

(4) the secondary transmission is made by a satellite carrier pursuant
statutory license under section 119 or section 122;

(5) the secondary transmission is not made by a cable system but is
a governmental body, or other nonprofit organization, without any purp
of direct or indirect commercial advantage, and without charge to the r
ents of the secondary transmission other than assessments necessary t
the actual and reasonable costs of maintaining and operating the secon
transmission service .

(b) Secondary Transmission of Primary Transmission to Controlled Group .—Notwithstanding the provisions of subsections (a) and (c
the secondary transmission to the public of a performance or display of a
embodied in a primary transmission is actionable as an act of infringeme
under section 501, and is fully subject to the remedies provided by sectio
through 506, if the primary transmission is not made for reception by the
at large but is controlled and limited to reception by particular members
public: *Provided*, however, That such secondary transmission is not actio
as an act of infringement if—

(1) the primary transmission is made by a broadcast station licensed
Federal Communications Commission; and

(2) the carriage of the signals comprising the secondary transmissio
required under the rules, regulations, or authorizations of the Federal C
munications Commission; and

(3) the signal of the primary transmitter is not altered or changed in a
way by the secondary transmitter .

(c) Secondary Transmissions by Cable Systems.

(1) Subject to the provisions of paragraphs (2), (3), and (4) of this sub
and section 114(d), secondary transmissions to the public by a cable sy
of a performance or display of a work embodied in a primary transmissi
made by a broadcast station licensed by the Federal Communications C
mission or by an appropriate governmental authority of Canada or Mexi
shall be subject to statutory licensing upon compliance with the require
of subsection (d) where the carriage of the signals comprising the secon
transmission is permissible under the rules, regulations, or authorizatio
the Federal Communications Commission .

(2) Notwithstanding the provisions of paragraph (1) of this subsection, the
willful or repeated secondary transmission to the public by a cable syste
a primary transmission made by a broadcast station licensed by the Fed
Communications Commission or by an appropriate governmental autho
of Canada or Mexico and embodying a performance or display of a work
actionable as an act of infringement under section 501, and is fully subj
the remedies provided by sections 502 through 506, in the following ca

(A) where the carriage of the signals comprising the secondary tran
sion is not permissible under the rules, regulations, or authorizations
Federal Communications Commission; or

(B) where the cable system has not deposited the statement of acc
and royalty fee required by subsection (d) .

(3) Notwithstanding the provisions of paragraph (1) of this subsection
subject to the provisions of subsection (e) of this section, the secondary
mission to the public by a cable system of a performance or display of a
embodied in a primary transmission made by a broadcast station licen
by the Federal Communications Commission or by an appropriate gove
mental authority of Canada or Mexico is actionable as an act of infringe
under section 501, and is fully subject to the remedies provided by sec
502 through 506 and section 510, if the content of the particular progra
which the performance or display is embodied, or any commercial adve
ing or station announcements transmitted by the primary transmitter d
or immediately before or after, the transmission of such program, is in
way willfully altered by the cable system through changes, deletions, or
tions, except for the alteration, deletion, or substitution of commercial a
tisements performed by those engaged in television commercial advert
market research: *Provided,* That the research company has obtained th
consent of the advertiser who has purchased the original commercial a
ment, the television station broadcasting that commercial advertiseme
the cable system performing the secondary transmission: *And provided*
That such commercial alteration, deletion, or substitution is not perform
the purpose of deriving income from the sale of that commercial time .

(4) Notwithstanding the provisions of paragraph (1) of this subsection
secondary transmission to the public by a cable system of a performanc
display of a work embodied in a primary transmission made by a broad
station licensed by an appropriate governmental authority of Canada or
co is actionable as an act of infringement under section 501, and is fully
to the remedies provided by sections 502 through 506, if (A) with respe
Canadian signals, the community of the cable system is located more th
miles from the United States-Canadian border and is also located south of the
forty-second parallel of latitude, or (B) with respect to Mexican signals,
secondary transmission is made by a cable system which received the p
transmission by means of other than direct interception of a free space ra
wave emitted by such broadcast television station, unless prior to Apri
1976, such cable system was actually carrying, or was specifically auth
to carry, the signal of such foreign station on the system pursuant to th
regulations, or authorizations of the Federal Communications Commissi

(d) Statutory License for Secondary Transmissions by Cable Systems.[45]

(1) **Statement of account and royalty fees.**—Subject to paragraph (5), a cable system whose secondary transmissions have been subject t tory licensing under subsection (c) shall, on a semiannual basis, deposit the Register of Copyrights, in accordance with requirements that the Re shall prescribe by regulation the following—

(A) A statement of account, covering the six months next precedin specifying the number of channels on which the cable system made ondary transmissions to its subscribers, the names and locations of a mary transmitters whose transmissions were further transmitted by cable system, the total number of subscribers, the gross amounts pai the cable system for the basic service of providing secondary transm of primary broadcast transmitters, and such other data as the Registe Copyrights may from time to time prescribe by regulation . In determ the total number of subscribers and the gross amounts paid to the ca tem for the basic service of providing secondary transmissions of prin broadcast transmitters, the cable system shall not include subscriber amounts collected from subscribers receiving secondary transmission suant to section 119 . Such statement shall also include a special sta of account covering any non-network television programming that w carried by the cable system in whole or in part beyond the local servi of the primary transmitter, under rules, regulations, or authorizations the Federal Communications Commission permitting the substitution addition of signals under certain circumstances, together with logs sh ing the times, dates, stations, and programs involved in such substitu added carriage .

(B) Except in the case of a cable system whose royalty fee is specif subparagraph (E) or (F), a total royalty fee payable to copyright owne suant to paragraph (3) for the period covered by the statement, comp on the basis of specified percentages of the gross receipts from subs to the cable service during such period for the basic service of provid secondary transmissions of primary broadcast transmitters, as follow

(i) 1 .064 percent of such gross receipts for the privilege of furth transmitting, beyond the local service area of such primary transm any non-network programming of a primary transmitter in whole o part, such amount to be applied against the fee, if any, payable pu to clauses (ii) through (iv);

(ii) 1 .064 percent of such gross receipts for the first distant sign equivalent;

(iii) 0 .701 percent of such gross receipts for each of the second, and fourth distant signal equivalents; and

(iv) 0 .330 percent of such gross receipts for the fifth distant sig equivalent and each distant signal equivalent thereafter .

(C) In computing amounts under clauses (ii) through (iv) of subpara
graph (B)—

(i) any fraction of a distant signal equivalent shall be computed a
fractional value;

(ii) in the case of any cable system located partly within and par
outside of the local service area of a primary transmitter, gross rec
shall be limited to those gross receipts derived from subscribers lo
outside of the local service area of such primary transmitter; and

(iii) if a cable system provides a secondary transmission of a prir
transmitter to some but not all communities served by that
system—

(I) the gross receipts and the distant signal equivalent values f
such secondary transmission shall be derived solely on the basis
the subscribers in those communities where the cable system p
vides such secondary transmission; and

(II) the total royalty fee for the period paid by such system sha
not be less than the royalty fee calculated under subparagraph (
multiplied by the gross receipts from all subscribers to the syste

(D) A cable system that, on a statement submitted before the date
enactment of the Satellite Television Extension and Localism Act of 2
computed its royalty fee consistent with the methodology under subp
graph (C)(iii), or that amends a statement filed before such date of en
ment to compute the royalty fee due using such methodology, shall n
subject to an action for infringement, or eligible for any royalty refun
offset, arising out of its use of such methodology on such statement .

(E) If the actual gross receipts paid by subscribers to a cable syste
the period covered by the statement for the basic service of providing
ondary transmissions of primary broadcast transmitters are $263,800

(i) gross receipts of the cable system for the purpose of this para
shall be computed by subtracting from such actual gross receipts
amount by which $263,800 exceeds such actual gross receipts, ex
that in no case shall a cable system's gross receipts be reduced to
than $10,400; and

(ii) the royalty fee payable under this paragraph to copyright ow
pursuant to paragraph (3) shall be 0 .5 percent, regardless of the n
of distant signal equivalents, if any .

(F) If the actual gross receipts paid by subscribers to a cable syste
the period covered by the statement for the basic service of providing
ondary transmissions of primary broadcast transmitters are more th
$263,800 but less than $527,600, the royalty fee payable under this
graph to copyright owners pursuant to paragraph (3) shall be—

(i) 0 .5 percent of any gross receipts up to $263,800, regardless
number of distant signal equivalents, if any; and

(ii) 1 percent of any gross receipts in excess of $263,800, but les
$527,600, regardless of the number of distant signal equivalents, i

(G) A filing fee, as determined by the Register of Copyrights pursua
to section 708(a) .

(2)Handling of fees.—The Register of Copyrights shall receive all fees
(including the filing fee specified in paragraph (1)(G)) deposited under t
section and, after deducting the reasonable costs incurred by the Copyr
Office under this section, shall deposit the balance in the Treasury of th
ed States, in such manner as the Secretary of the Treasury directs . All
held by the Secretary of the Treasury shall be invested in interest-bear
United States securities for later distribution with interest by the Librari
Congress upon authorization by the Copyright Royalty Judges .

(3)Distribution of royalty fees to copyright owners.—The
royalty fees thus deposited shall, in accordance with the procedures pro
paragraph (4), be distributed to those among the following copyright ow
who claim that their works were the subject of secondary transmission
cable systems during the relevant semiannual period:

(A) Any such owner whose work was included in a secondary transm
sion made by a cable system of a non-network television program in
or in part beyond the local service area of the primary transmitter .

(B) Any such owner whose work was included in a secondary transm
sion identified in a special statement of account deposited under para
(1) (A) .

(C) Any such owner whose work was included in non-network progr
ming consisting exclusively of aural signals carried by a cable syster
whole or in part beyond the local service area of the primary transmit
of such programs .

(4)Procedures for royalty fee distribution.—The royalty fees thus
deposited shall be distributed in accordance with the following pro cedu

(A) During the month of July in each year, every person claiming to
entitled to statutory license fees for secondary transmissions shall fi
claim with the Copyright Royalty Judges, in accordance with requirem
that the Copyright Royalty Judges shall prescribe by regulation . Notw
standing any provisions of the antitrust laws, for purposes of this clau
claimants may agree among themselves as to the proportionate divis
statutory licensing fees among them, may lump their claims together
file them jointly or as a single claim, or may designate a common age
receive payment on their behalf .

(B) After the first day of August of each year, the Copyright Royalt
Judges shall determine whether there exists a controversy concerning

distribution of royalty fees . If the Copyright Royalty Judges determine no such controversy exists, the Copyright Royalty Judges shall author the Librarian of Congress to proceed to distribute such fees to the co right owners entitled to receive them, or to their designated agents, s to the deduction of reasonable administrative costs under this section the Copyright Royalty Judges find the existence of a controversy, the right Royalty Judges shall, pursuant to chapter 8 of this title, conduc proceeding to determine the distribution of royalty fees .

(C) During the pendency of any proceeding under this subsection, t Copyright Royalty Judges shall have the discretion to authorize the L brarian of Congress to proceed to distribute any amounts that are no controversy .

(5)3.75 percent rate and syndicated exclusivity surcharge not applicable to multicast streams.—The royalty rates specified in sections 256 .2(c) and 256 .2(d) of title 37, Code of Federal Regulations (co referred to as the "3 .75 percent rate" and the "syndicated exclusivity s respectively), as in effect on the date of the enactment of the Satellite T Extension and Localism Act of 2010, as such rates may be adjusted, or sections redesignated, thereafter by the Copyright Royalty Judges, sha apply to the secondary transmission of a multicast stream .

(6)Verification of accounts and fee payments.—The Register of Copyrights shall issue regulations to provide for the confidential verifica by copyright owners whose works were embodied in the secondary tran sions of primary transmissions pursuant to this section of the informat reported on the semiannual statements of account filed under this subs for accounting periods beginning on or after January 1, 2010, in order th auditor designated under subparagraph (A) is able to confirm the correc of the calculations and royalty payments reported therein . The regula shall—

(A) establish procedures for the designation of a qualified independ auditor—

(i) with exclusive authority to request verification of such a stat ment of account on behalf of all copyright owners whose works we the subject of secondary transmissions of primary transmissions by cable system (that deposited the statement) during the accounting riod covered by the statement; and

(ii) who is not an officer, employee, or agent of any such copyrig owner for any purpose other than such audit;

(B) establish procedures for safeguarding all nonpublic financial a business information provided under this paragraph;

(C)(i) require a consultation period for the independent auditor to r view its conclusions with a designee of the cable system;

(ii) establish a mechanism for the cable system to remedy any e identified in the auditor's report and to cure any underpayment ide fied; and

(iii) provide an opportunity to remedy any disputed facts or conc

(D) limit the frequency of requests for verification for a particular c system and the number of audits that a multiple system operator can required to undergo in a single year; and

(E) permit requests for verification of a statement of account to be only within 3 years after the last day of the year in which the stateme account is filed .

(7)Acceptance of additional deposits.—Any royalty fee payments received by the Copyright Office from cable systems for the secondary t mission of primary transmissions that are in addition to the payments culated and deposited in accordance with this subsection shall be deem have been deposited for the particular accounting period for which they received and shall be distributed as specified under this subsection .

(e)Nonsimultaneous Secondary Transmissions by Cable Systems.

(1) Notwithstanding those provisions of the subsection (f)(2) relating nonsimultaneous secondary transmissions by a cable system, any such missions are actionable as an act of infringement under section 501, an fully subject to the remedies provided by sections 502 through 506 and 510, unless—

(A) the program on the videotape is transmitted no more than one to the cable system's subscribers;

(B) the copyrighted program, episode, or motion picture-videotape cluding the commercials contained within such program, episode, or ture, is transmitted without deletion or editing;

(C) an owner or officer of the cable system

(i) prevents the duplication of the videotape while in the possess of the system,

(ii) prevents unauthorized duplication while in the possession of facility making the videotape for the system if the system owns or trols the facility, or takes reasonable precautions to prevent such d tion if it does not own or control the facility,

(iii) takes adequate precautions to prevent duplication while the is being transported, and

(iv) subject to paragraph (2), erases or destroys, or causes the e or destruction of, the videotape;

(D) within forty-five days after the end of each calendar quarter, a owner or officer of the cable system executes an affidavit attesting

(i) to the steps and precautions taken to prevent duplication of t videotape, and

(ii) subject to paragraph (2), to the erasure or destruction of all v
eotapes made or used during such quarter;

(E) such owner or officer places or causes each such affidavit, and
fidavits received pursuant to paragraph (2)(C), to be placed in a file,
to public inspection, at such system's main office in the community w
the transmission is made or in the nearest community where such sy
maintains an office; and

(F) the nonsimultaneous transmission is one that the cable system
be authorized to transmit under the rules, regulations, and authorizat
of the Federal Communications Commission in effect at the time of th
nonsimultaneous transmission if the transmission had been made sin
taneously, except that this subparagraph shall not apply to inadverte
accidental transmissions .

(2) If a cable system transfers to any person a videotape of a progra
nonsimultaneously transmitted by it, such transfer is actionable as an a
infringement under section 501, and is fully subject to the remed
vided by sections 502 through 506, except that, pursuant to a written,
profit contract providing for the equitable sharing of the costs of
videotape and its transfer, a videotape nonsimultaneously transmitted b
in accordance with paragraph (1), may be transferred by one cable syst
Alaska to another system in Alaska, by one cable system in Hawaii perm
to make such nonsimultaneous transmissions to another such cable sys
Hawaii, or by one cable system in Guam, the Northern Mariana Islands,
Trust Territory of the Pacific Islands, to another cable system in any of t
five entities, if—

(A) each such contract is available for public inspection in the office
the cable systems involved, and a copy of such contract is filed, withi
days after such contract is entered into, with the Copyright Office (wh
Office shall make each such contract available for public inspection);

(B) the cable system to which the videotape is transferred complies
paragraph (1)(A), (B), (C)(i), (iii), and (iv), and (D) through (F);

(C) such system provides a copy of the affidavit required to be mad
accordance with paragraph (1) (D) to each cable system making a pr
nonsimultaneous transmission of the same videotape .

(3) This subsection shall not be construed to supersede the exclusivit
tection provisions of any existing agreement, or any such agreement he
entered into, between a cable system and a television broadcast station
area in which the cable system is located, or a network with which such
tion is affiliated .

(4) As used in this subsection, the term "videotape" means the repro
tion of the images and sounds of a program or programs broadcast by a
sion broadcast station licensed by the Federal Communications Commis

regardless of the nature of the material objects, such as tapes or films, the reproduction is embodied .

(f) Definitions.—As used in this section, the following terms mean the following:

(1) Primary transmission.—A "primary transmission" is a transmission made to the public by a transmitting facility whose signals are being re and further transmitted by a secondary transmission service, regardles where or when the performance or display was first transmitted . In the a television broadcast station, the primary stream and any multicast str transmitted by the station constitute primary transmissions .

(2) Secondary transmission.—A "secondary transmission" is the further transmitting of a primary transmission simultaneously with the pri transmission, or nonsimultaneously with the primary transmission if by cable system not located in whole or in part within the boundary of the eight contiguous States, Hawaii, or Puerto Rico: *Provided, however*, Th nonsimultaneous further transmission by a cable system located in Ha of a primary transmission shall be deemed to be a secondary transmiss the carriage of the television broadcast signal comprising such further t mission is permissible under the rules, regulations, or authorizations of Federal Communications Commission .

(3) Cable system.—A "cable system" is a facility, located in any State, territory, trust territory, or possession of the United States, that in whol in part receives signals transmitted or programs broadcast by one or m television broadcast stations licensed by the Federal Communications C mission, and makes secondary transmissions of such signals or progran wires, cables, microwave, or other communications channels to subscri members of the public who pay for such service . For purposes of deter the royalty fee under subsection (d)(1), two or more cable systems in c ous communities under common ownership or control or operating from headend shall be considered as one system .

(4) Local service area of a primary transmitter.—The "local service area of a primary transmitter", in the case of both the primary stre any multicast streams transmitted by a primary transmitter that is a tel broadcast station, comprises the area where such primary transmitter c have insisted upon its signal being retransmitted by a cable system pur to the rules, regulations, and authorizations of the Federal Communicat Commission in effect on April 15, 1976, or such station's television mar defined in section 76 .55(e) of title 47, Code of Federal Regulations (as fect on September 18, 1993), or any modifications to such television ma made, on or after September 18, 1993, pursuant to section 76 .55(e) or title 47, Code of Federal Regulations or within the noise-limited contour defined in 73 .622(e)(1) of title 47, Code of Federal Regulations, or in th

of a television broadcast station licensed by an appropriate governme
authority of Canada or Mexico, the area in which it would be entitled t
insist upon its signal being retransmitted if it were a television broadc
station subject to such rules, regulations, and authorizations . In the ca
a low power television station, as defined by the rules and regulations
Federal Communications Commission, the "local service area of a prim
transmitter" comprises the designated market area, as defined in secti
(2)(C), that encompasses the community of license of such station and
community that is located outside such designated market area that is
wholly or partially within 35 miles of the transmitter site or, in the case
such a station located in a standard metropolitan statistical area which
one of the 50 largest populations of all standard metropolitan statistica
(based on the 1980 decennial census of population taken by the Secret
Commerce), wholly or partially within 20 miles of such transmitter site .
"local service area of a primary transmitter", in the case of a radio broa
station, comprises the primary service area of such station, pursuant to
rules and regulations of the Federal Communications Commission .

(5) Distant signal equivalent~~t.~~

(A) In general.—Except as provided under subparagraph (B), a "dis-
tant signal equivalent"—

(i) is the value assigned to the secondary transmission of any n
network television programming carried by a cable system in whol
in part beyond the local service area of the primary transmitter of
programming; and

(ii) is computed by assigning a value of one to each primary stre
and to each multicast stream (other than a simulcast) that is an in
dent station, and by assigning a value of one-quarter to each prim
stream and to each multicast stream (other than a simulcast) that
network station or a noncommercial educational station .

(B) Exceptions.—The values for independent, network, and noncom-
mercial educational stations specified in subparagraph (A) are subje
the following:

(i) Where the rules and regulations of the Federal Communicatio
Commission require a cable system to omit the further transmissi
of a particular program and such rules and regulations also permit
substitution of another program embodying a performance or displ
of a work in place of the omitted transmission, or where such rules
regulations in effect on the date of the enactment of the Copyright
of 1976 permit a cable system, at its election, to effect such omiss
substitution of a nonlive program or to carry additional programs n
transmitted by primary transmitters within whose local service are

cable system is located, no value shall be assigned for the substitu
additional program .

(ii) Where the rules, regulations, or authorizations of the Federa
Communications Commission in effect on the date of the enactmer
the Copyright Act of 1976 permit a cable system, at its election, to
the further transmission of a particular program and such rules, re
tions, or authorizations also permit the substitution of another prog
embodying a performance or display of a work in place of the omit
transmission, the value assigned for the substituted or additional p
gram shall be, in the case of a live program, the value of one full d
signal equivalent multiplied by a fraction that has as its numerator
number of days in the year in which such substitution occurs and a
denominator the number of days in the year .

(iii) In the case of the secondary transmission of a primary transm
ter that is a television broadcast station pursuant to the late-night
specialty programming rules of the Federal Communications Comm
sion, or the secondary transmission of a primary transmitter that is
television broadcast station on a part-time basis where full-time ca
is not possible because the cable system lacks the activated chann
pacity to retransmit on a full-time basis all signals that it is authori
to carry, the values for independent, network, and noncommercial
cational stations set forth in subparagraph (A), as the case may be
be multiplied by a fraction that is equal to the ratio of the broadca
hours of such primary transmitter retransmitted by the cable syste
the total broadcast hours of the primary transmitter .

(iv) No value shall be assigned for the secondary transmission of
primary stream or any multicast streams of a primary transmitter t
a television broadcast station in any community that is within the l
service area of the primary transmitter .

(6)Network station.—

(A)Treatment of primary stream.—The term "network station"
shall be applied to a primary stream of a television broadcast station
is owned or operated by, or affiliated with, one or more of the televisi
networks in the United States providing nationwide transmissions, an
transmits a substantial part of the programming supplied by such net
for a substantial part of the primary stream's typical broadcast day .

(B)Treatment of multicast streams.—The term "network station"
shall be applied to a multicast stream on which a television broadcas
tion transmits all or substantially all of the programming of an interco
nected program service that—

(i) is owned or operated by, or affiliated with, one or more of the
television networks described in subparagraph (A); and

(ii) offers programming on a regular basis for 15 or more hours p
week to at least 25 of the affiliated television licensees of the inter
nected program service in 10 or more States .

(7) Independent station.—The term "independent station" shall be ap-
plied to the primary stream or a multicast stream of a television broad
station that is not a network station or a noncommercial educational sta

(8) Noncommercial educational station.—The term "noncommer-
cial educational station" shall be applied to the primary stream or a mu
stream of a television broadcast station that is a noncommercial educat
broadcast station as defined in section 397 of the Communications Act
as in effect on the date of the enactment of the Satellite Television Exte
and Localism Act of 2010 .

(9) Primary stream.—A "primary stream" is—

(A) the single digital stream of programming that, before June 12, 2
was substantially duplicating the programming transmitted by the tel
sion broadcast station as an analog signal; or

(B) if there is no stream described in subparagraph (A), then the sin
digital stream of programming transmitted by the television broadcas
tion for the longest period of time .

(10) Primary transmitter.—A "primary transmitter" is a television or
radio broadcast station licensed by the Federal Communications Comm
or by an appropriate governmental authority of Canada or Mexico, that
primary transmissions to the public .

(11) Multicast stream.—A "multicast stream" is a digital stream of pro-
gramming that is transmitted by a television broadcast station and is n
station's primary stream .

(12) Simulcast.—A "simulcast" is a multicast stream of a television broa
cast station that duplicates the programming transmitted by the prima
stream or another multicast stream of such station .

(13) Subscriber; subscribe.—

(A) Subscriber.—The term "subscriber" means a person or entity tha
receives a secondary transmission service from a cable system and p
fee for the service, directly or indirectly, to the cable system .

(B) Subscribe.—The term "subscribe" means to elect to become a su
scriber .

## § 112 · Limitations on exclusive rights: Ephemeral recordings

(a)(1) Notwithstanding the provisions of section 106, and except in the
a motion picture or other audiovisual work, it is not an infringement of co
for a transmitting organization entitled to transmit to the public a perform

or display of a work, under a license, including a statutory license under s
114(f), or transfer of the copyright or under the limitations on exclusive rig
in sound recordings specified by section 114(a) or for a transmitting orga
tion that is a broadcast radio or television station licensed as such by the
Communications Commission and that makes a broadcast transmission o
performance of a sound recording in a digital format on a nonsubscription
to make no more than one copy or phonorecord of a particular transmiss
program embodying the performance or display, if—

(A) the copy or phonorecord is retained and used solely by the tran
ting organization that made it, and no further copies or phonorecords
reproduced from it; and

(B) the copy or phonorecord is used solely for the transmitting orga
zation's own transmissions within its local service area, or for purpos
archival preservation or security; and

(C) unless preserved exclusively for archival purposes, the copy or
norecord is destroyed within six months from the date the transmissi
program was first transmitted to the public .

(2) In a case in which a transmitting organization entitled to make a c
or phonorecord under paragraph (1) in connection with the transmissio
to the public of a performance or display of a work is prevented from m
ing such copy or phonorecord by reason of the application by the copyr
owner of technical measures that prevent the reproduction of the work,
copyright owner shall make available to the transmitting organization
necessary means for permitting the making of such copy or phonorecor
permitted under that paragraph, if it is technologically feasible and eco
cally reasonable for the copyright owner to do so . If the copyright owne
to do so in a timely manner in light of the transmitting organization's re
able business requirements, the transmitting organization shall not be l
for a violation of section 1201(a)(1) of this title for engaging in such act
as are necessary to make such copies or phonorecords as permitted u
paragraph (1) of this subsection .

(b) Notwithstanding the provisions of section 106, it is not an infringem
copyright for a governmental body or other nonprofit organization entitled
transmit a performance or display of a work, under section 110(2) or unde
limitations on exclusive rights in sound recordings specified by section 11
make no more than thirty copies or phonorecords of a particular transmiss
program embodying the performance or display, if—

(1) no further copies or phonorecords are reproduced from the copies
phonorecords made under this clause; and

(2) except for one copy or phonorecord that may be preserved exclus
for archival purposes, the copies or phonorecords are destroyed within

years from the date the transmission program was first transmitted to public .

(c) Notwithstanding the provisions of section 106, it is not an infringeme of copyright for a governmental body or other nonprofit organization to m for distribution no more than one copy or phonorecord, for each transmitt organization specified in clause (2) of this subsection, of a particular trans program embodying a performance of a nondramatic musical work of a re nature, or of a sound recording of such a musical work, if—

(1) there is no direct or indirect charge for making or distributing any copies or phonorecords; and

(2) none of such copies or phonorecords is used for any performance than a single transmission to the public by a transmitting organization e to transmit to the public a performance of the work under a license or t of the copyright; and

(3) except for one copy or phonorecord that may be preserved exclus for archival purposes, the copies or phonorecords are all destroyed with year from the date the transmission program was first transmitted to th

(d) Notwithstanding the provisions of section 106, it is not an infringeme copyright for a governmental body or other nonprofit organization entitled transmit a performance of a work under section 110(8) to make no more t copies or phonorecords embodying the performance, or to permit the use such copy or phonorecord by any governmental body or nonprofit organiz entitled to transmit a performance of a work under section 110(8), if—

(1) any such copy or phonorecord is retained and used solely by the o nization that made it, or by a governmental body or nonprofit organizat entitled to transmit a performance of a work under section 110(8), and further copies or phonorecords are reproduced from it; and

(2) any such copy or phonorecord is used solely for transmissions aut under section 110(8), or for purposes of archival preservation or securit

(3) the governmental body or nonprofit organization permitting any u of any such copy or phonorecord by any governmental body or nonpro organization under this subsection does not make any charge for such u

(e)Statutory License.—(1) A transmitting organization entitled to transmit to the public a performance of a sound recording under the limitation exclusive rights specified by section 114(d)(1)(C)(iv) or under a statutory in accordance with section 114(f) is entitled to a statutory license, under t ditions specified by this subsection, to make no more than 1 phonorecord sound recording (unless the terms and conditions of the statutory license for more), if the following conditions are satisfied:

(A) The phonorecord is retained and used solely by the transmittin nization that made it, and no further phonorecords are reproduced fr

(B) The phonorecord is used solely for the transmitting organizatio
own transmissions originating in the United States under a statutory
in accordance with section 114(f) or the limitation on exclusive rights
fied by section 114(d)(1)(C)(iv) .

(C) Unless preserved exclusively for purposes of archival preservat
the phonorecord is destroyed within 6 months from the date the sou
recording was first transmitted to the public using the phonorecord .

(D) Phonorecords of the sound recording have been distributed to t
public under the authority of the copyright owner or the copyright ow
authorizes the transmitting entity to transmit the sound recording, ar
transmitting entity makes the phonorecord under this subsection fro
phonorecord lawfully made and acquired under the authority of the c
right owner .

(2) Notwithstanding any provision of the antitrust laws, any copyright
ers of sound recordings and any transmitting organizations entitled to a
tory license under this subsection may negotiate and agree upon royalt
and license terms and conditions for making phonorecords of such sou
cordings under this section and the proportionate division of fees paid a
copyright owners, and may designate common agents to negotiate, ag
pay, or receive such royalty payments .

(3) Proceedings under chapter 8 shall determine reasonable rates an
of royalty payments for the activities specified by paragraph (1) during
5-year period beginning on January 1 of the second year following the
in which the proceedings are to be commenced, or such other period as
parties may agree . Such rates shall include a minimum fee for each typ
service offered by transmitting organizations . Any copyright owners of
recordings or any transmitting organizations entitled to a statutory lice
under this subsection may submit to the Copyright Royalty Judges licen
covering such activities with respect to such sound recordings . The par
each proceeding shall bear their own costs .

(4) The schedule of reasonable rates and terms determined by the Co
right Royalty Judges shall, subject to paragraph (5), be binding on all c
right owners of sound recordings and transmitting organizations entitle
a statutory license under this subsection during the 5-year period speci
in paragraph (3), or such other period as the parties may agree . Such
shall include a minimum fee for each type of service offered by transm
ting organizations . The Copyright Royalty Judges shall establish rates
most clearly represent the fees that would have been negotiated in the
ketplace between a willing buyer and a willing seller . In determining s
rates and terms, the Copyright Royalty Judges shall base their decision
nomic, competitive, and programming information presented by the pa
including—

(A) whether use of the service may substitute for or may promote t
sales of phonorecords or otherwise interferes with or enhances the co
right owner's traditional streams of revenue; and

(B) the relative roles of the copyright owner and the transmitting o
zation in the copyrighted work and the service made available to the
with respect to relative creative contribution, technological contributi
capital investment, cost, and risk .

In establishing such rates and terms, the Copyright Royalty Judges may
sider the rates and terms under voluntary license agreements describe
paragraphs (2) and (3) . The Copyright Royalty Judges shall also establi
quirements by which copyright owners may receive reasonable notice o
use of their sound recordings under this section, and under which reco
of such use shall be kept and made available by transmitting organiza
entitled to obtain a statutory license under this subsection .

(5) License agreements voluntarily negotiated at any time between
more copyright owners of sound recordings and 1 or more transmitting
nizations entitled to obtain a statutory license under this subsection sha
given effect in lieu of any decision by the Librarian of Congress or deter
tion by the Copyright Royalty Judges .

(6)(A) Any person who wishes to make a phonorecord of a sound reco
under a statutory license in accordance with this subsection may do so
infringing the exclusive right of the copyright owner of the sound record
under section 106(1)—

(i) by complying with such notice requirements as the Copyright
alty Judges shall prescribe by regulation and by paying royalty fees
accordance with this subsection; or

(ii) if such royalty fees have not been set, by agreeing to pay suc
alty fees as shall be determined in accordance with this subsection

(B) Any royalty payments in arrears shall be made on or before the
day of the month next succeeding the month in which the royalty fee
set .

(7) If a transmitting organization entitled to make a phonorecord und
this subsection is prevented from making such phonorecord by reason
the application by the copyright owner of technical measures that preve
the reproduction of the sound recording, the copyright owner shall ma
available to the transmitting organization the necessary means for perm
the making of such phonorecord as permitted under this subsection, if
is technologically feasible and economically reasonable for the copyrig
owner to do so . If the copyright owner fails to do so in a timely manner
light of the transmitting organization's reasonable business requiremen
transmitting organization shall not be liable for a violation of section 12

(1) of this title for engaging in such activities as are necessary to make phonorecords as permitted under this subsection .

(8) Nothing in this subsection annuls, limits, impairs, or otherwise aff in any way the existence or value of any of the exclusive rights of the c owners in a sound recording, except as otherwise provided in this subs tion, or in a musical work, including the exclusive rights to reproduce a distribute a sound recording or musical work, including by means of a d phonorecord delivery, under section 106(1), 106(3), and 115, and the ri perform publicly a sound recording or musical work, including by means a digital audio transmission, under sections 106(4) and 106(6) .

(f)(1) Notwithstanding the provisions of section 106, and without limitin application of subsection (b), it is not an infringement of copyright for a g mental body or other nonprofit educational institution entitled under secti 110(2) to transmit a performance or display to make copies or phonoreco work that is in digital form and, solely to the extent permitted in paragrap a work that is in analog form, embodying the performance or display to be for making transmissions authorized under section 110(2), if—

(A) such copies or phonorecords are retained and used solely by th or institution that made them, and no further copies or phonorecords reproduced from them, except as authorized under section 110(2); a

(B) such copies or phonorecords are used solely for transmissions a rized under section 110(2) .

(2) This subsection does not authorize the conversion of print or oth analog versions of works into digital formats, except that such conversi permitted hereunder, only with respect to the amount of such works au rized to be performed or displayed under section 110(2), if—

(A) no digital version of the work is available to the institution; or

(B) the digital version of the work that is available to the institution subject to technological protection measures that prevent its use fo tion 110(2) .

(g) The transmission program embodied in a copy or phonorecord made der this section is not subject to protection as a derivative work under this except with the express consent of the owners of copyright in the preexi works employed in the program .

## § 113 Scope of exclusive rights in pictorial, graphic, and sculptural works

(a) Subject to the provisions of subsections (b) and (c) of this section, th clusive right to reproduce a copyrighted pictorial, graphic, or sculptural w

copies under section 106 includes the right to reproduce the work in or on
kind of article, whether useful or otherwise .

(b) This title does not afford, to the owner of copyright in a work that po
a useful article as such, any greater or lesser rights with respect to the ma
distribution, or display of the useful article so portrayed than those afforde
such works under the law, whether title 17 or the common law or statutes
State, in effect on December 31, 1977, as held applicable and construed b
in an action brought under this title .

(c) In the case of a work lawfully reproduced in useful articles that have
offered for sale or other distribution to the public, copyright does not inclu
right to prevent the making, distribution, or display of pictures or photogra
of such articles in connection with advertisements or commentaries relate
the distribution or display of such articles, or in connection with news repo

(d)(1) In a case in which—

(A) a work of visual art has been incorporated in or made part of a
ing in such a way that removing the work from the building will cause
destruction, distortion, mutilation, or other modification of the work a
described in section 101, and

(B) the author consented to the installation of the work in the buil
ing either before the effective date set forth in section 610(a) of the V
Artists Rights Act of 1990, or in a written instrument executed on or a
such effective date that is signed by the owner of the building and th
author and that specifies that installation of the work may subject the
to destruction, distortion, mutilation, or other modification, by reason
its removal,

then the rights conferred by paragraphs (2) and (3) of section 106 shall
not apply .

(2) If the owner of a building wishes to remove a work of visual art wh
a part of such building and which can be removed from the building wit
the destruction, distortion, mutilation, or other modification of the work
described in section 101, the author's rights under paragraphs (2) and
(3) of section 106 shall apply unless—

(A) the owner has made a diligent, good faith attempt without succ
to notify the author of the owner's intended action affecting the work
visual art, or

(B) the owner did provide such notice in writing and the person so
fied failed, within 90 days after receiving such notice, either to remov
work or to pay for its removal .

For purposes of subparagraph (A), an owner shall be presumed to have
a diligent, good faith attempt to send notice if the owner sent such noti
registered mail to the author at the most recent address of the author t
recorded with the Register of Copyrights pursuant to paragraph (3) . If

work is removed at the expense of the author, title to that copy of the w
shall be deemed to be in the author .

(3) The Register of Copyrights shall establish a system of records whe
any author of a work of visual art that has been incorporated in or made
of a building, may record his or her identity and address with the Copyr
Office . The Register shall also establish procedures under which
author may update the information so recorded, and procedures under
owners of buildings may record with the Copyright Office evidence of th
efforts to comply with this subsection .

## § 114 · Scope of exclusive rights in sound recordings

(a) The exclusive rights of the owner of copyright in a sound recording a
limited to the rights specified by clauses (1), (2), (3) and (6) of section 106
not include any right of performance under section 106(4) .

(b) The exclusive right of the owner of copyright in a sound recording u
clause (1) of section 106 is limited to the right to duplicate the sound reco
the form of phonorecords or copies that directly or indirectly recapture the
sounds fixed in the recording . The exclusive right of the owner of copyrig
sound recording under clause (2) of section 106 is limited to the right to p
derivative work in which the actual sounds fixed in the sound recording ar
ranged, remixed, or otherwise altered in sequence or quality . The exclusi
of the owner of copyright in a sound recording under clauses (1) and (2) o
106 do not extend to the making or duplication of another sound recordin
consists entirely of an independent fixation of other sounds, even though
sounds imitate or simulate those in the copyrighted sound recording . The
sive rights of the owner of copyright in a sound recording under clauses (1
and (3) of section 106 do not apply to sound recordings included in educa
television and radio programs (as defined in section 397 of title 47) distrib
or transmitted by or through public broadcasting entities (as defined by se
118(f)): *Provided*, That copies or phonorecords of said programs are not c
cially distributed by or through public broadcasting entities to the general

(c) This section does not limit or impair the exclusive right to perform p
by means of a phonorecord, any of the works specified by section 106(4)

(d) Limitations on Exclusive Right.—Notwithstanding the provisions
of section 106(6)—

(1) Exempt transmissions and retransmissions.—The performance
of a sound recording publicly by means of a digital audio transmission,
than as a part of an interactive service, is not an infringement of section
if the performance is part of—

(A) a nonsubscription broadcast transmission;

(B) a retransmission of a nonsubscription broadcast transmission: P
vided, That, in the case of a retransmission of a radio station's broad
transmission—

(i) the radio station's broadcast transmission is not willfully or re
edly retransmitted more than a radius of 150 miles from the site of
radio broadcast transmitter, however—

(I) the 150 mile limitation under this clause shall not apply wh
a nonsubscription broadcast transmission by a radio station licen
by the Federal Communications Commission is retransmitted on
nonsubscription basis by a terrestrial broadcast station, terrestr
translator, or terrestrial repeater licensed by the Federal Commu
cations Commission; and

(II) in the case of a subscription retransmission of a nonsubscr
tion broadcast retransmission covered by subclause (I), the 150
radius shall be measured from the transmitter site of such broad
retransmitter;

(ii) the retransmission is of radio station broadcast transmissions
are—

(I) obtained by the retransmitter over the air;

(II) not electronically processed by the retransmitter to delive
separate and discrete signals; and

(III) retransmitted only within the local communities served by
the retransmitter;

(iii) the radio station's broadcast transmission was being retrans
ted to cable systems (as defined in section 111(f)) by a satellite ca
on January 1, 1995, and that retransmission was being retransmitte
cable systems as a separate and discrete signal, and the satellite c
obtains the radio station's broadcast transmission in an analog form
*Provided*, That the broadcast transmission being retransmitted may
body the programming of no more than one radio station; or

(iv) the radio station's broadcast transmission is made by a nonc
mercial educational broadcast station funded on or after January 1,
under section 396(k) of the Communications Act of 1934 (47 U .S
396(k)), consists solely of noncommercial educational and cultural
dio programs, and the retransmission, whether or not simultaneous
a nonsubscription terrestrial broadcast retransmission; or

(C) a transmission that comes within any of the following categorie

(i) a prior or simultaneous transmission incidental to an exempt
transmission, such as a feed received by and then retransmitted by
exempt transmitter: Provided, That such incidental transmissions d
include any subscription transmission directly for reception by mem
of the public;

(ii) a transmission within a business establishment, confined to
premises or the immediately surrounding vicinity;

(iii) a retransmission by any retransmitter, including a multichar
nel video programming distributor as defined in section 602(12) of
Communications Act of 1934 (47 U .S .C . 522 (12)), of a transmissi
transmitter licensed to publicly perform the sound recording as a p
that transmission, if the retransmission is simultaneous with the lic
transmission and authorized by the transmitter; or

(iv) a transmission to a business establishment for use in the ord
course of its business: Provided, That the business recipient does n
transmit the transmission outside of its premises or the immediate
rounding vicinity, and that the transmission does not exceed the sc
recording performance complement . Nothing in this clause shall li
the scope of the exemption in clause (ii) .

(2)Statutory licensing of certain transmissions.—The perfor-
mance of a sound recording publicly by means of a subscription digital
transmission not exempt under paragraph (1), an eligible nonsubscript
transmission, or a transmission not exempt under paragraph (1) that is
by a preexisting satellite digital audio radio service shall be subject to s
licensing, in accordance with subsection (f) if—

(A)(i) the transmission is not part of an interactive service;

(ii) except in the case of a transmission to a business establishm
the transmitting entity does not automatically and intentionally cau
any device receiving the transmission to switch from one program
nel to another; and

(iii) except as provided in section 1002(e), the transmission of t
sound recording is accompanied, if technically feasible, by the info
tion encoded in that sound recording, if any, by or under the autho
of the copyright owner of that sound recording, that identifies the t
of the sound recording, the featured recording artist who performs
the sound recording, and related information, including informatio
concerning the underlying musical work and its writer;

(B) in the case of a subscription transmission not exempt under pa
graph (1) that is made by a preexisting subscription service in the sa
transmission medium used by such service on July 31, 1998, or in the
a transmission not exempt under paragraph (1) that is made by a pre
ing satellite digital audio radio service—

(i) the transmission does not exceed the sound recording
mance complement; and

(ii) the transmitting entity does not cause to be published by me
of an advance program schedule or prior announcement the titles

the specific sound recordings or phonorecords embodying such sou
recordings to be transmitted; and

(C) in the case of an eligible nonsubscription transmission or a subs
tion transmission not exempt under paragraph (1) that is made by a
subscription service or by a preexisting subscription service other tha
the same transmission medium used by such service on July 31, 1998

(i) the transmission does not exceed the sound recording
mance complement, except that this requirement shall not apply in
case of a retransmission of a broadcast transmission if the retransm
sion is made by a transmitting entity that does not have the right
ability to control the programming of the broadcast station making
broadcast transmission, unless—

(I) the broadcast station makes broadcast transmissions—

(aa) in digital format that regularly exceed the sound record
performance complement; or

(bb) in analog format, a substantial portion of which, on a
weekly basis, exceed the sound recording performance comp
ment; and

(II) the sound recording copyright owner or its representative h
notified the transmitting entity in writing that broadcast transmis
sions of the copyright owner's sound recordings exceed the sou
recording performance complement as provided in this clause;

(ii) the transmitting entity does not cause to be published, or ind
or facilitate the publication, by means of an advance program sche
or prior announcement, the titles of the specific sound recordings t
transmitted, the phonorecords embodying such sound recordings,
other than for illustrative purposes, the names of the featured reco
artists, except that this clause does not disqualify a transmitting en
that makes a prior announcement that a particular artist will be fea
within an unspecified future time period, and in the case of a retran
mission of a broadcast transmission by a transmitting entity that d
not have the right or ability to control the programming of the broa
transmission, the requirement of this clause shall not apply to a pri
oral announcement by the broadcast station, or to an advance pro
schedule published, induced, or facilitated by the broadcast station
the transmitting entity does not have actual knowledge and has no
ceived written notice from the copyright owner or its representativ
the broadcast station publishes or induces or facilitates the publica
of such advance program schedule, or if such advance program sc
is a schedule of classical music programming published by the broa
station in the same manner as published by that broadcast station
before September 30, 1998;

(iii) the transmission—

(I) is not part of an archived program of less than 5 hours dura
tion;

(II) is not part of an archived program of 5 hours or greater in
duration that is made available for a period exceeding 2 weeks;

(III) is not part of a continuous program which is of less than 3
hours duration; or

(IV) is not part of an identifiable program in which performanc
of sound recordings are rendered in a predetermined order, oth
than an archived or continuous program, that is transmitted at—

(aa) more than 3 times in any 2-week period that have bee
publicly announced in advance, in the case of a program of les
than 1 hour in duration, or

(bb) more than 4 times in any 2-week period that have bee
publicly announced in advance, in the case of a program of 1 h
or more in duration, except that the requirement of this subcla
shall not apply in the case of a retransmission of a broadcast t
mission by a transmitting entity that does not have the right o
ability to control the programming of the broadcast transmissi
unless the transmitting entity is given notice in writing by the
copyright owner of the sound recording that the broadcast sta
makes broadcast transmissions that regularly violate such req
ment;

(iv) the transmitting entity does not knowingly perform the soun
recording, as part of a service that offers transmissions of visual im
ages contemporaneously with transmissions of sound recordings, i
manner that is likely to cause confusion, to cause mistake, or to de
as to the affiliation, connection, or association of the copyright own
or featured recording artist with the transmitting entity or a particu
product or service advertised by the transmitting entity, or as to t
origin, sponsorship, or approval by the copyright owner or featured
cording artist of the activities of the transmitting entity other than
performance of the sound recording itself;

(v) the transmitting entity cooperates to prevent, to the extent fe
without imposing substantial costs or burdens, a transmission recip
or any other person or entity from automatically scanning the trans
ting entity's transmissions alone or together with transmissions by
transmitting entities in order to select a particular sound recording
transmitted to the transmission recipient, except that the requirem
of this clause shall not apply to a satellite digital audio service that
operation, or that is licensed by the Federal Communications Comm
sion, on or before July 31, 1998;

(vi) the transmitting entity takes no affirmative steps to cause or duce the making of a phonorecord by the transmission recipient, a the technology used by the transmitting entity enables the transmi entity to limit the making by the transmission recipient of phonore of the transmission directly in a digital format, the transmitting ent sets such technology to limit such making of phonorecords to the e permitted by such technology;

(vii) phonorecords of the sound recording have been distributed to the public under the authority of the copyright owner or the cop right owner authorizes the transmitting entity to transmit the sou recording, and the transmitting entity makes the transmission from phonorecord lawfully made under the authority of the copyright ow except that the requirement of this clause shall not apply to a retra sion of a broadcast transmission by a transmitting entity that does have the right or ability to control the programming of the broadca transmission, unless the transmitting entity is given notice in writi the copyright owner of the sound recording that the broadcast stat makes broadcast transmissions that regularly violate such requirer

(viii) the transmitting entity accommodates and does not interfe with the transmission of technical measures that are widely used sound recording copyright owners to identify or protect copyrighte works, and that are technically feasible of being transmitted by the mitting entity without imposing substantial costs on the transmittin entity or resulting in perceptible aural or visual degradation of the tal signal, except that the requirement of this clause shall not appl satellite digital audio service that is in operation, or that is licensed the authority of the Federal Communications Commission, on or be July 31, 1998, to the extent that such service has designed, develo made commitments to procure equipment or technology that is n compatible with such technical measures before such technical me are widely adopted by sound recording copyright owners; and

(ix) the transmitting entity identifies in textual data the sound re ing during, but not before, the time it is performed, including the ti of the sound recording, the title of the phonorecord embodying suc sound recording, if any, and the featured recording artist, in a man to permit it to be displayed to the transmission recipient by the de technology intended for receiving the service provided by the trans ting entity, except that the obligation in this clause shall not take e until 1 year after the date of the enactment of the Digital Millenniu Copyright Act and shall not apply in the case of a retransmission of broadcast transmission by a transmitting entity that does not have right or ability to control the programming of the broadcast transm

or in the case in which devices or technology intended for receiving service provided by the transmitting entity that have the capability display such textual data are not common in the marketplace .

(3)Licenses for transmissions by interactive services.

(A) No interactive service shall be granted an exclusive license under section 106(6) for the performance of a sound recording publicly by means of digital audio transmission for a period in excess of 12 months, except that with respect to an exclusive license granted to an interactive service by a licensor that holds the copyright to 1,000 or fewer sound recordings, the period of such license shall not exceed 24 months: Provided, however, that the grantee of such exclusive license shall be ineligible to receive another exclusive license for the performance of that sound recording for a period of 13 months from the expiration of the prior exclusive license .

(B) The limitation set forth in subparagraph (A) of this paragraph shall not apply if—

(i) the licensor has granted and there remain in effect licenses under section 106(6) for the public performance of sound recordings by means of digital audio transmission by at least 5 different interactive services: *Provided*, however, That each such license must be for a minimum of 5 percent of the copyrighted sound recordings owned by the licensor that have been licensed to interactive services, but in no event less than 1,000 sound recordings; or

(ii) the exclusive license is granted to perform publicly up to 45 seconds of a sound recording and the sole purpose of the performance is to promote the distribution or performance of that sound recording.

(C) Notwithstanding the grant of an exclusive or nonexclusive license of the right of public performance under section 106(6), an interactive service may not publicly perform a sound recording unless a license has been granted for the public performance of any copyrighted musical work contained in the sound recording: Provided, That such license to publicly perform the copyrighted musical work may be granted either by a performing rights society representing the copyright owner or by the copyright owner.

(D) The performance of a sound recording by means of a retransmission of a digital audio transmission is not an infringement of section 106(6) if—

(i) the retransmission is of a transmission by an interactive service licensed to publicly perform the sound recording to a particular member of the public as part of that transmission; and

(ii) the retransmission is simultaneous with the licensed transmission authorized by the transmitter, and limited to that particular member of the public intended by the interactive service to be the recipient of the transmission .

(E) For the purposes of this paragraph—

(i) a "licensor" shall include the licensing entity and any other en
under any material degree of common ownership, management, o
trol that owns copyrights in sound recordings; and

(ii) a "performing rights society" is an association or corporation
licenses the public performance of nondramatic musical works on b
half of the copyright owner, such as the American Society of Comp
Authors and Publishers, Broadcast Music, Inc ., and SESAC, Inc .

(4)Rights not otherwise limited.—

(A) Except as expressly provided in this section, this section does
limit or impair the exclusive right to perform a sound recording public
by means of a digital audio transmission under section 106(6) .

(B) Nothing in this section annuls or limits in any way—

(i) the exclusive right to publicly perform a musical work, includi
by means of a digital audio transmission, under section 106(4);

(ii) the exclusive rights in a sound recording or the musical work
embodied therein under sections 106(1), 106(2) and 106(3); or

(iii) any other rights under any other clause of section 106, or re
edies available under this title as such rights or remedies exist eit
before or after the date of enactment of the Digital Performance Ri
in Sound Recordings Act of 1995 .

(C) Any limitations in this section on the exclusive right under secti
106(6) apply only to the exclusive right under section 106(6) and not
other exclusive rights under section 106 . Nothing in this section shal
construed to annul, limit, impair or otherwise affect in any way the ab
ity of the owner of a copyright in a sound recording to exercise the ri
under sections 106(1), 106(2) and 106(3), or to obtain the remedies a
under this title pursuant to such rights, as such rights and remedies e
either before or after the date of enactment of the Digital Performan
Right in Sound Recordings Act of 1995 .

(e)Authority for Negotiations.—

(1) Notwithstanding any provision of the antitrust laws, in negotiatin
statutory licenses in accordance with subsection (f), any copyright own
sound recordings and any entities performing sound recordings affected
this section may negotiate and agree upon the royalty rates and license
and conditions for the performance of such sound recordings and the p
portionate division of fees paid among copyright owners, and may desig
common agents on a nonexclusive basis to negotiate, agree to, pay, or
payments .

(2) For licenses granted under section 106(6), other than statutory lic
such as for performances by interactive services or performances that e
the sound recording performance complement—

(A) copyright owners of sound recordings affected by this section n
designate common agents to act on their behalf to grant licenses and
ceive and remit royalty payments: *Provided*, That each copyright ow
shall establish the royalty rates and material license terms and condi
unilaterally, that is, not in agreement, combination, or concert with o
copyright owners of sound recordings; and

(B) entities performing sound recordings affected by this section m
designate common agents to act on their behalf to obtain licenses an
lect and pay royalty fees: *Provided*, That each entity performing soun
cordings shall determine the royalty rates and material license terms
conditions unilaterally, that is, not in agreement, combination, or con
with other entities performing sound recordings .

(f) Licenses for Certain Nonexempt Transmissions.

(1)(A) Proceedings under chapter 8 shall determine reasonable rates
terms of royalty payments for transmissions subject to statutory licensi
der subsection (d)(2) during the 5-year period beginning on January 1 o
second year following the year in which the proceedings are to be comm
pursuant to subparagraph (A) or (B) of section 804(b)(3), as the case m
or such other period as the parties may agree . The parties to each proc
shall bear their own costs .

(B) The schedule of reasonable rates and terms determined
Copyright Royalty Judges shall, subject to paragraph (2), be binding
all copyright owners of sound recordings and entities performing sou
recordings affected by this paragraph during the 5-year period specif
subparagraph (A), or such other period as the parties may agree . Su
and terms shall distinguish among the different types of services ther
operation and shall include a minimum fee for each such type of serv
such differences to be based on criteria including the quantity and na
the use of sound recordings and the degree to which use of the servic
substitute for or may promote the purchase of phonorecords by cons
ers . The Copyright Royalty Judges shall establish rates and terms tha
clearly represent the rates and terms that would have been negotiate
marketplace between a willing buyer and a willing seller . In determi
such rates and terms, the Copyright Royalty Judges—

(i) shall base their decision on economic, competitive, and progr
ming information presented by the parties, including—

(I) whether use of the service may substitute for or may promo
the sales of phonorecords or otherwise may interfere with or ma
enhance the sound recording copyright owner's other streams o
enue from the copyright owner's sound recordings; and

(II) the relative roles of the copyright owner and the transmitti
entity in the copyrighted work and the service made available to

public with respect to relative creative contribution, technologic
contribution, capital investment, cost, and risk; and

(ii) may consider the rates and terms for comparable types of au
transmission services and comparable circumstances under volunt
license agreements .

(C) The procedures under subparagraphs (A) and (B) shall also be i
ated pursuant to a petition filed by any sound recording copyright ow
or any transmitting entity indicating that a new type of service on wh
sound recordings are performed is or is about to become operational
the purpose of determining reasonable terms and rates of royalty pay
with respect to such new type of service for the period beginning with
inception of such new type of service and ending on the date on whi
the royalty rates and terms for eligible nonsubscription services and
subscription services, or preexisting subscription services and preexis
satellite digital audio radio services, as the case may be, most recent
termined under subparagraph (A) or (B) and chapter 8 expire, or such
period as the parties may agree .

(2) License agreements voluntarily negotiated at any time between
more copyright owners of sound recordings and 1 or more entities perfo
sound recordings shall be given effect in lieu of any decision by the Libr
of Congress or determination by the Copyright Royalty Judges .

(3)(A) The Copyright Royalty Judges shall also establish requirements
which copyright owners may receive reasonable notice of the use of th
sound recordings under this section, and under which records of such
shall be kept and made available by entities performing sound recordin
notice and recordkeeping rules in effect on the day before the effective
the Copyright Royalty and Distribution Reform Act of 2004 shall remain
effect unless and until new regulations are promulgated by the Copyrig
alty Judges . If new regulations are promulgated under this subparagrap
Copyright Royalty Judges shall take into account the substance and effe
the rules in effect on the day before the effective date of the Copyright
and Distribution Reform Act of 2004 and shall, to the extent practicable
significant disruption of the functions of any designated agent authorize
collect and distribute royalty fees .

(B) Any person who wishes to perform a sound recording publicly b
means of a transmission eligible for statutory licensing under this su
section may do so without infringing the exclusive right of the copyri
owner of the sound recording—

(i) by complying with such notice requirements as the Copyright
alty Judges shall prescribe by regulation and by paying royalty fees
accordance with this subsection; or

(ii) if such royalty fees have not been set, by agreeing to pay su
royalty fees as shall be determined in accordance with this subsect
(C) Any royalty payments in arrears shall be made on or before the
tieth day of the month next succeeding the month in which the royalt
are set .
(4)(A) Notwithstanding section 112(e) and the other provisions of this
section, the receiving agent may enter into agreements for the reprodu
and performance of sound recordings under section 112(e) and this sec
by any 1 or more commercial webcasters or noncommercial webcaster
a period of not more than 11 years beginning on January 1, 2005, that,
published in the Federal Register pursuant to subparagraph (B), shall be
ing on all copyright owners of sound recordings and other persons entit
to payment under this section, in lieu of any determination by the Copy
Royalty Judges . Any such agreement for commercial webcasters may in
provisions for payment of royalties on the basis of a percentage of reve
or expenses, or both, and include a minimum fee . Any such agreement
include other terms and conditions, including requirements by which co
right owners may receive notice of the use of their sound recordings an
which records of such use shall be kept and made available by comme
webcasters or noncommercial webcasters . The receiving agent shall be
no obligation to negotiate any such agreement . The receiving agent sh
no obligation to any copyright owner of sound recordings or any other p
entitled to payment under this section in negotiating any such agreeme
no liability to any copyright owner of sound recordings or any other per
entitled to payment under this section for having entered into such agr
(B) The Copyright Office shall cause to be published in the Federa
Register any agreement entered into pursuant to subparagraph (A) .
publication shall include a statement containing the substance of sub
graph (C) . Such agreements shall not be included in the Code of Fed
Regulations . Thereafter, the terms of such agreement shall be
as an option, to any commercial webcaster or noncommercial webcas
meeting the eligibility conditions of such agreement .
(C) Neither subparagraph (A) nor any provisions of any agree
entered into pursuant to subparagraph (A), including any rate struct
fees, terms, conditions, or notice and recordkeeping requirements se
therein, shall be admissible as evidence or otherwise taken into acco
any administrative, judicial, or other government proceeding involvin
setting or adjustment of the royalties payable for the public performa
or reproduction in ephemeral phonorecords or copies of sound record
the determination of terms or conditions related thereto, or the estab
ment of notice or recordkeeping requirements by the Copyright Roya
Judges under paragraph (3) or section 112(e)(4) . It is the intent of Co

that any royalty rates, rate structure, definitions, terms, conditions, o
and recordkeeping requirements, included in such agreements shall
sidered as a compromise motivated by the unique business, economi
political circumstances of webcasters, copyright owners, and perform
rather than as matters that would have been negotiated in the marke
between a willing buyer and a willing seller, or otherwise meet the ob
tives set forth in section 801(b) . This subparagraph shall not apply to
extent that the receiving agent and a webcaster that is party to an ag
entered into pursuant to subparagraph (A) expressly authorize the su
sion of the agreement in a proceeding under this subsection .

(D) Nothing in the Webcaster Settlement Act of 2008, the Webcas
Settlement Act of 2009, or any agreement entered into pursuant to
paragraph (A) shall be taken into account by the United States Court
Appeals for the District of Columbia Circuit in its review of the determ
nation by the Copyright Royalty Judges of May 1, 2007, of rates and t
for the digital performance of sound recordings and ephemeral recor
pursuant to sections 112 and 114 .

(E) As used in this paragraph—

(i) the term "noncommercial webcaster" means a webcaster tha

(I) is exempt from taxation under section 501 of the Internal R
enue Code of 1986 (26 U .S .C . 501);

(II) has applied in good faith to the Internal Revenue Service fo
exemption from taxation under section 501 of the Internal Rever
Code and has a commercially reasonable expectation that such
emption shall be granted; or

(III) is operated by a State or possession or any governmental
tity or subordinate thereof, or by the United States or District of
lumbia, for exclusively public purposes;

(ii) the term "receiving agent" shall have the meaning given that
in section 261 .2 of title 37, Code of Federal Regulations, as publish
the Federal Register on July 8, 2002; and

(iii) the term "webcaster" means a person or entity that has obta
a compulsory license under section 112 or 114 and the implement
regulations therefor .

(F) The authority to make settlements pursuant to subparagraph (
shall expire at 11:59 p .m . Eastern time on the 30th day after the da
enactment of the Webcaster Settlement Act of 2009 .

(g) Proceeds from Licensing of Transmissions.

(1) Except in the case of a transmission licensed under a statutory lic
accordance with subsection (f) of this section—

(A) a featured recording artist who performs on a sound recording
has been licensed for a transmission shall be entitled to receive payn

from the copyright owner of the sound recording in accordance with t
terms of the artist's contract; and

(B) a nonfeatured recording artist who performs on a sound record
that has been licensed for a transmission shall be entitled to receive
ments from the copyright owner of the sound recording in accordanc
the terms of the nonfeatured recording artist's applicable contract or
applicable agreement .

(2) Except as provided for in paragraph (6), a nonprofit collective de
nated by the Copyright Royalty Judges to distribute receipts from the lic
ing of transmissions in accordance with subsection (f) shall distribute su
receipts as follows:

(A) 50 percent of the receipts shall be paid to the copyright owner
exclusive right under section 106(6) of this title to publicly perform a
recording by means of a digital audio transmission .

(B) 2 ½ percent of the receipts shall be deposited in an escrow acc
managed by an independent administrator jointly appointed by copyr
owners of sound recordings and the American Federation of Musician
any successor entity) to be distributed to nonfeatured musicians (wh
or not members of the American Federation of Musicians) who have p
formed on sound recordings .

(C) 2 ½ percent of the receipts shall be deposited in an escrow acc
managed by an independent administrator jointly appointed by copyr
owners of sound recordings and the American Federation of Televisi
and Radio Artists (or any successor entity) to be distributed to nonfea
vocalists (whether or not members of the American Federation of Tel
sion and Radio Artists) who have performed on sound recordings .

(D) 45 percent of the receipts shall be paid, on a per sound recordi
basis, to the recording artist or artists featured on such sound record
(or the persons conveying rights in the artists' performance in the so
recordings) .

(3) A nonprofit collective designated by the Copyright Royalty Judges
distribute receipts from the licensing of transmissions in accordance w
subsection (f) may deduct from any of its receipts, prior to the distribut
of such receipts to any person or entity entitled thereto other than copy
owners and performers who have elected to receive royalties from anc
designated nonprofit collective and have notified such nonprofit collecti
writing of such election, the reasonable costs of such collective incurred
November 1, 1995, in—

(A) the administration of the collection, distribution, and calculation
of the royalties;

(B) the settlement of disputes relating to the collection and calcula
of the royalties; and

(C) the licensing and enforcement of rights with respect to the ma
ing of ephemeral recordings and performances subject to licensing u
section 112 and this section, including those incurred in participating
negotiations or arbitration proceedings under section 112 and this se
except that all costs incurred relating to the section 112 ephemeral r
ings right may only be deducted from the royalties received pursuant
section 112 .

(4) Notwithstanding paragraph (3), any nonprofit collective designat
to distribute receipts from the licensing of transmissions in accordance
subsection (f) may deduct from any of its receipts, prior to the distribut
such receipts, the reasonable costs identified in paragraph (3) of such c
incurred after November 1, 1995, with respect to such copyright owners
performers who have entered with such collective a contractual relation
that specifies that such costs may be deducted from such royalty receip

(5) Letter of direction.—

(A) In general.—A nonprofit collective designated by the Copyright
Royalty Judges to distribute receipts from the licensing of transmissi
in accordance with subsection (f) shall adopt and reasonably implem
policy that provides, in circumstances determined by the collective to
appropriate, for acceptance of instructions from a payee identified u
subparagraph (A) or (D) of paragraph (2) to distribute, to a producer,
or sound engineer who was part of the creative process that created
recording, a portion of the payments to which the payee would other
be entitled from the licensing of transmissions of the sound recording
this section, such instructions shall be referred to as a "letter of direc

(B) Acceptance of letter.—To the extent that a collective described
in subparagraph (A) accepts a letter of direction under that subparag
the person entitled to payment pursuant to the letter of direction sh
during the period in which the letter of direction is in effect and carrie
out by the collective, be treated for all purposes as the owner of the r
receive such payment, and the payee providing the letter of direction
collective shall be treated as having no interest in such payment .

(C) Authority of collective. —This paragraph shall not be con-
strued in such a manner so that the collective is not authorized to ac
act upon payment instructions in circumstances other than those to w
this paragraph applies .

(6) Sound recordings fixed before november 1, 1995.

(A) Payment absent letter of direction.—A nonprofit collective
designated by the Copyright Royalty Judges to distribute receipts fro
licensing of transmissions in accordance with subsection (f) (in this p
graph referred to as the "collective") shall adopt and reasonably imp
a policy that provides, in circumstances determined by the collective

appropriate, for the deduction of 2 percent of all the receipts that are
lected from the licensing of transmissions of a sound recording fixed
November 1, 1995, but which is withdrawn from the amount otherwi
payable under paragraph (2)(D) to the recording artist or artists featu
on the sound recording (or the persons conveying rights in the artists
formance in the sound recording), and the distribution of such amoun
1 or more persons described in subparagraph (B) of this paragraph, a
deduction of costs described in paragraph (3) or (4), as applicable, if
of the following requirements is met:

(i) Certification of attempt to obtain a letter of direction.—The person described in subparagraph (B) who is to receive the distribution has certified to the collective, under penalty of perj that—

(I) for a period of not less than 120 days, that person made rea able efforts to contact the artist payee for such sound recording request and obtain a letter of direction instructing the collective pay to that person a portion of the royalties payable to the featu recording artist or artists; and

(II) during the period beginning on the date on which that pers began the reasonable efforts described in subclause (I) and endi the date of that person's certification to the collective, the artist did not affirm or deny in writing the request for a letter of directi

(ii) Collective attempt to contact artist.—After receipt of the certification described in clause (i) and for a period of not les than 120 days before the first distribution by the collective to the p described in subparagraph (B), the collective attempts, in a reason manner as determined by the collective, to notify the artist payee certification made by the person described in subparagraph (B) .

(iii) No objection received.—The artist payee does not, as of the date that was 10 business days before the date on which the first d bution is made, submit to the collective in writing an objection to t distribution .

(B) Eligibility for payment.—A person shall be eligible for payment under subparagraph (A) if the person—

(i) is a producer, mixer, or sound engineer of the sound recordin

(ii) has entered into a written contract with a record company in volved in the creation or lawful exploitation of the sound recording or with the recording artist or artists featured on the sound record ing (or the persons conveying rights in the artists' performance in t sound recording), under which the person seeking payment is entit to participate in royalty payments that are based on the exploitatio the sound recording and are payable from royalties otherwise paya

to the recording artist or artists featured on the sound recording (
the persons conveying rights in the artists' performance in the sou
recording);

(iii) made a creative contribution to the creation of the sound rec
ing; and

(iv) submits to the collective—

(I) a written certification stating, under penalty of perjury, that
person meets the requirements in clauses (i) through (iii); and

(II) a true copy of the contract described in clause (ii) .

(C) Multiple certifications. —Subject to subparagraph (D), in a case in which more than 1 person described in subparagraph (B) has the requirements for a distribution under subparagraph (A) with respe to a sound recording as of the date that is 10 business days before th on which the distribution is made, the collective shall divide the 2 per distribution equally among all such persons .

(D) Objection to payment. —Not later than 10 business days after the date on which the collective receives from the artist payee a written tion to a distribution made pursuant to subparagraph (A), the collecti shall cease making any further payment relating to such distribution any case in which the collective has made 1 or more distributions pur to subparagraph (A) to a person described in subparagraph (B) before date that is 10 business days after the date on which the collective re from the artist payee an objection to such distribution, the objection s not affect that person's entitlement to any distribution made before collective ceases such distribution under this subparagraph .

(E) Ownership of the right to receive payments. —To the extent that the collective determines that a distribution will be made under s paragraph (A) to a person described in subparagraph (B), such perso during the period covered by such distribution, be treated for all purp as the owner of the right to receive such payments, and the artist pay whom such payments would otherwise be payable shall be treated as no interest in such payments .

(F) Artist payee defined. —In this paragraph, the term "artist payee" means a person, other than a person described in subparagraph (B), owns the right to receive all or part of the receipts payable under par (2)(D) with respect to a sound recording . In a case in which there are tiple artist payees with respect to a sound recording, an objection by payee shall apply only to that payee's share of the receipts payable u paragraph (2)(D), and shall not preclude payment under subparagrap from the share of an artist payee that does not so object .

(7) Preemption of state property laws. —The holding and distribu-
tion of receipts under section 112 and this section by a nonprofit collec

designated by the Copyright Royalty Judges in accordance with this sub
tion and regulations adopted by the Copyright Royalty Judges, or by ar
dependent administrator pursuant to subparagraphs (B) and (C) of sect
114(g)(2), shall supersede and preempt any State law (including comm
concerning escheatment or abandoned property, or any analogous prov
that might otherwise apply .

(h)Licensing to Affiliates.—

(1) If the copyright owner of a sound recording licenses an affiliated e
the right to publicly perform a sound recording by means of a digital a
dio transmission under section 106(6), the copyright owner shall make
licensed sound recording available under section 106(6) on no less favo
terms and conditions to all bona fide entities that offer similar services,
that, if there are material differences in the scope of the requested licen
respect to the type of service, the particular sound recordings licensed
frequency of use, the number of subscribers served, or the duration, the
copyright owner may establish different terms and conditions for such d
services .

(2) The limitation set forth in paragraph (1) of this subsection shall n
apply in the case where the copyright owner of a sound recording licens

(A) an interactive service; or

(B) an entity to perform publicly up to 45 seconds of the sound rec
ing and the sole purpose of the performance is to promote the distrib
or performance of that sound recording .

[(i) Repealed. Pub. L. 104–39, § 1, Nov. 1, 1995, 109 Stat. 336.]

(j) Definitions.—As used in this section, the following terms have the fol
lowing meanings:

(1) An “affiliated entity” is an entity engaging in digital audio transmi
covered by section 106(6), other than an interactive service, in which th
sor has any direct or indirect partnership or any ownership interest amo
to 5 percent or more of the outstanding voting or nonvoting stock .

(2) An “archived program” is a predetermined program that is availa
repeatedly on the demand of the transmission recipient and that is perf
in the same order from the beginning, except that an archived program
not include a recorded event or broadcast transmission that makes no r
than an incidental use of sound recordings, as long as such recorded ev
broadcast transmission does not contain an entire sound recording or fe
a particular sound recording .

(3) A “broadcast” transmission is a transmission made by a terrestria
cast station licensed as such by the Federal Communications Commissi

(4) A “continuous program” is a predetermined program that is conti
ously performed in the same order and that is accessed at a point in the
gram that is beyond the control of the transmission recipient .

(5) A “digital audio transmission” is a digital transmission as defined
tion 101, that embodies the transmission of a sound recording . This ter
not include the transmission of any audiovisual work .

(6) An “eligible nonsubscription transmission” is a noninteractive non
scription digital audio transmission not exempt under subsection (d)(1)
is made as part of a service that provides audio programming consistin
whole or in part, of performances of sound recordings, including retrans
sions of broadcast transmissions, if the primary purpose of the service i
provide to the public such audio or other entertainment programming, a
the primary purpose of the service is not to sell, advertise, or promote p
lar products or services other than sound recordings, live concerts, or o
music-related events .

(7) An “interactive service” is one that enables a member of the publ
receive a transmission of a program specially created for the recipient,
request, a transmission of a particular sound recording, whether or not
part of a program, which is selected by or on behalf of the recipient . Th
ity of individuals to request that particular sound recordings be perform
for reception by the public at large, or in the case of a subscription ser
by all subscribers of the service, does not make a service interactive, i
programming on each channel of the service does not substantially con
sound recordings that are performed within 1 hour of the request or at
designated by either the transmitting entity or the individual making s
request . If an entity offers both interactive and noninteractive services
concurrently or at different times), the noninteractive component shall
treated as part of an interactive service .

(8) A “new subscription service” is a service that performs sound rec
by means of noninteractive subscription digital audio transmissions and
is not a preexisting subscription service or a preexisting satellite digital
radio service .

(9) A “nonsubscription” transmission is any transmission that is not a
scription transmission .

(10) A “preexisting satellite digital audio radio service” is a subscript
satellite digital audio radio service provided pursuant to a satellite digit
dio radio service license issued by the Federal Communications Commi
on or before July 31, 1998, and any renewal of such license to the exten
scope of the original license, and may include a limited number of sam
channels representative of the subscription service that are made avail
a nonsubscription basis in order to promote the subscription service .

(11) A “preexisting subscription service” is a service that performs so
recordings by means of noninteractive audio-only subscription digital au
transmissions, which was in existence and was making such transmiss
to the public for a fee on or before July 31, 1998, and may include a lim

number of sample channels representative of the subscription service t
made available on a nonsubscription basis in order to promote the subs
tion service .

(12) A "retransmission" is a further transmission of an initial transmis
and includes any further retransmission of the same transmission . Exce
provided in this section, a transmission qualifies as a "retransmission" o
it is simultaneous with the initial transmission . Nothing in this definition
be construed to exempt a transmission that fails to satisfy a separate e
required to qualify for an exemption under section 114(d)(1) .

(13) The "sound recording performance complement" is the transmis
during any 3-hour period, on a particular channel used by a transmittin
entity, of no more than—

(A) 3 different selections of sound recordings from any one phonore
lawfully distributed for public performance or sale in the United State
no more than 2 such selections are transmitted consecutively; or

(B) 4 different selections of sound recordings—

(i) by the same featured recording artist; or

(ii) from any set or compilation of phonorecords lawfully distribut
together as a unit for public performance or sale in the United Stat
if no more than three such selections are transmitted consecutive
Provided, That the transmission of selections in excess of the nume
limits provided for in clauses (A) and (B) from multiple phonorecord
shall nonetheless qualify as a sound recording performance comp
ment if the programming of the multiple phonorecords was not will
ly intended to avoid the numerical limitations prescribed in such cl

(14) A "subscription" transmission is a transmission that is controlled
limited to particular recipients, and for which consideration is required t
paid or otherwise given by or on behalf of the recipient to receive the tr
sion or a package of transmissions including the transmission .

(15) A "transmission" is either an initial transmission or a retransmiss

## § 115 Scope of exclusive rights in nondramatic musical works: Compulsory license for making and distributing phonorecords[10]

In the case of nondramatic musical works, the exclusive rights provide
clauses (1) and (3) of section 106, to make and to distribute phonorecords
works, are subject to compulsory licensing under the conditions specified
section .

(a) Availability and Scope of Compulsory License in General.

(1) Eligibility for compulsory license.—

(A)Conditions for compulsory license.—A person may by complying with the provisions of this section obtain a compulsory license make and distribute phonorecords of a nondramatic musical work, in ing by means of digital phonorecord delivery . A person may obtain a pulsory license only if the primary purpose in making phonorecords o musical work is to distribute them to the public for private use, includ by means of digital phonorecord delivery, and—

(i) phonorecords of such musical work have previously been dist ed to the public in the United States under the authority of the cop owner of the work, including by means of digital phonorecord deliv or

(ii) in the case of a digital music provider seeking to make and d tribute digital phonorecord deliveries of a sound recording embody a musical work under a compulsory license for which clause (i) do not apply—

(I) the first fixation of such sound recording was made under t authority of the musical work copyright owner, and the sound re cording copyright owner has the authority of the musical work co right owner to make and distribute digital phonorecord deliverie embodying such work to the public in the United States; and

(II) the sound recording copyright owner, or the authorized dis tributor of the sound recording copyright owner, has authorized digital music provider to make and distribute digital phonorecord deliveries of the sound recording to the public in the United Stat

(B)Duplication of sound recording.—A person may not obtain a compulsory license for the use of the work in the making of phono cords duplicating a sound recording fixed by another, including by m of digital phonorecord delivery, unless—

(i) such sound recording was fixed lawfully; and

(ii) the making of the phonorecords was authorized by the owner the copyright in the sound recording or, if the sound recording was before February 15, 1972, by any person who fixed the sound reco pursuant to an express license from the owner of the copyright in t musical work or pursuant to a valid compulsory license for use of s work in a sound recording .

(2)Musical arrangement.—A compulsory license includes the privilege of making a musical arrangement of the work to the extent necess conform it to the style or manner of interpretation of the performance volved, but the arrangement shall not change the basic melody or fund character of the work, and shall not be subject to protection as a deriva work under this title, except with the express consent of the copyright o

(b)Procedures To Obtain a Compulsory License.

(1) Phonorecords other than digital phonorecord deliveries.—
A person who seeks to obtain a compulsory license under subsection (a
make and distribute phonorecords of a musical work other than by mea
digital phonorecord delivery shall, before, or not later than 30 calendar
after, making, and before distributing, any phonorecord of the work, se
notice of intention to do so on the copyright owner . If the registration o
public records of the Copyright Office do not identify the copyright own
and include an address at which notice can be served, it shall be suffici
file the notice of intention with the Copyright Office . The notice shall co
in form, content, and manner of service, with requirements that the Reg
of Copyrights shall prescribe by regulation .

(2) Digital phonorecord deliveries.—A person who seeks to obtain
a compulsory license under subsection (a) to make and distribute phon
cords of a musical work by means of digital phonorecord delivery—

(A) prior to the license availability date, shall, before, or not later th
30 calendar days after, first making any such digital phonorecord deli
serve a notice of intention to do so on the copyright owner (but may
file the notice with the Copyright Office, even if the public records of
Office do not identify the owner or the owner's address), and such no
shall comply, in form, content, and manner of service, with requireme
that the Register of Copyrights shall prescribe by regulation; or

(B) on or after the license availability date, shall, before making an
digital phonorecord delivery, follow the procedure described in subse
(d)(2), except as provided in paragraph (3) .

(3) Record company individual download licenses.—Notwith-
standing paragraph (2)(B), a record company may, on or after the licen
ability date, obtain an individual download license in accordance with t
notice requirements described in paragraph (2)(A) (except for the requi
that notice occur prior to the license availability date) . A record compa
obtains an individual download license as permitted under this paragra
shall provide statements of account and pay royalties as provided in su
tion (c)(2)(I) .

(4) Failure to obtain license.—

(A) Phonorecords other than digital phonorecord deliv-
eries.—In the case of phonorecords made and distributed other than b
means of digital phonorecord delivery, the failure to serve or file the
of intention required by paragraph (1) forecloses the possibility of a c
pulsory license under paragraph (1) . In the absence of a voluntary lic
the failure to obtain a compulsory license renders the making and dis
tion of phonorecords actionable as acts of infringement under section
and subject to the remedies provided by sections 502 through 506 .

(B) Digital phonorecord deliveries.—

(i) In general.—In the case of phonorecords made and distributed by means of digital phonorecord delivery:

(I) The failure to serve the notice of intention required by paragraph (2)(A) or paragraph (3), as applicable, forecloses the possi of a compulsory license under such paragraph .

(II) The failure to comply with paragraph (2)(B) forecloses the sibility of a blanket license for a period of 3 years after the last c dar day on which the notice of license was required to be submit to the mechanical licensing collective under such paragraph .

(ii) Effect of failure.—In either case described in subclause (I) or (II) of clause (i), in the absence of a voluntary license, the failure to tain a compulsory license renders the making and distribution of p norecords by means of digital phonorecord delivery actionable as a of infringement under section 501 and subject to the remedies pro by sections 502 through 506 .

(c) General Conditions Applicable to Compulsory License.—

(1) Royalty payable under compulsory license.—

(A) Identification requirement.—To be entitled to receive royalties under a compulsory license obtained under subsection (b)(1) the cop owner must be identified in the registration or other public records of Copyright Office . The owner is entitled to royalties for phonorecords and distributed after being so identified, but is not entitled to recover any phonorecords previously made and distributed .

(B) Royalty for phonorecords other than digital phonorecord deliveries.—Except as provided by subparagraph (A), for every phonorecord made and distributed under a compulsory license subsection (a) other than by means of digital phonorecord delivery, w respect to each work embodied in the phonorecord, the royalty shall the royalty prescribed under subparagraphs (D) through (F), paragrap (A), and chapter 8 . For purposes of this subparagraph, a phonorecord considered "distributed" if the person exercising the compulsory lice has voluntarily and permanently parted with its possession .

(C) Royalty for digital phonorecord deliveries.—For every digital phonorecord delivery of a musical work made under a compuls license under this section, the royalty payable shall be the royalty pre under subparagraphs (D) through (F), paragraph (2)(A), and chapter 8

(D) Authority to negotiate.—Notwithstanding any provision of the antitrust laws, any copyright owners of nondramatic musical wor and any persons entitled to obtain a compulsory license under subse (a) may negotiate and agree upon the terms and rates of royalty pay under this section and the proportionate division of fees paid among right owners, and may designate common agents on a nonexclusive

to negotiate, agree to, pay or receive such royalty payments . Such a
to negotiate the terms and rates of royalty payments includes, but is
limited to, the authority to negotiate the year during which the royalt
prescribed under this subparagraph, subparagraphs (E) and (F), para
(2)(A), and chapter 8 shall next be determined .

(E) Determination of reasonable rates and terms.—Proceed-
ings under chapter 8 shall determine reasonable rates and terms of
alty payments for the activities specified by this section during the pe
beginning with the effective date of such rates and terms, but not ea
than January 1 of the second year following the year in which the pet
requesting the proceeding is filed, and ending on the effective date o
cessor rates and terms, or such other period as the parties may agre
copyright owners of nondramatic musical works and any persons ent
to obtain a compulsory license under subsection (a) may submit to t
Copyright Royalty Judges licenses covering such activities . The parti
each proceeding shall bear their own costs .

(F) Schedule of reasonable rates.—The schedule of reasonable
rates and terms determined by the Copyright Royalty Judges shall, su
to paragraph (2)(A), be binding on all copyright owners of nondramat
musical works and persons entitled to obtain a compulsory license u
der subsection (a) during the period specified in subparagraph (E), su
other period as may be determined pursuant to subparagraphs (D) a
(E), or such other period as the parties may agree . The Copyright Ro
Judges shall establish rates and terms that most clearly represent the
and terms that would have been negotiated in the marketplace betw
a willing buyer and a willing seller . In determining such rates and ter
for digital phonorecord deliveries, the Copyright Royalty Judges shall
their decision on economic, competitive, and programming informati
presented by the parties, including—

(i) whether use of the compulsory licensee's service may substit
or may promote the sales of phonorecords or otherwise may interf
with or may enhance the musical work copyright owner's other stre
of revenue from its musical works; and

(ii) the relative roles of the copyright owner and the compulsory
censee in the copyrighted work and the service made available to
public with respect to the relative creative contribution, technologi
contribution, capital investment, cost, and risk .

(2) Additional terms and conditions.—

(A) Voluntary licenses and contractual royalty rates.—

(i) In general .—License agreements voluntarily negotiated at any
time between one or more copyright owners of nondramatic music
works and one or more persons entitled to obtain a compulsory lice

under subsection (a) shall be given effect in lieu of any determinat
by the Copyright Royalty Judges . Subject to clause (ii), the royalty
determined pursuant to subparagraphs (E) and (F) of paragraph (1
be given effect as to digital phonorecord deliveries in lieu of any co
trary royalty rates specified in a contract pursuant to which a recor
artist who is the author of a nondramatic musical work grants a lic
under that person's exclusive rights in the musical work under par
graphs (1) and (3) of section 106 or commits another person to gra
license in that musical work under paragraphs (1) and (3) of sectio
to a person desiring to fix in a tangible medium of expression a sou
recording embodying the musical work .

(ii) Applicability.—The second sentence of clause (i) shall not ap-
ply to—

(I) a contract entered into on or before June 22, 1995, and no
modified thereafter for the purpose of reducing the royalty rates
termined pursuant to subparagraphs (E) and (F) of paragraph (1)
of increasing the number of musical works within the scope of th
contract covered by the reduced rates, except if a contract ente
into on or before June 22, 1995, is modified thereafter for the pu
of increasing the number of musical works within the scope of th
contract, any contrary royalty rates specified in the contract sha
given effect in lieu of royalty rates determined pursuant to subpa
graphs (E) and (F) of paragraph (1) for the number of musical wo
within the scope of the contract as of June 22, 1995; and

(II) a contract entered into after the date that the sound recor
is fixed in a tangible medium of expression substantially in a for
intended for commercial release, if at the time the contract is en
into, the recording artist retains the right to grant licenses as to
musical work under paragraphs (1) and (3) of section 106 .

(B) Sound recording information.—Except as provided in section
1002(e), a digital phonorecord delivery licensed under this paragraph
be accompanied by the information encoded in the sound recording,
by or under the authority of the copyright owner of that sound record
that identifies the title of the sound recording, the featured recording
who performs on the sound recording, and related information, includ
information concerning the underlying musical work and its writer .

(C) Infringement remedies.

(i) In general.—A digital phonorecord delivery of a sound record-
ing is actionable as an act of infringement under section 501, and i
subject to the remedies provided by sections 502 through 506,

(I) the digital phonorecord delivery has been authorized by th
sound recording copyright owner; and

(II) the entity making the digital phonorecord delivery has ob-
tained a compulsory license under subsection (a) or has otherw
been authorized by the musical work copyright owner, or by a r
cord company pursuant to an individual download license, to ma
and distribute phonorecords of each musical work embodied in t
sound recording by means of digital phonorecord delivery .

(ii) Other remedies.—Any cause of action under this subpara-
graph shall be in addition to those available to the owner of the co
right in the nondramatic musical work under subparagraph (J) and
section 106(4) and the owner of the copyright in the sound recordi
under section 106(6) .

(D) Liability of sound recording owners.—The liability of the
copyright owner of a sound recording for infringement of the copyrigh
in a nondramatic musical work embodied in the sound recording shal
determined in accordance with applicable law, except that the owner
copyright in a sound recording shall not be liable for a digital phonore
delivery by a third party if the owner of the copyright in the sound re
ing does not license the distribution of a phonorecord of the nondram
musical work .

(E) Recording devices and media.—Nothing in section 1008 shall
be construed to prevent the exercise of the rights and remedies allow
this paragraph, subparagraph (J), and chapter 5 in the event of a dig
phonorecord delivery, except that no action alleging infringement of
right may be brought under this title against a manufacturer, importe
distributor of a digital audio recording device, a digital audio recordi
medium, an analog recording device, or an analog recording medium
against a consumer, based on the actions described in such section .

(F) Preservation of rights.—Nothing in this section annuls or lim-
its—

(i) the exclusive right to publicly perform a sound recording or th
musical work embodied therein, including by means of a digital tra
mission, under paragraphs (4) and (6) of section 106;

(ii) except for compulsory licensing under the conditions specifie
this section, the exclusive rights to reproduce and distribute the so
recording and the musical work embodied therein under paragrap
(1) and (3) of section 106, including by means of a digital phonorec
delivery; or

(iii) any other rights under any other provision of section 106, o
remedies available under this title, as such rights or remedies exist
on, or after the date of enactment of the Digital Performance Right
Sound Recordings Act of 1995 .

(G) Exempt transmissions and retransmissions.—The provisions of this section concerning digital phonorecord deliveries shall n apply to any exempt transmissions or retransmissions under section (1) . The exemptions created in section 114(d)(1) do not expand or re the rights of copyright owners under paragraphs (1) through (5) of se 106 with respect to such transmissions and retransmissions .

(H) Distribution by rental, lease, or lending.—A compulsory license obtained under subsection (b)(1) to make and distribute phon cords includes the right of the maker of such a phonorecord to distrib or authorize distribution of such phonorecord, other than by means a digital phonorecord delivery, by rental, lease, or lending (or by act practices in the nature of rental, lease, or lending) . With respect to nondramatic musical work embodied in the phonorecord, the royalty be a proportion of the revenue received by the compulsory licensee f every such act of distribution of the phonorecord under this clause eq to the proportion of the revenue received by the compulsory licensee distribution of the phonorecord under subsection (a)(1)(A)(ii)(II) that i payable by a compulsory licensee under that clause and under chapt The Register of Copyrights shall issue regulations to carry out the pur of this subparagraph .

(I) Payment of royalties and statements of account.—Except as provided in paragraphs (4)(A)(i) and (10)(B) of subsection (d), roya payments shall be made on or before the twentieth day of each mont shall include all royalties for the month next preceding . Each monthl ment shall be made under oath and shall comply with requirements t the Register of Copyrights shall prescribe by regulation . The Register also prescribe regulations under which detailed cumulative annual st ments of account, certified by a certified public accountant, shall be f for every compulsory license under subsection (a) . The regulations c both the monthly and the annual statements of account shall prescrib form, content, and manner of certification with respect to the numbe records made and the number of records distributed .

(J) Notice of default and termination of compulsory license.—In the case of a license obtained under paragraph (1), (2)(A), (3) of subsection (b), if the copyright owner does not receive the mon payment and the monthly and annual statements of account when d the owner may give written notice to the licensee that, unless the de remedied not later than 30 days after the date on which the notice is the compulsory license will be automatically terminated . Such termi renders either the making or the distribution, or both, of all phonorec for which the royalty has not been paid, actionable as acts of infringe under section 501 and fully subject to the remedies provided by secti

502 through 506 . In the case of a license obtained under subsection
(B), license authority under the compulsory license may be terminate
provided in subsection (d)(4)(E) .

(d) Blanket License for Digital Uses, Mechanical Licensing Collective, and Digital Licensee Coordinator.—

(1) Blanket license for digital uses.—

(A) In general.—A digital music provider that qualifies for a compulsory license under subsection (a) may, by complying with the ter
and conditions of this subsection, obtain a blanket license from copyr
owners through the mechanical licensing collective to make and distr
digital phonorecord deliveries of musical works through one or more
ered activities .

(B) Included activities.—A blanket license—

(i) covers all musical works (or shares of such works) available f
compulsory licensing under this section for purposes of engaging
covered activities, except as provided in subparagraph (C);

(ii) includes the making and distribution of server, intermediate,
chival, and incidental reproductions of musical works that are reas
able and necessary for the digital music provider to engage in cove
activities licensed under this subsection, solely for the purpose of e
ing in such covered activities; and

(iii) does not cover or include any rights or uses other than thos
described in clauses (i) and (ii) .

(C) Other licenses.—A voluntary license for covered activities entered into by or under the authority of 1 or more copyright owners an
or more digital music providers, or authority to make and distribute p
manent downloads of a musical work obtained by a digital music prov
from a sound recording copyright owner pursuant to an individual do
load license, shall be given effect in lieu of a blanket license under th
subsection with respect to the musical works (or shares thereof) cove
such voluntary license or individual download authority and the follow
conditions apply:

(i) Where a voluntary license or individual download license appl
the license authority provided under the blanket license shall exclu
any musical works (or shares thereof) subject to the voluntary licen
individual download license .

(ii) An entity engaged in covered activities under a voluntary lice
or authority obtained pursuant to an individual download license th
is a significant nonblanket licensee shall comply with paragraph (6

(iii) The rates and terms of any voluntary license shall be subject
the second sentence of clause (i) and clause (ii) of subsection (c)(2
and paragraph (9)(C), as applicable .

(D)Protection against infringement actions.—A digital music provider that obtains and complies with the terms of a valid blanket l under this subsection shall not be subject to an action for infringeme the exclusive rights provided by paragraphs (1) and (3) of section 10 this title arising from use of a musical work (or share thereof) to enga covered activities authorized by such license, subject to paragraph (4

(E)Other requirements and conditions apply.—Except as expressly provided in this subsection, each requirement, limitation, con privilege, right, and remedy otherwise applicable to compulsory licen under this section shall apply to compulsory blanket licenses under t subsection .

(2)Availability of blanket license.—

(A)Procedure for obtaining license.—A digital music provider may obtain a blanket license by submitting a notice of license to the chanical licensing collective that specifies the particular covered acti in which the digital music provider seeks to engage, as follows:

(i) The notice of license shall comply in form and substance with quirements that the Register of Copyrights shall establish by regul

(ii) Unless rejected in writing by the mechanical licensing collect not later than 30 calendar days after the date on which the mecha licensing collective receives the notice, the blanket license shall be tive as of the date on which the notice of license was sent by the d music provider, as shown by a physical or electronic record .

(iii) A notice of license may only be rejected by the mechanical li ing collective if—

(I) the digital music provider or notice of license does not mee requirements of this section or applicable regulations, in which c the requirements at issue shall be specified with reasonable part larity in the notice of rejection; or

(II) the digital music provider has had a blanket license termin by the mechanical licensing collective during the 3-year period p ceding the date on which the mechanical licensing collective rec the notice pursuant to paragraph (4)(E) .

(iv) If a notice of license is rejected under clause (iii)(I), the digit music provider shall have 30 calendar days after receipt of the not rejection to cure any deficiency and submit an amended notice of l to the mechanical licensing collective . If the deficiency has been c the mechanical licensing collective shall so confirm in writing, and license shall be effective as of the date that the original notice of li was provided by the digital music provider .

(v) A digital music provider that believes a notice of license was properly rejected by the mechanical licensing collective may seek

of such rejection in an appropriate district court of the United State
The district court shall determine the matter de novo based on the
record before the mechanical licensing collective and any addition
evidence presented by the parties .

(B) Blanket license effective date.—Blanket licenses shall be
made available by the mechanical licensing collective on and after t
cense availability date . No such license shall be effective prior to the
availability date .

(3) Mechanical licensing collective.—

(A) In general.—The mechanical licensing collective shall be a singl
entity that—

(i) is a nonprofit entity, not owned by any other entity, that is cre
by copyright owners to carry out responsibilities under this subsect

(ii) is endorsed by, and enjoys substantial support from, musical
copyright owners that together represent the greatest percentage
licensor market for uses of such works in covered activities, as mea
over the preceding 3 full calendar years;

(iii) is able to demonstrate to the Register of Copyrights that the
tity has, or will have prior to the license availability date, the admi
trative and technological capabilities to perform the required funct
of the mechanical licensing collective under this subsection and th
governed by a board of directors in accordance with subparagraph
(i); and

(iv) has been designated by the Register of Copyrights, with the
proval of the Librarian of Congress pursuant to section 702, in acco
dance with subparagraph (B) .

(B) Designation of mechanical licensing collective.—

(i) Initial designation.—Not later than 270 days after the enact-
ment date, the Register of Copyrights shall initially designate the
chanical licensing collective as follows:

(I) Not later than 90 calendar days after the enactment date, t
Register shall publish notice in the Federal Register soliciting inf
mation to assist in identifying the appropriate entity to serve as
mechanical licensing collective, including the name and affiliati
of each member of the board of directors described under subpa
graph (D)(i) and each committee established pursuant to clause
(iv), and (v) of subparagraph (D) .

(II) After reviewing the information requested under subclaus
(I) and making a designation, the Register shall publish notice in
Federal Register setting forth—

(aa) the identity of and contact information for the mechani
licensing collective; and

(bb) the reasons for the designation .

(ii)Periodic review of designation.—Following the initial designation of the mechanical licensing collective, the Register shall, e years, beginning with the fifth full calendar year to commence afte initial designation, publish notice in the Federal Register in the mo of January soliciting information concerning whether the existing d ignation should be continued, or a different entity meeting the crite described in clauses (i) through (iii) of subparagraph (A)-shall be de nated . Following publication of such notice, the Register shall—

(I) after reviewing the information submitted and conducting additional proceedings as appropriate, publish notice in the Fede Register of a continuing designation or new designation of the m chanical licensing collective, as the case may be, and the reason such a designation, with any new designation to be effective as first day of a month that is not less than 6 months and not long than 9 months after the date on which the Register publishes th notice, as specified by the Register; and

(II) if a new entity is designated as the mechanical licensing co lective, adopt regulations to govern the transfer of licenses, fun records, data, and administrative responsibilities from the exist mechanical licensing collective to the new entity .

(iii)Closest alternative designation.—If the Register is unable to identify an entity that fulfills each of the qualifications set forth i clauses (i) through (iii) of subparagraph (A), the Register shall desi the entity that most nearly fulfills such qualifications for purposes carrying out the responsibilities of the mechanical licensing collect

(C)Authorities and functions.—

(i)In general.—The mechanical licensing collective is authorized to perform the following functions, subject to more particular requi ments as described in this subsection:

(I) Offer and administer blanket licenses, including receipt of n tices of license and reports of usage from digital music providers

(II) Collect and distribute royalties from digital music providers for covered activities .

(III) Engage in efforts to identify musical works (and shares of such works) embodied in particular sound recordings, and to ide and locate the copyright owners of such musical works (and sha of such works) .

(IV) Maintain the musical works database and other informatio relevant to the administration of licensing activities under this se tion .

(V) Administer a process by which copyright owners can claim ownership of musical works (and shares of such works), and a pr by which royalties for works for which the owner is not identified located are equitably distributed to known copyright owners .

(VI) Administer collections of the administrative assessment fr digital music providers and significant nonblanket licensees, incl ing receipt of notices of nonblanket activity .

(VII) Invest in relevant resources, and arrange for services of c side vendors and others, to support the activities of the mechani licensing collective .

(VIII) Engage in legal and other efforts to enforce rights and ob gations under this subsection, including by filing bankruptcy pro of claims for amounts owed under licenses, and acting in coordin tion with the digital licensee coordinator .

(IX) Initiate and participate in proceedings before the Copyrigh Royalty Judges to establish the administrative assessment under subsection .

(X) Initiate and participate in proceedings before the Copyrigh Office with respect to activities under this subsection .

(XI) Gather and provide documentation for use in proceedings before the Copyright Royalty Judges to set rates and terms und this section .

(XII) Maintain records of the activities of the mechanical licens ing collective and engage in and respond to audits described in t subsection .

(XIII) Engage in such other activities as may be necessary or a propriate to fulfill the responsibilities of the mechanical licensing lective under this subsection .

(ii)Restrictions concerning licensing and administrative activities.—With respect to the administration of licenses, except a provided in clauses (i) and (iii) and subparagraph (E)(v), the mecha licensing collective may only—

(I) issue blanket licenses pursuant to subsection (d)(1); and

(II) administer blanket licenses for reproduction or distribution rights in musical works for covered activities, including collectin and distributing royalties, pursuant to blanket licenses .

(iii)Additional administrative activities.—Subject to paragraph (11)(C), the mechanical licensing collective may also admini including by collecting and distributing royalties, voluntary license issued by, or individual download licenses obtained from, copyrigh owners only for reproduction or distribution rights in musical works

for covered activities, for which the mechanical licensing collective
charge reasonable fees for such services .

(iv)Restriction on lobbying.—The mechanical licensing collec-
tive may not engage in government lobbying activities, but may en
in the activities described in subclauses (IX), (X), and (XI) of clause

(D)Governance.—

(i)Board of directors.—The mechanical licensing collective shall
have a board of directors consisting of 14 voting members and 3 n
ing members, as follows:

(I) Ten voting members shall be representatives of music publ
ers—

(aa) to which songwriters have assigned exclusive righ
reproduction and distribution of musical works with respect to
covered activities; and

(bb) none of which may be owned by, or under common con
trol with, any other board member .

(II) Four voting members shall be professional songwriters who
have retained and exercise exclusive rights of reproduction and
distribution with respect to covered activities with respect to mu
works they have authored .

(III) One nonvoting member shall be a representative of the no
profit trade association of music publishers that represents the g
est percentage of the licensor market for uses of musical works
covered activities, as measured for the 3-year period preceding
date on which the member is appointed .

(IV) One nonvoting member shall be a representative of the di
tal licensee coordinator, provided that a digital licensee coordina
has been designated pursuant to paragraph (5)(B) . Otherwise,
nonvoting member shall be the nonprofit trade association of dig
licensees that represents the greatest percentage of the licensee
for uses of musical works in covered activities, as measured ove
preceding 3 full calendar years .

(V) One nonvoting member shall be a representative of a natio
ally recognized nonprofit trade association whose primary missio
advocacy on behalf of songwriters in the United States .

(ii)Bylaws.—

(I) Establishment.—Not later than 1 year after the date on
which the mechanical licensing collective is initially designated
the Register of Copyrights under subparagraph (B)(i), the collect
shall establish bylaws to determine issues relating to the govern
of the collective, including, but not limited to—

(aa) the length of the term for each member of the board o
directors;

(bb) the staggering of the terms of the members of the boa
of directors;

(cc) a process for filling a seat on the board of directors that
vacated before the end of the term with respect to that seat;

(dd) a process for electing a member to the board of directo
and

(ee) a management structure for daily operation of the colle
tive .

(II) Public availability.—The mechanical licensing collective
shall make the bylaws established under subclause (I) available
public .

(iii) Board meetings.—The board of directors shall meet not less
frequently than biannually and discuss matters pertinent to the op
tions of the mechanical licensing collective, including the mechani
licensing collective budget .

(iv) Operations advisory committee.—The board of direc-
tors of the mechanical licensing collective shall establish an operat
advisory committee consisting of not fewer than 6 members to ma
recommendations to the board of directors concerning the operatio
of the mechanical licensing collective, including the efficient invest
in and deployment of information technology and data resources .
committee shall have an equal number of members of the committ
who are—

(I) musical work copyright owners who are appointed by
board of directors of the mechanical licensing collective; and

(II) representatives of digital music providers who are appointe
by the digital licensee coordinator .

(v) Unclaimed royalties oversight committee.—The board
of directors of the mechanical licensing collective shall establish a
appoint an unclaimed royalties oversight committee consisting of
members, 5 of which shall be musical work copyright owners and 5
which shall be professional songwriters whose works are used in co
activities .

(vi) Dispute resolution committee.—The board of directors of
the mechanical licensing collective shall establish and appoint a di
resolution committee that shall—

(I) consist of not fewer than 6 members; and

(II) include an equal number of representatives of musical wor
copyright owners and professional songwriters .

(vii) Mechanical licensing collective annual report.—

(I) In general.—Not later than June 30 of each year commencing after the license availability date, the mechanical licensing collective shall post, and make available online for a period of not less than 3 years, an annual report that sets forth information regarding—

(aa) the operational and licensing practices of the collective;

(bb) how royalties are collected and distributed;

(cc) budgeting and expenditures;

(dd) the collective total costs for the preceding calendar year;

(ee) the projected annual mechanical licensing collective budget;

(ff) aggregated royalty receipts and payments;

(gg) expenses that are more than 10 percent of the annual mechanical licensing collective budget; and

(hh) the efforts of the collective to locate and identify copyright owners of unmatched musical works (and shares of works).

(II) Submission.—On the date on which the mechanical licensing collective posts each report required under subclause (I), the collective shall provide a copy of the report to the Register of Copyrights.

(viii) Independent officers.—An individual serving as an officer of the mechanical licensing collective may not, at the same time, also be an employee or agent of any member of the board of directors of the collective or any entity represented by a member of the board of directors, as described in clause (i).

(ix) Oversight and accountability.—

(I) In general.—The mechanical licensing collective shall—

(aa) ensure that the policies and practices of the collective are transparent and accountable;

(bb) identify a point of contact for publisher inquiries and complaints with timely redress; and

(cc) establish an anti-comingling policy for funds not collected under this section and royalties collected under this section.

(II) Audits.—

(aa) In general.—Beginning in the fourth full calendar year that begins after the initial designation of the mechanical licensing collective by the Register of Copyrights under subparagraph (I)(i), and in every fifth calendar year thereafter, the collective shall retain a qualified auditor that shall—

(AA) examine the books, records, and operations of the collective;

(BB) prepare a report for the board of directors of the collective with respect to the matters described in item (bb); a

(CC) not later than December 31 of the year in which the qualified auditor is retained, deliver the report described in subitem (BB) to the board of directors of the collective .

(bb) Matters addressed.—Each report prepared under item (aa) shall address the implementation and efficacy of procedu of the mechanical licensing collective—

(AA) for the receipt, handling, and distribution of royalty funds, including any amounts held as unclaimed royalties;

(BB) to guard against fraud, abuse, waste, and the unreas able use of funds; and

(CC) to protect the confidentiality of financial, proprietary and other sensitive information .

(cc) Public availability .—With respect to each report pre- pared under item (aa), the mechanical licensing collective sha

(AA) submit the report to the Register of Copyrights; and

(BB) make the report available to the public .

(E) Musical works database.—

(i) Establishment and maintenance of database.—The me- chanical licensing collective shall establish and maintain a databa containing information relating to musical works (and shares of suc works) and, to the extent known, the identity and location of the co right owners of such works (and shares thereof) and the sound rec ings in which the musical works are embodied . In furtherance of m taining such database, the mechanical licensing collective shall en in efforts to identify the musical works embodied in particular soun recordings, as well as to identify and locate the copyright owners o works (and shares thereof), and update such data as appropriate .

(ii) Matched works.—With respect to musical works (and shares thereof) that have been matched to copyright owners, the musical database shall include—

(I) the title of the musical work;

(II) the copyright owner of the work (or share thereof), and the ownership percentage of that owner;

(III) contact information for such copyright owner;

(IV) to the extent reasonably available to the mechanical licen collective—

(aa) the international standard musical work code for the wo and

(bb) identifying information for sound recordings in which th musical work is embodied, including the name of the sound re cording, featured artist, sound recording copyright owner, pro international standard recording code, and other information

commonly used to assist in associating sound recordings with
musical works; and

(V) such other information as the Register of Copyrights may p
scribe by regulation .

(iii) Unmatched works.—With respect to unmatched musical
works (and shares of works) in the database, the musical works da
shall include—

(I) to the extent reasonably available to the mechanical licensi
collective—

(aa) the title of the musical work;

(bb) the ownership percentage for which an owner has not b
identified;

(cc) if a copyright owner has been identified but not located
the identity of such owner and the ownership percentage of th
owner;

(dd) identifying information for sound recordings in which
the work is embodied, including sound recording name, featur
artist, sound recording copyright owner, producer, internation
standard recording code, and other information commonly use
to assist in associating sound recordings with musical works; a

(ee) any additional information reported to the mechanical
licensing collective that may assist in identifying the work; and

(II) such other information relating to the identity and ownersh
of musical works (and shares of such works) as the Register of C
rights may prescribe by regulation .

(iv) Sound recording information.—Each musical work copy-
right owner with any musical work listed in the musical works data
base shall engage in commercially reasonable efforts to deliver to
mechanical licensing collective, including for use in the musical wo
database, to the extent such information is not then available in th
base, information regarding the names of the sound recordings in
that copyright owner's musical works (or shares thereof) are embo
to the extent practicable .

(v) Accessibility of database.—The musical works database shall
be made available to members of the public in a searchable, online
mat, free of charge . The mechanical licensing collective shall mak
database available in a bulk, machine-readable format, through a
available software application, to the following entities:

(I) Digital music providers operating under the authority of val
notices of license, free of charge .

(II) Significant nonblanket licensees in compliance with their o
ligations under paragraph (6), free of charge .

(III) Authorized vendors of the entities described in subclauses and (II), free of charge .

(IV) The Register of Copyrights, free of charge (but the Registe shall not treat such database or any information therein as a Gov ment record) .

(V) Any other person or entity for a fee not to exceed the marg cost to the mechanical licensing collective of providing the datab to such person or entity .

(vi) Additional requirements.—The Register of Copyrights shall establish requirements by regulations to ensure the usability, inter ability, and usage restrictions of the musical works database .

(F) Notices of license and nonblanket activity.—

(i) Notices of licenses.—The mechanical licensing collective shall receive, review, and confirm or reject notices of license from tal music providers, as provided in paragraph (2)(A) . The collective maintain a current, publicly accessible list of blanket licenses that cludes contact information for the licensees and the effective dates such licenses .

(ii) Notices of nonblanket activity .—The mechanical licens- ing collective shall receive notices of nonblanket activity from sign nonblanket licensees, as provided in paragraph (6)(A) . The collec shall maintain a current, publicly accessible list of notices of nonbl ket activity that includes contact information for significant nonbla licensees and the dates of receipt of such notices .

(G) Collection and distribution of royalties .—

(i) In general .—Upon receiving reports of usage and payments of royalties from digital music providers for covered activities, the chanical licensing collective shall—

(I) engage in efforts to—

(aa) identify the musical works embodied in sound recordin reflected in such reports, and the copyright owners of such mu cal works (and shares thereof);

(bb) confirm uses of musical works subject to voluntary licen es and individual download licenses, and the corresponding pr rata amounts to be deducted from royalties that would otherw be due under the blanket license; and

(cc) confirm proper payment of royalties due;

(II) distribute royalties to copyright owners in accordance with the usage and other information contained in such reports, as w as the ownership and other information contained in the records the collective; and

(III) deposit into an interest-bearing account, as provided in su
paragraph (H)(ii), royalties that cannot be distributed due to—

(aa) an inability to identify or locate a copyright owner of a
musical work (or share thereof); or

(bb) a pending dispute before the dispute resolution commit
of the mechanical licensing collective .

(ii) Other collection efforts .—Any royalties recovered by the
mechanical licensing collective as a result of efforts to enforce rig
or obligations under a blanket license, including through a bankrup
proceeding or other legal action, shall be distributed to copyright o
ers based on available usage information and in accordance with
procedures described in subclauses (I) and (II) of clause (i), on a pr
basis in proportion to the overall percentage recovery of the total r
ties owed, with any pro rata share of royalties that cannot be distri
deposited in an interest-bearing account as provided in subparagra
(H)(ii) .

(H) Holding of accrued royalties.—

(i) Holding period. —The mechanical licensing collective shal
hold accrued royalties associated with particular musical works (a
shares of works) that remain unmatched for a period of not less th
years after the date on which the funds were received by the mech
cal licensing collective, or not less than 3 years after the date on w
the funds were accrued by a digital music provider that subseque
transferred such funds to the mechanical licensing collective pursu
to paragraph (10)(B), whichever period expires sooner .

(ii) Interest-bearing account .—Accrued royalties for un-
matched works (and shares thereof) shall be maintained by the me
cal licensing collective in an interest-bearing account that earns m
interest—

(I) at the Federal, short-term rate; and

(II) that accrues for the benefit of copyright owners entitled to
payment of such accrued royalties .

(I) Musical works claiming process.—When a copyright owner
of an unmatched work (or share of a work) has been identified and lo
in accordance with the procedures of the mechanical licensing collec
the collective shall—

(i) update the musical works database and the other records of t
collective accordingly; and

(ii) provided that accrued royalties for the musical work (or shar
thereof) have not yet been included in a distribution pursuant to su
paragraph (J)(i), pay such accrued royalties and a proportionate am
of accrued interest associated with that work (or share thereof) to

copyright owner, accompanied by a cumulative statement of acco
reflecting usage of such work and accrued royalties based on infor
tion provided by digital music providers to the mechanical licensin
collective .

(J) Distribution of unclaimed accrued royalties—

(i) Distribution procedures .—After the expiration of the pre-
scribed holding period for accrued royalties provided in subparagra
(H)(i), the mechanical licensing collective shall distribute such accr
royalties, along with a proportionate share of accrued interest, to c
right owners identified in the records of the collective, subject to t
following requirements, and in accordance with the policies and pr
dures established under clause (ii):

(I) The first such distribution shall occur on or after January 1 c
the second full calendar year to commence after the license ava
ity date, with not less than 1 such distribution to take place duri
each calendar year thereafter .

(II) Copyright owners' payment shares for unclaimed accrued r
alties for particular reporting periods shall be determined in a tra
parent and equitable manner based on data indicating the relati
market shares of such copyright owners as reflected in reports o
age provided by digital music providers for covered activities for
periods in question, including, in addition to usage data provided
the mechanical licensing collective, usage data provided to copy
owners under voluntary licenses and individual download license
covered activities, to the extent such information is available to
mechanical licensing collective . In furtherance of the determina
of equitable market shares under this subparagraph—

(aa) the mechanical licensing collective may require copyrig
owners seeking distributions of unclaimed accrued royalties t
provide, or direct the provision of, information concerning the
usage of musical works under voluntary licenses and individua
download licenses for covered activities; and

(bb) the mechanical licensing collective shall take appropria
steps to safeguard the confidentiality and security of usage, fi
cial, and other sensitive data used to compute market shares
accordance with the confidentiality provisions prescribed by th
Register of Copyrights under paragraph (12)(C) .

(ii) Establishment of distribution policies.—The unclaimed
royalties oversight committee established under subparagraph (D
shall establish policies and procedures for the distribution of uncla
accrued royalties and accrued interest in accordance with this subp
graph, including the provision of usage data to copyright owners t

allocate payments and credits to songwriters pursuant to clause ( subject to the approval of the board of directors of the mechanica licensing collective .

(iii) Public notice of unclaimed accrued royalties.—The mechanical licensing collective shall—

(I) maintain a publicly accessible online facility with contact in formation for the collective that lists unmatched musical works ( shares of works), through which a copyright owner may assert a ownership claim with respect to such a work (and a share of such work);

(II) engage in diligent, good-faith efforts to publicize, throughou the music industry—

(aa) the existence of the collective and the ability to unclaimed accrued royalties for unmatched musical works (an shares of such works) held by the collective;

(bb) the procedures by which copyright owners may identify themselves and provide contact, ownership, and other releva information to the collective in order to receive payments of a crued royalties;

(cc) any transfer of accrued royalties for musical works unde paragraph (10)(B), not later than 180 days after the date on w the transfer is received; and

(dd) any pending distribution of unclaimed accrued roy ties and accrued interest, not less than 90 days before the dat which the distribution is made; and

(III) as appropriate, participate in music industry conferences a events for the purpose of publicizing the matters described in su clause (II) .

(iv) Songwriter payments.—Copyright owners that receive a distribution of unclaimed accrued royalties and accrued interest shall or credit a portion to songwriters (or the authorized agents of songwriters) on whose behalf the copyright owners license or administer m works for covered activities, in accordance with applicable contract terms, but notwithstanding any agreement to the contrary—

(I) such payments and credits to songwriters shall be allocated proportion to reported usage of individual musical works by digit music providers during the reporting periods covered by the dist tion from the mechanical licensing collective; and

(II) in no case shall the payment or credit to an individual song writer be less than 50 percent of the payment received by the co right owner attributable to usage of musical works (or shar works) of that songwriter .

(K) Dispute resolution .—The dispute resolution committee estab-
lished under subparagraph (D)(vi) shall establish policies and procedu
(i) for copyright owners to address in a timely and equitable mar
disputes relating to ownership interests in musical works licensed u
this section and allocation and distribution of royalties by the mech
cal licensing collective, subject to the approval of the board of dire
of the mechanical licensing collective;
(ii) that shall include a mechanism to hold disputed funds in acc
dance with the requirements described in subparagraph (H)(ii) pen
resolution of the dispute; and
(iii) except as provided in paragraph (11)(D), that shall not affect
legal or equitable rights or remedies available to any copyright own
songwriter concerning ownership of, and entitlement to royalties fo
musical work .
(L) Verification of payments by mechanical licensing col-
lective .—
(i) Verification process.—A copyright owner entitled to receive
payments of royalties for covered activities from the mechanical lic
ing collective may, individually or with other copyright owners, con
an audit of the mechanical licensing collective to verify the accurac
royalty payments by the mechanical licensing collective to such c
right owner, as follows:
(I) A copyright owner may audit the mechanical licensing colle
tive only once in a year for any or all of the 3 calendar years pre
the year in which the audit is commenced, and may not audit re
for any calendar year more than once .
(II) The audit shall be conducted by a qualified auditor, who sh
perform the audit during the ordinary course of business by exam
ing the books, records, and data of the mechanical licensing coll
according to generally accepted auditing standards and subject
applicable confidentiality requirements prescribed by the Regist
Copyrights under paragraph (12)(C) .
(III) The mechanical licensing collective shall make such book
records, and data available to the qualified auditor and respond
reasonable requests for relevant information, and shall use comm
cially reasonable efforts to facilitate access to relevant informat
maintained by third parties .
(IV) To commence the audit, any copyright owner shall file wit
the Copyright Office a notice of intent to conduct an audit of the
mechanical licensing collective, identifying the period of time to
audited, and shall simultaneously deliver a copy of such notice
the mechanical licensing collective . The Register of Copyrights s

cause the notice of audit to be published in the Federal Register later than 45 calendar days after the date on which the notice is ceived .

(V) The qualified auditor shall determine the accuracy of royal payments, including whether an underpayment or overpayment royalties was made by the mechanical licensing collective to ea auditing copyright owner, except that, before providing a f audit report to any such copyright owner, the qualified auditor sh provide a tentative draft of the report to the mechanical licensi collective and allow the mechanical licensing collective a reason opportunity to respond to the findings, including by clarifying iss and correcting factual errors .

(VI) The auditing copyright owner or owners shall bear the cos of the audit . In case of an underpayment to any copyright owne mechanical licensing collective shall pay the amounts of any su underpayment to such auditing copyright owner, as appropriate case of an overpayment by the mechanical licensing collective, t mechanical licensing collective may debit the account of the aud ing copyright owner or owners for such overpaid amounts, or suc owner or owners shall refund overpaid amounts to the mechanic licensing collective, as appropriate .

(ii) Alternative verification procedures . —Nothing in this subparagraph shall preclude a copyright owner and the mechanica censing collective from agreeing to audit procedures different from described in this subparagraph, except that a notice of the audit sh be provided to and published by the Copyright Office as described clause (i)(IV) .

(M) Records of mechanical licensing collective—

(i) Records maintenance—The mechanical licensing collective shall ensure that all material records of the operations of the mech cal licensing collective, including those relating to notices of licens administration of the claims process of the mechanical licensing c lective, reports of usage, royalty payments, receipt and maintenan accrued royalties, royalty distribution processes, and legal matters preserved and maintained in a secure and reliable manner, with ap priate commercially reasonable safeguards against unauthorized a copying, and disclosure, and subject to the confidentiality requirem prescribed by the Register of Copyrights under paragraph (12)(C) a period of not less than 7 years after the date of creation or recei whichever occurs later .

(ii) Records access—The mechanical licensing collective shal provide prompt access to electronic and other records pertaining t

administration of a copyright owner's musical works upon reasonal written request of the owner or the authorized representative of th owner .

(4) Terms and conditions of blanket license.—A blanket license is subject to, and conditioned upon, the following requirements:

(A) Royalty reporting and payments.—

(i) Monthly reports and payment.—A digital music provider shall report and pay royalties to the mechanical licensing collective der the blanket license on a monthly basis in accordance with clau and subsection (c)(2)(I), except that the monthly reporting shall be on the date that is 45 calendar days, rather than 20 calendar days, the end of the monthly reporting period .

(ii) Data to be reported.—In reporting usage of musical works to the mechanical licensing collective, a digital music provider shall p vide usage data for musical works used under the blanket license a usage data for musical works used in covered activities under volu licenses and individual download licenses . In the report of usage, digital music provider shall—

(I) with respect to each sound recording embodying a musica work—

(aa) provide identifying information for the sound recording including sound recording name, featured artist, and, to the ex acquired by the digital music provider in connection with its us of sound recordings of musical works to engage in covered ac tivities, including pursuant to subparagraph (B), sound recordi copyright owner, producer, international standard recording co and other information commonly used in the industry to identi sound recordings and match them to the musical works the so recordings embody;

(bb) to the extent acquired by the digital music provider in t metadata provided by sound recording copyright owners or ot licensors of sound recordings in connection with the use of sou recordings of musical works to engage in covered activities, i cluding pursuant to subparagraph (B), provide information con cerning authorship and ownership of the applicable rights in th musical work embodied in the sound recording (including each songwriter, publisher name, and respective ownership share) the international standard musical work code; and

(cc) provide the number of digital phonorecord deliveries of the sound recording, including limited downloads and interac tive streams;

(II) identify and provide contact information for all musical wo
copyright owners for works embodied in sound recordings as to
which a voluntary license, rather than the blanket license, is in e
with respect to the uses being reported; and

(III) provide such other information as the Register of Copyrigh
shall require by regulation .

(iii) Format and maintenance of reports.—Reports of usage
provided by digital music providers to the mechanical licensing col
tive shall be in a machine-readable format that is compatible with
information technology systems of the mechanical licensing collect
and meets the requirements of regulations adopted by the Registe
Copyrights . The Register shall also adopt regulations setting forth
quirements under which records of use shall be maintained and ma
available to the mechanical licensing collective by digital music pro
ers engaged in covered activities under a blanket license .

(iv) Adoption of regulations.—The Register of Copyrights shall
adopt regulations—

(I) setting forth requirements under which records of use shall
maintained and made available to the mechanical licensing colle
by digital music providers engaged in covered activities under a
ket license; and

(II) regarding adjustments to reports of usage by digital music
providers, including mechanisms to account for overpayment a
underpayment of royalties in prior periods .

(B) Collection of sound recording information . —A digital
music provider shall engage in good-faith, commercially reasonable e
to obtain from sound recording copyright owners and other licensors
sound recordings made available through the service of such digital m
provider information concerning—

(i) sound recording copyright owners, producers, international st
dard recording codes, and other information commonly used in th
industry to identify sound recordings and match them to the music
works the sound recordings embody; and

(ii) the authorship and ownership of musical works, including son
writers, publisher names, ownership shares, and international stan
musical work codes .

(C) Payment of administrative assessment.—A digital music
provider and any significant nonblanket licensee shall pay the admini
tive assessment established under paragraph (7)(D) in accordance w
subsection and applicable regulations .

(D) Verification of payments by digital music providers.—

(i) Verification process .—The mechanical licensing collective may conduct an audit of a digital music provider operating under t blanket license to verify the accuracy of royalty payments by the d music provider to the mechanical licensing collective as follows:

(I) The mechanical licensing collective may commence an aud of a digital music provider not more frequently than once in any 3-calendar-year period to cover a verification period of not more the 3 full calendar years preceding the date of commencement the audit, and such audit may not audit records for any such 3-y verification period more than once .

(II) The audit shall be conducted by a qualified auditor, who sh perform the audit during the ordinary course of business by exar ing the books, records, and data of the digital music provider, ac ing to generally accepted auditing standards and subject to appl confidentiality requirements prescribed by the Register of Copyr under paragraph (12)(C) .

(III) The digital music provider shall make such books, records and data available to the qualified auditor and respond to reason able requests for relevant information, and shall use commercial reasonable efforts to provide access to relevant information ma tained with respect to a digital music provider by third parties .

(IV) To commence the audit, the mechanical licensing collectiv shall file with the Copyright Office a notice of intent to conduct a audit of the digital music provider, identifying the period of time be audited, and shall simultaneously deliver a copy of such notic the digital music provider . The Register of Copyrights shall caus notice of audit to be published in the Federal Register not later t 45 calendar days after the date on which notice is received .

(V) The qualified auditor shall determine the accuracy of royal payments, including whether an underpayment or overpayment royalties was made by the digital music provider to the mechani censing collective, except that, before providing a final audit rep the mechanical licensing collective, the qualified auditor shall pr a tentative draft of the report to the digital music provider and a the digital music provider a reasonable opportunity to respond t findings, including by clarifying issues and correcting factual erro

(VI) The mechanical licensing collective shall pay the cost of th audit, unless the qualified auditor determines that there was an derpayment by the digital music provider of not less than 10 per in which case the digital music provider shall bear the reasonabl of the audit, in addition to paying the amount of any underpaym to the mechanical licensing collective . In case of an overpaymer

the digital music provider, the mechanical licensing collective sh
provide a credit to the account of the digital music provider .

(VII) A digital music provider may not assert section 507 or an
other Federal or State statute of limitations, doctrine of laches or
toppel, or similar provision as a defense to a legal action arising
an audit under this subparagraph if such legal action is commen
not more than 6 years after the commencement of the audit tha
the basis for such action .

(ii) Alternative verification procedures . —Nothing in this subparagraph shall preclude the mechanical licensing collective ar digital music provider from agreeing to audit procedures different f those described in this subparagraph, except that a notice of the a shall be provided to and published by the Copyright Office as descr in clause (i)(IV) .

(E) Default under blanket license —

(i) Conditions of default .—A digital music provider shall be in default under a blanket license if the digital music provider—

(I) fails to provide 1 or more monthly reports of usage to the m chanical licensing collective when due;

(II) fails to make a monthly royalty or late fee payment to the chanical licensing collective when due, in all or material part;

(III) provides 1 or more monthly reports of usage to the mecha cal licensing collective that, on the whole, is or are materially de as a result of inaccurate, missing, or unreadable data, where the rect data was available to the digital music provider and required be reported under this section and applicable regulations;

(IV) fails to pay the administrative assessment as required und this subsection and applicable regulations; or

(V) after being provided written notice by the mechanical licen ing collective, refuses to comply with any other material term or dition of the blanket license under this section for a period of not than 60 calendar days .

(ii) Notice of default and termination —In case of a default by a digital music provider, the mechanical licensing collective may p to terminate the blanket license of the digital music provider as fol

(I) The mechanical licensing collective shall provide written no to the digital music provider describing with reasonable particula ity the default and advising that unless such default is cured not than 60 calendar days after the date of the notice, the blanket li will automatically terminate at the end of that period .

(II) If the digital music provider fails to remedy the default bef the end of the 60-day period described in subclause (I), the licen

shall terminate without any further action on the part of the me
chanical licensing collective . Such termination renders the maki
of all digital phonorecord deliveries of all musical works (and sha
thereof) covered by the blanket license for which the royalty or a
ministrative assessment has not been paid actionable as acts o
fringement under section 501 and subject to the remedies provi
by sections 502 through 506 .

(iii) Notice to copyright owners .—The mechanical licensing collective shall provide written notice of any termination under thi subparagraph to copyright owners of affected works .

(iv) Review by federal district court .—A digital music provider that believes a blanket license was improperly terminated by mechanical licensing collective may seek review of such terminatio an appropriate district court of the United States . The district cour determine the matter de novo based on the record before the mec licensing collective and any additional supporting evidence presen by the parties .

(5) Digital licensee coordinator .—

(A) In general . —The digital licensee coordinator shall be a si entity that—

(i) is a nonprofit, not owned by any other entity, that is created carry out responsibilities under this subsection;

(ii) is endorsed by and enjoys substantial support from digital mu providers and significant nonblanket licensees that together repres the greatest percentage of the licensee market for uses of musical in covered activities, as measured over the preceding 3 calendar y

(iii) is able to demonstrate that it has, or will have prior to the lic availability date, the administrative capabilities to perform the req functions of the digital licensee coordinator under this subsection;

(iv) has been designated by the Register of Copyrights, with the proval of the Librarian of Congress pursuant to section 702, in acc dance with subparagraph (B) .

(B) Designation of digital licensee coordinator.—

(i) Initial designation .—The Register of Copyrights shall initially designate the digital licensee coordinator not later than 270 days a the enactment date, in accordance with the same procedure descr for designation of the mechanical licensing collective in paragraph (B)(i) .

(ii) Periodic review of designation.—Following the initial designation of the digital licensee coordinator, the Register of Cop rights shall, every 5 years, beginning with the fifth full calendar ye commence after the initial designation, determine whether the exi

designation should be continued, or a different entity meeting the
ria described in clauses (i) through (iii) of subparagraph (A) should
designated, in accordance with the same procedure described for
mechanical licensing collective in paragraph (3)(B)(ii) .

(iii) Inability to designate.—If the Register of Copyrights is un-
able to identify an entity that fulfills each of the qualifications desc
in clauses (i) through (iii) of subparagraph (A) to serve as the digit
licensee coordinator, the Register may decline to designate a digita
censee coordinator . The determination of the Register not to desig
a digital licensee coordinator shall not negate or otherwise affect
provision of this subsection except to the limited extent that a prov
references the digital licensee coordinator . In such case, the refere
the digital licensee coordinator shall be without effect unless and u
a new digital licensee coordinator is designated .

(C) Authorities and functions .—

(i) In general .—The digital licensee coordinator is authorized to
perform the following functions, subject to more particular require
ments as described in this subsection:

(I) Establish a governance structure, criteria for membership, a
any dues to be paid by its members .

(II) Engage in efforts to enforce notice and payment obligation
with respect to the administrative assessment, including by rece
information from and coordinating with the mechanical licensin
collective .

(III) Initiate and participate in proceedings before the Copyrigh
Royalty Judges to establish the administrative assessment under
subsection .

(IV) Initiate and participate in proceedings before the Copyrigh
Office with respect to activities under this subsection .

(V) Gather and provide documentation for use in proceedings
before the Copyright Royalty Judges to set rates and terms und
this section .

(VI) Maintain records of its activities .

(VII) Assist in publicizing the existence of the mechanical licen
collective and the ability of copyright owners to claim royalties f
unmatched musical works (and shares of works) through the col
tive .

(VIII) Engage in such other activities as may be necessary or a
propriate to fulfill its responsibilities under this subsection .

(ii) Restriction on lobbying .—The digital licensee coordinator
may not engage in government lobbying activities, but may engag
the activities described in subclauses (III), (IV), and (V) of clause (i)

(iii) Assistance with publicity for unclaimed royalties.—
The digital licensee coordinator shall make reasonable, good-faith
to assist the mechanical licensing collective in the efforts of the co
to locate and identify copyright owners of unmatched musical work
(and shares of such works) by encouraging digital music providers
publicize the existence of the collective and the ability of copyright
ers to claim unclaimed accrued royalties, including by—

(I) posting contact information for the collective at reasonably
prominent locations on digital music provider websites and appli
tions; and

(II) conducting in-person outreach activities with songwriters .

(6) Requirements for significant nonblanket licensees—

(A) In general .—

(i) Notice of activity .—Not later than 45 calendar days after the
license availability date, or 45 calendar days after the end of the f
full calendar month in which an entity initially qualifies as a signific
nonblanket licensee, whichever occurs later, a significant nonblan
licensee shall submit a notice of nonblanket activity to the mechan
licensing collective . The notice of nonblanket activity shall comply
form and substance with requirements that the Register of Copyrig
shall establish by regulation, and a copy shall be made available to
digital licensee coordinator .

(ii) Reporting and payment obligations.—The notice of non-
blanket activity submitted to the mechanical licensing collective sh
be accompanied by a report of usage that contains the information
scribed in paragraph (4)(A)(ii), as well as any payment of the admi
trative assessment required under this subsection and applicable r
tions . Thereafter, subject to clause (iii), a significant nonblanket lic
shall continue to provide monthly reports of usage, accompanied b
required payment of the administrative assessment, to the mechan
licensing collective . Such reports and payments shall be submitted
later than 45 calendar days after the end of the calendar month be
reported .

(iii) Discontinuation of obligations .—An entity that has sub-
mitted a notice of nonblanket activity to the mechanical licensing c
lective that has ceased to qualify as a significant nonblanket licens
so notify the collective in writing . In such case, as of the calendar
in which such notice is provided, such entity shall no longer be req
to provide reports of usage or pay the administrative assessment,
such entity later qualifies as a significant nonblanket licensee, such
shall again be required to comply with clauses (i) and (ii) .

(B)Reporting by mechanical licensing collective to digital licensee coordinator.—

(i) Monthly reports of noncompliant licensees.—The mechanical licensing collective shall provide monthly reports to the di licensee coordinator setting forth any significant nonblanket licens of which the collective is aware that have failed to comply with sub graph (A) .

(ii) Treatment of confidential information.—The mechanical licensing collective and digital licensee coordinator shall take a priate steps to safeguard the confidentiality and security of financi other sensitive data shared under this subparagraph, in accordanc the confidentiality requirements prescribed by the Register of Cop rights under paragraph (12)(C) .

(C)Legal enforcement efforts.—

(i) Federal court action .—Should the mechanical licensing collective or digital licensee coordinator become aware that a signific nonblanket licensee has failed to comply with subparagraph (A), ei may commence an action in an appropriate district court of the Un States for damages and injunctive relief . If the significant nonblan licensee is found liable, the court shall, absent a finding of excusab glect, award damages in an amount equal to three times the total of the unpaid administrative assessment and, notwithstanding any to the contrary in section 505, reasonable attorney's fees and costs well as such other relief as the court determines appropriate . In al cases, the court shall award relief as appropriate . Any recovery of ages shall be payable to the mechanical licensing collective as an to the collective total costs .

(ii) Statute of limitations for enforcement action .—Any action described in this subparagraph shall be commenced within t time period described in section 507(b) .

(iii)Other rights and remedies preserved.—The ability of the mechanical licensing collective or digital licensee coordinator to br an action under this subparagraph shall in no way alter, limit or ne any other right or remedy that may be available to any party at law in equity .

(7)Funding of mechanical licensing collective—

(A)In general .—The collective total costs shall be funded by—

(i) an administrative assessment, as such assessment is establis the Copyright Royalty Judges pursuant to subparagraph (D) from ti to time, to be paid by—

(I) digital music providers that are engaged, in all or in part, i covered activities pursuant to a blanket license; and

(II) significant nonblanket licensees; and

(ii) voluntary contributions from digital music providers and significant nonblanket licensees as may be agreed with copyright owners

(B)Voluntary contributions .—

(i) Agreements concerning contributions —Except as provided in clause (ii), voluntary contributions by digital music providers and significant nonblanket licensees shall be determined by private negotiation and agreement, and the following conditions apply:

(I) The date and amount of each voluntary contribution to the mechanical licensing collective shall be documented in a writing signed by an authorized agent of the mechanical licensing collective and the contributing party .

(II) Such agreement shall be made available as required in proceedings before the Copyright Royalty Judges to establish or adjust the administrative assessment in accordance with applicable statutory and regulatory provisions and rulings of the Copyright Royalty Judges .

(ii)Treatment of contributions.—Each voluntary contribution described in clause (i) shall be treated for purposes of an administrative assessment proceeding as an offset to the collective total costs that would otherwise be recovered through the administrative assessment . Any allocation or reallocation of voluntary contributions between or among individual digital music providers or significant nonblanket licensees shall be a matter of private negotiation and agreement among such parties and outside the scope of the administrative assessment proceeding .

(C)Interim application of accrued royalties.—In the event that the administrative assessment, together with any funding from voluntary contributions as provided in subparagraphs (A) and (B), is inadequate to cover current collective total costs, the collective, with approval of its board of directors, may apply unclaimed accrued royalties on an interim basis to defray such costs, subject to future reimbursement of such royalties from future collections of the assessment .

(D)Determination of administrative assessment.—

(i) Administrative assessment to cover collective total costs .—The administrative assessment shall be used solely and exclusively to fund the collective total costs .

(ii)Separate proceeding before copyright royalty judges.—The amount and terms of the administrative assessment shall be determined and established in a separate and independent proceeding before the Copyright Royalty Judges, according to the procedures described in clauses (iii) and (iv) . The administrative assessment determined in such proceeding shall—

(I) be wholly independent of royalty rates and terms applicable
digital music providers, which shall not be taken into considerati
in any manner in establishing the administrative assessment;

(II) be established by the Copyright Royalty Judges in an amou
that is calculated to defray the reasonable collective total costs;

(III) be assessed based on usage of musical works by digital m
providers and significant nonblanket licensees in covered activit
under both compulsory and nonblanket licenses;

(IV) may be in the form of a percentage of royalties payable u
this section for usage of musical works in covered activities (reg
less of whether a different rate applies under a voluntary license
any other usage-based metric reasonably calculated to equitably
locate the collective total costs across digital music providers an
nificant nonblanket licensees engaged in covered activities, and
include as a component a minimum fee for all digital music prov
and significant nonblanket licensees; and

(V) take into consideration anticipated future collective total c
and collections of the administrative assessment, including, as
plicable—

(aa) any portion of past actual collective total costs of the m
chanical licensing collective not funded by previous collection
of the administrative assessment or voluntary contributions b
cause such collections or contributions together were insuffici
to fund such costs;

(bb) any past collections of the administrative assessment a
voluntary contributions that exceeded past actual collective to
costs, resulting in a surplus; and

(cc) the amount of any voluntary contributions by digital mu
providers or significant nonblanket licensees in relevant perio
described in subparagraphs (A) and (B) of paragraph (7) .

(iii) Initial administrative assessment—The procedure for
establishing the initial administrative assessment shall be as follow

(I) Not later than 270 days after the enactment date, the Copy
Royalty Judges shall commence a proceeding to establish the ini
administrative assessment by publishing a notice in the Federal
ister seeking petitions to participate .

(II) The mechanical licensing collective and digital licensee coo
dinator shall participate in the proceeding described in subclaus
along with any interested copyright owners, digital music provid
or significant nonblanket licensees that have notified the Copyrig
Royalty Judges of their desire to participate .

(III) The Copyright Royalty Judges shall establish a schedule fo
submission by the parties of information that may be relevant t
establishing the administrative assessment, including actual and
ticipated collective total costs of the mechanical licensing collect
actual and anticipated collections from digital music providers a
significant nonblanket licensees, and documentation of voluntar
contributions, as well as a schedule for further proceedings, whic
shall include a hearing, as the Copyright Royalty Judges determi
appropriate .

(IV) The initial administrative assessment shall be determined
such determination shall be published in the Federal Register by
Copyright Royalty Judges, not later than 1 year after commencer
of the proceeding described in this clause . The determination sh
supported by a written record . The initial administrative assessm
shall be effective as of the license availability date, and shall con
in effect unless and until an adjusted administrative assessmen
established pursuant to an adjustment proceeding under clause

(iv) Adjustment of administrative assessment.—The admin-
istrative assessment may be adjusted by the Copyright Royalty Jud
periodically, in accordance with the following procedures:

(I) Not earlier than 1 year after the most recent publication of
a determination of the administrative assessment by the Copyrig
Royalty Judges, the mechanical licensing collective, the digital lic
coordinator, or one or more interested copyright owners, digital
sic providers, or significant nonblanket licensees, may file a petit
with the Copyright Royalty Judges in the month of May to comme
a proceeding to adjust the administrative assessment .

(II) Notice of the commencement of such proceeding shall be
published in the Federal Register in the month of June following t
filing of any petition, with a schedule of requested information a
additional proceedings, as described in clause (iii)(III). The mech
cal licensing collective and digital licensee coordinator shall part
pate in such proceeding, along with any interested copyright ow
digital music providers, or significant nonblanket licensees that h
notified the Copyright Royalty Judges of their desire to participat

(III) The determination of the adjusted administrative assessm
which shall be supported by a written record, shall be published
Federal Register during June of the calendar year following the c
mencement of the proceeding . The adjusted administrative ass
ment shall take effect January 1 of the year following such public

(v) Adoption of voluntary agreements.—In lieu of reach-
ing their own determination based on evaluation of relevant data, t

Copyright Royalty Judges shall approve and adopt a negotiated agr
ment to establish the amount and terms of the administrative asse
ment that has been agreed to by the mechanical licensing collecti
and the digital licensee coordinator (or if none has been designate
interested digital music providers and significant nonblanket licens
representing more than half of the market for uses of musical work
covered activities), except that the Copyright Royalty Judges shall
the discretion to reject any such agreement for good cause shown
administrative assessment adopted under this clause shall apply to
digital music providers and significant nonblanket licensees engag
in covered activities during the period the administrative assessme
is in effect .

(vi) Continuing authority to amend.—The Copyright Royalty Judges shall retain continuing authority to amend a determination
an administrative assessment to correct technical or clerical errors
modify the terms of implementation, for good cause, with any suc
amendment to be published in the Federal Register .

(vii) Appeal of administrative assessment.—The determination of an administrative assessment by the Copyright Royalty Judg
shall be appealable, not later than 30 calendar days after publicati
the Federal Register, to the Court of Appeals for the District of Colu
Circuit by any party that fully participated in the proceeding . The a
ministrative assessment as established by the Copyright Royalty Ju
shall remain in effect pending the final outcome of any such appea
the mechanical licensing collective, digital licensee coordinator, dig
music providers, and significant nonblanket licensees shall implem
appropriate financial or other measures not later than 90 days afte
modification of the assessment to reflect and account for such outc

(viii) Regulations.—The Copyright Royalty Judges may adopt regulations to govern the conduct of proceedings under this paragr

(8) Establishment of rates and terms under blanket license.—

(A) Restrictions on ratesetting participation . —Neither the mechanical licensing collective nor the digital licensee coordinator s
be a party to a proceeding described in subsection (c)(1)(E), except
the mechanical licensing collective or the digital licensee coordinator
gather and provide financial and other information for the use of a pa
to such a proceeding and comply with requests for information as rec
under applicable statutory and regulatory provisions and rulings of t
Copyright Royalty Judges .

(B) Application of late fees.—In any proceeding described in subparagraph (A) in which the Copyright Royalty Judges establish a late

for late payment of royalties for uses of musical works under this sec
such fee shall apply to covered activities under blanket licenses, as f

(i) Late fees for past due royalty payments shall accrue from the
date for payment until payment is received by the mechanical lice
collective .

(ii) The availability of late fees shall in no way prevent a copyrigh
owner or the mechanical licensing collective from asserting any ot
rights or remedies to which such copyright owner or the mechanic
licensing collective may be entitled under this title .

(C) Interim rate agreements in general.—For any covered ac-
tivity for which no rate or terms have been established by the Copyri
Royalty Judges, the mechanical licensing collective and any digital m
provider may agree to an interim rate and terms for such activity unc
blanket license, and any such rate and terms—

(i) shall be treated as nonprecedential and not cited or relied up
any ratesetting proceeding before the Copyright Royalty Judges or
other tribunal; and

(ii) shall automatically expire upon the establishment of a rate a
terms for such covered activity by the Copyright Royalty Judges, u
subsection (c)(1)(E) .

(D) Adjustments for interim rates.—The rate and terms estab-
lished by the Copyright Royalty Judges for a covered activity to which
interim rate and terms have been agreed under subparagraph (C) sha
persede the interim rate and terms and apply retroactively to the inc
of the activity under the blanket license . In such case, not later than
after the effective date of the rate and terms established by the Copy
Royalty Judges—

(i) if the rate established by the Copyright Royalty Judges excee
the interim rate, the digital music provider shall pay to the mechan
licensing collective the amount of any underpayment of royalties d

(ii) if the interim rate exceeds the rate established by the Copyri
Royalty Judges, the mechanical licensing collective shall credit the
count of the digital music provider for the amount of any overpaym
of royalties due .

(9) Transition to blanket licenses.—

(A) Substitution of blanket license.—On the license availability
date, a blanket license shall, without any interruption in license autho
enjoyed by such digital music provider, be automatically substituted
supersede any existing compulsory license previously obtained unde
section by the digital music provider from a copyright owner to engag
in 1 or more covered activities with respect to a musical work, except
such substitution shall not apply to any authority obtained from a rec

company pursuant to a compulsory license to make and distribute p
manent downloads unless and until such record company terminates
authority in writing to take effect at the end of a monthly reporting p
with a copy to the mechanical licensing collective .

(B) Expiration of existing licenses. —Except to the extent pro-
vided in subparagraph (A), on and after the license availability date, l
other than individual download licenses obtained under this section
covered activities prior to the license availability date shall no longer
tinue in effect .

(C) Treatment of voluntary licenses. —A voluntary license for
a covered activity in effect on the license availability date will remai
effect unless and until the voluntary license expires according to the
of the voluntary license, or the parties agree to amend or terminate
voluntary license . In a case where a voluntary license for a covered a
entered into before the license availability date incorporates the term
this section by reference, the terms so incorporated (but not the rate
be those in effect immediately prior to the license availability date, a
those terms shall continue to apply unless and until such voluntary li
is terminated or amended, or the parties enter into a new voluntary l

(D) Further acceptance of notices for covered activities by
copyright office .—On and after the enactment date—

(i) the Copyright Office shall no longer accept notices of intentio
with respect to covered activities; and

(ii) notices of intention filed before the enactment date will no lo
be effective or provide license authority with respect to covered ac
except that, before the license availability date, there shall be no li
under section 501 for the reproduction or distribution of a musical
(or share thereof) in covered activities if a valid notice of intention
filed for such work (or share) before the enactment date .

(10) Prior unlicensed uses. —

(A) Limitation on liability in general .—A copyright owner that
commences an action under section 501 on or after January 1, 2018,
digital music provider for the infringement of the exclusive rights pro
by paragraph (1) or (3) of section 106 arising from the unauthorized r
duction or distribution of a musical work by such digital music provid
the course of engaging in covered activities prior to the license availa
date, shall, as the copyright owner's sole and exclusive remedy agai
digital music provider, be eligible to recover the royalty prescribed u
subsection (c)(1)(C) and chapter 8, from the digital music provider, p
vided that such digital music provider can demonstrate compliance w
the requirements of subparagraph (B), as applicable . In all other cas
limitation on liability under this subparagraph shall not apply .

(B)Requirements for limitation on liability .—The following requirements shall apply on the enactment date and through the end the period that expires 90 days after the license availability date to d music providers seeking to avail themselves of the limitation on liabil described in subparagraph (A):

(i) Not later than 30 calendar days after first making a particula sound recording of a musical work available through its service vi one or more covered activities, or 30 calendar days after the enact date, whichever occurs later, a digital music provider shall engage good-faith, commercially reasonable efforts to identify and locate e copyright owner of such musical work (or share thereof) . Such req matching efforts shall include the following:

(I) Good-faith, commercially reasonable efforts to obtain from owner of the corresponding sound recording made available thro the digital music provider's service the following information:

(aa) Sound recording name, featured artist, sound recordin copyright owner, producer, international standard recording c and other information commonly used in the industry to iden- tify sound recordings and match them to the musical works th embody .

(bb) Any available musical work ownership information, in- cluding each songwriter and publisher name, percentage own ship share, and international standard musical work code .

(II) Employment of 1 or more bulk electronic matching process that are available to the digital music provider through a third-pa vendor on commercially reasonable terms, except that a digital m provider may rely on its own bulk electronic matching process if process has capabilities comparable to or better than those avai from a third-party vendor on commercially reasonable terms .

(ii) The required matching efforts shall be repeated by the digita music provider not less than once per month for so long as the cop owner remains unidentified or has not been located .

(iii) If the required matching efforts are successful in ident and locating a copyright owner of a musical work (or share thereo by the end of the calendar month in which the digital music provid first makes use of the work, the digital music provider shall provid statements of account and pay royalties to such copyright owner in cordance with this section and applicable regulations .

(iv) If the copyright owner is not identified or located by the end the calendar month in which the digital music provider first makes of the work, the digital music provider shall accrue and hold royalti calculated under the applicable statutory rate in accordance with u

of the work, from initial use of the work until the accrued royalties
be paid to the copyright owner or are required to be transferred to
mechanical licensing collective, as follows:

(I) Accrued royalties shall be maintained by the digital music p
vider in accordance with generally accepted accounting principle

(II) If a copyright owner of an unmatched musical work (or sha
thereof) is identified and located by or to the digital music provid
before the license availability date, the digital music provider sh

(aa) not later than 45 calendar days after the end of the cal
dar month during which the copyright owner was identified an
located, pay the copyright owner all accrued royalties, such pa
ment to be accompanied by a cumulative statement of accou
that includes all of the information that would have been pro
vided to the copyright owner had the digital music provider be
providing monthly statements of account to the copyright own
from initial use of the work in accordance with this section and
applicable regulations, including the requisite certification und
subsection (c)(2)(I);

(bb) beginning with the accounting period following the cal
endar month in which the copyright owner was identified and
located, and for all other accounting periods prior to the licens
availability date, provide monthly statements of account and p
royalties to the copyright owner as required under this section
applicable regulations; and

(cc) beginning with the monthly royalty reporting period com
mencing on the license availability date, report usage and pay
alties for such musical work (or share thereof) for such reporti
period and reporting periods thereafter to the mechanical licen
ing collective, as required under this subsection and applicab
regulations .

(III) If a copyright owner of an unmatched musical work (or sha
thereof) is not identified and located by the license availability d
the digital music provider shall—

(aa) not later than 45 calendar days after the license availab
date, transfer all accrued royalties to the mechanical licensing
lective, such payment to be accompanied by a cumulative sta
ment of account that includes all of the information that would
have been provided to the copyright owner had the digital mu
sic provider been serving monthly statements of account on th
copyright owner from initial use of the work in accordance wit
this section and applicable regulations, including the requisite
certification under subsection (c)(2)(I), and accompanied by a

additional certification by a duly authorized officer of the digit
music provider that the digital music provider has fulfilled the
requirements of clauses (i) and (ii) of subparagraph (B) but ha
been successful in locating or identifying the copyright owner;
(bb) beginning with the monthly royalty reporting period co
mencing on the license availability date, report usage and pay
alties for such musical work (or share thereof) for such period
reporting periods thereafter to the mechanical licensing collec
as required under this subsection and applicable regulations .
(v) A digital music provider that complies with the requirements
this subparagraph with respect to unmatched musical works (or sh
of works) shall not be liable for or accrue late fees for late payment
royalties for such works until such time as the digital music provide
required to begin paying monthly royalties to the copyright owner
the mechanical licensing collective, as applicable .
(C) **Adjusted statute of limitations.**—Notwithstanding anything
to the contrary in section 507(b), with respect to any claim of infringe
of the exclusive rights provided by paragraphs (1) and (3) of section
against a digital music provider arising from the unauthorized reprod
tion or distribution of a musical work by such digital music provider in
course of engaging in covered activities that accrued not more than 3
prior to the license availability date, such action may be commenced
later than the later of—
(i) 3 years after the date on which the claim accrued; or
(ii) 2 years after the license availability date .
(D) **Other rights and remedies preserved.**—Except as expressly
provided in this paragraph, nothing in this paragraph shall be constru
alter, limit, or negate any right or remedy of a copyright owner with r
to unauthorized use of a musical work .
(11) **Legal protections for licensing activities.**—
(A) **Exemption for compulsory license activities.**—The anti-
trust exemption described in subsection (c)(1)(D) shall apply to nego
tions and agreements between and among copyright owners and per
entitled to obtain a compulsory license for covered activities, and cor
agents acting on behalf of such copyright owners or persons, includin
respect to the administrative assessment established under this subs
(B) **Limitation on common agent exemption.**—Notwithstanding
the antitrust exemption provided in subsection (c)(1)(D) and subpara
(A) of this paragraph (except for the administrative assessment refer
in such subparagraph (A) and except as provided in paragraph (8)(C)
ther the mechanical licensing collective nor the digital licensee coord

shall serve as a common agent with respect to the establishment of r
rates or terms under this section .

(C)Antitrust exemption for administrative activities—Not-
withstanding any provision of the antitrust laws, copyright owners ar
persons entitled to obtain a compulsory license under this section ma
ignate the mechanical licensing collective to administer voluntary lice
for the reproduction or distribution of musical works in covered activi
on behalf of such copyright owners and persons, subject to the follow
conditions:

(i) Each copyright owner shall establish the royalty rates and ma
terms of any such voluntary license individually and not in agreem
combination, or concert with any other copyright owner .

(ii) Each person entitled to obtain a compulsory license under thi
section shall establish the royalty rates and material terms of any s
voluntary license individually and not in agreement, combination,
concert with any other digital music provider .

(iii) The mechanical licensing collective shall maintain the confid
ality of the voluntary licenses in accordance with the confidentiality
visions prescribed by the Register of Copyrights under paragraph (

(D)Liability for good-faith activities .—The mechanical licens-
ing collective shall not be liable to any person or entity based on a cl
arising from its good-faith administration of policies and procedures a
opted and implemented to carry out the responsibilities described in
paragraphs (J) and (K) of paragraph (3), except to the extent of corre
an underpayment or overpayment of royalties as provided in paragra
(3)(L)(i)(VI), but the collective may participate in a legal proceeding a
stakeholder party if the collective is holding funds that are the subjec
dispute between copyright owners . For purposes of this subparagrap
term "good-faith administration" means administration in a manner t
is not grossly negligent .

(E)Preemption of state property laws.—The holding and distri-
bution of funds by the mechanical licensing collective in accordance
this subsection shall supersede and preempt any State law (including
mon law) concerning escheatment or abandoned property, or any an
gous provision, that might otherwise apply .

(F) Rule of construction . —Except as expressly provided in thi
subsection, nothing in this subsection shall negate or limit the ability
any person to pursue an action in Federal court against the mechan
licensing collective or any other person based upon a claim arising u
this title or other applicable law .

(12)Regulations.—

(A) Adoption by register of copyrights and copyright royalty judges.—The Register of Copyrights may conduct such proceedin and adopt such regulations as may be necessary or appropriate to ef the provisions of this subsection, except for regulations concerning p ceedings before the Copyright Royalty Judges to establish the admini tive assessment, which shall be adopted by the Copyright Royalty Juc

(B) Judicial review of regulations .—Except as provided in paragraph (7)(D)(vii), regulations adopted under this subsection shall be s to judicial review pursuant to chapter 7 of title 5 .

(C) Protection of confidential information .—The Register of Copyrights shall adopt regulations to provide for the appropriate pro dures to ensure that confidential, private, proprietary, or privileged in mation contained in the records of the mechanical licensing collective digital licensee coordinator is not improperly disclosed or used, inclu through any disclosure or use by the board of directors or personnel either entity, and specifically including the unclaimed royalties oversi committee and the dispute resolution committee of the mechanical li ing collective .

(13) Savings clauses.—

(A) Limitation on activities and rights covered.—This subsection applies solely to uses of musical works subject to licensing under section . The blanket license shall not be construed to extend or appl activities other than covered activities or to rights other than the exc rights of reproduction and distribution licensed under this section, or or act as the basis to extend or expand the compulsory license under section to activities and rights not covered by this section on the day the enactment date .

(B) Rights of public performance not affected.—The rights, protections, and immunities granted under this subsection, the data c cerning musical works collected and made available under this subse and the definitions under subsection (e) shall not extend to, limit, or o erwise affect any right of public performance in a musical work .

(e) Definitions .—As used in this section:

(1) Accrued interest .—The term “accrued interest” means interest ac crued on accrued royalties, as described in subsection (d)(3)(H)(ii) .

(2) Accrued royalties .—The term “accrued royalties” means royalties accrued for the reproduction or distribution of a musical work (or share of) in a covered activity, calculated in accordance with the applicable ro rate under this section .

(3) Administrative assessment.—The term “administrative assessment” means the fee established pursuant to subsection (d)(7)(D) .

(4)Audit .—The term “audit” means a royalty compliance examinatio
verify the accuracy of royalty payments, or the conduct of such an exa
tion, as applicable .

(5)Blanket license.—The term “blanket license” means a compulsory
license described in subsection (d)(1)(A) to engage in covered activities

(6)Collective total costs .—The term “collective total costs”—

(A) means the total costs of establishing, maintaining, and operati
mechanical licensing collective to fulfill its statutory functions, includ

(i) startup costs;

(ii) financing, legal, audit, and insurance costs;

(iii) investments in information technology, infrastructure, and o
long-term resources;

(iv) outside vendor costs;

(v) costs of licensing, royalty administration, and enforcement c
rights;

(vi) costs of bad debt; and

(vii) costs of automated and manual efforts to identify and locat
copyright owners of musical works (and shares of such musical wo
and match sound recordings to the musical works the sound recor
embody; and

(B) does not include any added costs incurred by the mechanical li
ing collective to provide services under voluntary licenses .

(7)Covered activity . —The term “covered activity” means the ac
ity of making a digital phonorecord delivery of a musical work, includin
the form of a permanent download, limited download, or interactive str
where such activity qualifies for a compulsory license under this sectio

(8)Digital music provider.—The term “digital music provider” means
a person (or persons operating under the authority of that person) that,
respect to a service engaged in covered activities—

(A) has a direct contractual, subscription, or other economic relatio
ship with end users of the service, or, if no such relationship with en
exists, exercises direct control over the provision of the service to en

(B) is able to fully report on any revenues and consideration gener
by the service; and

(C) is able to fully report on usage of sound recordings of musical w
by the service (or procure such reporting) .

(9)Digital licensee coordinator.—The term “digital licensee coordi-
nator” means the entity most recently designated pursuant to subsecti

(10)Digital phonorecord delivery.—The term “digital phonorecord
delivery” means each individual delivery of a phonorecord by digital tra
sion of a sound recording that results in a specifically identifiable repro
by or for any transmission recipient of a phonorecord of that sound rec

regardless of whether the digital transmission is also a public performa
the sound recording or any musical work embodied therein, and include
permanent download, a limited download, or an interactive stream . A d
phonorecord delivery does not result from a real-time, noninteractive s
scription transmission of a sound recording where no reproduction of t
sound recording or the musical work embodied therein is made from th
ception of the transmission through to its receipt by the transmission re
in order to make the sound recording audible . A digital phonorecord de
does not include the digital transmission of sounds accompanying a mo
picture or other audiovisual work as defined in section 101 .

(11) **Enactment date.**—The term "enactment date" means the date of t
enactment of the Musical Works Modernization Act .

(12) **Individual download license.**—The term "individual download license" means a compulsory license obtained by a record company to and distribute, or authorize the making and distribution of, permanent d loads embodying a specific individual musical work .

(13) **Interactive stream.**—The term "interactive stream" means a digita transmission of a sound recording of a musical work in the form of a str where the performance of the sound recording by means of such transm is not exempt under section 114(d)(1) and does not in itself, or as a res program in which it is included, qualify for statutory licensing under sec 114(d)(2) . An interactive stream is a digital phonorecord delivery .

(14) **Interested.**—The term "interested", as applied to a party seeking participate in a proceeding under subsection (d)(7)(D), is a party as to w the Copyright Royalty Judges have not determined that the party lacks nificant interest in such proceeding .

(15) **License availability date.**—The term "license availability date" means January 1 following the expiration of the 2-year period beginning the enactment date .

(16) **Limited download.**—The term "limited download" means a digital transmission of a sound recording of a musical work in the form of a do load, where such sound recording is accessible for listening only for a li amount of time or specified number of times .

(17) **Matched.**—The term "matched", as applied to a musical work (o share thereof), means that the copyright owner of such work (or share t has been identified and located .

(18) **Mechanical licensing collective.**—The term "mechanical licensing collective" means the entity most recently designated as such Register of Copyrights under subsection (d)(3) .

(19) **Mechanical licensing collective budget.**—The term "mechanical licensing collective budget" means a statement of the financial pos the mechanical licensing collective for a fiscal year or quarter thereof b

estimates of expenditures during the period and proposals for financing expenditures, including a calculation of the collective total costs .

(20) Musical works database. —The term "musical works database" means the database described in subsection (d)(3)(E) .

(21) Nonprofit .—The term "nonprofit" means a nonprofit created or organized in a State .

(22) Notice of license .—The term "notice of license" means a notice from a digital music provider provided under subsection (d)(2)(A) for purposes of obtaining a blanket license .

(23) Notice of nonblanket activity .—The term "notice of nonblanket activity" means a notice from a significant nonblanket licensee provided under subsection (d)(6)(A) for purposes of notifying the mechanical licensing collective that the licensee has been engaging in covered activities .

(24) Permanent download—The term "permanent download" means a digital transmission of a sound recording of a musical work in the form of a download, where such sound recording is accessible for listening without restriction as to the amount of time or number of times it may be accessed.

(25) Qualified auditor . —The term "qualified auditor" means an independent, certified public accountant with experience performing music royalty audits .

(26) Record company—The term "record company" means an entity that invests in, produces, and markets sound recordings of musical works and distributes such sound recordings for remuneration through multiple sales channels, including a corporate affiliate of such an entity engaged in distribution of sound recordings .

(27) Report of usage.—The term "report of usage" means a report reflecting an entity's usage of musical works in covered activities described in subsection (d)(4)(A) .

(28) Required matching efforts.—The term "required matching efforts" means efforts to identify and locate copyright owners of musical works as described in subsection (d)(10)(B)(i) .

(29) Service.—The term "service", as used in relation to covered activities, means any site, facility, or offering by or through which sound recordings or musical works are digitally transmitted to members of the public .

(30) Share .—The term "share", as applied to a musical work, means a fractional ownership interest in such work .

(31) Significant nonblanket licensee .—The term "significant nonblanket licensee"—

(A) means an entity, including a group of entities under common ownership or control that, acting under the authority of one or more volu licenses or individual download licenses, offers a service engaged in activities, and such entity or group of entities—

(i) is not currently operating under a blanket license and is not o
ligated to provide reports of usage reflecting covered activities un
subsection (d)(4)(A);

(ii) has a direct contractual, subscription, or other economic rela
ship with end users of the service or, if no such relationship with en
users exists, exercises direct control over the provision of the servi
end users; and

(iii) either—

(I) on any day in a calendar month, makes more than 5,000 di
ent sound recordings of musical works available through such se
or

(II) derives revenue or other consideration in connection with
such covered activities greater than $50,000 in a calendar mont
total revenue or other consideration greater than $500,000 durin
the preceding 12 calendar months; and

(B) does not include—

(i) an entity whose covered activity consists solely of free-to-the-
streams of segments of sound recordings of musical works that do
exceed 90 seconds in length, are offered only to facilitate a license
of musical works that is not a covered activity, and have no reven
directly attributable to such streams constituting the covered activ

(ii) a 'public broadcasting entity' as defined in section 118(f) .

(32) Songwriter .—The term "songwriter" means the author of all or pa
of a musical work, including a composer or lyricist .

(33) State.—The term "State" means each State of the United States,
District of Columbia, and each territory or possession of the United Stat

(34) Unclaimed accrued royalties.—The term "unclaimed accrued
royalties" means accrued royalties eligible for distribution under subsec
(d)(3)(J) .

(35) Unmatched.—The term "unmatched", as applied to a musical wor
(or share thereof), means that the copyright owner of such work (or sh
thereof) has not been identified or located .

(36) Voluntary license.—The term "voluntary license" means a license
for use of a musical work (or share thereof) other than a compulsory lic
obtained under this section .

## § 116 Negotiated licenses for public performances by means of coin-operated phonorecord players

(a) Applicability of Section.—This section applies to any nondramatic
musical work embodied in a phonorecord .

(b)Negotiated Licenses.—

(1)Authority for negotiations.—Any owners of copyright in works to which this section applies and any operators of coin-operated phonor players may negotiate and agree upon the terms and rates of royalty pa for the performance of such works and the proportionate division of fee among copyright owners, and may designate common agents to negot agree to, pay, or receive such royalty payments .

(2)Chapter 8 proceeding.—Parties not subject to such a negotiation may have the terms and rates and the division of fees described in para (1) determined in a proceeding in accordance with the provisions of cha

(c)License Agreements Superior to Determinations by Copyright Royalty Judges.—License agreements between one or more copyright owne and one or more operators of coin-operated phonorecord players, which negotiated in accordance with subsection (b), shall be given effect in lieu otherwise applicable determination by the Copyright Royalty Judges .

(d)Definitions.—As used in this section, the following terms mean the following:

(1) A "coin-operated phonorecord player" is a machine or device that

(A) is employed solely for the performance of nondramatic musica works by means of phonorecords upon being activated by the insertio coins, currency, tokens, or other monetary units or their equivalent;

(B) is located in an establishment making no direct or indirect char for admission;

(C) is accompanied by a list which is comprised of the titles of all th musical works available for performance on it, and is affixed to the pl record player or posted in the establishment in a prominent position it can be readily examined by the public; and

(D) affords a choice of works available for performance and permits choice to be made by the patrons of the establishment in which it is l

(2) An "operator" is any person who, alone or jointly with others—

(A) owns a coin-operated phonorecord player;

(B) has the power to make a coin-operated phonorecord player ava for placement in an establishment for purposes of public performance

(C) has the power to exercise primary control over the selection of musical works made available for public performance on a coin-opera phonorecord player .

## § 117 · Limitations on exclusive rights: Computer programs

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(a)Making of Additional Copy or Adaptation by Owner of Copy.—Notwithstanding the provisions of section 106, it is not an infringement fo

owner of a copy of a computer program to make or authorize the making
another copy or adaptation of that computer program provided:

(1) that such a new copy or adaptation is created as an essential step
utilization of the computer program in conjunction with a machine and
it is used in no other manner, or

(2) that such new copy or adaptation is for archival purposes only and
all archival copies are destroyed in the event that continued possession
computer program should cease to be rightful .

(b)Lease, Sale, or Other Transfer of Additional Copy or Adaptation .—Any exact copies prepared in accordance with the provisions of t
section may be leased, sold, or otherwise transferred, along with the copy
which such copies were prepared, only as part of the lease, sale, or other
of all rights in the program . Adaptations so prepared may be transferred
with the authorization of the copyright owner .

(c)Machine Maintenance or Repair.—Notwithstanding the provisions
of section 106, it is not an infringement for the owner or lessee of a mach
make or authorize the making of a copy of a computer program if such co
made solely by virtue of the activation of a machine that lawfully contain
authorized copy of the computer program, for purposes only of maintenan
repair of that machine, if—

(1) such new copy is used in no other manner and is destroyed imme
after the maintenance or repair is completed; and

(2) with respect to any computer program or part thereof that is not n
essary for that machine to be activated, such program or part thereof is
accessed or used other than to make such new copy by virtue of the ac
of the machine .

(d)Definitions.—For purposes of this section—

(1) the “maintenance” of a machine is the servicing of the machine in
to make it work in accordance with its original specifications and any ch
to those specifications authorized for that machine; and

(2) the “repair” of a machine is the restoring of the machine to the st
working in accordance with its original specifications and any changes t
specifications authorized for that machine .

## § 118 Scope of exclusive rights: Use of certain works in connection with noncommercial broadcasting

(a) The exclusive rights provided by section 106 shall, with respect to th
specified by subsection (b) and the activities specified by subsection (d), l
to the conditions and limitations prescribed by this section .

(b) Notwithstanding any provision of the antitrust laws, any owners of c
right in published nondramatic musical works and published pictorial, gra
and sculptural works and any public broadcasting entities, respectively, m
gotiate and agree upon the terms and rates of royalty payments and the p
tionate division of fees paid among various copyright owners, and may de
common agents to negotiate, agree to, pay, or receive payments .

(1) Any owner of copyright in a work specified in this subsection or a
public broadcasting entity may submit to the Copyright Royalty Judges
posed licenses covering such activities with respect to such works .

(2) License agreements voluntarily negotiated at any time between o
more copyright owners and one or more public broadcasting entities sh
be given effect in lieu of any determination by the Librarian of Congress
the Copyright Royalty Judges, if copies of such agreements are filed wit
Copyright Royalty Judges within 30 days of execution in accordance wit
lations that the Copyright Royalty Judges shall issue .

(3) Voluntary negotiation proceedings initiated pursuant to a petition
under section 804(a) for the purpose of determining a schedule of term
rates of royalty payments by public broadcasting entities to owners of c
right in works specified by this subsection and the proportionate divisi
of fees paid among various copyright owners shall cover the 5-year per
beginning on January 1 of the second year following the year in which th
petition is filed . The parties to each negotiation proceeding shall bear t
own costs .

(4) In the absence of license agreements negotiated under paragraph
or (3), the Copyright Royalty Judges shall, pursuant to chapter 8, condu
a proceeding to determine and publish in the Federal Register a sched
of rates and terms which, subject to paragraph (2), shall be binding on
owners of copyright in works specified by this subsection and public bro
casting entities, regardless of whether such copyright owners have subm
proposals to the Copyright Royalty Judges . In establishing such rates a
terms the Copyright Royalty Judges may consider the rates for compara
circumstances under voluntary license agreements negotiated as provi
paragraph (2) or (3) . The Copyright Royalty Judges shall also establish
ments by which copyright owners may receive reasonable notice of the
their works under this section, and under which records of such use sha
kept by public broadcasting entities .

(c) Subject to the terms of any voluntary license agreements that have
negotiated as provided by subsection (b)(2) or (3), a public broadcasting e
may, upon compliance with the provisions of this section, including the ra
and terms established by the Copyright Royalty Judges under subsection (
engage in the following activities with respect to published nondramatic m
works and published pictorial, graphic, and sculptural works:

(1) performance or display of a work by or in the course of a transmis
made by a noncommercial educational broadcast station referred to in
tion (f); and

(2) production of a transmission program, reproduction of copies or p
norecords of such a transmission program, and distribution of such copi
phonorecords, where such production, reproduction, or distribution is m
by a nonprofit institution or organization solely for the purpose of trans
sions specified in paragraph (1); and

(3) the making of reproductions by a governmental body or a nonpro
institution of a transmission program simultaneously with its transmiss
as specified in paragraph (1), and the performance or display of the co
of such program under the conditions specified by paragraph (1) of se
110, but only if the reproductions are used for performances or displays
period of no more than seven days from the date of the transmission sp
in paragraph (1), and are destroyed before or at the end of such perio
person supplying, in accordance with paragraph (2), a reproduction of
transmission program to governmental bodies or nonprofit institutions
under this paragraph shall have any liability as a result of failure of su
body or institution to destroy such reproduction: *Provided*, That it shal
have notified such body or institution of the requirement for such dest
tion pursuant to this paragraph: *And provided further*, That if such bod
institution itself fails to destroy such reproduction it shall be deemed to
infringed .

(d) Except as expressly provided in this subsection, this section shall ha
applicability to works other than those specified in subsection (b) . Owne
copyright in nondramatic literary works and public broadcasting entities n
during the course of voluntary negotiations, agree among themselves, res
as to the terms and rates of royalty payments without liability under the a
laws . Any such terms and rates of royalty payments shall be effective upo
with the Copyright Royalty Judges, in accordance with regulations that the
right Royalty Judges shall prescribe as provided in section 803(b)(6) .

(e) Nothing in this section shall be construed to permit, beyond the limi
fair use as provided by section 107, the unauthorized dramatization of a n
matic musical work, the production of a transmission program drawn to a
stantial extent from a published compilation of pictorial, graphic, or sculpt
works, or the unauthorized use of any portion of an audiovisual work .

(f) As used in this section, the term "public broadcasting entity" means
commercial educational broadcast station as defined in section 397 of titl
any nonprofit institution or organization engaged in the activities describe
paragraph (2) of subsection (c) .

## § 119 Limitations on exclusive rights: Secondary transmissions of distant television programming by satellite[56]

(a) Secondary Transmissions by Satellite Carriers.—

(1) Non-network stations.—Subject to the provisions of paragraphs (3), (4), and (6) of this subsection and section 114(d), secondary transm of a performance or display of a work embodied in a primary transmissi made by a non-network station shall be subject to statutory licensing u this section if the secondary transmission is made by a satellite carrier public for private home viewing or for viewing in a commercial establish with regard to secondary transmissions the satellite carrier is in compli with the rules, regulations, or authorizations of the Federal Communica Commission governing the carriage of television broadcast station signa the carrier makes a direct or indirect charge for each retransmission se each subscriber receiving the secondary transmission or to a distributo has contracted with the carrier for direct or indirect delivery of the seco transmission to the public for private home viewing or for viewing in a c mercial establishment.[57]

(2) Network stations.—

(A) In general.—Subject to the provisions of subparagraph (B) of th paragraph and paragraphs (3), (4), (5), and (6) of this subsection and tion 114(d), secondary transmissions of a performance or display of a embodied in a primary transmission made by a network station shall subject to statutory licensing under this section if the secondary tran sion is made by a satellite carrier to the public for private home view with regard to secondary transmissions the satellite carrier is in comp with the rules, regulations, or authorizations of the Federal Communi tions Commission governing the carriage of television broadcast stati signals, the carrier makes a direct or indirect charge for such retrans service to each subscriber receiving the secondary transmission, and carrier provides local-into-local service to all DMAs. Failure to reach a agreement with a network station to retransmit the signals of the sta shall not be construed to affect compliance with providing local-into-l service to all DMAs if the satellite carrier has the capability to retrans such signals when an agreement is reached.

(B) Secondary transmissions to unserved households.—

(i) In general.—The statutory license provided for in subparagrap (A) shall be limited to secondary transmissions of the signals of no than two network stations in a single day for each television netwo persons who reside in unserved households.

(ii) Short markets. —In the case of secondary transmissions
households located in short markets, subject to clause (i), the statu
license shall be further limited to secondary transmissions of only t
primary transmissions of network stations that embody the progra
ming of networks not offered on the primary stream or the multica
stream transmitted by any network station in that market .

(C) Submission of subscriber lists to networks.—

(i) Initial lists .—A satellite carrier that makes secondary transmi
sions of a primary transmission made by a network station pursua
subparagraph (A) shall, not later than 90 days after commencing s
secondary transmissions, submit to the network that owns or is aff
with the network station a list identifying (by name and address, in
ing street or rural route number, city, State, and 9-digit zip code)
subscribers to which the satellite carrier makes secondary transmi
of that primary transmission to subscribers in unserved household

(ii) Monthly lists .—After the submission of the initial lists under
clause (i), the satellite carrier shall, not later than the 15th of each
submit to the network a list, aggregated by designated market are
tifying (by name and address, including street or rural route numb
city, State, and 9-digit zip code) any persons who have been adde
dropped as subscribers under clause (i) since the last submission u
this subparagraph .

(iii) Use of subscriber information.—Subscriber information
submitted by a satellite carrier under this subparagraph may be u
only for purposes of monitoring compliance by the satellite carrier
this subsection .

(iv) Applicability .—The submission requirements of this subpara-
graph shall apply to a satellite carrier only if the network to which
submissions are to be made places on file with the Register of Cop
a document identifying the name and address of the person to wh
such submissions are to be made . The Register shall maintain for
inspection a file of all such documents .

(3) Noncompliance with reporting and payment requirements.—
Notwithstanding the provisions of paragraphs (1) and (2), the willful or
peated secondary transmission to the public by a satellite carrier of a p
transmission made by a non-network station or a network station and
bodying a performance or display of a work is actionable as an act of i
fringement under section 501, and is fully subject to the remedies provi
by sections 502 through 506, where the satellite carrier has not deposit
statement of account and royalty fee required by subsection (b), or has
to make the submissions to networks required by paragraph (2)(C) .

(4) Willful alterations . —Notwithstanding the provisions of paragraphs (1) and (2), the secondary transmission to the public by a satelli of a performance or display of a work embodied in a primary transmissi made by a non-network station or a network station is actionable as an infringement under section 501, and is fully subject to the remedies pro by sections 502 through 506 and section 510, if the content of the parti program in which the performance or display is embodied, or any comm advertising or station announcement transmitted by the primary transm during, or immediately before or after, the transmission of such progra any way willfully altered by the satellite carrier through changes, deleti additions, or is combined with programming from any other broadcast s

(5) Violation of territorial restrictions on statutory license for network stations .—

(A) Individual violations .—The willful or repeated secondary transmission by a satellite carrier of a primary transmission made by network station and embodying a performance or display of a work t subscriber who is not eligible to receive the transmission under this s is actionable as an act of infringement under section 501 and is fully to the remedies provided by sections 502 through 506, except that—

(i) no damages shall be awarded for such act of infringement if t satellite carrier took corrective action by promptly withdrawing ser from the ineligible subscriber, and

(ii) any statutory damages shall not exceed $250 for such subsc for each month during which the violation occurred .

(B) Pattern of violations .—If a satellite carrier engages in a willful or repeated pattern or practice of delivering a primary transmission r by a network station and embodying a performance or display of a w to subscribers who are not eligible to receive the transmission under section, then in addition to the remedies set forth in subparagraph (A

(i) if the pattern or practice has been carried out on a substantia tionwide basis, the court shall order a permanent injunction barring secondary transmission by the satellite carrier, for private home vi of the primary transmissions of any primary network station affiliat with the same network, and the court may order statutory damage not to exceed $2,500,000 for each 3-month period during which t pattern or practice was carried out; and

(ii) if the pattern or practice has been carried out on a local or r gional basis, the court shall order a permanent injunction barring t secondary transmission, for private home viewing in that locality o gion, by the satellite carrier of the primary transmissions of any pri network station affiliated with the same network, and the court m

order statutory damages of not to exceed $2,500,000 for each 6-m
period during which the pattern or practice was carried out .
The court shall direct one half of any statutory damages ordered unc
clause (i) to be deposited with the Register of Copyrights for distribut
copyright owners pursuant to subsection (b) . The Copyright Royalty J
shall issue regulations establishing procedures for distributing such fu
on a proportional basis, to copyright owners whose works were includ
the secondary transmissions that were the subject of the statutory da
(C) Previous subscribers excluded.—Subparagraphs (A) and (B)
do not apply to secondary transmissions by a satellite carrier to pers
who subscribed to receive such secondary transmissions from the sat
carrier or a distributor before November 16, 1988 .
(D) Burden of proof.—In any action brought under this paragraph,
the satellite carrier shall have the burden of proving that its secondar
mission of a primary transmission by a network station is to a subscri
who is eligible to receive the secondary transmission under this secti
(6) Discrimination by a satellite carrier .—Notwithstanding the
provisions of paragraph (1), the willful or repeated secondary transmiss
the public by a satellite carrier of a performance or display of a work em
in a primary transmission made by a non-network station or a network s
is actionable as an act of infringement under section 501, and is fully su
to the remedies provided by sections 502 through 506, if the satellite ca
unlawfully discriminates against a distributor .
(7) Geographic limitation on secondary transmissions.—The
statutory license created by this section shall apply only to secondary t
missions to households located in the United States .
(8) Service to recreational vehicles and commercial trucks.—
(A) Exemption.—
(i) In general .—For purposes of this subsection, and subject to
clauses (ii) and (iii), the term “unserved household” shall include—
(I) recreational vehicles as defined in regulations of the Secret
of Housing and Urban Development under section 3282 .8 of title
Code of Federal Regulations; and
(II) commercial trucks that qualify as commercial motor vehicl
under regulations of the Secretary of Transportation under sectio
383 .5 of title 49, Code of Federal Regulations .
(ii) Limitation . —Clause (i) shall apply only to a recreational
hicle or commercial truck if any satellite carrier that proposes to m
a secondary transmission of a network station to the operator of su
recreational vehicle or commercial truck complies with the docume
tion requirements under subparagraphs (B) and (C) .

(iii) Exclusion .—For purposes of this subparagraph, the terms "re
reational vehicle" and "commercial truck" shall not include any fix
dwelling, whether a mobile home or otherwise .

(B) Documentation requirements.—A recreational vehicle or com-
mercial truck shall be deemed to be an unserved household beginnin
days after the relevant satellite carrier provides to the network that c
is affiliated with the network station that will be secondarily transmitt
to the recreational vehicle or commercial truck the following docume

(i) Declaration .—A signed declaration by the operator of the rec-
reational vehicle or commercial truck that the satellite dish is perm
nently attached to the recreational vehicle or commercial truck, an
not be used to receive satellite programming at any fixed dwelling

(ii) Registration .—In the case of a recreational vehicle, a copy of
the current State vehicle registration for the recreational vehicle .

(iii) Registration and license.—In the case of a commercial
truck, a copy of—

(I) the current State vehicle registration for the truck; and

(II) a copy of a valid, current commercial driver's license, as d
fined in regulations of the Secretary of Transportation under sec
383 of title 49, Code of Federal Regulations, issued to the operat

(C) Updated documentation requirements.—If a satellite carrier
wishes to continue to make secondary transmissions to a recreationa
hicle or commercial truck for more than a 2-year period, that carrier s
provide each network, upon request, with updated documentation in
form described under subparagraph (B) during the 90 days before ex
tion of that 2-year period .

(9) Statutory license contingent on compliance with fcc rules
and remedial steps.—Notwithstanding any other provision of this section
the willful or repeated secondary transmission to the public by a satellit
rier of a primary transmission embodying a performance or display of a
made by a broadcast station licensed by the Federal Communications C
mission is actionable as an act of infringement under section 501, and i
subject to the remedies provided by sections 502 through 506, if, at the
of such transmission, the satellite carrier is not in compliance with the r
regulations, and authorizations of the Federal Communications Commis
concerning the carriage of television broadcast station signals .

(10) Restricted transmission of out-of-state distant network
signals into certain markets.—

(A) Out-of-state network affiliates.—Notwithstanding any
other provision of this title, the statutory license in this subsection a
subsection (b) shall not apply to any secondary transmission of the p
transmission of a network station located outside of the State of Alas

any subscriber in that State to whom the secondary transmission of primary transmission of a television station located in that State is m available by the satellite carrier pursuant to section 122 .

(B)Exception.—The limitation in subparagraph (A) shall not apply t the secondary transmission of the primary transmission of a digital si of a network station located outside of the State of Alaska if at the ti the secondary transmission is made, no television station licensed to munity in the State and affiliated with the same network makes prim transmissions of a digital signal .

(b)Deposit of Statements and Fees; Verification Procedures.—

(1)Deposits with the register of copyrights.—A satellite carrier whose secondary transmissions are subject to statutory licensing under tion (a) shall, on a semiannual basis, deposit with the Register of Copyr accordance with requirements that the Register shall prescribe by regu

(A) a statement of account, covering the preceding 6-month perio specifying the names and locations of all non-network and network s tions whose signals were retransmitted, at any time during that perio subscribers as described in subsections (a)(1) and (a)(2), the total nu of subscribers that received such retransmissions, and such other da the Register of Copyrights may from time to time prescribe by regula

(B) a royalty fee payable to copyright owners pursuant to paragra (4) for that 6-month period, computed by multiplying the total numbe of subscribers receiving each secondary transmission of a primary st or multicast stream of each non-network station or network station d ing each calendar year month by the appropriate rate in effect under subsection; and

(C) a filing fee, as determined by the Register of Copyrights pursua section 708(a) .

(2)Verification of accounts and fee payments.—The Register of Copyrights shall issue regulations to permit interested parties to verify audit the statements of account and royalty fees submitted by satellite under this subsection .

(3)Investment of fees.—The Register of Copyrights shall receive all fe (including the filing fee specified in paragraph (1)(c)) deposited under t tion and, after deducting the reasonable costs incurred by the Copyrigh under this section (other than the costs deducted under paragraph (5)), deposit the balance in the Treasury of the United States, in such manne Secretary of the Treasury directs . All funds held by the Secretary of the shall be invested in interest-bearing securities of the United States for distribution with interest by the Librarian of Congress as provided by th

(4)Persons to whom fees are distributed.—The royalty fees deposited under paragraph (3) shall, in accordance with the procedures provi

by paragraph (5), be distributed to those copyright owners whose works included in a secondary transmission made by a satellite carrier during plicable 6-month accounting period and who file a claim with the Copyr Royalty Judges under paragraph (5) .

(5) Procedures for distribution .—The royalty fees deposited under paragraph (3) shall be distributed in accordance with the following proc

(A) Filing of claims for fees .—During the month of July in each year, each person claiming to be entitled to statutory license fees fo ondary transmissions shall file a claim with the Copyright Royalty Jud in accordance with requirements that the Copyright Royalty Judges sh prescribe by regulation . For purposes of this paragraph, any claiman may agree among themselves as to the proportionate division of stat license fees among them, may lump their claims together and file th jointly or as a single claim, or may designate a common agent to rece payment on their behalf .

(B) Determination of controversy; distributions.—After the first day of August of each year, the Copyright Royalty Judges shall d termine whether there exists a controversy concerning the distributio royalty fees . If the Copyright Royalty Judges determine that no such versy exists, the Copyright Royalty Judges shall authorize the Librari Congress to proceed to distribute such fees to the copyright owners e to receive them, or to their designated agents, subject to the deducti reasonable administrative costs under this section . If the Copyright R Judges find the existence of a controversy, the Copyright Royalty Jud shall, pursuant to chapter 8 of this title, conduct a proceeding to dete the distribution of royalty fees .

(C) Withholding of fees during controversy.—During the pendency of any proceeding under this subsection, the Copyright Roy Judges shall have the discretion to authorize the Librarian of Congres proceed to distribute any amounts that are not in controversy .

(c) Adjustment of Royalty Fees.—

(1) Applicability and determination of royalty fees for signals.—

(A) Initial fee .—The appropriate fee for purposes of determining th royalty fee under subsection (b)(1)(B) for the secondary transmissio the primary transmissions of network stations and non-network statio shall be the appropriate fee set forth in part 258 of title 37, Code of F Regulations, as in effect on July 1, 2009, as modified under this parag

(B) Fee set by voluntary negotiation.—On or before June 1, 2010, the Copyright Royalty Judges shall cause to be published in the Fede Register of the initiation of voluntary negotiation proceedings for the pose of determining the royalty fee to be paid by satellite carriers for

secondary transmission of the primary transmission of network statio
and non-network stations under subsection (b)(1)(B) .

(C)Negotiations.—Satellite carriers, distributors, and copyright own
ers entitled to royalty fees under this section shall negotiate in good
an effort to reach a voluntary agreement or agreements for the paym
royalty fees . Any such satellite carriers, distributors and copyright ow
may at any time negotiate and agree to the royalty fee, and may des
common agents to negotiate, agree to, or pay such fees . If the partie
to identify common agents, the Copyright Royalty Judges shall do so,
requesting recommendations from the parties to the negotiation proc
ing . The parties to each negotiation proceeding shall bear the cost th

(D) Agreements binding on parties; filing of agreements; public notice.—

(i) Voluntary agreements; filing.—Voluntary agreements negotiated at any time in accordance with this paragraph shall be bin upon all satellite carriers, distributors, and copyright owners that a parties thereto . Copies of such agreements shall be filed with the right Office within 30 days after execution in accordance with regu tions that the Register of Copyrights shall prescribe .

(ii) Procedure for adoption of fees—

(I) Publication of notice .—Within 10 days after publication in the Federal Register of a notice of the initiation of voluntary n tiation proceedings, parties who have reached a voluntary agree may request that the royalty fees in that agreement be applied t satellite carriers, distributors, and copyright owners without conv ing a proceeding under subparagraph (F) .

(II) Public notice of fees .—Upon receiving a request under subclause (I), the Copyright Royalty Judges shall immediately pr public notice of the royalty fees from the voluntary agreement a afford parties an opportunity to state that they object to those fe

(III) Adoption of fees.—The Copyright Royalty Judges shall adopt the royalty fees from the voluntary agreement for all satel carriers, distributors, and copyright owners without convening th proceeding under subparagraph (F) unless a party with an intent participate in that proceeding and a significant interest in the o come of that proceeding objects under subclause (II) .

(E) Period agreement is in effect.—The obligation to pay the royalty fees established under a voluntary agreement which has beer with the Copyright Royalty Judges in accordance with this paragraph become effective on the date specified in the agreement and shall re effect, in accordance with the terms of the agreement until the subsc

for which the royalty is payable is no longer eligible to receive a seco
transmission pursuant to the license under this section.

(F) Fee set by copyright royalty judges proceeding.—

(i) Notice of initiation of the proceeding.—On or before September 1, 2010, the Copyright Royalty Judges shall cause notic be published in the Federal Register of the initiation of a proceedin the purpose of determining the royalty fees to be paid for the seco ary transmission of the primary transmissions of network stations a non-network stations under subsection (b)(1)(B) by satellite carrier distributors—

(I) in the absence of a voluntary agreement filed in accordanc with subparagraph (D) that establishes royalty fees to be paid by satellite carriers and distributors; or

(II) if an objection to the fees from a voluntary agreement sub mitted for adoption by the Copyright Royalty Judges to apply to a satellite carriers, distributors, and copyright owners is received u subparagraph (D) from a party with an intent to participate in th ceeding and a significant interest in the outcome of that proceed Such proceeding shall be conducted under chapter 8.

(ii) Establishment of royalty fees.—In determining royalty fees under this subparagraph, the Copyright Royalty Judges shall establ for the secondary transmissions of the primary transmissions of n work stations and non-network stations that most clearly represent fair market value of secondary transmissions, except that the Copy Royalty Judges shall adjust royalty fees to account for the obligati of the parties under any applicable voluntary agreement filed with Copyright Royalty Judges in accordance with subparagraph (D). In termining the fair market value, the Judges shall base their decisio economic, competitive, and programming information presented b parties, including—

(I) the competitive environment in which such programming is distributed, the cost of similar signals in similar private and com sory license marketplaces, and any special features and conditio the retransmission marketplace;

(II) the economic impact of such fees on copyright owners an satellite carriers; and

(III) the impact on the continued availability of secondary trans missions to the public.

(iii) Effective date for decision of copyright royalty judges.—The obligation to pay the royalty fees established under determination that is made by the Copyright Royalty Judges in a pr ceeding under this paragraph shall be effective as of January 1, 20

(iv) **Persons subject to royalty fees.**—The royalty fees referred to in clause (iii) shall be binding on all satellite carriers, distributors copyright owners, who are not party to a voluntary agreement filed the Copyright Office under subparagraph (D) .

(2) **Annual royalty fee adjustment.**—Effective January 1 of each year, the royalty fee payable under subsection (b)(1)(B) for the secondary tra sion of the primary transmissions of network stations and non-network tions shall be adjusted by the Copyright Royalty Judges to reflect any ch occurring in the cost of living as determined by the most recent Consum Price Index (for all consumers and for all items) published by the Secret Labor before December 1 of the preceding year . Notification of the adju fees shall be published in the Federal Register at least 25 days before Ja

(d) **Definitions .**—As used in this section—

(1) **Distributor .**—The term "distributor" means an entity that contract to distribute secondary transmissions from a satellite carrier and, either single channel or in a package with other programming, provides the se ary transmission either directly to individual subscribers or indirectly th other program distribution entities in accordance with the provisions of section .

(2) **Network station .**—The term "network station" means—

(A) a television station licensed by the Federal Communications Co mission, including any translator station or terrestrial satellite station rebroadcasts all or substantially all of the programming broadcast by work station, that is owned or operated by, or affiliated with, one or m of the television networks in the United States that offer an interconn program service on a regular basis for 15 or more hours per week to 25 of its affiliated television licensees in 10 or more States; or

(B) a noncommercial educational broadcast station (as defined in s tion 397 of the Communications Act of 1934) .

(3) **Primary network station.**—The term "primary network station" means a network station that broadcasts or rebroadcasts the basic prog ming service of a particular national network .

(4) **Primary transmission.**—The term "primary transmission" has the meaning given that term in section 111(f) of this title .

(5) **Private home viewing.**—The term "private home viewing" means the viewing, for private use in a household by means of satellite recep equipment that is operated by an individual in that household and that only such household, of a secondary transmission delivered by a satellit rier of a primary transmission of a television station licensed by the Fed Communications Commission .

(6) **Satellite carrier .**—The term "satellite carrier" means an enti that uses the facilities of a satellite or satellite service licensed by the F

Communications Commission and operates in the Fixed-Satellite Servic
der part 25 of title 47, Code of Federal Regulations, or the Direct Broad
Satellite Service under part 100 of title 47, Code of Federal Regulations
establish and operate a channel of communications for point-to-multipo
distribution of television station signals, and that owns or leases a capa
service on a satellite in order to provide such point-to-multipoint distrib
tion, except to the extent that such entity provides such distribution pu
to tariff under the Communications Act of 1934, other than for private h
viewing pursuant to this section .

(7) Secondary transmission.—The term "secondary transmission" has the meaning given that term in section 111(f) of this title .

(8) Subscriber; subscribe.—

(A) Subscriber.—The term "subscriber" means a person or entity th receives a secondary transmission service from a satellite carrier and a fee for the service, directly or indirectly, to the satellite carrier or t distributor .

(B) Subscribe.—The term "subscribe" means to elect to become a s scriber .

(9) Non-network station .—The term "non-network station" means a television station, other than a network station, licensed by the Federal munications Commission, that is secondarily transmitted by a satellite c

(10) Unserved household.—The term "unserved household", with respect to a particular television network, means a household that—

(A) is a subscriber to whom subsection (a)(8) applies; or

(B) is a subscriber located in a short market .

(11) Local market.—The term "local market" has the meaning given su term under section 122(j) .

(12) Commercial establishment.—The term "commercial establishment"—

(A) means an establishment used for commercial purposes, such a bar, restaurant, private office, fitness club, oil rig, retail store, bank o financial institution, supermarket, automobile or boat dealership, or a other establishment with a common business area; and

(B) does not include a multi-unit permanent or temporary dwelling where private home viewing occurs, such as a hotel, dormitory, hosp apartment, condominium, or prison .

(13) Multicast stream .—The term "multicast stream" means a digital stream containing programming and program-related material affiliated a television network, other than the primary stream .

(14) Primary stream.—The term "primary stream" means—

(A) the single digital stream of programming as to which a televisi broadcast station has the right to mandatory carriage with a satellite

under the rules of the Federal Communications Commission in effect
July 1, 2009; or

(B) if there is no stream described in subparagraph (A), then either

(i) the single digital stream of programming associated with the
work last transmitted by the station as an analog signal; or

(ii) if there is no stream described in clause (i), then the single di
stream of programming affiliated with the network that, as of July
2009, had been offered by the television broadcast station for the l
period of time .

(15) Local-into-local service to all dmas .—The term "local-into-
local service to all DMAs" has the meaning given such term in subsectio

(16) Short market.—The term "short market" means a local market in
which programming of one or more of the four most widely viewed telev
networks nationwide is not offered on either the primary stream or mult
stream transmitted by any network station in that market or is tempora
or permanently unavailable as a result of an act of god or other force m
event beyond the control of the carrier .

(e) Expedited Consideration by Justice Department of Voluntary Agreements to Provide Satellite Secondary Transmissions to Local Markets .—

(1) In general .—In a case in which no satellite carrier makes availabl
to subscribers located in a local market, as defined in section 122(j)(2)
secondary transmission into that market of a primary transmission of o
more television broadcast stations licensed by the Federal Communicat
Commission, and two or more satellite carriers request a business revie
in accordance with section 50 .6 of title 28, Code of Federal Regulations
effect on July 7, 2004), in order to assess the legality under the antitrus
of proposed business conduct to make or carry out an agreement to pro
such secondary transmission into such local market, the appropriate off
of the Department of Justice shall respond to the request no later than 9
after the date on which the request is received .

(2) Definition . —For purposes of this subsection, the term "antit
laws"—

(A) has the meaning given that term in subsection (a) of the first se
of the Clayton Act (15 U .S .C . 12(a)), except that such term includes
5 of the Federal Trade Commission Act (15 U .S .C . 45) to the extent
section 5 applies to unfair methods of competition; and

(B) includes any State law similar to the laws referred to in paragra

(f) Certain Waivers Granted to Providers of Local-into-Local Service to All DMAs.—

(1) Injunction waiver .—A court that issued an injunction pursuant to
subsection (a)(5)(B) before the date of the enactment of this subsection

waive such injunction if the court recognizes the entity against which th
junction was issued as a qualified carrier .

(2) Limited temporary waiver.—

(A) In general .—Upon a request made by a satellite carrier, a court that issued an injunction against such carrier under subsection (a)(5) fore the date of the enactment of this subsection shall waive such inj with respect to the statutory license provided under subsection (a)(2) extent necessary to allow such carrier to make secondary transmissi primary transmissions made by a network station to unserved housel located in short markets in which such carrier was not providing local vice pursuant to the license under section 122 as of December 31, 20

(B) Expiration of temporary waiver.—A temporary waiver of an injunction under subparagraph (A) shall expire after the end of the 1 day period beginning on the date such temporary waiver is issued un extended for good cause by the court making the temporary waiver .

(C) Failure to provide local-into-local service to all dmas.—

(i) Failure to act reasonably in good faith.—If the court issuing a temporary waiver under subparagraph (A) determines that satellite carrier that made the request for such waiver has failed to reasonably or has failed to make a good faith effort to provide local local service to all DMAs, such failure—

(I) is actionable as an act of infringement under section 501 a the court may in its discretion impose the remedies provided for sections 502 through 506 and subsection (a)(6)(B) of this section

(II) shall result in the termination of the waiver issued under su paragraph (A) .

(ii) Failure to provide local-into-local service.—If the court issuing a temporary waiver under subparagraph (A) determi that the satellite carrier that made the request for such waiver has to provide local-into-local service to all DMAs, but determines that carrier acted reasonably and in good faith, the court may in its disc impose financial penalties that reflect—

(I) the degree of control the carrier had over the circumstanc that resulted in the failure;

(II) the quality of the carrier's efforts to remedy the failure; an

(III) the severity and duration of any service interruption .

(D) Single temporary waiver available.—An entity may only receive one temporary waiver under this paragraph .

(E) Short market defined.—For purposes of this paragraph, the term "short market" means a local market in which programming of or more of the four most widely viewed television networks nationwi

measured on the date of the enactment of this subsection is not offe
the primary stream transmitted by any local television broadcast sta
(3)Establishment of qualified carrier recognition.—
(A)Statement of eligibility.—An entity seeking to be recognized as
a qualified carrier under this subsection shall file a statement of eligi
with the court that imposed the injunction . A statement of eligibility
include—
(i) an affidavit that the entity is providing local-into-local service
all DMAs;
(ii) a motion for a waiver of the injunction;
(iii) a motion that the court appoint a special master under Rule
of the Federal Rules of Civil Procedure;
(iv) an agreement by the carrier to pay all expenses incurred by
special master under paragraph (4)(B)(ii); and
(v) a certification issued pursuant to section 342(a) of Communi
tions Act of 1934 .
(B)Grant of recognition as a qualified carrier .—Upon re-
ceipt of a statement of eligibility, the court shall recognize the entity
qualified carrier and issue the waiver under paragraph (1) . Upon mo
pursuant to subparagraph (A)(iii), the court shall appoint a special ma
to conduct the examination and provide a report to the court as prov
in paragraph (4)(B) .
(C)Voluntary termination.—At any time, an entity recognized as
a qualified carrier may file a statement of voluntary termination with
court certifying that it no longer wishes to be recognized as a qualifie
rier . Upon receipt of such statement, the court shall reinstate the inj
waived under paragraph (1) .
(D)Loss of recognition prevents future recognition.—No
entity may be recognized as a qualified carrier if such entity had prev
been recognized as a qualified carrier and subsequently lost such rec
tion or voluntarily terminated such recognition under subparagraph (
(4)Qualified carrier obligations and compliance—
(A)Continuing obligations .—
(i)In general .—An entity recognized as a qualified carrier shall
continue to provide local-into-local service to all DMAs .
(ii)Cooperation with compliance examination.—An entity
recognized as a qualified carrier shall fully cooperate with the spe
master appointed by the court under paragraph (3)(B) in an exami
tion set forth in subparagraph (B) .
(B)Qualified carrier compliance examination.—
(i)Examination and report.—A special master appointed by the
court under paragraph (3)(B) shall conduct an examination of, and

a report on, the qualified carrier's compliance with the royalty payr
and household eligibility requirements of the license under this sec
The report shall address the qualified carrier's conduct during the p
beginning on the date on which the qualified carrier is recognized
such under paragraph (3)(B) and ending on April 30, 2012 .

(ii) Records of qualified carrier .—Beginning on the date that
is one year after the date on which the qualified carrier is recogniz
such under paragraph (3)(B), but not later than December 1, 2011,
qualified carrier shall provide the special master with all records t
the special master considers to be directly pertinent to the followi
requirements under this section:

(I) Proper calculation and payment of royalties under the statu
license under this section .

(II) Provision of service under this license to eligible subscriber
only .

(iii) Submission of report.—The special master shall file the re-
port required by clause (i) not later than July 24, 2012, with the cou
referred to in paragraph (1) that issued the injunction, and the cou
shall transmit a copy of the report to the Register of Copyrights, t
Committees on the Judiciary and on Energy and Commerce of the
House of Representatives, and the Committees on the Judiciary an
Commerce, Science, and Transportation of the Senate .

(iv) Evidence of infringement.—The special master shall include
in the report a statement of whether the examination by the specia
ter indicated that there is substantial evidence that a copyright hol
could bring a successful action under this section against the quali
carrier for infringement .

(v) Subsequent examination.—If the special master's report in-
cludes a statement that its examination indicated the existence of
stantial evidence that a copyright holder could bring a successful a
under this section against the qualified carrier for infringement, the
cial master shall, not later than 6 months after the report under cla
(i) is filed, initiate another examination of the qualified carrier's co
ance with the royalty payment and household eligibility requireme
the license under this section since the last report was filed under
(iii) . The special master shall file a report on the results of the exa
tion conducted under this clause with the court referred to in parag
(1) that issued the injunction, and the court shall transmit a copy t
Register of Copyrights, the Committees on the Judiciary and on Ene
and Commerce of the House of Representatives, and the Committe
on the Judiciary and on Commerce, Science, and Transportation of
Senate . The report shall include a statement described in clause (i

(vi) Compliance.—Upon motion filed by an aggrieved copyright owner, the court recognizing an entity as a qualified carrier shall te nate such designation upon finding that the entity has failed to coo ate with an examination required by this subparagraph .

(vii) Oversight .—During the period of time that the special maste is conducting an examination under this subparagraph, the Compt ler General shall monitor the degree to which the entity seeking to recognized or recognized as a qualified carrier under paragraph (3) complying with the special master's examination . The qualified ca shall make available to the Comptroller General all records and in viduals that the Comptroller General considers necessary to meet t Comptroller General's obligations under this clause . The Comptrol General shall report the results of the monitoring required by this c to the Committees on the Judiciary and on Energy and Commerce the House of Representatives and the Committees on the Judiciary on Commerce, Science, and Transportation of the Senate at interva not less than six months during such period .

(C) Affirmation .—A qualified carrier shall file an affidavit with the district court and the Register of Copyrights 30 months after such sta was granted stating that, to the best of the affiant's knowledge, it is i pliance with the requirements for a qualified carrier . The qualified ca shall attach to its affidavit copies of all reports or orders issued by th the special master, and the Comptroller General .

(D) Compliance determination.—Upon the motion of an aggrieved television broadcast station, the court recognizing an entity as a qual carrier may make a determination of whether the entity is providing into-local service to all DMAs .

(E) Pleading requirement .—In any motion brought under sub- paragraph (D), the party making such motion shall specify one or mo designated market areas (as such term is defined in section 122(j)(2 for which the failure to provide service is being alleged, and, for each designated market area, shall plead with particularity the circumstan the alleged failure .

(F) Burden of proof .—In any proceeding to make a determination under subparagraph (D), and with respect to a designated market are which failure to provide service is alleged, the entity recog-nized as a fied carrier shall have the burden of proving that the entity provided into-local service with a good quality satellite signal to at least 90 pe of the households in such designated market area (based on the mos census data released by the United States Census Bureau) at the tim place alleged .

(5) Failure to provide service—

(A)Penalties.—If the court recognizing an entity as a qualified carri finds that such entity has willfully failed to provide local-into-local ser to all DMAs, such finding shall result in the loss of recognition of the e as a qualified carrier and the termination of the waiver provided unc paragraph (1), and the court may, in its discretion—

(i) treat such failure as an act of infringement under section 501 subject such infringement to the remedies provided for in sections through 506 and subsection (a)(6)(B) of this section; and

(ii) impose a fine of not less than $250,000 and not more $5,000,000 .

(B) Exception for nonwillful violation . —If the court deter- mines that the failure to provide local-into-local service to all DMAs i nonwillful, the court may in its discretion impose financial penalties fo noncompliance that reflect—

(i) the degree of control the entity had over the circumstances th resulted in the failure;

(ii) the quality of the entity's efforts to remedy the failure and re service; and

(iii) the severity and duration of any service interruption .

(6)Penalties for violation of license .—A court that finds, under subsection (a)(6)(A), that an entity recognized as a qualified carrier has fully made a secondary transmission of a primary transmission made b network station and embodying a performance or display of a work to a scriber who is not eligible to receive the transmission under this section reinstate the injunction waived under paragraph (1), and the court may statutory damages of not more than $2,500,000 .

(7)Local-into-local service to all dmas defined.—For purposes of this subsection:

(A) In general . —An entity provides "local-into-local service to DMAs" if the entity provides local service in all designated market are such term is defined in section 122(j)(2)(C)) pursuant to the license u section 122, except for designated market areas where the entity is t rarily or permanently unable to provide local service as a result of an god or other force majeure event beyond the control of the entity .

(B)Household coverage—For purposes of subparagraph (A), an entity that makes available local-into-local service with a good quality ellite signal to at least 90 percent of the households in a designated m area based on the most recent census data released by the United S Census Bureau shall be considered to be providing local service to s designated market area .

(C) Good quality satellite signal defined .—The term “good quality satellite signal” has the meaning given such term under sect 342(e)(2) of Communications Act of 1934 .

## § 120 · Scope of exclusive rights in architectural works

(a) Pictorial Representations Permitted.—The copyright in an architectural work that has been constructed does not include the right to p the making, distributing, or public display of pictures, paintings, photogra or other pictorial representations of the work, if the building in which the is embodied is located in or ordinarily visible from a public place .

(b) Alterations to and Destruction of Buildings.—Notwithstanding the provisions of section 106(2), the owners of a building embodying an a tectural work may, without the consent of the author or copyright owner architectural work, make or authorize the making of alterations to such bu and destroy or authorize the destruction of such building .

## § 121 Limitations on exclusive rights: Reproduction for blind or other people with disabilities

(a) Notwithstanding the provisions of section 106, it is not an infringem of copyright for an authorized entity to reproduce or to distribute in the U States copies or phonorecords of a previously published literary work or previously published musical work that has been fixed in the form of text tation if such copies or phonorecords are reproduced or distributed in acc formats exclusively for use by eligible persons .

(b)(1) Copies or phonorecords to which this section applies shall—

(A) not be reproduced or distributed in the United States in a forma other than an accessible format exclusively for use by eligible person

(B) bear a notice that any further reproduction or distribution in a f mat other than an accessible format is an infringement; and

(C) include a copyright notice identifying the copyright owner and t date of the original publication .

(2) The provisions of this subsection shall not apply to standardized, or norm-referenced tests and related testing material, or to computer grams, except the portions thereof that are in conventional human lang (including descriptions of pictorial works) and displayed to users in the nary course of using the computer programs .

(c) Notwithstanding the provisions of section 106, it is not an infringem copyright for a publisher of print instructional materials for use in element

or secondary schools to create and distribute to the National Instructional
terials Access Center copies of the electronic files described in sections 61
(C), 613(a)(6), and section 674(e) of the Individuals with Disabilities Educa
Act that contain the contents of print instructional materials using the Nat
Instructional Material Accessibility Standard (as defined in section 674(e)(
that Act), if—

(1) the inclusion of the contents of such print instructional materials
required by any State educational agency or local educational agency;

(2) the publisher had the right to publish such print instructional mat
in print formats; and

(3) such copies are used solely for reproduction or distribution of the
tents of such print instructional materials in accessible formats .

(d) For purposes of this section, the term—

(1) "accessible format" means an alternative manner or form that gi
an eligible person access to the work when the copy or phonorecord in
accessible format is used exclusively by the eligible person to permit hi
to have access as feasibly and comfortably as a person without such dis
as described in paragraph (3);

(2) "authorized entity" means a nonprofit organization or a governm
agency that has a primary mission to provide specialized services relati
training, education, or adaptive reading or information access needs of
or other persons with disabilities;

(3) "eligible person" means an individual who, regardless of any othe
ability—

(A) is blind;

(B) has a visual impairment or perceptual or reading disability that
not be improved to give visual function substantially equivalent to th
of a person who has no such impairment or disability and so is unable
read printed works to substantially the same degree as a person with
impairment or disability; or

(C) is otherwise unable, through physical disability, to hold or mani
late a book or to focus or move the eyes to the extent that would be
mally acceptable for reading; and

(4) "print instructional materials" has the meaning given under secti
674(e)(3)(C) of the Individuals with Disabilities Education Act .

## §121A. Limitations on exclusive rights: reproduction for blind or other people with disabilities in Marrakesh Treaty countries

(a) Notwithstanding the provisions of sections 106 and 602, it is not an
fringement of copyright for an authorized entity, acting pursuant to this se

to export copies or phonorecords of a previously published literary work o
a previously published musical work that has been fixed in the form of tex
notation in accessible formats to another country when the exportation is
either to—

(1) an authorized entity located in a country that is a Party to the Mar
Treaty; or

(2) an eligible person in a country that is a Party to the Marrakesh Tre

if prior to the exportation of such copies or phonorecords, the authori
entity engaged in the exportation did not know or have reasonable grou
to know that the copies or phonorecords would be used other than by e
persons .

(b) Notwithstanding the provisions of sections 106 and 602, it is not an
fringement of copyright for an authorized entity or an eligible person, or s
one acting on behalf of an eligible person, acting pursuant to this section
import copies or phonorecords of a previously published literary work or
a previously published musical work that has been fixed in the form of tex
notation in accessible formats .

(c) In conducting activities under subsection (a) or (b), an authorized en
shall establish and follow its own practices, in keeping with its particular c
stances, to—

(1) establish that the persons the authorized entity serves are eligible
sons;

(2) limit to eligible persons and authorized entities the distribution of
cessible format copies by the authorized entity;

(3) discourage the reproduction and distribution of unauthorized copi

(4) maintain due care in, and records of, the handling of copies of wo
the authorized entity, while respecting the privacy of eligible persons o
equal basis with others; and

(5) facilitate effective cross-border exchange of accessible format cop
making publicly available—

(A) the titles of works for which the authorized entity has accessib
format copies or phonorecords and the specific accessible formats in
they are available; and

(B) information on the policies, practices, and authorized entity par
of the authorized entity for the cross-border exchange of accessible f
copies .

(d) Nothing in this section shall be construed to establish—

(1) a cause of action under this title; or

(2) a basis for regulation by any Federal agency .

(e) Nothing in this section shall be construed to limit the ability to engag
any activity otherwise permitted under this title .

(f) For purposes of this section—

(1) the terms “accessible format”, “authorized entity”, and “eligible p
have the meanings given those terms in section 121; and
(2) the term “Marrakesh Treaty” means the Marrakesh Treaty to Facil
Access to Published Works by Visually Impaired Persons and Persons w
Print Disabilities concluded at Marrakesh, Morocco, on June 28, 2013 .

## § 122 Limitations on exclusive rights: Secondary transmissions of local television programming by satellite

(a) Secondary Transmissions into Local Markets.
(1) Secondary transmissions of television broadcast stations within a local market.—A secondary transmission of a performance or display of a work embodied in a primary transmission of a television bro station into the station’s local market shall be subject to statutory licen under this section if—
(A) the secondary transmission is made by a satellite carrier to the
(B) with regard to secondary transmissions, the satellite carrier is compliance with the rules, regulations, or authorizations of the Fede Communications Commission governing the carriage of television bro cast station signals; and
(C) the satellite carrier makes a direct or indirect charge for the se ary transmission to—
(i) each subscriber receiving the secondary transmission; or
(ii) a distributor that has contracted with the satellite carrier for or indirect delivery of the secondary transmission to the public .
(2) Significantly viewed stations.—
(A) In general.—A secondary transmission of a performance or dis- play of a work embodied in a primary transmission of a television bro cast station to subscribers who receive secondary transmissions of pr transmissions under paragraph (1) shall be subject to statutory licen under this paragraph if the secondary transmission is of the primary t mission of a network station or a nonnetwork station to a subscriber w resides outside the station’s local market but within a community in w the signal has been determined by the Federal Communications Com sion to be significantly viewed in such community, pursuant to the ru regulations, and authorizations of the Federal Communications Comm sion in effect on April 15, 1976, applicable to determining with respec cable system whether signals are significantly viewed in a community
(B) Waiver.—A subscriber who is denied the secondary transmission the primary transmission of a network station or a non-network static der subparagraph (A) may request a waiver from such denial by subr

a request, through the subscriber's satellite carrier, to the network st
non-network station in the local market affiliated with the same netw
non-network where the subscriber is located . The network station or
network station shall accept or reject the subscriber's request for a w
within 30 days after receipt of the request . If the network station or
network station fails to accept or reject the subscriber's request for a
within that 30-day period, that network station or non-network statio
be deemed to agree to the waiver request .

(3)Secondary transmission of low power programming.

(A) In general.—Subject to subparagraphs (B) and (C), a secondary
transmission of a performance or display of a work embodied in a pri
transmission of a television broadcast station to subscribers who rec
secondary transmissions of primary transmissions under paragraph
shall be subject to statutory licensing under this paragraph if the sec
transmission is of the primary transmission of a television broadcast
that is licensed as a low power television station, to a subscriber who
within the same designated market area as the station that originates
transmission .

(B)No applicability to repeaters and translators.Secondary
transmissions provided for in subparagraph (A) shall not apply to any
power television station that retransmits the programs and signals of
other television station for more than 2 hours each day .

(C)No impact on other secondary transmissions obligations.
A satellite carrier that makes secondary transmissions of a primary tr
mission of a low power television station under a statutory license pr
under this section is not required, by reason of such secondary transm
sions, to make any other secondary transmissions .

(4) Special exceptions.—A secondary transmission of a performance or
display of a work embodied in a primary transmission of a television bro
cast station to subscribers who receive secondary transmissions of pri
transmissions under paragraph (1) shall, if the secondary transmission
by a satellite carrier that complies with the requirements of paragraph
subject to statutory licensing under this paragraph as follows:

(A)States with single full-power network station.In a State
in which there is licensed by the Federal Communications Commissio
single full-power station that was a network station on January 1, 199
statutory license provided for in this paragraph shall apply to the sec
transmission by a satellite carrier of the primary transmission of that
tion to any subscriber in a community that is located within that Stat
that is not within the first 50 television markets as listed in the regula
of the Commission as in effect on such date (47 C .F .R . 76 .51) .

(B) States with all network stations and non-network stations in same local market.—In a State in which all network stations and non-network stations licensed by the Federal Communications Commission within that State as of January 1, 1995, are assigned to the same local market and that local market does not encompass all counties of a State, the statutory license provided under this paragraph shall apply to secondary transmission by a satellite carrier of the primary transmissions of such station to all subscribers in the State who reside in a local market that is within the first 50 major television markets as listed in the regulations of the Commission as in effect on such date (section 76 .51 of title 47 Code of Federal Regulations) .

(C) Additional stations.—In the case of that State in which are located 4 counties that—

(i) on January 1, 2004, were in local markets principally comprised of counties in another State, and

(ii) had a combined total of 41,340 television households, according to the U .S . Television Household Estimates by Nielsen Media Research for 2004,

the statutory license provided under this paragraph shall apply to secondary transmissions by a satellite carrier to subscribers in any such county of the primary transmissions of any network station located in that State the satellite carrier was making such secondary transmissions to any subscribers in that county on January 1, 2004 .

(D) Certain additional stations.—If 2 adjacent counties in a single State are in a local market comprised principally of counties located in another State, the statutory license provided for in this paragraph shall apply to the secondary transmission by a satellite carrier to subscribers in the 2 counties of the primary transmissions of any network station located in the capital of the State in which such 2 counties are located, if—

(i) the 2 counties are located in a local market that is in the top 100 markets for the year 2003 according to Nielsen Media Research; and

(ii) the total number of television households in the 2 counties combined did not exceed 10,000 for the year 2003 according to Nielsen Media Research .

(E) Networks of noncommercial educational broadcast stations.—In the case of a system of three or more noncommercial educational broadcast stations licensed to a single State, public agency, or educational, or special purpose subdivision of a State, the statutory license provided for in this paragraph shall apply to the secondary transmission of the primary transmission of such system to any subscriber in any county or county equivalent within such State, if such subscriber is located in a designated market area that is not otherwise eligible to receive the seco

transmission of the primary transmission of a noncommercial educati
broadcast station located within the State pursuant to paragraph (1)

(5)Applicability of royalty rates and procedures.—The royalty rates and procedures under section 119(b) shall apply to the secondary missions to which the statutory license under paragraph (4) applies .

(b)Reporting Requirements.

(1)Initial lists. —A satellite carrier that makes secondary transmission of a primary transmission made by a network station under subsection shall, within 90 days after commencing such secondary transmissions, to the network that owns or is affiliated with the network station—

(A) a list identifying (by name in alphabetical order and street addr including county and 9-digit zip code) all subscribers to which the sat carrier makes secondary transmissions of that primary transmission u subsection (a);

(B) a separate list, aggregated by designated market area (by nam address, including street or rural route number, city, State, and 9-dig code), which shall indicate those subscribers being served pursuant t graph (2) of subsection (a) .

(2)Subsequent lists.—After the list is submitted under paragraph (1), the satellite carrier shall, on the 15th of each month, submit to the netw

(A) a list identifying (by name in alphabetical order and street addr including county and 9-digit zip code) any subscribers who have bee added or dropped as subscribers since the last submission under this section; and

(B) a separate list, aggregated by designated market area (by nam street address, including street or rural route number, city, State, and zip code), identifying those subscribers whose service pursuant to pa graph (2) of subsection (a) has been added or dropped since the last sion under this subsection .

(3)Use of subscriber information.—Subscriber information submitted by a satellite carrier under this subsection may be used only for the poses of monitoring compliance by the satellite carrier with this section

(4)Requirements of networks.—The submission requirements of this subsection shall apply to a satellite carrier only if the network to which submissions are to be made places on file with the Register of Copyrigh document identifying the name and address of the person to whom such missions are to be made . The Register of Copyrights shall maintain for inspection a file of all such documents .

(c)No Royalty Fee Required for Certain Secondary Transmissions.—A satellite carrier whose secondary transmissions are subject to statutory under paragraphs (1), (2), and (3) of subsection (a) shall have no royalty o for such secondary transmissions .

(d) Noncompliance with Reporting and Regulatory Requirements.—Notwithstanding subsection (a), the willful or repeated secondary transmis to the public by a satellite carrier into the local market of a television broa station of a primary transmission embodying a performance or display of made by that television broadcast station is actionable as an act of infring under section 501, and is fully subject to the remedies provided under sec 502 through 506, if the satellite carrier has not complied with the reportin quirements of subsection (b) or with the rules, regulations, and authorizat the Federal Communications Commission concerning the carriage of telev broadcast signals .

(e) Willful Alterations. —Notwithstanding subsection (a), the secondary transmission to the public by a satellite carrier into the local market of a t broadcast station of a performance or display of a work embodied in a pri transmission made by that television broadcast station is actionable as an infringement under section 501, and is fully subject to the remedies provi sections 502 through 506 and section 510, if the content of the particular in which the performance or display is embodied, or any commercial adve ing or station announcement transmitted by the primary transmitter durin immediately before or after, the transmission of such program, is in any w fully altered by the satellite carrier through changes, deletions, or addition combined with programming from any other broadcast signal .

(f) Violation of Territorial Restrictions on Statutory License for Television Broadcast Stations.—

(1) Individual violations. —The willful or repeated secondary transmission to the public by a satellite carrier of a primary transmission em ing a performance or display of a work made by a television broadcast s to a subscriber who does not reside in that station's local market, and is subject to statutory licensing under section 119, subject to statutory lic by reason of paragraph (2)(A), (3), or (4) of subsection (a), or subject to vate licensing agreement, is actionable as an act of infringement under 501 and is fully subject to the remedies provided by sections 502 throug and 509, except that—

(A) no damages shall be awarded for such act of infringement if the ellite carrier took corrective action by promptly withdrawing service f the ineligible subscriber; and

(B) any statutory damages shall not exceed $250 for such subscrib each month during which the violation occurred .

(2) Pattern of violations. —If a satellite carrier engages in a willful or repeated pattern or practice of secondarily transmitting to the public a p transmission embodying a performance or display of a work made by a sion broadcast station to subscribers who do not reside in that station's market, and are not subject to statutory licensing under section 119, su

statutory licensing by reason of paragraph (2)(A), (3), or (4) of subsecti
or subject to a private licensing agreement, then in addition to the rem
under paragraph (1)—

(A) if the pattern or practice has been carried out on a substantial
nationwide basis, the court—

(i) shall order a permanent injunction barring the secondary tran
mission by the satellite carrier of the primary transmissions of that
vision broadcast station (and if such television broadcast station is
network station, all other television broadcast stations affiliated w
such network); and

(ii) may order statutory damages not exceeding $2,500,000 for e
6-month period during which the pattern or practice was carried ou

(B) if the pattern or practice has been carried out on a local or regi
basis with respect to more than one television broadcast station, the

(i) shall order a permanent injunction barring the secondary tran
mission in that locality or region by the satellite carrier of the prim
transmissions of any television broadcast station; and

(ii) may order statutory damages not exceeding $2,500,000 for e
6-month period during which the pattern or practice was carried ou

(g) Burden of Proof.—In any action brought under subsection (f), the satellite carrier shall have the burden of proving that its secondary transm of a primary transmission by a television broadcast station is made only t scribers located within that station's local market or subscribers being se compliance with section 119, paragraph (2)(A), (3), or (4) of subsection (a private licensing agreement .

(h) Geographic Limitations on Secondary Transmissions.—The statutory license created by this section shall apply to secondary transmis locations in the United States .

(i) Exclusivity with Respect to Secondary Transmissions of Broadcast Stations by Satellite to Members of the Public.—No provision of section 111 or any other law (other than this section and sectio shall be construed to contain any authorization, exemption, or license thr which secondary transmissions by satellite carriers of programming conta in a primary transmission made by a television broadcast station may be without obtaining the consent of the copyright owner .

(j) Definitions.—In this section—

(1) Distributor. —The term "distributor" means an entity that contracts to distribute secondary transmissions from a satellite carrier and, either single channel or in a package with other programming, provides the se ary transmission either directly to individual subscribers or indirectly th other program distribution entities .

(2) Local market.—

(A)In general.—The term “local market”, in the case of both comme
cial and noncommercial television broadcast stations, means the des
market area in which a station is located, and—

(i) in the case of a commercial television broadcast station, all co
mercial television broadcast stations licensed to a community wit
the same designated market area are within the same local marke

(ii) in the case of a noncommercial educational television broadc
station, the market includes any station that is licensed to a comm
within the same designated market area as the noncommercial edu
tional television broadcast station .

(B)County of license.—In addition to the area described in sub-
paragraph (A), a station’s local market includes the county in which
station’s community of license is located .

(C) Designated market area.—For purposes of subparagraph (A),
the term “designated market area” means a designated market area
determined by Nielsen Media Research and published in the 1999–20
Nielsen Station Index Directory and Nielsen Station Index United Stat
Television Household Estimates or any successor publication .

(D)Certain areas outside of any designated market area.—
Any census area, borough, or other area in the State of Alaska that is
of a designated market area, as determined by Nielsen Media Resear
be deemed to be part of one of the local markets in the State of Alask
satellite carrier may determine which local market in the State of Ala
will be deemed to be the relevant local market in connection with ea
subscriber in such census area, borough, or other area .

(E)Market determinations.—The local market of a commercial
television broadcast station may be modified by the Federal Commun
tions Commission in accordance with section 338(l) of the Communi
tions Act of 1934 (47 U .S .C . 338) .

(3)Low power television station.—The term “low power television
station” means a low power TV station as defined in section 74 .701(f) o
47, Code of Federal Regulations, as in effect on June 1, 2004 . For purpo
this paragraph, the term “low power television station” includes a low p
television station that has been accorded primary status as a Class A te
licensee under section 73 .6001(a) of title 47, Code of Federal Regulatio

(4)Network station; non-network station; satellite carrier; sec-
ondary transmission.—The terms “network station”, “non-network station
“satellite carrier”, and “secondary transmission” have the meanings giv
terms under section 119(d) .

(5)Noncommercial educational broadcast station.—The term
“noncommercial educational broadcast station” means a television broa
station that is a noncommercial educational broadcast station as define

section 397 of the Communications Act of 1934, as in effect on the dat
the enactment of the Satellite Television Extension and Localism Act of

(6)Subscriber.—The term "subscriber" means a person or entity that
receives a secondary transmission service from a satellite carrier and p
for the service, directly or indirectly, to the satellite carrier or to a distri

(7)Television broadcast station.—The term "television broadcast station"—

(A) means an over-the-air, commercial or noncommercial tele
broadcast station licensed by the Federal Communications Commiss
under subpart E of part 73 of title 47, Code of Federal Regulations, ex
that such term does not include a low-power or translator television s
and

(B) includes a television broadcast station licensed by an appropri
governmental authority of Canada or Mexico if the station broadcasts
marily in the English language and is a network station as defined in
119(d)(2)(A) .

## Chapter 1 · Notes

1 . In 1980, section 117 was amended in its entirety and given a new title . Howeve
of sections was not changed to reflect the new title . Pub . L . No . 96-517, 94 Stat .
In 1997, a technical amendment made that change . Pub . L . No . 105-80, 111 Stat

The Satellite Television Extension and Localism Act of 2010 Act amended the titl
section 111 by adding "of broadcast programming by cable ." Pub . L . No . 111-175
1231 . It amended the title for section 119 by substituting "distant television progra
by satellite" for "superstations and network stations for private home viewing ." *Id.*
1219 . The Act also amended the title for section 122 by deleting "by satellite carrie
local markets" from the title and inserting "of local television programming by satel
124 Stat . 1227 .

2 . The Audio Home Recording Act of 1992 amended section 101 by inserting "Ex
otherwise provided in this title," at the beginning of the first sentence . Pub . L . No
106 Stat . 4237, 4248 .

The Berne Convention Implementation Act of 1988 amended section 101 by addi
definition for "Berne Convention work ." Pub . L . No . 100-568, 102 Stat . 2853, 285
the Architectural Works Copyright Protection Act amended the definition of "Berne
vention work" by adding paragraph (5) . Pub . L . No . 101-650, 104 Stat . 5089, 51
Copyright and Performances and Phonograms Treaties Implementation Act of 1998
the definition of "Berne Convention work" from section 101 . Pub . L . No . 105-304,
2860, 2861 . The definition of "Berne Convention work," as deleted, is contained in

3 . In 1990, the Architectural Works Copyright Protection Act amended section 10
adding the definition for "architectural work ." Pub . L . No . 101-650, 104 Stat . 508
Act states that the definition is applicable to "any architectural work that, on the da

enactment of this Act, is unconstructed and embodied in unpublished plans or draw
except that protection for such architectural work under Title 17, *United States Co*
virtue of the amendments made by this title, shall terminate on December 31, 2002
the work is constructed by that date ."

4 . The Berne Convention Implementation Act of 1988 amended section 101 by a
definition of "Berne Convention ." Pub . L . No . 100-568, 102 Stat . 2853, 2854 .

5 . In 1980, the definition of "computer program" was added to section 101 and
the end . Pub . L . No . 96-517, 94 Stat . 3015, 3028 . The Intellectual Property and
ogy Technical Amendments Act of 2002 amended section 101 by moving the defini
computer program from the end of section 101 to be in alphabetical order, after "co
tion ." Pub . L . No . 107-273, 116 Stat . 1758, 1909 .

6 . The Copyright Royalty and Distribution Reform Act of 2004 amended section
adding the definition for "Copyright Royalty Judge ." That Act inserted the definition
wrong alphabetical order, placing it after "copies," instead of "copyright owner ." Pu
108-419, 118 Stat . 2341, 2361 . A technical correction in the Copyright Cleanup, Cl
and Corrections Act of 2010 put it after the definition for copyright owner . Pub . L .
295, 124 Stat . 3180, 3181 .

7 . The Digital Performance Right in Sound Recordings Act of 1995 amended sec
101 by adding the definition of "digital transmission ." Pub . L . No .104-39, 109 Sta

8 . The Fairness in Music Licensing Act of 1998 amended section 101 by adding t
tion of "establishment ." Pub . L . No . 105-298, 112 Stat . 2827, 2833 .

9 . In 1997, the No Electronic Theft (NET) Act amended section 101 by adding the defini-
tion for "financial gain ." Pub . L . No . 105-147, 111 Stat . 2678 .

10 . The Fairness in Music Licensing Act of 1998 amended section 101 by adding
nition for "food service or drinking establishment ." It inserted the definition in the
alphabetical order, placing it after "establishment" instead of "fixed ." Pub . L . No .
112 Stat . 2827, 2833 . A technical correction in the Copyright Cleanup, Clarificatio
Corrections Act of 2010 placed it after the definition for fixed . Pub . L . No . 111-29
3180, 3181 .

11 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio
Act of 1998 amended section 101 by adding the definition of "Geneva Phonograms
tion ." Pub . L . No . 105-304, 112 Stat . 2860, 2861 .

12 . The Fairness in Music Licensing Act of 1998 amended section 101 by adding
tion of "gross square feet of space ." Pub . L . No . 105-298, 112 Stat . 2827, 2833 .

13 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio
Act of 1998 requires that paragraph (5) of the definition of "international agreemen
effect upon entry into force of the WIPO Copyright Treaty with respect to the United States,
which occurred March 6, 2002 . Pub . L . No . 105-304, 112 Stat . 2860, 2877 .

14 . The WIPO Copyright and Performances and Phonograms Treaties Implementa
tion Act of 1998 requires that paragraph (6) of the definition of "international agre
take effect upon entry into force of the WIPO Performances and Phonograms Treaty with
respect to the United States, which occurred May 20, 2002 . Pub . L . No . 105-304,
2860, 2877 .

15 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 amended section 101 by adding the definition of “international agreem L . No . 105-304, 112 Stat . 2860, 2861 .

16 . The Artists’ Rights and Theft Prevention Act of 2005 amended section 101 by the definition for “motion picture exhibition facility .” That Act inserted the definitio wrong alphabetical order, placing it after “motion pictures,” instead of before . Pub 109-9, 119 Stat . 218, 220 . A technical correction in the Copyright Cleanup, Clarific Corrections Act of 2010 put it after the definition for “literary works .” Pub . L . No . 124 Stat . 3180, 3181 .

17 . The Fairness in Music Licensing Act of 1998 amended section 101 by adding tion of “performing rights society .” Pub . L . No . 105-298, 112 Stat . 2827, 2833 .

18 . The Berne Convention Implementation Act of 1988 amended the definition o rial, graphic, and sculptural works” by inserting “diagrams, models, and technical d including architectural plans” in the first sentence, in lieu of “technical drawings, di and models .” Pub . L . No . 100-568, 102 Stat . 2853, 2854 .

19 . The Fairness in Music Licensing Act of 1998 amended section 101 by adding nition of “proprietor .” Pub . L . No . 105-298, 112 Stat . 2827, 2833 . In 1999, a tec ment added the phrase “For purposes of section 513,” to the beginning of the defin “proprietor .” Pub . L . No . 106-44, 113 Stat . 221, 222 .

20 . The Copyright Renewal Act of 1992 amended section 101 by adding the defi “registration .” Pub . L . No . 102-307, 106 Stat . 264, 266 .

21 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 amended section 101 by adding the definition of “treaty party .” Pub . L 304, 112 Stat . 2860, 2861 .

22 . The Berne Convention Implementation Act of 1988 amended section 101 by the definition of “country of origin” of a Berne Convention work, for purposes of sec 411 . Pub . L . No . 100-568, 102 Stat . 2853, 2854 . The WIPO Copyright and Performances and Phonograms Treaties Implementation Act of 1998 amended that definition by chang to a definition for “United States work,” for purposes of section 411 . Pub . L . No . 1 Stat . 2860, 2861 . In 1999, a technical amendment moved the definition of “United work” to place it in alphabetical order, after the definition for “United States .” Pub 106-44, 113 Stat . 221, 222 .

23 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 amended section 101 by adding the definition of “WIPO Copyright Treaty .” Pub . L . No . 105-304, 112 Stat . 2860, 2861 . That definition is required to take effect up into force of the WIPO Copyright Treaty with respect to the United States, which occurr March 6, 2002 . Pub . L . No . 105-304, 112 Stat . 2860, 2877 .

24 . The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 amended section 101 by adding the definition of “WIPO Performances and Phonograms Treaty .” Pub . L . No . 105-304, 112 Stat . 2860, 2862 . That definition is r effect upon entry into force of the WIPO Performances and Phonograms Treaty with respect to the United States, which occurred May 20, 2002 . Pub . L . No . 105-304, 112 Sta

25 . The Visual Artists Rights Act of 1990 amended section 101 by adding the def of “work of visual art .” Pub . L . No . 101-650, 104 Stat . 5089, 5128 .

26 . The Satellite Home Viewer Improvement Act of 1999 amended the definition work made for hire" by inserting "as a sound recording" after "audiovisual work ." P 106-113, 113 Stat . 1501, app . I at 1501A-544 . The Work Made for Hire and Copyri tions Act of 2000 amended the definition of "work made for hire" by deleting "as a recording" after "audiovisual work ." Pub . L . No . 106-379, 114 Stat . 1444 . The A a second paragraph to part (2) of that definition . *Id* . These changes are effective r as of November 29, 1999 .

27 . The WIPO Copyright and Performances and Phonograms Treaties Implementati Act of 1998 amended section 101 by adding the definitions of "WTO Agreement" and "WTO member country," thereby transferring those definitions to section 101 from section Pub . L . No . 105-304, 112 Stat . 2860, 2862 . See also note 31, *infra* .

28 . In 1990, the Architectural Works Copyright Protection Act amended su 102(a) by adding at the end thereof paragraph (8) . Pub . L . No . 101-650, 104 Stat

29 . The Berne Convention Implementation Act of 1988 amended section 104(b) designating paragraph (4) as paragraph (5), by inserting after paragraph (3) a new (4), and by adding subsection (c) at the end . Pub . L . No . 100-568, 102 Stat . 2853 WIPO Copyright and Performances and Phonograms Treaties Implementation Act of amended section 104 as follows: 1) by amending subsection (b) to redesignate para (3) and (5) as (5) and (6), respectively, and by adding a new paragraph (3); 2) by a section 104(b), throughout; and 3) by adding section 104(d) . Pub . L . No . 105-304 2860, 2862 .

30 . The WIPO Copyright and Performances and Phonograms Treaties Implementati Act of 1998 requires that subsection (d), regarding the effect of phonograms treatie effect upon entry into force of the WIPO Performances and Phonograms Treaty with respect to the United States, which occurred May 20, 2002 . Pub . L . No . 105-304, 112 Sta

31 . In 1993, the North American Free Trade Agreement Implementation Act add tion 104A . Pub . L . No . 103-182, 107 Stat . 2057, 2115 . In 1994, the Uruguay Rou Act amended section 104A in its entirety with an amendment in the nature of a sub Pub . L . No . 103-465, 108 Stat . 4809, 4976 . On November 13, 1997, section 104A by replacing subsection (d)(3)(A), by striking the last sentence of subsection (e)(1)( by rewriting paragraphs (2) and (3) of subsection (h) . Pub . L . No . 105-80, 111 Sta The WIPO Copyright and Performances and Phonograms Treaties Implementation A 1998 amended section 104A by rewriting paragraphs (1) and (3) of subsection (h); subparagraph (E) to subsection (h)(6); and by amending subsection (h)(8)(B)(i) . Pu 105-304, 112 Stat . 2860, 2862 . That Act also deleted paragraph (9), thereby trans definitions for "WTO Agreement" and "WTO member country" from section 104A to sec- tion 101 . Pub . L . No . 105-304, 112 Stat . 2860, 2863 . See also note 27, *supra* .

32 . The WIPO Copyright and Performances and Phonograms Treaties Implementati Act of 1998 requires that subparagraph (C) of the definition of "date of adherence o lamation" take effect upon entry into force of the WIPO Copyright Treaty with respect to the United States, which occurred March 6, 2002 . Pub . L . No . 105-304, 112 Stat .

33 . The WIPO Copyright and Performances and Phonograms Treaties Implementati Act of 1998 requires that subparagraph (D) of the definition of "date of adherence o lamation" take effect upon entry into force of the WIPO Performances and Phonograms

Treaty with respect to the United States, which occurred May 20, 2002. Pub. L. No. 112 Stat. 2860, 2877.

34. The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 requires that subparagraph (C) of the definition of "eligible country" tak upon entry into force of the WIPO Copyright Treaty with respect to the United States, whic occurred March 6, 2002. Pub. L. No. 105-304, 112 Stat. 2860, 2877.

35. The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 requires that subparagraph (D) of the definition of "eligible country" tak upon entry into force of the WIPO Performance and Phonograms Treaty with respect to the United States, which occurred May 20, 2002. Pub. L. No. 105-304, 112 Stat. 286

36. The WIPO Copyright and Performances and Phonograms Treaties Implementatio Act of 1998 requires that subparagraph (E) of the definition of "restored work" take upon entry into force of the WIPO Performances and Phonograms Treaty with respect to the United States, which occurred May 20, 2002. Pub. L. No. 105-304, 112 Stat. 286

37. In 1968, the Standard Reference Data Act provided an exception to section 1 L. No. 90-396, 82 Stat. 339. Section 6 of that act amended Title 15 of the *United Sta Code* by authorizing the Secretary of Commerce, 15 U.S.C. 290e, to secure copyright and renewal thereof on behalf of the United States as author or proprietor "in all or any of any standard reference data which he prepares or makes available under this ch and to "authorize the reproduction and publication thereof by others." See also sec 105(f) of the Transitional and Supplementary Provisions of the Copyright Act of 197 Appendix A. Pub. L. No. 94-553, 90 Stat. 2541.

Concerning the liability of the United States Government for copyright infringeme also see *28 U.S.C.* 1498. Title 28 of the *United States Code* is entitled "Judiciary and Judi Procedure," included in the appendices to this volume.

In 2019, the National Defense Authorization Act of Fiscal Year 2020 amended sec 105 by adding "(a) IN GENERAL.—" before "Copyright"; and by adding new subsections (b) (c), and (c). Pub. L. No. 116-92, 133 Stat. 1198.

The James M. Inhofe National Defense Authorization Act for Fiscal Year 2023 ame section 105. Section 3514 of the Act corrected a stray word in the heading of subse changed wording in subsection (c), redesignated subsection (c) as subsection (d), a term as (M) in paragraph (2), and added sections (3) and (4). Meanwhile, section 63 the Act redesignated the second subsection (c) as subsection (d), replaced text in s (c), and added another term as (M) in the redesignated subsection (d). Pub. L. No. 1 136 Stat. 3068, 3504.

The Servicemember Quality of Life Improvement and National Defense Authoriza Act for Fiscal Year 2025 amended section 105. This technical amendment updated references in (c)(1); changed the heading of (c)(2) and amended the subsection's te subsections (c)(3) and (c)(4); changed "Post Graduate" to "Postgraduate" and rede subsection (M) as subsection (N) in subsection (d)(2); removed subsection (d)(3); an ignated subsection (d)(4) as (d)(3). Pub. L. No. 118-159, 138 Stat. 2518.

38. The Digital Performance Right in Sound Recordings Act of 1995 amended sec by adding paragraph (6). Pub. L. No. 104-39, 109 Stat. 336. In 1999, a technical am substituted "121" for "120." Pub. L. No. 106-44, 113 Stat. 221, 222. The Intellectua

High Technology Technical Amendments Act of 2002 amended section 106 by subs
sections “107 through 122” for “107 through 121 .” Pub . L . No . 107-273, 116 Stat

39 . The Visual Artists Rights Act of 1990 added section 106A . Pub . L . No . 101-
Stat . 5089, 5128 . The Act states that, generally, section 106A is to take effect 6 m
its date of enactment, December 1, 1990, and that the rights created by section 10
apply to (1) works created before such effective date but title to which has not, as o
fective date, been transferred from the author and (2) works created on or after suc
date, but shall not apply to any destruction, distortion, mutilation, or other modifica
(as described in section 106A(a)(3)) of any work which occurred before such effecti
See also, note 3, chapter 3 .

40 . The Visual Artists Rights Act of 1990 amended section 107 by adding the ref
section 106A . Pub . L . No . 101-650, 104 Stat . 5089, 5132 . In 1992, section 107 w
to add the last sentence . Pub . L . No . 102-492, 106 Stat . 3145 .

41 . The Copyright Amendments Act of 1992 amended section 108 by repealing s
(i) in its entirety . Pub . L . No . 102-307, 106 Stat . 264, 272 . In 1998, the Sonny Bo
Term Extension Act amended section 108 by redesignating subsection (h) as (i) and
a new subsection (h) . Pub . L . No . 105-298, 112 Stat . 2827, 2829 . Also in 1998, t
lennium Copyright Act amended section 108 by making changes in subsections (a),
(c) . Pub . L . No . 105-304, 112 Stat . 2860, 2889 .

In 2005, the Preservation of Orphan Works Act amended subsection 108(i) by ad
a reference to subsection (h) . It substituted “(b), (c), and (h)” for “(b) and (c) .” Pub
109-9, 119 Stat . 218, 226, 227 .

42 . The Record Rental Amendment of 1984 amended section 109 by redesignati
tions (b) and (c) as subsections (c) and (d), respectively, and by inserting a new sub
after subsection (a) . Pub . L . No . 98-450, 98 Stat . 1727 . Section 4(b) of the Act st
provisions of section 109(b), as added by section 2 of the Act, “shall not affect the r
an owner of a particular phonorecord of a sound recording, who acquired such own
before [October 4, 1984], to dispose of the possession of that particular phonorecor
after such date of enactment in any manner permitted by section 109 of title 17, *Un
Code*, as in effect on the day before the date of the enactment of this Act .” Pub . L
98 Stat . 1727, 1728 . Section 4(c) of the Act also states that the amendments “sha
rentals, leasings, lendings (or acts or practices in the nature of rentals, leasings, or
occurring after the date which is 13 years after [October 4, 1984] .” In 1988, the Re
Amendment Act of 1984 was amended to extend the time period in section 4(c) fro
to 13 years . Pub . L . No . 100-617, 102 Stat . 3194 . In 1993, the North American F
Agreement Implementation Act repealed section 4(c) of the Record Rental Amendm
1984 . Pub . L . No . 103-182, 107 Stat . 2057, 2114 . Also in 1988, technical amend
109(d) inserted “(c)” in lieu of “(b)” and substituted “copyright” in lieu of “coyright
No . 100-617, 102 Stat . 3194 .

The Computer Software Rental Amendments Act of 1990 amended section 109(
follows: 1) paragraphs (2) and (3) were redesignated as paragraphs (3) and (4), res
2) paragraph (1) was struck out and new paragraphs (1) and (2) were inserted in lie
and 3) paragraph (4), as redesignated, was amended in its entirety with a new para
inserted in lieu thereof . Pub . L . No . 101-650, 104 Stat . 5089, 5134 . The Act stat
109(b), as amended, “shall not affect the right of a person in possession of a particu

of a computer program, who acquired such copy before the date of the enactment
to dispose of the possession of that copy on or after such date of enactment in any
permitted by section 109 of title 17, *United States Code*, as in effect on the day bef
date of enactment ." The Act also states that the amendments made to section 109
not apply to rentals, leasings, or lendings (or acts or practices in the nature of renta
or lendings) occurring on or after October 1, 1997 ." However, this limitation, which
forth in the first sentence of section 804 (c) of the Computer Software Rental Amen
Act of 1990, at 104 Stat . 5136, was subsequently deleted in 1994 by the Uruguay R
ments Act . Pub . L . No . 103-465, 108 Stat . 4809, 4974 .

The Computer Software Rental Amendments Act of 1990 also amended section 1
adding at the end thereof subsection (e) . Pub . L . No . 101-650, 104 Stat . 5089, 5
states that the provisions contained in the new subsection (e) shall take effect 1 ye
its date of enactment . It was enacted on December 1, 1990 . The Act also states t
amendments so made "shall not apply to public performances or displays that occu
after October 1, 1995 ."

In 1994, the Uruguay Round Agreements Act amended section 109(a) by adding
second sentence, which begins with "Notwithstanding the preceding sentence ." Pu
103-465, 108 Stat . 4809, 4981 .

The Prioritizing Resources and Organization for Intellectual Property Act of
amended part (4) of subsection 109(b) by removing the reference to section 509 (w
repealed) . Pub . L . No . 110-403, 122 Stat . 4256, 4264 .

43 . In 1988, the Extension of Record Rental Amendment amended section 110 b
paragraph (10) . Pub . L . No . 97-366, 96 Stat . 1759 . In 1997, the Technical Correc
Satellite Home Viewer Act amended section 110 by inserting a semicolon in lieu of t
at the end of paragraph (8); by inserting "; and" in lieu of the period at the end of p
(9); and by inserting "(4)" in lieu of "4 above" in paragraph (10) . Pub . L . No . 105-
1529, 1534 . The Fairness in Music Licensing Act of 1998 amended section 110, in p
by adding subparagraph (B) and by making conforming amendments to subparagra
by adding the phrase "or of the audiovisual or other devices utilized in such perform
to paragraph 7; and by adding the last paragraph to section 110 that begins "The e
provided under paragraph (5) ." Pub . L . No . 105-298, 112 Stat . 2827, 2830 . In 19
cal amendment made corrections to conform paragraph designations that were affe
amendments previously made by the Fairness in Music Licensing Act of 1998 . Pub
106-44, 113 Stat . 221 . The Technology, Education, and Copyright Harmonization A
amended section 110 by substituting new language for paragraph 110(2) and by ad
the language at the end of section 110 that concerns paragraph 110(2) . Pub . L . N
116 Stat . 1758, 1910 .

The Family Movie Act of 2005 amended section 110 by adding paragraph (11) an
adding a new paragraph at the end of that section . Pub . L . No . 109-9, 119 Stat . 2

44 . Throughout section 111 the date of enactment of the Satellite Television and
ism Act of 2010 (STELA) is incorporated by reference. STELA was enacted on May 27, 2010 .
Pub . L . No . 111-175, 124 Stat . 1218 . There are also references to the date of ena
Copyright Act of 1976, which is October 19, 1976 . Pub . L . No . 94-553, 90 Stat . 25

In 1986, section 111(d) was amended by striking out paragraph (1) and by redes
paragraphs (2), (3), (4), and (5) as paragraphs (1), (2), (3), and (4), respectively . Pu

100 Stat . 848 . Also, in 1986, section 111(f) was amended by substituting "subsect
for "subsection (d)(2)" in the last sentence of the definition of "secondary transmiss
by adding a new sentence after the first sentence in the definition of "local service
primary transmitter ." Pub . L . No . 99-397, 100 Stat . 848 .

The Satellite Home Viewer Act of 1988 amended subsection 111(a) by striking "o
end of paragraph (3), by redesignating paragraph (4) as paragraph (5), and by inse
paragraph (4) . Pub . L . No . 100-667, 102 Stat . 3935, 3949 . That Act also amende
(A) by adding the second sentence, which begins with "In determining the total nun

The Copyright Royalty Tribunal Reform Act of 1993 amended section 111(d) by s
"Librarian of Congress" for "Copyright Royalty Tribunal" where appropriate, by inser
new sentence in lieu of the second and third sentences of paragraph (2), and, in pa
(4), by amending subparagraph (B) in its entirety . Pub . L . No . 103-198, 107 Stat .

The Satellite Home Viewer Act of 1994 amended section 111(f) by inserting "mic
after "wires, cables," in the paragraph relating to the definition of "cable system" a
serting new matter after "April 15, 1976," in the paragraph relating to the definitio
service area of a primary transmitter ." Pub . L . No . 103-369, 108 Stat . 3477, 348
provides that the amendment "relating to the definition of the local service area of
transmitter, shall take effect on July 1, 1994 ." *Id* .

In 1995, the Digital Performance in Sound Recordings Act amended section 111
by inserting "and section 114(d)" in the first sentence, after "of this subsection ." P
104-39, 109 Stat . 336, 348 .

The Satellite Home Viewer Improvement Act of 1999 amended section 111 by su
"statutory" for "compulsory" and "programming" for "programing," wherever they a
Pub . L . No . 106-113, 113 Stat . 1501, app . I at 1501A-543 . The Act also amende
and (b) by inserting "performance or display of a work embodied in a primary trans
sion" in lieu of "primary transmission embodying a performance or display of a wor
amended paragraph (1) of section 111(c) by inserting "a performance or display of
embodied in" after "by a cable system of" and by striking "and embodying a perfor
or display of a work ." It amended subparagraphs (3) and (4) of section 111(a) by in
performance or display of a work embodied in a primary transmission" in lieu of "a
transmission" and by striking "and embodying a performance or display of a work .

The Copyright Royalty and Distribution Reform Act of 2004 made amendments to
section 111(d) to conform it to revised chapter 8, substituting "Copyright Royalty Ju
"Librarian of Congress" where appropriate, along with making other conforming am
ments . Pub . L . No . 108-419, 118 Stat . 2341, 2361 . The Satellite Home Viewer Ex
Reauthorization Act of 2004 amended section 111 by deleting "for private home vie
subsections (a)(4) and (d)(1)(A) . Pub . L . No . 108-447, 118 Stat . 2809, 3393, 340

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend
section 111(d)(2) by substituting "upon authorization by the Copyright Royalty Judg
everything in the second sentence after "Librarian of Congress"; by substituting ne
for the second sentence of (4)(B); by making a technical correction in the last sente
(4)(B) to change "finds" to "find"; and by revising (4)(C) in its entirety . Pub . L . No
120 Stat . 1478, 1481 .

The Prioritizing Resources and Organization for Intellectual Property Act of
amended section 111 by deleting all references to section 509 (which was repealed
No . 110-403, 122 Stat . 4256, 4264 .

The Satellite Television Extension and Localism Act of 2010 amended subsection
by deleting subparagraphs (B) through (D) and replacing them with new subparagr
through (G); by amending paragraph 111(d)(2) to insert the parenthetical language
sentence; and by adding new paragraphs (5) through (7) . Pub . L . No . 111-175, 1
1232-35 . It amended subsection 111(f) by numbering the previously undesignated
and adding subtitles to them; by substituting new language for the definition for pri
transmissions; by amending the definition for local service area of a primary transm
substituting new provisions to define distant signal equivalent, network station, ind
station, and noncommercial educational station; and by adding definitions for prim
stream, primary transmitter, multicast stream, simulcast, subscriber, and subscribe
124 Stat . 1235-38 . The Act also added "of broadcast programming by cable" to th
title and made perfecting, technical, and clarifying amendments throughout sectio

The STELA Reauthorization Act of 2014 substantially amended the second senten
section 111(f)(4), which defines the "local service area of a primary transmitter" fo
television stations, and made technical corrections . Pub . L . No . 113-200, 128 Sta

45 . Royalty rates specified by the compulsory licensing provisions of this sectio
subject to adjustment by Copyright Royalty Judges appointed by the Librarian of Co
in accordance with the provisions of chapter 8 of Title 17, *United States Code*, as ar
the Copyright Royalty and Distribution Reform Act of 2004, Pub . L . No . 108-419, 1
2341 . See chapter 8, *infra* . Regulations for adjusting royalty rates may be found in
B of chapter 11, Title 37, *Code of Federal Regulations* .

46 . In 1998, the Digital Millennium Copyright Act amended section 112 by redes
subsection (a) as subsection (a)(1); by redesignating former sections (a)(1), (a)(2),
as subsections (a)(1)(A), (a)(1)(B), and (a)(1)(C), respectively; by adding subsection
by amending the language in new subsection (a)(1) . Pub . L . No . 105-304, 112 Sta
The Digital Millennium Copyright Act also amended section 112 by redesignating su
tion (e) as subsection (f) and adding a new subsection (e) . Pub . L . No . 105-304, 1
2899 . In 1999, a technical amendment to section 112(e) redesignated paragraphs
(10) as (2) through (9) and corrected the paragraph references throughout that sec
conform to those redesignations . Pub . L . No . 106-44, 113 Stat . 221 . The Techno
tion, and Copyright Harmonization Act of 2002 amended section 112 by redesignati
section 112(f) as 112(g) and adding a new paragraph (f) . Pub . L . No . 107-273, 11

The Copyright Royalty and Distribution Reform Act of 2004 amended subsection
to conform it to revised chapter 8, by substituting new language for the first senten
paragraphs (3) and (4); by deleting paragraph (6) and renumbering paragraphs (7)
(9) as (6) through (8); by changing references to the "Librarian of Congress" to "Co
Royalty Judges," with corresponding grammatical changes, throughout; and by stri
references to negotiations in paragraphs (3) and (4) along with making other confo
amendments . Pub . L . No . 108-419, 118 Stat . 2341, 2361 .

47 . The Visual Artists Rights Act of 1990 amended section 113 by adding subsec
at the end thereof . Pub . L . No . 101-650, 104 Stat . 5089, 5130 .

48 . The Digital Performance Right in Sound Recordings Act of 1995 amended sec as follows: 1) in subsection (a), by striking “and (3)” and inserting in lieu thereof “(3 2) in subsection (b) in the first sentence, by striking “phonorecords, or of copies of m pictures and other audiovisual works,” and inserting “phonorecords or copies”; and striking subsection (d) and inserting in lieu thereof new subsections (d), (e), (f), (g), and (j) . Pub . L . No . 104-39, 109 Stat . 336 . In 1997, subsection 114(f) was amend graph (1) by inserting all the text that appears after “December 31, 2000” and in pa by striking “and publish in the Federal Register .” Pub . L . No . 105-80, 111 Stat . 1

In 1998, the Digital Millennium Copyright Act amended section 114(d) by replacin graphs (1)(A) and (2) with amendments in the nature of substitutes . Pub . L . No . 1 Stat . 2860, 2890 . That Act also amended section 114(f) by revising the title; by re paragraph (1) as paragraph (1)(A); by adding paragraph (1)(B) in lieu of paragraphs (4), and (5); and by amending the language in newly designated paragraph (1)(A), i revising the effective date from December 31, 2000, to December 31, 2001 . Pub . L 304, 112 Stat . 2860, 2894 . The Digital Millennium Copyright Act also amended sub 114(g) by substituting “transmission” in lieu of “subscription transmission,” wherev pears and, in the first sentence in paragraph (g)(1), by substituting “transmission li under a statutory license” in lieu of “subscription transmission licensed .” Pub . L . N 112 Stat . 2860, 2897 . That Act also amended subsection 114(j) by redesignating p (3), (5), (6), (7), and (8) as (3), (5), (9), (12), (13), and (14), respectively; by amendi (4) and (9) in their entirety and redesignating them as paragraphs (7) and (15), res and by adding new definitions, including paragraph (2) defining “archived program graph (4) defining “continuous program,” paragraph (6) defining “eligible nonsubsc transmission,” paragraph (8) defining “new subscription service,” paragraph (10) de “preexisting satellite digital audio radio service,” and paragraph (11) defining “pree subscription service .” Pub . L . No . 105-304, 112 Stat . 2860, 2897 .

The Small Webcaster Settlement Act of 2002 amended section 114 by adding pa (5) to subsection 114(f), by amending paragraph 114(g)(2), and by adding paragrap (3) . Pub . L . No . 107-321, 116 Stat . 2780, 2781 and 2784 .

The Copyright Royalty and Distribution Reform Act of 2004 amended subsection 1 conform it to revised chapter 8, by substituting new language for the first sentence paragraphs (1)(A), (1)(B), (2)(A), and (2)(B); by substituting new language for subpa (1)(C) and (2)(C); by changing references to the “Librarian of Congress” in paragrap (3), and (4) to “Copyright Royalty Judges,” and making corresponding grammatical by striking references to negotiations in paragraphs (1), (2), (3), and (4) and replaci corresponding grammatical changes and conforming language; and by adding new at the end of subparagraph (4)(A) . Pub . L . No . 108-419, 118 Stat . 2341, 2362–23

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend section 114 by substituting new text after “proceedings are to be commenced” in th sentence in (f)(1)(A); by amending (2)(A) in its entirety; and by inserting “described last sentence of (2)(B) which repeats an amendment already made by the Copyrigh and Distribution Reform Act of 2004, Pub . L . No . 108 419, 118 Stat . 2341, 2364 . 109-303, 120 Stat . 1478, 1481–82 .

The Webcaster Settlement Act of 2008 amended part (5) of subsection 114(f) by “small” wherever it appears before “commercial webcasters .” Pub . L . No . 110-435

4974 . The Webcaster Settlement Act of 2008 also amended subpart (5)(A) by subst
"for a period of not more than 11 years beginning on January 1, 2005" for "during th
beginning on October 28, 1998, and ending on December 31, 2004," by substitutin
Copyright Royalty Judges" in place of references to the copyright arbitration royalty
and the Librarian of Congress and by changing "shall" to "may" at the beginning o
second sentence . *Id* . It amended subpart (5)(C) by adding a sentence at the end th
"This subparagraph shall not apply to the extent that the receiving agent and a web
is party to an agreement entered into pursuant to subparagraph (A) expressly auth
submission of the agreement in a proceeding under this subsection ." *Id* . It amende
(5)(D) by changing the reference in the first sentence from "the Small Webcaster Se
Act of 2002" to "the Webcaster Settlement Act of 2008" and by substituting "Copyr
alty Judges of May 1, 2007" for "Librarian of Congress of July 8, 2002 ." *Id* . It also a
subpart (5)(F) by substituting "February 15, 2009" for "December 15, 2002, except
spect to noncommercial webcasters for whom the authority shall expire May 31, 20

The Webcaster Settlement Act of 2009 amended section 114 by adding a refere
itself in the first sentence of subpart (f)(5)(D); by deleting this text: "to make eligibl
subscription transmissions and ephemeral recordings" at the end of subpart (f)(5)(E
and, in subpart (f)(5)(F), by changing the expiration to 11:59 p .m . on July 30, 2009
is 30 days after the Webcaster Settlement Act of 2009 was enacted on June 30, 200
No . 111-36, 123 Stat . 1926 .

A technical correction in the Copyright Cleanup, Clarification, and Corrections Act
2010 amended section 114(b) to change the reference from "section 118(g)" to "se
Pub . L . No . 111-295, 124 Stat . 3180, 3181 . It also amended subparagraph 114(f)
stituting "eligible nonsubscription services and new subscription services" for "pree
subscription digital audio transmission services or preexisting satellite digital radio
services ." *Id* .

In 2018, the Orrin G . Hatch–Bob Goodlatte Music Modernization Act amended se
tion 114(f) by replacing paragraph (1) in its entirety; deleting paragraph (2); redesi
paragraphs (3), (4), and (5) as paragraphs (2), (3), and (4), respectively; and, in par
(C), replacing "under paragraph (4)" with "under paragraph (3) ." Pub . L . No . 115
Stat . 3676, 3723–24, 25 . The Act amended section 114(g) by adding "(5)
(Treatment of sound recordings fixed before november 1, 1995 and "(7)
tion ."; "(6)
tion of state property laws." to the end of the section . Pub . L . No . 115-264, 132 S
3676, 3737–38, 3740 . Besides the changes described, the Act made technical and
amendments throughout section 114(g) . Pub . L . No . 115-264, 132 Stat . 3676, 37
also repealed section 114(i) . Pub . L . No . 115-264, 132 Stat . 3676, 3724 .

49 . In 2018, the Orrin G . Hatch–Bob Goodlatte Music Modernization Act repealed
section 114(i), but did not provide for re-lettering the subsequent subsection . Pub .
115-264, 132 Stat . 3676, 3724 .

50 . The Record Rental Amendment of 1984 amended section 115 by redesignati
graphs (3) and (4) of subsection (c) as paragraphs (4) and (5), respectively, and by
new paragraph (3) . Pub . L . No . 98-450, 98 Stat . 1727 .

The Digital Performance Right in Sound Recordings Act of 1995 amended section
as follows: 1) in the first sentence of subsection (a)(1), by striking "any other perso
inserting in lieu thereof "any other person, including those who make phonorecord

digital phonorecord deliveries,"; 2) in the second sentence of the same subsection
serting before the period "including by means of a digital phonorecord delivery"; 3)
second sentence of subsection (c)(2), by inserting "and other than as provided in pa
(3)," after "For this purpose,"; 4) by redesignating paragraphs (3), (4), and (5) of su
(c) as paragraphs (4), (5), and (6), respectively, and by inserting after paragraph (2
paragraph (3); and (5) by adding after subsection (c) a new subsection (d) . Pub . L
109 Stat . 336, 344 .

In 1997, section 115 was amended by striking "and publish in the Federal Regist
paragraph 115(c)(3)(D) . Pub . L . No . 105-80, 111 Stat . 1529, 1531 . The same leg
ed section 115(c)(3)(E) by replacing the phrases "sections 106(1) and (3)" and "sec
and 106(3)" with "paragraphs (1) and (3) of section 106 ." Pub . L . No . 105-80, 11

The Copyright Royalty and Distribution Reform Act of 2004 amended paragraph
(3) to conform it to revised chapter 8, by substituting new language for the first sen
subparagraphs (3)(C) and (3)(D); by changing references to the "Librarian of Congr
subparagraphs (3)(C), (3)(D), and (3)(E) to "Copyright Royalty Judges," with corresp
grammatical changes; by striking references to negotiations in subparagraphs (3)(C
(D) and making corresponding grammatical changes and conforming language; by
ing subparagraph (F); and by redesignating paragraphs (G) through (L) as paragrap
through (K) with corresponding technical changes in subparagraphs (A), (B), and (E
conform references to the subparagraphs subject to that redesignation . Pub . L . No
118 Stat . 2341, 2364–2365 . The Copyright Royalty and Distribution Act of 2004 als
the first sentence of subparagraph 115(c)(3)(B) by substituting "section" for "parag
by inserting "on a nonexclusive basis" after "common agents ." *Id* . at 2364 . It also
subparagraph 115(c)(3)(E) by inserting "as to digital phonorecord deliveries" after
given effect ." *Id.* at 2365 .

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend
115(c)(3)(B) by inserting "this subparagraph and subparagraphs (C) through (E)" in
"subparagraphs (B) through (F) ." The Act also amended the third sentence of 115(c
by inserting "in subparagraphs (B) and (C)" after "described"; and 115(c)(3)(E)(i) an
by substituting "(C) and (D)" for "(C) or (D)" wherever it appears . Pub . L . No . 109
Stat . 1478, 1482 .

The Prioritizing Resources and Organization for Intellectual Property Act of
amended subparts (3)(G)(i) and (6) of subsection 115(c) by removing the reference
tion 509 (which was repealed) . Pub . L . No . 110-403, 122 Stat . 4256, 4264 .

In 2018, the Orrin G . Hatch–Bob Goodlatte Music Modernization Act amended se
115(a) by inserting "General" after "Availability and Scope of Compulsory
License" in the subsection heading; replacing paragraph (1) in its entirety; and dele
compulsory license" and inserting "Musical arrangement.—A compulsory license" in
paragraph (2) . Pub . L . No . 115-264, 132 Stat . 3676, 3677–78 . The Act also amend
(b), (c), and (d) in their entirety by substituting new language and added a new sub
(e) . Pub . L . No . 115-264, 132 Stat . 3676, 3678–3721 .

51 . See note 46, *supra* .

52 . There was a minor drafting error for this text in the Prioritizing Resources an
ganization for Intellectual Property Act of 2008 . Pub . L . No . 110-403, 122 Stat . 4
To delete the reference to "and section 509," it deleted "and 509," thereby, technic

including the word “section” in the amendment . A technical amendment in the Cop
Cleanup, Clarification, and Corrections Act of 2010 corrected this error . Pub . L . No
124 Stat . 3180, 3181 .

53 . The Berne Convention Implementation Act of 1988 added section 116A . Pub
100-568, 102 Stat . 2853, 2855 . The Copyright Royalty Tribunal Reform Act of 199
nated section 116A as section 116; repealed the preexisting section 116; in the red
section 116, struck subsections (b), (e), (f), and (g), and redesignated subsections (
as subsections (b) and (c), respectively; and substituted, where appropriate, “Librar
Congress” or “copyright arbitration royalty panel” for “Copyright Royalty Tribunal .”
No . 103-198, 107 Stat . 2304, 2309 . In 1997, section 116 was amended by rewritin
(b)(2) and by adding a new subsection (d) . Pub . L . No . 105-80, 111 Stat . 1529, 1

The Copyright Royalty and Distribution Reform Act of 2004 amended section 116
conform it to revised chapter 8, by substituting new language for subsection (b)(2)
changing the title of subsection (c) to “License Agreements Superior to Determinati
Copyright Royalty Judges” from “License Agreements Superior to Copyright Arbitrat
Royalty Panel Determinations”; and, in subsection (c), by striking “copyright arbitra
royalty panel” and replacing it with “Copyright Royalty Judges .” Pub . L . No . 108-4
Stat . 2341, 2365 .

54 . In 1980, section 117 was amended in its entirety . Pub . L . No . 96-517, 94 S
In 1998, the Computer Maintenance Competition Assurance Act amended section 1
inserting headings for subsections (a) and (b) and by adding subsections (c) and (d
No . 105-304, 112 Stat . 2860, 2887 .

55 . The Copyright Royalty Tribunal Reform Act of 1993 amended section 118 by
the first two sentences of subsection (b), by substituting a new first sentence in par
(3), and by making general conforming amendments throughout . Pub . L . 103-198
2304, 2309 . In 1999, a technical amendment deleted paragraph (2) from section 1
L . No . 106-44, 113 Stat . 221, 222 . The Intellectual Property and High Technology
Amendments Act of 2002 amended section 118 by deleting “to it” in the second sen
subsection (b)(1) . Pub . L . No . 107-273, 116 Stat . 1758, 1909 .

The Copyright Royalty and Distribution Reform Act of 2004 amended section 118
conform it to revised chapter 8, by deleting the last sentence in paragraph (b)(1); b
paragraph (b)(2) by rewriting the end of sentence after “determination by the”; by
ing new language for the first sentence of paragraph (3), thereby, creating new par
and (4); by deleting subsection (c) and redesignating sections (d) through (g) as (c)
(f) with a corresponding technical change in section (f) to refer to “subsection (c)” i
“subsection (d)”; and by changing references to the “Librarian of Congress” in subse
and (d), as redesignated, to “Copyright Royalty Judges,” with corresponding gramm
procedural changes . Pub . L . No . 108-419, 118 Stat . 2341, 2365–2366 . The Copy
and Distribution Reform Act of 2004 also amended section 118 in text that became
second sentence of new subparagraph (4), see *supra*, by inserting “or (3)” after “pa
2”*Id.* at 2366 . It further amended subsection 118(c) by inserting “or (3)” after “pro
subsection (b)(2)” and by inserting “to the extent that they were accepted by the L
of Congress” after “under subsection (b)(3)” and before the comma . *Id* .

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend
subsection 118(b)(3) by inserting “owners of copyright in works” in lieu of “copyrigh

in works"; by amending the first sentence of (c); and by substituting "(f)" for "(g)" i
Pub . L . No . 109-303, 120 Stat . 1478, 1482 .

56 . The Satellite Home Viewer Act of 1988 added section 119 . Pub . L . No . 100-66
3935, 3949 . The Copyright Royalty Tribunal Reform Act of 1993 amended subsectio
and (c) of section 119 by substituting "Librarian of Congress" in lieu of "Copyright R
Tribunal" wherever it appeared and by making related conforming amendments . P
No . 103-198, 107 Stat . 2304, 2310 . The Copyright Royalty Tribunal Reform Act of
amended paragraph (c)(3) by deleting subparagraphs (B), (C), (E), and (F) and by re
nating subparagraph (D) as (B), (G) as (C), and (H) as (D) . The redesignated subpa
(C) was amended in its entirety and paragraph (c)(4) was deleted . *Id.*

The Satellite Home Viewer Act of 1994 further amended section 119 . Pub . L . No
108 Stat . 3477 . In 1997, technical corrections and clarifications were made to the
Home Viewer Act of 1994 . Pub . L . No . 105-80, 111 Stat . 1529 . Those two acts ar
119 as follows: 1) by deleting or replacing obsolete effective dates; 2) in subsection
adding subparagraph (D); 3) in subsection (a), by adding paragraphs (8), (9), and (1
subsection (b)(1)(B), by adjusting the royalty rate for retransmitted superstations; 5
section (c)(3), by replacing subparagraph (B) with an amendment in the nature of a
tute; 6) in subsections (d)(2) and (d)(6), by modifying the definition of "network sta
"satellite carrier"; and 7) in subsection (d), by adding paragraph 11 to define "local

Pursuant to section 4 of the Satellite Home Viewer Act of 1994, the changes mad
that Act to section 119 of the *United States Code* ceased to be effective on Decemb
Pub . L . No . 103-369, 108 Stat . 3477, 3481 . However, section 1003 of the Satellit
Improvement Act of 1999 extended that date to December 31, 2004 . Pub . L . No .
Stat . 1501, app . I at 1501A-527 .

The Digital Performance Right in Sound Recordings Act of 1995 amended section
in the first sentence of subsections (a)(1) and (a)(2)(A), respectively, by inserting th
"and section 114(d)" after "of this subsection ." Pub . L . No . 104-39, 109 Stat . 336
a technical amendment substituted "network station's" for "network's stations" in s
119(a)(8)(C)(ii) . Pub . L . No . 106-44, 113 Stat . 221, 222 .

The Satellite Home Viewer Improvement Act of 1999 amended section 119(a)(1) a
1) by inserting "and PBS satellite feed" after "Superstations" in the paragraph head
inserting "performance or display of a work embodied in a primary transmission m
by a superstation or by the Public Broadcasting Service satellite feed" in lieu of "pri
transmission made by a superstation and embodying a performance or display of a
(see this note, *infra*); and 3) by adding the last sentence, which begins "In the case
Public Broadcasting Service ." Pub . L . No . 106-113, 113 Stat . 1501, app . I at 150
543 . The Act states that these amendments shall be effective as of July 1, 1999, ex
portion of the second item, starting with "performance or display" through "superst
Pub . L . No . 106-113, 113 Stat . 1501, app . I at 1501A-544 . The Act also amended
by inserting the phrase "with regard to secondary transmissions the satellite carrier
compliance with the rules, regulations, or authorization of the Federal Communicati
Commission governing the carriage of television broadcast stations signals" in para
and (2) and by inserting into paragraph (2), "a performance or display of a work em
a primary transmission made by a network station" in lieu of "programming contain
primary transmission made by a network station and embodying a performance or

of a work ." *Id.* at 1501A-531 and 544 . The Act amended section 119(a)(2) by subs language for paragraph (B) and, in paragraph (C), by deleting "currently" after "the carrier" near the end of the first sentence . *Id* . at 1501A-528 and 544 . It also amer 119(a)(4) by inserting "a performance or display of a work embodied in" after "by a carrier of" and by deleting "and embodying a performance or display of a work ." *I* 1501A-544 . The Satellite Home Viewer Improvement Act of 1999 further amended 119(a) by adding subparagraph (E) to paragraph (5) . *Id* . at 1501A-528 . It amende 119(a)(6) by inserting "performance or display of a work embodied in" after "by a s carrier of" and by deleting "and embodying a performance or display of a work ." *Id* Act also amended section 119(a) by adding paragraphs (11) and (12) . *Id* . at 1501A

The Satellite Home Viewer Improvement Act of 1999 amended section 119(b)(1) serting "or the Public Broadcasting Service satellite feed" into subparagraph (B) . *Id* 530 . The Act amended section 119(c) by adding a new paragraph (4) . *Id* . at 1501A Act amended section 119(d) by substituting new language for paragraphs (9) throu by adding paragraph (12) . *Id* . at 1501A-527, 530, and 531 . The Act substituted ne for section 119(e) . *Id* . at 1501A-529 .

The Intellectual Property and High Technology Technical Amendments Act of 20 amended section 119(a)(6) by substituting "of a performance" for "of performance No . 107-273, 116 Stat . 1758, 1909 . The Act also amended section 119(b)(1)(A) by "retransmitted" and "retransmissions" for "transmitted" and "transmitted," respecti paragraph (1)(A) . *Id* .

The Copyright Royalty and Distribution Reform Act of 2004 amended section 119 conform it to revised chapter 8 by changing references to the "Librarian of Congres subsections (b) and (c) to "Copyright Royalty Judges," with corresponding grammat adjustments and procedural references; by substituting new language for subpara (b)(4)(B) and (C); by deleting the term "arbitration" wherever it appears with "proce along with corresponding grammatical adjustments; by amending the title of subpa 119(c)(3)(C) to insert "Determination under Chapter 8" in lieu of "Decision of Arbitr Panel or Order of Librarian"; and, also, in subparagraph (c)(3)(C), by substituting ne guage for clauses (i) and (ii) . Pub . L . No . 108-419, 118 Stat . 2341, 2364–2365 .

The Satellite Home Viewer Extension and Reauthorization Act of 2004 amended p graph 119(a)(1) by deleting "PBS satellite feed" from the title; by deleting "or by the Pub Broadcasting Service satellite feed" from the first sentence; by deleting the last se which concerned Public Broadcasting Service satellite feed; by inserting "or for view commercial establishment" after "for private home viewing"; and by substituting "s for "household ." Pub . L . No . 108-447, 118 Stat . 2809, 3393, 3394 and 3406 . It a paragraph 119(a)(2)(B) by inserting at the end of clause (i) "The limitation in this c shall not apply to secondary transmissions under paragraph (3) ." *Id* . at 3397 . It a subsection (C) in its entirety by substituting new language . *Id.* at 3394 . It amende 119(a)(5), which is now renumbered as 119(a)(7), in the first sentence of subparagr by inserting "who is not eligible to receive the transmission under this section" in li "who does not reside in an unserved household" and, in the first sentence of subpar (B), by making the same change but using "are" instead of "is"; and, in subparagra by substituting "is to a subscriber who is eligible to receive the secondary transmis under this section" in lieu of "is for private home viewing to an unserved household

3404 . The Act further amended subsection 119(a) by adding new paragraphs, rede paragraphs (3) and (4); by deleting paragraph eight; by renumbering the paragraph by those changes; and by revising the references to old paragraph numbers, accor paragraphs (1) and (2), to be the new numbers as redesignated . *Id* . at 3394, 3396 The Act further amended subsection 119(a) by adding at the end three new paragra ignated as new paragraphs (14), (15) and (16) . *Id* . at 3400, 3404 and 3408 .

The Satellite Home Viewer Extension and Reauthorization Act of 2004 amended t of subsection 119(b) by deleting "for Private Home Viewing ." *Id* . at 3406 . It also a subparagraph 119(b)(1)(A) and subparagraph 119(b)(3) by deleting "for private ho ing ." *Id* . The Act amended subparagraph 119(b)(1)(B) in its entirety by substitutin language . *Id* . at 3400 . It added a new paragraph at the end of paragraph 119(b)(

The Satellite Home Viewer Extension and Reauthorization Act of 2004 amended s section 119(c) in its entirety . *Id.* The Satellite Home Viewer Extension and Reautho Act of 2004 amended paragraph 119(d)(1) by deleting "for private home viewing" a dividual subscribers" and by adding at the end "in accordance with the provisions o section ." *Id.* at 3406 . It amended subparagraph 119(d)(2)(A) by substituting, at th of the first sentence, "a television station licensed by the Federal Communications sion" in lieu of "a television broadcast station ." *Id.* The Act amended paragraph 11 substituting "or entity that" in lieu of "who"; by deleting "for private home viewing" by inserting at the end "in accordance with the provisions of this section ." *Id.* It am subparagraph 119(d)(10)(D) by changing "(a)(11)" to "(a)(12)" . *Id.* at 3405 . It ame entireties paragraph 119(d)(9), subparagraph (119)(d)(10)(B) and paragraphs 119( (12) . *Id.* at 3405 and 3406 .

The Satellite Home Viewer Extension and Reauthorization Act of 2004 amended s tion 119(e) by changing the date at the beginning of the sentence from "December to "December 31, 2009" . *Id.* at 3394 . The Satellite Home Viewer Extension and Re tion Act of 2004 amended section 119 by adding a new subsection (f) . *Id.* at 3394 .

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend section 119 by revising the second sentence of (b)(4)(B); by amending (b)(4)(C) in i tirety; and by making a technical correction to substitute "arbitration" for "arbitrary (c)(1)(F)(i) . Pub . L . No . 109-303, 120 Stat . 1478, 1482–83 . The Prioritizing Resou Organization for Intellectual Property Act of 2008 amended subparts (6), (7)(A), (8), (13) of subsection 119(a) by removing the reference to section 509 (which was repe Pub . L . No . 110-403, 122 Stat . 4256, 4264 .

Besides the changes described below, the Satellite Television Extension and Loca of 2010 made perfecting, technical, and clarifying amendments throughout section 1 L . No . 111-175, 124 Stat . 1218 . It also substituted "non-network station" for "sup throughout section 119, revised the title to substitute "distant television programm satellite" for "superstations and network stations for private home viewing" and ad new subsection (g) at the end . *Id* ., at 124 Stat . 1219, 1233, 1239–44 .

In addition, the Satellite Television Extension and Localism Act of 2010 amended section 119(a) by deleting the last sentence in subparagraph (a)(2)(B)(i); by deletin graph (a)(2)(C); by revising subparagraphs (a)(2)(C)(i) and (ii) in the newly designa paragraph (C); by deleting subsection (a)(3); in the newly designated paragraph (3 revising subparagraphs (a)(3)(B) and (C) and deleting "analog" wherever it appeare

newly designated subsection (a)(6), by increasing the statutory damages in (6)(A)(i (6)(B)(ii) from $5 and $250,000 to $250 and $2,500,000, respectively, and, in (6)(B substituting "$2,500,000 for each 3-month period" for "$250,000 for each 6 month by adding the last paragraph of subsection (a)(6) and by deleting subsection (a)(15 No . 111-175, 124 Stat . 1218, 1219, 1223–28 .

Furthermore, the Satellite Television Extension and Localism Act of 2010 amende title of subsection 119(b) by deleting "Statutory License for Secondary Transmissio inserting "Deposit of Statements and Fees; Verification Procedures . *Id.*, 124 Stat . 1 amended subsection 119(b) by revising subparagraph (b)(1)(B), adding new subpar (b)(1)(C), and deleting the last sentence of (b)(1); by adding a new subsection (b)(2 inserting "(including the filing fee specified in paragraph (1)(C))" into the first sente subsection (b)(3) . *Id* ., at 124 Stat . 1220, 1223–24 .

Public Law No . 111-175 amended subsection 119(c) throughout by deleting the to "analog" and to "arbitration" and by substituting "Copyright Royalty Judges" for ian of Congress ." *Id* ., at 124 Stat . 1220, 21 . It also amended subsection 119(c) by the reference in paragraph (c)(1)(A) from July 1, 2004, to July 1, 2009, to designate regulation that establishes royalty fees and by changing the deadline in paragraph from January 2, 2004, to January 2, 2010, for publishing notice in the *Federal Regist* initiation of voluntary negotiations . *Id* ., at 124 Stat . 1220 . The Act further amend tion 119(c) by adding subtitles for the subparagraphs in paragraph (c)(1)(D); by sub "Copyright Royalty Judges" for "Copyright Office" in paragraph (c)(1)(E); by amendi subtitle for paragraph (c)(1)(F) to substitute "Copyright Royalty Judges Proceeding" "Compulsory Arbitration;" and by revising subparagraphs (c)(1)(F)(ii) and (iii) . *Id* ., a Stat . 1221 . The Act revised subsection 119(c)(2) . *Id* ., at 124 Stat . 1222 .

Public Law No . 111-175 amended subsection 119(d) by revising the definitions f scriber and subscribe at (d)(8), for unserved household at (d)(10) and for local mark (11) . *Id* ., at 124 Stat . 1219, 1222–23 . It deleted the definition for low power telev at (d)(12) and added definitions for qualifying date in newly designated paragraph multicast stream at (d)(14), and primary stream at (d)(15) . *Id* ., at 124 Stat . 1219– The Act amended subsection 119(e) to extend the moratorium on copyright liability satellite subscribers from December 31, 20o9, to December 31, 2014 . See note 62

A technical correction in the Copyright Cleanup, Clarification, and Corrections Act 2010 amended subparagraph 119(g)(4)(B)(vi) to substitute "an examination" for "t nations ." Pub . L . No . 111-295, 124 Stat . 3180, 3181 .

The STELA Reauthorization Act of 2014 amended section 119 by adding a new su tion (h) at the end to establish December 31, 2019, as the expiration date for the se license . Pub . L . No . 113-200, 128 Stat . 2059, 2066 .

The Satellite Television Community Protection and Promotion Act of 2019 amend subsection (a)(2)(A) of section 119 by striking "signals, and" and inserting "signals, inserting ", and the carrier provides local-into-local service to all DMAs" after "recei secondary transmission"; and inserts after that new sentence: "Failure to reach an with a network station to retransmit the signals of the station shall not be construe compliance with providing local-into-local service to all DMAs if the satellite carrier capability to retransmit such signals when an agreement is reached ." Pub . L . No . Stat . 2534, 3201–02 . The Act further amended subsection (a)(2)(B) by striking clau

(iii) and inserting a new clause (ii) regarding short markets . Pub . L . No . 116-94, 1 3202 . Further, the Act deleted subsections (a)(3), (a)(6)(E), (a)(9), (a)(10), and (a)( No . 116-94, 133 Stat . 2534, 3202 . The Act amended subsection (c)(1)(E) by delet after "in the agreement," deleting "until December 31, 2019, or," deleting "whiche and inserting "until the subscriber for which the royalty is payable is no longer eligi ceive a secondary transmission pursuant to the license under this section ." Pub . L 133 Stat . 2534, 3202 . The Act amended subsection (d) by deleting subparagraphs and (E), redesignating subparagraph (D) as (A), and adding a new subparagraph (B further deleted paragraph (13) and added two new definitional paragraphs under su (d) . Pub . L . No . 116-94, 133 Stat . 2534, 3202–03 . Further, the Act deleted subse (h) and amended subsection (g)(7) by inserting ", except for designated market are the entity is temporarily or permanently unable to provide local service as a result o of god or other force majeure event beyond the control of the entity" after "section L . No . 116-94, 133 Stat . 2534, 3203 . Lastly, the Act made various conforming am in accordance with the substantive amendments . Pub . L . No . 116-94, 133 Stat . 2

57 . The Satellite Home Viewer Improvement Act of 1999 amended section 119(a deleting "primary transmission made by a superstation and embodying a performa display of a work" and inserting in its place "performance or display of a work embo a primary transmission made by a superstation ." Pub . L . No . 106-113, 113 Stat . 1501A-543 . This amendatory language did not take into account a prior amendmen inserted "or by the Public Broadcasting Service satellite feed" after "superstation" i phrase quoted above that was deleted . Pub . L . No . 106-113, 113 Stat . 1501, app There was no mention of the phrase "or by the Public Broadcasting Service satellite that second amendment . The Intellectual Property and High Technology Technical ments Act of 2002 clarified these provisions . Pub . L . No . 107-273, 116 Stat . 1758 Act deleted the first change and amended the second to clarify that the amended la should read, "performance or display of a work embodied in a primary transmission by a superstation or by the Public Broadcasting Service satellite feed ." *Id.* The Prior Resources and Organization for Intellectual Property Act of 2008 amended subparts (A), (8), and (13) of subsection 119(a) by removing the reference to section 509 (wh repealed) . Pub . L . No . 110-403, 122 Stat . 4256, 4264 .

58 . The Satellite Home Viewer Act of 1994 states that "The provisions of section (5)(D) ... relating to the burden of proof of satellite carriers, shall take effect on Janu 1997, with respect to civil actions relating to the eligibility of subscribers who subsc service as an unserved household before the date of the enactment of this Act [Oct 1994] ." Pub . L . No . 103-369, 108 Stat . 3477, 3481 .

59 . The Intellectual Property and High Technology Technical Amendments Act of made a technical correction to insert the word "a" before "performance ." Pub . L . 116 Stat . 1758, 1909 .

60 . The Satellite Home Viewer Improvement Act of 1999 stated that section 119 amended by section 1005(e)" of the same Act, was amended to add a new paragra No . 106-113, 113 Stat . 1501, app . I at 1501A-531 . The Intellectual Property and H Technical Amendments Act of 2002 made a technical correction to clarify that the a was to section 119(a) as amended by "section 1005(d)" of the Satellite Home Viewe ment Act of 1999 rather than "section 1005(e) ." Pub . L . No . 107-273, 116 Stat . 1

61 . Section 119(c)(1)(E) establishes the time period during which the obligation
royalty fees established under a voluntary agreement that is filed with the Copyrigh
Judges is in effect . The original December 31, 2009, expiration date was extended
times . The 2010 Department of Defense Appropriations Act extended the date to F
2010 . Pub . L . No . 111-118, 123 Stat . 3409, 3469 . The Temporary Extension Act
it to March 28, 2010 . Pub . L . No . 111-144, 124 Stat . 42, 47 . The Satellite Televis
Act of 2010 extended it to April 30, 2010 . Pub . L . No . 111-151, 124 Stat . 1027 . T
Extension Act of 2010 extended the date to May 31, 2010 . Pub . L . No . 111-157, 1
1119 . The Satellite Television Extension and Localism Act of 2010 extended it to De
2014 . Pub . L . No . 111-175, 124 Stat . 1218, 1221 . The STELA Reauthorization Ac
extended the time period to December 31, 2019 . Pub . L . No . 113-200, 128 Stat .

The Satellite Television Community Protection and Promotion Act of 2019 revised
time period to be "until the subscriber for which the royalty is payable is no longer
to receive a secondary transmission pursuant to the license under this section ." Pu
116-94, 133 Stat . 2534, 3202 .

62 . In 1990, the Architectural Works Copyright Protection Act added section 120
L . No . 101-650, 104 Stat . 5089, 5133 . The effective date provision of the Act stat
amendments apply to any work created on or after the date it was enacted, which
December 1, 1990 . It also states that the amendments apply to "any architectural
on [December 1, 1990], is unconstructed and embodied in unpublished plans or dra
except that protection for such architectural work under Title 17, *United States Co*
virtue of the amendments made by [the Act], shall terminate on December 31, 200
the work is constructed by that date ." *Id.*, 104 Stat . 5089, 5134 .

63 . The Legislative Branch Appropriations Act, 1997, added section 121 . Pub . L
197, 110 Stat . 2394, 2416 . The Work Made for Hire and Copyright Corrections Act
amended section 121 by substituting "section 106" for "sections 106 and 710 ." Pu
106-379, 114 Stat . 1444, 1445 .

The Individuals with Disabilities Education Improvement Act of 2004 amended s
tion 121 by amending paragraph (c)(3) in its entirety; by adding a new paragraph (
redesignating subsection (c) as (d); and by adding a new subsection (c) . Pub . L . N
118 Stat . 2647, 2807 .

In 2018, the Marrakesh Treaty Implementation Act amended section 121 by repla
specialized format[s]" with "[an] accessible format[s]" throughout, and by replacing
or other persons with disabilities" with "eligible persons" throughout; and by amend
section (a) by deleting the term "nondramatic," and by adding "or of a previously p
musical work that has been fixed in the form of text or notation" after "literary work
by amending paragraph (b)(1)(A) by adding "in the United States" after "distributed
L . No . 115-261, 132 Stat . 3667 . The Act amended subsection (d) by adding a new
"accessible format," replacing the definition of "blind or other persons with disabiliti
a definition of "eligible person," and deleting the definition of "specialized formats .
No . 115-261, 132 Stat . 3667, 3668 .

64 . In 2018, the Marrakesh Treaty Implementation Act added section 121A . Pub
115-261, 132 Stat . 3667, 3668-69 .

65 . Throughout section 122 the date of enactment of the Satellite Television and
Act of 2010 (STELA) is incorporated by reference. STELA was enacted on May 27, 2010 . Pub .
L . No . 111-175, 124 Stat . 1218 .

The Satellite Home Viewer Improvement Act of 1999 added section 122 . Pub . L
113, 113 Stat . 1501, app . I at 1501A-523 . The Act states that section 122 shall be
November 29, 1999 . Pub . L . No . 106-113, 113 Stat . 1501, app . I at 1501A-544 .

The Satellite Home Viewer Extension and Reauthorization Act of 2004 amended s
122 by adding a subparagraph (D) to paragraph (j)(2) . Pub . L . No . 108-447, 118 S
3393, 3409 .

The Prioritizing Resources and Organization for Intellectual Property Act of
amended subsections 122(a) and (b) by removing the reference to section 509 (wh
repealed) . Pub . L . No . 110-403, 122 Stat . 4256, 4264 .

The Satellite Television Extension and Localism Act of 2010 amended section 12
deleting “by satellite carriers within local markets” from the title and replacing that
“of local television programming by satellite;” by revising subsection (a); by deleting
ond half of the first sentence in paragraph (b)(1) and adding subparagraphs (A) and
revising subparagraph (b)(2) to add paragraphs (A) and (B); and by inserting, “For C
Secondary Transmissions” at the end of the title for subsection (c) and adding “para
(1), (2), and (3) of” to the text . Pub . L . No . 111-175, 124 Stat . 1218, 1227-30 . Th
subsection 122(f) by inserting “subject to statutory licensing by reason of paragrap
(A), (3), or (4) of subsection (a), or subject to” into paragraphs (1) and (2); by incre
the statutory damages in subparagraph (1)(B) from $5 to $250; by increasing the st
damages in subparts (2)(A)(ii) and (B)(ii) from $250,000 to $2,500,000; and by inse
“paragraph (2)(A), (3), or (4) of subsection (a)” into subsection (g) . *Id* ., at 124 Stat
amended subsection (j) by inserting new paragraphs (3) and (5); by revising newly
paragraph (6); and by inserting “non-network station” into the title of newly design
paragraph (4) and its text . *Id* ., at 124 Stat . 1231 .

The STELA Reauthorization Act of 2014 amended section 122(j)(2) by adding a n
definition for “market determinations .” Pub . L . No . 113-200, 128 Stat . 2059, 206

# Chapter 2

## Copyright Ownership and Transfer


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| 201 | *Ownership of copyright* | 167 |
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| 203 | *Termination of transfers and licenses granted by the author* | 169 |
| 204 | *Execution of transfers of copyright ownership* | 171 |
| 205 | *Recordation of transfers and other documents* | 171 |

## § 201 · Ownership of copyright

(a) Initial Ownership.—Copyright in a work protected under this title vests initially in the author or authors of the work. The authors of a joint w are coowners of copyright in the work.

(b) Works Made for Hire.—In the case of a work made for hire, the employer or other person for whom the work was prepared is considered the for purposes of this title, and, unless the parties have expressly agreed ot in a written instrument signed by them, owns all of the rights comprised i copyright.

(c) Contributions to Collective Works.—Copyright in each separate contribution to a collective work is distinct from copyright in the collective as a whole, and vests initially in the author of the contribution. In the abse of an express transfer of the copyright or of any rights under it, the owner copyright in the collective work is presumed to have acquired only the pri of reproducing and distributing the contribution as part of that particular c lective work, any revision of that collective work, and any later collective w in the same series.

(d) Transfer of Ownership.—

(1) The ownership of a copyright may be transferred in whole or in pa any means of conveyance or by operation of law, and may be bequeath will or pass as personal property by the applicable laws of intestate suc

(2) Any of the exclusive rights comprised in a copyright, including ar subdivision of any of the rights specified by section 106, may be transfe as provided by clause (1) and owned separately. The owner of any part exclusive right is entitled, to the extent of that right, to all of the protec and remedies accorded to the copyright owner by this title.

(e) Involuntary Transfer.—When an individual author's ownership of a copyright, or of any of the exclusive rights under a copyright, has not prev been transferred voluntarily by that individual author, no action by any go mental body or other official or organization purporting to seize, expropri transfer, or exercise rights of ownership with respect to the copyright, or a the exclusive rights under a copyright, shall be given effect under this title as provided under title 11.[2]

## § 202 · Ownership of copyright as distinct from ownership of material object

Ownership of a copyright, or of any of the exclusive rights under a copy is distinct from ownership of any material object in which the work is emb Transfer of ownership of any material object, including the copy or phonor

in which the work is first fixed, does not of itself convey any rights in the c
righted work embodied in the object; nor, in the absence of an agreement
transfer of ownership of a copyright or of any exclusive rights under a cop
convey property rights in any material object.

### § 203 · Termination of transfers and licenses granted by the a

(a)Conditions for Termination.—In the case of any work other than a work made for hire, the exclusive or nonexclusive grant of a transfer or lic copyright or of any right under a copyright, executed by the author on or January 1, 1978, otherwise than by will, is subject to termination under th lowing conditions:

(1) In the case of a grant executed by one author, termination of the may be effected by that author or, if the author is dead, by the person c sons who, under clause (2) of this subsection, own and are entitled to e a total of more than one-half of that author's termination interest. In th case of a grant executed by two or more authors of a joint work, termin of the grant may be effected by a majority of the authors who executed any of such authors is dead, the termination interest of any such author be exercised as a unit by the person or persons who, under clause (2) o subsection, own and are entitled to exercise a total of more than one-ha that author's interest.

(2) Where an author is dead, his or her termination interest is owned, may be exercised, as follows:

(A) The widow or widower owns the author's entire termination inte unless there are any surviving children or grandchildren of the author which case the widow or widower owns one-half of the author's intere

(B) The author's surviving children, and the surviving children of ar dead child of the author, own the author's entire termination interest there is a widow or widower, in which case the ownership of one-half author's interest is divided among them.

(C) The rights of the author's children and grandchildren are in all c divided among them and exercised on a per stirpes basis according t number of such author's children represented; the share of the childr a dead child in a termination interest can be exercised only by the ac of a majority of them.

(D) In the event that the author's widow or widower, children, and g children are not living, the author's executor, administrator, personal sentative, or trustee shall own the author's entire termination interes

(3) Termination of the grant may be effected at any time during a per five years beginning at the end of thirty-five years from the date of exe

of the grant; or, if the grant covers the right of publication of the work, t
period begins at the end of thirty-five years from the date of publicatio
work under the grant or at the end of forty years from the date of execu
the grant, whichever term ends earlier.

(4) The termination shall be effected by serving an advance notice in
ing, signed by the number and proportion of owners of termination inte
required under clauses (1) and (2) of this subsection, or by their duly au
rized agents, upon the grantee or the grantee's successor in title.

(A) The notice shall state the effective date of the termination, wh
shall fall within the five-year period specified by clause (3) of this sub
and the notice shall be served not less than two or more than ten yea
fore that date. A copy of the notice shall be recorded in the Copyright
before the effective date of termination, as a condition to its taking e

(B) The notice shall comply, in form, content, and manner of service,
requirements that the Register of Copyrights shall prescribe by regula

(5) Termination of the grant may be effected notwithstanding any ag
ment to the contrary, including an agreement to make a will or to make
future grant.

(b)Effect of Termination.—Upon the effective date of termination, all
rights under this title that were covered by the terminated grants revert to
author, authors, and other persons owning termination interests under cla
(1) and (2) of subsection (a), including those owners who did not join in sig
the notice of termination under clause (4) of subsection (a), but with the f
ing limitations:

(1) A derivative work prepared under authority of the grant before its
mination may continue to be utilized under the terms of the grant after
termination, but this privilege does not extend to the preparation after
termination of other derivative works based upon the copyrighted work
ered by the terminated grant.

(2) The future rights that will revert upon termination of the grant bec
vested on the date the notice of termination has been served as provide
clause (4) of subsection (a). The rights vest in the author, authors, and
persons named in, and in the proportionate shares provided by, clauses
(2) of subsection (a).

(3) Subject to the provisions of clause (4) of this subsection, a further
or agreement to make a further grant, of any right covered by a termin
grant is valid only if it is signed by the same number and proportion of t
owners, in whom the right has vested under clause (2) of this subsectio
are required to terminate the grant under clauses (1) and (2) of subsect
Such further grant or agreement is effective with respect to all of the pe
whom the right it covers has vested under clause (2) of this subsection,
ing those who did not join in signing it. If any person dies after rights un

terminated grant have vested in him or her, that person's legal represe
legatees, or heirs at law represent him or her for purposes of this clause

(4) A further grant, or agreement to make a further grant, of any rig
covered by a terminated grant is valid only if it is made after the effecti
of the termination. As an exception, however, an agreement for such a
grant may be made between the persons provided by clause (3) of this
tion and the original grantee or such grantee's successor in title, after t
of termination has been served as provided by clause (4) of subsection

(5) Termination of a grant under this section affects only those rights
ered by the grants that arise under this title, and in no way affects right
under any other Federal, State, or foreign laws.

(6) Unless and until termination is effected under this section, the gra
if it does not provide otherwise, continues in effect for the term of copy
provided by this title.

## § 204 · Execution of transfers of copyright ownership

(a) A transfer of copyright ownership, other than by operation of law, is
valid unless an instrument of conveyance, or a note or memorandum of t
transfer, is in writing and signed by the owner of the rights conveyed or s
owner's duly authorized agent.

(b) A certificate of acknowledgment is not required for the validity of a t
but is prima facie evidence of the execution of the transfer if—

(1) in the case of a transfer executed in the United States, the certific
sued by a person authorized to administer oaths within the United State

(2) in the case of a transfer executed in a foreign country, the certific
issued by a diplomatic or consular officer of the United States, or by a p
authorized to administer oaths whose authority is proved by a certificat
such an officer.

## § 205 · Recordation of transfers and other documents

(a) Conditions for Recordation.—Any transfer of copyright ownership
or other document pertaining to a copyright may be recorded in the Copy
Office if the document filed for recordation bears the actual signature of t
son who executed it, or if it is accompanied by a sworn or official certifica
it is a true copy of the original, signed document. A sworn or official certifi
may be submitted to the Copyright Office electronically, pursuant to regul
established by the Register of Copyrights.

(b)Certificate of Recordation.—The Register of Copyrights shall, upon receipt of a document as provided by subsection (a) and of the fee provid section 708, record the document and return it with a certificate of record

(c)Recordation as Constructive Notice.—Recordation of a document in the Copyright Office gives all persons constructive notice of the facts st the recorded document, but only if—

(1) the document, or material attached to it, specifically identifies the to which it pertains so that, after the document is indexed by the Regist Copyrights, it would be revealed by a reasonable search under the title istration number of the work; and

(2) registration has been made for the work.

(d)Priority between Conflicting Transfers. —As between two conflicting transfers, the one executed first prevails if it is recorded, in the ma required to give constructive notice under subsection (c), within one mon after its execution in the United States or within two months after its exec outside the United States, or at any time before recordation in such mann the later transfer. Otherwise the later transfer prevails if recorded first in s manner, and if taken in good faith, for valuable consideration or on the ba of a binding promise to pay royalties, and without notice of the earlier tra

(e)Priority between Conflicting Transfer of Ownership and Nonexclusive License.—A nonexclusive license, whether recorded or not, prevails over a conflicting transfer of copyright ownership if the license is denced by a written instrument signed by the owner of the rights licensed owner's duly authorized agent, and if

(1) the license was taken before execution of the transfer; or

(2) the license was taken in good faith before recordation of the trans and without notice of it.

## Chapter 2 · Notes

1. In 1978, section 201(e) was amended by deleting the period at the end and addi as provided under title 11." See note 2, *infra*.

2. Title 11 of the *United States Code* is entitled "Bankruptcy."

3. In 1998, the Sonny Bono Copyright Term Extension Act amended section 203 b ing "by his widow or her widower and his or her grandchildren" from the first senten paragraph (2) of subsection (a) and by adding subparagraph (D) to paragraph (2). P No. 105-298, 112 Stat. 2827, 2829.

4. The Berne Convention Implementation Act of 1988 amended section 205 by de subsection (d) and redesignating subsections (e) and (f) as subsections (d) and (e), tively. Pub. L. No. 100-568, 102 Stat. 2853, 2857. The Copyright Cleanup, Clarificati Corrections Act of 2010 amended section 205(a) to add the last sentence. Pub. L. N 124 Stat. 3180.

# Chapter 3

## Duration of Copyright


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| 301 | *Preemption with respect to other laws* | 175 |
| 302 | *Duration of copyright: Works created on or after January 1, 1978* | 175 |
| 303 | *Duration of copyright: Works created but not published or copyrighted before January 1, 1978* | 176 |
| 304 | *Duration of copyright: Subsisting copyrights* | 176 |
| 305 | *Duration of copyright: Terminal date* | 181 |

## § 301 · Preemption with respect to other laws

(a) On and after January 1, 1978, all legal or equitable rights that are eq
to any of the exclusive rights within the general scope of copyright as spe
section 106 in works of authorship that are fixed in a tangible medium of
sion and come within the subject matter of copyright as specified by secti
and 103, whether created before or after that date and whether published
published, are governed exclusively by this title. Thereafter, no person is
to any such right or equivalent right in any such work under the common
statutes of any State.

(b) Nothing in this title annuls or limits any rights or remedies under th
common law or statutes of any State with respect to—

(1) subject matter that does not come within the subject matter of co
as specified by sections 102 and 103, including works of authorship not
in any tangible medium of expression; or

(2) any cause of action arising from undertakings commenced before
ary 1, 1978;

(3) activities violating legal or equitable rights that are not equivalent
any of the exclusive rights within the general scope of copyright as spe
by section 106; or

(4) State and local landmarks, historic preservation, zoning, or buildi
codes, relating to architectural works protected under section 102(a)(8)

(c) Notwithstanding the provisions of section 303, and in accordance w
chapter 14, no sound recording fixed before February 15, 1972, shall be s
copyright under this title. With respect to sound recordings fixed before F
15, 1972, the preemptive provisions of subsection (a) shall apply to activit
are commenced on and after the date of enactment of the Classics Prote
and Access Act. Nothing in this subsection may be construed to affirm or
the preemption of rights and remedies pertaining to any cause of action a
from the nonsubscription broadcast transmission of sound recordings und
common law or statutes of any State for activities that do not qualify as c
activities under chapter 14 undertaken during the period between the da
enactment of the Classics Protection and Access Act and the date on whic
term of prohibition on unauthorized acts under section 1401(a)(2) expire
such sound recordings. Any potential preemption of rights and remedies
to such activities undertaken during that period shall apply in all respects
did the day before the date of enactment of the Classics Protection and A

(d) Nothing in this title annuls or limits any rights or remedies under an
Federal statute.

(e) The scope of Federal preemption under this section is not affected b
adherence of the United States to the Berne Convention or the satisfacti
obligations of the United States thereunder.

(f)(1) On or after the effective date set forth in section 610(a) of the Vis
ists Rights Act of 1990, all legal or equitable rights that are equivalent to a
the rights conferred by section 106A with respect to works of visual art to
the rights conferred by section 106A apply are governed exclusively by se
106A and section 113(d) and the provisions of this title relating to such se
Thereafter, no person is entitled to any such right or equivalent right in ar
of visual art under the common law or statutes of any State.

(2) Nothing in paragraph (1) annuls or limits any rights or remedies u
the common law or statutes of any State with respect to—

(A) any cause of action from undertakings commenced before the e
tive date set forth in section 610(a) of the Visual Artists Rights Act of

(B) activities violating legal or equitable rights that are not equivale
any of the rights conferred by section 106A with respect to works of v
art; or

(C) activities violating legal or equitable rights which extend beyon
life of the author.

## § 302 · Duration of copyright: Works created on or after January 1, 1978

(a)In General.—Copyright in a work created on or after January 1, 1978,
subsists from its creation and, except as provided by the following subsec
endures for a term consisting of the life of the author and 70 years after
author's death.

(b)Joint Works.—In the case of a joint work prepared by two or more au
thors who did not work for hire, the copyright endures for a term consistin
life of the last surviving author and 70 years after such last surviving auth

(c)Anonymous Works, Pseudonymous Works, and Works Made for Hire.—In the case of an anonymous work, a pseudonymous work, or a wor
made for hire, the copyright endures for a term of 95 years from the year
first publication, or a term of 120 years from the year of its creation, whic
expires first. If, before the end of such term, the identity of one or more o
authors of an anonymous or pseudonymous work is revealed in the record
a registration made for that work under subsections (a) or (d) of section 4
in the records provided by this subsection, the copyright in the work end
for the term specified by subsection (a) or (b), based on the life of the aut
authors whose identity has been revealed. Any person having an interest
copyright in an anonymous or pseudonymous work may at any time recor
records to be maintained by the Copyright Office for that purpose, a state
identifying one or more authors of the work; the statement shall also iden
person filing it, the nature of that person's interest, the source of the infor

recorded, and the particular work affected, and shall comply in form and c
with requirements that the Register of Copyrights shall prescribe by regul

(d) Records Relating to Death of Authors.—Any person having an interest in a copyright may at any time record in the Copyright Office a st ment of the date of death of the author of the copyrighted work, or a state that the author is still living on a particular date. The statement shall iden the person filing it, the nature of that person's interest, and the source o information recorded, and shall comply in form and content with requirem that the Register of Copyrights shall prescribe by regulation. The Register maintain current records of information relating to the death of authors of righted works, based on such recorded statements and, to the extent the considers practicable, on data contained in any of the records of the Copy Office or in other reference sources.

(e) Presumption as to Author's Death.—After a period of 95 years from the year of first publication of a work, or a period of 120 years from the ye creation, whichever expires first, any person who obtains from the Copyri fice a certified report that the records provided by subsection (d) disclose to indicate that the author of the work is living, or died less than 70 years is entitled to the benefit of a presumption that the author has been dead f least 70 years. Reliance in good faith upon this presumption shall be a co defense to any action for infringement under this title.

## § 303. Duration of copyright: Works created but not published or copyrighted before January 1, 1978

(a) Copyright in a work created before January 1, 1978, but not thereto the public domain or copyrighted, subsists from January 1, 1978, and end the term provided by section 302. In no case, however, shall the term of c in such a work expire before December 31, 2002; and, if the work is publi on or before December 31, 2002, the term of copyright shall not expire be December 31, 2047.

(b) The distribution before January 1, 1978, of a phonorecord shall not f purpose constitute a publication of any musical work, dramatic work, or li work embodied therein.

## § 304. Duration of copyright: Subsisting copyrights

(a) Copyrights in Their First Term on January 1, 1978.—

(1)(A) Any copyright, in the first term of which is subsisting on Januar 1978, shall endure for 28 years from the date it was originally secured.

(B) In the case of—

(i) any posthumous work or of any periodical, cyclopedic, or othe composite work upon which the copyright was originally secured b proprietor thereof, or

(ii) any work copyrighted by a corporate body (otherwise than as signee or licensee of the individual author) or by an employer for w such work is made for hire,

the proprietor of such copyright shall be entitled to a renewal and e tension of the copyright in such work for the further term of 67 yea

(C) In the case of any other copyrighted work, including a contribut by an individual author to a periodical or to a cyclopedic or other com work—

(i) the author of such work, if the author is still living,

(ii) the widow, widower, or children of the author, if the author i not living,

(iii) the author's executors, if such author, widow, widower, or ch dren are not living, or

(iv) the author's next of kin, in the absence of a will of the autho shall be entitled to a renewal and extension of the copyright in such wo a further term of 67 years.

(2)(A) At the expiration of the original term of copyright in a work spe in paragraph (1)(B) of this subsection, the copyright shall endure for a r and extended further term of 67 years, which—

(i) if an application to register a claim to such further term has b made to the Copyright Office within 1 year before the expiration of original term of copyright, and the claim is registered, shall vest, u the beginning of such further term, in the proprietor of the copyrig who is entitled to claim the renewal of copyright at the time the ap tion is made; or

(ii) if no such application is made or the claim pursuant to such a plication is not registered, shall vest, upon the beginning of such fu term, in the person or entity that was the proprietor of the copyrigh of the last day of the original term of copyright.

(B) At the expiration of the original term of copyright in a work spe fied in paragraph (1)(C) of this subsection, the copyright shall endure renewed and extended further term of 67 years, which—

(i) if an application to register a claim to such further term has b made to the Copyright Office within 1 year before the expiration of original term of copyright, and the claim is registered, shall vest, u the beginning of such further term, in any person who is entitled u paragraph (1)(C) to the renewal and extension of the copyright at t time the application is made; or

(ii) if no such application is made or the claim pursuant to such a
plication is not registered, shall vest, upon the beginning of such fu
term, in any person entitled under paragraph (1)(C), as of the last
of the original term of copyright, to the renewal and extension of th
copyright.

(3)(A) An application to register a claim to the renewed and extended
of copyright in a work may be made to the Copyright Office—

(i) within 1 year before the expiration of the original term of copy
right by any person entitled under paragraph (1)(B) or (C) to such f
ther term of 67 years; and

(ii) at any time during the renewed and extended term by any pe
in whom such further term vested, under paragraph (2)(A) or (B), o
any successor or assign of such person, if the application is made i
name of such person.

(B) Such an application is not a condition of the renewal and exten
of the copyright in a work for a further term of 67 years.

(4)(A) If an application to register a claim to the renewed and extend
term of copyright in a work is not made within 1 year before the expirat
of the original term of copyright in a work, or if the claim pursuant to su
application is not registered, then a derivative work prepared under aut
ity of a grant of a transfer or license of the copyright that is made befor
expiration of the original term of copyright may continue to be used un
the terms of the grant during the renewed and extended term of copyri
without infringing the copyright, except that such use does not extend t
preparation during such renewed and extended term of other derivative
based upon the copyrighted work covered by such grant.

(B) If an application to register a claim to the renewed and extend
term of copyright in a work is made within 1 year before its expiration
the claim is registered, the certificate of such registration shall consti
prima facie evidence as to the validity of the copyright during its rene
and extended term and of the facts stated in the certificate. The evid
weight to be accorded the certificates of a registration of a renewed
extended term of copyright made after the end of that 1-year period
be within the discretion of the court.

(b) Copyrights in Their Renewal Term at the Time of the Effective Date of the Sonny Bono Copyright Term Extension Act.—Any copyright still in its renewal term at the time that the Sonny Bono Copyrig Term Extension Act becomes effective shall have a copyright term of 95 y from the date copyright was originally secured.[8]

(c) Termination of Transfers and Licenses Covering Extended Renewal Term.—In the case of any copyright subsisting in either its first or renewal term on January 1, 1978, other than a copyright in a work made

hire, the exclusive or nonexclusive grant of a transfer or license of the ren
copyright or any right under it, executed before January 1, 1978, by any o
persons designated by subsection (a)(1)(C) of this section, otherwise than
will, is subject to termination under the following conditions:

(1) In the case of a grant executed by a person or persons other than
author, termination of the grant may be effected by the surviving perso
persons who executed it. In the case of a grant executed by one or mor
authors of the work, termination of the grant may be effected, to the ex
a particular author's share in the ownership of the renewal copyright, b
author who executed it or, if such author is dead, by the person or pers
under clause (2) of this subsection, own and are entitled to exercise a t
more than one-half of that author's termination interest.

(2) Where an author is dead, his or her termination interest is owned,
may be exercised, as follows:

(A) The widow or widower owns the author's entire termination inte
unless there are any surviving children or grandchildren of the autho
which case the widow or widower owns one-half of the author's intere

(B) The author's surviving children, and the surviving children of ar
dead child of the author, own the author's entire termination interest
there is a widow or widower, in which case the ownership of one-half
author's interest is divided among them.

(C) The rights of the author's children and grandchildren are in all c
divided among them and exercised on a per stirpes basis according t
number of such author's children represented; the share of the childr
a dead child in a termination interest can be exercised only by the ac
of a majority of them.

(D) In the event that the author's widow or widower, children, and g
children are not living, the author's executor, administrator, personal
sentative, or trustee shall own the author's entire termination interes

(3) Termination of the grant may be effected at any time during a per
five years beginning at the end of fifty-six years from the date copyrigh
originally secured, or beginning on January 1, 1978, whichever is later.

(4) The termination shall be effected by serving an advance notice in
ing upon the grantee or the grantee's successor in title. In the case of a
executed by a person or persons other than the author, the notice sha
signed by all of those entitled to terminate the grant under clause (1) o
subsection, or by their duly authorized agents. In the case of a grant ex
by one or more of the authors of the work, the notice as to any one auth
share shall be signed by that author or his or her duly authorized agent
that author is dead, by the number and proportion of the owners of his
termination interest required under clauses (1) and (2) of this subsectio
by their duly authorized agents.

(A) The notice shall state the effective date of the termination, wh
shall fall within the five-year period specified by clause (3) of this sub
or, in the case of a termination under subsection (d), within the five-y
period specified by subsection (d)(2), and the notice shall be served n
than two or more than ten years before that date. A copy of the notic
be recorded in the Copyright Office before the effective date of termi
as a condition to its taking effect.

(B) The notice shall comply, in form, content, and manner of service
requirements that the Register of Copyrights shall prescribe by regula

(5) Termination of the grant may be effected notwithstanding any ag
ment to the contrary, including an agreement to make a will or to make
future grant.

(6) In the case of a grant executed by a person or persons other than
thor, all rights under this title that were covered by the terminated gran
upon the effective date of termination, to all of those entitled to termina
grant under clause (1) of this subsection. In the case of a grant execute
or more of the authors of the work, all of a particular author's rights und
this title that were covered by the terminated grant revert, upon the eff
date of termination, to that author or, if that author is dead, to the pers
owning his or her termination interest under clause (2) of this subsecti
including those owners who did not join in signing the notice of termina
under clause (4) of this subsection. In all cases the reversion of rights is
to the following limitations:

(A) A derivative work prepared under authority of the grant before
termination may continue to be utilized under the terms of the grant
its termination, but this privilege does not extend to the preparation
the termination of other derivative works based upon the copyrighted
covered by the terminated grant.

(B) The future rights that will revert upon termination of the grant b
come vested on the date the notice of termination has been served a
vided by clause (4) of this subsection.

(C) Where the author's rights revert to two or more persons under
(2) of this subsection, they shall vest in those persons in the proportio
shares provided by that clause. In such a case, and subject to the pro
of subclause (D) of this clause, a further grant, or agreement to make
ther grant, of a particular author's share with respect to any right cov
by a terminated grant is valid only if it is signed by the same number
proportion of the owners, in whom the right has vested under this cla
as are required to terminate the grant under clause (2) of this subsec
Such further grant or agreement is effective with respect to all of the
sons in whom the right it covers has vested under this subclause, inc
those who did not join in signing it. If any person dies after rights und

a terminated grant have vested in him or her, that person's legal rep
tatives, legatees, or heirs at law represent him or her for purposes of
subclause.

(D) A further grant, or agreement to make a further grant, of any ri
covered by a terminated grant is valid only if it is made after the effe
date of the termination. As an exception, however, an agreement for
a further grant may be made between the author or any of the perso
provided by the first sentence of clause (6) of this subsection, or betw
persons provided by subclause (C) of this clause, and the original gra
or such grantee's successor in title, after the notice of termination ha
served as provided by clause (4) of this subsection.

(E) Termination of a grant under this subsection affects only those
covered by the grant that arise under this title, and in no way affects
arising under any other Federal, State, or foreign laws.

(F) Unless and until termination is effected under this subsection, t
grant, if it does not provide otherwise, continues in effect for the rem
of the extended renewal term.

(d) Termination Rights Provided in Subsection (c) Which Have Expired on or before the Effective Date of the Sonny Bono Copyright Term Extension Act.—In the case of any copyright other than a work made for hire, subsisting in its renewal term on the effective date of the Sonny Bono Copyright Term Extension Act for which the termination right provided in subsection (c) has expired by such date, where the author or owner of t mination right has not previously exercised such termination right, the ex or nonexclusive grant of a transfer or license of the renewal copyright or right under it, executed before January 1, 1978, by any of the persons des in subsection (a)(1)(C) of this section, other than by will, is subject to term under the following conditions:

(1) The conditions specified in subsections (c) (1), (2), (4), (5), and (6 section apply to terminations of the last 20 years of copyright term as p by the amendments made by the Sonny Bono Copyright Term Extensio

(2) Termination of the grant may be effected at any time during a pe 5 years beginning at the end of 75 years from the date copyright was o secured.

## § 305 · Duration of copyright: Terminal date

All terms of copyright provided by sections 302 through 304 run to the the calendar year in which they would otherwise expire.

## Chapter 3 · Notes

1. Private Law 92-60, 85 Stat. 857, effective December 15, 1971, states that:

[A]ny provision of law to the contrary notwithstanding, copyright is hereby grante the trustees under the will of Mary Baker Eddy, their successors, and assigns, in the "Science and Health with Key to the Scriptures" (entitled also in some editions "Scie Health" or "Science and Health; with a Key to the Scriptures"), by Mary Baker Eddy, all editions thereof in English and translation heretofore published, or hereafter pub by or on behalf of said trustees, their successors or assigns, for a term of seventy-fi from the effective date of this Act or from the date of first publication, whichever is

But *cf. United Christian Scientists* v. *Christian Science Board of Directors, First Ch Christ, Scientist*, 829 F.2d 1152, 4 USPQ2d 1177 (D.C. Cir. 1987) (holding Priv. L. 92 857, to be unconstitutional because it violates the Establishment Clause).

2. The Berne Convention Implementation Act of 1988 amended section 301 by ad at the end thereof subsection (e). Pub. L. No. 100-568, 102 Stat. 2853, 2857. In 199 chitectural Works Copyright Protection Act amended section 301(b) by adding at th thereof paragraph (4). Pub. L. No. 101-650, 104 Stat. 5133, 5134. The Visual Artists of 1990 amended section 301 by adding at the end thereof subsection (f). Pub. L. N 650, 104 Stat. 5089, 5131. In 1998, the Sonny Bono Copyright Term Extension Act a section 301 by changing "February 15, 2047" to "February 15, 2067" each place it in subsection (c). Pub. L. No. 105-298, 112 Stat. 2827.

In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act amended sec 301(c) in its entirety. Pub. L. No. 115-264, 132 Stat. 3676, 3728.

3. The Visual Artists Rights Act of 1990, which added subsection (f), states, "Subj subsection (b) and except as provided in subsection (c), this title and the amendme by this title take effect 6 months after the date of the enactment of this Act," that months after December 1, 1990. Pub. L. No. 101-650, 104 Stat. 5089, 5132. See als chapter 1.

4. In 1998, the Sonny Bono Copyright Term Extension Act amended section 302 b tuting "70" for "fifty," "95" for "seventy-five," and "120" for "one hundred" each pl peared. Pub. L. No. 105-298, 112 Stat. 2827. This change was effective October 27,

5. In 1997, section 303 was amended by adding subsection (b). Pub. L. No. 105-8 1529, 1534. In 1998, the Sonny Bono Copyright Term Extension Act amended sectio by substituting "December 31, 2047" for "December 31, 2027." Pub. L. No. 105-29 2827. The Copyright Cleanup, Clarification, and Corrections Act of 2010 amended s 303(b) to substitute "any musical work, dramatic work, or literary work" for "the mu work." Pub. L. No. 111-295, 124 Stat. 3180, 3181.

6. The Copyright Renewal Act of 1992 amended section 304 by substituting a ne tion (a) and by making a conforming amendment in the matter preceding paragrap subsection (c). Pub. L. No. 102-307, 106 Stat. 264. The Act, as amended by the Son Copyright Term Extension Act, states that the renewal and extension of a copyright further term of 67 years "shall have the same effect with respect to any grant, befo tive date of the Sonny Bono Copyright Term Extension Act [October 27, 1998], of a

or license of the further term as did the renewal of a copyright before the effective
the Sonny Bono Copyright Term Extension Act [October 27, 1998] under the law in
at the time of such grant." The Act also states that the 1992 amendments "shall ap
to those copyrights secured between January 1, 1964, and December 31, 1977. Cop
secured before January 1, 1964, shall be governed by the provisions of section 304(
17, United States Code, as in effect on the day before … [enactment on June 26, 19
each reference to forty-seven years in such provisions shall be deemed to be 67 ye
No. 102-307, 106 Stat. 264, 266, as amended by the Sonny Bono Copyright Term E
Act, Pub. L. No. 105-298, 112 Stat. 2827, 2828.

In 1998, the Sonny Bono Copyright Term Extension Act amended section 304 by
tuting "67" for "47" wherever it appeared in subsection (a), by substituting a new s
(b), and by adding subsection (d) at the end thereof. Pub. L. No. 105-298, 112 Stat.
Act also amended subsection 304(c) by deleting "by his widow or her widower and
children or grandchildren" from the first sentence of paragraph (2), by adding subp
(D) at the end of paragraph (2) and by inserting "or, in the case of a termination un
section (d), within the five-year period specified by subsection (d)(2)," into the first
of subparagraph (4)(A). *Id*.

7. In 1998, the Sonny Bono Copyright Term Extension Act amendment to subsect
304(b) completely deleted the previous language that was originally part of the 197
right Act. Pub. L. No. 105-298, 112 Stat. 2827. That earlier statutory language cont
to be relevant for calculating the term of protection for copyrights commencing bet
September 19, 1906, and December 31, 1949. The 1976 Copyright Act extended th
those copyrights by 20 years, provided they were in their renewal term between De
31, 1976, and December 31, 1977. The deleted language states:

The duration of any copyright, the renewal term of which is subsisting at any tim
tween December 31, 1976, and December 31, 1977, inclusive, or for which renewal
is made between December 31, 1976, and December 31, 1977, inclusive, is extend
for a term of seventy-five years from the date copyright was originally secured.

The effective date of this provision was October 19, 1976. That effective date pro
is contained in Appendix A, herein, as section 102 of the Transitional and Suppleme
Provisions of the Copyright Act of 1976. Copyright Act of 1976, Pub. L. No. 94-553,
2541, 2598.

In addition, prior to the 1976 Copyright Act, Congress enacted a series of nine int
extensions for works whose copyright protection began between September 19, 19
December 31, 1918, if they were in their renewal terms. Without these interim exte
copyrights commencing during that time period would have otherwise expired after
at the end of their renewal terms, between September 19, 1962, and December 31
nine Acts authorizing the interim extensions are as follows, in chronological order:

Pub. L. No. 87-668, 76 Stat. 555 (extending copyrights from September 19, 1962
cember 31, 1965)
Pub. L. No. 89-142, 79 Stat. 581 (extending copyrights to December 31, 1967)
Pub. L. No. 90-141, 81 Stat. 464 (extending copyrights to December 31, 1968)
Pub. L. No. 90-416, 82 Stat. 397 (extending copyrights to December 31, 1969)

Pub. L. No. 91-147, 83 Stat. 360 (extending copyrights to December 31, 1970)
Pub. L. No. 91-555, 84 Stat. 1441 (extending copyrights to December 31, 1971)
Pub. L. No. 92-170, 85 Stat. 490 (extending copyrights to December 31, 1972)
Pub. L. No. 92-566, 86 Stat. 1181 (extending copyrights to December 31, 1974)
Pub. L. No. 93-573, 88 Stat. 1873 (extending copyrights to December 31, 1976)

8. The effective date of the Sonny Bono Copyright Term Extension Act is October
9. See note 8, *supra*.

## Chapter 4

## Copyright Notice, Deposit, and Registration


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## § 401 · Notice of copyright: Visually perceptible copies

(a) General Provisions.—Whenever a work protected under this title is published in the United States or elsewhere by authority of the copyright o a notice of copyright as provided by this section may be placed on publicl tributed copies from which the work can be visually perceived, either dire with the aid of a machine or device.

(b) Form of Notice.—If a notice appears on the copies, it shall consist of the following three elements:

(1) the symbol © (the letter C in a circle), or the word "Copyright", or the abbreviation "Copr."; and

(2) the year of first publication of the work; in the case of compilation derivative works incorporating previously published material, the year o first publication of the compilation or derivative work is sufficient. The y date may be omitted where a pictorial, graphic, or sculptural work, with companying text matter, if any, is reproduced in or on greeting cards, p stationery, jewelry, dolls, toys, or any useful articles; and

(3) the name of the owner of copyright in the work, or an abbreviatio which the name can be recognized, or a generally known alternative de tion of the owner.

(c) Position of Notice.—The notice shall be affixed to the copies in such manner and location as to give reasonable notice of the claim of copyrigh Register of Copyrights shall prescribe by regulation, as examples, specific of affixation and positions of the notice on various types of works that will this requirement, but these specifications shall not be considered exhaust

(d) Evidentiary Weight of Notice.—If a notice of copyright in the form and position specified by this section appears on the published copy or co which a defendant in a copyright infringement suit had access, then no we shall be given to such a defendant's interposition of a defense based on in infringement in mitigation of actual or statutory damages, except as provi the last sentence of section 504(c)(2).

## § 402 · Notice of copyright: Phonorecords of sound recordings

(a) General Provisions.—Whenever a sound recording protected under this title is published in the United States or elsewhere by authority of the right owner, a notice of copyright as provided by this section may be plac publicly distributed phonorecords of the sound recording.

(b) Form of Notice.—If a notice appears on the phonorecords, it shall con sist of the following three elements:

(1) the symbol ℗ (the letter P in a circle); and

(2) the year of first publication of the sound recording; and

(3) the name of the owner of copyright in the sound recording, or an viation by which the name can be recognized, or a generally known alte designation of the owner; if the producer of the sound recording is nam on the phonorecord labels or containers, and if no other name appears conjunction with the notice, the producer's name shall be considered a of the notice.

(c)Position of Notice.—The notice shall be placed on the surface of the phonorecord, or on the phonorecord label or container, in such manner a location as to give reasonable notice of the claim of copyright.

(d)Evidentiary Weight of Notice.—If a notice of copyright in the form and position specified by this section appears on the published phonorecc phonorecords to which a defendant in a copyright infringement suit had a then no weight shall be given to such a defendant's interposition of a def based on innocent infringement in mitigation of actual or statutory dama except as provided in the last sentence of section 504(c)(2).

## § 403 Notice of copyright: Publications incorporating United States Government works

Sections 401(d) and 402(d) shall not apply to a work published in copies phonorecords consisting predominantly of one or more works of the Unit States Government unless the notice of copyright appearing on the publis copies or phonorecords to which a defendant in the copyright infringemer had access includes a statement identifying, either affirmatively or negat those portions of the copies or phonorecords embodying any work or wor protected under this title.

## § 404 · Notice of copyright: Contributions to collective works

(a) A separate contribution to a collective work may bear its own notic copyright, as provided by sections 401 through 403. However, a single no plicable to the collective work as a whole is sufficient to invoke the provisi section 401(d) or 402(d), as applicable with respect to the separate contri it contains (not including advertisements inserted on behalf of persons o than the owner of copyright in the collective work), regardless of the owne of copyright in the contributions and whether or not they have been previ published.

(b) With respect to copies and phonorecords publicly distributed by aut ity of the copyright owner before the effective date of the Berne Convent

Implementation Act of 1988, where the person named in a single notice a
cable to a collective work as a whole is not the owner of copyright in a se
contribution that does not bear its own notice, the case is governed by th
sions of section 406(a).

## § 405. Notice of copyright: Omission of notice on certain copies and phonorecords

(a) Effect of Omission on Copyright.—With respect to copies and pho-
norecords publicly distributed by authority of the copyright owner before t
effective date of the Berne Convention Implementation Act of 1988, the o
sion of the copyright notice described in sections 401 through 403 from co
or phonorecords publicly distributed by authority of the copyright owner d
not invalidate the copyright in a work if—

(1) the notice has been omitted from no more than a relatively small
ber of copies or phonorecords distributed to the public; or

(2) registration for the work has been made before or is made within
years after the publication without notice, and a reasonable effort is ma
add notice to all copies or phonorecords that are distributed to the publ
the United States after the omission has been discovered; or

(3) the notice has been omitted in violation of an express requireme
in writing that, as a condition of the copyright owner's authorization of
the public distribution of copies or phonorecords, they bear the prescrib
notice.

(b) Effect of Omission on Innocent Infringers.—Any person who
innocently infringes a copyright, in reliance upon an authorized copy or ph
record from which the copyright notice has been omitted and which was p
distributed by authority of the copyright owner before the effective date o
Berne Convention Implementation Act of 1988, incurs no liability for actua
statutory damages under section 504 for any infringing acts committed be
receiving actual notice that registration for the work has been made unde
408, if such person proves that he or she was misled by the omission of no
a suit for infringement in such a case the court may allow or disallow reco
of any of the infringer's profits attributable to the infringement, and may e
the continuation of the infringing undertaking or may require, as a conditi
permitting the continuation of the infringing undertaking, that the infringe
the copyright owner a reasonable license fee in an amount and on terms f
by the court.

(c) Removal of Notice.—Protection under this title is not affected by the
removal, destruction, or obliteration of the notice, without the authorizatio
the copyright owner, from any publicly distributed copies or phonorecords

## § 406. Notice of copyright: Error in name or date on certain copies and phonorecords[7]

(a) Error in Name.—With respect to copies and phonorecords publicly distributed by authority of the copyright owner before the effective date o Berne Convention Implementation Act of 1988, where the person named i copyright notice on copies or phonorecords publicly distributed by autho of the copyright owner is not the owner of copyright, the validity and ow ship of the copyright are not affected. In such a case, however, any perso innocently begins an undertaking that infringes the copyright has a com defense to any action for such infringement if such person proves that h she was misled by the notice and began the undertaking in good faith un purported transfer or license from the person named therein, unless befo undertaking was begun—

(1) registration for the work had been made in the name of the owne copyright; or

(2) a document executed by the person named in the notice and sho the ownership of the copyright had been recorded.

The person named in the notice is liable to account to the copyright ow all receipts from transfers or licenses purportedly made under the copyrig the person named in the notice.

(b) Error in Date.—When the year date in the notice on copies or pho-norecords distributed before the effective date of the Berne Convention Im mentation Act of 1988 by authority of the copyright owner is earlier than year in which publication first occurred, any period computed from the ye first publication under section 302 is to be computed from the year in the Where the year date is more than one year later than the year in which pu first occurred, the work is considered to have been published without any and is governed by the provisions of section 405.

(c) Omission of Name or Date.—Where copies or phonorecords publicly distributed before the effective date of the Berne Convention Implementa Act of 1988 by authority of the copyright owner contain no name or no da that could reasonably be considered a part of the notice, the work is cons to have been published without any notice and is governed by the provisi section 405 as in effect on the day before the effective date of the Berne tion Implementation Act of 1988.

## § 407. Deposit of copies or phonorecords for Library of Congr[8]

(a) Except as provided by subsection (c), and subject to the provisions o section (e), the owner of copyright or of the exclusive right of publication

work published in the United States shall deposit, within three months afte
date of such publication—

(1) two complete copies of the best edition; or

(2) if the work is a sound recording, two complete phonorecords of t
best edition, together with any printed or other visually perceptible mat
published with such phonorecords.

Neither the deposit requirements of this subsection nor the acquisition
sions of subsection (e) are conditions of copyright protection.

(b) The required copies or phonorecords shall be deposited in the Copyr
Office for the use or disposition of the Library of Congress. The Register of
rights shall, when requested by the depositor and upon payment of the fe
scribed by section 708, issue a receipt for the deposit.

(c) The Register of Copyrights may by regulation exempt any categorie
material from the deposit requirements of this section, or require deposit
one copy or phonorecord with respect to any categories. Such regulations
provide either for complete exemption from the deposit requirements of t
tion, or for alternative forms of deposit aimed at providing a satisfactory a
record of a work without imposing practical or financial hardships on the d
tor, where the individual author is the owner of copyright in a pictorial, gra
or sculptural work and (i) less than five copies of the work have been publ
or (ii) the work has been published in a limited edition consisting of numb
copies, the monetary value of which would make the mandatory deposit o
copies of the best edition of the work burdensome, unfair, or unreasonabl

(d) At any time after publication of a work as provided by subsection (a)
Register of Copyrights may make written demand for the required deposit
of the persons obligated to make the deposit under subsection (a). Unless
is made within three months after the demand is received, the person or p
on whom the demand was made are liable—

(1) to a fine of not more than $250 for each work; and

(2) to pay into a specially designated fund in the Library of Congress
total retail price of the copies or phonorecords demanded, or, if no reta
has been fixed, the reasonable cost to the Library of Congress of acqui
them; and

(3) to pay a fine of $2,500, in addition to any fine or liability imposed
der clauses (1) and (2), if such person willfully or repeatedly fails or refu
comply with such a demand.

(e) With respect to transmission programs that have been fixed and tra
ted to the public in the United States but have not been published, the Re
of Copyrights shall, after consulting with the Librarian of Congress and oth
interested organizations and officials, establish regulations governing the
tion, through deposit or otherwise, of copies or phonorecords of such prog
for the collections of the Library of Congress.

(1) The Librarian of Congress shall be permitted, under the standards conditions set forth in such regulations, to make a fixation of a transmis program directly from a transmission to the public, and to reproduce or or phonorecord from such fixation for archival purposes.

(2) Such regulations shall also provide standards and procedures by w the Register of Copyrights may make written demand, upon the owner right of transmission in the United States, for the deposit of a copy or pl record of a specific transmission program. Such deposit may, at the opt the owner of the right of transmission in the United States, be accompli by gift, by loan for purposes of reproduction, or by sale at a price not to ceed the cost of reproducing and supplying the copy or phonorecord. T regulations established under this clause shall provide reasonable perio not less than three months for compliance with a demand, and shall all extensions of such periods and adjustments in the scope of the demand methods for fulfilling it, as reasonably warranted by the circumstances. failure or refusal to comply with the conditions prescribed by such regu shall subject the owner of the right of transmission in the United States ability for an amount, not to exceed the cost of reproducing and supply copy or phonorecord in question, to be paid into a specially designated in the Library of Congress.

(3) Nothing in this subsection shall be construed to require the maki or retention, for purposes of deposit, of any copy or phonorecord of an published transmission program, the transmission of which occurs befo receipt of a specific written demand as provided by clause (2).

(4) No activity undertaken in compliance with regulations prescribed clauses (1) and (2) of this subsection shall result in liability if intended s assist in the acquisition of copies or phonorecords under this subsection

## § 408 · Copyright registration in general

(a) Registration Permissive.—At any time during the subsistence of the first term of copyright in any published or unpublished work in which the c right was secured before January 1, 1978, and during the subsistence of a right secured on or after that date, the owner of copyright or of any exclu right in the work may obtain registration of the copyright claim by deliveri to the Copyright Office the deposit specified by this section, together with application and fee specified by sections 409 and 708. Such registration is condition of copyright protection.

(b) Deposit for Copyright Registration.—Except as provided by subsection (c), the material deposited for registration shall include—

(1) in the case of an unpublished work, one complete copy or phono

(2) in the case of a published work, two complete copies or phonorec
of the best edition;

(3) in the case of a work first published outside the United States, one
plete copy or phonorecord as so published;

(4) in the case of a contribution to a collective work, one complete co
phonorecord of the best edition of the collective work.

Copies or phonorecords deposited for the Library of Congress under s
tion 407 may be used to satisfy the deposit provisions of this section, if
are accompanied by the prescribed application and fee, and by any addi
identifying material that the Register may, by regulation, require. The Reg
shall also prescribe regulations establishing requirements under which co
phonorecords acquired for the Library of Congress under subsection (e) of
tion 407, otherwise than by deposit, may be used to satisfy the deposit pr
of this section.

(c)Administrative Classification and Optional Deposit—

(1) The Register of Copyrights is authorized to specify by regulation t
ministrative classes into which works are to be placed for purposes of d
and registration, and the nature of the copies or phonorecords to be de
ited in the various classes specified. The regulations may require or pe
for particular classes, the deposit of identifying material instead of copi
phonorecords, the deposit of only one copy or phonorecord where two
normally be required, or a single registration for a group of related work
administrative classification of works has no significance with respect to
subject matter of copyright or the exclusive rights provided by this title

(2) Without prejudice to the general authority provided under clause
the Register of Copyrights shall establish regulations specifically permit
a single registration for a group of works by the same individual author,
first published as contributions to periodicals, including newspapers, wi
twelve-month period, on the basis of a single deposit, application, and r
tration fee, under the following conditions—

(A) if the deposit consists of one copy of the entire issue of the per
or of the entire section in the case of a newspaper, in which each con
tion was first published; and

(B) if the application identifies each work separately, including the
odical containing it and its date of first publication.

(3) As an alternative to separate renewal registrations under subsecti
of section 304, a single renewal registration may be made for a group o
by the same individual author, all first published as contributions to pe
odicals, including newspapers, upon the filing of a single application an
under all of the following conditions:

(A) the renewal claimant or claimants, and the basis of claim or cla
under section 304(a), is the same for each of the works; and

(B) the works were all copyrighted upon their first publication, eith
through separate copyright notice and registration or by virtue of a g
copyright notice in the periodical issue as a whole; and

(C) the renewal application and fee are received not more than twe
eight or less than twenty-seven years after the thirty-first day of Dec
of the calendar year in which all of the works were first published; an

(D) the renewal application identifies each work separately, includi
periodical containing it and its date of first publication.

(d) Corrections and Amplifications.—The Register may also establish, by regulation, formal procedures for the filing of an application for supplementary registration, to correct an error in a copyright registration or to amplify information given in a registration. Such application shall be accompanied by the fee provided by section 708, and shall clearly identify the registration to be corrected or amplified. The information contained in a supplementary registration augments but does not supersede that contained in the earlier registration.

(e) Published Edition of Previously Registered Work.—Registration for the first published edition of a work previously registered in unpublished form may be made even though the work as published is substantially the same as the unpublished version.

(f) Preregistration of Works Being Prepared for Commercial Distribution. —

(1) Rulemaking.—Not later than 180 days after the date of enactment of this subsection, the Register of Copyrights shall issue regulations to establish procedures for preregistration of a work that is being prepared for commercial distribution and has not been published.

(2) Class of works.—The regulations established under paragraph (1) shall permit preregistration for any work that is in a class of works that the Register determines has had a history of infringement prior to authorized commercial distribution.

(3) Application for registration.—Not later than 3 months after the first publication of a work preregistered under this subsection, the applicant shall submit to the Copyright Office–

(A) an application for registration of the work;

(B) a deposit; and

(C) the applicable fee.

(4) Effect of untimely application.—An action under this chapter for infringement of a work preregistered under this subsection, in a case in which the infringement commenced no later than 2 months after the first publication of the work, shall be dismissed if the items described in paragraph (3) are not submitted to the Copyright Office in proper form within the earlier of—

(A) 3 months after the first publication of the work; or

(B) 1 month after the copyright owner has learned of the infringem

## § 409 · Application for copyright registration

The application for copyright registration shall be made on a form presc
by the Register of Copyrights and shall include—

(1) the name and address of the copyright claimant;

(2) in the case of a work other than an anonymous or pseudonymous
the name and nationality or domicile of the author or authors, and, if or
more of the authors is dead, the dates of their deaths;

(3) if the work is anonymous or pseudonymous, the nationality or dor
of the author or authors;

(4) in the case of a work made for hire, a statement to this effect;

(5) if the copyright claimant is not the author, a brief statement of ho
claimant obtained ownership of the copyright;

(6) the title of the work, together with any previous or alternative tit
under which the work can be identified;

(7) the year in which creation of the work was completed;

(8) if the work has been published, the date and nation of its first pub

(9) in the case of a compilation or derivative work, an identification o
any preexisting work or works that it is based on or incorporates, and a
general statement of the additional material covered by the copyright c
being registered; and

(10) any other information regarded by the Register of Copyrights as
ing upon the preparation or identification of the work or the existence, c
ship, or duration of the copyright.

If an application is submitted for the renewed and extended term provid
for in section 304(a)(3)(A) and an original term registration has not been m
the Register may request information with respect to the existence, owne
duration of the copyright for the original term.

## § 410 · Registration of claim and issuance of certificate

(a) When, after examination, the Register of Copyrights determines tha
accordance with the provisions of this title, the material deposited constit
copyrightable subject matter and that the other legal and formal requirem
of this title have been met, the Register shall register the claim and issue
applicant a certificate of registration under the seal of the Copyright Offic
certificate shall contain the information given in the application, together
the number and effective date of the registration.

(b) In any case in which the Register of Copyrights determines that, in a
dance with the provisions of this title, the material deposited does not cor
copyrightable subject matter or that the claim is invalid for any other reas

Register shall refuse registration and shall notify the applicant in writing o
reasons for such refusal.

(c) In any judicial proceedings the certificate of a registration made bef
within five years after first publication of the work shall constitute prima fa
evidence of the validity of the copyright and of the facts stated in the cert
The evidentiary weight to be accorded the certificate of a registration mad
after shall be within the discretion of the court.

(d) The effective date of a copyright registration is the day on which an
cation, deposit, and fee, which are later determined by the Register of Co
or by a court of competent jurisdiction to be acceptable for registration, h
been received in the Copyright Office.

## § 411 · Registration and civil infringement actions

(a) Except for an action brought for a violation of the rights of the autho
der section 106A(a), and subject to the provisions of subsection (b), no civil ac
for infringement of the copyright in any United States work shall be institu
until preregistration or registration of the copyright claim has been made
cordance with this title. In any case, however, where the deposit, applicat
fee required for registration have been delivered to the Copyright Office in
form and registration has been refused, the applicant is entitled to institut
action for infringement if notice thereof, with a copy of the complaint, is s
on the Register of Copyrights. The Register may, at his or her option, beco
party to the action with respect to the issue of registrability of the copyrig
by entering an appearance within sixty days after such service, but the Re
failure to become a party shall not deprive the court of jurisdiction to dete
that issue.

(b)(1) A certificate of registration satisfies the requirements of this secti
section 412, regardless of whether the certificate contains any inaccurate
tion, unless—

(A) the inaccurate information was included on the applicatio
copyright registration with knowledge that it was inaccurate; and

(B) the inaccuracy of the information, if known, would have caused
Register of Copyrights to refuse registration.

(2) In any case in which inaccurate information described under paragr
is alleged, the court shall request the Register of Copyrights to advise t
whether the inaccurate information, if known, would have caused the R
of Copyrights to refuse registration.

(3) Nothing in this subsection shall affect any rights, obligations, or re
ments of a person related to information contained in a registration cer

except for the institution of and remedies in infringement actions under section and section 412.

(c) In the case of a work consisting of sounds, images, or both, the first of which is made simultaneously with its transmission, the copyright owner either before or after such fixation takes place, institute an action for infringement under section 501, fully subject to the remedies provided by sections through 505 and section 510, if, in accordance with requirements that the of Copyrights shall prescribe by regulation, the copyright owner—

(1) serves notice upon the infringer, not less than 48 hours before such tion, identifying the work and the specific time and source of its first transmission, and declaring an intention to secure copyright in the work; and

(2) makes registration for the work, if required by subsection (a), within three months after its first transmission.

### § 412. Registration as prerequisite to certain remedies for infringement[2]

In any action under this title, other than an action brought for a violation the rights of the author under section 106A(a), an action for infringement of the copyright of a work that has been preregistered under section 408(f) before commencement of the infringement and that has an effective date of registration not later than the earlier of 3 months after the first publication of the work month after the copyright owner has learned of the infringement, or an action instituted under section 411(c), no award of statutory damages or of attorney fees, as provided by sections 504 and 505, shall be made for—

(1) any infringement of copyright in an unpublished work commenced before the effective date of its registration; or

(2) any infringement of copyright commenced after first publication of the work and before the effective date of its registration, unless such registration is made within three months after the first publication of the work.

## Chapter 4 · Notes

1. The Prioritizing Resources and Organization for Intellectual Property Act of 2008 amended the title for section 411 by adding “civil” to it, so that the new title is “Registration for civil infringement actions.” Pub. L. No. 110-403, 122 Stat. 4256, 4258.

2. The Berne Convention Implementation Act of 1988 amended section 401 as follows: 1) in subsection (a), by changing the heading to “General Provisions” and by inserting “shall be placed on” in lieu of “shall be placed on all”; 2) in subsection (b), by inserting “If

appears on the copies, it" in lieu of "The notice appearing on the copies"; and 3) by subsection (d). Pub. L. No. 100-568, 102 Stat. 2853, 2857.

3. The Berne Convention Implementation Act of 1988 amended section 402 as fo 1) in subsection (a), by changing the heading to "General Provisions" and by inserti be placed on" in lieu of "shall be placed on all"; 2) in subsection (b), by inserting "If appears on the phonorecords, it" in lieu of "The notice appearing on the phonoreco and 3) by adding subsection (d). Pub. L. No. 100-568, 102 Stat. 2853, 2857.

4. The Berne Convention Implementation Act of 1988 amended section 403 in its Pub. L. No. 100-568, 102 Stat. 2853, 2858.

5. The Berne Convention Implementation Act of 1988 amended section 404 as fo 1) in the second sentence of subsection (a), by inserting "to invoke the provisions o 401(d) or 402(d), as applicable" in lieu of "to satisfy the requirements of sections 40 403" and 2) in subsection (b), by inserting "With respect to copies and phonorecord distributed by authority of the copyright owner before the effective date of the Ber vention Implementation Act of 1988," at the beginning of the sentence. Pub. L. No. 102 Stat. 2853, 2858.

6. The Berne Convention Implementation Act of 1988 amended section 405 as fo in subsection (a), by inserting "With respect to copies and phonorecords publicly di by authority of the copyright owner before the effective date of the Berne Conventi mentation Act of 1988, the omission of the copyright notice described in" at the be of the first sentence, in lieu of "The omission of the copyright notice prescribed by" subsection (b), by inserting after "omitted," in the first sentence, "and which was p distributed by authority of the copyright owner before the effective date of the Ber vention Implementation Act of 1988"; and 3) by amending the section heading to a certain copies and phonorecords" at the end thereof. Pub. L. No. 100-568, 102 Stat

7. The Berne Convention Implementation Act of 1988 amended section 406 as fo 1) in subsection (a), by inserting "With respect to copies and phonorecords publicly uted by authority of the copyright owner before the effective date of the Berne Con Implementation Act of 1988," at the beginning of the first sentence; 2) in subsectio inserting "before the effective date of the Berne Convention Implementation Act of after "distributed"; 3) in subsection (c), by inserting "before the effective date of th Convention Implementation Act of 1988" after "publicly distributed" and by insertin in effect on the day before the effective date of the Berne Convention Implementati of 1988" after "405"; and 4) by amending the section heading to add "on certain co phonorecords" at the end thereof. Pub. L. No. 100-568, 102 Stat. 2853, 2858.

8. The Berne Convention Implementation Act of 1988 amended section 407 by st out the words "with notice of copyright" in subsection (a). Pub. L. No. 100-568, 102 2853, 2859.

9. The Berne Convention Implementation Act of 1988 amended section 408 by de "Subject to the provisions of section 405(a)," at the beginning of the second sentenc section (a). Pub. L. No. 100-568, 102 Stat. 2853, 2859. That Act also amended secti (2) by inserting "the following conditions:" in lieu of "all of the following conditions" striking subparagraph (A) and by redesignating subparagraphs (B) and (C) as subpa (A) and (B), respectively. *Id*. The Copyright Renewal Act of 1992 amended section 4

revising the first sentence of subsection (a), preceding the words "the owner of cop
of any exclusive right." Pub. L. No. 102-307, 106 Stat. 264, 266.

The Artists' Rights and Theft Prevention Act of 2005 amended section 408 by add
new subsection (f). Pub. L. No. 109-9, 119 Stat. 218, 221.

10. The Copyright Renewal Act of 1992 amended section 409 by adding the last
Pub. L. No. 102-307, 106 Stat. 264, 266. The Copyright Cleanup, Clarification, and C
tions Act of 2010 amended section 409 to delete subsection (10) and redesignate s
(11) as (10). Pub. L. No. 111-295, 124 Stat. 3180.

11. The Berne Convention Implementation Act of 1988 amended section 411 as f
1) in subsection (a), by inserting "Except for actions for infringement of copyright in
Convention works whose country of origin is not the United States, and" before "sub
2) in paragraph (b)(2), by inserting ", if required by subsection (a)," after "work"; an
inserting "and infringement actions" in the heading, in lieu of "as prerequisite to int
ment suit." Pub. L. No. 100-568, 102 Stat. 2853, 2859.

The Visual Artists Rights Act of 1990 amended section 411(a) by inserting "and a
brought for a violation of the rights of the author under section 106A(a)" after "Uni
States." Pub. L. No. 101-650, 104 Stat. 5089, 5131. In 1997, section 411(b)(1) was a
its entirety. Pub. L. No. 105-80, 111 Stat. 1529, 1532.

The WIPO Copyright and Performances and Phonograms Treaties Implementation
of 1998 amended the first sentence in section 411(a) by deleting "actions for infring
copyright in Berne Convention works whose country of origin is not the United and"
by inserting "United States" after "no action for infringement of the copyright in an
L. No. 105-304, 112 Stat. 2860, 2863.

The Artists' Rights and Theft Prevention Act of 2005 amended subsection 411(a)
serting "preregistration" in the first sentence, after "shall be instituted until" in the
sentence. Pub. L. No. 109-9, 119 Stat. 218, 222.

The Prioritizing Resources and Organization for Intellectual Property Act of
amended the title for section 411 by inserting "civil," so that the new title is "Regist
and civil infringement actions." Pub. L. No. 110-403, 122 Stat. 4256, 4257. It also a
subsection (a) to insert "civil" before "action" in the first and second sentences. *Id*.
ignated subsection (b) as subsection (c) and added a new subsection (b). *Id*. at 425
Act also amended the newly designated subsection (c) to remove the reference to s
(which was repealed). *Id*. at 4257–58.

12. The Visual Artists Rights Act of 1990 amended section 412 by inserting "an a
brought for a violation of the rights of the author under section 106A(a) or" after "o
than." Pub. L. No. 101-650, 104 Stat. 5089, 5131.

The Artists' Rights and Theft Prevention Act of 2005 amended section 412 by ins
the clause that follows "section 106A(a)," in the text preceding subparagraph (1). P
109-9, 119 Stat. 218, 222.

The Prioritizing Resources and Organization for Intellectual Property Act of
amended section 412 by making a conforming amendment to substitute "subsectio
for "subsection 411(c)." Pub. L. No. 110-403, 122 Stat. 4256, 4258.

## Chapter 5

## Copyright Infringement and Remedies


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## § 501 · Infringement of copyright

(a) Anyone who violates any of the exclusive rights of the copyright ow
as provided by sections 106 through 122 or of the author as provided in s
106A(a), or who imports copies or phonorecords into the United States in v
tion of section 602, is an infringer of the copyright or right of the author, a
case may be. For purposes of this chapter (other than section 506), any re
to copyright shall be deemed to include the rights conferred by section 10
As used in this subsection, the term "anyone" includes any State, and any inst
tality of a State, and any officer or employee of a State or instrumentality
State acting in his or her official capacity. Any State, and any such instrun
ity, officer, or employee, shall be subject to the provisions of this title in th
manner and to the same extent as any nongovernmental entity.

(b) The legal or beneficial owner of an exclusive right under a copyright
entitled, subject to the requirements of section 411, to institute an action
infringement of that particular right committed while he or she is the own
of it. The court may require such owner to serve written notice of the act
with a copy of the complaint upon any person shown, by the records of t
Copyright Office or otherwise, to have or claim an interest in the copyrigh
shall require that such notice be served upon any person whose interest is
to be affected by a decision in the case. The court may require the joinder
shall permit the intervention, of any person having or claiming an interest
the copyright.

(c) For any secondary transmission by a cable system that embodies a p
mance or a display of a work which is actionable as an act of infringement
subsection (c) of section 111, a television broadcast station holding a copy
or other license to transmit or perform the same version of that work shall
purposes of subsection (b) of this section, be treated as a legal or benefici
if such secondary transmission occurs within the local service area of that
sion station.

(d) For any secondary transmission by a cable system that is actionable
act of infringement pursuant to section 111(c)(3), the following shall also
standing to sue: (i) the primary transmitter whose transmission has been
by the cable system; and (ii) any broadcast station within whose local serv
the secondary transmission occurs.

(e) With respect to any secondary transmission that is made by a satell
rier of a performance or display of a work embodied in a primary transmis
and is actionable as an act of infringement under section 119(a)(3), a netw
tion holding a copyright or other license to transmit or perform the same v
of that work shall, for purposes of subsection (b) of this section, be treated
legal or beneficial owner if such secondary transmission occurs within the
service area of that station.

(f)(1) With respect to any secondary transmission that is made by a sat carrier of a performance or display of a work embodied in a primary trans sion and is actionable as an act of infringement under section 122, a telev broadcast station holding a copyright or other license to transmit or perfo same version of that work shall, for purposes of subsection (b) of this sect treated as a legal or beneficial owner if such secondary transmission occu the local market of that station.

(2) A television broadcast station may file a civil action against any sa carrier that has refused to carry television broadcast signals, as require section 122(a)(2), to enforce that television broadcast station's rights section 338(a) of the Communications Act of 1934.

## § 502 · Remedies for infringement: Injunctions

(a) Any court having jurisdiction of a civil action arising under this title m subject to the provisions of section 1498 of title 28, grant temporary and f injunctions on such terms as it may deem reasonable to prevent or restrai fringement of a copyright.

(b) Any such injunction may be served anywhere in the United States or person enjoined; it shall be operative throughout the United States and sh enforceable, by proceedings in contempt or otherwise, by any United Stat having jurisdiction of that person. The clerk of the court granting the injun shall, when requested by any other court in which enforcement of the inju is sought, transmit promptly to the other court a certified copy of all the p in the case on file in such clerk's office.

## § 503 Remedies for infringement: Impounding and disposition of infringing articles

(a)(1) At any time while an action under this title is pending, the court may order the impounding, on such terms as it may deem reasonable—

(A) of all copies or phonorecords claimed to have been made or us violation of the exclusive right of the copyright owner;

(B) of all plates, molds, matrices, masters, tapes, film negatives, or articles by means of which such copies or phonorecords may be repr and

(C) of records documenting the manufacture, sale, or receipt of thi involved in any such violation, provided that any records seized unde subparagraph shall be taken into the custody of the court.

(2) For impoundments of records ordered under paragraph (1)(C), the shall enter an appropriate protective order with respect to discovery an of any records or information that has been impounded. The protective shall provide for appropriate procedures to ensure that confidential, pri proprietary, or privileged information contained in such records is not i properly disclosed or used.

(3) The relevant provisions of paragraphs (2) through (11) of section of the Trademark Act (15 U.S.C. 1116(d)(2) through (11)) shall extend t impoundment of records ordered under paragraph (1)(C) that is based u an ex parte application, notwithstanding the provisions of rule 65 of the eral Rules of Civil Procedure. Any references in paragraphs (2) through of section 34(d) of the Trademark Act to section 32 of such Act shall be as references to section 501 of this title, and references to use of a cou mark in connection with the sale, offering for sale, or distribution of goo services shall be read as references to infringement of a copyright.

(b) As part of a final judgment or decree, the court may order the destru or other reasonable disposition of all copies or phonorecords found to hav made or used in violation of the copyright owner's exclusive rights, and of plates, molds, matrices, masters, tapes, film negatives, or other articles b of which such copies or phonorecords may be reproduced.

## § 504. Remedies for infringement: Damages and profits

(a) In General.—Except as otherwise provided by this title, an infringer o copyright is liable for either—

(1) the copyright owner's actual damages and any additional profits o infringer, as provided by subsection (b); or

(2) statutory damages, as provided by subsection (c).

(b) Actual Damages and Profits.—The copyright owner is entitled to re- cover the actual damages suffered by him or her as a result of the infringer any profits of the infringer that are attributable to the infringement and ar taken into account in computing the actual damages. In establishing the inf profits, the copyright owner is required to present proof only of the infring gross revenue, and the infringer is required to prove his or her deductible e and the elements of profit attributable to factors other than the copyright

(c) Statutory Damages.—

(1) Except as provided by clause (2) of this subsection, the copyright may elect, at any time before final judgment is rendered, to recover, ins actual damages and profits, an award of statutory damages for all infrin involved in the action, with respect to any one work, for which any one is liable individually, or for which any two or more infringers are liable jo

and severally, in a sum of not less than $750 or more than $30,000 as t
considers just. For the purposes of this subsection, all the parts of a cor
or derivative work constitute one work.

(2) In a case where the copyright owner sustains the burden of provin
the court finds, that infringement was committed willfully, the court in i
cretion may increase the award of statutory damages to a sum of not m
$150,000. In a case where the infringer sustains the burden of proving,
court finds, that such infringer was not aware and had no reason to beli
his or her acts constituted an infringement of copyright, the court in its d
may reduce the award of statutory damages to a sum of not less than $
court shall remit statutory damages in any case where an infringer belie
had reasonable grounds for believing that his or her use of the copyrigh
was a fair use under section 107, if the infringer was: (i) an employee o
a nonprofit educational institution, library, or archives acting within the s
his or her employment who, or such institution, library, or archives itsel
infringed by reproducing the work in copies or phonorecords; or (ii) a pu
broadcasting entity which or a person who, as a regular part of the non
activities of a public broadcasting entity (as defined in section 118(f)) inf
performing a published nondramatic literary work or by reproducing a tr
sion program embodying a performance of such a work.

(3) (A) In a case of infringement, it shall be a rebuttable presumption
the infringement was committed willfully for purposes of determining re
if the violator, or a person acting in concert with the violator, knowingly
vided or knowingly caused to be provided materially false contact inform
to a domain name registrar, domain name registry, or other domain na
registration authority in registering, maintaining, or renewing a domain
used in connection with the infringement.

(B) Nothing in this paragraph limits what may be considered willful i
fringement under this subsection.

(C) For purposes of this paragraph, the term "domain name" has the
ing given that term in section 45 of the Act entitled "An Act to provide f
registration and protection of trademarks used in commerce, to carry o
provisions of certain international conventions, and for other purposes"
proved July 5, 1946 (commonly referred to as the "Trademark Act of 19
U .S .C. 1127).

(d) Additional Damages in Certain Cases.—In any case in which the
court finds that a defendant proprietor of an establishment who claims as
fense that its activities were exempt under section 110(5) did not have re
grounds to believe that its use of a copyrighted work was exempt under s
tion, the plaintiff shall be entitled to, in addition to any award of damages
this section, an additional award of two times the amount of the license fe

the proprietor of the establishment concerned should have paid the plaint
such use during the preceding period of up to 3 years.

### § 505. Remedies for infringement: Costs and attorney's fees

In any civil action under this title, the court in its discretion may allow th
recovery of full costs by or against any party other than the United States
ficer thereof. Except as otherwise provided by this title, the court may also
a reasonable attorney's fee to the prevailing party as part of the costs.

### § 506. Criminal offenses

(a) Criminal Infringement.—
(1) In general.—Any person who willfully infringes a copyright shall be
punished as provided under section 2319 of title 18, if the infringement
committed—
(A) for purposes of commercial advantage or private financial gain;
(B) by the reproduction or distribution, including by electronic mea
during any 180-day period, of 1 or more copies or phonorecords of 1
more copyrighted works, which have a total retail value of more than
$1,000; or
(C) by the distribution of a work being prepared for commercial dis
bution, by making it available on a computer network accessible to m
bers of the public, if such person knew or should have known that the
was intended for commercial distribution.
(2) Evidence.—For purposes of this subsection, evidence of reproduc-
tion or distribution of a copyrighted work, by itself, shall not be sufficient
establish willful infringement of a copyright.
(3) Definition.—In this subsection, the term "work being prepared for
commercial distribution" means—
(A) a computer program, a musical work, a motion picture or oth
audiovisual work, or a sound recording, if, at the time of unauthoriz
distribution—
(i) the copyright owner has a reasonable expectation of comm
cial distribution; and
(ii) the copies or phonorecords of the work have not been con
mercially distributed; or
(B) a motion picture, if, at the time of unauthorized distribution,
motion picture—

(i) has been made available for viewing in a motion picture ex
tion facility; and

(ii) has not been made available in copies for sale to the gene
public in the United States in a format intended to permit viewin
outside a motion picture exhibition facility.

(b) Forfeiture, Destruction, and Restitution.—Forfeiture, destruc-
tion, and restitution relating to this section shall be subject to section 232
18, to the extent provided in that section, in addition to any other similar r
provided by law.

(c) Fraudulent Copyright Notice.—Any person who, with fraudulent
intent, places on any article a notice of copyright or words of the same p
port that such person knows to be false, or who, with fraudulent intent, pu
distributes or imports for public distribution any article bearing such notic
words that such person knows to be false, shall be fined not more than $2

(d) Fraudulent Removal of Copyright Notice.—Any person who,
with fraudulent intent, removes or alters any notice of copyright appearin
copy of a copyrighted work shall be fined not more than $2,500.

(e) False Representation.—Any person who knowingly makes a false
representation of a material fact in the application for copyright registrat
provided for by section 409, or in any written statement filed in connectio
the application, shall be fined not more than $2,500.

(f) Rights of Attribution and Integrity.—Nothing in this section ap-
plies to infringement of the rights conferred by section 106A(a).

## § 507. Limitations on actions

(a) Criminal Proceedings.—Except as expressly provided otherwise in this
title, no criminal proceeding shall be maintained under the provisions of t
unless it is commenced within 5 years after the cause of action arose.

(b) Civil Actions.—No civil action shall be maintained under the provisio
of this title unless it is commenced within three years after the claim accr

## § 508. Notification of filing and determination of actions

(a) Within one month after the filing of any action under this title, the cl
of the courts of the United States shall send written notification to the Reg
of Copyrights setting forth, as far as is shown by the papers filed in the co
names and addresses of the parties and the title, author, and registration
ber of each work involved in the action. If any other copyrighted work is la
included in the action by amendment, answer, or other pleading, the clerk

also send a notification concerning it to the Register within one month aft
pleading is filed.

(b) Within one month after any final order or judgment is issued in the c
the clerk of the court shall notify the Register of it, sending with the notifi
a copy of the order or judgment together with the written opinion, if any,
court.

(c) Upon receiving the notifications specified in this section, the Registe
make them a part of the public records of the Copyright Office.

## § 509. [Repealed]

## § 510. Remedies for alteration of programming by cable syst

(a) In any action filed pursuant to section 111(c)(3), the following reme
shall be available:

(1) Where an action is brought by a party identified in subsections (b)
(c) of section 501, the remedies provided by sections 502 through 505,
remedy provided by subsection (b) of this section; and

(2) When an action is brought by a party identified in subsection (d)
section 501, the remedies provided by sections 502 and 505, together w
actual damages suffered by such party as a result of the infringement,
remedy provided by subsection (b) of this section.

(b) In any action filed pursuant to section 111(c)(3), the court may decr
for a period not to exceed thirty days, the cable system shall be deprived
benefit of a statutory license for one or more distant signals carried by su
system.

## § 511 Liability of States, instrumentalities of States, and State officials for infringement of copyright

(a) In General.—Any State, any instrumentality of a State, and any of-
ficer or employee of a State or instrumentality of a State acting in his or
official capacity, shall not be immune, under the Eleventh Amendment of
Constitution of the United States or under any other doctrine of sovereig
munity, from suit in Federal Court by any person, including any governme
or nongovernmental entity, for a violation of any of the exclusive rights c
copyright owner provided by sections 106 through 122, for importing cop

of phonorecords in violation of section 602, or for any other violation und
this title.

(b)Remedies.—In a suit described in subsection (a) for a violation describ
in that subsection, remedies (including remedies both at law and in equity
available for the violation to the same extent as such remedies are availa
such a violation in a suit against any public or private entity other than a
instrumentality of a State, or officer or employee of a State acting in his o
official capacity. Such remedies include impounding and disposition of inf
ing articles under section 503, actual damages and profits and statutory d
under section 504, costs and attorney's fees under section 505, and the re
provided in section 510.

## § 512 · Limitations on liability relating to material online

(a)Transitory Digital Network Communications.—A service pro-
vider shall not be liable for monetary relief, or, except as provided in subs
(j), for injunctive or other equitable relief, for infringement of copyright by
son of the provider's transmitting, routing, or providing connections for, m
rial through a system or network controlled or operated by or for the servi
provider, or by reason of the intermediate and transient storage of that m
in the course of such transmitting, routing, or providing connections, if—

(1) the transmission of the material was initiated by or at the directio
person other than the service provider;

(2) the transmission, routing, provision of connections, or storage is c
out through an automatic technical process without selection of the ma
by the service provider;

(3) the service provider does not select the recipients of the material
as an automatic response to the request of another person;

(4) no copy of the material made by the service provider in the cours
such intermediate or transient storage is maintained on the system or n
in a manner ordinarily accessible to anyone other than anticipated recip
and no such copy is maintained on the system or network in a manner
dinarily accessible to such anticipated recipients for a longer period tha
reasonably necessary for the transmission, routing, or provision of conn
tions; and

(5) the material is transmitted through the system or network withou
modification of its content.

(b)System Caching.—

(1)Limitation on liability.—A service provider shall not be liable for
monetary relief, or, except as provided in subsection (j), for injunctive o
equitable relief, for infringement of copyright by reason of the interme

and temporary storage of material on a system or network controlled or
ated by or for the service provider in a case in which—

(A) the material is made available online by a person other than th
service provider;

(B) the material is transmitted from the person described in subpa
graph (A) through the system or network to a person other than the p
described in subparagraph (A) at the direction of that other person; a

(C) the storage is carried out through an automatic technical proc
for the purpose of making the material available to users of the syste
network who, after the material is transmitted as described in subpar
(B), request access to the material from the person described in subp
graph (A), if the conditions set forth in paragraph (2) are met.

(2)Conditions.—The conditions referred to in paragraph (1) are that—

(A) the material described in paragraph (1) is transmitted to the s
sequent users described in paragraph (1)(C) without modification to
content from the manner in which the material was transmitted from
person described in paragraph (1)(A);

(B) the service provider described in paragraph (1) complies with r
concerning the refreshing, reloading, or other updating of the mater
when specified by the person making the material available online in
cordance with a generally accepted industry standard data commun
tions protocol for the system or network through which that person m
the material available, except that this subparagraph applies only if t
rules are not used by the person described in paragraph (1)(A) to pre
or unreasonably impair the intermediate storage to which this subsec
applies;

(C) the service provider does not interfere with the ability of techno
associated with the material to return to the person described in para
(1)(A) the information that would have been available to that person
material had been obtained by the subsequent users described in par
(1)(C) directly from that person, except that this subparagraph applie
if that technology—

(i) does not significantly interfere with the performance of the pr
er's system or network or with the intermediate storage of the mat

(ii) is consistent with generally accepted industry standard comm
nications protocols; and

(iii) does not extract information from the provider's system or n
work other than the information that would have been available to
person described in paragraph (1)(A) if the subsequent users had g
access to the material directly from that person;

(D) if the person described in paragraph (1)(A) has in effect a cond
that a person must meet prior to having access to the material, such

condition based on payment of a fee or provision of a password or oth
information, the service provider permits access to the stored materi
significant part only to users of its system or network that have met t
conditions and only in accordance with those conditions; and

(E) if the person described in paragraph (1)(A) makes that m
available online without the authorization of the copyright owner of th
material, the service provider responds expeditiously to remove, or d
access to, the material that is claimed to be infringing upon notificati
of claimed infringement as described in subsection (c)(3), except that
subparagraph applies only if—

(i) the material has previously been removed from the originatin
or access to it has been disabled, or a court has ordered that the m
be removed from the originating site or that access to the material
the originating site be disabled; and

(ii) the party giving the notification includes in the notification a
statement confirming that the material has been removed from the
inating site or access to it has been disabled or that a court has ord
that the material be removed from the originating site or that acce
the material on the originating site be disabled.

(c) Information Residing on Systems or Networks at Direction of Users.—

(1) In general.—A service provider shall not be liable for monetary relie
or, except as provided in subsection (j), for injunctive or other equitable
for infringement of copyright by reason of the storage at the direction o
user of material that resides on a system or network controlled or opera
by or for the service provider, if the service provider—

(A)(i) does not have actual knowledge that the material or an activ
using the material on the system or network is infringing;

(ii) in the absence of such actual knowledge, is not aware of fact
circumstances from which infringing activity is apparent; or

(iii) upon obtaining such knowledge or awareness, acts expeditio
to remove, or disable access to, the material;

(B) does not receive a financial benefit directly attributable to the
fringing activity, in a case in which the service provider has the right
ability to control such activity; and

(C) upon notification of claimed infringement as described in para
graph (3), responds expeditiously to remove, or disable access to, t
material that is claimed to be infringing or to be the subject of infring
activity.

(2) Designated agent.—The limitations on liability established in this subsection apply to a service provider only if the service provider has d
ignated an agent to receive notifications of claimed infringement descri

in paragraph (3), by making available through its service, including on website in a location accessible to the public, and by providing to the C right Office, substantially the following information:

(A) the name, address, phone number, and electronic mail address the agent.

(B) other contact information which the Register of Copyrights may d appropriate.

The Register of Copyrights shall maintain a current directory of agents a able to the public for inspection, including through the Internet, and m require payment of a fee by service providers to cover the costs of mai the directory.

(3)Elements of notification.—

(A) To be effective under this subsection, a notification of claimed i fringement must be a written communication provided to the designa agent of a service provider that includes substantially the following:

(i) A physical or electronic signature of a person authorized to ac behalf of the owner of an exclusive right that is allegedly infringed.

(ii) Identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works at a single online site a covered by a single notification, a representative list of such work that site.

(iii) Identification of the material that is claimed to be infringing o be the subject of infringing activity and that is to be removed or ac which is to be disabled, and information reasonably sufficient to pe the service provider to locate the material.

(iv) Information reasonably sufficient to permit the service provid to contact the complaining party, such as an address, telephone nu and, if available, an electronic mail address at which the complaini party may be contacted.

(v) A statement that the complaining party has a good faith belie use of the material in the manner complained of is not authorized b copyright owner, its agent, or the law.

(vi) A statement that the information in the notification is accura and under penalty of perjury, that the complaining party is authori to act on behalf of the owner of an exclusive right that is allegedly infringed.

(B)(i) Subject to clause (ii), a notification from a copyright owner o from a person authorized to act on behalf of the copyright owner that to comply substantially with the provisions of subparagraph (A) shall be considered under paragraph (1)(A) in determining whether a serv provider has actual knowledge or is aware of facts or circumstances f which infringing activity is apparent.

(ii) In a case in which the notification that is provided to the serv
provider's designated agent fails to comply substantially with all t
provisions of subparagraph (A) but substantially complies with clau
(ii), (iii), and (iv) of subparagraph (A), clause (i) of this subparagrap
applies only if the service provider promptly attempts to contact t
person making the notification or takes other reasonable steps to a
in the receipt of notification that substantially complies with all th
provisions of subparagraph (A).

(d) Information Location Tools.—A service provider shall not be liable for monetary relief, or, except as provided in subsection (j), for injunctive other equitable relief, for infringement of copyright by reason of the provi referring or linking users to an online location containing infringing materi or infringing activity, by using information location tools, including a direc index, reference, pointer, or hypertext link, if the service provider—

(1) (A) does not have actual knowledge that the material or ac infringing;

(B) in the absence of such actual knowledge, is not aware of facts circumstances from which infringing activity is apparent; or

(C) upon obtaining such knowledge or awareness, acts expeditious remove, or disable access to, the material;

(2) does not receive a financial benefit directly attributable to the infr ing activity, in a case in which the service provider has the right and ab control such activity; and

(3) upon notification of claimed infringement as described in subsecti (c)(3), responds expeditiously to remove, or disable access to, the mate is claimed to be infringing or to be the subject of infringing activity, exc that, for purposes of this paragraph, the information described in subse (c)(3)(A)(iii) shall be identification of the reference or link, to material or ity claimed to be infringing, that is to be removed or access to which is disabled, and information reasonably sufficient to permit the service pr to locate that reference or link.

(e) Limitation on Liability of Nonprofit Educational Institutions.— (1) When a public or other nonprofit institution of higher education is a se provider, and when a faculty member or graduate student who is an empl such institution is performing a teaching or research function, for the purp subsections (a) and (b) such faculty member or graduate student shall be ered to be a person other than the institution, and for the purposes of sub (c) and (d) such faculty member's or graduate student's knowledge or aw of his or her infringing activities shall not be attributed to the institution, i

(A) such faculty member's or graduate student's infringing activitie not involve the provision of online access to instructional materials th are or were required or recommended, within the preceding 3-year p

for a course taught at the institution by such faculty member or grad student;

(B) the institution has not, within the preceding 3-year period, rece more than 2 notifications described in subsection (c)(3) of claimed in ment by such faculty member or graduate student, and such notifica of claimed infringement were not actionable under subsection (f); an

(C) the institution provides to all users of its system or network inf mational materials that accurately describe, and promote compliance the laws of the United States relating to copyright.

(2) For the purposes of this subsection, the limitations on injunctive r contained in subsections (j)(2) and (j)(3), but not those in (j)(1), shall ap

(f) Misrepresentations.—Any person who knowingly materially misrep-resents under this section—

(1) that material or activity is infringing, or

(2) that material or activity was removed or disabled by mistake or misidentification,

shall be liable for any damages, including costs and attorneys' fees, incur the alleged infringer, by any copyright owner or copyright owner's authori licensee, or by a service provider, who is injured by such misrepresentatio the result of the service provider relying upon such misrepresentation in r ing or disabling access to the material or activity claimed to be infringing, replacing the removed material or ceasing to disable access to it.

(g) Replacement of Removed or Disabled Material and Limitation on Other Liability.—

(1) No liability for taking down generally.—Subject to paragraph (2), a service provider shall not be liable to any person for any claim ba the service provider's good faith disabling of access to, or removal of, m or activity claimed to be infringing or based on facts or circumstances f which infringing activity is apparent, regardless of whether the materia activity is ultimately determined to be infringing.

(2) Exception.—Paragraph (1) shall not apply with respect to material residing at the direction of a subscriber of the service provider on a sys network controlled or operated by or for the service provider that is rem or to which access is disabled by the service provider, pursuant to a no provided under subsection (c)(1)(C), unless the service provider—

(A) takes reasonable steps promptly to notify the subscriber that it removed or disabled access to the material;

(B) upon receipt of a counter notification described in paragraph ( promptly provides the person who provided the notification under su section (c)(1)(C) with a copy of the counter notification, and informs t person that it will replace the removed material or cease disabling ac it in 10 business days; and

(C) replaces the removed material and ceases disabling access to i
less than 10, nor more than 14, business days following receipt of the
ter notice, unless its designated agent first receives notice from the
son who submitted the notification under subsection (c)(1)(C) that su
person has filed an action seeking a court order to restrain the subsc
from engaging in infringing activity relating to the material on the se
provider's system or network.

(3)Contents of counter notification.—To be effective under this subsection, a counter notification must be a written communication pro to the service provider's designated agent that includes substanti following:

(A) A physical or electronic signature of the subscriber.

(B) Identification of the material that has been removed or to whic
access has been disabled and the location at which the material appe
before it was removed or access to it was disabled.

(C) A statement under penalty of perjury that the subscriber has a
faith belief that the material was removed or disabled as a result of m
or misidentification of the material to be removed or disabled.

(D) The subscriber's name, address, and telephone number, and a
ment that the subscriber consents to the jurisdiction of Federal Distr
Court for the judicial district in which the address is located, or if the
scriber's address is outside of the United States, for any judicial distri
which the service provider may be found, and that the subscriber will
service of process from the person who provided notification under su
tion (c)(1)(C) or an agent of such person.

(4)Limitation on other liability.—A service provider's compliance with paragraph (2) shall not subject the service provider to liability for c right infringement with respect to the material identified in the notice p vided under subsection (c)(1)(C).

(h)Subpoena to Identify Infringer.—

(1)Request.—A copyright owner or a person authorized to act on the owner's behalf may request the clerk of any United States district court sue a subpoena to a service provider for identification of an alleged infr in accordance with this subsection.

(2)Contents of request.—The request may be made by filing with the clerk—

(A) a copy of a notification described in subsection (c)(3)(A);

(B) a proposed subpoena; and

(C) a sworn declaration to the effect that the purpose for which th
subpoena is sought is to obtain the identity of an alleged infringer an
such information will only be used for the purpose of protecting righ
under this title.

(3) Contents of subpoena.—The subpoena shall authorize and order the service provider receiving the notification and the subpoena to expediti disclose to the copyright owner or person authorized by the copyright o formation sufficient to identify the alleged infringer of the material desc the notification to the extent such information is available to the service

(4) Basis for granting subpoena.—If the notification filed satisfies the provisions of subsection (c)(3)(A), the proposed subpoena is in pro form, and the accompanying declaration is properly executed, the clerk expeditiously issue and sign the proposed subpoena and return it to the quester for delivery to the service provider.

(5) Actions of service provider receiving subpoena.—Upon receipt of the issued subpoena, either accompanying or subsequent to th of a notification described in subsection (c)(3)(A), the service provider s expeditiously disclose to the copyright owner or person authorized by copyright owner the information required by the subpoena, notwithsta ing any other provision of law and regardless of whether the service pro responds to the notification.

(6) Rules applicable to subpoena.—Unless otherwise provided by this section or by applicable rules of the court, the procedure for issuance delivery of the subpoena, and the remedies for noncompliance with the poena, shall be governed to the greatest extent practicable by those pr of the Federal Rules of Civil Procedure governing the issuance, service, enforcement of a subpoena *duces tecum*.

(i) Conditions for Eligibility.—

(1) Accommodation of technology.—The limitations on liability established by this section shall apply to a service provider only if the ser provider—

(A) has adopted and reasonably implemented, and informs subscri and account holders of the service provider's system or network of, a that provides for the termination in appropriate circumstances of sub ers and account holders of the service provider's system or network are repeat infringers; and

(B) accommodates and does not interfere with standard tech measures.

(2) Definition.—As used in this subsection, the term "standard techni cal measures" means technical measures that are used by copyright ow identify or protect copyrighted works and—

(A) have been developed pursuant to a broad consensus of copyri owners and service providers in an open, fair, voluntary, multi-indus standards process;

(B) are available to any person on reasonable and nondiscriminato terms; and

(C) do not impose substantial costs on service providers or substan
burdens on their systems or networks.

(j) Injunctions.—The following rules shall apply in the case of any applica
tion for an injunction under section 502 against a service provider that is
subject to monetary remedies under this section:

(1) Scope of relief.—(A) With respect to conduct other than that which
qualifies for the limitation on remedies set forth in subsection (a), the c
may grant injunctive relief with respect to a service provider only in one
more of the following forms:

(i) An order restraining the service provider from providing acces
infringing material or activity residing at a particular online site on
provider's system or network.

(ii) An order restraining the service provider from providing acce
to a subscriber or account holder of the service provider's system
network who is engaging in infringing activity and is identified in th
order, by terminating the accounts of the subscriber or account ho
that are specified in the order.

(iii) Such other injunctive relief as the court may consider necess
to prevent or restrain infringement of copyrighted material specifi
in the order of the court at a particular online location, if such relie
the least burdensome to the service provider among the forms of r
comparably effective for that purpose.

(B) If the service provider qualifies for the limitation on remedies d
scribed in subsection (a), the court may only grant injunctive relief in
or both of the following forms:

(i) An order restraining the service provider from providing acces
to a subscriber or account holder of the service provider's system
network who is using the provider's service to engage in infringing
tivity and is identified in the order, by terminating the accounts of
subscriber or account holder that are specified in the order.

(ii) An order restraining the service provider from providing acce
by taking reasonable steps specified in the order to block access,
specific, identified, online location outside the United States.

(2) Considerations.—The court, in considering the relevant criteria for
injunctive relief under applicable law, shall consider—

(A) whether such an injunction, either alone or in combination with
other such injunctions issued against the same service provider unde
subsection, would significantly burden either the provider or the oper
of the provider's system or network;

(B) the magnitude of the harm likely to be suffered by the copyrig
owner in the digital network environment if steps are not taken to pre
or restrain the infringement;

(C) whether implementation of such an injunction would be technic
feasible and effective, and would not interfere with access to noninfri
material at other online locations; and

(D) whether other less burdensome and comparably effective mea
preventing or restraining access to the infringing material are availab

(3) Notice and ex parte orders.—Injunctive relief under this subsec-
tion shall be available only after notice to the service provider and an
portunity for the service provider to appear are provided, except for orc
ensuring the preservation of evidence or other orders having no mate
adverse effect on the operation of the service provider's communicati
network.

(k) Definitions.—

(1) Service provider.—(A) As used in subsection (a), the term "service
provider" means an entity offering the transmission, routing, or provid
of connections for digital online communications, between or among po
specified by a user, of material of the user's choosing, without modifica
the content of the material as sent or received.

(B) As used in this section, other than subsection (a), the term "se
provider" means a provider of online services or network access, or
operator of facilities therefor, and includes an entity described in su
paragraph (A).

(2) Monetary relief.—As used in this section, the term "monetary re-
lief" means damages, costs, attorneys' fees, and any other form of mor
payment.

(l) Other Defenses Not Affected.—The failure of a service provider's
conduct to qualify for limitation of liability under this section shall not be
adversely upon the consideration of a defense by the service provider th
the service provider's conduct is not infringing under this title or any oth
defense

(m) Protection of Privacy.—Nothing in this section shall be construed
to condition the applicability of subsections (a) through (d) on—

(1) a service provider monitoring its service or affirmatively seeking f
indicating infringing activity, except to the extent consistent with a star
technical measure complying with the provisions of subsection (i); or

(2) a service provider gaining access to, removing, or disabling acce
material in cases in which such conduct is prohibited by law.

(n) Construction.—Subsections (a), (b), (c), and (d) describe separate ar
distinct functions for purposes of applying this section. Whether a service
vider qualifies for the limitation on liability in any one of those subsections
be based solely on the criteria in that subsection, and shall not affect a de
nation of whether that service provider qualifies for the limitations on liab
under any other such subsection.

## § 513 Determination of reasonable license fees for individual proprietors

In the case of any performing rights society subject to a consent decree provides for the determination of reasonable license rates or fees to be ch by the performing rights society, notwithstanding the provisions of that co decree, an individual proprietor who owns or operates fewer than 7 nonpu traded establishments in which nondramatic musical works are performed licly and who claims that any license agreement offered by that performin society is unreasonable in its license rate or fee as to that individual propr shall be entitled to determination of a reasonable license rate or fee as fo

(1) The individual proprietor may commence such proceeding for de mination of a reasonable license rate or fee by filing an application in th plicable district court under paragraph (2) that a rate disagreement exis by serving a copy of the application on the performing rights society. Su proceeding shall commence in the applicable district court within 90 da the service of such copy, except that such 90-day requirement shall be to the administrative requirements of the court.

(2) The proceeding under paragraph (1) shall be held, at the individua prietor's election, in the judicial district of the district court with jurisdic over the applicable consent decree or in that place of holding court of a court that is the seat of the Federal circuit (other than the Court of Appe the Federal Circuit) in which the proprietor's establishment is located.

(3) Such proceeding shall be held before the judge of the court with j tion over the consent decree governing the performing rights society. A discretion of the court, the proceeding shall be held before a special ma magistrate judge appointed by such judge. Should that consent decree for the appointment of an advisor or advisors to the court for any purpo such advisor shall be the special master so named by the court.

(4) In any such proceeding, the industry rate shall be presumed to h been reasonable at the time it was agreed to or determined by the cou presumption shall in no way affect a determination of whether the rate correctly applied to the individual proprietor.

(5) Pending the completion of such proceeding, the individual proprie shall have the right to perform publicly the copyrighted musical compos in the repertoire of the performing rights society by paying an interim li rate or fee into an interest bearing escrow account with the clerk of the subject to retroactive adjustment when a final rate or fee has been dete in an amount equal to the industry rate, or, in the absence of an industr the amount of the most recent license rate or fee agreed to by the parti

(6) Any decision rendered in such proceeding by a special master or istrate judge named under paragraph (3) shall be reviewed by the judg

the court with jurisdiction over the consent decree governing the perfo
ing rights society. Such proceeding, including such review, shall be con
within 6 months after its commencement.

(7) Any such final determination shall be binding only as to the indivi
proprietor commencing the proceeding, and shall not be applicable to
other proprietor or any other performing rights society, and the perform
rights society shall be relieved of any obligation of nondiscrimination ar
similarly situated music users that may be imposed by the consent de
governing its operations.

(8) An individual proprietor may not bring more than one proceeding
vided for in this section for the determination of a reasonable license ra
under any license agreement with respect to any one performing rights

(9) For purposes of this section, the term "industry rate" means the li
fee a performing rights society has agreed to with, or which has been d
mined by the court for, a significant segment of the music user industry
which the individual proprietor belongs.

## Chapter 5 · Notes

1. See note 8, *infra*.

2. In 1998, two sections 512 were enacted into law. First, on October 17, 1998, th
in Music Licensing Act of 1998 was enacted. This Act amended chapter 5 to add sec
entitled "Determination of reasonable license fees for individual proprietors." Pub. L
105-298, 112 Stat. 2827, 2831. Second, on October 28, 1998, the Online Copyright
ment Liability Limitation Act was enacted. This Act amended chapter 5 to add sectio
entitled "Limitations on liability relating to material online." Pub. L. No. 105-304, 11
2860, 2877. Consequently, in 1999, a technical correction was enacted to redesign
section 512 that was entitled "Determination of reasonable license fees for individu
prietors" as section 513. Also, the table of sections was amended to reflect that cha
L. No. 106-44, 113 Stat. 221. See also note 12, *infra*.

3. The Berne Convention Implementation Act of 1988 amended section 501(b) by
out "sections 205(d) and 411" and inserting in lieu thereof "section 411." Pub. L. No
102 Stat. 2853, 2860. The Satellite Home Viewer Act of 1988 amended section 501
subsection (e). Pub. L. No. 100-667, 102 Stat. 3935, 3957.

In 1990, the Copyright Remedy Clarification Act amended section 501(a) by addi
last two sentences. Pub. L. No. 101-553, 104 Stat. 2749. The Visual Artists Rights A
also amended section 501(a) as follows: 1) by inserting "or of the author as provide
tion 106A(a)" after "118" and 2) by striking out "copyright." and inserting in lieu th
"copyright or right of the author, as the case may be. For purposes of this chapter (
section 506), any reference to copyright shall be deemed to include the rights conf
section 106A(a)." Pub. L. No. 101-650, 104 Stat. 5089, 5131.

In 1999, a technical correction amended the first sentence in subsection 501(a) b ing "121" in lieu of "118." Pub. L. No. 106-44, 113 Stat. 221, 222. The Satellite Hom Improvement Act of 1999 amended section 501 by adding a subsection (f) and, in s (e), by inserting "performance or display of a work embodied in a primary transmiss lieu of "primary transmission embodying the performance or display of a work." Pul 106-113, 113 Stat. 1501, app. I at 1501A-527 and 544. The Satellite Home Viewer I Act of 1999 states that section 501(f) shall be effective as of July 1, 1999. Pub. L. No 113 Stat. 1501, app. I at 1501A-544.

The Intellectual Property and High Technology Technical Amendments Act of 20 amended section 501(a) by substituting sections "106 through 122" for "106 throu Pub. L. No. 107-273, 116 Stat. 1758, 1909.

The Satellite Television Community Protection and Promotion Act of 2019 made a forming amendment to section 501(e) by striking "section 119(a)(5)" and inserting 119(a)(3)." Pub. L. No. 116-94, 133 Stat. 2534, 3203.

4. The Prioritizing Resources and Organization for Intellectual Property Act of 20 amended section 503 by revising subsection (a) in its entirety. Pub. L. No. 110-403, 4256, 4258. A technical correction in the Copyright Cleanup, Clarification, and Corre Act of 2010 amended section 503(a)(1)(B) to substitute "copies or phonorecords" fo of phonorecords." Pub. L. No. 111-295, 124 Stat. 3180, 3181.

5. The Berne Convention Implementation Act of 1988 amended section 504(c) as 1) in paragraph (1), by inserting "$500" in lieu of "$250" and by inserting "$20,000 of "$10,000" and 2) in paragraph (2), by inserting "$100,000" in lieu of "$50,000" a inserting "$200" in lieu of "$100." Pub. L. No. 100-568, 102 Stat. 2853, 2860. The D Deterrence and Copyright Damages Improvement Act of 1999 amended section 50 paragraph (1), by substituting "$750" for "$500" and "$30,000" for "$20,000" and, graph (2), by substituting "$150,000" for "$100,000." Pub. L. No. 106-160, 113 Sta

The Fraudulent Online Identity Sanctions Act of 2004 amended section 504(c) by a new subparagraph (3). Pub. L. No. 108-482, 118 Stat. 3912, 3916. The Copyright Clarification, and Corrections Act of 2010 amended paragraph 504(c)(2) to change erence from "subsection (g) of section 118" to "section 118(f)." Pub. L. No. 111-295 3180, 3181.

6. The Piracy and Counterfeiting Amendments Act of 1982 amended section 506 stituting a new subsection (a). Pub. L. No. 97-180, 96 Stat. 91, 93. The Visual Artists Act of 1990 amended section 506 by adding subsection (f). Pub. L. No.101-650, 104 5131. In 1997, the No Electronic Theft Act again amended section 506 by amending subsection (a) in its entirety. Pub. L. No. 105-147, 111 Stat. 2678. That Act also dire United States Sentencing Commission to "ensure that the applicable guideline rang defendant convicted of a crime against intellectual property ... is sufficiently stringe deter such a crime" and to "ensure that the guidelines provide for consideration of value and quantity of the items with respect to which the crime against intellectual was committed." Pub. L. No. 105-147, 111 Stat. 2678, 2680. See also note 4 in App

The Artists' Rights and Theft Prevention Act of 2005 amended subsection 506(a) entirety. Pub. L. No. 109-9, 119 Stat. 218, 220.

The Prioritizing Resources and Organization for Intellectual Property Act of
amended section 506 by revising subsection (b) in its entirety. Pub. L. No. 110-403,
4256, 4260.

7. In 1997, the No Electronic Theft (NET) Act amended section 507(a) by insertin
lieu of "three." Pub. L. No. 105-147, 111 Stat. 2678.

8. The Prioritizing Resources and Organization for Intellectual Property Act of 20
repealed section 509. Pub. L. No. 110-403, 122 Stat. 4256, 4260. In lieu of this prov
to section 2323, chapter 113 of title 18, *United States Code*, entitled, "Forfeiture, D
and Restitution." Section 2323 is included in Appendix N to this volume.

9. The Satellite Home Viewer Improvement Act of 1999 amended the heading for
510 by substituting "programming" for "programing" and, in subsection (b), by sub
"statutory" for "compulsory." Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-5

10. In 1990, the Copyright Remedy Clarification Act added section 511. Pub. L. N
553, 104 Stat. 2749. In 1999, a technical correction amended subsection 511(a) by
"121" in lieu of "119." Pub. L. No. 106-44, 113 Stat. 221, 222. The Intellectual Prope
Technology Technical Amendments Act of 2002 amended section 511(a) by substit
sections "106 through 122" for "106 through 121." Pub. L. No. 107-273, 116 Stat. 1

11. In 1998, the Online Copyright Infringement Liability Limitation Act added sect
Pub. L. No. 105-304, 112 Stat. 2860, 2877. In 1999, a technical correction deleted t
for paragraph (2) of section 512(e), which was "Injunctions." Pub. L. No. 106-44, 11
222. The Copyright Cleanup, Clarification, and Corrections Act of 2010 amended the
sentence in paragraph 512(c)(2)(B) by deleting "in both electronic and hard copy fo
after "through the Internet." Pub. L. No. 111-295, 124 Stat. 3180, 3180.

12. The Fairness in Music Licensing Act of 1998 added section 513. Pub. L. No. 10
112 Stat. 2827, 2831. This section was originally designated as section 512. Howev
two sections 512 had been enacted into law in 1998, a technical amendment redes
this as section 513. Pub. L. No. 106-44, 113 Stat. 221. See also note 2, *supra.*

# Chapter 6

## Importation and Exportation


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| 602 | *Infringing importation or exportation of copies or phonorecords* | 222 |
| 603 | *Importation prohibitions: Enforcement and disposition of excluded articles* | 223 |

## § 601 [Repealed]

## § 602 · Infringing importation or exportation of copies or phonorecords

(a) Infringing Importation or Exportation.—

(1) Importation.—Importation into the United States, without the authority of the owner of copyright under this title, of copies or phonorecords of a work that have been acquired outside the United States is an infringement of the exclusive right to distribute copies or phonorecords under section actionable under section 501.

(2) Importation or exportation of infringing items.—Importation into the United States or exportation from the United States, without the authority of the owner of copyright under this title, of copies or phonorecords, the making of which either constituted an infringement of copyright or which would have constituted an infringement of copyright if this title been applicable, is an infringement of the exclusive right to distribute copies or phonorecords under section 106, actionable under sections 501 and

(3) Exceptions.—This subsection does not apply to—

(A) importation or exportation of copies or phonorecords under the authority or for the use of the Government of the United States or of a State or political subdivision of a State, but not including copies or phonorecords for use in schools, or copies of any audiovisual work imported for purposes other than archival use;

(B) importation or exportation, for the private use of the importer or exporter and not for distribution, by any person with respect to no more than one copy or phonorecord of any one work at any one time, or by any person arriving from outside the United States or departing from the United States with respect to copies or phonorecords forming part of the person's personal baggage; or

(C) importation by or for an organization operated for scholarly, educational, or religious purposes and not for private gain, with respect to more than one copy of an audiovisual work solely for its archival purpose and no more than five copies or phonorecords of any other work for its library lending or archival purposes, unless the importation of such copies or phonorecords is part of an activity consisting of systematic reproduction or distribution, engaged in by such organization in violation of the provisions of section 108(g)(2).

(b) Import Prohibition.—In a case where the making of the copies or phonorecords would have constituted an infringement of copyright if this title been applicable, their importation is prohibited. In a case where the copies

phonorecords were lawfully made, the United States Customs and Border tection Service has no authority to prevent their importation. In either cas Secretary of the Treasury is authorized to prescribe, by regulation, a proc under which any person claiming an interest in the copyright in a particul may, upon payment of a specified fee, be entitled to notification by the U States Customs and Border Protection Service of the importation of article appear to be copies or phonorecords of the work.

### § 603. Importation prohibitions: Enforcement and disposition of excluded articles[2]

(a) The Secretary of the Treasury and the United States Postal Service separately or jointly make regulations for the enforcement of the provisio this title prohibiting importation.

(b) These regulations may require, as a condition for the exclusion of ar under section 602—

(1) that the person seeking exclusion obtain a court order enjoining i tation of the articles; or

(2) that the person seeking exclusion furnish proof, of a specified nat in accordance with prescribed procedures, that the copyright in which s person claims an interest is valid and that the importation would violate prohibition in section 602; the person seeking exclusion may also be re to post a surety bond for any injury that may result if the detention or e sion of the articles proves to be unjustified.

(c) Articles imported in violation of the importation prohibitions of this t are subject to seizure and forfeiture in the same manner as property impo in violation of the customs revenue laws. Forfeited articles shall be destro directed by the Secretary of the Treasury or the court, as the case may be

## Chapter 6 · Notes

1. The Prioritizing Resources and Organization for Intellectual Property Act of 2008 a ed the title of Chapter 6 to add “Exportation” to it, so that now the title is “Manufac Requirements, Importation, and Exportation.” Pub. L. No. 110-403, 122 Stat. 4256, The Copyright Cleanup, Clarification, and Corrections Act of 2010 amended chapter repealing section 601, entitled “Manufacture, importation, and public distribution o copies.” Pub. L. No. 111-295, 124 Stat. 3180. It also deleted “Manufacturing Requir from the beginning of the title for chapter six. *Id*.

2. See note 4, *infra*.

3. The Prioritizing Resources and Organization for Intellectual Property Act of 20
amended the title of section 602 in the table of contents by adding "Exportation" to
that the new title is "Infringing importation or exportation of copies or phonorecords
L. No. 110-403, 122 Stat. 4256, 4260.

4. In 1982, section 601(a) was amended in the first sentence by substituting "198
"1982." Pub. L. No. 97-215, 96 Stat. 178. The Prioritizing Resources and Organizatio
tellectual Property Act of 2008 amended the first sentence of subpart 601(b)(2) by
"and Border Protection" after "United States Customs." Pub. L. No. 110-403, 122 Sta
4260. The Copyright Cleanup, Clarification, and Corrections Act of 2010 repealed se
601. Pub. L. No. 111-295, 124 Stat. 3180.

5. The Prioritizing Resources and Organization for Intellectual Property Act of 20
amended the title of section 602 by adding "Exportation" to it, so the new title is "I
ing importation or exportation of copies or phonorecords." Pub. L. No. 110-403, 122
4256, 4260. The Act also amended section 602(a) by dividing it into paragraphs (1)
(3); by adding paragraph (2); and by adding references to exports throughout. *Id.* a
60. It further amended subsection 602(b) by inserting the subtitle, "Import Prohibiti
the beginning and adding references to the United Stated Customs and Border Prot
Service. *Id.* at 4260. The Copyright Cleanup, Clarification, and Corrections Act of 20
made a conforming amendment to subsection 602(b) to eliminate the reference to
601, which the Act had repealed, by deleting at the end of the second sentence "ur
provisions of section 601 are applicable." Pub. L. No. 111-295, 124 Stat. 3180, 3181

6. The Anticounterfeiting Consumer Protection Act of 1996 amended the last sen
of section 603(c) by deleting the semicolon and all text immediately following the w
the case may be." Pub. L. No. 104-153, 110 Stat. 1386, 1388.

# Chapter 17

# Copyright Office


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## § 701. The Copyright Office: General responsibilities and organization

(a) All administrative functions and duties under this title, except as oth
specified, are the responsibility of the Register of Copyrights as director o
Copyright Office of the Library of Congress. The Register of Copyrights, to
with the subordinate officers and employees of the Copyright Office, shall
pointed by the Librarian of Congress, and shall act under the Librarian's g
direction and supervision.

(b) In addition to the functions and duties set out elsewhere in this chap
Register of Copyrights shall perform the following functions:

(1) Advise Congress on national and international issues relating to c
right, other matters arising under this title, and related matters.

(2) Provide information and assistance to Federal departments and a
and the Judiciary on national and international issues relating to copyrig
other matters arising under this title, and related matters.

(3) Participate in meetings of international intergovernmental organ
tions and meetings with foreign government officials relating to copyri
other matters arising under this title, and related matters, including as
ber of United States delegations as authorized by the appropriate Execu
branch authority.

(4) Conduct studies and programs regarding copyright, other matters
ing under this title, and related matters, the administration of the Copy
Office, or any function vested in the Copyright Office by law, including e
cational programs conducted cooperatively with foreign intellectual pro
offices and international intergovernmental organizations.

(5) Perform such other functions as Congress may direct, or as may b
propriate in furtherance of the functions and duties specifically set forth
this title.

(c) The Register of Copyrights shall adopt a seal to be used on and after
ary 1, 1978, to authenticate all certified documents issued by the Copyrig

(d) The Register of Copyrights shall make an annual report to the Librar
Congress of the work and accomplishments of the Copyright Office during
previous fiscal year. The annual report of the Register of Copyrights shall
lished separately and as a part of the annual report of the Librarian of Co

(e) Except as provided by section 706(b) and the regulations issued the
all actions taken by the Register of Copyrights under this title are subject
provisions of the Administrative Procedure Act of June 11, 1946, as amend
60 Stat. 237, title 5, United States Code, Chapter 5, Subchapter II and Cha

(f) The Register of Copyrights shall be compensated at the greater of t
rate of pay in effect for level III of the Executive Schedule under section 5
title 5, or the maximum annual rate of basic pay payable under section 537

such title for positions at agencies with a performance appraisal system c
under section 5307(d) of such title. The Librarian of Congress shall establi
more than four positions for Associate Registers of Copyrights, in accorda
with the recommendations of the Register of Copyrights. The Librarian sha
make appointments to such positions after consultation with the Registe
Copyrights. The rate of basic pay for each Associate Register of Copyright
be fixed in accordance with section 5376 of title 5.

### § 702 · Copyright Office regulations

The Register of Copyrights is authorized to establish regulations not inc
sistent with law for the administration of the functions and duties made t
responsibility of the Register under this title. All regulations established by
Register under this title are subject to the approval of the Librarian of Con

### § 703 · Effective date of actions in Copyright Office

In any case in which time limits are prescribed under this title for the p
formance of an action in the Copyright Office, and in which the last day of
prescribed period falls on a Saturday, Sunday, holiday, or other nonbusine
within the District of Columbia or the Federal Government, the action may
taken on the next succeeding business day, and is effective as of the date
the period expired.

### § 704 · Retention and disposition of articles deposited in Copyright Office

(a) Upon their deposit in the Copyright Office under sections 407 and 40
all copies, phonorecords, and identifying material, including those deposit
connection with claims that have been refused registration, are the prope
the United States Government.

(b) In the case of published works, all copies, phonorecords, and identif
material deposited are available to the Library of Congress for its collectio
for exchange or transfer to any other library. In the case of unpublished w
the Library is entitled, under regulations that the Register of Copyrights s
prescribe, to select any deposits for its collections or for transfer to the Na
Archives of the United States or to a Federal records center, as defined in
2901 of title 44.

(c) The Register of Copyrights is authorized, for specific or general cate
ries of works, to make a facsimile reproduction of all or any part of the m
rial deposited under section 408, and to make such reproduction a part of
Copyright Office records of the registration, before transferring such mate
to the Library of Congress as provided by subsection (b), or before destroy
otherwise disposing of such material as provided by subsection (d).

(d) Deposits not selected by the Library under subsection (b), or identify
portions or reproductions of them, shall be retained under the control of
Copyright Office, including retention in Government storage facilities, for t
longest period considered practicable and desirable by the Register of Co
and the Librarian of Congress. After that period it is within the joint discre
the Register and the Librarian to order their destruction or other dispositio
in the case of unpublished works, no deposit shall be knowingly or intentio
destroyed or otherwise disposed of during its term of copyright unless a fa
reproduction of the entire deposit has been made a part of the Copyright
records as provided by subsection (c).

(e) The depositor of copies, phonorecords, or identifying material under
tion 408, or the copyright owner of record, may request retention, under
control of the Copyright Office, of one or more of such articles for the full t
of copyright in the work. The Register of Copyrights shall prescribe, by reg
the conditions under which such requests are to be made and granted, an
fix the fee to be charged under section 708(a) if the request is granted.

## § 705. Copyright Office records: Preparation, maintenance, public inspection, and searching

(a) The Register of Copyrights shall ensure that records of deposits, reg
tions, recordations, and other actions taken under this title are maintained
that indexes of such records are prepared.

(b) Such records and indexes, as well as the articles deposited in conne
with completed copyright registrations and retained under the control of
Copyright Office, shall be open to public inspection.

(c) Upon request and payment of the fee specified by section 708, the C
right Office shall make a search of its public records, indexes, and deposit
shall furnish a report of the information they disclose with respect to any
ticular deposits, registrations, or recorded documents.

## § 706 · Copies of Copyright Office records

(a) Copies may be made of any public records or indexes of the Copyri
Office; additional certificates of copyright registration and copies of any p
records or indexes may be furnished upon request and payment of the fe
fied by section 708.

(b) Copies or reproductions of deposited articles retained under the con
the Copyright Office shall be authorized or furnished only under the condi
specified by the Copyright Office regulations.

## § 707 · Copyright Office forms and publications

(a)Catalog of Copyright Entries. —The Register of Copyrights shall
compile and publish at periodic intervals catalogs of all copyright registra
These catalogs shall be divided into parts in accordance with the various c
of works, and the Register has discretion to determine, on the basis of pra
bility and usefulness, the form and frequency of publication of each partic

(b)Other Publications.—The Register shall furnish, free of charge upon
request, application forms for copyright registration and general informati
material in connection with the functions of the Copyright Office. The Reg
also has the authority to publish compilations of information, bibliographie
other material he or she considers to be of value to the public.

(c)Distribution of Publications.—All publications of the Copyright Of-
fice shall be furnished to depository libraries as specified under section 19
title 44, and, aside from those furnished free of charge, shall be offered fo
the public at prices based on the cost of reproduction and distribution.

## § 708 · Copyright Office fees

(a)Fees.—Fees shall be paid to the Register of Copyrights—

(1) on filing each application under section 408 for registration of a c
right claim or for a supplementary registration, including the issuance o
certificate of registration if registration is made;

(2) on filing each application for registration of a claim for renewal of
sisting copyright under section 304(a), including the issuance of a certi
of registration if registration is made;

(3) for the issuance of a receipt for a deposit under section 407;

(4) for the recordation, as provided by section 205, of a transfer of co
ownership or other document;

(5) for the filing, under section 115(b), of a notice of intention to obta
compulsory license;

(6) for the recordation, under section 302(c), of a statement revealing
identity of an author of an anonymous or pseudonymous work, or for th
dation, under section 302(d), of a statement relating to the death of an

(7) for the issuance, under section 706, of an additional certificate o
registration;

(8) for the issuance of any other certification;

(9) for the making and reporting of a search as provided by section 7
for any related services;

(10) on filing a statement of account based on secondary transmissio
primary transmissions pursuant to section 119 or 122; and

(11) on filing a statement of account based on secondary transmissio
primary transmissions pursuant to section 111.

The Register is authorized to fix fees for other services, including the co
preparing copies of Copyright Office records, whether or not such copies
certified, based on the cost of providing the service. Fees established und
graphs (10) and (11) shall be reasonable and may not exceed one-half of
necessary to cover reasonable expenses incurred by the Copyright Office
collection and administration of the statements of account and any royalt
deposited with such statements.

(b)Adjustment of Fees.—The Register of Copyrights may, by regulation,
adjust the fees for the services specified in paragraphs (1) through (9) of s
tion (a) in the following manner:

(1) The Register shall conduct a study of the costs incurred by the Co
right Office for the registration of claims, the recordation of documents,
the provision of services. The study shall also consider the timing of any
ment in fees and the authority to use such fees consistent with the bud

(2) The Register may, on the basis of the study under paragraph (1),
ject to paragraph (5), adjust fees to not more than that necessary to co
reasonable costs incurred by the Copyright Office for the services descr
in paragraph (1), plus a reasonable inflation adjustment to account for
estimated increase in costs.

(3) Any fee established under paragraph (2) shall be rounded off to th
est dollar, or for a fee less than $12, rounded off to the nearest 50 cent

(4) Fees established under this subsection shall be fair and equitable
give due consideration to the objectives of the copyright system.

(5) If the Register determines under paragraph (2) that fees sh
adjusted, the Register shall prepare a proposed fee schedule and subm
schedule with the accompanying economic analysis to the Congress. Th
proposed by the Register may be instituted after the end of 120 days af

schedule is submitted to the Congress unless, within that 120-day perio
is enacted stating in substance that the Congress does not approve the

(c) The fees prescribed by or under this section are applicable to the Un
States Government and any of its agencies, employees, or officers, but th
of Copyrights has discretion to waive the requirement of this subsection in
casional or isolated cases involving relatively small amounts.

(d)(1) Except as provided in paragraph (2), all fees received under this s
shall be deposited by the Register of Copyrights in the Treasury of the Uni
States and shall be credited to the appropriations for necessary expenses
Copyright Office. Such fees that are collected shall remain available unti
pended. The Register may, in accordance with regulations that he or she s
prescribe, refund any sum paid by mistake or in excess of the fee require
this section.

(2) In the case of fees deposited against future services, the Registe
Copyrights shall request the Secretary of the Treasury to invest in inte
bearing securities in the United States Treasury any portion of the fees
determined by the Register, is not required to meet current deposit acc
demands. Funds from such portion of fees shall be invested in securitie
permit funds to be available to the Copyright Office at all times if they
determined to be necessary to meet current deposit account demands.
investments shall be in public debt securities with maturities suitable to
needs of the Copyright Office, as determined by the Register of Copyrig
and bearing interest at rates determined by the Secretary of the Treas
taking into consideration current market yields on outstanding marketa
obligations of the United States of comparable maturities.

(3) The income on such investments shall be deposited in the Treasu
the United States and shall be credited to the appropriations for neces
expenses of the Copyright Office.

(e)(1) In this subsection, the term ‘covered competition’ means—

(A) an art competition sponsored by the Congressional Institute tha
open only to high school students; or

(B) the competition established under section 3 of House Resolutio
113th Congress, agreed to February 26, 2013.

(2) With respect to a work that wins a covered competition, the Regis
Copyrights—

(A) shall waive the requirement under subsection (a)(1) with respe
an application for registration of a copyright claim for that work if th
application is submitted to the Copyright Office not later than the last
of the calendar year following the year in which the work claimed by
application wins the covered competition (referred to in this paragrap
the ‘covered year’); and

(B) may waive a fee described in subparagraph (A) for an applicat submitted after the end of the covered year if the fee would have be waived under that subparagraph had the application been submitted the last day of the covered year.

## § 709 · Delay in delivery caused by disruption of postal or other services

In any case in which the Register of Copyrights determines, on the basis such evidence as the Register may by regulation require, that a deposit, a tion, fee, or any other material to be delivered to the Copyright Office by a ticular date, would have been received in the Copyright Office in due time for a general disruption or suspension of postal or other transportation or munications services, the actual receipt of such material in the Copyright within one month after the date on which the Register determines that the ruption or suspension of such services has terminated, shall be considered

## § 710 Emergency relief authority

(a)Emergency Action.—If, on or before December 31, 2021, the Register of Copyrights determines that a national emergency declared by the Presi under the National Emergencies Act (50 U.S.C. 1601 et seq.) generally dis or suspends the ordinary functioning of the copyright system under this t or any component thereof, including on a regional basis, the Register may temporary basis, toll, waive, adjust, or modify any timing provision (includ deadline or effective period, except as provided in subsection (c)) or proce provision contained in this title or chapters II or III of title 37, Code of Fede Regulations, for no longer than the Register reasonably determines to be priate to mitigate the impact of the disruption caused by the national eme In taking such action, the Register shall consider the scope and severity o particular national emergency, and its specific effect with respect to the p provision, and shall tailor any remedy accordingly.

(b)Notice and Effect.—Any action taken by the Register in response to a national emergency pursuant to subsection (a) shall not be subject to se 701(e) or subchapter II of chapter 5 of title 5, United States Code, and cha of title 5, United States Code. The provision of general public notice detail action being taken by the Register in response to the national emergency subsection (a) is sufficient to effectuate such action. The Register may ma action effective both prospectively and retroactively in relation to a parti provision a the Register determines to be appropriate based on the timing

and nature of the public emergency, but any action by the Register may c
retroactive with respect to a deadline that has not already passed before
laration described in subsection (a).

(c) Statement Required.—Except as provided in subsection (d), not later than 20 days after taking any action that results in a provision being modi a cumulative total of longer than 120 days, the Register shall submit to Co a statement detailing the action taken, the relevant background, and ratio for the action.

(d) Exceptions.—The authority of the Register to act under subsection (a does not extend provisions under this title requiring the commencement o action or proceeding in Federal court within a specified period of time, exc that if the Register adjusts the license availability date defined in section such adjustment shall not affect the ability to commence actions for any c infringement of exclusive rights provided by paragraphs (1) and (3) of sec against a digital music provider arising from the unauthorized reproductio distribution of a musical work by such digital music provider in the course gaging in covered activities that accrued after January 1, 2018, provided t action is commenced within the time periods prescribed under section 11 (C)(i) or 115(d)(10)(C)(ii) as calculated from the adjusted license availabili If the Register adjusts the license availability date, the Register must prov statement to Congress under subsection (c) at the same time as the publi of such adjustment with a detailed explanation of why such adjustment is

(e) Copyright Term Exception.—The authority of the Register to act under subsection (a) does not extend to provisions under chapter 3, except 304(c), or section 1401(a)(2).

(f) Other Laws.—Notwithstanding section 301 of the National Emergencies Act (50 U.S.C. 1631), the authority of the Register under subsection ( contingent on a specification made by the President under such section o other requirement under that Act (other than the emergency declaration section 201(a) of such Act (50 U.S.C. 1621(a))). The authority described in section supersedes the authority of title II of the National Emergencies Act U.S.C. 1621 et seq.).

## Chapter 7 · Notes

1. The Work Made for Hire and Copyright Corrections Act of 2000 amended the tabl sections for chapter 7 by deleting section 710, entitled, “Reproduction for use of th and physically handicapped: Voluntary licensing forms and procedures.” Pub. L. No 114 Stat. 1444, 1445.

2. The Copyright Fees and Technical Amendments Act of 1989 amended section adding subsection (e). Pub. L. No. 101-319, 104 Stat. 290. In 1998, the Digital Mille

Copyright Act amended section 701 by adding a new subsection (b), redesignating subsections (b) through (e) as (c) through (f) respectively, and, in the new subsecti substituting "III" for "IV" and "5314" for "5315." Pub. L. No. 105-304, 112 Stat. 286

The Library of Congress Technical Corrections Act of 2019 amended section 701( changing the first sentence to "The Register of Copyrights shall be compensated a greater of the rate of pay in effect for level III of the Executive Schedule under secti of title 5 or the maximum annual rate of basic pay payable under section 5376 of su for positions at agencies with a performance appraisal system certified under sectio of such title." Pub. L. No. 116-94, 133 Stat. 2534, 3208. The Act further amended se by striking the last sentence and inserting "The rate of basic pay for each Associate of Copyrights shall be fixed in accordance with section 5376 of title 5." Pub. L. No. 1 133 Stat. 2534, 3208.

3. Title 5 of the *United States Code* is entitled "Government Organization and Emp

4. Copyright Office regulations are published in the *Federal Register* and in Title 3 ter II, of the *Code of Federal Regulations*.

5. The Copyright Cleanup, Clarification, and Corrections Act of 2010 amended the sentence of section 704(e) to substitute "section 708(a)" for "section 708(a)(10)." P 111-295, 124 Stat. 3180, 3181.

6. The Work Made for Hire and Copyright Corrections Act of 2000 amended sectio by rewriting paragraph (a). Pub. L. No. 106-379, 114 Stat. 1444, 1445.

7. The Copyright Fees and Technical Amendments Act of 1989 amended section substituting a new subsection (a), by redesignating subsections (b) and (c) as subse and (d), respectively, and by adding a new subsection (b). Pub. L. No. 101-318, 104 The Act states that these amendments "shall take effect 6 months after the date of ment of this Act" and shall apply to:

(A) claims to original, supplementary, and renewal copyright received for registra and to items received for recordation in the Copyright Office, on or after such effec date, and

(B) other requests for services received on or after such effective date, or receive such effective date for services not yet rendered as of such date.

With respect to prior claims, the Act states that claims to original, supplementary renewal copyright received for registration and items received for recordation in ac form in the Copyright Office before the above mentioned effective date, and reques services which are rendered before such effective date "shall be governed by sectio title 17, *United States Code*, as in effect before such effective date." Pub. L. No. 101 Stat. 287, 288.

The Copyright Renewal Act of 1992 amended paragraph (2) of section 708(a) by the words "in its first term" and by substituting "$20" in lieu of "$12." Pub. L. No. 1 106 Stat. 264, 266.

In 1997, section 708 was amended by rewriting subsections (b) and (d) in their e Pub. L. No. 105-80, 111 Stat. 1529, 1532.

The Work Made for Hire and Copyright Corrections Act of 2000 amended section by rewriting subsection (a), by substituting new language for the first sentence in s (b) and by substituting "adjustment" for "increase" in paragraph (b)(1), the word "a "increase" in paragraph (b)(2) and the word "adjusted" for "increased" in paragraph

Pub. L. No. 106-379, 114 Stat. 1444, 1445. The Act also stated that "The fees under 708(a) of title 17, *United States Code*, on the date of the enactment of this Act shall fees in effect under section 708(a) of such title on the day before such date of enac

The Satellite Television Extension and Localism Act of 2010 amended subsection by adding new paragraphs (10) and (11) and by adding the last sentence. Pub. L. N 124 Stat. 1218, 1244-45.

In 2022, the Artistic Recognition for Talented Students Act amended section 708 ing subsection 708(e) to require the Register of Copyrights to waive fees for filing a tion for registration of a copyright claim for works that win certain competitions spo by the Congressional Institute or established by Congress. Pub. L. No. 117-201, 136

8. The current fees may be found in the *Code of Federal Regulations*, at 37 CFR § as authorized by Pub. L. No. 105-80, 111 Stat. 1529, 1532. In Pub. L. No. 105-80, C amended section 708(b) to require that the Register of Copyrights establish fees by tion rather than by codifying them in Title 17, *United States Code*, as was previously

9. In 2020, the Coronavirus Aid, Relief, and Economic Security Act added section Pub. L. No. 116-136, 134 Stat. 281, 581–82. The Act, enacted in response to the CO tional emergency, gives the Register of Copyrights emergency relief authority if the declares a national emergency under the National Emergencies Act (50 U.S.C. 1601

# Chapter 18

## Proceedings by Copyright Royalty Judges


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## § 801 · Copyright Royalty Judges; appointment and functions

(a)Appointment—The Librarian of Congress shall appoint 3 full-time Copyright Royalty Judges, and shall appoint 1 of the 3 as the Chief Copyr Royalty Judge. The Librarian shall make appointments to such positions a consultation with the Register of Copyrights.

(b)Functions.—Subject to the provisions of this chapter, the functions of the Copyright Royalty Judges shall be as follows:

(1) To make determinations and adjustments of reasonable terms an of royalty payments as provided in sections 112(e), 114, 115, 116, 118, 1004.

(2) To make determinations concerning the adjustment of the copy ri royalty rates under section 111 solely in accordance with the following sions:

(A) The rates established by section 111(d)(1)(B) may be adjusted flect—

(i) national monetary inflation or deflation; or

(ii) changes in the average rates charged cable subscribers for t sic service of providing secondary transmissions to maintain the r constant dollar level of the royalty fee per subscriber which existed the date of October 19, 1976, except that—

(I) if the average rates charged cable system subscribers for basic service of providing secondary transmissions are changed that the average rates exceed national monetary inflation, no ch in the rates established by section 111(d)(1)(B) shall be permitte

(II) no increase in the royalty fee shall be permitted based on reduction in the average number of distant signal equivalents p subscriber.

The Copyright Royalty Judges may consider all factors relating maintenance of such level of payments, including, as an extenuating tor, whether the industry has been restrained by subscriber rate regu authorities from increasing the rates for the basic service of providing ondary transmissions.

(B) In the event that the rules and regulations of the Federal Com- munications Commission are amended at any time after April 15, 19 to permit the carriage by cable systems of additional television broad signals beyond the local service area of the primary transmitters of s signals, the royalty rates established by section 111(d)(1)(B) may be justed to ensure that the rates for the additional distant signal equiva resulting from such carriage are reasonable in the light of the chang effected by the amendment to such rules and regulations. In determi the reasonableness of rates proposed following an amendment of Fe

Communications Commission rules and regulations, the Copyright Ro
alty Judges shall consider, among other factors, the economic impact
copyright owners and users; except that no adjustment in royalty ra
shall be made under this subparagraph with respect to any distant si
equivalent or fraction thereof represented by—

(i) carriage of any signal permitted under the rules and regulatio
the Federal Communications Commission in effect on April 15, 197
the carriage of a signal of the same type (that is, independent, net
or noncommercial educational) substituted for such permitted sign

(ii) a television broadcast signal first carried after April 15, 1976,
suant to an individual waiver of the rules and regulations of the Fe
Communications Commission, as such rules and regulations were
effect on April 15, 1976.

(C) In the event of any change in the rules and regulations of the F
Communications Commission with respect to syndicated and sports p
gram exclusivity after April 15, 1976, the rates established by sectior
(1)(B) may be adjusted to assure that such rates are reasonable in lig
changes to such rules and regulations, but any such adjustment shall
only to the affected television broadcast signals carried on those syst
affected by the change.

(D) The gross receipts limitations established by section 111(d)(1)(
(D) shall be adjusted to reflect national monetary inflation or deflatio
changes in the average rates charged cable system subscribers for th
service of providing secondary transmissions to maintain the real cor
dollar value of the exemption provided by such section, and the roya
specified therein shall not be subject to adjustment.

(3)(A) To authorize the distribution, under sections 111, 119, and 100
those royalty fees collected under sections 111, 119, and 1005, as the c
to the extent that the Copyright Royalty Judges have found that the dist
tion of such fees is not subject to controversy.

(B) In cases where the Copyright Royalty Judges determine that co
versy exists, the Copyright Royalty Judges shall determine the distrib
of such fees, including partial distributions, in accordance with sectio
119, or 1007, as the case may be.

(C) Notwithstanding section 804(b)(8), the Copyright Royalty Judge
any time after the filing of claims under section 111, 119, or 1007, m
motion of one or more of the claimants and after publication in the Fe
Register of a request for responses to the motion from interested clai
make a partial distribution of such fees, if, based upon all responses
ceived during the 30-day period beginning on the date of such public
the Copyright Royalty Judges conclude that no claimant entitled to re

such fees has stated a reasonable objection to the partial distribution
all such claimants—

(i) agree to the partial distribution;

(ii) sign an agreement obligating them to return any excess amo
to the extent necessary to comply with the final determination on t
distribution of the fees made under subparagraph (B);

(iii) file the agreement with the Copyright Royalty Judges; and

(iv) agree that such funds are available for distribution.

(D) The Copyright Royalty Judges and any other officer or employe
acting in good faith in distributing funds under subparagraph (C) shal
be held liable for the payment of any excess fees under subparagrap
The Copyright Royalty Judges shall, at the time the final determinatio
made, calculate any such excess amounts.

(4) To accept or reject royalty claims filed under sections 111, 119, a
on the basis of timeliness or the failure to establish the basis for a claim

(5) To accept or reject rate adjustment petitions as provided in sectio
and petitions to participate as provided in section 803(b)(1) and (2).

(6) To determine the status of a digital audio recording device or a di
audio interface device under sections 1002 and 1003, as provided in se
1010.

(7)(A) To adopt as a basis for statutory terms and rates or as a basis
the distribution of statutory royalty payments, an agreement concernin
matters reached among some or all of the participants in a proceeding
time during the proceeding, except that—

(i) the Copyright Royalty Judges shall provide to those that would
bound by the terms, rates, or other determination set by any agree
in a proceeding to determine royalty rates an opportunity to comm
on the agreement and shall provide to participants in the proceedi
under section 803(b)(2) that would be bound by the terms, rates,
other determination set by the agreement an opportunity to comm
on the agreement and object to its adoption as a basis for statutor
and rates; and

(ii) the Copyright Royalty Judges may decline to adopt the agree
as a basis for statutory terms and rates for participants that are no
ties to the agreement, if any participant described in clause (i) obje
the agreement and the Copyright Royalty Judges conclude, based o
record before them if one exists, that the agreement does not prov
reasonable basis for setting statutory terms or rates.

(B) License agreements voluntarily negotiated pursuant to section
(5), 114(f)(2), 115(c)(3)(E)(i), 116(c), or 118(b)(2) that do not result in
tory terms and rates shall not be subject to clauses (i) and (ii) of subp
graph (A).

(C) Interested parties may negotiate and agree to, and the Copyri
Royalty Judges may adopt, an agreement that specifies as terms noti
recordkeeping requirements that apply in lieu of those that would oth
wise apply under regulations.

(8) To determine the administrative assessment to be paid by digital
providers under section 115(d). The provisions of section 115(d) shall a
the conduct of proceedings by the Copyright Royalty Judges under sec
115(d) and not the procedures described in this section, or section 803,
or 805.

(9) To perform other duties, as assigned by the Register of Copyrights
in the Library of Congress, except as provided in section 802(g), at time
Copyright Royalty Judges are not engaged in performing the other duties
forth in this section.

(c) Rulings.—The Copyright Royalty Judges may make any necessary pro
dural or evidentiary rulings in any proceeding under this chapter and may
commencing a proceeding under this chapter, make any such rulings that
apply to the proceedings conducted by the Copyright Royalty Judges.

(d) Administrative Support.—The Librarian of Congress shall provide
the Copyright Royalty Judges with the necessary administrative services r
to proceedings under this chapter.

(e) Location in Library of Congress.—The offices of the Copyright Roy-
alty Judges and staff shall be in the Library of Congress.

(f) Effective Date of Actions.—On and after the date of the enactment of
the Copyright Royalty and Distribution Reform Act of 2004, in any case in
time limits are prescribed under this title for performance of an action wit
the Copyright Royalty Judges, and in which the last day of the prescribed
falls on a Saturday, Sunday, holiday, or other nonbusiness day within the
of Columbia or the Federal Government, the action may be taken on the n
succeeding business day, and is effective as of the date when the period e

## § 802 · Copyright Royalty Judges; ships; staff

(a) Qualifications of Copyright Royalty Judges.—

(1) In general.—Each Copyright Royalty Judge shall be an attorney
who has at least 7 years of legal experience. The Chief Copyright Roya
Judge shall have at least 5 years of experience in adjudications, arbitra
or court trials. Of the other 2 Copyright Royalty Judges, 1 shall have si
nificant knowledge of copyright law, and the other shall have significa
knowledge of economics. An individual may serve as a Copyright Roya
Judge only if the individual is free of any financial conflict of interest un
subsection (h).

(2) Definition.—In this subsection, the term "adjudication" has the me
ing given that term in section 551 of title 5, but does not include media
(b) Staff.—The Chief Copyright Royalty Judge shall hire full-time s
members to assist the Copyright Royalty Judges in performing their funct
(c) Terms.—The individual first appointed as the Chief Copyright Royalty
Judge shall be appointed to a term of 6 years, and of the remaining indivic
first appointed as Copyright Royalty Judges, 1 shall be appointed to a tern
years, and the other shall be appointed to a term of 2 years. Thereafter, t
of succeeding Copyright Royalty Judges shall each be 6 years. An individu
ing as a Copyright Royalty Judge may be reappointed to subsequent terms
term of a Copyright Royalty Judge shall begin when the term of the prede
of that Copyright Royalty Judge ends. When the term of office of a Copyrig
Royalty Judge ends, the individual serving that term may continue to serv
a successor is selected.
(d) Vacancies or Incapacity.
(1) Vacancies.—If a vacancy should occur in the position of Copyright
Royalty Judge, the Librarian of Congress shall act expeditiously to fill th
cancy, and may appoint an interim Copyright Royalty Judge to serve un
other Copyright Royalty Judge is appointed under this section. An indivi
appointed to fill the vacancy occurring before the expiration of the term
which the predecessor of that individual was appointed shall be appoint
the remainder of that term.
(2) Incapacity.—In the case in which a Copyright Royalty Judge is tem-
porarily unable to perform his or her duties, the Librarian of Congress m
appoint an interim Copyright Royalty Judge to perform such duties duri
the period of such incapacity.
(e) Compensation.
(1) Judges.—The Chief Copyright Royalty Judge shall receive compensa
tion at the rate of basic pay payable for level AL-1 of the administrative law judges
pursuant to section 5372(b) of title 5, and each of the other two Copyr
Royalty Judges shall receive compensation at the rate of basic pay paya
level AL-2 for administrative law judges pursuant to such section. The c
pensation of the Copyright Royalty Judges shall not be subject to any re
tions adopted by the Office of Personnel Management pursuant to its au
under section 5376(b)(1) of title 5.
(2) Staff members.—Staff members appointed under subsection (b) sha
be compensated at a rate not more than the basic rate of pay payable f
10 of GS–15 of the General Schedule.
(3) Locality pay.—All rates of pay referred to under this subsection sha
include locality pay.
(f) Independence of Copyright Royalty Judge.
(1) In making determinations.

(A)In general.—(i) Subject to subparagraph (B) and clause (ii) of thi
subparagraph, the Copyright Royalty Judges shall have full independe
in making determinations concerning adjustments and determination
copyright royalty rates and terms, the distribution of copyright royalt
the acceptance or rejection of royalty claims, rate adjustment petitio
petitions to participate, and in issuing other rulings under this title, e
that the Copyright Royalty Judges may consult with the Register of C
rights on any matter other than a question of fact.

(ii) One or more Copyright Royalty Judges may, or by motion to t
Copyright Royalty Judges, any participant in a proceeding may, req
from the Register of Copyrights an interpretation of any material q
tions of substantive law that relate to the construction of provision
title and arise in the course of the proceeding. Any request for a wr
interpretation shall be in writing and on the record, and reasonable
sion shall be made to permit participants in the proceeding to com
on the material questions of substantive law in a manner that min
mizes duplication and delay. Except as provided in subparagraph (
Register of Copyrights shall deliver to the Copyright Royalty Judges
written response within 14 days after the receipt of all briefs and c
ments from the participants. The Copyright Royalty Judges shall ap
the legal interpretation embodied in the response of the Register
Copyrights if it is timely delivered, and the response shall be includ
the record that accompanies the final determination. The authorit
under this clause shall not be construed to authorize the Register
Copyrights to provide an interpretation of questions of procedure b
the Copyright Royalty Judges, the ultimate adjustments and determ
tions of copyright royalty rates and terms, the ultimate distribution
copyright royalties, or the acceptance or rejection of royalty claims
adjustment petitions, or petitions to participate in a proceeding.

(B)Novel questions.—(i) In any case in which a novel material ques-
tion of substantive law concerning an interpretation of those provisio
this title that are the subject of the proceeding is presented, the Copy
Royalty Judges shall request a decision of the Register of Copyrights
writing, to resolve such novel question. Reasonable provision shall be
for comment on such request by the participants in the proceeding, i
a way as to minimize duplication and delay. The Register of Copyrig
shall transmit his or her decision to the Copyright Royalty Judges wit
days after the Register of Copyrights receives all of the briefs or com
of the participants. Such decision shall be in writing and included by
Copyright Royalty Judges in the record that accompanies their final d
mination. If such a decision is timely delivered to the Copyright Royal
Judges, the Copyright Royalty Judges shall apply the legal determinat

embodied in the decision of the Register of Copyrights in resolving m
rial questions of substantive law.

(ii) In clause (i), a "novel question of law" is a question of law th
has not been determined in prior decisions, determinations, and ru
described in section 803(a).

(C)Consultation.—Notwithstanding the provisions of subparagraph
(A), the Copyright Royalty Judges shall consult with the Register of Co
rights with respect to any determination or ruling that would require
any act be performed by the Copyright Office, and any such determi
or ruling shall not be binding upon the Register of Copyrights.

(D) Review of legal conclusions by the register of copy-
rights. —The Register of Copyrights may review for legal error
resolution by the Copyright Royalty Judges of a material question of s
stantive law under this title that underlies or is contained in a final de
mination of the Copyright Royalty Judges. If the Register of Copyright
concludes, after taking into consideration the views of the participar
in the proceeding, that any resolution reached by the Copyright Roya
Judges was in material error, the Register of Copyrights shall issue a
decision correcting such legal error, which shall be made part of the
of the proceeding. The Register of Copyrights shall issue such written
sion not later than 60 days after the date on which the final determin
by the Copyright Royalty Judges is issued. Additionally, the Register
Copyrights shall cause to be published in the Federal Register such w
ten decision, together with a specific identification of the legal conclu
of the Copyright Royalty Judges that is determined to be erroneous. A
conclusions of substantive law involving an interpretation of the statu
provisions of this title, the decision of the Register of Copyrights shall
binding as precedent upon the Copyright Royalty Judges in subseque
proceedings under this chapter. When a decision has been rendered
ant to this subparagraph, the Register of Copyrights may, on the basi
and in accordance with such decision, intervene as of right in any ap
a final determination of the Copyright Royalty Judges pursuant to sec
803(d) in the United States Court of Appeals for the District of Columb
Circuit. If, prior to intervening in such an appeal, the Register of Cop
rights gives notification to, and undertakes to consult with, the Attorn
General with respect to such intervention, and the Attorney General f
within a reasonable period after receiving such notification, to interve
such appeal, the Register of Copyrights may intervene in such appea
or her own name by any attorney designated by the Register of Copy
for such purpose. Intervention by the Register of Copyrights in his or
own name shall not preclude the Attorney General from intervening o

behalf of the United States in such an appeal as may be otherwise pr
or required by law.

(E) Effect on judicial review.—Nothing in this section shall be in-
terpreted to alter the standard applied by a court in reviewing legal d
nations involving an interpretation or construction of the provisions o
title or to affect the extent to which any construction or interpretation
the provisions of this title shall be accorded deference by a reviewing

(2) Performance appraisals.—

(A) In general.—Notwithstanding any other provision of law or any
regulation of the Library of Congress, and subject to subparagraph (B
Copyright Royalty Judges shall not receive performance appraisals.

(B) Relating to sanction or removal.—To the extent that the Li-
brarian of Congress adopts regulations under subsection (h) relating
the sanction or removal of a Copyright Royalty Judge and such regula
require documentation to establish the cause of such sanction or rem
the Copyright Royalty Judge may receive an appraisal related specific
the cause of the sanction or removal.

(g) Inconsistent Duties Barred.—No Copyright Royalty Judge may un-
dertake duties that conflict with his or her duties and responsibilities as a
right Royalty Judge.

(h) Standards of Conduct.—The Librarian of Congress shall adopt regula-
tions regarding the standards of conduct, including financial conflict of int
and restrictions against ex parte communications, which shall govern the
right Royalty Judges and the proceedings under this chapter.

(i) Removal or Sanction.—The Librarian of Congress may sanction or
remove a Copyright Royalty Judge for violation of the standards of conduc
opted under subsection (h), misconduct, neglect of duty, or any disqualif
physical or mental disability. Any sanction or removal may be made only a
notice and opportunity for a hearing, but the Librarian of Congress may su
the Copyright Royalty Judge during the pendency of such hearing. The Lib
ian shall appoint an interim Copyright Royalty Judge during the period of a
such suspension.

## § 803 · Proceedings of Copyright Royalty Judges

(a) Proceedings.—

(1) In general.—The Copyright Royalty Judges shall act in accordance
with this title, and to the extent not inconsistent with this title, in accord
with subchapter II of chapter 5 of title 5, in carrying out the purposes se
in section 801. The Copyright Royalty Judges shall act in accordance wit
lations issued by the Copyright Royalty Judges and the Librarian of Cong

and on the basis of a written record, prior determinations and interpret
tions of the Copyright Royalty Tribunal, Librarian of Congress, the Regis
of Copyrights, copyright arbitration royalty panels (to the extent those d
minations are not inconsistent with a decision of the Librarian of Congre
the Register of Copyrights), and the Copyright Royalty Judges (to the ex
those determinations are not inconsistent with a decision of the Registe
Copyrights that was timely delivered to the Copyright Royalty Judges pu
ant to section 802(f)(1)(A) or (B), or with a decision of the Register of C
rights pursuant to section 802(f)(1)(D)), under this chapter, and decisio
the court of appeals under this chapter before, on, or after the effective
the Copyright Royalty and Distribution Reform Act of 2004.

(2) Judges acting as panel and individually.—The Copyright Roy-
alty Judges shall preside over hearings in proceedings under this chapte
banc. The Chief Copyright Royalty Judge may designate a Copyright Roy
Judge to preside individually over such collateral and administrative pro
ings, and over such proceedings under paragraphs (1) through (5) of su
(b), as the Chief Judge considers appropriate.

(3) Determinations.—Final determinations of the Copyright Royalty
Judges in proceedings under this chapter shall be made by majority vot
Copyright Royalty Judge dissenting from the majority on any determina
under this chapter may issue his or her dissenting opinion, which shall
included with the determination.

(b) Procedures.—

(1) Initiation.—

(A) Call for petitions to participate.—

(i) The Copyright Royalty Judges shall cause to be published in th
Federal Register notice of commencement of proceedings under t
chapter, calling for the filing of petitions to participate in a proceed
under this chapter for the purpose of making the relevant determi
tion under section 111, 112, 114, 115, 116, 118, 119, 1004, or 10
case may be—

(I) promptly upon a determination made under section 804(a);

(II) by no later than January 5 of a year specified in paragraph
of section 804(b) for the commencement of proceedings;

(III) by no later than January 5 of a year specified in subparagr
(A) or (B) of paragraph (3) of section 804(b) for the commencem
of proceedings, or as otherwise provided in subparagraph (A) or
of such paragraph for the commencement of proceedings;

(IV) as provided under section 804(b)(8); or

(V) by no later than January 5 of a year specified in any other
provision of section 804(b) for the filing of petitions for the com
mencement of proceedings, if a petition has not been filed by th

date, except that the publication of notice requirement shall not
ply in the case of pro ceedings under section 111 that are sched
commence in 2005.

(ii) Petitions to participate shall be filed by no later than 30 days
publication of notice of commencement of a proceeding under clau
(i), except that the Copyright Royalty Judges may, for substantial g
cause shown and if there is no prejudice to the participants that ha
already filed petitions, accept late petitions to participate at any ti
to the date that is 90 days before the date on which participants in
proceeding are to file their written direct statements. Notwithstand
the preceding sentence, petitioners whose petitions are filed more
30 days after publication of notice of commencement of a proceed
are not eligible to object to a settlement reached during the volunt
negotiation period under paragraph (3), and any objection filed by
a petitioner shall not be taken into account by the Copyright Royal
Judges.

(B) Petitions to participate.—Each petition to participate in a
proceeding shall describe the petitioner's interest in the subject matt
the proceeding. Parties with similar interests may file a single petitio
participate.

(2) Participation in general.—Subject to paragraph (4), a person may
participate in a proceeding under this chapter, including through the su
sion of briefs or other information, only if—

(A) that person has filed a petition to participate in accordance wi
paragraph (1) (either individually or as a group under paragraph (1)(B

(B) the Copyright Royalty Judges have not determined that the peti
to participate is facially invalid;

(C) the Copyright Royalty Judges have not determined, sua sponte
the motion of another participant in the proceeding, that the person l
a significant interest in the proceeding; and

(D) the petition to participate is accompanied by either—

(i) in a proceeding to determine royalty rates, a filing fee of $150

(ii) in a proceeding to determine distribution of royalty fees—

(I) a filing fee of $150; or

(II) a statement that the petitioner (individually or as a group)
not seek a distribution of more than $1000, in which case the am
distributed to the petitioner shall not exceed $1000.

(3) Voluntary negotiation period.—

(A) Commencement of proceedings.—

(i) Rate adjustment proceedings.—Promptly after the date for
filing of petitions to participate in a proceeding, the Copyright Roya
Judges shall make available to all participants in the proceeding a

of such participants and shall initiate a voluntary negotiation peri
among the participants.

(ii) Distribution proceeding—Promptly after the date for filing of petitions to participate in a proceeding to determine the distribu of royalties, the Copyright Royalty Judges shall make available to participants in the proceeding a list of such participants. The initiat of a voluntary negotiation period among the participants shall be s a time determined by the Copyright Royalty Judges.

(B) Length of proceedings.—The voluntary negotiation period initiated under subparagraph (A) shall be 3 months.

(C) Determination of subsequent proceedings.—At the close of the voluntary negotiation proceedings, the Copyright Royalty Judges if further proceedings under this chapter are necessary, determine w and to what extent paragraphs (4) and (5) will apply to the parties.

(4) Small claims procedure in distribution proceedings.—

(A) In general.—If, in a proceeding under this chapter to determine the distribution of royalties, the contested amount of a claim is $10,0 less, the Copyright Royalty Judges shall decide the controversy on the of the filing of the written direct statement by the participant, the res by any opposing participant, and 1 additional response by each such

(B) Bad faith inflation of claim.—If the Copyright Royalty Judges determine that a participant asserts in bad faith an amount in contro in excess of $10,000 for the purpose of avoiding a determination un the procedure set forth in subparagraph (A), the Copyright Royalty Ju shall impose a fine on that participant in an amount not to exceed th ference between the actual amount distributed and the amount asse by the participant.

(5) Paper proceedings.—The Copyright Royalty Judges in proceedings under this chapter may decide, sua sponte or upon motion of a particip to determine issues on the basis of the filing of the written direct staten the participant, the response by any opposing participant, and one addi response by each such participant. Prior to making such decision to pro on such a paper record only, the Copyright Royalty Judges shall offer to parties to the proceeding the opportunity to comment on the decision. T procedure under this paragraph—

(A) shall be applied in cases in which there is no genuine issue of m rial fact, there is no need for evidentiary hearings, and all participant the proceeding agree in writing to the procedure; and

(B) may be applied under such other circumstances as the Copyri Royalty Judges consider appropriate.

(6) Regulations.—

(A) **In general.**—The Copyright Royalty Judges may issue regulations to carry out their functions under this title. All regulations issued by t Copyright Royalty Judges are subject to the approval of the Librarian Congress and are subject to judicial review pursuant to chapter 7 of t except as set forth in subsection (d). Not later than 120 days after Co Royalty Judges or interim Copyright Royalty Judges, as the case may first appointed after the enactment of the Copyright Royalty and Dis bution Reform Act of 2004, such judges shall issue regulations to gov proceedings under this chapter.

(B) **Interim regulations.**— Until regulations are adopted under subparagraph (A), the Copyright Royalty Judges shall apply the regu tions in effect under this chapter on the day before the effective date Copyright Royalty and Distribution Reform Act of 2004, to the extent regulations are not inconsistent with this chapter, except that functio ried out under such regulations by the Librarian of Congress, the Reg of Copyrights, or copyright arbitration royalty panels that, as of such of enactment, are to be carried out by the Copyright Royalty Judges u this chapter, shall be carried out by the Copyright Royalty Judges un such regulations.

(C) **Requirements.**—Regulations issued under subparagraph (A) shall include the following:

(i) The written direct statements and written rebuttal statements participants in a proceeding under paragraph (2) shall be filed by a specified by the Copyright Royalty Judges, which, in the case of wr direct statements, may be not earlier than 4 months, and not later 5 months, after the end of the voluntary negotiation period under p graph (3). Notwithstanding the preceding sentence, the Copyright alty Judges may allow a participant in a proceeding to file an amen written direct statement based on new information received during discovery process, within 15 days after the end of the discovery pe specified in clause (iv).

(ii)(I) Following the submission to the Copyright Royalty Judges o written direct statements and written rebuttal statements by the p ticipants in a proceeding under paragraph (2), the Copyright Roya Judges, after taking into consideration the views of the participants the proceeding, shall determine a schedule for conducting and con ing discovery.

(II) In this chapter, the term "written direct statements" mean wit ness statements, testimony, and exhibits to be presented in proceed ings, and such other information that is necessary to es terms and rates, or the distribution of royalty payments, as the c

may be, as set forth in regulations issued by the Copyright Roya
Judges.

(iii) Hearsay may be admitted in proceedings under this chapter
the extent deemed appropriate by the Copyright Royalty Judges.

(iv) Discovery in connection with written direct statements shall
permitted for a period of 60 days, except for discovery ordered by
Copyright Royalty Judges in connection with the resolution of motic
orders, and disputes pending at the end of such period. The Copyri
Royalty Judges may order a discovery schedule in connection with
ten rebuttal statements.

(v) Any participant under paragraph (2) in a proceeding under th
chapter to determine royalty rates may request of an opposi
ticipant nonprivileged documents directly related to the written dir
statement or written rebuttal statement of that participant. Any ob
tion to such a request shall be resolved by a motion or request to c
production made to the Copyright Royalty Judges in accordance wi
regulations adopted by the Copyright Royalty Judges. Each motion
request to compel discovery shall be determined by the Copyright
alty Judges, or by a Copyright Royalty Judge when permitted under
section (a)(2). Upon such motion, the Copyright Royalty Judges ma
der discovery pursuant to regulations established under this parag

(vi)(I) Any participant under paragraph (2) in a proceeding unde
this chapter to determine royalty rates may, by means of written m
or on the record, request of an opposing participant or witness oth
relevant information and materials if, absent the discovery sought,
Copyright Royalty Judges' resolution of the proceeding would be su
stantially impaired. In determining whether discovery will be grant
under this clause, the Copyright Royalty Judges may consider—

(aa) whether the burden or expense of producing the reque
information or materials outweighs the likely benefit, taking in
account the needs and resources of the participants, the imp
tance of the issues at stake, and the probative value of the re
ed information or materials in resolving such issues;

(bb) whether the requested information or materials would
unreasonably cumulative or duplicative, or are obtainable fron
another source that is more convenient, less burdensome, or l
expensive; and

(cc) whether the participant seeking discovery has had amp
opportunity by discovery in the proceeding or by other means
obtain the information sought.

(II) This clause shall not apply to any proceeding scheduled to
commence after December 31, 2010.

(vii) In a proceeding under this chapter to determine royalty rate participants entitled to receive royalties shall collectively be permit take no more than 10 depositions and secure responses to no more 25 interrogatories, and the participants obligated to pay royalties s collectively be permitted to take no more than 10 depositions and responses to no more than 25 interrogatories. The Copyright Roya Judges shall resolve any disputes among similarly aligned participa allocate the number of depositions or interrogatories permitted un this clause.

(viii) The rules and practices in effect on the day before the effec date of the Copyright Royalty and Distribution Reform Act of 2004 relating to discovery in proceedings under this chapter to determin distribution of royalty fees, shall continue to apply to such proceed on and after such effective date.

(ix) In proceedings to determine royalty rates, the Copyright Roy Judges may issue a subpoena commanding a participant or witness appear and give testimony, or to produce and permit inspection of ments or tangible things, if the Copyright Royalty Judges' resolutio the proceeding would be substantially impaired by the absence of testimony or production of documents or tangible things. Such sub poena shall specify with reasonable particularity the materials to b duced or the scope and nature of the required testimony. Nothing i clause shall preclude the Copyright Royalty Judges from requesting production by a nonparticipant of information or materials relevant the resolution by the Copyright Royalty Judges of a material issue o

(x) The Copyright Royalty Judges shall order a settlement confer among the participants in the proceeding to facilitate the presenta of offers of settlement among the participants. The settlement con ence shall be held during a 21-day period following the 60-day disc period specified in clause (iv) and shall take place outside the pres of the Copyright Royalty Judges.

(xi) No evidence, including exhibits, may be submitted in the wri direct statement or written rebuttal statement of a participant with a sponsoring witness, except where the Copyright Royalty Judges h taken official notice, or in the case of incorporation by reference of records, or for good cause shown.

(c)Determination of Copyright Royalty Judges—

(1)Timing—The Copyright Royalty Judges shall issue their determinati in a proceeding not later than 11 months after the conclusion of the 21- settlement conference period under subsection (b)(6)(C)(x), but, in the of a proceeding to determine successors to rates or terms that expire

specified date, in no event later than 15 days before the expiration of th
current statutory rates and terms.

(2) **Rehearings.**—

(A) **In general.**—The Copyright Royalty Judges may, in exceptional cases, upon motion of a participant in a proceeding under subsection order a rehearing, after the determination in the proceeding is issued paragraph (1), on such matters as the Copyright Royalty Judges dete to be appropriate.

(B) **Timing for filing motion.**—Any motion for a rehearing under subparagraph (A) may only be filed within 15 days after the date on w the Copyright Royalty Judges deliver to the participants in the proce their initial determination.

(C) **Participation by opposing party not required.**—In any case in which a rehearing is ordered, any opposing party shall not be requ to participate in the rehearing, except that nonparticipation may give to the limitations with respect to judicial review provided for in subse (d)(1).

(D) **No negative inference.**—No negative inference shall be drawn from lack of participation in a rehearing.

(E) **Continuity of rates and terms.**—

(i) If the decision of the Copyright Royalty Judges on any motion a rehearing is not rendered before the expiration of the statutory r and terms that were previously in effect, in the case of a proceedi determine successors to rates and terms that expire on a specified then—

(I) the initial determination of the Copyright Royalty Judges tha is the subject of the rehearing motion shall be effective as of the following the date on which the rates and terms that were previ in effect expire; and

(II) in the case of a proceeding under section 114(f)(1)(C), roya rates and terms shall, for purposes of section 114(f)(3)(B), be de to have been set at those rates and terms contained in the initia termination of the Copyright Royalty Judges that is the subject o rehearing motion, as of the date of that determination.

(ii) The pendency of a motion for a rehearing under this paragra shall not relieve persons obligated to make royalty payments who be affected by the determination on that motion from providing the statements of account and any reports of use, to the extent requi and paying the royalties required under the relevant determinatio regulations.

(iii) Notwithstanding clause (ii), whenever royalties describe clause (ii) are paid to a person other than the Copyright Office, th

entity designated by the Copyright Royalty Judges to which such r
alties are paid by the copyright user (and any successor thereto) s
within 60 days after the motion for rehearing is resolved or, if the r
tion is granted, within 60 days after the rehearing is concluded, ret
any excess amounts previously paid to the extent necessary to cor
with the final determination of royalty rates by the Copyright Royal
Judges. Any underpayment of royalties resulting from a rehearing s
be paid within the same period.

(3) Contents of determination.—A determination of the Copyright Royalty Judges shall be supported by the written record and shall set fo findings of fact relied on by the Copyright Royalty Judges. Among other adopted in a determination, the Copyright Royalty Judges may specify r and recordkeeping requirements of users of the copyrights at issue that in lieu of those that would otherwise apply under regulations.

(4) Continuing jurisdiction.—The Copyright Royalty Judges may issue an amendment to a written determination to correct any technica clerical errors in the determination or to modify the terms, but not the r of royalty payments in response to unforeseen circumstances that woul trate the proper implementation of such determination. Such amendm shall be set forth in a written addendum to the determination that shall distributed to the participants of the proceeding and shall be published Federal Register.

(5) Protective order.—The Copyright Royalty Judges may issue such orders as may be appropriate to protect confidential information, includ orders excluding confidential information from the record of the determ tion that is published or made available to the public, except that any t rates of royalty payments or distributions may not be excluded.

(6) Publication of determination.—By no later than the end of the 60-day period provided in section 802(f)(1)(D), the Librarian of Congre shall cause the determination, and any corrections thereto, to be publis in the Federal Register. The Librarian of Congress shall also publicize th termination and corrections in such other manner as the Librarian cons appropriate, including, but not limited to, publication on the Internet. Th Librarian of Congress shall also make the determination, corrections, ar accompanying record available for public inspection and copying.

(7) Late payment.—A determination of the Copyright Royalty Judges may include terms with respect to late payment, but in no way shall su prevent the copyright holder from asserting other rights or remedies pr under this title.

(d) Judicial Review.—

(1) Appeal.—Any determination of the Copyright Royalty Judges under subsection (c) may, within 30 days after the publication of the determi

in the Federal Register, be appealed, to the United States Court of Appe
the District of Columbia Circuit, by any aggrieved participant in the proc
ing under subsection (b)(2) who fully participated in the proceeding and
would be bound by the determination. Any participant that did not parti
in a rehearing may not raise any issue that was the subject of that rehe
at any stage of judicial review of the hearing determination. If no appea
brought within that 30-day period, the determination of the
Copyright Royalty Judges shall be final, and the royalty fee or determ
tion with respect to the distribution of fees, as the case may be, shall ta
as set forth in paragraph (2).

(2) Effect of rates.—

(A) Expiration on specified date.—When this title provides that the royalty rates and terms that were previously in effect are to expir specified date, any adjustment or determination by the Copyright Ro Judges of successor rates and terms for an ensuing statutory license shall be effective as of the day following the date of expiration of the and terms that were previously in effect, even if the determination of Copyright Royalty Judges is rendered on a later date. A licensee sha obligated to continue making payments under the rates and terms pr ously in effect until such time as rates and terms for the successor pe established. Whenever royalties pursuant to this section are paid to a other than the Copyright Office, the entity designated by the Copyri Royalty Judges to which such royalties are paid by the copyright user any successor thereto) shall, within 60 days after the final determina the Copyright Royalty Judges establishing rates and terms for a succe period or the exhaustion of all rehearings or appeals of such determi if any, return any excess amounts previously paid to the extent neces comply with the final determination of royalty rates. Any underpayme of royalties by a copyright user shall be paid to the entity designated Copyright Royalty Judges within the same period.

(B) Other cases.—In cases where rates and terms have not, prior to the inception of an activity, been established for that particular activ under the relevant license, such rates and terms shall be retroactive inception of activity under the relevant license covered by such rates terms. In other cases where rates and terms do not expire on a speci date, successor rates and terms shall take effect on the first day of th month that begins after the publication of the determination of the C right Royalty Judges in the Federal Register, except as otherwise prov in this title, or by the Copyright Royalty Judges, or as agreed by the p pants in a proceeding that would be bound by the rates and terms. E otherwise provided in this title, the rates and terms, to the extent app shall remain in effect until such successor rates and terms become e

(C) Obligation to make payments.—

(i) The pendency of an appeal under this subsection shall not rel
persons obligated to make royalty payments under section 111, 11
115, 116, 118, 119, or 1003, who would be affected by the determi
on appeal, from–

(I) providing the applicable statements of account and report o
use; and

(II) paying the royalties required under the relevant determina
or regulations.

(ii) Notwithstanding clause (i), whenever royalties described in c
(i) are paid to a person other than the Copyright Office, the entity d
nated by the Copyright Royalty Judges to which such royalties are
by the copyright user (and any successor thereto) shall, within 60 d
after the final resolution of the appeal, return any excess amounts
ously paid (and interest thereon, if ordered pursuant to paragraph
the extent necessary to comply with the final determination of roya
rates on appeal. Any underpayment of royalties resulting from an a
(and interest thereon, if ordered pursuant to paragraph (3)) shall b
within the same period.

(3) Jurisdiction of court.—Section 706 of title 5 shall apply with re-
spect to review by the court of appeals under this subsection. If the co
modifies or vacates a determination of the Copyright Royalty Judges, th
may enter its own determination with respect to the amount or distribu
royalty fees and costs, and order the repayment of any excess fees, the
of any underpaid fees, and the payment of interest pertaining respecti
thereto, in accordance with its final judgment. The court may also vaca
determination of the Copyright Royalty Judges and remand the case to
Copyright Royalty Judges for further proceedings in accordance with su
tion (a).

(e) Administrative matters.—

(1) Deduction of costs of library of congress and copyright office from filing fees.—

(A) Deduction from filing fees.—The Librarian of Congress may, to the extent not otherwise provided under this title, deduct from the fees collected under subsection (b) for a particular proceeding under chapter the reasonable costs incurred by the Librarian of Congress, Copyright Office, and the Copyright Royalty Judges in conducting tha proceeding, other than the salaries of the Copyright Royalty Judges a staff members appointed under section 802(b).

(B) Authorization of appropriations.—There are authorized to be appropriated such sums as may be necessary to pay the costs inc under this chapter not covered by the filing fees collected under subs

(b). All funds made available pursuant to this subparagraph shall rem
available until expended.

(2)Positions required for administration of compulsory li-
censing—Section 307 of the Legislative Branch Appropriations Act, 199
shall not apply to employee positions in the Library of Congress that are
quired to be filled in order to carry out section 111, 112, 114, 115, 116,
or chapter 10.

## § 804 · Institution of proceedings

(a)Filing of Petition .—With respect to proceedings referred to in para-
graphs (1) and (2) of section 801(b) concerning the determination or adju
of royalty rates as provided in sections 111, 112, 114, 115, 116, 118, 119
during the calendar years specified in the schedule set forth in subsection
owner or user of a copyrighted work whose royalty rates are specified by
or are established under this chapter before or after the enactment of the
right Royalty and Distribution Reform Act of 2004, may file a petition with
Copyright Royalty Judges declaring that the petitioner requests a determi
or adjustment of the rate. The Copyright Royalty Judges shall make a dete
tion as to whether the petitioner has such a significant interest in the roya
in which a determination or adjustment is requested. If the Copyright Roya
Judges determine that the petitioner has such a significant interest, the Co
Royalty Judges shall cause notice of this determination, with the reasons f
determination, to be published in the Federal Register, together with the n
commencement of proceedings under this chapter. With respect to proce
under paragraph (1) of section 801(b) concerning the determination or ad
ment of royalty rates as provided in sections 112 and 114, during the cal
years specified in the schedule set forth in subsection (b), the Copyright R
Judges shall cause notice of commencement of proceedings under this ch
be published in the Federal Register as provided in section 803(b)(1)(A).

(b)Timing of Proceedings.—

(1)Section 111 proceedings.—

(A) A petition described in subsection (a) to initiate proceedings un
section 801(b)(2) concerning the adjustment of royalty rates under se
111 to which subparagraph (A) or (D) of section 801(b)(2) applies ma
filed during the year 2015 and in each subsequent fifth calendar year

(B) In order to initiate proceedings under section 801(b)(2) concern
the adjustment of royalty rates under section 111 to which subparagr
(B) or (C) of section 801(b)(2) applies, within 12 months after an even
scribed in either of those subsections, any owner or user of a copyrig
work whose royalty rates are specified by section 111, or by a rate es

under this chapter before or after the enactment of the Copyright Roy and Distribution Reform Act of 2004, may file a petition with the Copy right Royalty Judges declaring that the petitioner requests an adjustm of the rate. The Copyright Royalty Judges shall then proceed as set fo subsection (a) of this section. Any change in royalty rates made unde chapter pursuant to this subparagraph may be reconsidered in the ye and each fifth calendar year thereafter, in accordance with the provis section 801(b)(2) (B) or (C), as the case may be. A petition for adjustr rates established by section 111(d)(1)(B) as a result of a change in th and regulations of the Federal Communications Commission shall set the change on which the petition is based.

(C) Any adjustment of royalty rates under section 111 shall take ef as of the first accounting period commencing after the publication of determination of the Copyright Royalty Judges in the Federal Register on such other date as is specified in that determination.

(2) Certain section 112 proceedings.—Proceedings under this chapter shall be commenced in the year 2007 to determine reasonable terms a of royalty payments for the activities described in section 112(e)(1) rela the limitation on exclusive rights specified by section 114(d)(1)(C)(iv), t come effective on January 1, 2009. Such proceedings shall be repeated subsequent fifth calendar year.

(3) Section 114 and corresponding 112 proceedings.—

(A) For eligible nonsubscription services and new subscrip- tion services.—Proceedings under this chapter shall be commenced a soon as practicable after the date of enactment of the Copyright Roya and Distribution Reform Act of 2004 to determine reasonable terms a rates of royalty payments under sections 114 and 112 for the activitie gible nonsubscription transmission services and new subscription ser to be effective for the period beginning on January 1, 2006, and endi December 31, 2010. Such proceedings shall next be commenced in J ary 2009 to determine reasonable terms and rates of royalty paymen become effective on January 1, 2011. Thereafter, such proceedings s repeated in each subsequent fifth calendar year.

(B) For preexisting subscription and satellite digital audio radio services.—Proceedings under this chapter shall be commenced January 2006 to determine reasonable terms and rates of royalty pay under sections 114 and 112 for the activities of preexisting subscripti vices, to be effective during the period beginning on January 1, 2008, ending on December 31, 2012, and preexisting satellite digital audio services, to be effective during the period beginning on January 1, 20 ending on December 31, 2012. Such proceedings shall next be comm in 2011 to determine reasonable terms and rates of royalty paymen

become effective on January 1, 2013. Thereafter, such proceedings s
repeated in each subsequent fifth calendar year , except that—

(i) with respect to preexisting subscription services, the terms a
rates finally determined for the rate period ending on December 31
shall remain in effect through December 31, 2027, and there shall
proceeding to determine terms and rates for preexisting subscript
services for the period beginning on January 1, 2023, and ending
December 31, 2027; and

(ii) with respect to pre-existing satellite digital audio radio servic
the terms and rates set forth by the Copyright Royalty Judges on D
cember 14, 2017, in their initial determination for the rate period e
ing on December 31, 2022, shall be in effect through December 31
without any change based on a rehearing under section 803(c)(2) a
without the possibility of appeal under section 803(d), and there sh
be no proceeding to determine terms and rates for preexisting sate
digital audio radio services for the period beginning on January 1, 2
and ending on December 31, 2027.

(C)(i) Notwithstanding any other provision of this chapter, this subp
graph shall govern proceedings commenced pursuant to section 114(
(C) concerning new types of services.

(ii) Not later than 30 days after a petition to determine rates an
terms for a new type of service is filed by any copyright owner of s
recordings, or such new type of service, indicating that such new ty
of service is or is about to become operational, the Copyright Roya
Judges shall issue a notice for a proceeding to determine rates and
for such service.

(iii) The proceeding shall follow the schedule set forth in subsec
(b), (c), and (d) of section 803, except that—

(I) the determination shall be issued by not later than 24 mont
after the publication of the notice under clause (ii); and

(II) the decision shall take effect as provided in subsections (c)
and (d)(2) of section 803 and section 114(f)(3)(B)(ii) and (C).

(iv) The rates and terms shall remain in effect for the period set
in section 114(f)(1)(C).

(4)Section 115 proceedings.—A petition described in subsection (a)
to initiate proceedings under section 801(b)(1) concerning the adjustme
determination of royalty rates as provided in section 115 may be filed i
year 2006 and in each subsequent fifth calendar year, or at such other
the parties have agreed under section 115(c)(3) (B) and (C).

(5)Section 116 proceedings.—

(A) A petition described in subsection (a) to initiate proceedings un
section 801(b) concerning the determination of royalty rates and ter

provided in section 116 may be filed at any time within 1 year after n
ated licenses authorized by section 116 are terminated or expire and
replaced by subsequent agreements.

(B) If a negotiated license authorized by section 116 is terminated
pires and is not replaced by another such license agreement which p
permission to use a quantity of musical works not substantially smal
than the quantity of such works performed on coin-operated phonor
cord players during the 1-year period ending March 1, 1989, the Copy
Royalty Judges shall, upon petition filed under paragraph (1) within 1
after such termination or expiration, commence a proceeding to pron
establish an interim royalty rate or rates for the public performance
means of a coin-operated phonorecord player of nondramatic music
works embodied in phonorecords which had been subject to the term
or expired negotiated license agreement. Such rate or rates shall be
as the last such rate or rates and shall remain in force until the concl
of proceedings by the Copyright Royalty Judges, in accordance with s
803, to adjust the royalty rates applicable to such works, or until supe
by a new negotiated license agreement, as provided in section 116(b

(6) Section 118 proceedings.—A petition described in subsection (a) to initiate proceedings under section 801(b)(1) concerning the determinat reasonable terms and rates of royalty payments as provided in section be filed in the year 2006 and in each subsequent fifth calendar year.

(7) Section 1004 proceedings.—A petition described in subsection (a) to initiate proceedings under section 801(b)(1) concerning the adjustme reasonable royalty rates under section 1004 may be filed as provided in tion 1004(a)(3).

(8) Proceedings concerning distribution of royalty fees.—With respect to proceedings under section 801(b)(3) concerning the distribu of royalty fees in certain circumstances under section 111, 119, or 100 Copyright Royalty Judges shall, upon a determination that a controversy ists concerning such distribution, cause to be published in the Federal R notice of commencement of proceedings under this chapter.

## § 805 · General rule for voluntarily negotiated agreements

Any rates or terms under this title that—

(1) are agreed to by participants to a proceeding under section 803(b

(2) are adopted by the Copyright Royalty Judges as part of a determi under this chapter, and

(3) are in effect for a period shorter than would otherwise apply unde determination pursuant to this chapter,

shall remain in effect for such period of time as would otherwise apply u
such determination, except that the Copyright Royalty Judges shall adjus
rates pursuant to the voluntary negotiations to reflect national monetary i
tion during the additional period the rates remain in effect.

## Chapter 8 · Notes

1. The Copyright Royalty and Distribution Reform Act of 2004 amended chapter 8 ir
entirety. Pub. L. No. 108-419, 118 Stat. 2341.

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend
chapter 8 throughout. Pub. L. No. 109-303, 120 Stat. 1478. Section 6 of that Act sta
cept as provided under subsection (b), this Act and the amendments made by this A
be effective as if included in the Copyright Royalty and Distribution Reform Act of 2
*Id*. at 1483.

2. In 2006, the Copyright Royalty Judges Program Technical Corrections Act ame
section 801 by inserting a comma after "119" in the first sentence of subsection (
and by adding a new subsection (f) at the end. Pub. L. No. 109-303, 120 Stat. 1478
amended the language in 803(b)(3)(C) that preceded (i) and substituted "the" for
in (i). *Id*. at 1483.

In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act amended sec
801(b) paragraph (1) by deleting "The rates applicable under sections 114(f)(1)(B)
116 shall be calculated to achieve the following objectives:" and paragraphs (1)(A)
(1)(D). Pub. L. No. 115-264, 132 Stat. 3676, 3725. The Act also amended paragraph
by replacing "114(f)(3)" with "114(f)(2)". Pub. L. No. 115-264, 132 Stat. 3676, 372
the changes described, the Act made technical and conforming amendments throu
section 801(b). Pub. L. No. 115-264, 132 Stat. 3676, 3721–22.

3. In 2006, the Copyright Royalty Judges Program Technical Corrections Act amen
section 802(f)(1)(A)(i) by substituting "subparagraph (B) and clause (ii) of this subp
graph" for "clause (ii) of this subparagraph and subparagraph (B),"; by amending (
(A)(ii) in its entirety; and by inserting a comma after "undertakes to consult with" in
seventh sentence of (f)(1)(D). Pub. L. No. 109-303, 120 Stat. 1478–79.

The Library of Congress Technical Corrections Act of 2019 amended section 802
removing the numerical cap on personnel from subsection (b) and striking paragrap
in subsection (e) and replacing it with the following: "(2) STAFF MEMBERS.—Staff members
appointed under subsection (b) shall be compensated at a rate not more than the
rate of pay payable for level 10 of GS–15 of the General Schedule." Pub. L. No. 116-
Stat. 2534, 3208.

4. On July 6, 2012, the D.C. Circuit Court of Appeals "invalidated and severed" all
language in section 802(i) after "The Librarian of Congress may sanction or remove
right Royalty Judge" to avoid a constitutional conflict with the Appointments Clause
Const., art. II, sec. 2, cl.2. *See Intercollegiate Broadcasting System, Inc. v. Copyrigh
Board,* 684 F.3d 1332, 1340 (D.C. Cir. 2012), *cert. denied*, 133 S. Ct. 2735 (2013).

5. The Satellite Home Viewer Extension and Reauthorization Act of 2004 amende tion 803(b)(1)(A)(i)(V) by inserting at the end, "except that in the case of proceedin section 111 that are scheduled to commence in 2005, such notice may not be publi L. No. 108-447, 118 Stat. 2809, 3393, 3409.

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend paragraph 803(a)(1) by inserting a new sentence at the beginning and by amendin second sentence. Pub. L. No. 109-303, 120 Stat. 1478, 1479. It amended (b)(1)(A)( inserting "the publication of notice requirement shall not apply" prior to "in the cas deleting from the end of the sentence "such notice may not be published." *Id*. It am (b)(2)(A) by deleting from the end "together with a filing fee of $150" and by addin clause (D). *Id*. at 1479–80. It amended (b)(3)(A) by changing the heading and addin text for (ii). *Id*. at 1480. It amended (b)(4)(A) by deleting the last sentence. *Id*. It am the first sentence of (b)(6)(C)(i) by inserting "and written rebuttal statements" after statements" and inserting "in the case of written direct statements" after "Copyrigh Judge." *Id*. It entirely amended (b)(6)(C)(ii)(I), iv, and x. *Id*. It amended (c)(2)(B) by d "concerning rates and terms" at the end of the sentence; (c)(4) by deleting "with th of the Register of Copyrights" in the first sentence after "Copyright Royalty Judges;" (7) by making a technical correction to add "the" before "Copyright Royalty Judges. amended (d)(2)C)(i)(I) by inserting "applicable" before "statements of account" and "any" before "reports of use." *Id*. at 1481. It amended (d)(3) by inserting a new sent beginning and by deleting "pursuant to section 706 of title 5" at the beginning of w previously the first sentence, now the second sentence. *Id*.

The Copyright Cleanup, Clarification, and Corrections Act of 2010 amended subp graph 803(b)(6)(A) by revising the second sentence in its entirety. Pub. L. No. 111-2 Stat. 3180, 3181.

The Library of Congress Technical Corrections Act of 2019 amended section 803( (A) by striking the reference to the number of staff members. Pub. L. No. 116-94, 13 2534, 3208.

6. In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act amended s tion 803(c)(2)(E)(i)(II) by deleting "or 114(f)(2)(C)," and by replacing "114(f)(4)(B)" "114(f)(3)(B)." Pub. L. No. 115-264, 132 Stat. 3676, 3725.

7. In 2006, the Copyright Royalty Judges Program Technical Corrections Act amen paragraph 804(b)(1)(B) by substituting "801(b)(2)(B) or (C)" for "801(b)(3)(B) or (C) third sentence. Pub. L. No. 109-303, 120 Stat. 1478, 1481. It amended (b)(3)(A) by "date of enactment" for "effective date" and (b)(3)(C)(i) and (ii) by making technical tions to correct grammatical errors. *Id*.

The Satellite Television Extension and Localism Act of 2010 amended paragraphs (1)(A) and (B) by substituting "2015" for "2005." Pub. L. No. 111-175, 124 Stat. 121

In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act amended sec 804(b)(3)(B) by adding subparagraphs (i) and (ii) at the end of the section. Pub. L. N 264, 132 Stat. 3676, 3725–26. The Act also amended section 804(b)(3)(C)(i) by dele 114(f)(2)(C)"; section 804(b)(3)(C)(iii)(II) by replacing "114(f)(4)(B)(ii)" with "114(f)( (ii)"; and section 804(b)(3)(C)(iv) by deleting "or 114(f)(2)(C), as the case may be". No. 115-264, 132 Stat. 3676, 3725.

# Chapter 19

# Protection of Semiconductor Chip Products


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## § 901 · Definitions

(a) As used in this chapter—

(1) a "semiconductor chip product" is the final or intermediate form o product—

(A) having two or more layers of metallic, insulating, or semicondu material, deposited or otherwise placed on, or etched away or otherw removed from, a piece of semiconductor material in accordance with determined pattern; and

(B) intended to perform electronic circuitry functions;

(2) a "mask work" is a series of related images, however fixed or enc

(A) having or representing the predetermined, three-dimensional p tern of metallic, insulating, or semiconductor material present or rem from the layers of a semiconductor chip product; and

(B) in which series the relation of the images to one another is that image has the pattern of the surface of one form of the semiconducto product;

(3) a mask work is "fixed" in a semiconductor chip product when its e bodiment in the product is sufficiently permanent or stable to permit th work to be perceived or reproduced from the product for a period of mo than transitory duration;

(4) to "distribute" means to sell, or to lease, bail, or otherwise transfe offer to sell, lease, bail, or otherwise transfer;

(5) to "commercially exploit" a mask work is to distribute to the publi commercial purposes a semiconductor chip product embodying the ma work; except that such term includes an offer to sell or transfer a semic tor chip product only when the offer is in writing and occurs after the m work is fixed in the semiconductor chip product;

(6) the "owner" of a mask work is the person who created the mask w the legal representative of that person if that person is deceased or und legal incapacity, or a party to whom all the rights under this chapter of person or representative are transferred in accordance with section 90 except that, in the case of a work made within the scope of a person's ployment, the owner is the employer for whom the person created the m work or a party to whom all the rights under this chapter of the employe transferred in accordance with section 903(b);

(7) an "innocent purchaser" is a person who purchases a semicondu chip product in good faith and without having notice of protection with spect to the semiconductor chip product;

(8) having "notice of protection" means having actual knowledge tha reasonable grounds to believe that, a mask work is protected under this ter; and

(9) an "infringing semiconductor chip product" is a semiconductor ch
product which is made, imported, or distributed in violation of the exclu
rights of the owner of a mask work under this chapter.

(b) For purposes of this chapter, the distribution or importation of a pro
incorporating a semiconductor chip product as a part thereof is a distribut
importation of that semiconductor chip product.

## § 902. Subject matter of protection

(a)(1) Subject to the provisions of subsection (b), a mask work fixed in a
conductor chip product, by or under the authority of the owner of the mas
is eligible for protection under this chapter if—

(A) on the date on which the mask work is registered under section
or is first commercially exploited anywhere in the world, whichever o
first, the owner of the mask work is (i) a national or domiciliary of th
United States, (ii) a national, domiciliary, or sovereign authority of a f
eign nation that is a party to a treaty affording protection to mask wo
which the United States is also a party, or (iii) a stateless person, whe
that person may be domiciled;

(B) the mask work is first commercially exploited in the United Stat

(C) the mask work comes within the scope of a Presidential proclam
tion issued under paragraph (2).

(2) Whenever the President finds that a foreign nation extends, to m
works of owners who are nationals or domiciliaries of the United States
tection (A) on substantially the same basis as that on which the foreign
extends protection to mask works of its own nationals and domiciliaries
mask works first commercially exploited in that nation, or (B) on substa
the same basis as provided in this chapter, the President may by procla
extend protection under this chapter to mask works (i) of owners who a
the date on which the mask works are registered under section 908, o
date on which the mask works are first commercially exploited anywhe
the world, whichever occurs first, nationals, domiciliaries, or sovereign
thorities of that nation, or (ii) which are first commercially exploited in t
nation. The President may revise, suspend, or revoke any such proclam
or impose any conditions or limitations on protection extended under a
such proclamation.

(b) Protection under this chapter shall not be available for a mask work

(1) is not original; or

(2) consists of designs that are staple, commonplace, or familiar in th
conductor industry, or variations of such designs, combined in a way th
considered as a whole, is not original.

(c) In no case does protection under this chapter for a mask work exten any idea, procedure, process, system, method of operation, concept, prin discovery, regardless of the form in which it is described, explained, illust or embodied in such work.

## § 903 · Ownership, transfer, licensing, and recordation

(a) The exclusive rights in a mask work subject to protection under this belong to the owner of the mask work.

(b) The owner of the exclusive rights in a mask work may transfer all of rights, or license all or less than all of those rights, by any written instrun signed by such owner or a duly authorized agent of the owner. Such right transferred or licensed by operation of law, may be bequeathed by will, a pass as personal property by the applicable laws of intestate succession.

(c)(1) Any document pertaining to a mask work may be recorded in the right Office if the document filed for recordation bears the actual signatur person who executed it, or if it is accompanied by a sworn or official certif that it is a true copy of the original, signed document. The Register of Co rights shall, upon receipt of the document and the fee specified pursuant tion 908(d), record the document and return it with a certificate of record The recordation of any transfer or license under this paragraph gives all p constructive notice of the facts stated in the recorded document concerni transfer or license.

(2) In any case in which conflicting transfers of the exclusive rights in work are made, the transfer first executed shall be void as against a su transfer which is made for a valuable consideration and without notice first transfer, unless the first transfer is recorded in accordance with pa (1) within three months after the date on which it is executed, but in no later than the day before the date of such subsequent transfer.

(d) Mask works prepared by an officer or employee of the United States ment as part of that person's official duties are not protected under this ch the United States Government is not precluded from receiving and holdin sive rights in mask works transferred to the Government under subsectio

## § 904 · Duration of protection

(a) The protection provided for a mask work under this chapter shall c mence on the date on which the mask work is registered under section 9 the date on which the mask work is first commercially exploited anywhere world, whichever occurs first.

(b) Subject to subsection (c) and the provisions of this chapter, the prot
provided under this chapter to a mask work shall end ten years after the d
which such protection commences under subsection (a).

(c) All terms of protection provided in this section shall run to the end o
calendar year in which they would otherwise expire.

### § 905 · Exclusive rights in mask works

The owner of a mask work provided protection under this chapter has t
exclusive rights to do and to authorize any of the following:

(1) to reproduce the mask work by optical, electronic, or any other m

(2) to import or distribute a semiconductor chip product in which the
work is embodied; and

(3) to induce or knowingly to cause another person to do any of the a
described in paragraphs (1) and (2).

### § 906· Limitation on exclusive rights: reverse engineering; first sale

(a) Notwithstanding the provisions of section 905, it is not an infringem
the exclusive rights of the owner of a mask work for—

(1) a person to reproduce the mask work solely for the purpose of tea
analyzing, or evaluating the concepts or techniques embodied in the m
work or the circuitry, logic flow, or organization of components used in t
mask work; or

(2) a person who performs the analysis or evaluation described in pa
graph (1) to incorporate the results of such conduct in an original mask
which is made to be distributed.

(b) Notwithstanding the provisions of section 905(2), the owner of a par
semiconductor chip product made by the owner of the mask work, or by
person authorized by the owner of the mask work, may import, distribute
otherwise dispose of or use, but not reproduce, that particular semicondu
chip product without the authority of the owner of the mask work.

### § 907 · Limitation on exclusive rights: innocent infringement

(a) Notwithstanding any other provision of this chapter, an innocent pur
of an infringing semiconductor chip product—

(1) shall incur no liability under this chapter with respect to the impor tion or distribution of units of the infringing semiconductor chip product occurs before the innocent purchaser has notice of protection with resp the mask work embodied in the semiconductor chip product; and

(2) shall be liable only for a reasonable royalty on each unit of the inf semiconductor chip product that the innocent purchaser imports or dist utes after having notice of protection with respect to the mask work em in the semiconductor chip product.

(b) The amount of the royalty referred to in subsection (a)(2) shall be de mined by the court in a civil action for infringement unless the parties res issue by voluntary negotiation, mediation, or binding arbitration.

(c) The immunity of an innocent purchaser from liability referred to in s tion (a)(1) and the limitation of remedies with respect to an innocent purc referred to in subsection (a)(2) shall extend to any person who directly or purchases an infringing semiconductor chip product from an innocent pur

(d) The provisions of subsections (a), (b), and (c) apply only with respec those units of an infringing semiconductor chip product that an innocent p chaser purchased before having notice of protection with respect to the m work embodied in the semiconductor chip product.

## § 908 · Registration of claims of protection

(a) The owner of a mask work may apply to the Register of Copyrights registration of a claim of protection in a mask work. Protection of a mask under this chapter shall terminate if application for registration of a claim protection in the mask work is not made as provided in this chapter within years after the date on which the mask work is first commercially exploite where in the world.

(b) The Register of Copyrights shall be responsible for all administrative tions and duties under this chapter. Except for section 708, the provisions ter 7 of this title relating to the general responsibilities, organization, regu authority, actions, records, and publications of the Copyright Office shall a to this chapter, except that the Register of Copyrights may make such cha may be necessary in applying those provisions to this chapter.

(c) The application for registration of a mask work shall be made on a fo prescribed by the Register of Copyrights. Such form may require any infor regarded by the Register as bearing upon the preparation or identification mask work, the existence or duration of protection of the mask work unde chapter, or ownership of the mask work. The application shall be accompa by the fee set pursuant to subsection (d) and the identifying material spec pursuant to such subsection.

(d) The Register of Copyrights shall by regulation set reasonable fees fo
filing of applications to register claims of protection in mask works under t
chapter, and for other services relating to the administration of this chapt
the rights under this chapter, taking into consideration the cost of provid
those services, the benefits of a public record, and statutory fee schedule
this title. The Register shall also specify the identifying material to be dep
in connection with the claim for registration.

(e) If the Register of Copyrights, after examining an application for reg
tration, determines, in accordance with the provisions of this chapter, tha
application relates to a mask work which is entitled to protection under t
chapter, then the Register shall register the claim of protection and issue
applicant a certificate of registration of the claim of protection under the s
the Copyright Office. The effective date of registration of a claim of protec
shall be the date on which an application, deposit of identifying material,
which are determined by the Register of Copyrights or by a court of comp
jurisdiction to be acceptable for registration of the claim, have all been re
in the Copyright Office.

(f) In any action for infringement under this chapter, the certificate of re
tion of a mask work shall constitute prima facie evidence (1) of the facts s
the certificate, and (2) that the applicant issued the certificate has met th
ments of this chapter, and the regulations issued under this chapter, with
to the registration of claims.

(g) Any applicant for registration under this section who is dissatisfied w
the refusal of the Register of Copyrights to issue a certificate of registratio
der this section may seek judicial review of that refusal by bringing an act
such review in an appropriate United States district court not later than s
days after the refusal. The provisions of chapter 7 of title 5 shall apply to s
judicial review. The failure of the Register of Copyrights to issue a certifica
registration within four months after an application for registration is filed
be deemed to be a refusal to issue a certificate of registration for purpose
subsection and section 910(b)(2), except that, upon a showing of good ca
district court may shorten such four-month period.

## § 909 · Mask work notice

(a) The owner of a mask work provided protection under this chapter m
affix notice to the mask work, and to masks and semiconductor chip produ
embodying the mask work, in such manner and location as to give reason
tice of such protection. The Register of Copyrights shall prescribe by regul
as examples, specific methods of affixation and positions of notice for pur
of this section, but these specifications shall not be considered exhaustive

affixation of such notice is not a condition of protection under this chapter shall constitute prima facie evidence of notice of protection.

(b) The notice referred to in subsection (a) shall consist of—

(1) the words "mask work", the symbol *M*, or the letter M (the letter M in a circle); and

(2) the name of the owner or owners of the mask work or an abbrevia by which the name is recognized or is generally known.

## § 910 · Enforcement of exclusive rights

(a) Except as otherwise provided in this chapter, any person who violate of the exclusive rights of the owner of a mask work under this chapter, by in or affecting commerce, shall be liable as an infringer of such rights. As this subsection, the term "any person" includes any State, any instrument a State, and any officer or employee of a State or instrumentality of a Stat in his or her official capacity. Any State, and any such instrumentality, offi employee, shall be subject to the provisions of this chapter in the same m and to the same extent as any nongovernmental entity.

(b)(1) The owner of a mask work protected under this chapter, or the ex licensee of all rights under this chapter with respect to the mask work, sha a certificate of registration of a claim of protection in that mask work has sued under section 908, be entitled to institute a civil action for any infrin with respect to the mask work which is committed after the commenceme protection of the mask work under section 904(a).

(2) In any case in which an application for registration of a claim of tection in a mask work and the required deposit of identifying materia fee have been received in the Copyright Office in proper form and reg tion of the mask work has been refused, the applicant is entitled to ins a civil action for infringement under this chapter with respect to the m work if notice of the action, together with a copy of the complaint, is s on the Register of Copyrights, in accordance with the Federal Rules of Procedure. The Register may, at his or her option, become a party to t tion with respect to the issue of whether the claim of protection is elig registration by entering an appearance within sixty days after such se but the failure of the Register to become a party to the action shall no prive the court of jurisdiction to determine that issue.

(c)(1) The Secretary of the Treasury and the United States Postal Servic separately or jointly issue regulations for the enforcement of the rights se in section 905 with respect to importation. These regulations may require condition for the exclusion of articles from the United States, that the pe seeking exclusion take any one or more of the following actions:

(A) Obtain a court order enjoining, or an order of the International Trade Commission under section 337 of the Tariff Act of 1930 excludi importation of the articles.

(B) Furnish proof that the mask work involved is protected under th chapter and that the importation of the articles would infringe the rig in the mask work under this chapter.

(C) Post a surety bond for any injury that may result if the detentio exclusion of the articles proves to be unjustified.

(2) Articles imported in violation of the rights set forth in section 905 subject to seizure and forfeiture in the same manner as property impor violation of the customs laws. Any such forfeited articles shall be destro as directed by the Secretary of the Treasury or the court, as the case m except that the articles may be returned to the country of export whene is shown to the satisfaction of the Secretary of the Treasury that the im had no reasonable grounds for believing that his or her acts constitute violation of the law.

## § 911 · Civil actions

(a) Any court having jurisdiction of a civil action arising under this chap may grant temporary restraining orders, preliminary injunctions, and per nent injunctions on such terms as the court may deem reasonable to prev restrain infringement of the exclusive rights in a mask work under this cha

(b) Upon finding an infringer liable, to a person entitled under section 910(b)(1) to institute a civil action, for an infringement of any exclusive r under this chapter, the court shall award such person actual damages su by the person as a result of the infringement. The court shall also award person the infringer's profits that are attributable to the infringement an not taken into account in computing the award of actual damages. In es lishing the infringer's profits, such person is required to present proof on the infringer's gross revenue, and the infringer is required to prove his or deductible expenses and the elements of profit attributable to factors ot than the mask work.

(c) At any time before final judgment is rendered, a person entitled to i a civil action for infringement may elect, instead of actual damages and p as provided by subsection (b), an award of statutory damages for all infri ments involved in the action, with respect to any one mask work for which one infringer is liable individually, or for which any two or more infringers liable jointly and severally, in an amount not more than $250,000 as the c considers just.

(d) An action for infringement under this chapter shall be barred unless action is commenced within three years after the claim accrues.

(e)(1) At any time while an action for infringement of the exclusive right mask work under this chapter is pending, the court may order the impoun on such terms as it may deem reasonable, of all semiconductor chip prod any drawings, tapes, masks, or other products by means of which such pr may be reproduced, that are claimed to have been made, imported, or us violation of those exclusive rights. Insofar as practicable, applications for under this paragraph shall be heard and determined in the same manner application for a temporary restraining order or preliminary injunction.

(2) As part of a final judgment or decree, the court may order the dest tion or other disposition of any infringing semiconductor chip products, an any masks, tapes, or other articles by means of which such products may reproduced.

(f) In any civil action arising under this chapter, the court in its discreti may allow the recovery of full costs, including reasonable attorneys' fees, prevailing party.

(g)(1) Any State, any instrumentality of a State, and any officer or empl a State or instrumentality of a State acting in his or her official capacity, s be immune, under the Eleventh Amendment of the Constitution of the Uni States or under any other doctrine of sovereign immunity, from suit in Fed court by any person, including any governmental or nongovernmental ent a violation of any of the exclusive rights of the owner of a mask work unde chapter, or for any other violation under this chapter.

(2) In a suit described in paragraph (1) for a violation described in th paragraph, remedies (including remedies both at law and in equity) are able for the violation to the same extent as such remedies are availabl such a violation in a suit against any public or private entity other than instrumentality of a State, or officer or employee of a State acting in hi her official capacity. Such remedies include actual damages and profits subsection (b), statutory damages under subsection (c), impounding an position of infringing articles under subsection (e), and costs and attorn fees under subsection (f).

## § 912 · Relation to other laws

(a) Nothing in this chapter shall affect any right or remedy held by any under chapters 1 through 8 or 10 of this title, or under title 35.

(b) Except as provided in section 908(b) of this title, references to "this or "title 17" in chapters 1 through 8 or 10 of this title shall be deemed not to this chapter.

(c) The provisions of this chapter shall preempt the laws of any State to extent those laws provide any rights or remedies with respect to a mask which are equivalent to those rights or remedies provided by this chapter, that such preemption shall be effective only with respect to actions filed o after January 1, 1986.

(d) Notwithstanding subsection (c), nothing in this chapter shall c from any rights of a mask work owner, whether under Federal law (exclus this chapter) or under the common law or the statutes of a State, heretofo hereafter declared or enacted, with respect to any mask work first comme exploited before July 1, 1983.

## § 913 · Transitional provisions

(a) No application for registration under section 908 may be filed, and n il action under section 910 or other enforcement proceeding under this ch may be instituted, until sixty days after the date of the enactment of this

(b) No monetary relief under section 911 may be granted with respect t conduct that occurred before the date of the enactment of this chapter, e provided in subsection (d).

(c) Subject to subsection (a), the provisions of this chapter apply to all m works that are first commercially exploited or are registered under this ch or both, on or after the date of the enactment of this chapter.

(d)(1) Subject to subsection (a), protection is available under this chapt mask work that was first commercially exploited on or after July 1, 1983, a fore the date of the enactment of this chapter, if a claim of protection in t work is registered in the Copyright Office before July 1, 1985, under sectio

(2) In the case of any mask work described in paragraph (1) that is pr protection under this chapter, infringing semiconductor chip product un manufactured before the date of the enactment of this chapter may, wi liability under sections 910 and 911, be imported into or distributed in t United States, or both, until two years after the date of registration of th work under section 908, but only if the importer or distributor, as the ca may be, first pays or offers to pay the reasonable royalty referred to in 907(a)(2) to the mask work owner, on all such units imported or distribu or both, after the date of the enactment of this chapter.

(3) In the event that a person imports or distributes infringing semico tor chip product units described in paragraph (2) of this subsection with first paying or offering to pay the reasonable royalty specified in such p graph, or if the person refuses or fails to make such payment, the mask owner shall be entitled to the relief provided in sections 910 and 911.

## § 914 · International transitional provisions

(a) Notwithstanding the conditions set forth in subparagraphs (A) and (C
section 902(a)(1) with respect to the availability of protection under this c
to nationals, domiciliaries, and sovereign authorities of a foreign nation,
Secretary of Commerce may, upon the petition of any person, or upon the
tary's own motion, issue an order extending protection under this chapter
foreign nationals, domiciliaries, and sovereign authorities if the Secretary
(1) that the foreign nation is making good faith efforts and reasonable p
toward—
(A) entering into a treaty described in section 902(a)(1)(A); or
(B) enacting or implementing legislation that would be in complian
with subparagraph (A) or (B) of section 902(a)(2); and
(2) that the nationals, domiciliaries, and sovereign authorities of the
nation, and persons controlled by them, are not engaged in the misapp
tion, or unauthorized distribution or commercial exploitation, of mask w
and
(3) that issuing the order would promote the purposes of this chapter
international comity with respect to the protection of mask works.
(b) While an order under subsection (a) is in effect with respect to a fore
nation, no application for registration of a claim for protection in a mask w
under this chapter may be denied solely because the owner of the mask w
a national, domiciliary, or sovereign authority of that foreign nation, or so
because the mask work was first commercially exploited in that foreign na
(c) Any order issued by the Secretary of Commerce under subsection (a
be effective for such a period as the Secretary designates in the order, ex
no such order may be effective after that date on which the authority of th
retary of Commerce terminates under subsection (e). The effective date o
such order shall also be designated in the order. In the case of an order is
upon the petition of a person, such effective date may be no earlier than t
on which the Secretary receives such petition.
(d)(1) Any order issued under this section shall terminate if—
(A) the Secretary of Commerce finds that any of the conditions set
in paragraphs (1), (2), and (3) of subsection (a) no longer exist; or
(B) mask works of nationals, domiciliaries, and sovereign authoriti
of that foreign nation or mask works first commercially exploited in th
foreign nation become eligible for protection under subparagraph (A)
(C) of section 902(a)(1).
(2) Upon the termination or expiration of an order issued under this s
tion, registrations of claims of protection in mask works made pursuant
order shall remain valid for the period specified in section 904.

(e) The authority of the Secretary of Commerce under this section shall
mence on the date of the enactment of this chapter, and shall terminate o
1, 1995.

(f) (1) The Secretary of Commerce shall promptly notify the Register of
rights and the Committees on the Judiciary of the Senate and the House o
sentatives of the issuance or termination of any order under this section,
with a statement of the reasons for such action. The Secretary shall also p
such notification and statement of reasons in the Federal Register.

(2) Two years after the date of the enactment of this chapter, the S
tary of Commerce, in consultation with the Register of Copyrights, sha
transmit to the Committees on the Judiciary of the Senate and the Hou
Representatives a report on the actions taken under this section and o
current status of international recognition of mask work protection. Th
report shall include such recommendation for modifications of the prot
tion accorded under this chapter to mask works owned by nationals, d
miciliaries, or sovereign authorities of foreign nations as the Secretary
consultation with the Register of Copyrights, considers would promote
purposes of this chapter and international comity with respect to mask
protection. Not later than July 1, 1994, the Secretary of Commerce, in c
sultation with the Register of Copyrights, shall transmit to the Committ
on the Judiciary of the Senate and the House of Representatives a repo
dating the matters contained in the report transmitted under the prece
sentence.

## Chapter 9 · Notes

1. In 1984, the Semiconductor Chip Protection Act amended Title 17 of the *United S*
*Code* to add a new chapter 9 entitled "Protection of Semiconductor Chip Products."
No. 98-620, 98 Stat. 3335, 3347.

2. In 1997, the heading for section 903 in the table of sections was changed from
ship and Transfer" to "Ownership, transfer, licensure, and recordation." Pub. L. No.
111 Stat. 1529, 1535. The Intellectual Property and High Technology Technical Ame
Act of 2002 amended the heading for section 903 in the table of sections for chapte
substituting "licensing" for "licensure." Pub. L. No. 107-273, 116 Stat. 1758, 1910.

3. In 1987, section 902 was amended by adding the last sentence in subsection (
L. No. 100-159, 101 Stat. 899, 900.

4. In 1997, section 909 was amended by correcting misspellings in subsection (b)
L. No. 105-80, 111 Stat. 1529, 1535.

5. In 1990, the Copyright Remedy Clarification Act amended section 910 by addi
last two sentences to subsection (a). Pub. L. No. 101-553, 104 Stat. 2749, 2750. In
nical correction amended section 910(a) by capitalizing the first word of the second
Pub. L. No. 105-80, 111 Stat. 1529 1535.

6. In 1990, the Copyright Remedy Clarification Act amended section 911 by addi
section (g). Pub. L. No. 101-553, 104 Stat. 2749, 2750.

7. In 1988, the Judicial Improvements and Access to Justice Act amended section
deleting subsection (d) and redesignating subsection (e) as subsection (d). Pub. L. N
702, 102 Stat. 4642, 4672. The Audio Home Recording Act of 1992 amended sectio
inserting "or 10" after "8" in subsections (a) and (b). Pub. L. No. 102-563, 106 Stat.

8. In 1987, section 914 was amended in subsection (e) by inserting "on July 1, 19
lieu of "three years after such date of enactment" and by adding the last sentence
tion (f)(2). Pub. L. No. 100-159, 101 Stat. 899. The Semiconductor International Prot
Extension Act of 1991 amended section 914 by inserting "or implementing" after "e
in the first sentence of subsection (a)(1)(B), by changing the date in subsection (e)
1995" and by changing the date in the last sentence of subsection (f)(2) to "July 1,
L. No. 102-64, 105 Stat. 320.

On July 1, 1995, section 914 expired as required by subsection (e). It was rendere
unnecessary upon the entry into force on January 1, 1995, of the Agreement on Tra
ed Aspects of Intellectual Property Rights (TRIPs) (Annex 1C to the World Trade Org
tion (WTO) Agreement). Part II, section 6, of TRIPs protects semiconductor chip proc
and was the basis for Presidential Proclamation No. 6780, March 23, 1995, under se
902(a)(2) extending protection to all present and future WTO members (146 countr
April 4, 2003), as of January 1, 1996. See Appendix S.

For a discussion of Congressional findings regarding extending protection to sem
ductor chip products of foreign entities, see Pub. L. No. 100-159, 101 Stat. 899, and
conductor International Protection Extension Act of 1991, Pub. L. No. 102-64, 105 S

## Chapter 10

# Digital Audio Recording Devices and Media


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## subchapter a — defiNitioNs

### § 1001 · Definitions

As used in this chapter, the following terms have the following meaning

(1) A "digital audio copied recording" is a reproduction in a digital re
cording format of a digital musical recording, whether that reproductio
made directly from another digital musical recording or indirectly from
transmission.

(2) A "digital audio interface device" is any machine or device that is
signed specifically to communicate digital audio information and relate
interface data to a digital audio recording device through a nonprofessi
interface.

(3) A "digital audio recording device" is any machine or device of a ty
commonly distributed to individuals for use by individuals, whether or n
included with or as part of some other machine or device, the digital re
ing function of which is designed or marketed for the primary purpose
and that is capable of, making a digital audio copied recording for priva
except for—

(A) professional model products, and

(B) dictation machines, answering machines, and other audio reco
ing equipment that is designed and marketed primarily for the creati
sound recordings resulting from the fixation of nonmusical sounds.

(4)(A) A "digital audio recording medium" is any material object in a f
commonly distributed for use by individuals, that is primarily marketed
most commonly used by consumers for the purpose of making digital a
copied recordings by use of a digital audio recording device.

(B) Such term does not include any material object—

(i) that embodies a sound recording at the time it is first distribu
by the importer or manufacturer; or

(ii) that is primarily marketed and most commonly used by consu
ers either for the purpose of making copies of motion pictures or ot
audiovisual works or for the purpose of making copies of nonmusic
literary works, including computer programs or data bases.

(5)(A) A "digital musical recording" is a material object—

(i) in which are fixed, in a digital recording format, only sounds, a
material, statements, or instructions incidental to those fixed soun
any, and

(ii) from which the sounds and material can be perceived, reproc
or otherwise communicated, either directly or with the aid of a ma
or device.

(B) A "digital musical recording" does not include a material object
(i) in which the fixed sounds consist entirely of spoken word recc
ings, or
(ii) in which one or more computer programs are fixed, except th
a digital musical recording may contain statements or instructions
stituting the fixed sounds and incidental material, and statements
instructions to be used directly or indirectly in order to bring about
perception, reproduction, or communication of the fixed sounds an
incidental material.
(C) For purposes of this paragraph—
(i) a "spoken word recording" is a sound recording in which are f
only a series of spoken words, except that the spoken words may b
companied by incidental musical or other sounds, and
(ii) the term "incidental" means related to and relatively minor
comparison.

(6) "Distribute" means to sell, lease, or assign a product to consumer the United States, or to sell, lease, or assign a product in the United Sta ultimate transfer to consumers in the United States.

(7) An "interested copyright party" is—
(A) the owner of the exclusive right under section 106(1) of this titl reproduce a sound recording of a musical work that has been embod in a digital musical recording or analog musical recording lawfully ma under this title that has been distributed;
(B) the legal or beneficial owner of, or the person that controls, the to reproduce in a digital musical recording or analog musical recordi a musical work that has been embodied in a digital musical recording analog musical recording lawfully made under this title that has bee distributed;
(C) a featured recording artist who performs on a sound recording has been distributed; or
(D) any association or other organization—
(i) representing persons specified in subparagraph (A), (B), or (C
(ii) engaged in licensing rights in musical works to music users o
behalf of writers and publishers.

(8) To "manufacture" means to produce or assemble a product in the States. A "manufacturer" is a person who manufactures.

(9) A "music publisher" is a person that is authorized to license the re duction of a particular musical work in a sound recording.

(10) A "professional model product" is an audio recording device tha designed, manufactured, marketed, and intended for use by recording sionals in the ordinary course of a lawful business, in accordance with s requirements as the Secretary of Commerce shall establish by regulatio

(11) The term "serial copying" means the duplication in a digital form a copyrighted musical work or sound recording from a digital reproduct a digital musical recording. The term "digital reproduction of a digital m cal recording" does not include a digital musical recording as distribute authority of the copyright owner, for ultimate sale to consumers.

(12) The "transfer price" of a digital audio recording device or a digi audio recording medium—

(A) is, subject to subparagraph (B)—

(i) in the case of an imported product, the actual entered value United States Customs (exclusive of any freight, insurance, and ap cable duty), and

(ii) in the case of a domestic product, the manufacturer's transf price (FOB the manufacturer, and exclusive of any direct sales taxe excise taxes incurred in connection with the sale); and

(B) shall, in a case in which the transferor and transferee are relate ties or within a single entity, not be less than a reasonable arms-leng under the principles of the regulations adopted pursuant to section 48 Internal Revenue Code of 1986, or any successor provision to such se

(13) A "writer" is the composer or lyricist of a particular musical work

## subchapter b — copyiNg coNtrols

### § 1002 · Incorporation of copying controls

(a) Prohibition on Importation, Manufacture, and Distribution.—No person shall import, manufacture, or distribute any digital audio record device or digital audio interface device that does not conform to—

(1) the Serial Copy Management System;

(2) a system that has the same functional characteristics as the Seria Management System and requires that copyright and generation status mation be accurately sent, received, and acted upon between devices u system's method of serial copying regulation and devices using the Ser Management System; or

(3) any other system certified by the Secretary of Commerce as proh unauthorized serial copying.

(b) Development of Verification Procedure.—The Secretary of Commerce shall establish a procedure to verify, upon the petition of an intere party, that a system meets the standards set forth in subsection (a)(2).

(c) Prohibition on Circumvention of the System.—No person shall import, manufacture, or distribute any device, or offer or perform any serv

the primary purpose or effect of which is to avoid, bypass, remove, deacti
otherwise circumvent any program or circuit which implements, in whole
part, a system described in subsection (a).

(d)Encoding of Information on Digital Musical Recordings.—

(1)Prohibition on encoding inaccurate information.—No person shall encode a digital musical recording of a sound recording with inacc information relating to the category code, copyright status, or generatio tus of the source material for the recording.

(2)Encoding of copyright status not required.—Nothing in this chapter requires any person engaged in the importation or manufacture digital musical recordings to encode any such digital musical recording respect to its copyright status.

(e)Information Accompanying Transmission in Digital Format.—Any person who transmits or otherwise communicates to the public any so recording in digital format is not required under this chapter to transmit o erwise communicate the information relating to the copyright status of th recording. Any such person who does transmit or otherwise communicate copyright status information shall transmit or communicate such informat accurately.

## subchapter c — royalty paymeNts

### § 1003 · Obligation to make royalty payments

(a)Prohibition on Importation and Manufacture.—No person shall import into and distribute, or manufacture and distribute, any digital audi cording device or digital audio recording medium unless such person rec the notice specified by this section and subsequently deposits the statem account and applicable royalty payments for such device or medium spec section 1004.

(b)Filing of Notice.—The importer or manufacturer of any digital audio recording device or digital audio recording medium, within a product cate or utilizing a technology with respect to which such manufacturer or impo has not previously filed a notice under this subsection, shall file with the R of Copyrights a notice with respect to such device or medium, in such for content as the Register shall prescribe by regulation.

(c)Filing of Quarterly and Annual Statements of Account.—

(1)Generally.—Any importer or manufacturer that distributes any digi tal audio recording device or digital audio recording medium that it ma factured or imported shall file with the Register of Copyrights, in such fo

and content as the Register shall prescribe by regulation, such quarterly
annual statements of account with respect to such distribution as the R
shall prescribe by regulation.

(2) Certification, verification, and confidentiality.—Each such statement shall be certified as accurate by an authorized officer o cipal of the importer or manufacturer. The Register shall issue regulatio provide for the verification and audit of such statements and to protect confidentiality of the information contained in such statements. Such re lations shall provide for the disclosure, in confidence, of such statement interested copyright parties.

(3)Royalty payments.—Each such statement shall be accompanied by the royalty payments specified in section 1004.

## § 1004 · Royalty payments

(a)Digital Audio Recording Devices.—

(1)Amount of payment.—The royalty payment due under section 1003 for each digital audio recording device imported into and distributed in United States, or manufactured and distributed in the United States, sha percent of the transfer price. Only the first person to manufacture and d ute or import and distribute such device shall be required to pay the roy with respect to such device.

(2)Calculation for devices distributed with other devices.—With respect to a digital audio recording device first distributed in comb tion with one or more devices, either as a physically integrated unit or separate components, the royalty payment shall be calculated as follow

(A) If the digital audio recording device and such other devices are of a physically integrated unit, the royalty payment shall be based on transfer price of the unit, but shall be reduced by any royalty paymen on any digital audio recording device included within the unit that wa first distributed in combination with the unit.

(B) If the digital audio recording device is not part of a physically i tegrated unit and substantially similar devices have been distributed arately at any time during the preceding 4 calendar quarters, the ro payment shall be based on the average transfer price of such devices those 4 quarters.

(C) If the digital audio recording device is not part of a physically i tegrated unit and substantially similar devices have not been distribu separately at any time during the preceding 4 calendar quarters, the payment shall be based on a constructed price reflecting the proporti value of such device to the combination as a whole.

(3)Limits on royalties.—Notwithstanding paragraph (1) or (2), the amount of the royalty payment for each digital audio recording device sh be less than $1 nor more than the royalty maximum. The royalty maxim be $8 per device, except that in the case of a physically integrated unit more than 1 digital audio recording device, the royalty maximum for su shall be $12. During the 6th year after the effective date of this chapter not more than once each year thereafter, any interested copyright party petition the Copyright Royalty Judges to increase the royalty maximum more than 20 percent of the royalty payments are at the relevant royalt mum, the Copyright Royalty Judges shall prospectively increase such ro maximum with the goal of having no more than 10 percent of such pay at the new royalty maximum; however the amount of any such increase percentage of the royalty maximum shall in no event exceed the percen increase in the Consumer Price Index during the period under review.

(b)Digital Audio Recording Media.—The royalty payment due under section 1003 for each digital audio recording medium imported into and d uted in the United States, or manufactured and distributed in the United S shall be 3 percent of the transfer price. Only the first person to manufactu distribute or import and distribute such medium shall be required to pay royalty with respect to such medium.

## § 1005 · Deposit of royalty payments and deduction of expens

The Register of Copyrights shall receive all royalty payments deposited this chapter and, after deducting the reasonable costs incurred by the Cop Office under this chapter, shall deposit the balance in the Treasury of the States as offsetting receipts, in such manner as the Secretary of the Treas rects. All funds held by the Secretary of the Treasury shall be invested in i bearing United States securities for later distribution with interest under s 1007. The Register may, in the Register's discretion, 4 years after the clos calendar year, close out the royalty payments account for that calendar y may treat any funds remaining in such account and any subsequent depo would otherwise be attributable to that calendar year as attributable to th ceeding calendar year.

## § 1006 · Entitlement to royalty payments

(a)Interested Copyright Parties.—The royalty payments deposited pursuant to section 1005 shall, in accordance with the procedures specifie section 1007, be distributed to any interested copyright party—

(1) whose musical work or sound recording has been—

(A) embodied in a digital musical recording or an analog musical re
ing lawfully made under this title that has been distributed, and

(B) distributed in the form of digital musical recordings or analog m
cal recordings or disseminated to the public in transmissions, during
period to which such payments pertain; and

(2) who has filed a claim under section 1007.

(b) Allocation of Royalty Payments to Groups.—The royalty payments shall be divided into 2 funds as follows:

(1) The sound recordings fund.—66 ⅔ percent of the royalty payments shall be allocated to the Sound Recordings Fund. 2 ⅝ perce of the royalty payments allocated to the Sound Recordings Fund shall placed in an escrow account managed by an independent administrat jointly appointed by the interested copyright parties described in sect 1001(7)(A) and the American Federation of Musicians (or any successo tity) to be distributed to nonfeatured musicians (whether or not memb of the American Federation of Musicians or any successor entity) who performed on sound recordings distributed in the United States. 1 3/8 of the royalty payments allocated to the Sound Recordings Fund shall placed in an escrow account managed by an independent administrat jointly appointed by the interested copyright parties described in sect 1001(7)(A) and the American Federation of Television and Radio Artist any successor entity) to be distributed to nonfeatured vocalists (whet not members of the American Federation of Television and Radio Artis or any successor entity) who have performed on sound recordings dis uted in the United States. 40 percent of the remaining royalty paymer the Sound Recordings Fund shall be distributed to the interested copy parties described in section 1001(7)(C), and 60 percent of such remai royalty payments shall be distributed to the interested copyright parti described in section 1001(7)(A).

(2) The Musical Works Fund.—

(A) 33 ⅓ percent of the royalty payments shall be allocated to the cal Works Fund for distribution to interested copyright parties describ in section 1001(7)(B).

(B)(i) Music publishers shall be entitled to 50 percent of the royalty ments allocated to the Musical Works Fund.

(ii) Writers shall be entitled to the other 50 percent of the royalty ments allocated to the Musical Works Fund.

(c) Allocation of Royalty Payments Within Groups.—If all interested copyright parties within a group specified in subsection (b) do not agree o voluntary proposal for the distribution of the royalty payments within each the Copyright Royalty Judges shall, pursuant to the procedures specified u

section 1007(c), allocate royalty payments under this section based on th
to which, during the relevant period—

(1) for the Sound Recordings Fund, each sound recording was distribu
in the form of digital musical recordings or analog musical recordings; a

(2) for the Musical Works Fund, each musical work was distributed in
form of digital musical recordings or analog musical recordings or disse
nated to the public in transmissions.

## § 1007 · Procedures for distributing royalty payments

(a) Filing of Claims and Negotiations.—

(1) Filing of claims.—During the first 2 months of each calendar year,
every interested copyright party seeking to receive royalty payments to
such party is entitled under section 1006 shall file with the Copyright R
Judges a claim for payments collected during the preceding year in such
and manner as the Copyright Royalty Judges shall prescribe by regulati

(2) Negotiations.—Notwithstanding any provision of the antitrust laws,
for purposes of this section interested copyright parties within each gr
specified in section 1006(b) may agree among themselves to the propo
division of royalty payments, may lump their claims together and file th
jointly or as a single claim, or may designate a common agent, includin
organization described in section 1001(7)(D), to negotiate or receive pa
on their behalf; except that no agreement under this subsection may m
the allocation of royalties specified in section 1006(b).

(b) Distribution of Payments in the Absence of a Dispute.—After
the period established for the filing of claims under subsection (a), in each
the Copyright Royalty Judges shall determine whether there exists a contr
concerning the distribution of royalty payments under section 1006(c). If
Copyright Royalty Judges determine that no such controversy exists, the C
right Royalty Judges shall, within 30 days after such determination, autho
distribution of the royalty payments as set forth in the agreements regard
distribution of royalty payments entered into pursuant to subsection (a).
Librarian of Congress shall, before such royalty payments are distributed,
the reasonable administrative costs incurred under this section.

(c) Resolution of Disputes.—If the Copyright Royalty Judges find the
existence of a controversy, the Copyright Royalty Judges shall, pursuant t
8 of this title, conduct a proceeding to determine the distribution of royalt
ments. During the pendency of such a proceeding, the Copyright Royalty J
shall withhold from distribution an amount sufficient to satisfy all claims w
respect to which a controversy exists, but shall, to the extent feasible, aut
the distribution of any amounts that are not in controversy. The Librarian

Congress shall, before such royalty payments are distributed, deduct the r
able administrative costs incurred under this section.

## subchapter d — prohibitioN oN certaiN iNfriNgemeNt actioNs, remedies, aNd arbitratioN

### § 1008 · Prohibition on certain infringement actions

No action may be brought under this title alleging infringement of copyr
based on the manufacture, importation, or distribution of a digital audio re
ing device, a digital audio recording medium, an analog recording device,
analog recording medium, or based on the noncommercial use by a consu
such a device or medium for making digital musical recordings or analog
cal recordings.

### § 1009 · Civil remedies

(a) Civil Actions.—Any interested copyright party injured by a violation
of section 1002 or 1003 may bring a civil action in an appropriate United S
district court against any person for such violation.

(b) Other Civil Actions.—Any person injured by a violation of this chapter
may bring a civil action in an appropriate United States district court for a
damages incurred as a result of such violation.

(c) Powers of the Court.—In an action brought under subsection (a), the
court—

(1) may grant temporary and permanent injunctions on such terms as
deems reasonable to prevent or restrain such violation;

(2) in the case of a violation of section 1002, or in the case of an injur
sulting from a failure to make royalty payments required by section 100
award damages under subsection (d);

(3) in its discretion may allow the recovery of costs by or against any
other than the United States or an officer thereof; and

(4) in its discretion may award a reasonable attorney's fee to the pre
party.

(d) Award of Damages.

(1) Damages for section 1002 or 1003 violations.

(A) Actual damages.

(i) In an action brought under subsection (a), if the court finds th
violation of section 1002 or 1003 has occurred, the court shall awa

the complaining party its actual damages if the complaining party such damages at any time before final judgment is entered.

(ii) In the case of section 1003, actual damages shall constitute royalty payments that should have been paid under section 1004 a deposited under section 1005. In such a case, the court, in its discr may award an additional amount of not to exceed 50 percent of th actual damages.

(B)Statutory damages for section 1002 violations.

(i)Device.—A complaining party may recover an award of statuto damages for each violation of section 1002(a) or (c) in the sum of n more than $2,500 per device involved in such violation or per devic which a service prohibited by section 1002(c) has been performed, court considers just.

(ii) Digital musical recording.—A complaining party may recover an award of statutory damages for each violation of sectio 1002(d) in the sum of not more than $25 per digital musical record involved in such violation, as the court considers just.

(iii) Transmission.—A complaining party may recover an award of damages for each transmission or communication that vio section 1002(e) in the sum of not more than $10,000, as the court considers just.

(2)Repeated violations.—In any case in which the court finds that a person has violated section 1002 or 1003 within 3 years after a final juc against that person for another such violation was entered, the court n increase the award of damages to not more than double the amounts th would otherwise be awarded under paragraph (1), as the court consider

(3)Innocent violations of section 1002.—The court in its discretion may reduce the total award of damages against a person violating sect to a sum of not less than $250 in any case in which the court finds that violator was not aware and had no reason to believe that its acts consti violation of section 1002.

(e)Payment of Damages.—Any award of damages under subsection (d) shall be deposited with the Register pursuant to section 1005 for distribut interested copyright parties as though such funds were royalty payments pursuant to section 1003.

(f) Impounding of Articles.—At any time while an action under subsection (a) is pending, the court may order the impounding, on such terms a deems reasonable, of any digital audio recording device, digital musical re or device specified in section 1002(c) that is in the custody or control of th leged violator and that the court has reasonable cause to believe does no with, or was involved in a violation of, section 1002.

(g) Remedial Modification and Destruction of Articles.—In an action brought under subsection (a), the court may, as part of a final judgme decree finding a violation of section 1002, order the remedial modification destruction of any digital audio recording device, digital musical recording device specified in section 1002(c) that—

(1) does not comply with, or was involved in a violation of, section 10

(2) is in the custody or control of the violator or has been impounded subsection (f).

## § 1010 · Determination of certain disputes

(a) Scope of Determination.—Before the date of first distribution in the United States of a digital audio recording device or a digital audio interfac vice, any party manufacturing, importing, or distributing such device, and interested copyright party may mutually agree to petition the Copyright R Judges to determine whether such device is subject to section 1002, or th on which royalty payments for such device are to be made under section

(b) Initiation of Proceedings.—The parties under subsection (a) shall file the petition with the Copyright Royalty Judges requesting the commen ment of a proceeding. Within 2 weeks after receiving such a petition, the Copyright Royalty Judge shall cause notice to be published in the Federal ter of the initiation of the proceeding.

(c) Stay of Judicial Proceedings.—Any civil action brought under section 1009 against a party to a proceeding under this section shall, on app tion of one of the parties to the proceeding, be stayed until completion of proceeding.

(d) Proceeding.—The Copyright Royalty Judges shall conduct a proceeding with respect to the matter concerned, in accordance with such proced as the Copyright Royalty Judges may adopt. The Copyright Royalty Judges act on the basis of a fully documented written record. Any party to the pro ing may submit relevant information and proposals to the Copyright Roya Judges. The parties to the proceeding shall each bear their respective cost participation.

(e) Judicial Review.—Any determination of the Copyright Royalty Judges under subsection (d) may be appealed, by a party to the proceeding, in a dance with section 803(d) of this title. The pendency of an appeal under subsection shall not stay the determination of the Copyright Royalty Judge the court modifies the determination of the Copyright Royalty Judges, the shall have jurisdiction to enter its own decision in accordance with its fina ment. The court may further vacate the determination of the Copyright Ro Judges and remand the case for proceedings as provided in this section.

## Chapter 10 · Notes

1. The Audio Home Recording Act of 1992 added chapter 10, entitled "Digital Audio ing Devices and Media," to Title 17. Pub. L. No. 102-563, 106 Stat. 4237.

2. The Copyright Royalty Tribunal Reform Act of 1993 amended section 1004(a)( substituting "Librarian of Congress" in lieu of "Copyright Royalty Tribunal," where a priate. Pub. L. No. 103-198, 107 Stat. 2304, 2312.

The Copyright Royalty and Distribution Reform Act of 2004 amended para 1004(a)(3) by substituting "Copyright Royalty Judges" in lieu of "Librarian of Congr wherever it appeared. Pub. L. No. 108-419, 118 Stat. 2341, 2368.

3. The Copyright Royalty Tribunal Reform Act of 1993 amended section 1005 by the last sentence, which began "The Register shall submit to the Copyright Royalty Pub. L. No. 103-198, 107 Stat. 2304, 2312.

4. The Copyright Royalty Tribunal Reform Act of 1993 amended section 1006(c) b stituting "Librarian of Congress" in lieu of "Copyright Royalty Tribunal," where appr Pub. L. No. 103-198, 107 Stat. 2304, 2312. In 1997, section 1006(b)(1) was amende "Federation of Television" in lieu of "Federation Television" wherever it appeared. P 105-80, 111 Stat. 1529, 1535.

The Copyright Royalty and Distribution Reform Act of 2004 amended subsection 10 by substituting "Copyright Royalty Judges" for "Librarian of Congress shall convene a right arbitration royalty panel which" in matter preceding paragraph (1). Pub. L. No. 118 Stat. 2341, 2368.

5. The Copyright Royalty Tribunal Reform Act of 1993 amended section 1007 by tuting "Librarian of Congress" in lieu of "Copyright Royalty Tribunal" or "Tribunal," appropriate, by amending the first sentence in subsection (c) and by inserting "the able administrative costs incurred by the Librarian" in the last sentence of subsecti in lieu of "its reasonable administrative costs." Pub. L. No. 103-198, 107 Stat. 2304

In 1997, section 1007 was amended, in subsection (a)(1), by inserting "calendar in lieu of "the calendar year in which this chapter takes effect" and, in subsection (b inserting "1992" in lieu of "the year in which this section takes effect," and also in s (b), by inserting "After" in lieu of "Within 30 days after." Pub. L. No. 105-80, 111 Sta 1534 and 1535.

The Copyright Royalty and Distribution Reform Act of 2004 Act amended graph 1007(a)(1) and subsections (b) and (c) in their entirety. Pub. L. No. 108-419, 2341, 2368.

In 2006, the Copyright Royalty Judges Program Technical Corrections Act amend subsections 1007(b) and (c) by making technical and conforming amendments to c references to the Copyright Royalty Board and deleting "Librarian of Congress," wh propriate. Pub. L. No. 109-303, 120 Stat. 1478, 1483.

6. The Copyright Royalty Tribunal Reform Act of 1993 amended section 1010 by tuting "Librarian of Congress" in lieu of "Copyright Royalty Tribunal" or "Tribunal," appropriate, and by inserting "Librarian's" in lieu of "its." Pub. L. No. 103-198, 107 2312. That Act, which established copyright arbitration royalty panels, states that " alty rates and all determinations with respect to the proportionate division of comp

license fees among copyright claimants, whether made by the Copyright Royalty Tr
or by voluntary agreement, before the effective date set forth in subsection (a) [De
17, 1993] shall remain in effect until modified by voluntary agreement or pursuant
amendments made by this Act." Pub. L. No. 103-198, 107 Stat. 2304, 2313.

The Copyright Royalty and Distribution Reform Act of 2004 Act amended section
in its entirety. Pub. L. No. 108-419, 118 Stat. 2341, 2368.

# Chapter 11

## Sound Recordings and Music Videos


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## § 1101. Unauthorized fixation and trafficking in sound recordings and music videos

(a) Unauthorized Acts.—Anyone who, without the consent of the performer or performers involved—

(1) fixes the sounds or sounds and images of a live musical performa in a copy or phonorecord, or reproduces copies or phonorecords of suc performance from an unauthorized fixation,

(2) transmits or otherwise communicates to the public the sounds or and images of a live musical performance, or

(3) distributes or offers to distribute, sells or offers to sell, rents or off rent, or traffics in any copy or phonorecord fixed as described in paragr regardless of whether the fixations occurred in the United States,

shall be subject to the remedies provided in sections 502 through 505, to extent as an infringer of copyright.

(b) Definition.—In this section, the term "traffic" has the same meaning in section 2320(e) of title 18.[2]

(c) Applicability.—This section shall apply to any act or acts that occur o or after the date of the enactment of the Uruguay Round Agreements Act.

(d) State Law Not Preempted.—Nothing in this section may be construed to annul or limit any rights or remedies under the common law or statutes any State.

## Chapter 11 · Notes

1. In 1994, the Uruguay Round Agreements Act added chapter 11, entitled "Sound and Music Videos," to Title 17. Pub. L. No. 103-465, 108 Stat. 4809, 4974.

2. The Protecting American Goods and Services Act of 2005 amended the definiti "traffic" in section 1101(b) of Title 17 to incorporate by reference the definition of tr subsection 2320(e)(2) of title 18. Pub. L. No. 109-181, 120 Stat. 285, 288. But the d is no longer contained in subsection 2320(e)(2) of Title 18 because the National De Authorization Act for Fiscal Year 2012, Pub. L. No. 112-81, 125 Stat. 1298, 1499, mo subsection 2320(f)(5) of Title 18 which states: "the term 'traffic' means to transport fer, or otherwise dispose of, to another, for purposes of commercial advantage or p financial gain, or to make, import, export, obtain control of, or possess, with intent t transport, transfer, or otherwise dispose of." The definition in section 2320(f)(5) is t as it was in section 2320(e)(2).

# Chapter 12

# Copyright Protection and Management System


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## § 1201 · Circumvention of copyright protection systems

(a)Violations Regarding Circumvention of Technological Measures.—(1)(A) No person shall circumvent a technological measure that effectively controls access to a work protected under this title. The prohibition contained in the preceding sentence shall take effect at the end of the 2-year period beginning on the date of the enactment of this chapter.

(B) The prohibition contained in subparagraph (A) shall not apply to persons who are users of a copyrighted work which is in a particular class of works, if such persons are, or are likely to be in the succeeding 3-year period, adversely affected by virtue of such prohibition in their ability to make noninfringing uses of that particular class of works under this title, as determined under subparagraph (C).

(C) During the 2-year period described in subparagraph (A), and during each succeeding 3-year period, the Librarian of Congress, upon the recommendation of the Register of Copyrights, who shall consult with the Assistant Secretary for Communications and Information of the Department of Commerce and report and comment on his or her views in making such recommendation, shall make the determination in a rulemaking proceeding for purposes of subparagraph (B) of whether persons who are users of a copyrighted work are, or are likely to be in the succeeding 3-year period, adversely affected by the prohibition under subparagraph (A) in their ability to make noninfringing uses under this title of a particular class of copyrighted works. In conducting such rulemaking, the Librarian shall examine—

(i) the availability for use of copyrighted works;

(ii) the availability for use of works for nonprofit archival, preservation, and educational purposes;

(iii) the impact that the prohibition on the circumvention of technological measures applied to copyrighted works has on criticism, comment, news reporting, teaching, scholarship, or research;

(iv) the effect of circumvention of technological measures on the market for or value of copyrighted works; and

(v) such other factors as the Librarian considers appropriate.

(D) The Librarian shall publish any class of copyrighted works for which the Librarian has determined, pursuant to the rulemaking conducted under subparagraph (C), that noninfringing uses by persons who are users of a copyrighted work are, or are likely to be, adversely affected, and the prohibition contained in subparagraph (A) shall not apply to such users with respect to such class of works for the ensuing 3-year period.

(E) Neither the exception under subparagraph (B) from the application of the prohibition contained in subparagraph (A), nor any determination made in a rulemaking conducted under subparagraph (C), may be used

a defense in any action to enforce any provision of this title other tha
paragraph.

(2) No person shall manufacture, import, offer to the public, provide,
otherwise traffic in any technology, product, service, device, componen
part thereof, that—

(A) is primarily designed or produced for the purpose of circumven
a technological measure that effectively controls access to a work pr
under this title;

(B) has only limited commercially significant purpose or use other t
to circumvent a technological measure that effectively controls acces
work protected under this title; or

(C) is marketed by that person or another acting in concert with th
person with that person's knowledge for use in circumventing a tech
logical measure that effectively controls access to a work protected u
this title.

(3) As used in this subsection—

(A) to "circumvent a technological measure" means to descrambl
scrambled work, to decrypt an encrypted work, or otherwise to avoid
pass, remove, deactivate, or impair a technological measure, without
authority of the copyright owner; and

(B) a technological measure "effectively controls access to a work"
measure, in the ordinary course of its operation, requires the applicat
of information, or a process or a treatment, with the authority of the
right owner, to gain access to the work.

(b)Additional Violations.—(1) No person shall manufacture, import, of-
fer to the public, provide, or otherwise traffic in any technology, product,
device, component, or part thereof, that—

(A) is primarily designed or produced for the purpose of circumven
protection afforded by a technological measure that effectively prote
right of a copyright owner under this title in a work or a portion there

(B) has only limited commercially significant purpose or use other t
to circumvent protection afforded by a technological measure that ef
tively protects a right of a copyright owner under this title in a work o
portion thereof; or

(C) is marketed by that person or another acting in concert with th
person with that person's knowledge for use in circumventing protect
afforded by a technological measure that effectively protects a right
copyright owner under this title in a work or a portion thereof.

(2) As used in this subsection—

(A) to "circumvent protection afforded by a technological mea
means avoiding, bypassing, removing, deactivating, or otherwise imp
ing a technological measure; and

(B) a technological measure "effectively protects a right of a copyr
owner under this title" if the measure, in the ordinary course of its ope
prevents, restricts, or otherwise limits the exercise of a right of a cop
owner under this title.

(c) Other Rights, Etc., Not Affected.—(1) Nothing in this section shall
affect rights, remedies, limitations, or defenses to copyright infringement,
ing fair use, under this title.

(2) Nothing in this section shall enlarge or diminish vicarious or contr
tory liability for copyright infringement in connection with any technolo
product, service, device, component, or part thereof.

(3) Nothing in this section shall require that the design of, or design ar
selection of parts and components for, a consumer electronics, telecomm
tions, or computing product provide for a response to any particular tec
logical measure, so long as such part or component, or the product in w
such part or component is integrated, does not otherwise fall within the
hibitions of subsection (a)(2) or (b)(1).

(4) Nothing in this section shall enlarge or diminish any rights of free
or the press for activities using consumer electronics, telecommunicatio
computing products.

(d) Exemption for Nonprofit Libraries, Archives, and Educational Institutions.—(1) A nonprofit library, archives, or educational institution
which gains access to a commercially exploited copyrighted work solely in
to make a good faith determination of whether to acquire a copy of that w
for the sole purpose of engaging in conduct permitted under this title shal
be in violation of subsection (a)(1)(A). A copy of a work to which access ha
gained under this paragraph—

(A) may not be retained longer than necessary to make such good
determination; and

(B) may not be used for any other purpose.

(2) The exemption made available under paragraph (1) shall only ap
with respect to a work when an identical copy of that work is not reason
available in another form.

(3) A nonprofit library, archives, or educational institution that willfull
for the purpose of commercial advantage or financial gain violates par
graph (1)—

(A) shall, for the first offense, be subject to the civil remedies unde
tion 1203; and

(B) shall, for repeated or subsequent offenses, in addition to the civ
dies under section 1203, forfeit the exemption provided under paragr

(4) This subsection may not be used as a defense to a claim under su
tion (a)(2) or (b), nor may this subsection permit a nonprofit library, arc
or educational institution to manufacture, import, offer to the public, pr

or otherwise traffic in any technology, product, service, component, or p
thereof, which circumvents a technological measure.

(5) In order for a library or archives to qualify for the exemption unde
subsection, the collections of that library or archives shall be—

(A) open to the public; or

(B) available not only to researchers affiliated with the library or ar
or with the institution of which it is a part, but also to other persons d
research in a specialized field.

(e) Law Enforcement, Intelligence, and Other Government Activities.—This section does not prohibit any lawfully authorized investig
tive, protective, information security, or intelligence activity of an officer,
or employee of the United States, a State, or a political subdivision of a St
person acting pursuant to a contract with the United States, a State, or a p
subdivision of a State. For purposes of this subsection, the term "informa
security" means activities carried out in order to identify and address the
nerabilities of a government computer, computer system, or computer ne

(f) Reverse Engineering.—(1) Notwithstanding the provisions of sub-
section (a)(1)(A), a person who has lawfully obtained the right to use a co
a computer program may circumvent a technological measure that effec
controls access to a particular portion of that program for the sole purpos
identifying and analyzing those elements of the program that are necessa
achieve interoperability of an independently created computer program w
other programs, and that have not previously been readily available to the
engaging in the circumvention, to the extent any such acts of identificatio
analysis do not constitute infringement under this title.

(2) Notwithstanding the provisions of subsections (a)(2) and (b), a pers
develop and employ technological means to circumvent a technological m
or to circumvent protection afforded by a technological measure, in ord
enable the identification and analysis under paragraph (1), or for the pu
enabling interoperability of an independently created computer program
other programs, if such means are necessary to achieve such interoper
the extent that doing so does not constitute infringement under this titl

(3) The information acquired through the acts permitted under parag
(1), and the means permitted under paragraph (2), may be made availa
others if the person referred to in paragraph (1) or (2), as the case may
vides such information or means solely for the purpose of enabling inte
ability of an independently created computer program with other progra
and to the extent that doing so does not constitute infringement under
title or violate applicable law other than this section.

(4) For purposes of this subsection, the term "interoperability" means
ability of computer programs to exchange information, and of such prog
mutually to use the information which has been exchanged.

(g) Encryption Research.—

(1) Definitions.—For purposes of this subsection—

(A) the term "encryption research" means activities necessary to id and analyze flaws and vulnerabilities of encryption technologies appl copyrighted works, if these activities are conducted to advance the st knowledge in the field of encryption technology or to assist in the dev ment of encryption products; and

(B) the term "encryption technology" means the scrambling and d scrambling of information using mathematical formulas or algorithms

(2) Permissible acts of encryption research.—Notwithstanding the provisions of subsection (a)(1)(A), it is not a violation of that subsec for a person to circumvent a technological measure as applied to a copy norecord, performance, or display of a published work in the course of a of good faith encryption research if—

(A) the person lawfully obtained the encrypted copy, phonorecord, formance, or display of the published work;

(B) such act is necessary to conduct such encryption research;

(C) the person made a good faith effort to obtain authorization befo the circumvention; and

(D) such act does not constitute infringement under this title or a v lation of applicable law other than this section, including section 1030 title 18 and those provisions of title 18 amended by the Computer Fra and Abuse Act of 1986.

(3) Factors in determining exemption.—In determining whether a person qualifies for the exemption under paragraph (2), the factors to b sidered shall include—

(A) whether the information derived from the encryption research was disseminated, and if so, whether it was disseminated in a manr reasonably calculated to advance the state of knowledge or develop of encryption technology, versus whether it was disseminated manner that facilitates infringement under this title or a violation of applicable law other than this section, including a violation of privac or breach of security;

(B) whether the person is engaged in a legitimate course of study, ployed, or is appropriately trained or experienced, in the field of encr technology; and

(C) whether the person provides the copyright owner of the work t which the technological measure is applied with notice of the findings documentation of the research, and the time when such notice is pro

(4) Use of technological means for research activities.—Notwithstanding the provisions of subsection (a)(2), it is not a violation of t subsection for a person to—

(A) develop and employ technological means to circumvent a techn
logical measure for the sole purpose of that person performing the ac
good faith encryption research described in paragraph (2); and

(B) provide the technological means to another person with whom
or she is working collaboratively for the purpose of conducting the ac
good faith encryption research described in paragraph (2) or for the p
pose of having that other person verify his or her acts of good faith e
tion research described in paragraph (2).

(5) Report to Congress.—Not later than 1 year after the date of the en-
actment of this chapter, the Register of Copyrights and the Assistant Se
for Communications and Information of the Department of Commerce s
jointly report to the Congress on the effect this subsection has had on—

(A) encryption research and the development of encryption techno

(B) the adequacy and effectiveness of technological measures desi
to protect copyrighted works; and

(C) protection of copyright owners against the unauthorized access
their encrypted copyrighted works.

The report shall include legislative recommendations, if any.

(h) Exceptions Regarding Minors.—In applying subsection (a) to a com-
ponent or part, the court may consider the necessity for its intended and a
incorporation in a technology, product, service, or device, which—

(1) does not itself violate the provisions of this title; and

(2) has the sole purpose to prevent the access of minors to material o
Internet.

(i) Protection of Personally Identifying Information.—

(1) Circumvention permitted.—Notwithstanding the provisions of
subsection (a)(1)(A), it is not a violation of that subsection for a person
circumvent a technological measure that effectively controls access to a
protected under this title, if—

(A) the technological measure, or the work it protects, contains the
pability of collecting or disseminating personally identifying informati
reflecting the online activities of a natural person who seeks to gain a
to the work protected;

(B) in the normal course of its operation, the technological measur
the work it protects, collects or disseminates personally identifying in
mation about the person who seeks to gain access to the work protec
without providing conspicuous notice of such collection or disseminat
to such person, and without providing such person with the capability
prevent or restrict such collection or dissemination;

(C) the act of circumvention has the sole effect of identifying and d
abling the capability described in subparagraph (A), and has no other
on the ability of any person to gain access to any work; and

(D) the act of circumvention is carried out solely for the purpose of venting the collection or dissemination of personally identifying inform tion about a natural person who seeks to gain access to the work pro and is not in violation of any other law.

(2) Inapplicability to certain technological measures.—

This subsection does not apply to a technological measure, or a work tects, that does not collect or disseminate personally identifying inform and that is disclosed to a user as not having or using such capability.

(j) Security Testing.—

(1) Definition.—For purposes of this subsection, the term "security tes ing" means accessing a computer, computer system, or computer netw solely for the purpose of good faith testing, investigating, or correcting, curity flaw or vulnerability, with the authorization of the owner or opera of such computer, computer system, or computer network.

(2) Permissible acts of security testing.—Notwithstanding the provisions of subsection (a)(1)(A), it is not a violation of that subsection fo person to engage in an act of security testing, if such act does not con tute infringement under this title or a violation of applicable law other t this section, including section 1030 of title 18 and those provisions of ti amended by the Computer Fraud and Abuse Act of 1986.

(3) Factors in determining exemption.—In determining whether a person qualifies for the exemption under paragraph (2), the factors to b sidered shall include—

(A) whether the information derived from the security testing was u solely to promote the security of the owner or operator of such comp computer system or computer network, or shared directly with the de oper of such computer, computer system, or computer network; and

(B) whether the information derived from the security testing was u or maintained in a manner that does not facilitate infringement unde title or a violation of applicable law other than this section, including violation of privacy or breach of security.

(4) Use of technological means for security testing.—Notwithstanding the provisions of subsection (a)(2), it is not a violation of that s section for a person to develop, produce, distribute or employ technolo means for the sole purpose of performing the acts of security testing de in subsection (2), provided such technological means does not otherwis late section (a)(2).

(k) Certain Analog Devices and Certain Technological Measures.—

(1) Certain analog devices.—

(A) Effective 18 months after the date of the enactment of this cha no person shall manufacture, import, offer to the public, provide or o erwise traffic in any—

(i) VHS format analog video cassette recorder unless such record
conforms to the automatic gain control copy control technology;

(ii) 8mm format analog video cassette camcorder unless such ca
corder conforms to the automatic gain control technology;

(iii) Beta format analog video cassette recorder, unless such rec
conforms to the automatic gain control copy control technology, ex
that this requirement shall not apply until there are 1,000 Beta for
analog video cassette recorders sold in the United States in any on
endar year after the date of the enactment of this chapter;

(iv) 8mm format analog video cassette recorder that is not an ar
video cassette camcorder, unless such recorder conforms to the au
gain control copy control technology, except that this requirement
not apply until there are 20,000 such recorders sold in the United S
any one calendar year after the date of the enactment of this chap

(v) analog video cassette recorder that records using an NTSC format
video input and that is not otherwise covered under clauses (i) thro
(iv), unless such device conforms to the automatic gain control co
control technology.

(B) Effective on the date of the enactment of this chapter, no perso
manufacture, import, offer to the public, provide or otherwise traffic i

(i) any VHS format analog video cassette recorder or any 8mm for
analog video cassette recorder if the design of the model of such re
has been modified after such date of enactment so that a model of
corder that previously conformed to the automatic gain control cop
control technology no longer conforms to such technology; or

(ii) any VHS format analog video cassette recorder, or any 8mm fo
mat analog video cassette recorder that is not an 8mm analog vid
cassette camcorder, if the design of the model of such recorder ha
modified after such date of enactment so that a model of recorder
previously conformed to the four-line colorstripe copy control techn
ogy no longer conforms to such technology.

Manufacturers that have not previously manufactured or sold a VHS for
mat analog video cassette recorder, or an 8mm format analog casse
recorder, shall be required to conform to the four-line colorstripe cop
control technology in the initial model of any such recorder manufact
after the date of the enactment of this chapter, and thereafter to con
conforming to the four-line colorstripe copy control technology. For p
poses of this subparagraph, an analog video cassette recorder "confo
the four-line colorstripe copy control technology if it records a signal
when played back by the playback function of that recorder in the no
viewing mode, exhibits, on a reference display device, a display conta
distracting visible lines through portions of the viewable picture.

(2)Certain encoding restrictions.—No person shall apply the automatic gain control copy control technology or colorstripe copy control technology to prevent or limit consumer copying except such copying—

(A) of a single transmission, or specified group of transmissions, of events or of audiovisual works for which a member of the public has exercised choice in selecting the transmissions, including the content of transmissions or the time of receipt of such transmissions, or both, and to which such member is charged a separate fee for each such transmission or specified group of transmissions;

(B) from a copy of a transmission of a live event or an audiovisual work if such transmission is provided by a channel or service where payment is made by a member of the public for such channel or service in the form of a subscription fee that entitles the member of the public to receive the programming contained in such channel or service;

(C) from a physical medium containing one or more prerecorded audiovisual works; or

(D) from a copy of a transmission described in subparagraph (A) or from a copy made from a physical medium described in subparagraph (C).

In the event that a transmission meets both the conditions set forth in subparagraph (A) and those set forth in subparagraph (B), the transmission shall be treated as a transmission described in subparagraph (A).

(3)Inapplicability.—This subsection shall not—

(A) require any analog video cassette camcorder to conform to the automatic gain control copy control technology with respect to any video signal received through a camera lens;

(B) apply to the manufacture, importation, offer for sale, provision of, or other trafficking in, any professional analog video cassette recorder; or

(C) apply to the offer for sale or provision of, or other trafficking in, any previously owned analog video cassette recorder, if such recorder was not legally manufactured and sold when new and not subsequently modified in violation of paragraph (1)(B).

(4)Definitions.—For purposes of this subsection:

(A) An "analog video cassette recorder" means a device that records, or a device that includes a function that records, on electromagnetic tape in an analog format the electronic impulses produced by the video and audio portions of a television program, motion picture, or other form of audiovisual work.

(B) An "analog video cassette camcorder" means an analog video cassette recorder that contains a recording function that operates through a camera lens and through a video input that may be connected with a television or other video playback device.

(C) An analog video cassette recorder "conforms" to the automatic gain control copy control technology if it—

(i) detects one or more of the elements of such technology and c
not record the motion picture or transmission protected by such te
nology; or

(ii) records a signal that, when played back, exhibits a meaningfu
distorted or degraded display.

(D) The term "professional analog video cassette recorder" means
analog video cassette recorder that is designed, manufactured, mark
and intended for use by a person who regularly employs such a devic
a lawful business or industrial use, including making, performing, di
playing, distributing, or transmitting copies of motion pictures on a co
mercial scale.

(E) The terms "VHS format," "8mm format," "Beta format," "automatic
gain control copy control technology," "colorstripe copy control techn
ogy," "four-line version of the colorstripe copy control technology," a
"NTSC" have the meanings that are commonly understood in the cons
electronics and motion picture industries as of the date of the enactm
of this chapter.

(5) Violations.—Any violation of paragraph (1) of this subsection shall
be treated as a violation of subsection (b)(1) of this section. Any violatio
paragraph (2) of this subsection shall be deemed an "act of circumvent
the purposes of section 1203(c)(3)(A) of this chapter.

## § 1202 · Integrity of copyright management information

(a) False Copyright Management Information.—No person shall
knowingly and with the intent to induce, enable, facilitate, or conceal infri
ment—

(1) provide copyright management information that is false, or

(2) distribute or import for distribution copyright management inform
tion that is false.

(b) Removal or Alteration of Copyright Management Information.—
No person shall, without the authority of the copyright owner or the law—

(1) intentionally remove or alter any copyright management informat

(2) distribute or import for distribution copyright management inform
tion knowing that the copyright management information has been rem
or altered without authority of the copyright owner or the law, or

(3) distribute, import for distribution, or publicly perform works, copie
works, or phonorecords, knowing that copyright management informati
been removed or altered without authority of the copyright owner or th

knowing, or, with respect to civil remedies under section 1203, having rea
grounds to know, that it will induce, enable, facilitate, or conceal an infrin
of any right under this title.

(c) Definition.—As used in this section, the term "copyright managemen
information" means any of the following information conveyed in connect
with copies or phonorecords of a work or performances or displays of a wo
including in digital form, except that such term does not include any perso
identifying information about a user of a work or of a copy, phonorecord, p
formance, or display of a work:

(1) The title and other information identifying the work, including the
formation set forth on a notice of copyright.

(2) The name of, and other identifying information about, the author
a work.

(3) The name of, and other identifying information about, the copyrig
owner of the work, including the information set forth in a notice of cop
right.

(4) With the exception of public performances of works by radio and t
sion broadcast stations, the name of, and other identifying information
a performer whose performance is fixed in a work other than an audiov
work.

(5) With the exception of public performances of works by radio and t
sion broadcast stations, in the case of an audiovisual work, the name of
other identifying information about, a writer, performer, or director who
credited in the audiovisual work.

(6) Terms and conditions for use of the work.

(7) Identifying numbers or symbols referring to such information or li
to such information.

(8) Such other information as the Register of Copyrights may prescrib
regulation, except that the Register of Copyrights may not require the p
sion of any information concerning the user of a copyrighted work.

(d) Law Enforcement, Intelligence, and Other Government Activities.—This section does not prohibit any lawfully authorized investigati
protective, information security, or intelligence activity of an officer, agen
employee of the United States, a State, or a political subdivision of a State
person acting pursuant to a contract with the United States, a State, or a p
subdivision of a State. For purposes of this subsection, the term "informa
security" means activities carried out in order to identify and address the
nerabilities of a government computer, computer system, or computer ne

(e) Limitations on Liability.—

(1) Analog transmissions.—In the case of an analog transmission, a
person who is making transmissions in its capacity as a broadcast statio

as a cable system, or someone who provides programming to such stat
system, shall not be liable for a violation of subsection (b) if—

(A) avoiding the activity that constitutes such violation is not techn
feasible or would create an undue financial hardship on such person;

(B) such person did not intend, by engaging in such activity, to indu
enable, facilitate, or conceal infringement of a right under this title.

(2) Digital transmissions.—

(A) If a digital transmission standard for the placement of copyrigh
management information for a category of works is set in a voluntary
sensus standard-setting process involving a representative cross-sec
broadcast stations or cable systems and copyright owners of a catego
works that are intended for public performance by such stations or sy
a person identified in paragraph (1) shall not be liable for a violation
subsection (b) with respect to the particular copyright management i
mation addressed by such standard if—

(i) the placement of such information by someone other than suc
person is not in accordance with such standard; and

(ii) the activity that constitutes such violation is not intended to in
enable, facilitate, or conceal infringement of a right under this title

(B) Until a digital transmission standard has been set pursuant to s
paragraph (A) with respect to the placement of copyright manageme
formation for a category of works, a person identified in paragraph (1
not be liable for a violation of subsection (b) with respect to such cop
management information, if the activity that constitutes such violatio
not intended to induce, enable, facilitate, or conceal infringement of a
under this title, and if—

(i) the transmission of such information by such person would re
in a perceptible visual or aural degradation of the digital signal; or

(ii) the transmission of such information by such person would co
flict with—

(I) an applicable government regulation relating to transmissio
of information in a digital signal;

(II) an applicable industry-wide standard relating to the transm
sion of information in a digital signal that was adopted by a volu
consensus standards body prior to the effective date of this chap

(III) an applicable industry-wide standard relating to the trans-
mission of information in a digital signal that was adopted in a vo
untary, consensus standards-setting process open to participatio
a representative cross-section of broadcast stations or cable syst
and copyright owners of a category of works that are intended fo
public performance by such stations or systems.

(3) Definitions.—As used in this subsection—

(A) the term “broadcast station” has the meaning given that term i
tion 3 of the Communications Act of 1934 (47 U.S.C. 153); and
(B) the term “cable system” has the meaning given that term in se
602 of the Communications Act of 1934 (47 U.S.C. 522).

## § 1203 · Civil remedies

(a) Civil Actions.—Any person injured by a violation of section 1201 or
1202 may bring a civil action in an appropriate United States district court
such violation.
(b) Powers of the Court.—In an action brought under subsection (a), the
court—
(1) may grant temporary and permanent injunctions on such terms a
deems reasonable to prevent or restrain a violation, but in no event sh
impose a prior restraint on free speech or the press protected under the
amendment to the Constitution;
(2) at any time while an action is pending, may order the impounding
such terms as it deems reasonable, of any device or product that is in t
tody or control of the alleged violator and that the court has reasonable
to believe was involved in a violation;
(3) may award damages under subsection (c);
(4) in its discretion may allow the recovery of costs by or against any
other than the United States or an officer thereof;
(5) in its discretion may award reasonable attorney’s fees to the prev
party; and
(6) may, as part of a final judgment or decree finding a violation, orde
remedial modification or the destruction of any device or product involv
in the violation that is in the custody or control of the violator or has be
impounded under paragraph (2).
(c) Award of Damages.
(1) In general.—Except as otherwise provided in this title, a person co
mitting a violation of section 1201 or 1202 is liable for either—
(A) the actual damages and any additional profits of the violator, a
vided in paragraph (2), or
(B) statutory damages, as provided in paragraph (3).
(2) Actual damages.—The court shall award to the complaining party
the actual damages suffered by the party as a result of the violation, an
profits of the violator that are attributable to the violation and are not ta
into account in computing the actual damages, if the complaining party
such damages at any time before final judgment is entered.

(3)Statutory damages.—(A) At any time before final judgment is entered, a complaining party may elect to recover an award of statutory d for each violation of section 1201 in the sum of not less than $200 or m than $2,500 per act of circumvention, device, product, component, offe performance of service, as the court considers just.

(B) At any time before final judgment is entered, a complaining par may elect to recover an award of statutory damages for each violatio section 1202 in the sum of not less than $2,500 or more than $25,00

(4)Repeated violations.—In any case in which the injured party sustains the burden of proving, and the court finds, that a person has viola tion 1201 or 1202 within three years after a final judgment was entered the person for another such violation, the court may increase the award damages up to triple the amount that would otherwise be awarded, as court considers just.

(5)Innocent violations.—

(A) In general.—The court in its discretion may reduce or remit the total award of damages in any case in which the violator sustains the den of proving, and the court finds, that the violator was not aware a had no reason to believe that its acts constituted a violation.

(B)Nonprofit library, archives, educational institutions, or public broadcasting entities.—

(i) Definition.—In this subparagraph, the term "public broadcasting entity" has the meaning given such term under section 118(f).

(ii) In general.—In the case of a nonprofit library, archives, educational institution, or public broadcasting entity, the court shall re damages in any case in which the library, archives, educational ins tion, or public broadcasting entity sustains the burden of proving, a the court finds, that the library, archives, educational institution, o lic broadcasting entity was not aware and had no reason to believe its acts constituted a violation.

## § 1204 · Criminal offenses and penalties

(a)In General.—Any person who violates section 1201 or 1202 willfully a for purposes of commercial advantage or private financial gain—

(1) shall be fined not more than $500,000 or imprisoned for not more 5 years, or both, for the first offense; and

(2) shall be fined not more than $1,000,000 or imprisoned for not mo than 10 years, or both, for any subsequent offense.

(b) Limitation for Nonprofit Library, Archives, Educational Institution, or Public Broadcasting Entity. —Subsection (a) shall not

apply to a nonprofit library, archives, educational institution, or public bro
casting entity (as defined under section 118(f)).

(c) Statute of Limitations.—No criminal proceeding shall be brought un-
der this section unless such proceeding is commenced within five years a
cause of action arose.

## § 1205 · Savings clause

Nothing in this chapter abrogates, diminishes, or weakens the provision
nor provides any defense or element of mitigation in a criminal prosecuti
or civil action under, any Federal or State law that prevents the violation o
privacy of an individual in connection with the individual's use of the Inter

## Chapter 12 · Notes

1. The WIPO Copyright and Performances and Phonograms Treaties Implementation A
of 1998 added chapter 12, entitled "Copyright Protection and Management System
Title 17. Pub. L. No. 105-304, 112 Stat. 2860, 2863. The WIPO Copyright and Performances
and Phonograms Treaties Implementation Act of 1998 is Title I of the Digital Millenn
Copyright Act. Pub. L. No. 105-304, 112 Stat. 2860.

2. The Satellite Home Viewer Improvement Act of 1999 amended section 1201(a)
deleting "on the record." Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-594.

3. In 1999, section 1202 was amended by inserting "category of works" for "cate
works," in subsection (e)(2)(B). Pub. L. No. 106-44, 113 Stat. 221, 222.

4. The Satellite Home Viewer Improvement Act of 1999 amended section 1203(c)
in its entirety. Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-593. The Copyri
Clarification, and Corrections Act of 2010 amended subparagraph 1203(c)(5)(B)(i) t
tute "section 118(f)" for "section 118(g)." Pub. L. No. 111-295, 124 Stat. 3180, 318

5. The Satellite Home Viewer Improvement Act of 1999 amended section 1204(b
its entirety. Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-593. The Copyrigh
Clarification, and Corrections Act of 2010 amended subsection 1204(b) to substitute
118(f)" for "section 118(g)." Pub. L. No. 111-295, 124 Stat. 3180, 3181.

# Chapter 13

## Protection of Original Designs


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## § 1301 · Designs protected

(a) Designs Protected.—

(1) In general.—The designer or other owner of an original design of a useful article which makes the article attractive or distinctive in appear to the purchasing or using public may secure the protection provided by chapter upon complying with and subject to this chapter.

(2) Vessel features.—The design of a vessel hull, deck, or combination of a hull and deck, including a plug or mold, is subject to protection und this chapter, notwithstanding section 1302(4).

(3) Exceptions.—Department of Defense rights in a registered design u der this chapter, including the right to build to such registered design, s determined solely by operation of section 2320 of title 10 or by the inst under which the design was developed for the United States Governme

(b) Definitions.—For the purpose of this chapter, the following terms hav the following meanings:

(1) A design is "original" if it is the result of the designer's creative en that provides a distinguishable variation over prior work pertaining to si lar articles which is more than merely trivial and has not been copied fr another source.

(2) A "useful article" is a vessel hull or deck, including a plug or mold in normal use has an intrinsic utilitarian function that is not merely to p the appearance of the article or to convey information. An article which mally is part of a useful article shall be deemed to be a useful article.

(3) A "vessel" is a craft—

(A) that is designed and capable of independently steering a course or through water through its own means of propulsion; and

(B) that is designed and capable of carrying and transporting one more passengers.

(4) A "hull" is the exterior frame or body of a vessel, exclusive of the superstructure, masts, sails, yards, rigging, hardware, fixtures, and othe attachments.

(5) A "plug" means a device or model used to make a mold for the pu of exact duplication, regardless of whether the device or model has an utilitarian function that is not only to portray the appearance of the pro or to convey information.

(6) A "mold" means a matrix or form in which a substance for mater is used, regardless of whether the matrix or form has an intrinsic utilita function that is not only to portray the appearance of the product or to information.

(7) A "deck" is the horizontal surface of a vessel that covers the hull, ing exterior cabin and cockpit surfaces and exclusive of masts, sails, ya ging, hardware, fixtures, and other attachments.

### § 1302 · Designs not subject to protection

Protection under this chapter shall not be available for a design that is–

(1) not original;

(2) staple or commonplace, such as a standard geometric figure, a fa symbol, an emblem, or a motif, or another shape, pattern, or configurat which has become standard, common, prevalent, or ordinary;

(3) different from a design excluded by paragraph (2) only in insigni cant details or in elements which are variants commonly used in the rel trades;

(4) dictated solely by a utilitarian function of the article that embodie or

(5) embodied in a useful article that was made public by the designer owner in the United States or a foreign country more than 2 years befor date of the application for registration under this chapter.

### § 1303 · Revisions, adaptations, and rearrangements

Protection for a design under this chapter shall be available notwithstan the employment in the design of subject matter excluded from protection section 1302 if the design is a substantial revision, adaptation, or rearran of such subject matter. Such protection shall be independent of any subsi protection in subject matter employed in the design, and shall not be cons securing any right to subject matter excluded from protection under this c or as extending any subsisting protection under this chapter.

### § 1304 · Commencement of protection

The protection provided for a design under this chapter shall commence the earlier of the date of publication of the registration under section 131 the date the design is first made public as defined by section 1310(b).

## § 1305 · Term of protection

(a) In General.—Subject to subsection (b), the protection provided under this chapter for a design shall continue for a term of 10 years beginning on the date of the commencement of protection under section 1304.

(b) Expiration.—All terms of protection provided in this section shall run to the end of the calendar year in which they would otherwise expire.

(c) Termination of Rights.—Upon expiration or termination of protection in a particular design under this chapter, all rights under this chapter in the design shall terminate, regardless of the number of different articles in which the design may have been used during the term of its protection.

## § 1306 · Design notice

(a) Contents of Design Notice.—

(1) Whenever any design for which protection is sought under this chapter is made public under section 1310(b), the owner of the design shall, subject to the provisions of section 1307, mark it or have it marked legibly with a design notice consisting of—

(A) the words "Protected Design", the abbreviation "Prot'd Des.", or the letter "D" within a circle, or the symbol "*D*";

(B) the year of the date on which protection for the design commenced; and

(C) the name of the owner, an abbreviation by which the name can be recognized, or a generally accepted alternative designation of the owner.

Any distinctive identification of the owner may be used for purposes of subparagraph (C) if it has been recorded by the Administrator before the design marked with such identification is registered.

(2) After registration, the registration number may be used instead of the elements specified in subparagraphs (B) and (C) of paragraph (1).

(b) Location of Notice.—The design notice shall be so located and applied as to give reasonable notice of design protection while the useful article embodying the design is passing through its normal channels of commerce.

(c) Subsequent Removal of Notice.—When the owner of a design has complied with the provisions of this section, protection under this chapter shall not be affected by the removal, destruction, or obliteration by others of the design notice on an article.

### § 1307 · Effect of omission of notice

(a) Actions with Notice.—Except as provided in subsection (b), the omis-
sion of the notice prescribed in section 1306 shall not cause loss of the pr
tion under this chapter or prevent recovery for infringement under this ch
against any person who, after receiving written notice of the design prote
begins an undertaking leading to infringement under this chapter.

(b) Actions without Notice.—The omission of the notice prescribed in section 1306 shall prevent any recovery under section 1323 against a per
began an undertaking leading to infringement under this chapter before r
ing written notice of the design protection. No injunction shall be issued u
this chapter with respect to such undertaking unless the owner of the des
imburses that person for any reasonable expenditure or contractual obliga
in connection with such undertaking that was incurred before receiving w
notice of the design protection, as the court in its discretion directs. The b
providing written notice of design protection shall be on the owner of the

### § 1308 · Exclusive rights

The owner of a design protected under this chapter has the exclusive ri
(1) make, have made, or import, for sale or for use in trade, any usef
embodying that design; and
(2) sell or distribute for sale or for use in trade any useful article emb
that design.

### § 1309 · Infringement

(a) Acts of Infringement.—Except as provided in subsection (b), it shall be infringement of the exclusive rights in a design protected under this ch
for any person, without the consent of the owner of the design, within the
States and during the term of such protection, to—
(1) make, have made, or import, for sale or for use in trade, any infri
article as defined in subsection (e); or
(2) sell or distribute for sale or for use in trade any such infringing art

(b) Acts of Sellers and Distributors.—A seller or distributor of an in-fringing article who did not make or import the article shall be deemed to
infringed on a design protected under this chapter only if that person—
(1) induced or acted in collusion with a manufacturer to make, or an i
porter to import such article, except that merely purchasing or giving a
to purchase such article in the ordinary course of business shall not of i

constitute such inducement or collusion; or

(2) refused or failed, upon the request of the owner of the design, to a prompt and full disclosure of that person's source of such article, and person orders or reorders such article after receiving notice by registere certified mail of the protection subsisting in the design.

(c)Acts without Knowledge.—It shall not be infringement under this section to make, have made, import, sell, or distribute, any article embod design which was created without knowledge that a design was protected this chapter and was copied from such protected design.

(d)Acts in Ordinary Course of Business.—A person who incorporates into that person's product of manufacture an infringing article acquired fr others in the ordinary course of business, or who, without knowledge of th tected design embodied in an infringing article, makes or processes the in article for the account of another person in the ordinary course of busines not be deemed to have infringed the rights in that design under this chap cept under a condition contained in paragraph (1) or (2) of subsection (b). ing an order or reorder from the source of the infringing article shall be de ordering or reordering within the meaning of subsection (b)(2).

(e) Infringing Article Defined.—As used in this section, an "infringing article" is any article the design of which has been copied from a design p under this chapter, without the consent of the owner of the protected des infringing article is not an illustration or picture of a protected design in an vertisement, book, periodical, newspaper, photograph, broadcast, motion or similar medium. A design shall not be deemed to have been copied fro protected design if it is original and not substantially similar in appearanc protected design.

(f) Establishing Originality.—The party to any action or proceeding under this chapter who alleges rights under this chapter in a design shall the burden of establishing the design's originality whenever the opposing introduces an earlier work which is identical to such design, or so similar a make prima facie showing that such design was copied from such work.

(g)Reproduction for Teaching or Analysis.—It is not an infringement of the exclusive rights of a design owner for a person to reproduce the de a useful article or in any other form solely for the purpose of teaching, ana or evaluating the appearance, concepts, or techniques embodied in the de the function of the useful article embodying the design.

## § 1310 · Application for registration

(a)Time Limit for Application for Registration.—Protection under this chapter shall be lost if application for registration of the design is not

within 2 years after the date on which the design is first made public.

(b)When Design Is Made Public.—A design is made public when an existing useful article embodying the design is anywhere publicly exhibited, distributed, or offered for sale or sold to the public by the owner of the de with the owner's consent.

(c)Application by Owner of Design.—Application for registration may be made by the owner of the design.

(d)Contents of Application.—The application for registration shall be made to the Administrator and shall state—

(1) the name and address of the designer or designers of the design;

(2) the name and address of the owner if different from the designer;

(3) the specific name of the useful article embodying the design;

(4) the date, if any, that the design was first made public, if such date earlier than the date of the application;

(5) affirmation that the design has been fixed in a useful article; and

(6) such other information as may be required by the Administrator.

The application for registration may include a description setting forth t lient features of the design, but the absence of such a description shall no registration under this chapter.

(e)Sworn Statement.—The application for registration shall be accompanied by a statement under oath by the applicant or the applicant's duly au agent or representative, setting forth, to the best of the applicant's knowl belief—

(1) that the design is original and was created by the designer or des named in the application;

(2) that the design has not previously been registered on behalf of th plicant or the applicant's predecessor in title; and

(3) that the applicant is the person entitled to protection and to regis under this chapter.

If the design has been made public with the design notice prescribed in tion 1306, the statement shall also describe the exact form and position o design notice.

(f)Effect of Errors.—(1) Error in any statement or assertion as to the uti ity of the useful article named in the application under this section, the de of which is sought to be registered, shall not affect the protection secured this chapter.

(2) Errors in omitting a joint designer or in naming an alleged joint d signer shall not affect the validity of the registration, or the actual owne or the protection of the design, unless it is shown that the error occurre deceptive intent.

(g)Design Made in Scope of Employment.—In a case in which the design was made within the regular scope of the designer's employment and ind

authorship of the design is difficult or impossible to ascribe and the applic
so states, the name and address of the employer for whom the design wa
may be stated instead of that of the individual designer.

(h) Pictorial Representation of Design.—The application for registration shall be accompanied by two copies of a drawing or other pictorial re
sentation of the useful article embodying the design, having one or more
adequate to show the design, in a form and style suitable for reproductio
shall be deemed a part of the application.

(i) Design in More than One Useful Article.—If the distinguishing elements of a design are in substantially the same form in different useful
the design shall be protected as to all such useful articles when protected
one of them, but not more than one registration shall be required for the

(j) Application for More than One Design.—More than one design may be included in the same application under such conditions as
prescribed by the Administrator. For each design included in an applicatio
fee prescribed for a single design shall be paid.

## § 1311 · Benefit of earlier filing date in foreign country

An application for registration of a design filed in the United States by
person who has, or whose legal representative or predecessor or successo
has, previously filed an application for registration of the same design in a
country which extends to designs of owners who are citizens of the Unite
or to applications filed under this chapter, similar protection to that provi
under this chapter shall have that same effect as if filed in the United Stat
the date on which the application was first filed in such foreign country, if
application in the United States is filed within 6 months after the earliest
which any such foreign application was filed.

## § 1312 · Oaths and acknowledgments

(a) In General.—Oaths and acknowledgments required by this chapter—

(1) may be made—

(A) before any person in the United States authorized by law to adm
ister oaths; or

(B) when made in a foreign country, before any diplomatic or consu
officer of the United States authorized to administer oaths, or before
official authorized to administer oaths in the foreign country concern
whose authority shall be proved by a certificate of a diplomatic or co
officer of the United States; and

(2) shall be valid if they comply with the laws of the State or country made.

(b)Written Declaration in Lieu of Oath.—(1) The Administrator may by rule prescribe that any document which is to be filed under this chapte the Office of the Administrator and which is required by any law, rule, or c regulation to be under oath, may be subscribed to by a written declaratio form as the Administrator may prescribe, and such declaration shall be in the oath otherwise required.

(2) Whenever a written declaration under paragraph (1) is used, the d ment containing the declaration shall state that willful false statement punishable by fine or imprisonment, or both, pursuant to section 1001 title 18, and may jeopardize the validity of the application or document registration resulting therefrom.

## § 1313. Examination of application and issue or refusal of registration

(a)Determination of Registrability of Design; Registration.—Upon the filing of an application for registration in proper form under sec tion 1310, and upon payment of the fee prescribed under section 1316, t ministrator shall determine whether or not the application relates to a de which on its face appears to be subject to protection under this chapter, if so, the Register shall register the design. Registration under this subse shall be announced by publication. The date of registration shall be the d publication.

(b)Refusal to Register; Reconsideration.—If, in the judgment of the Administrator, the application for registration relates to a design which on is not subject to protection under this chapter, the Administrator shall sen applicant a notice of refusal to register and the grounds for the refusal. W 3 months after the date on which the notice of refusal is sent, the applica by written request, seek reconsideration of the application. After consider of such a request, the Administrator shall either register the design or sen applicant a notice of final refusal to register.

(c)Application to Cancel Registration.—Any person who believes he or she is or will be damaged by a registration under this chapter may, upo ment of the prescribed fee, apply to the Administrator at any time to canc registration on the ground that the design is not subject to protection und chapter, stating the reasons for the request. Upon receipt of an applicatio cancellation, the Administrator shall send to the owner of the design, as s in the records of the Office of the Administrator, a notice of the applicatio the owner shall have a period of 3 months after the date on which such no

mailed in which to present arguments to the Administrator for support of t
validity of the registration. The Administrator shall also have the authority
establish, by regulation, conditions under which the opposing parties may
pear and be heard in support of their arguments. If, after the periods prov
for the presentation of arguments have expired, the Administrator determ
that the applicant for cancellation has established that the design is not s
to protection under this chapter, the Administrator shall order the registra
stricken from the record. Cancellation under this subsection shall be anno
by publication, and notice of the Administrator's final determination with r
spect to any application for cancellation shall be sent to the applicant and
the owner of record. Costs of the cancellation procedure under this subse
shall be borne by the nonprevailing party or parties, and the Administrato
have the authority to assess and collect such costs.

## § 1314 · Certification of registration

Certificates of registration shall be issued in the name of the United Sta
der the seal of the Office of the Administrator and shall be recorded in the
records of the Office. The certificate shall state the name of the useful art
date of filing of the application, the date of registration, and the date the
was made public, if earlier than the date of filing of the application, and sh
tain a reproduction of the drawing or other pictorial representation of the
If a description of the salient features of the design appears in the applica
description shall also appear in the certificate. A certificate of registration
admitted in any court as prima facie evidence of the facts stated in the ce

## § 1315 · Publication of announcements and indexes

(a) Publications of the Administrator.—The Administrator shall pub-
lish lists and indexes of registered designs and cancellations of designs an
also publish the drawings or other pictorial representations of registered d
for sale or other distribution.

(b) File of Representatives of Registered Designs.—The Administra-
tor shall establish and maintain a file of the drawings or other pictorial rep
sentations of registered designs. The file shall be available for use by the
under such conditions as the Administrator may prescribe.

### § 1316 · Fees

The Administrator shall by regulation set reasonable fees for the filing o
plications to register designs under this chapter and for other services rel
the administration of this chapter, taking into consideration the cost of pr
these services and the benefit of a public record.

### § 1317 · Regulations

The Administrator may establish regulations for the administration of t
chapter.

### § 1318 · Copies of records

Upon payment of the prescribed fee, any person may obtain a certified
any official record of the Office of the Administrator that relates to this ch
That copy shall be admissible in evidence with the same effect as the orig

### § 1319 · Correction of errors in certificates

The Administrator may, by a certificate of correction under seal, correct
error in a registration incurred through the fault of the Office, or, upon pa
of the required fee, any error of a clerical or typographical nature occurri
good faith but not through the fault of the Office. Such registration, toge
with the certificate, shall thereafter have the same effect as if it had been
issued in such corrected form.

### § 1320 · Ownership and transfer

(a)Property Right in Design.—The property right in a design subject
to protection under this chapter shall vest in the designer, the legal repre
tives of a deceased designer or of one under legal incapacity, the employ
whom the designer created the design in the case of a design made withi
regular scope of the designer's employment, or a person to whom the rig
the designer or of such employer have been transferred. The person in w
property right is vested shall be considered the owner of the design.

(b)Transfer of Property Right.—The property right in a registered de-
sign, or a design for which an application for registration has been or may

may be assigned, granted, conveyed, or mortgaged by an instrument in w
signed by the owner, or may be bequeathed by will.

(c) Oath or Acknowledgment of Transfer.—An oath or acknowledgment under section 1312 shall be prima facie evidence of the execution assignment, grant, conveyance, or mortgage under subsection (b).

(d) Recordation of Transfer.—An assignment, grant, conveyance, or mortgage under subsection (b) shall be void as against any subsequent pu or mortgagee for a valuable consideration, unless it is recorded in the Offi the Administrator within 3 months after its date of execution or before the of such subsequent purchase or mortgage.

## § 1321 · Remedy for infringement

(a) In General.—The owner of a design is entitled, after issuance of a cer tificate of registration of the design under this chapter, to institute an acti any infringement of the design.

(b) Review of Refusal to Register.—(1) Subject to paragraph (2), the owner of a design may seek judicial review of a final refusal of the Admini to register the design under this chapter by bringing a civil action, and ma the same action, if the court adjudges the design subject to protection un chapter, enforce the rights in that design under this chapter.

(2) The owner of a design may seek judicial review under this section

(A) the owner has previously duly filed and prosecuted to final refu an application in proper form for registration of the design;

(B) the owner causes a copy of the complaint in the action to be de ered to the Administrator within 10 days after the commencement of action; and

(C) the defendant has committed acts in respect to the design wh would constitute infringement with respect to a design protected un this chapter.

(c) Administrator as Party to Action.—The Administrator may, at the Administrator's option, become a party to the action with respect to the is registrability of the design claim by entering an appearance within 60 day being served with the complaint, but the failure of the Administrator to be a party shall not deprive the court of jurisdiction to determine that issue.

(d) Use of Arbitration to Resolve Dispute.—The parties to an infringement dispute under this chapter, within such time as may be specifi the Administrator by regulation, may determine the dispute, or any aspec dispute, by arbitration. Arbitration shall be governed by title 9. The parties give notice of any arbitration award to the Administrator, and such award as between the parties to the arbitration, be dispositive of the issues to w

relates. The arbitration award shall be unenforceable until such notice is g
Nothing in this subsection shall preclude the Administrator from determin
whether a design is subject to registration in a cancellation proceeding u
section 1313(c).

## § 1322 · Injunctions

(a) In General.—A court having jurisdiction over actions under this chap-
ter may grant injunctions in accordance with the principles of equity to pr
infringement of a design under this chapter, including, in its discretion, pr
relief by temporary restraining orders and preliminary injunctions.

(b) Damages for Injunctive Relief Wrongfully Obtained.—A seller
or distributor who suffers damage by reason of injunctive relief wrongfully
tained under this section has a cause of action against the applicant for s
injunctive relief and may recover such relief as may be appropriate, inclu
damages for lost profits, cost of materials, loss of good will, and punitive d
in instances where the injunctive relief was sought in bad faith, and, unles
court finds extenuating circumstances, reasonable attorney's fees.

## § 1323 · Recovery for infringement

(a) Damages.—Upon a finding for the claimant in an action for infringeme
under this chapter, the court shall award the claimant damages adequate
pensate for the infringement. In addition, the court may increase the dam
such amount, not exceeding $50,000 or $1 per copy, whichever is greater
court determines to be just. The damages awarded shall constitute comp
tion and not a penalty. The court may receive expert testimony as an aid
determination of damages.

(b) Infringer's Profits.—As an alternative to the remedies provided in
subsection (a), the court may award the claimant the infringer's profits re
from the sale of the copies if the court finds that the infringer's sales are n
ably related to the use of the claimant's design. In such a case, the claima
be required to prove only the amount of the infringer's sales and the infri
shall be required to prove its expenses against such sales.

(c) Statute of Limitations.—No recovery under subsection (a) or (b) shall
be had for any infringement committed more than 3 years before the dat
which the complaint is filed.

(d) Attorney's Fees.—In an action for infringement under this chapter,
the court may award reasonable attorney's fees to the prevailing party.

(e)Disposition of Infringing and Other Articles.—The court may order that all infringing articles, and any plates, molds, patterns, models, means specifically adapted for making the articles, be delivered up for de tion or other disposition as the court may direct.

### § 1324 · Power of court over registration

In any action involving the protection of a design under this chapter, th court, when appropriate, may order registration of a design under this cha or the cancellation of such a registration. Any such order shall be certified the court to the Administrator, who shall make an appropriate entry upon record.

### § 1325 · Liability for action on registration fraudulently obtai

Any person who brings an action for infringement knowing that registrati the design was obtained by a false or fraudulent representation materially a the rights under this chapter, shall be liable in the sum of $10,000, or such p amount as the court may determine. That amount shall be to compensate t dant and shall be charged against the plaintiff and paid to the defendant, in to such costs and attorney's fees of the defendant as may be assessed by t

### § 1326 · Penalty for false marking

(a)In General.—Whoever, for the purpose of deceiving the public, marks upon, applies to, or uses in advertising in connection with an article made distributed, or sold, a design which is not protected under this chapter, a notice specified in section 1306, or any other words or symbols importing design is protected under this chapter, knowing that the design is not so p shall pay a civil fine of not more than $500 for each such offense.

(b)Suit by Private Persons.—Any person may sue for the penalty estab- lished by subsection (a), in which event one-half of the penalty shall be aw to the person suing and the remainder shall be awarded to the United Sta

### § 1327 · Penalty for false representation

Whoever knowingly makes a false representation materially affecting th obtainable under this chapter for the purpose of obtaining registration of a

under this chapter shall pay a penalty of not less than $500 and not more
$1,000, and any rights or privileges that individual may have in the desig
this chapter shall be forfeited.

### § 1328 · Enforcement by Treasury and Postal Service

(a)Regulations.—The Secretary of the Treasury and the United Sta
Postal Service shall separately or jointly issue regulations for the enforcem
the rights set forth in section 1308 with respect to importation. Such regu
may require, as a condition for the exclusion of articles from the United St
that the person seeking exclusion take any one or more of the following a

(1) Obtain a court order enjoining, or an order of the International Tra
Commission under section 337 of the Tariff Act of 1930 excluding, impo
tion of the articles.

(2) Furnish proof that the design involved is protected under this cha
and that the importation of the articles would infringe the rights in the
under this chapter.

(3) Post a surety bond for any injury that may result if the detention
sion of the articles proves to be unjustified.

(b)Seizure and Forfeiture.—Articles imported in violation of the rights
set forth in section 1308 are subject to seizure and forfeiture in the same
as property imported in violation of the customs laws. Any such forfeited a
shall be destroyed as directed by the Secretary of the Treasury or the cou
case may be, except that the articles may be returned to the country of e
whenever it is shown to the satisfaction of the Secretary of the Treasury t
importer had no reasonable grounds for believing that his or her acts cons
a violation of the law.

### § 1329 · Relation to design patent law

The issuance of a design patent under title 35, United States Code, for a
nal design for an article of manufacture shall terminate any protection of
original design under this chapter.

### § 1330 · Common law and other rights unaffected

Nothing in this chapter shall annul or limit—

(1) common law or other rights or remedies, if any, available to or he any person with respect to a design which has not been registered unde chapter; or

(2) any right under the trademark laws or any right protected against competition.

## § 1331 · Administrator; Office of the Administrator

In this chapter, the "Administrator" is the Register of Copyrights, and th fice of the Administrator" and the "Office" refer to the Copyright Office of Library of Congress.

## § 1332 · No retroactive effect

Protection under this chapter shall not be available for any design that been made public under section 1310(b) before the effective date of this c[6]

## Chapter 13 · Notes

1. In 1998, the Vessel Hull Design Protection Act added chapter 13, entitled "Protec Original Designs," to Title 17. Pub. L. No. 105-304, 112 Stat. 2860, 2905. The Vesse sign Protection Act is Title V of the Digital Millennium Copyright Act, Pub. L. No. 105 112 Stat. 2860, 2905.

2. The Satellite Home Viewer Improvement Act of 1999 amended section 1301(b) its entirety. Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-593.

The Vessel Hull Design Protection Amendments of 2008 amended subsection 130 revising the definition of vessel hulls in subpart (2) and by providing an exception fo U.S. Department of Defense in a new subpart (3). Pub. L. No. 110-434, 122 Stat. 49 amended subsection 1301(b) by revising the definitions of useful article in subpart hull in subpart (4) and by adding a definition for deck in new subpart (7). *Id*.

3. In 1999, section 1302(5) was amended to substitute "2 years" in lieu of "1 yea No. 106-44, 113 Stat. 221, 222.

4. The Satellite Home Viewer Improvement Act of 1999 amended section 1313(c) ing at the end thereof the last sentence, which begins "Costs of the cancellation pro Pub. L. No. 106-113, 113 Stat. 1501, app. I at 1501A-594.

5. In 1999, section 1320 was amended to change the spelling in the heading of s (c) from "acknowledgement" to "acknowledgment." Pub. L. No. 106-44, 113 Stat. 2

6. The effective date of chapter 13 is October 28, 1998. See section 505 of the D lennium Copyright Act, which appears in Appendix B.

# Chapter 14

# Unauthorized Use of Pre-1972 Sound Recordings


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## § 1401 · Unauthorized use of pre-1972 sound recordings

(a) In General.—

(1) Unauthorized acts.—Anyone who, on or before the last day of the applicable transition period under paragraph (2), and without the conse the rights owner, engages in covered activity with respect to a sound re fixed before February 15, 1972, shall be subject to the remedies provid tions 502 through 505 and 1203 to the same extent as an infringer of c or a person that engages in unauthorized activity under chapter 12.

(2) Term of prohibition.—

(A) In general.—The prohibition under paragraph (1)—

(i) subject to clause (ii), shall apply to a sound recording describ that paragraph—

(I) through December 31 of the year that is 95 years after the of first publication; and

(II) for a further transition period as prescribed under subpara graph (B) of this paragraph; and

(ii) shall not apply to any sound recording after February 15, 206

(B) Transition periods.—

(i) Pre-1923 recordings.—In the case of a sound recording first published before January 1, 1923, the transition period described i paragraph (A)(i)(II) shall end on December 31 of the year that is 3 after the date of enactment of this section.

(ii) 1923–1946 recordings.—In the case of a sound recording first published during the period beginning on January 1, 1923, and end on December 31, 1946, the transition period described in subparag (A)(i)(II) shall end on the date that is 5 years after the last day of t period described in subparagraph (A)(i)(I).

(iii) 1947–1956 recordings.—In the case of a sound recording first published during the period beginning on January 1, 1947, and end on December 31, 1956, the transition period described in subparag (A)(i)(II) shall end on the date that is 15 years after the last day of t period described in subparagraph (A)(i)(I).

(iv) Post-1956 recordings.—In the case of a sound recording fixed before February 15, 1972, that is not described in clause (i), (ii), or the transition period described in subparagraph (A)(i)(II) shall end o February 15, 2067.

(3) Rule of construction.—For the purposes of this subsection, the term "anyone" includes any State, any instrumentality of a State, and a ficer or employee of a State or instrumentality of a State acting in the o capacity of the officer or employee, as applicable.

(b) Certain Authorized Transmissions and Reproductions.—A public performance by means of a digital audio transmission of a sound recor fixed before February 15, 1972, or a reproduction in an ephemeral phonor or copy of a sound recording fixed before February 15, 1972, shall, for pur of subsection (a), be considered to be authorized and made with the cons the rights owner if—

(1) the transmission or reproduction would satisfy the requirements statutory licensing under section 112(e)(1) or section 114(d)(2), or wou exempt under section 114(d)(1), as the case may be, if the sound recor fixed on or after February 15, 1972; and

(2) the transmitting entity pays the statutory royalty for the transmis or reproduction pursuant to the rates and terms adopted under section and 114(f), and complies with other obligations, in the same manner a quired by regulations adopted by the Copyright Royalty Judges under se 112(e) and 114(f) for sound recordings that are fixed on or after Februa 1972, except in the case of a transmission that would be exempt under 114(d)(1).

(c) Certain Noncommercial Uses of Sound Recordings That Are Not Being Commercially Exploited.—

(1) In general.—Noncommercial use of a sound recording fixed before February 15, 1972, that is not being commercially exploited by or under authority of the rights owner shall not violate subsection (a) if—

(A) the person engaging in the noncommercial use, in order to det mine whether the sound recording is being commercially exploited by under the authority of the rights owner, makes a good faith, reasona search for, but does not find, the sound recording—

(i) in the records of schedules filed in the Copyright Office as de scribed in subsection (f)(5)(A); and

(ii) on services offering a comprehensive set of sound recordings sale or streaming;

(B) the person engaging in the noncommercial use files a notice ide ing the sound recording and the nature of the use in the Copyright Of in accordance with the regulations issued under paragraph (3)(B); an

(C) during the 90-day period beginning on the date on which the no described in subparagraph (B) is indexed into the public records of t Copyright Office, the rights owner of the sound recording does not, i its discretion, opt out of the noncommercial use by filing notice there in the Copyright Office in accordance with the regulations issued und paragraph (5).

(2) Rules of construction.—For purposes of this subsection—

(A) merely recovering costs of production and distribution of a sou recording resulting from a use otherwise permitted under this subsec

does not itself necessarily constitute a commercial use of the sound r
ing;

(B) the fact that a person engaging in the use of a sound recording
engages in commercial activities does not itself necessarily render th
commercial; and

(C) the fact that a person files notice of a noncommercial use of a s
recording in accordance with the regulations issued under paragraph
does not itself affect any limitation on the exclusive rights of a copyri
owner described in section 107, 108, 109, 110, or 112(f) as applied to
under subsection (a) of this section pursuant to subsection (f)(1)(A) o
section.

(3) **Notice of covered activity.**—Not later than 180 days after the date
of enactment of this section, the Register of Copyrights shall issue regu
that—

(A) provide specific, reasonable steps that, if taken by a filer, are s
cient to constitute a good faith, reasonable search under paragraph (
determine whether a recording is being commercially exploited, inclu
the services that satisfy the good faith, reasonable search requireme
paragraph (1)(A) for purposes of the safe harbor described in paragra
(A); and

(B) establish the form, content, and procedures for the filing of not
under paragraph (1)(B).

(4) **Safe harbor.**—

(A) **In general.**—A person engaging in a noncommercial use of a
sound recording otherwise permitted under this subsection who estal
that the person made a good faith, reasonable search under paragrap
(A) without finding commercial exploitation of the sound recording by
under the authority of the rights owner shall not be found to be in vio
tion of subsection (a).

(B) **Steps sufficient but not necessary.**—Taking the specific, rea-
sonable steps identified by the Register of Copyrights in the regulati
issued under paragraph (3)(A) shall be sufficient, but not necessary, f
filer to satisfy the requirement to conduct a good faith, reasonable se
under paragraph (1)(A) for purposes of subparagraph (A) of this para

(5) **Opting out of covered activity.**—

(A) **In general.**—Not later than 180 days after the date of enactment
this section, the Register of Copyrights shall issue regulations establi
the form, content, and procedures for the rights owner of a sound rec
ing that is the subject of a notice under paragraph (1)(B) to, in its dis
file notice opting out of the covered activity described in the notice u
paragraph (1)(B) during the 90-day period beginning on the date on w

the notice under paragraph (1)(B) is indexed into the public records o
Copyright Office.

(B) Rule of construction.—The fact that a rights holder opts out of a noncommercial use of a sound recording by filing notice thereof the Copyright Office in accordance with the regulations issued under paragraph (A) does not itself enlarge or diminish any limitation on th exclusive rights of a copyright owner described in section 107, 108, 1 or 112(f) as applied to a claim under subsection (a) of this section pu to subsection (f)(1)(A) of this section.

(6) Civil penalties for certain acts.—

(A) Filing of notices of noncommercial use.—Any person who willfully engages in a pattern or practice of filing a notice of noncomm cial use of a sound recording as described in paragraph (1)(B) fraudu describing the use proposed, or knowing that the use proposed is not mitted under this subsection, shall be assessed a civil penalty in an a that is not less than $250, and not more than $1000, for each such n addition to any other remedies that may be available under this title on the actual use made.

(B) Filing of opt-out notices.—

(i) In general.—Any person who files an opt-out notice as d scribed in paragraph (1)(C), knowing that the person is not the righ owner or authorized to act on behalf of the rights owner of the sou recording to which the notice pertains, shall be assessed a civil pen in an amount not less than $250, and not more than $1,000, for ea such notice.

(ii) Pattern or practice.—Any person who engages in a pattern or practice of making filings as described in clause (i) shall be asse a civil penalty in an amount not less than $10,000 for each such fil

(C) Definition.—For purposes of this paragraph, the term "knowing"

(i) does not require specific intent to defraud; and

(ii) with respect to information about ownership of the sound rec ing in question, means that the person—

(I) has actual knowledge of the information;

(II) acts in deliberate ignorance of the truth or falsity of the in formation; or

(III) acts in grossly negligent disregard of the truth or falsity o the information.

(d) Payment of Royalties for Transmissions of Performances by Direct Licensing of Statutory Services.—

(1) In general.—A public performance by means of a digital audio trans mission of a sound recording fixed before February 15, 1972, shall, for p of subsection (a), be considered to be authorized and made with the co

the rights owner if the transmission is made pursuant to a license agree
voluntarily negotiated at any time between the rights owner and the e
performing the sound recording.

(2) Payment of royalties to nonprofit collective under certain license agreements.—

(A) Licenses entered into on or after date of enactment.—To the extent that a license agreement described in paragraph (1) enter on or after the date of enactment of this section extends to a public p formance by means of a digital audio transmission of a sound recordi fixed before February 15, 1972, that meets the conditions of subsecti

(i) the licensee shall, with respect to such transmission, pay to th lective designated to distribute receipts from the licensing of trans sions in accordance with section 114(f), 50 percent of the performa royalties for that transmission due under the license; and

(ii) the royalties paid under clause (i) shall be fully credited as p ments due under the license.

(B) Certain agreements entered into before enactment.—To the extent that a license agreement described in paragraph (1), ente during the period beginning on January 1 of the year in which this sec is enacted and ending on the day before the date of enactment of thi tion, or a settlement agreement with a preexisting satellite digital au radio service (as defined in section 114(j)) entered into during the pe beginning on January 1, 2015, and ending on the day before the dat enactment of this section, extends to a public performance by means digital audio transmission of a sound recording fixed before February 1972, that meets the conditions of subsection (b)—

(i) the rights owner shall, with respect to such transmission, pay collective designated to distribute receipts from the licensing of tra missions in accordance with section 114(f) an amount that is equal the difference between—

(I) 50 percent of the difference between—

(aa) the rights owner's total gross performance royalty fee r ceipts or settlement monies received for all such transmission covered under the license or settlement agreement, as applica and

(bb) the rights owner's total payments for outside legal expe es, including any payments of third-party claims, that are dire attributable to the license or settlement agreement, as applica and

(II) the amount of any royalty receipts or settlement monies u the agreement that are distributed by the rights owner to featu

and nonfeatured artists before the date of enactment of this sec
and

(ii) the royalties paid under clause (i) shall be fully credited as p
ments due under the license or settlement agreement, as applicab

(3) Distribution of royalties and settlement monies by collective.—The collective described in paragraph (2) shall, in accordance wi subparagraphs (B) through (D) of section 114(g)(2), and paragraphs (5) (6) of section 114(g), distribute the royalties or settlement monies rece under paragraph (2) under a license or settlement described in paragra which shall be the only payments to which featured and nonfeatured ar are entitled by virtue of the transmissions described in paragraph (2), e for settlement monies described in paragraph (2) that are distributed b rights owner to featured and nonfeatured artists before the date of ena of this section.

(4) Payment of royalties under license agreements entered before enactment or not otherwise described in paragraph (2).—

(A) In general.—To the extent that a license agreement described i paragraph (1) entered into before the date of enactment of this secti any other license agreement not as described in paragraph (2), exter a public performance by means of a digital audio transmission of a so recording fixed before February 15, 1972, that meets the conditions o section (b), the payments made by the licensee pursuant to the licen be made in accordance with the agreement.

(B) Additional payments not required.—To the extent that a licensee has made, or will make in the future, payments pursuant to a as described in subparagraph (A), the provisions of paragraphs (2) ar shall not require any additional payments from, or additional financia ligations on the part of, the licensee.

(C) Rule of construction.—Nothing in this subsection may be construed to prohibit the collective designated to distribute receipts from licensing of transmissions in accordance with section 114(f) from adm istering royalty payments under any license not described in paragra

(e) Preemption With Respect to Certain Past Acts.—

(1) In general.—This section preempts any claim of common law copyright or equivalent right under the laws of any State arising from a digi audio transmission or reproduction that is made before the date of ena of this section of a sound recording fixed before February 15, 1972, if—

(A) the digital audio transmission would have satisfied the requiren for statutory licensing under section 114(d)(2) or been exempt under tion 114(d)(1), or the reproduction would have satisfied the requirem of section 112(e)(1), as the case may be, if the sound recording were or after February 15, 1972; and

(B) either—

(i) except in the case of a transmission that would have been exe
under section 114(d)(1), not later than 270 days after the date of e
ment of this section, the transmitting entity pays statutory royaltie
provides notice of the use of the relevant sound recordings in the s
manner as required by regulations adopted by the Copyright Roya
Judges for sound recordings that are fixed on or after February 15,
for all the digital audio transmissions and reproductions satisfying
requirements for statutory licensing under sections 112(e)(1) and 1
(2) during the 3 years before that date of enactment; or

(ii) an agreement voluntarily negotiated between the rights own
and the entity performing the sound recording (including a litigatio
settlement agreement entered into before the date of enactment o
section) authorizes or waives liability for any such transmission or
production and the transmitting entity has paid for and reported su
digital audio transmission under that agreement.

(2) Rule of construction for common law copyright.—For pur-
poses of paragraph (1), a claim of common law copyright or equivalent
under the laws of any State includes a claim that characterizes conduct
to that paragraph as an unlawful distribution, act of record piracy, or sim
violation.

(3) Rule of construction for public performance rights.—Noth-
ing in this section may be construed to recognize or negate the existen
public performance rights in sound recordings under the laws of any Sta

(f) Limitations on Remedies.—

(1) Fair use; uses by libraries, archives, and educational insti-
tutions.—

(A) In general.—The limitations on the exclusive rights of a copyrigh
owner described in sections 107, 108, 109, 110, and 112(f) shall appl
claim under subsection (a) with respect to a sound recording fixed be
February 15, 1972.

(B) Rule of construction for section 108(h).—With respect to
the application of section 108(h) to a claim under subsection (a) with
spect to a sound recording fixed before February 15, 1972, the phras
ing the last 20 years of any term of copyright of a published work" in
section 108(h) shall be construed to mean at any time after the date
enactment of this section.

(2) Actions.—The limitations on actions described in section 507 shall
apply to a claim under subsection (a) with respect to a sound recording
before February 15, 1972.

(3) Material online.—Section 512 shall apply to a claim under subsec-
tion (a) with respect to a sound recording fixed before February 15, 197

(4)Principles of equity.—Principles of equity apply to remedies for a violation of this section to the same extent as such principles apply to r for infringement of copyright.

(5)Filing requirement for statutory damages and attorneys' fees—

(A)Filing of information on sound recordings—

(i)Filing requirement.—Except in the case of a transmitting entity that has filed contact information for that transmitting entity u subparagraph (B), in any action under this section, an award of sta damages or of attorneys' fees under section 504 or 505 may be ma respect to an unauthorized use of a sound recording under subsect (a) only if—

(I) the rights owner has filed with the Copyright Office a sched that specifies the title, artist, and rights owner of the sound reco and contains such other information, as practicable, as the Regis of Copyrights prescribes by regulation; and

(II) the use occurs after the end of the 90-day period beginnin on the date on which the information described in subclause (I) i indexed into the public records of the Copyright Office.

(ii)Regulations.—Not later than 180 days after the date of enact- ment of this section, the Register of Copyrights shall issue regulati that—

(I) establish the form, content, and procedures for the filing o schedules under clause (i);

(II) provide that a person may request that the person receive timely notification of a filing described in subclause (I); and

(III) set forth the manner in which a person may make a reque under subclause (II).

(B)Filing of contact information for transmitting entities.—

(i)Filing requirement.—Not later than 30 days after the date of enactment of this section, the Register of Copyrights shall issue re tions establishing the form, content, and procedures for the filing contact information by any entity that, as of the date of enactment this section, performs a sound recording fixed before February 15, by means of a digital audio transmission.

(ii)Time limit on filings.—The Register of Copyrights may accept filings under clause (i) only until the 180th day after the date enactment of this section.

(iii)Limitation on statutory damages and attorneys' fees.—

(I)Limitation.—An award of statutory damages or of attorneys' fees under section 504 or 505 may not be made against an entit

has filed contact information for that entity under clause (i) with
respect to an unauthorized use by that entity of a sound recordi
under subsection (a) if the use occurs before the end of the 90-d
riod beginning on the date on which the entity receives a notice
(aa) is sent by or on behalf of the rights owner of the sound
recording;
(bb) states that the entity is not legally authorized to use th
sound recording under subsection (a); and
(cc) identifies the sound recording in a schedule conforming
to the requirements prescribed by the regulations issued und
subparagraph (A)(ii).
(II) Undeliverable notices.—In any case in which a notice
under subclause (I) is sent to an entity by mail or courier service
the notice is returned to the sender because the entity either is
longer located at the address provided in the contact informatio
filed under clause (i) or has refused to accept delivery, or the no
sent by electronic mail and is undeliverable, the 90-day period u
subclause (I) shall begin on the date of the attempted delivery.
(C) Section 412.—Section 412 shall not limit an award of statutory
damages under section 504(c) or attorneys' fees under section 505
respect to a covered activity in violation of subsection (a).
(6) Applicability of other provisions.—
(A) In general.—Subject to subparagraph (B), no provision of this
title shall apply to or limit the remedies available under this section e
as otherwise provided in this section.
(B) Applicability of definitions .—Any term used in this section
that is defined in section 101 shall have the meaning given that ter
section 101.
(g) Application of Section 230 Safe Harbor.—For purposes of section
230 of the Communications Act of 1934 (47 U.S.C. 230), subsection (a) sh
considered to be a "law pertaining to intellectual property" under subsect
(2) of such section 230.
(h) Application to Rights Owners.—
(1) Transfers.—With respect to a rights owner described in subsection
(l)(2)(B)—
(A) subsections (d) and (e) of section 201 and section 204 shall ap
transfer described in subsection (l)(2)(B) to the same extent as with r
to a transfer of copyright ownership; and
(B) notwithstanding section 411, that rights owner may institute ar
tion with respect to a violation of this section to the same extent as
owner of an exclusive right under a copyright may institute an action
section 501(b).

(2) Application of other provisions.—The following provisions shall apply to a rights owner under this section to the same extent as any co owner:

(A) Section 112(e)(2).
(B) Section 112(e)(7).
(C) Section 114(e).
(D) Section 114(h).

(i) Ephemeral Recordings.—An authorized reproduction made under this section shall be subject to section 112(g) to the same extent as a reprodu a sound recording fixed on or after February 15, 1972.

(j) Rule of construction.—A rights owner of, or featured recording artist who performs on, a sound recording under this chapter shall be deemed t an interested copyright party, as defined in section 1001, to the same ext copyright owner or featured recording artist under chapter 10.

(k) Treatment of States and State Instrumentalities, Officers, and Employees.—Any State, and any instrumentality, officer, or employee desc in subsection (a)(3), shall be subject to the provisions of this section in the manner and to the same extent as any nongovernmental entity.

(l) Definitions.—In this section:

(1) Covered activity.—The term "covered activity" means any activity that the copyright owner of a sound recording would have the exclusive to do or authorize under section 106 or 602, or that would violate sectio or 1202, if the sound recording were fixed on or after February 15, 197

(2) Rights owner.—The term "rights owner" means—

(A) the person that has the exclusive right to reproduce a sound re ing under the laws of any State, as of the day before the date of enac of this section; or

(B) any person to which a right to enforce a violation of this sectio may be transferred, in whole or in part, after the date of enactment o section, under—

(i) subsections (d) and (e) of section 201; and
(ii) section 204.

## Chapter 14 · Notes

1. In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act added chapte Pub. L. No. 115-264, 132 Stat. 3676, 3728.

# Chapter 15

## Copyright Small Claims


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## § 1501 · Definitions

In this chapter—

(1) the term "claimant" means the real party in interest that commer
proceeding before the Copyright Claims Board under section 1506(e),
suant to a permissible claim of infringement brought under section 150
(1), noninfringement brought under section 1504(c)(2), or misrepresent
brought under section 1504(c)(3);

(2) the term "counterclaimant" means a respondent in a proceeding
the Copyright Claims Board that—

(A) asserts a permissible counterclaim under section1504(c)(4) aga
the claimant in the proceeding; and

(B) is the real party in interest with respect to the counterclaim des
in subparagraph (A);

(3) the term "party"—

(A) means a party; and

(B) includes the attorney of a party, as applicable; and

(4) the term "respondent" means any person against whom a procee
brought before the Copyright Claims Board under section 1506(e), purs
to a permissible claim of infringement brought under section 1504(c)(1)
infringement brought under section 1504(c)(2), or misrepresentation br
under section 1504(c)(3).

## § 1502 · Copyright Claims Board

(a) In General.—There is established in the Copyright Office the Copyrigh
Claims Board, which shall serve as an alternative forum in which parties
voluntarily seek to resolve certain copyright claims regarding any catego
copyrighted work, as provided in this chapter.

(b) Officers and Staff.—

(1) Copyright claims officers.—The Register of Copyrights shall
recommend 3 full-time Copyright Claims Officers to serve on the Copyri
Claims Board in accordance with paragraph (3)(A). The Officers shall be
pointed by the Librarian of Congress to such positions after consultation
the Register of Copyrights.

(2) Copyright claims attorneys.—The Register of Copyrights shall
hire not fewer than 2 full-time Copyright Claims Attorneys to assist in t
administration of the Copyright Claims Board.

(3) Qualifications.—

(A) Copyright claims officers.—

(i) In general.—Each Copyright Claims Officer shall be an attorney who has not fewer than 7 years of legal experience.

(ii) Experience.—Two of the Copyright Claims Officers shall—

(I) have substantial experience in the evaluation, litigation, or judication of copyright infringement claims; and

(II) between those 2 Officers, have represented or presided ov diversity of copyright interests, including those of both owners a users of copyrighted works.

(iii) Alternative dispute resolution.—The Copyright Claims Officer not described in clause (ii) shall have substantial familiarity copyright law and experience in the field of alternative dispute res tion, including the resolution of litigation matters through that met of resolution.

(B) Copyright claims attorneys.—Each Copyright Claims Attorney shall be an attorney who has not fewer than 3 years of substanti perience in copyright law.

(4) Compensation.—

(A) Copyright claims officers.—

(i) Definition.—In this subparagraph, the term "senior level employee of the Federal Government" means an employee, other tha employee in the Senior Executive Service, the position of whom is sified above GS–15 of the General Schedule.

(ii) Pay range.—Each Copyright Claims Officer shall be compensated at a rate of pay that is not less than the minimum, and not m than the maximum, rate of pay payable for senior level employees Federal Government, including locality pay, as applicable.

(B) Copyright claims attorneys.—Each Copyright Claims Attorney shall be compensated at a rate of pay that is not more than t maximum rate of pay payable for level 10 of GS–15 of the General Sc including locality pay, as applicable.

(5) Terms.—

(A) In general.—Subject to subparagraph (B), a Copyright Claims Officer shall serve for a renewable term of 6 years.

(B) Initial terms.—The terms for the first Copyright Claims Officers appointed under this chapter shall be as follows:

(i) The first such Copyright Claims Officer appointed shall be ap pointed for a term of 4 years.

(ii) The second Copyright Claims Officer appointed shall be appo ed for a term of 5 years.

(iii) The third Copyright Claims Officer appointed shall be appoin for a term of 6 years.

(6) Vacancies and incapacity.

(A)Vacancy.—

(i)In general.—If a vacancy occurs in the position of a Copyright Claims Officer, the Librarian of Congress shall, upon the recommen tion of, and in consultation with, the Register of Copyrights, act exp tiously to appoint a Copyright Claims Officer for that position.

(ii)Vacancy before expiration.—An individual appointed to fill a vacancy occurring before the expiration of the term for which th predecessor of the individual was appointed shall be appointed to s a 6-year term.

(B)Incapacity.—If a Copyright Claims Officer is temporarily unable to perform the duties of the Officer, the Librarian of Congress shall, u recommendation of, and in consultation with, the Register of Copyrig act expeditiously to appoint an interim Copyright Claims Officer to pe form such duties during the period of such incapacity.

(7)Sanction or removal.—Subject to section 1503(b), the Librarian of Congress may sanction or remove a Copyright Claims Officer.

(8)Administrative support.—The Register of Copyrights shall provide the Copyright Claims Officers and Copyright Claims Attorneys with nece administrative support, including technological facilities, to carry out th ties of the Officers and Attorneys under this chapter.

(9)Location of copyright claims board.—The offices and facilities of the Copyright Claims Officers and Copyright Claims Attorneys shall b located at the Copyright Office.

## § 1503 · Authority and duties of the Copyright Claims Board

(a)Functions.—

(1)Copyright claims officers.—Subject to the provisions of this chapter and applicable regulations, the functions of the Copyright Claims Of shall be as follows:

(A) To render determinations on the civil copyright claims, counte claims, and defenses that may be brought before the Officers under chapter.

(B) To ensure that claims, counterclaims, and defenses are properl serted and otherwise appropriate for resolution by the Copyright Clai Board.

(C) To manage the proceedings before the Officers and render ruli pertaining to the consideration of claims, counterclaims, and defense cluding with respect to scheduling, discovery, evidentiary, and other ters.

(D) To request, from participants and nonparticipants in a proceedi
the production of information and documents relevant to the resoluti
of a claim, counterclaim, or defense.

(E) To conduct hearings and conferences.

(F) To facilitate the settlement by the parties of claims and counter

(G) To—

(i) award monetary relief; and

(ii) include in the determinations of the Officers a requirement th
certain activities under section 1504(e)(2) cease or be mitigated, if
party to undertake the applicable measure has so agreed.

(H) To provide information to the public concerning the procedures
requirements of the Copyright Claims Board.

(I) To maintain records of the proceedings before the Officers, certi
official records of such proceedings as needed, and, as provided in se
1506(t), make the records in such proceedings available to the public

(J) To carry out such other duties as are set forth in this chapter.

(K) When not engaged in performing the duties of the Officers set f
in this chapter, to perform such other duties as may be assigned by
Register of Copyrights.

(2) Copyright claims attorneys.—Subject to the provisions of this chapter and applicable regulations, the functions of the Copyright Clai Attorneys shall be as follows:

(A) To provide assistance to the Copyright Claims Officers in the ad
istration of the duties of those Officers under this chapter.

(B) To provide assistance to members of the public with respect to
procedures and requirements of the Copyright Claims Board.

(C) To provide information to potential claimants contemplating bri
ing a permissible action before the Copyright Claims Board about obt
ing a subpoena under section 512(h) for the sole purpose of identifyi
potential respondent in such an action.

(D) When not engaged in performing the duties of the Attorneys s
forth in this chapter, to perform such other duties as may be assigne
the Register of Copyrights.

(b) Independence in Determinations.

(1) In general.—The Copyright Claims Board shall render the determi-nations of the Board in individual proceedings independently on the bas the records in the proceedings before it and in accordance with the pro of this title, judicial precedent, and applicable regulations of the Registe Copyrights.

(2) Consultation.—The Copyright Claims Officers and Copyright Claims Attorneys—

(A) may consult with the Register of Copyrights on general issues law; and

(B) subject to section 1506(x), may not consult with the Register o Copyrights with respect to—

(i) the facts of any particular matter pending before the Officers the Attorneys; or

(ii) the application of law to the facts described in clause (i).

(3) Performance appraisals.—Notwithstanding any other provision of law or any regulation or policy of the Library of Congress or Register of rights, any performance appraisal of a Copyright Claims Officer or Copy Claims Attorney may not consider the substantive result of any individ determination reached by the Copyright Claims Board as a basis for ap except to the extent that the result may relate to any actual or alleged of an ethical standard of conduct.

(c) Direction by Register.—Subject to subsection (b), the Copyright Claims Officers and Copyright Claims Attorneys shall, in the administratio their duties, be under the general direction of the Register of Copyrights.

(d) Inconsistent Duties Barred.—A Copyright Claims Officer or Copy-right Claims Attorney may not undertake any duty that conflicts with the o of the Officer or Attorney in connection with the Copyright Claims Board.

(e) Recusal.—A Copyright Claims Officer or Copyright Claims Attorney shall recuse himself or herself from participation in any proceeding with r to which the Copyright Claims Officer or Copyright Claims Attorney, as the may be, has reason to believe that he or she has a conflict of interest.

(f) Ex Parte Communications.—Except as may otherwise be permitted by applicable law, any party to a proceeding before the Copyright Claims shall refrain from ex parte communications with the Copyright Claims Offi and the Register of Copyrights concerning the substance of any active or proceeding before the Copyright Claims Board.

(g) Judicial Review.—Actions of the Copyright Claims Officers and Registe of Copyrights under this chapter in connection with the rendering of any d mination are subject to judicial review as provided under section 1508(c) under chapter 7 of title 5.

## § 1504 · Nature of proceedings

(a) Voluntary Participation.—Participation in a Copyright Claims Board proceeding shall be on a voluntary basis in accordance with this chapter, right of any party to instead pursue a claim, counterclaim, or defense in a court of the United States, any other court, or any other forum, and to see

trial, shall be preserved. The rights, remedies, and limitations under this s
may not be waived except in accordance with this chapter.

(b) Statute of Limitations.—

(1) In general.—A proceeding may not be maintained before the Copy-
right Claims Board unless the proceeding is commenced, in accordance
section 1506(e), before the Copyright Claims Board not later than 3 yea
the claim accrued.

(2) Tolling.—Subject to section 1507(a), a proceeding commenced be
the Copyright Claims Board shall toll the time permitted under section 5
for the commencement of an action on the same claim in a district cou
United States during the period in which the proceeding is pending.

(c) Permissible Claims, Counterclaims, and Defenses.—The Copy-
right Claims Board may render determinations with respect to the followi
claims, counterclaims, and defenses, subject to such further limitations ar
quirements, including with respect to particular classes of works, as may
forth in regulations established by the Register of Copyrights:

(1) A claim for infringement of an exclusive right in a copyrighted wo
provided under section 106 by the legal or beneficial owner of the exclu
right at the time of the infringement for which the claimant seeks dama
any, within the limitations set forth in subsection (e)(1).

(2) A claim for a declaration of noninfringement of an exclusive right
a copyrighted work provided under section 106, consistent with section
of title 28.

(3) A claim under section 512(f) for misrepresentation in connection w
a notification of claimed infringement or a counter notification seeking
replace removed or disabled material, except that any remedies relatin
a claim in a proceeding before the Copyright Claims Board shall be limit
those available under this chapter.

(4) A counterclaim that is asserted solely against the claimant in a pr
ing—

(A) pursuant to which the counterclaimant seeks damages, if any, w
the limitations set forth in subsection (e)(1); and

(B) that—

(i) arises under section 106 or section 512(f) and out of the sam
transaction or occurrence that is the subject of a claim of infringem
brought under paragraph (1), a claim of noninfringement brought u
paragraph (2), or a claim of misrepresentation brought under para
(3); or

(ii) arises under an agreement pertaining to the same transactio
occurrence that is the subject of a claim of infringement brought u
paragraph (1), if the agreement could affect the relief awarded to
claimant.

(5) A legal or equitable defense under this title or otherwise available
law, in response to a claim or counterclaim asserted under this subsect
(6) A single claim or multiple claims permitted under paragraph (1), (
(3) by 1 or more claimants against 1 or more respondents, but only if al
asserted in any 1 proceeding arise out of the same allegedly infringing
ity or continuous course of infringing activities and do not, in the aggre
result in the recovery of such claim or claims for damages that exceed
limitations under subsection (e)(1).

(d) Excluded Claims.—The following claims and counterclaims are not subject to determination by the Copyright Claims Board:

(1) A claim or counterclaim that is not a permissible claim or counter
under subsection (c).

(2) A claim or counterclaim that has been finally adjudicated by a cou
competent jurisdiction or that is pending before a court of competent ju
tion, unless that court has granted a stay to permit that claim or counte
to proceed before the Copyright Claims Board.

(3) A claim or counterclaim by or against a Federal or State governm
entity.

(4) A claim or counterclaim asserted against a person or entity resid
outside of the United States, except in a case in which the person or e
initiated the proceeding before the Copyright Claims Board and is subje
counterclaims under this chapter.

(e) Permissible Remedies.

(1) Monetary recovery.—

(A) Actual damages, profits, and statutory damages for in-
fringement.—With respect to a claim or counterclaim for infringement
of copyright, and subject to the limitation on total monetary recovery
der subparagraph (D), the Copyright Claims Board may award either
the following:

(i) Actual damages and profits determined in accordance with se
504(b), with that award taking into consideration, in appropriate ca
whether the infringing party has agreed to cease or mitigate the in
ing activity under paragraph (2).

(ii) Statutory damages, which shall be determined in accordance
section 504(c), subject to the following conditions:

(I) With respect to works timely registered under section 412,
that the works are eligible for an award of statutory damages in
cordance with that section, the statutory damages may not exc
$15,000 for each work infringed.

(II) With respect to works not timely registered under section 4
but eligible for an award of statutory damages under this sectio

statutory damages may not exceed $7,500 per work infringed, o
total of $15,000 in any 1 proceeding.

(III) The Copyright Claims Board may not make any finding tha
or consider whether, the infringement was committed willfully i
making an award of statutory damages.

(IV) The Copyright Claims Board may consider, as an addition-
al factor in awarding statutory damages, whether the infringer h
agreed to cease or mitigate the infringing activity under paragra

(B) Election of damages.—With respect to a claim or counterclaim of infringement, at any time before final determination is rendered, a notwithstanding the schedule established by the Copyright Claims Bo under section 1506(k), the claimant or counterclaimant shall elect—

(i) to recover actual damages and profits or statutory damages u subparagraph (A); or

(ii) not to recover damages.

(C) Damages for other claims.—Damages for claims and counter-claims other than infringement claims, such as those brought under s 512(f), shall be subject to the limitation under subparagraph (D).

(D) Limitation on total monetary recovery.—Notwithstanding any other provision of law, a party that pursues any 1 or more claim counterclaims in any single proceeding before the Copyright Claims B may not seek or recover in that proceeding a total monetary recovery exceeds the sum of $30,000, exclusive of any attorneys' fees and cos may be awarded under section 1506(y)(2).

(2) Agreement to cease certain activity.—In a determination of the Copyright Claims Board, the Board shall include a requirement to ce conduct if, in the proceeding relating to the determination—

(A) a party agrees—

(i) to cease activity that is found to be infringing, including remo or disabling access to, or destroying, infringing materials; or

(ii) to cease sending a takedown notice or counter notice under s tion 512 to the other party regarding the conduct at issue before t Board if that notice or counter notice was found to be a knowing m rial misrepresentation under section 512(f); and

(B) the agreement described in subparagraph (A) is reflected in the cord for the proceeding.

(3) Attorneys' fees and costs.—Notwithstanding any other provision of law, except in the case of bad faith conduct as provided in section 15 (2), the parties to proceedings before the Copyright Claims Board shall their own attorneys' fees and costs.

(f)Joint and Several Liability.—Parties to a proceeding before the Copyright Claims Board may be found jointly and severally liable if all such par and relevant claims or counterclaims arise from the same activity or activ

(g)Permissible Number of Cases.—The Register of Copyrights may establish regulations relating to the permitted number of proceedings each the same claimant under this chapter, in the interests of justice and the a tration of the Copyright Claims Board.

## § 1505 · Registration requirement

(a)Application or Certificate.—A claim or counterclaim alleging infringement of an exclusive right in a copyrighted work may not be asserte the Copyright Claims Board unless—

(1) the legal or beneficial owner of the copyright has first delivered a pleted application, a deposit, and the required fee for registration of the right to the Copyright Office; and

(2) a registration certificate has either been issued or has not been re

(b)Certificate of Registration.—Notwithstanding any other provision of law, a claimant or counterclaimant in a proceeding before the Cop Claims Board shall be eligible to recover actual damages and profits or sta damages under this chapter for infringement of a work if the requirement subsection (a) have been met, except that—

(1) the Copyright Claims Board may not render a determination in th proceeding until—

(A) a registration certificate with respect to the work has been issu the Copyright Office, submitted to the Copyright Claims Board, and m available to the other parties to the proceeding; and

(B) the other parties to the proceeding have been provided an oppo nity to address the registration certificate;

(2) if the proceeding may not proceed further because a registration cate for the work is pending, the proceeding shall be held in abeyance p submission of the certificate to the Copyright Claims Board, except that the proceeding is held in abeyance for more than 1 year, the Copyright Board may, upon providing written notice to the parties to the proceed and 30 days to the parties to respond to the notice, dismiss the proce without prejudice; and

(3) if the Copyright Claims Board receives notice that registration wit spect to the work has been refused, the proceeding shall be dismissed prejudice.

(c)Presumption.—In a case in which a registration certificate shows that registration with respect to a work was issued not later than 5 years after

of the first publication of the work, the presumption under section 410(c) apply in a proceeding before the Copyright Claims Board, in addition to re principles of law under this title.

(d) Regulations.—In order to ensure that actions before the Copyright Claims Board proceed in a timely manner, the Register of Copyrights shall lish regulations allowing the Copyright Office to make a decision, on an ex basis, to issue or deny copyright registration for an unregistered work tha issue before the Board.

## § 1506 · Conduct of proceedings

(a) In General.—

(1) Applicable law.—Proceedings of the Copyright Claims Board shall be conducted in accordance with this chapter and regulations established Register of Copyrights under this chapter, in addition to relevant princip of law under this title.

(2) Conflicting precedent.—If it appears that there may be conflicting judicial precedent on an issue of substantive copyright law that ca be reconciled, the Copyright Claims Board shall follow the law of the Fe jurisdiction in which the action could have been brought if filed in a dist court of the United States, or, if the action could have been brought in than 1 such jurisdiction, the jurisdiction that the Copyright Claims Boa determines has the most significant ties to the parties and conduct at is

(b) Record.—The Copyright Claims Board shall maintain records do menting the proceedings before the Board.

(c) Centralized Process.—Proceedings before the Copyright Claims Board shall—

(1) be conducted at the offices of the Copyright Claims Board without requirement of in-person appearances by parties or others; and

(2) take place by means of written submissions, hearings, and confer carried out through internet-based applications and other telecommun tions facilities, except that, in cases in which physical or other nontesti nial evidence material to a proceeding cannot be furnished to the Copy Claims Board through available telecommunications facilities, the Copy Claims Board may make alternative arrangements for the submission o evidence that do not prejudice any other party to the proceeding.

(d) Representation.—A party to a proceeding before the Copyright Claims Board may be, but is not required to be, represented by—

(1) an attorney; or

(2) a law student who is qualified under applicable law governing rep
tation by law students of parties in legal proceedings and who provides
representation on a pro bono basis.

(e) Commencement of Proceeding.—In order to commence a proceeding
under this chapter, a claimant shall, subject to such additional requiremer
may be prescribed in regulations established by the Register of Copyright
claim with the Copyright Claims Board, that—

(1) includes a statement of material facts in support of the claim;

(2) is certified under subsection (y)(1); and

(3) is accompanied by a filing fee in such amount as may be prescrib
regulations established by the Register of Copyrights.

(f) Review of Claims and Counterclaims.—

(1) Claims.—Upon the filing of a claim under subsection (e), the claim
shall be reviewed by a Copyright Claims Attorney to ensure that the cl
complies with this chapter and applicable regulations, subject to the fol

(A) If the claim is found to comply, the claimant shall be notified re
ing that compliance and instructed to proceed with service of the cla
under subsection (g).

(B) If the claim is found not to comply, the claimant shall be notifie
that the claim is deficient and be permitted to file an amended claim
later than 30 days after the date on which the claimant receives the
without the requirement of an additional filing fee. If the claimant file
compliant claim within that 30-day period, the claimant shall be so n
fied and be instructed to proceed with service of the claim. If the clai
refiled within that 30-day period and still fails to comply, the claiman
again be notified that the claim is deficient and shall be provided a se
opportunity to amend the claim not later than 30 days after the date
second notice, without the requirement of an additional filing fee. If t
claim is refiled again within that second 30-day period and is compli
the claimant shall be so notified and shall be instructed to proceed w
service of the claim, but if the claim still fails to comply, upon confirm
tion of such noncompliance by a Copyright Claims Officer, the proce
shall be dismissed without prejudice. The Copyright Claims Board sha
also dismiss without prejudice any proceeding in which a compliant c
is not filed within the applicable 30-day period.

(C)(i) Subject to clause (ii), for purposes of this paragraph, a
against an online service provider for infringement by reason of the s
age of or referral or linking to infringing material that may be subject
the limitations on liability set forth in subsection (b), (c), or (d) of sect
512 shall be considered noncompliant unless the claimant affirms in
statement required under subsection (e)(1) of this section that the cl
has previously notified the service provider of the claimed infringeme

accordance with subsection (b)(2)(E), (c)(3), or (d)(3) of section 512, plicable, and the service provider failed to remove or disable access t material expeditiously upon the provision of such notice.

(ii) If a claim is found to be noncompliant under clause (i), the Co right Claims Board shall provide the claimant with information con cerning the service of such a notice under the applicable provision section 512.

(2) Counterclaims.—Upon the filing and service of a counterclaim, the counterclaim shall be reviewed by a Copyright Claims Attorney to ensur the counterclaim complies with the provisions of this chapter and applic regulations. If the counterclaim is found not to comply, the counterclaim and the other parties to the proceeding shall be notified that the counte is deficient, and the counterclaimant shall be permitted to file and serve amended counterclaim not later than 30 days after the date of such not the counterclaimant files and serves a compliant counterclaim within th day period, the counterclaimant and such other parties shall be so notif the counterclaim is refiled and served within that 30-day period but still to comply, the counterclaimant and such other parties shall again be no that the counterclaim is deficient, and the counterclaimant shall be pro a second opportunity to amend the counterclaim not later than 30 days the date of the second notice. If the counterclaim is refiled and served a within that second 30-day period and is compliant, the counterclaimant such other parties shall be so notified, but if the counterclaim still fails t ply, upon confirmation of such noncompliance by a Copyright Claims Of the counterclaim, but not the proceeding, shall be dismissed without pr

(3) Dismissal for unsuitability.—The Copyright Claims Board shall dismiss a claim or counterclaim without prejudice if, upon reviewing the or counterclaim, or at any other time in the proceeding, the Copyright C Board concludes that the claim or counterclaim is unsuitable for determ tion by the Copyright Claims Board, including on account of any of the f lowing:

(A) The failure to join a necessary party.

(B) The lack of an essential witness, evidence, or expert testimony.

(C) The determination of a relevant issue of law or fact that could e ceed either the number of proceedings the Copyright Claims Board co reasonably administer or the subject matter competence of the Copy Claims Board.

(g) Service of Notice and Claims.—In order to proceed with a claim against a respondent, a claimant shall, not later than 90 days after receiv tification under subsection (f) to proceed with service, file with the Copyri Claims Board proof of service on the respondent. In order to effectuate se on a respondent, the claimant shall cause notice of the proceeding and a

the claim to be served on the respondent, either by personal service or pu
to a waiver of personal service, as prescribed in regulations established b
Register of Copyrights. Such regulations shall include the following require

(1) The notice of the proceeding shall adhere to a prescribed form an
set forth the nature of the Copyright Claims Board and proceeding, the
of the respondent to opt out, and the consequences of opting out and
opting out, including a prominent statement that, by not opting out with
60 days after receiving the notice, the respondent—

(A) loses the opportunity to have the dispute decided by a court cr
under article III of the Constitution of the United States; and

(B) waives the right to a jury trial regarding the dispute.

(2) The copy of the claim served on the respondent shall be the same
claim that was filed with the Copyright Claims Board.

(3) Personal service of a notice and claim may be effected by an indiv
who is not a party to the proceeding and is older than 18 years of age.

(4) An individual, other than a minor or incompetent individual, may b
served by—

(A) complying with State law for serving a summons in an a
brought in courts of general jurisdiction in the State where service is

(B) delivering a copy of the notice and claim to the individual perso

(C) leaving a copy of the notice and claim at the individual's dwelli
or usual place of abode with someone of suitable age and discretion w
resides there; or

(D) delivering a copy of the notice and claim to an agent designate
the respondent to receive service of process or, if not so designated,
authorized by appointment or by law to receive service of process.

(5)(A) A corporation, partnership, or unincorporated association that
subject to suit in courts of general jurisdiction under a common name s
be served by delivering a copy of the notice and claim to its service age
such service agent has not been designated, service shall be accomplis

(i) by complying with State law for serving a summons in an acti
brought in courts of general jurisdiction in the State where service
made; or

(ii) by delivering a copy of the notice and claim to an officer, a m
aging or general agent, or any other agent authorized by appointm
or by law to receive service of process in an action brought in cour
general jurisdiction in the State where service is made and, if the a
is one authorized by statute and the statute so requires, by also ma
a copy of the notice and claim to the respondent.

(B) A corporation, partnership, or unincorporated association that
subject to suit in courts of general jurisdiction under a common nam
may elect to designate a service agent to receive notice of a claim ag

before the Copyright Claims Board by complying with requirements t
the Register of Copyrights shall establish by regulation. The Registe
Copyrights shall maintain a current directory of service agents that is
able to the public for inspection, including through the internet, and m
require such corporations, partnerships, and unincorporated associat
designating such service agents to pay a fee to cover the costs of ma
ing the directory.

(6) In order to request a waiver of personal service, the claimant may
a respondent, by first class mail or by other reasonable means, that a p
ing has been commenced, such notice to be made in accordance with r
tions established by the Register of Copyrights, subject to the following

(A) Any such request shall be in writing, shall be addressed to the r
dent, and shall be accompanied by a prescribed notice of the proceed
a copy of the claim as filed with the Copyright Claims Board, a prescr
form for waiver of personal service, and a prepaid or other means of
ing the form without cost.

(B) The request shall state the date on which the request is sent, a
provide the respondent a period of 30 days, beginning on the date on
the request is sent, to return the waiver form signed by the responde
signed waiver form shall, for purposes of this subsection, constitute
ceptance and proof of service as of the date on which the waiver is si

(7)(A) A respondent's waiver of personal service shall not constitute a
of the respondent's right to opt out of the proceeding.

(B) A respondent who timely waives personal service under paragra
(6) and does not opt out of the proceeding shall be permitted a perio
30 days, in addition to the period otherwise permitted under the app
cable procedures of the Copyright Claims Board, to submit a substan
response to the claim, including any defenses and counterclaims.

(8) A minor or an incompetent individual may only be served by comp
with State law for serving a summons or like process on such an individ
in an action brought in the courts of general jurisdiction of the State wh
service is made.

(9) Service of a claim and waiver of personal service may only be effe
within the United States.

(h)Notification by Copyright Claims Board.—The Register of Copy-
rights shall establish regulations providing for a written notification to be s
or on behalf of, the Copyright Claims Board to notify the respondent of a p
ing proceeding against the respondent, as set forth in those regulations, w
shall—

(1) include information concerning the respondent's right to opt out o
proceeding, the consequences of opting out and not opting out, and a p
nent statement that, by not opting out within 60 days after the date of s

under subsection (g), the respondent loses the opportunity to have the
decided by a court created under article III of the Constitution of the Un
States and waives the right to a jury trial regarding the dispute; and

(2) be in addition to, and separate and apart from, the notice require
under subsection (g).

(i) Opt-Out Procedure.—Upon being properly served with a notice and claim, a respondent who chooses to opt out of the proceeding shall have a of 60 days, beginning on the date of service, in which to provide written n of such choice to the Copyright Claims Board, in accordance with regulati established by the Register of Copyrights. If proof of service has been file claimant and the respondent does not submit an opt-out notice to the Co right Claims Board within that 60-day period, the proceeding shall be dee an active proceeding and the respondent shall be bound by the determina the proceeding to the extent provided under section 1507(a). If the respo opts out of the proceeding during that 60-day period, the proceeding shal dismissed without prejudice, except that, in exceptional circumstances an written notice to the claimant, the Copyright Claims Board may extend tha day period in the interests of justice.

(j) Service of Other Documents.—Documents submitted or relied upon in a proceeding, other than the notice and claim, shall be served in accord with regulations established by the Register of Copyrights.

(k) Scheduling.—Upon confirmation that a proceeding has become an ac tive proceeding, the Copyright Claims Board shall issue a schedule for the conduct of the proceeding. The schedule shall not specify a time that a cl or counterclaimant is required make an election of damages that is incons with section 1504(e). A schedule issued by the Copyright Claims Board ma amended by the Copyright Claims Board in the interests of justice.

(l) Conferences.—One or more Copyright Claims Officers may hold a con ference to address case management or discovery issues in a proceeding, shall be noted upon the record of the proceeding and may be recorded or scribed.

(m) Party Submissions.—A proceeding of the Copyright Claims Board may not include any formal motion practice, except that, subject to applicable tions and procedures of the Copyright Claims Board—

(1) the parties to the proceeding may make requests to the C Claims Board to address case management and discovery matters, and responses thereto; and

(2) the Copyright Claims Board may request or permit parties to ma submissions addressing relevant questions of fact or law, or other matt cluding matters raised sua sponte by the Copyright Claims Officers, and responses thereto.

(n) Discovery.—Discovery in a proceeding shall be limited to the produc-
tion of relevant information and documents, written interrogatories, and w
requests for admission, as provided in regulations established by the Regi
Copyrights, except that—

(1) upon the request of a party, and for good cause shown, the Copyr
Claims Board may approve additional relevant discovery, on a limited b
in particular matters, and may request specific information and docume
from participants in the proceeding and voluntary submissions from nor
ticipants, consistent with the interests of justice;

(2) upon the request of a party, and for good cause shown, the Copyr
Claims Board may issue a protective order to limit the disclosure of doc
or testimony that contain confidential information; and

(3) after providing notice and an opportunity to respond, and upon go
cause shown, the Copyright Claims Board may apply an adverse infere
with respect to disputed facts against a party who has failed to timely p
discovery materials in response to a proper request for materials that c
relevant to such facts.

(o) Evidence.—The Copyright Claims Board may consider the following
types of evidence in a proceeding, and such evidence may be admitted w
application of formal rules of evidence:

(1) Documentary and other nontestimonial evidence that is relevant t
claims, counterclaims, or defenses in the proceeding.

(2) Testimonial evidence, submitted under penalty of perjury in writt
form or in accordance with subsection (p), limited to statements of the
ties and nonexpert witnesses, that is relevant to the claims, counterclai
defenses in a proceeding, except that, in exceptional cases, expert witn
mony or other types of testimony may be permitted by the Copyright C
Board for good cause shown.

(p) Hearings.—The Copyright Claims Board may conduct a hearing to re-
ceive oral presentations on issues of fact or law from parties and witnesse
proceeding, including oral testimony, subject to the following:

(1) Any such hearing shall be attended by not fewer than 2 of the Cop
Claims Officers.

(2) The hearing shall be noted upon the record of the proceeding and
ject to paragraph (3), may be recorded or transcribed as deemed neces
the Copyright Claims Board.

(3) A recording or transcript of the hearing shall be made available to
Copyright Claims Officer who is not in attendance.

(q) Voluntary Dismissal.—

(1) By claimant.—Upon the written request of a claimant that is re-
ceived before a respondent files a response to the claim in a proceedin

Copyright Claims Board shall dismiss the proceeding, or a claim or resp
dent, as requested, without prejudice.

(2) **By counterclaimant.**—Upon written request of a counterclaimant that is received before a claimant files a response to the counterclaim, Copyright Claims Board shall dismiss the counterclaim, such dismissal t without prejudice.

(3) **Class actions.**—Any party in an active proceeding before the Copy- right Claims Board who receives notice of a pending or putative class a arising out of the same transaction or occurrence, in which that party is member may request in writing dismissal of the proceeding before the Upon notice to all claimants and counterclaimants, the Copyright Claim Board shall dismiss the proceeding without prejudice.

(r) **Settlement.**—

(1) **In general.**—At any time in an active proceeding, some or all of the parties may—

(A) jointly request a conference with a Copyright Claims Officer for purpose of facilitating settlement discussions; or

(B) submit to the Copyright Claims Board an agreement providing f settlement and dismissal of some or all of the claims and counterclai the proceeding.

(2) **Additional request.**—A submission under paragraph (1)(B) may in- clude a request that the Copyright Claims Board adopt some or all of th of the parties' settlement in a final determination in the proceeding.

(s) **Factual Findings.**—Subject to subsection (n)(3), the Copyright Claims Board shall make factual findings based upon a preponderance of the evi

(t) **Determinations.**—

(1) **Nature and contents.**—A determination rendered by the Copyright Claims Board in a proceeding shall—

(A) be reached by a majority of the Copyright Claims Board;

(B) be in writing, and include an explanation of the factual and leg basis of the determination;

(C) set forth any terms by which a respondent or counterclaim resp dent has agreed to cease infringing activity under section 1504(e)(2)

(D) to the extent requested under subsection (r)(2), set forth the te of any settlement agreed to under subsection (r)(1); and

(E) include a clear statement of all damages and other relief awar including under subparagraphs (C) and (D).

(2) **Dissent.**—A Copyright Claims Officer who dissents from a decision contained in a determination under paragraph (1) may append a staten setting forth the grounds for that dissent.

(3) **Publication.**—Each final determination of the Copyright Claims Board shall be made available on a publicly accessible website. The Reg

shall establish regulations with respect to the publication of other reco
and information relating to such determinations, including the redaction
records to protect confidential information that is the subject of a prote
order under subsection (n)(2).

(4)Freedom of information act.—All information relating to pro-
ceedings of the Copyright Claims Board under this chapter is exempt fr
disclosure to the public under section 552(b)(3) of title 5, except for det
tions, records, and information published under paragraph (3).

(u)Respondent's Default.—If a proceeding has been deemed an active proceeding but the respondent has failed to appear or has ceased particip in the proceeding, as demonstrated by the respondent's failure, without ju able cause, to meet 1 or more deadlines or requirements set forth in the s ule adopted by the Copyright Claims Board under subsection (k), the Copy Claims Board may enter a default determination, including the dismissal o counterclaim asserted by the respondent, as follows and in accordance wi other requirements as the Register of Copyrights may establish by regulat

(1) The Copyright Claims Board shall require the claimant to submit r evant evidence and other information in support of the claimant's claim any asserted damages and, upon review of such evidence and any oth quested submissions from the claimant, shall determine whether the m als so submitted are sufficient to support a finding in favor of the claima under applicable law and, if so, the appropriate relief and damages, if a be awarded.

(2) If the Copyright Claims Board makes an affirmative determinatio under paragraph (1), the Copyright Claims Board shall prepare a propo default determination, and shall provide written notice to the responden all addresses, including email addresses, reflected in the records of the ceeding before the Copyright Claims Board, of the pendency of a defaul termination by the Copyright Claims Board and of the legal significance such determination. Such notice shall be accompanied by the proposed determination and shall provide that the respondent has a period of 30 beginning on the date of the notice, to submit any evidence or other inf tion in opposition to the proposed default determination.

(3) If the respondent responds to the notice provided under paragrap within the 30-day period provided in such paragraph, the Copyright Cla Board shall consider the respondent's submissions and, after allowing t parties to address such submissions, maintain, or amend its proposed d nation as appropriate, and the resulting determination shall not be a de determination.

(4) If the respondent fails to respond to the notice provided under pa graph (2), the Copyright Claims Board shall proceed to issue the default termination as a final determination. Thereafter, the respondent may o

challenge such determination to the extent permitted under section 15
except that, before any additional proceedings are initiated under secti
the Copyright Claims Board may, in the interests of justice, vacate the
determination.

(v) Claimant's Failure to Proceed.—

(1) Failure to complete service.—If a claimant fails to complete service on a respondent within the 90-day period required under subsectio the Copyright Claims Board shall dismiss that respondent from the proc ing without prejudice. If a claimant fails to complete service on all respo within that 90-day period, the Copyright Claims Board shall dismiss the ceeding without prejudice.

(2) Failure to prosecute.—If a claimant fails to proceed in an active proceeding, as demonstrated by the claimant's failure, without justifiab to meet 1 or more deadlines or requirements set forth in the schedule a by the Copyright Claims Board under subsection (k), the Copyright Clai Board may, upon providing written notice to the claimant and a period days, beginning on the date of the notice, to respond to the notice, and considering any such response, issue a determination dismissing the cl claims, which shall include an award of attorneys' fees and costs, if ap priate, under subsection (y)(2). Thereafter, the claimant may only chall such determination to the extent permitted under section 1508(c), exce before any additional proceedings are initiated under section 1508, the right Claims Board may, in the interests of justice, vacate the determina of dismissal.

(w) Request for Reconsideration.—A party may, not later than 30 days after the date on which the Copyright Claims Board issues a final determi in a proceeding under this chapter, submit a written request for reconside of, or an amendment to, such determination if the party identifies a clear of law or fact material to the outcome, or a technical mistake. After provi other parties an opportunity to address such request, the Copyright Claim shall either deny the request or issue an amended final determination.

(x) Review by Register.—If the Copyright Claims Board denies a party a request for reconsideration of a final determination under subsection (w), party may, not later than 30 days after the date of such denial, request re the final determination by the Register of Copyrights in accordance with r tions established by the Register. Such request shall be accompanied by sonable filing fee, as provided in such regulations. The review by the Reg shall be limited to consideration of whether the Copyright Claims Board a its discretion in denying reconsideration of the determination. After provi the other parties an opportunity to address the request, the Register shall deny the request for review, or remand the proceeding to the Copyright C Board for reconsideration of issues specified in the remand and for issuan

an amended final determination. Such amended final determination shall be subject to further consideration or review, other than under section 15

(y) Conduct of Parties and Attorneys.—

(1) Certification.—The Register of Copyrights shall establish regulation requiring certification of the accuracy and truthfulness of statements m participants in proceedings before the Copyright Claims Board.

(2) Bad faith conduct.—Notwithstanding any other provision of law, in any proceeding in which a determination is rendered and it is establi that a party pursued a claim, counterclaim, or defense for a harassing o improper purpose, or without a reasonable basis in law or fact, then, un inconsistent with the interests of justice, the Copyright Claims Board sh such determination award reasonable costs and attorneys' fees to any a affected party of in an amount of not more than $5,000, except that—

(A) if an adversely affected party appeared pro se in the proceedin award to that party shall be for costs only, in an amount of not more $2,500; and

(B) in extraordinary circumstances, such as where a party has dem strated a pattern or practice of bad faith conduct as described in this graph, the Copyright Claims Board may, in the interests of justice, aw costs and attorneys' fees in excess of the limitations under this parag

(3) Additional penalty.—If the Board finds that on more than 1 oc- casion within a 12-month period a party pursued a claim, counterclaim, defense before the Copyright Claims Board for a harassing or other imp purpose, or without a reasonable basis in law or fact, that party shall be from initiating a claim before the Copyright Claims Board under this cha for a period of 12 months beginning on the date on which the Board ma such a finding. Any proceeding commenced by that party that is still p ing before the Board when such a finding is made shall be dismissed wi prejudice, except that if a proceeding has been deemed active under su (i), the proceeding shall be dismissed under this paragraph only if the re dent provides written consent thereto.

(z) Regulations for Smaller Claims.—The Register of Copyrights shall establish regulations to provide for the consideration and determination, b fewer than 1 Copyright Claims Officer, of any claim under this chapter in w total damages sought do not exceed $5,000 (exclusive of attorneys' fees A determination issued under this subsection shall have the same effect a termination issued by the entire Copyright Claims Board.

(aa) Opt-Out for Libraries and Archives.—

(1) In general.—The Register of Copyrights shall establish regulations allowing for a library or archives that does not wish to participate in pr ceedings before the Copyright Claims Board to preemptively opt out of proceedings.

(2) Procedures.—The regulations established under paragraph (1) shal
(A) set forth procedures for preemptively opting out of proceedings
fore the Copyright Claims Board; and
(B) require that the Copyright Office compile and maintain a public
available list of the libraries and archives that have successfully opte
proceedings in accordance with the procedures described in subpara
(A).
(3) No fee or renewal required.—The Register of Copyrights may not—
(A) charge a library or archives a fee to preemptively opt out of pro
ings under this subsection; or
(B) require a library or archives to renew a decision to preemptivel
out of proceedings under this subsection.
(4) Definitions.—For purposes of this subsection, the terms "library" and "archives" mean any library or archives, respectively, that qualifies limitations on exclusive rights under section 108.

## § 1507 · Effect of proceeding

(a) Determination.—Subject to the reconsideration and review processes provided under subsections (w) and (x) of section 1506 and section 1508( issuance of a final determination by the Copyright Claims Board in a proce ing, including a default determination or determination based on a failure prosecute, shall, solely with respect to the parties to such determination, relitigation before any court or tribunal, or before the Copyright Claims Bo the claims and counterclaims asserted and finally determined by the Boar may be relied upon for such purpose in a future action or proceeding arisi the same specific activity or activities, subject to the following:
(1) A determination of the Copyright Claims Board shall not preclude gation or relitigation as between the same or different parties before ar or tribunal, or the Copyright Claims Board, of the same or similar issues fact or law in connection with claims or counterclaims not asserted or finally determined by the Copyright Claims Board.
(2) A determination of ownership of a copyrighted work for purposes resolving a matter before the Copyright Claims Board may not be relied and shall not have any preclusive effect, in any other action or proceed before any court or tribunal, including the Copyright Claims Board.
(3) Except to the extent permitted under this subsection and section any determination of the Copyright Claims Board may not be cited or re upon as legal precedent in any other action or proceeding before any c tribunal, including the Copyright Claims Board.

(b) Class Actions Not Affected.—

(1) In general.—A proceeding before the Copyright Claims Board shall not have any effect on a class action proceeding in a district court of the United States, and section 1509(a) shall not apply to a class action proceeding in district court of the United States.

(2) Notice of class action.—Any party to an active proceeding before the Copyright Claims Board who receives notice of a pending class action arising out of the same transaction or occurrence as the proceeding before the Copyright Claims Board, in which the party is a class member shall either—

(A) opt out of the class action, in accordance with regulations established by the Register of Copyrights; or

(B) seek dismissal under section 1506(q)(3) of the proceeding before the Copyright Claims Board.

(c) Other Materials in Proceeding.—Except as permitted under this section and section 1508, a submission or statement of a party or witness in connection with a proceeding before the Copyright Claims Board, including a proceeding that is dismissed, may not be cited or relied upon in, or serve as the basis of, any action or proceeding concerning rights or limitations on rights under this title before any court or tribunal, including the Copyright Claims Board.

(d) Applicability of Section 512(g)(2)(C).—A claim or counterclaim before the Copyright Claims Board that is brought under subsection (c)(1) or (c)(4) of section 1504, or brought under subsection (c)(6) of section 1504 and that relates to a claim under subsection (c)(1) or (c)(4) of such section, qualifies as an action seeking an order to restrain a subscriber from engaging in infringing activity under section 512(g)(2)(C) if—

(1) notice of the commencement of the Copyright Claims Board proceeding is provided by the claimant to the service provider's designated agent before the service provider replaces the material following receipt of a counter-notification under section 512(g); and

(2) the claim brought alleges infringement of the material identified in the notification of claimed infringement under section 512(c)(1)(C).

(e) Failure to Assert Counterclaim.—The failure or inability to assert a counterclaim in a proceeding before the Copyright Claims Board shall not preclude the assertion of that counterclaim in a subsequent court action or proceeding before the Copyright Claims Board.

(f) Opt-Out or Dismissal of Party.—If a party has timely opted out of a proceeding under section 1506(i) or is dismissed from a proceeding before the Copyright Claims Board issues a final determination in the proceeding, the determination shall not be binding upon and shall have no preclusive effect with respect to that party.

## § 1508 · Review and confirmation by district court

(a)In General.—In any proceeding in which a party has failed to pay dam ages, or has failed otherwise to comply with the relief, awarded in a final d mination of the Copyright Claims Board, including a default determination determination based on a failure to prosecute, the aggrieved party may, n than 1 year after the date on which the final determination is issued, any sideration by the Copyright Claims Board or review by the Register of Cop is resolved, or an amended final determination is issued, whichever occur apply to the United States District Court for the District of Columbia or any appropriate district court of the United States for an order confirming the awarded in the final determination and reducing such award to judgment. court shall grant such order and direct entry of judgment unless the deter tion is or has been vacated, modified, or corrected under subsection (c). If United States District Court for the District of Columbia or other district co of the United States, as the case may be, issues an order confirming the awarded by the Copyright Claims Board, the court shall impose on the par failed to pay damages or otherwise comply with the relief, the reasonable required to secure such order, including attorneys' fees, that were incurre aggrieved party.

(b)Filing Procedures.—

(1)Application to confirm determination.—Notice of the applica- tion under subsection (a) for confirmation of a determination of the Cop right Claims Board and entry of judgment shall be provided to all partie the proceeding before the Copyright Claims Board that resulted in the d mination, in accordance with the procedures applicable to service of a n in the district court of the United States where the application is made.

(2)Contents of application.—The application under subsection (a) shall include the following:

(A) A certified copy of the final or amended final determination of t Copyright Claims Board, as reflected in the records of the Copyright C Board, following any process of reconsideration or review by the Regi Copyrights, to be confirmed and rendered to judgment.

(B) A declaration by the applicant, under penalty of perjury—

(i) that the copy is a true and correct copy of such determination

(ii) stating the date the determination was issued;

(iii) stating the basis for the challenge under subsection (c)(1); a

(iv) stating whether the applicant is aware of any other proceedi before the court concerning the same determination of the Copyrig Claims Board.

(c)Challenges to the Determination.—

(1) Bases for challenge.—Not later than 90 days after the date on which the Copyright Claims Board issues a final or amended final determinatio a proceeding, or not later than 90 days after the date on which the Reg Copyrights completes any process of reconsideration or review of the d nation, whichever occurs later, a party may seek an order from a distric of the United States vacating, modifying, or correcting the determinatio the Copyright Claims Board in the following cases:

(A) If the determination was issued as a result of fraud, corruption, representation, or other misconduct.

(B) If the Copyright Claims Board exceeded its authority or failed t render a final determination concerning the subject matter at issue.

(C) In the case of a default determination or determination based o failure to prosecute, if it is established that the default or failure was excusable neglect.

(2) Procedure to challenge.—

(A) Notice of application.—Notice of the application to challenge a determination of the Copyright Claims Board shall be provided to all p ties to the proceeding before the Copyright Claims Board, in accordan with the procedures applicable to service of a motion in the court wh the application is made.

(B) Staying of proceedings.—For purposes of an application under this subsection, any judge who is authorized to issue an order to stay proceedings in another action brought in the same court may issue a to be served with the notice of application, staying proceedings to en the award while the challenge is pending.

## § 1509 · Relationship to other district court actions

(a) Stay of District Court Proceedings.—Subject to section 1507(b), a district court of the United States shall issue a stay of proceedings or such relief as the court determines appropriate with respect to any claim broug fore the court that is already the subject of a pending or active proceedin the Copyright Claims Board.

(b) Alternative Dispute Resolution Process.—A proceeding before the Copyright Claims Board under this chapter shall qualify as an alternative d resolution process under section 651 of title 28 for purposes of referral of cases by district courts of the United States upon the consent of the partie

## § 1510 · Implementation by Copyright Office

(a) Regulations.—

(1) Implementation generally.—The Register of Copyrights shall establish regulations to carry out this chapter. Such regulations shall inclu fees prescribed under subsections (e) and (x) of section 1506. The auth issue such fees shall not limit the authority of the Register of Copyright establish fees for services under section 708. All fees received by the C Office in connection with the activities under this chapter shall be depos by the Register of Copyrights and credited to the appropriations for nec expenses of the Office in accordance with section 708(d). In establishin lations under this subsection, the Register of Copyrights shall provide fo efficient administration of the Copyright Claims Board, and for the abilit the Copyright Claims Board to timely complete proceedings instituted u this chapter, including by implementing mechanisms to prevent harassi improper use of the Copyright Claims Board by any party.

(2) Limits on monetary relief.—

(A) In general.—Subject to subparagraph (B), not earlier than 3 year after the date on which Copyright Claims Board issues the first determ nation of the Copyright Claims Board, the Register of Copyrights may order to further the goals of the Copyright Claims Board, conduct a ru making to adjust the limits on monetary recovery or attorneys' fees costs that may be awarded under this chapter.

(B) Effective date of adjustment.—Any rule under subparagraph (A) that makes an adjustment shall take effect at the end of the 120 period beginning on the date on which the Register of Copyrights sub the rule to Congress and only if Congress does not, during that 120- period, enact a law that provides in substance that Congress does no prove the rule.

(b) Necessary Facilities.—Subject to applicable law, the Register of Copyrights may retain outside vendors to establish internet-based, teleconfere and other facilities required to operate the Copyright Claims Board.

(c) Fees.—Any filing fees, including the fee to commence a proceeding u section 1506(e), shall be prescribed in regulations established by the Reg Copyrights. The sum total of such filing fees shall be in an amount of not l than $100, may not exceed the cost of filing an action in a district court o United States, and shall be fixed in amounts that further the goals of the C right Claims Board.

### § 1511 · Funding

There are authorized to be appropriated such sums as may be necess
pay the costs incurred by the Copyright Office under this chapter that a
covered by fees collected for services rendered under this chapter, incl
the costs of establishing and maintaining the Copyright Claims Board a
facilities.

## Chapter 15 · Notes

1. The Copyright Alternative in Small-Claims Enforcement Act of 2020, Division Q, T
Subtitle A of the Consolidated Appropriations Act, 2021, added chapter 15. Pub. L. N
260, 134 Stat. 1182, 2176–2199.

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# Appendix A

## The Copyright Act of 1976

### Title 17—General Revision of Copyright Law

* * * * * * *

### Transitional and Supplementary Provisions

Sec. 102. This Act becomes effective on January 1, 1978, except as otherw
expressly provided by this Act, including provisions of the first section of t
The provisions of sections 118, 304(b), and chapter 8 of title 17, as amend
first section of this Act, take effect upon enactment of this Act.

Sec. 103. This Act does not provide copyright protection for any work that
goes into the public domain before January 1, 1978. The exclusive rights
provided by section 106 of title 17 as amended by the first section of this
reproduce a work in phonorecords and to distribute phonorecords of the w
do not extend to any nondramatic musical work copyrighted before July 1

Sec. 104. All proclamations issued by the President under section 1(e) or
of title 17 as it existed on December 31, 1977, or under previous copyrigh
utes of the United States, shall continue in force until terminated, suspend
revised by the President.

Sec. 105. (a)(1) Section 505 of title 44 is amended to read as follows:

"**§ 505. Sale of duplicate plates**

"The Public Printer shall sell, under regulations of the Joint Committe
on Printing to persons who may apply, additional or duplicate stereoty
or electrotype plates from which a Government publication is printed, a
price not to exceed the cost of composition, the metal, and making to
Government, plus 10 per centum, and the full amount of the price shall
paid when the order is filed.".

(2) The item relating to section 505 in the sectional analysis at the begi
of chapter 5 of title 44, is amended to read as follows:

"505. Sale of duplicate plates.".

(b) Section 2113 of title 44 is amended to read as follows:

**[To assist the reader, section 2113 of title 44, now designated
appears in Appendix P, *infra*, as currently amended.]**

(c) In section 1498(b) of title 28, the phrase "section 101(b) of title 17" is amended to read "section 504(c) of title 17".

(d) Section 543(a)(4) of the Internal Revenue Code of 1954, as amende amended by striking out "(other than by reason of section 2 or 6 thereof)"

(e) Section 3202(a) of title 39 is amended by striking out clause (5). Sec 3206 of title 39 is amended by deleting the words "subsections (b) and (c) inserting "subsection (b)" in subsection (a), and by deleting subsection (c) 3206(d) is renumbered (c).

(f) Subsection (a) of section 6 of the Standard Reference Data Act (15 U.S.C. 290e) is amended by deleting the phrase "section 8" and inserting in lieu the phrase "section 3105".

(g) Section 131 of title 2 is amended by deleting the phrase "deposit to copyright," and inserting in lieu thereof the phrase "acquisition of materia the copyright law,".

Sec. 106. In any case where, before January 1, 1978, a person has lawfull parts of instruments serving to reproduce mechanically a copyrighted wor der the compulsory license provisions of section 1(e) of title 17 as it existe December 31, 1977, such person may continue to make and distribute su embodying the same mechanical reproduction without obtaining a new c pulsory license under the terms of section 115 of title 17 as amended by t section of this Act. However, such parts made on or after January 1, 1978, tute phonorecords and are otherwise subject to the provisions of said sect

Sec. 107. In the case of any work in which an ad interim copyright is subs ing or is capable of being secured on December 31, 1977, under section 2 17 as it existed on that date, copyright protection is hereby extended to e for the term or terms provided by section 304 of title 17 as amended by t section of this Act.

Sec. 108. The notice provisions of sections 401 through 403 of title 17 a amended by the first section of this Act apply to all copies or phonorecord licly distributed on or after January 1, 1978. However, in the case of a wor lished before January 1, 1978, compliance with the notice provisions of ti either as it existed on December 31, 1977, or as amended by the first sec Act, is adequate with respect to copies publicly distributed after Decembe

Sec. 109. The registration of claims to copyright for which the required de posit, application, and fee were received in the Copyright Office before Jan 1, 1978, and the recordation of assignments of copyright or other instrum received in the Copyright Office before January 1, 1978, shall be made in dance with title 17 as it existed on December 31, 1977.

Sec. 110. The demand and penalty provisions of section 14 of title 17 as existed on December 31, 1977, apply to any work in which copyright has secured by publication with notice of copyright on or before that date, but deposit and registration made after that date in response to a demand un section shall be made in accordance with the provisions of title 17 as ame the first section of this Act.

Sec. 111. Section 2318 of title 18 of the United States Code is amended to as follows:

**[To assist the reader, section 2318 of title 18, as currently ame with related criminal provisions, appears in Appendix N, *infra*.]**

Sec. 112. All causes of action that arose under title 17 before January 1, 1 shall be governed by title 17 as it existed when the cause of action arose.

Sec. 113. (a) The Librarian of Congress (hereinafter referred to as the "Lib ian") shall establish and maintain in the Library of Congress a library to be as the American Television and Radio Archives (hereinafter referred to as "Archives"). The purpose of the Archives shall be to preserve a permanent of the television and radio programs which are the heritage of the people United States and to provide access to such programs to historians and sc without encouraging or causing copyright infringement.

(1) The Librarian, after consultation with interested organization individuals, shall determine and place in the Archives such copies and p norecords of television and radio programs transmitted to the public in United States and in other countries which are of present or potential pu or cultural interest, historical significance, cognitive value, or otherwise of preservation, including copies and phonorecords of published and un lished transmission programs—

(A) acquired in accordance with sections 407 and 408 of title 17 a amended by the first section of this Act; and

(B) transferred from the existing collections of the Library of Congr and

(C) given to or exchanged with the Archives by other libraries, arch organizations, and individuals; and

(D) purchased from the owner thereof.

(2) The Librarian shall maintain and publish appropriate catalogs an indexes of the collections of the Archives, and shall make such collectio available for study and research under the conditions prescribed under section.

(b) Notwithstanding the provisions of section 106 of title 17 as amended first section of this Act, the Librarian is authorized with respect to a transm program which consists of a regularly scheduled newscast or on-the-spot

of news events and, under standards and conditions that the Librari prescribe by regulation—

(1) to reproduce a fixation of such a program, in the same or another gible form, for the purposes of preservation or security or for distributi under the conditions of clause (3) of this subsection; and

(2) to compile, without abridgment or any other editing, portions of s fixations according to subject matter, and to reproduce such compilatio the purpose of clause (1) of this subsection; and

(3) to distribute a reproduction made under clause (1) or (2) of this su section—

(A) by loan to a person engaged in research; and

(B) for deposit in a library or archives which meets the requirement section 108(a) of title 17 as amended by the first section of this Act, in either case for use only in research and not for further reproduction performance.

(c) The Librarian or any employee of the Library who is acting under the thority of this section shall not be liable in any action for copyright infringe committed by any other person unless the Librarian or such employee kn participated in the act of infringement committed by such person. Nothing section shall be construed to excuse or limit liability under title 17 as ame by the first section of this Act for any act not authorized by that title or thi tion, or for any act performed by a person not authorized to act under tha or this section.

(d) This section may be cited as the "American Television and Radio Arch

Sec. 114. There are hereby authorized to be appropriated such funds as m be necessary to carry out the purposes of this Act.

Sec. 115. If any provision of title 17, as amended by the first section of th Act, is declared unconstitutional, the validity of the remainder of this title affected.

## Appendix A · Notes

1. This appendix contains the Transitional and Supplementary Provisions of the Co Act of 1976, Pub. L. No. 94-533, 90 Stat. 2541, that do not amend Title 17 of the *U States Code*.

2. The Copyright Act of 1976 was enacted on October 19, 1976.

3. The Intellectual Property and High Technology Technical Amendments Act of 2 amended section 105(f) by substituting "section 6 of the Standard Reference Data A U.S.C.290e)" for "section 290(e) of title 15." Pub. L. No. 107-273, 116 Stat. 1758, 19

# Appendix B

## The Digital Millennium Copyright Act of 1998

### Section 1 · Short Title.

This Act may be cited as the “Digital Millennium Copyright Act”.

### Title I WIPO Treaties Implementation

#### *Sec. 101 · Short Title.*

This title may be cited as the ‘‘WIPO Copyright and Performances and Phonograms Treaties Implementation Act of 1998’’.

* * * * * * *

#### *Sec. 105 · Effective Date.*

(a) In General.—Except as otherwise provided in this title, this title and the amendments made by this title shall take effect on the date of the enactment of this Act.

(b) Amendments Relating to Certain International Agreements.—

(1) The following shall take effect upon the entry into force of the WIPO Copyright Treaty with respect to the United States:

(A) Paragraph (5) of the definition of ‘‘international agreement’’ contained in section 101 of title 17, United States Code, as amended by section 102(a)(4) of this Act.

(B) The amendment made by section 102(a)(6) of this Act.

(C) Subparagraph (C) of section 104(1) of title 17, United States Code, as amended by section 102(c)(1) of this Act.

(D) Subparagraph (C) of section 104(3) of title 17, United States Code, as amended by section 102(c)(2) of this Act.

(2) The following shall take effect upon the entry into force of the WIPO Performances and Phonograms Treaty with respect to the United States:

(A) Paragraph (6) of the definition of ‘‘international agreement’’ contained in section 101 of title 17, United States Code, as amended by section 102(a)(4) of this Act.

(B) The amendment made by section 102(a)(7) of this Act.

(C) The amendment made by section 102(b)(2) of this Act.

(D) Subparagraph (D) of section 104(1) of title 17, United States Code, as amended by section 102(c)(1) of this Act.

(E) Subparagraph (D) of section 1003(c) of title 17, United States Code, as amended by section 102(c)(2) of this Act.

(F) The amendments made by section 102(c)(3) of this Act.

* * * * * * *

## Title II—Online Copyright Infringement Liability Limitation

### *Sec. 201 · Short Title.*

This title may be cited as the ''Online Copyright Infringement Liability Limitation Act''.

* * * * * * *

### *Sec. 203 · Effective Date.*

This title and the amendments made by this title shall take effect on the date of the enactment of this Act.

* * * * * * *

## Title IV—Miscellaneous Provisions

### *Sec. 401 · Provisions Relating to the Commissioner of Patents and Trademarks and the Register of Copyrights*

(a) Compensation.—(1) Section 3(d) of title 35, United States Code, is amended by striking ''prescribed by law for Assistant Secretaries of Commerce'' and inserting ''in effect for level III of the Executive Schedule under section 5314 of title 5, United States Code''.

* * * * * * *

(3) Section 5314 of title 5, United States Code, is amended by adding at the end the following:

''Assistant Secretary of Commerce and Commissioner of Patents and Trademarks.

''Register of Copyrights.''.

* * * * * * *

### *Sec. 405 · Scope of Exclusive Rights in Sound Recordings; Ephemeral Recordings.*

(a) Scope of Exclusive Rights in Sound Recordings.

* * * * * * *

(5) The amendment made by paragraph (2)(B)(i)(III) of this subsecti
shall be deemed to have been enacted as part of the Digital Performan
in Sound Recordings Act of 1995, and the publication of notice of proce
under section 114(f)(1) of title 17, United States Code, as in effect upon
effective date of that Act, for the determination of royalty payments sh
deemed to have been made for the period beginning on the effective d
that Act and ending on December 1, 2001.

(6) The amendments made by this subsection do not annul, limit, or o
erwise impair the rights that are preserved by section 114 of title 17, U
States Code, including the rights preserved by subsections (c), (d)(4), a
of such section.

* * * * * * *

(c)Scope of Section 112(a) of Title 17 Not Affected.

Nothing in this section or the amendments made by this section shall af
the scope of section 112(a) of title 17, United States Code, or the entitlem
any person to an exemption thereunder.

* * * * * * *

***Sec. 406 · Assumption of Contractual Obligations Related to Tra
Rights in Motion Pictures.***

(a)In General.—PartVI of title 28, United States Code, is amended by add
ing at the end the following new chapter:

**''Chapter 180—Assumption 0f Certain Contractual Obligations**

"Sec. 4001. Assumption of contractual obligations related to transfers of
in motion pictures.

**''§4001. Assumption of contractual obligations related to transf
in motion pictures**

''(a)Assumption of Obligations.—(1) In the case of a transfer of copy-
right ownership under United States law in a motion picture (as the terms
fer of copyright ownership' and 'motion picture' are defined in section 10
title 17) that is produced subject to 1 or more collective bargaining agree
negotiated under the laws of the United States, if the transfer is executed
after the effective date of this chapter and is not limited to public perform
rights, the transfer instrument shall be deemed to incorporate the assump
agreements applicable to the copyright ownership being transferred that
required by the applicable collective bargaining agreement, and the trans
shall be subject to the obligations under each such assumption agreemen

make residual payments and provide related notices, accruing after the e
date of the transfer and applicable to the exploitation of the rights transfe
and any remedies under each such assumption agreement for breach of t
obligations, as those obligations and remedies are set forth in the applica
collective bargaining agreement, if—

''(A) the transferee knows or has reason to know at the time of the
fer that such collective bargaining agreement was or will be applicab
the motion picture; or

''(B) in the event of a court order confirming an arbitration award a
the transferor under the collective bargaining agreement, the transfe
not have the financial ability to satisfy the award within 90 days after
order is issued.

''(2) For purposes of paragraph (1)(A), 'knows or has reason to know'
any of the following:

''(A) Actual knowledge that the collective bargaining agreement wa
will be applicable to the motion picture.

''(B)(i) Constructive knowledge that the collective bargaining agree
was or will be applicable to the motion picture, arising from recordati
a document pertaining to copyright in the motion picture under sectio
205 of title 17 or from publication, at a site available to the public onl
is operated by the relevant union, of information that identifies the m
picture as subject to a collective bargaining agreement with that unio
the site permits commercially reasonable verification of the date on w
the information was available for access.

''(ii) Clause (i) applies only if the transfer referred to in subsectio
(a)(1) occurs—

''(I) after the motion picture is completed, or

''(II) before the motion picture is completed and—

''(aa) within 18 months before the filing of an application for co
right registration for the motion picture under section 408 of title
17, or

''(bb) if no such application is filed, within 18 months before th
first publication of the motion picture in the United States.

''(C) Awareness of other facts and circumstances pertaining to a pa
lar transfer from which it is apparent that the collective bargaining ag
ment was or will be applicable to the motion picture.

''(b) SCOPE OF EXCLUSION OF TRANSFERS OF PUBLIC PERFORMANCE RIGHTS.—
For purposes of this section, the exclusion under subsection (a) of transfer
copyright ownership in a motion picture that are limited to public perform
rights includes transfers to a terrestrial broadcast station, cable system, o
grammer to the extent that the station, system, or programmer is functio
an exhibitor of the motion picture, either by exhibiting the motion picture

own network, system, service, or station, or by initiating the transmission
exhibition that is carried on another network, system, service, or station. W
terrestrial broadcast station, cable system, or programmer, or other trans
also functioning otherwise as a distributor or as a producer of the motion
the public performance exclusion does not affect any obligations imposed
transferee to the extent that it is engaging in such functions.

''(c) Exclusion for Grants of Security Interests.—Subsection (a) shall not apply to—

''(1) a transfer of copyright ownership consisting solely of a mortgage pothecation, or other security interest; or

''(2) a subsequent transfer of the copyright ownership secured by the rity interest described in paragraph (1) by or under the authority of the party, including a transfer through the exercise of the secured party's r remedies as a secured party, or by a subsequent transferee.

The exclusion under this subsection shall not affect any rights or remedies law or contract.

''(d) Deferral Pending Resolution of Bona Fide Dispute.—A transferee on which obligations are imposed under subsection (a) by virtue of p graph (1) of that subsection may elect to defer performance of such oblig that are subject to a bona fide dispute between a union and a prior trans until that dispute is resolved, except that such deferral shall not stay accr union claims due under an applicable collective bargaining agreement.

''(e) Scope of Obligations Determined by Private Agreement.—Noth ing in this section shall expand or diminish the rights, obligations, or reme any person under the collective bargaining agreements or assumption ag referred to in this section.

''(f) Failure to Notify.—If the transferor under subsection (a) fails to notify the transferee under subsection (a) of applicable collective bargaining obl before the execution of the transfer instrument, and subsection (a) is mad plicable to the transferee solely by virtue of subsection (a)(1)(B), the trans shall be liable to the transferee for any damages suffered by the transfere result of the failure to notify.

''(g) Determination of Disputes and Claims.—Any dispute concerning the application of subsections (a) through (f) shall be determined by an ac United States district court, and the court in its discretion may allow the re of full costs by or against any party and may also award a reasonable atto fee to the prevailing party as part of the costs.

''(h) Study.—The Comptroller General, in consultation with the Register o Copyrights, shall conduct a study of the conditions in the motion picture in try that gave rise to this section, and the impact of this section on the mo picture industry. The Comptroller General shall report the findings of the s to the Congress within 2 years after the effective date of this chapter.''.

* * * * * * *

***Sec. 407 · Effective Date.***

Except as otherwise provided in this title, this title and the amendments by this title shall take effect on the date of the enactment of this Act.

* * * * * * *

**Title V · Protection of Certain Original Designs**

***Sec. 501 · Short Title.***

This Act may be referred to as the ''Vessel Hull Design Protection Act''.

* * * * * * *

***Sec. 505 · Effective Date.***[2]

The amendments made by sections 502 and 503 shall take effect on the d the enactment of this Act.[3]

## Appendix B · Notes

1. This appendix contains provisions from the Digital Millennium Copyright Act ( DMCA) Pub. L. No. 105-304, 112 Stat. 2860, that do not amend Title 17 of the *United State*

2. The Intellectual Property and Communications Omnibus Reform Act of 1999 ar ed section 505 by deleting everything at the end of the sentence, after "Act." Pub. 113, 113 Stat. 1501, app. I at 1501A-521, 593.

3. Section 502 of the DMCA added chapter 13 to Title 17 of the *United States Code*. Se 503 made conforming amendments. The date of enactment of this Act is October 2

# Appendix C

## The Copyright Royalty and Distribution Reform Act of 2004[1]

***Section 1 · Short Title.***

This Act may be cited as the “Copyright Royalty and Distribution Reform of 2004”.

***Sec. 2 · Reference.***

Except as otherwise expressly provided, whenever in this Act an amend or repeal is expressed in terms of an amendment to, or repeal of, a secti other provision, the reference shall be considered to be made to a section provision of title 17, United States Code.

* * * * * * *

***Sec. 6 · Effective Date and Transition Provisions.***[2]

(a)Effective Date.—This Act and the amendments made by this Act shall take effect 6 months after the date of enactment of this Act, except that t brarian of Congress shall appoint 1 or more interim Copyright Royalty Judg under section 802(d) of title 17, United States Code, as amended by this within 90 days after such date of enactment to carry out the functions of Copyright Royalty Judges under title 17, United States Code, to the extent Copyright Royalty Judges provided for in section 801(a) of title 17, United Code, as amended by this Act, have not been appointed before the end of 90-day period.

(b)Transition Provisions.—

(1)In general.—Subject to paragraphs (2) and (3), the amendments made by this Act shall not affect any proceedings commenced, petitions or voluntary agreements entered into before the effective date provided subsection (a) under the provisions of title 17, United States Code, as a by this Act, and pending on such effective date. Such proceedings shall tinue, determinations made in such proceedings, and appeals taken the as if this Act had not been enacted, and shall continue in effect until mo under title 17, United States Code, as amended by this Act. Such petiti filed and voluntary agreements entered into shall remain in effect as if Act had not been enacted. For purposes of this paragraph, the Librarian Congress may determine whether a proceeding has commenced. The L ian of Congress may terminate any proceeding commenced before the tive date provided in subsection (a) pursuant to chapter 8 of title 17, Un

States Code, and any proceeding so terminated shall become null and v
In such cases, the Copyright Royalty Judges may initiate a new proceed
accordance with regulations adopted pursuant to section 803(b)(6) of ti
17, United States Code.

(2) Certain royalty rate proceedings.—Notwithstanding paragraph (1), the amendments made by this Act shall not affect proceedings to d royalty rates pursuant to section 119(c) of title 17, United States Code, commenced before January 31, 2006.

(3) Pending proceedings.—Notwithstanding paragraph (1), any proceedings to establish or adjust rates and terms for the statutory license section 114(f)(2) or 112(e) of title 17, United States Code, for a statutor commencing on or after January 1, 2005, shall be terminated upon the enactment of this Act and shall be null and void. The rates and terms in under section 114(f)(2) or 112(e) of title 17, United States Code, on D ber 31, 2004, for new subscription services, eligible nonsubscription se and services exempt under section 114(d)(1)(C)(iv) of such title, and t and terms published in the Federal Register under the authority of the Webcaster Settlement Act of 2002 (17 U.S.C. 114 note; Public Law 107-321) (including the amendments made by that Act) for the years 2003 thro 2004, as well as any notice and recordkeeping provisions adopted purs thereto, shall remain in effect until the later of the first applicable effe date for successor terms and rates specified in section 804(b) (2) or (3 title 17, United States Code, or such later date as the parties may agre Copyright Royalty Judges may establish. For the period commencing Jan 1, 2005, an eligible small webcaster or a noncommercial webcaster, as in the regulations published by the Register of Copyrights pursuant to Small Webcaster Settlement Act of 2002 (17 U.S.C. 114 note; Public Law 107-321) (including the amendments made by that Act), may elect to be s to the rates and terms published in those regulations by complying wit procedures governing the election process set forth in those regulation later than the first date on which the webcaster would be obligated to a royalty payment for such period. Until successor terms and rates hav established for the period commencing January 1, 2006, licensees shal tinue to make royalty payments at the rates and on the terms previous effect, subject to retroactive adjustment when successor rates and ter such services are established.

(4) Interim proceedings.—Notwithstanding subsection (a), as soon as practicable after the date of enactment of this Act, the Copyright Roya Judges or interim Copyright Royalty Judges shall publish the notice desc in section 803(b)(1)(A) of title 17, United States Code, as amended by Act, to initiate a proceeding to establish or adjust rates and terms for statutory licenses under section 114(f)(2) or 112(e) of title 17, United

Code, for new subscription services and eligible nonsubscription servic
the period commencing January 1, 2006. The Copyright Royalty Judges
Interim Copyright Royalty Judges are authorized to cause that proceed
take place as provided in subsection (b) of section 803 of that title wit
time periods set forth in that subsection. Notwithstanding section 803(
of that title, the Copyright Royalty Judges shall not be required to issue
determination in that proceeding before the expiration of the statutory
and terms in effect on December 31, 2004.

(c)Existing Appropriations.—Any funds made available in an appropria-
tions Act to carry out chapter 8 of title 17, United States Code, shall be av
to the extent necessary to carry out this section.

## Appendix C · Notes

1. This appendix contains provisions from the Copyright Royalty and Distribution Re
Act of 2004, Pub. L. No. 108-419, 118 Stat. 2341, that do not amend Title 17 of the
*States Code*.

2. In 2006, the Copyright Royalty Judges Program Technical Corrections Act amer
section 6(b)(1) by substituting “effective date provided in subsection (a)” for “date
ment of this Act” in the third sentence. Pub. L. No. 109-303, 120 Stat. 1478, 1483.

# Appendix D

## The Satellite Home Viewer Extension and Reauthorization Act of 2004[1]

* * * * * * *

### Title IX Satellite Home Viewer Extension and Reauthorization Act of 2004

***Section 1 · Short Titles; Table of Contents.***

(a)Short Titles.—This title may be cited as the "Satellite Home Viewer Extension and Reauthorization Act of 2004" or the "W. J. (Billy) Tauzin Satellite Television Act of 2004".

* * * * * * *

### Title I Statutory License for Satellite Carriers

***Sec. 101 · Extension of Authority.***

(a)In General.—Section 4(a) of the Satellite Home Viewer Act of 1994 (17 U.S.C. 119 note; Public Law 103-369; 108 Stat. 3481) is amended by striking "December 31, 2004" and inserting "December 31, 2009".

(b)Extension for Certain Subscribers.—Section 119(e) of title 17, United States Code, is amended by striking "December 31, 2004" and inserting "December 31, 2009".

* * * * * * *

***Sec. 106 · Effect on Certain Proceedings.***

Nothing in this title shall modify any remedy imposed on a party that is subject by the judgment of a court in any action that was brought before May 1, 2004, against that party for a violation of section 119 of title 17, United States Code.

* * * * * * *

***Sec. 109 · Study.***

No later than June 30, 2008, the Register of Copyrights shall report to the Committee on the Judiciary of the House of Representatives and the Committee on the Judiciary of the Senate the Register's findings and recommendations

the operation and revision of the statutory licenses under sections 111, 11
122 of title 17, United States Code. The report shall include, but not be lim
to, the following:

(1) A comparison of the royalties paid by licensees under such sectio
cluding historical rates of increases in these royalties, a comparison bet
the royalties under each such section and the prices paid in the market
for comparable programming.

(2) An analysis of the differences in the terms and conditions of the li
under such sections, an analysis of whether these differences are requi
tified by historical, technological, or regulatory differences that affect th
lite and cable industries, and an analysis of whether the cable or satellite
is placed in a competitive disadvantage due to these terms and conditio

(3) An analysis of whether the licenses under such sections are still ju
by the bases upon which they were originally created.

(4) An analysis of the correlation, if any, between the royalties, or lac
of, under such sections and the fees charged to cable and satellite subs
addressing whether cable and satellite companies have passed to subs
any savings realized as a result of the royalty structure and amounts u
such sections.

(5) An analysis of issues that may arise with respect to the applicatio
the licenses under such sections to the secondary transmissions of the
transmissions of network stations and superstations that originate as di
signals, including issues that relate to the application of the unserved h
hold limitations under section 119 of title 17, United States Code, and t
determination of royalties of cable systems and satellite carriers.

## Appendix D · Notes

1. This appendix contains provisions from the Satellite Home Viewer Extension and
authorization Act of 2004, Title IX, Division J of the Consolidated Appropriations Ac
2005, Pub. L. No. 108-447, 118 Stat. 2809, 3393, that do not amend Title 17 of the
*States Code*.

# Appendix E

## The Intellectual Property Protection and Courts Amendments Act of 2004[1]

***Section 1 · Short Title.***

This Act may be cited as the "Intellectual Property Protection and Courts Amendments Act of 2004".

**Title I Anti-counterfeiting Provisions**

***Sec. 101 · Short Title.***

This title may be cited as the "'Anti-counterfeiting Amendments Act of 2

* * * * * * *

***Sec. 103 · Other Rights Not Affected.***

(a) Chapters 5 and 12 of Title 17; Electronic Transmissions.—The amendments made by this title—

(1) shall not enlarge, diminish, or otherwise affect any liability or limitations on liability under sections 512, 1201 or 1202 of title 17, United States Code; and

(2) shall not be construed to apply—

(A) in any case, to the electronic transmission of a genuine certificensing document, registration card, similar labeling component, or mentation or packaging described in paragraph (4) or (5) of section 2 of title 18, United States Code, as amended by this title; and

(B) in the case of a civil action under section 2318(f) of title 18, Un States Code, to the electronic transmission of a counterfeit label or co feit documentation or packaging defined in paragraph (1) or (6) of se 2318(b) of title 18, United States Code.

(b) Fair Use.—The amendments made by this title shall not affect the fair under section 107 of title 17, United States Code, of a genuine certificate, document, registration card, similar labeling component, or documentatio packaging described in paragraph (4) or (5) of section 2318(b) of title 18, United States Code, as amended by this title.

## Title II Fraudulent Online Identity Sanctions

### *Sec. 201 · Short Title.*

This title may be cited as the "'Fraudulent Online Identity Sanctions Act

* * * * * * *

### *Sec. 205 · Construction.*

(a) Free Speech and Press.—Nothing in this title shall enlarge or diminish any rights of free speech or of the press for activities related to the registr use of domain names.

(b) Discretion of Courts in Determining Relief.—Nothing in this title shall restrict the discretion of a court in determining damages or othe to be assessed against a person found liable for the infringement of intelle property rights.

(c) Discretion of Courts in Determining Terms of Imprisonment.—Nothing in this title shall be construed to limit the discretion of a court to mine the appropriate term of imprisonment for an offense under applicabl

## Appendix E · Notes

1. This appendix contains provisions from the Intellectual Property Protection and C Amendments Act of 2004, Pub. L. No. 108-482, 118 Stat. 3912, that do not amend T the *United States Code*.

# Appendix F

## The Prioritizing Resources and Organization for Intellectual Property Act of 2008

***Section 1 · Short Title; Table of Contents.***

(a)Short Title.—This Act may be cited as the "Prioritizing Resources and Organization for Intellectual Property Act of 2008".

* * * * * * *

***Sec. 2 · Reference.***

Any reference in this Act to the "Trademark Act of 1946" refers to the Act entitled "An Act to provide for the registration of trademarks used in commerce, to carry out the provisions of certain international conventions, and for other purposes", approved July 5, 1946 (15 U.S.C. 1051 et seq.).

***Sec. 3 · Definition.***

In this Act, the term "United States person" means—

(1) any United States resident or national,

(2) any domestic concern (including any permanent domestic establishment of any foreign concern), and

(3) any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern that is controlled in fact by such domestic concern,

except that such term does not include an individual who resides outside the United States and is employed by an individual or entity other than an individual or entity described in paragraph (1), (2), or (3).

**Title I—Enhancements to Civil Intellectual Property Laws**

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***Sec. 102 · Civil Remedies for Infringement.***

* * * * * * *

(b)Protective Order for Seized Records.—Section 34(d)(7) of the Trademark Act (15 U.S.C. 1116(d)(7)) is amended to read as follows:

"(7) Any materials seized under this subsection shall be taken into the

of the court. For seizures made under this section, the court shall enter
propriate protective order with respect to discovery and use of any reco
information that has been seized. The protective order shall provide for
priate procedures to ensure that confidential, private, proprietary, or pr
information contained in such records is not improperly disclosed or use

***Sec. 103 · Treble Damages in Counterfeiting Cases.***

Section 35(b) of the Trademark Act of 1946 (15 U.S.C. 1117(b)) is amen
read as follows:

"(b) In assessing damages under subsection (a) for any violation of secti
of this Act or section 220506 of title 36, United States Code, in a case invo
use of a counterfeit mark or designation (as defined in section 34(d) of thi
the court shall, unless the court finds extenuating circumstances, enter ju
for three times such profits or damages, whichever amount is greater, tog
with a reasonable attorney's fee, if the violation consists of—

"(1) intentionally using a mark or designation, knowing such mark or
nation is a counterfeit mark (as defined in section 34(d) of this Act), in c
tion with the sale, offering for sale, or distribution of goods or services;

"(2) providing goods or services necessary to the commission of a vio
specified in paragraph (1), with the intent that the recipient of the good
services would put the goods or services to use in committing the violat

In such a case, the court may award prejudgment interest on such amoun
annual interest rate established under section 6621(a)(2) of the Internal R
Code of 1986, beginning on the date of the service of the claimant's pleac
setting forth the claim for such entry of judgment and ending on the date
entry is made, or for such shorter time as the court considers appropriate

***Sec. 104 · Statutory Damages in Counterfeiting Cases.***

Section 35(c) of the Trademark Act of 1946 (15 U.S.C. 1117) is amende

(1) in paragraph (1)—
(A) by striking "$500" and inserting "$1,000"; and
(B) by striking "$100,000" and inserting "$200,000"; and
(2) in paragraph (2), by striking "$1,000,000" and inserting "$2,000,0

* * * * * * *

**Title II—Enhancements to Criminal Intellectual Property Laws**

* * * * * * *

***Sec. 205. Trafficking in Counterfeit Goods or Services.***

(a)In General—Section 2320 of title 18, United States Code, is amended

(1) in subsection (a)—

(A) by striking ''Whoever'' and inserting ''Offense.—''

''(1) In general.—Whoever;'';

(B) by moving the remaining text 2 ems to the right; and

(C) by adding at the end the following:

''(2) Serious bodily harm or death.—

''(A) Serious bodily harm.—If the offender knowingly or recklessly causes or attempts to cause serious bodily injury from conduct in vio of paragraph (1), the penalty shall be a fine under this title or impriso for not more than 20 years, or both.

''(B) Death.—If the offender knowingly or recklessly causes or attemp to cause death from conduct in violation of paragraph (1), the penalty be a fine under this title or imprisonment for any term of years or for or both.''; and

(2) by adding at the end the following:

''(h) Transshipment and Exportation.—No goods or services, the traf-ficking in of which is prohibited by this section, shall be transshipped thro or exported from the United States. Any such transshipment or exportatio be deemed a violation of section 42 of an Act to provide for the registratio trademarks used in commerce, to carry out the provisions of certain inter conventions, and for other purposes, approved July 5, 1946 (commonly re to as the 'Trademark Act of 1946' or the 'Lanham Act').''.

(b) Forfeiture and Destruction of Property; Restitution.—Section 2320(b) of title 18, United States Code, is amended to read as follows:

''(b) Forfeiture and Destruction of Property; Restitution.—For-feiture, destruction, and restitution relating to this section shall be subject tion 2323, to the extent provided in that section, in addition to any other s remedies provided by law.''.

***Sec. 206 · Forfeiture, Destruction, and Restitution.***

* * * * * * *

(b) Technical and Conforming Amendment.—The table of sections for chapter 113 of title 18, United States Code, is amended by adding at the e following:

''Sec. 2323 · Forfeiture, destruction, and restitution.''.

***Sec. 207 · Forfeiture Under Economic Espionage Act.***

Section 1834 of title 18, United States Code, is amended to read as follo

''Sec. 1834 · Criminal Forfeiture.

"Forfeiture, destruction, and restitution relating to this chapter shall be s
to section 2323, to the extent provided in that section, in addition to any o
similar remedies provided by law.

* * * * * * *

***Sec. 209 · Technical and Conforming Amendments.***

* * * * * * *

(b) Other Amendments.—Section 596(c)(2)(c) of the Tariff Act of 1950 (19 U.S.C. 1595a(c)(2)(c)) is amended by striking "or 509".

## Title III—Coordination and Strategic Planning of Federal Effort Against Counterfeiting and Infringement

***Sec. 301 · Intellectual Property Enforcement Coordinator.***

(a) Intellectual Property Enforcement Coordinator.—The President shall appoint, by and with the advice and consent of the Senate, an I
lectual Property Enforcement Coordinator (in this title referred to as the "IPEC") to serve within the Executive Office of the President. As an exercise of the making power of the Senate, any nomination of the IPEC submitted to the Senate for confirmation, and referred to a committee, shall be referred to the Cor on the Judiciary.

(b) Duties of IPEC.—

(1) In general.—The IPEC shall—

(A) chair the interagency intellectual property enforcement adviso committee established under subsection (b)(3)(A);

(B) coordinate the development of the Joint Strategic Plan against c terfeiting and infringement by the advisory committee under section

(C) assist, at the request of the departments and agencies listed in tion (b)(3)(A), in the implementation of the Joint Strategic Plan;

(D) facilitate the issuance of policy guidance to departments and a cies on basic issues of policy and interpretation, to the extent necess assure the coordination of intellectual property enforcement policy a consistency with other law;

(E) report to the President and report to Congress, to the extent co tent with law, regarding domestic and international intellectual prope enforcement programs;

(F) report to Congress, as provided in section 304, on the implemen
tion of the Joint Strategic Plan, and make recommendations, if any ar
appropriate, to Congress for improvements in Federal intellectual pro
laws and enforcement efforts; and

(G) carry out such other functions as the President may direct.

(2) Limitation on authority.—The IPEC may not control or direct any
law enforcement agency, including the Department of Justice, in the ex
of its investigative or prosecutorial authority.

(3) Advisory committee.—

(A) Establishment.—There is established an interagency intellectual
property enforcement advisory committee composed of the IPEC, who be
shall chair the committee, and the following members:

(i) Senate-confirmed representatives of the following departmen
and agencies who are involved in intellectual property enforcemen
who are, or are appointed by, the respective heads of those depart
and agencies:

(I) The Office of Management and Budget.

(II) Relevant units within the Department of Justice, including t
Federal Bureau of Investigation and the Criminal Division.

(III) The United States Patent and Trademark Office and other
relevant units of the Department of Commerce.

(IV) The Office of the United States Trade Representative.

(V) The Department of State, the United States Agency for Inte
national Development, and the Bureau of International Narcotic
Law Enforcement.

(VI) The Department of Homeland Security, United States Cus-
toms and Border Protection, and United States Immigration and
Customs Enforcement.

(VII) The Food and Drug Administration of the Department of
Health and Human Services.

(VIII) The Department of Agriculture.

(IX) Any such other agencies as the President determines to b
substantially involved in the efforts of the Federal Government
combat counterfeiting and infringement.

(ii) The Register of Copyrights, or a senior representative of the U
ed States Copyright Office appointed by the Register of Copyrights

(B) Functions.—The advisory committee established under subpara-
graph (A) shall develop the Joint Strategic Plan against counterfeiting
infringement under section 303.

### *Sec. 302 · Definition.*

For purposes of this title, the term "intellectual property enforcement'' matters relating to the enforcement of laws protecting copyrights, patents marks, other forms of intellectual property, and trade secrets, both in the States and abroad, including in particular matters relating to combating c terfeit and infringing goods.

### *Sec. 303 · Joint Strategic Plan.*

(a)Purpose.—The objectives of the Joint Strategic Plan against counterfe ing and infringement that is referred to in section 301(b)(1)(B) (in this se referred to as the "joint strategic plan") are the following:

(1) Reducing counterfeit and infringing goods in the domestic and int national supply chain.

(2) Identifying and addressing structural weaknesses, systemic flaws other unjustified impediments to effective enforcement action against financing, production, trafficking, or sale of counterfeit or infringing goo including identifying duplicative efforts to enforce, investigate, and pros intellectual property crimes across the Federal agencies and Departmen comprise the Advisory Committee and recommending how such duplica efforts may be minimized. Such recommendations may include recomm tions on how to reduce duplication in personnel, materials, technologies facilities utilized by the agencies and Departments responsible for the e ment, investigation, or prosecution of intellectual property crimes.

(3) Ensuring that information is identified and shared among the rele departments and agencies, to the extent permitted by law, including re ments relating to confidentiality and privacy, and to the extent that suc ing of information is consistent with Department of Justice and other la enforcement protocols for handling such information, to aid in the obje tive of arresting and prosecuting individuals and entities that are knowi involved in the financing, production, trafficking, or sale of counterfeit infringing goods.

(4) Disrupting and eliminating domestic and international counterfeit and infringement networks.

(5) Strengthening the capacity of other countries to protect and enfo intellectual property rights, and reducing the number of countries that f to enforce laws preventing the financing, production, trafficking, and sa counterfeit and infringing goods.

(6) Working with other countries to establish international standards policies for the effective protection and enforcement of intellectual prop rights.

(7) Protecting intellectual property rights overseas by—

(A) working with other countries and exchanging information with a
propriate law enforcement agencies in other countries relating to ind
als and entities involved in the financing, production, trafficking, or sa
counterfeit and infringing goods;

(B) ensuring that the information referred to in subparagraph (A) i
provided to appropriate United States law enforcement agencies in o
assist, as warranted, enforcement activities in cooperation with appro
law enforcement agencies in other countries; and

(C) building a formal process for consulting with companies, indust
associations, labor unions, and other interested groups in other count
with respect to intellectual property enforcement.

(b) TIMING.—Not later than 12 months after the date of the enactment of
Act, and not later than December 31 of every third year thereafter, the IPEC shall
submit the joint strategic plan to the Committee on the Judiciary and the C
mittee on Appropriations of the Senate, and to the Committee on the Judic
and the Committee on Appropriations of the House of Representatives.

(c) RESPONSIBILITY OF THE IPEC.—During the development of the joint
strategic plan, the IPEC—

(1) shall provide assistance to, and coordinate the meetings and effo
the appropriate officers and employees of departments and agencies r
sented on the advisory committee appointed under section 301(b)(3) w
involved in intellectual property enforcement; and

(2) may consult with private sector experts in intellectual property en
ment in furtherance of providing assistance to the members of the advi
committee appointed under section 301(b)(3).

(d) RESPONSIBILITIES OF OTHER DEPARTMENTS AND AGENCIES.—In the
development and implementation of the joint strategic plan, the heads o
departments and agencies identified under section 301(b)(3) shall—

(1) designate personnel with expertise and experience in intellectual
erty enforcement matters to work with the IPEC and other members of the
advisory committee; and

(2) share relevant department or agency information with the IPEC and the
other members of the advisory committee, including statistical informa
on the enforcement activities of the department or agency against cou
ing or infringement, and plans for addressing the joint strategic plan, to
extent permitted by law, including requirements relating to confidentia
and privacy, and to the extent that such sharing of information is consis
with Department of Justice and other law enforcement protocols for han
such information.

(e) CONTENTS OF THE JOINT STRATEGIC PLAN.—Each joint strategic plan
shall include the following:

(1) A description of the priorities identified for carrying out the object in the joint strategic plan, including activities of the Federal Governmen ing to intellectual property enforcement.

(2) A description of the means to be employed to achieve the prioritie cluding the means for improving the efficiency and effectiveness of the Government's enforcement efforts against counterfeiting and infringem

(3) Estimates of the resources necessary to fulfill the priorities identif under paragraph (1).

(4) The performance measures to be used to monitor results under th strategic plan during the following year.

(5) An analysis of the threat posed by violations of intellectual prope rights, including the costs to the economy of the United States resulting violations of intellectual property laws, and the threats to public health safety created by counterfeiting and infringement.

(6) An identification of the departments and agencies that will be inv in implementing each priority under paragraph (1).

(7) A strategy for ensuring coordination among the departments and cies identified under paragraph (6), which will facilitate oversight by the ecutive branch of, and accountability among, the departments and age responsible for carrying out the strategy.

(8) Such other information as is necessary to convey the costs impos on the United States economy by, and the threats to public health and s created by, counterfeiting and infringement, and those steps that the F Government intends to take over the period covered by the succeeding strategic plan to reduce those costs and counter those threats.

(f) Enhancing Enforcement Efforts of Foreign Governments.

The joint strategic plan shall include programs to provide training and tech assistance to foreign governments for the purpose of enhancing the effo such governments to enforce laws against counterfeiting and infringemen respect to such programs, the joint strategic plan shall—

(1) seek to enhance the efficiency and consistency with which Federa sources are expended, and seek to minimize duplication, overlap, or inc tency of efforts;

(2) identify and give priority to those countries where programs of tra ing and technical assistance can be carried out most effectively and wit greatest benefit to reducing counterfeit and infringing products in the U States market, to protecting the intellectual property rights of United St persons and their licensees, and to protecting the interests of United S persons otherwise harmed by violations of intellectual property rights in countries;

(3) in identifying the priorities under paragraph (2), be guided by the countries identified by the United States Trade Representative under se 182(a) of the Trade Act of 1974 (19 U.S.C. 2242(a)); and

(4) develop metrics to measure the effectiveness of the Federal Gov ment's efforts to improve the laws and enforcement practices of foreign ernments against counterfeiting and infringement.

(g) Dissemination of the Joint Strategic Plan.—The joint strategic plan shall be posted for public access on the website of the White House, be disseminated to the public through such other means as the IPEC may identify.

### *Sec. 304 · Reporting.*

(a) Annual Report.—Not later than December 31 of each calendar year b ginning in 2009, the IPEC shall submit a report on the activities of the advisory committee during the preceding fiscal year. The annual report shall be su to Congress, and disseminated to the people of the United States, in the m specified in subsections (b) and (g) of section 303.

(b) Contents.—The report required by this section shall include the follow

(1) The progress made on implementing the strategic plan and on the ress toward fulfillment of the priorities identified under section 303(e)(1

(2) The progress made in efforts to encourage Federal, State, and loc ernment departments and agencies to accord higher priority to intellect property enforcement.

(3) The progress made in working with foreign countries to investigat and prosecute entities and individuals involved in the financing, produc trafficking, and sale of counterfeit and infringing goods.

(4) The manner in which the relevant departments and agencies are ing together and sharing information to strengthen intellectual propert enforcement.

(5) An assessment of the successes and shortcomings of the efforts o Federal Government, including departments and agencies represented committee established under section 301(b)(3).

(6) Recommendations, if any and as appropriate, for any changes in e ment statutes, regulations, or funding levels that the advisory committe siders would significantly improve the effectiveness or efficiency of the of the Federal Government to combat counterfeiting and infringement a otherwise strengthen intellectual property enforcement, including throu elimination or consolidation of duplicative programs or initiatives.

(7) The progress made in strengthening the capacity of countries to p and enforce intellectual property rights.

(8) The successes and challenges in sharing with other countries info tion relating to intellectual property enforcement.

(9) The progress made under trade agreements and treaties to protec
lectual property rights of United States persons and their licensees.

(10) The progress made in minimizing duplicative efforts, materials, f
ties, and procedures of the Federal agencies and Departments responsi
the enforcement, investigation, or prosecution of intellectual property c

(11) Recommendations, if any and as appropriate, on how to enhance
ficiency and consistency with which Federal funds and resources are ex
to enforce, investigate, or prosecute intellectual property crimes, includ
extent to which the agencies and Departments responsible for the enfo
investigation, or prosecution of intellectual property crimes have utilize
isting personnel, materials, technologies, and facilities.

***Sec. 305 · Savings and Repeals.***

(a) Transition From NIPLECC to IPEC.—

(1) Repeal of niplecc.—Section 653 of the Treasury and General Gov-
ernment Appropriations Act, 2000 (15 U.S.C. 1128) is repealed effective upon
confirmation of the IPEC by the Senate and publication of such appointment
in the Congressional Record.

(2) Continuity of performance of duties.—Upon confirmation by
the Senate, and notwithstanding paragraph (1), the IPEC may use the services
and personnel of the National Intellectual Property Law Enforcement Co
dination Council, for such time as is reasonable, to perform any function
duties which in the discretion of the IPEC are necessary to facilitate the orderly
transition of any functions or duties transferred from the IPEC Council to the
pursuant to any provision of this Act or any amendment made by this A

(b) Current Authorities Not Affected.—Except as provided in subsec-
tion (a), nothing in this title shall alter the authority of any department or
of the United States (including any independent agency) that relates to—

(1) the investigation and prosecution of violations of laws that protec
lectual property rights;

(2) the administrative enforcement, at the borders of the United State
laws that protect intellectual property rights; or

(3) the United States trade agreements program or international trad

(c) Rules of Construction.—Nothing in this title—

(1) shall derogate from the powers, duties, and functions of any of th
cies, departments, or other entities listed or included under section 301
(A); and

(2) shall be construed to transfer authority regarding the control, use
allocation of law enforcement resources, or the initiation or prosecution
individual cases or types of cases, from the responsible law enforcemen
partment or agency.

### *Sec. 306 · Authorization of Appropriations.*

(a) In General.—There are authorized to be appropriated for each fiscal y
such sums as may be necessary to carry out this title.

## Title IV—Department of Justice Programs

### *Sec. 401 · Local Law Enforcement Grants.*

(a) Authorization.—Section 2 of the Computer Crime Enforcement Act (42 U.S.C. 3713) is amended—

(1) in subsection (b), by inserting after "computer crime" each place pears the following: ", including infringement of copyrighted works over Internet"; and

(2) in subsection (e)(1), relating to authorization of appropriations, by ing "fiscal years 2001 through 2004" and inserting "fiscal years 2009 th 2013".

(b) Grants.—The Office of Justice Programs of the Department of Justice may make grants to eligible State or local law enforcement entities, includ enforcement agencies of municipal governments and public educational tutions, for training, prevention, enforcement, and prosecution of intellec property theft and infringement crimes (in this subsection referred to as "IP-TIC grants"), in accordance with the following:

(1) Use of ip-tic grant amounts.—IP-TIC grants may be used to establish and develop programs to do the following with respect to the enforc of State and local true name and address laws and State and local crim on anti-infringement, anti-counterfeiting, and unlawful acts with respect goods by reason of their protection by a patent, trademark, service mar secret, or other intellectual property right under State or Federal law:

(A) Assist State and local law enforcement agencies in enforcing th laws, including by reimbursing State and local entities for expenses in in performing enforcement operations, such as overtime payments a storage fees for seized evidence.

(B) Assist State and local law enforcement agencies in educating th lic to prevent, deter, and identify violations of those laws.

(C) Educate and train State and local law enforcement officers and ecutors to conduct investigations and forensic analyses of evidence prosecutions in matters involving those laws.

(D) Establish task forces that include personnel from State or local enforcement entities, or both, exclusively to conduct investigations a rensic analyses of evidence and prosecutions in matters involving tho

(E) Assist State and local law enforcement officers and prosecutor
acquiring computer and other equipment to conduct investigations a
forensic analyses of evidence in matters involving those laws.

(F) Facilitate and promote the sharing, with State and local law enf
ment officers and prosecutors, of the expertise and information of Fe
law enforcement agencies about the investigation, analysis, and pros
of matters involving those laws and criminal infringement of copyrigh
works, including the use of multijurisdictional task forces.

(2) **Eligibility.**—To be eligible to receive a PRO-TIC grant, a State or lo-
cal government entity shall provide to the Attorney General, in addition
the information regularly required to be provided under the Financial G
issued by the Office of Justice Programs and any other information requ
of Department of Justice's grantees—

(A) assurances that the State in which the government entity is loc
has in effect laws described in paragraph (1);

(B) an assessment of the resource needs of the State or local gove
ment entity applying for the grant, including information on the need
reimbursements of base salaries and overtime costs, storage fees, ar
expenditures to improve the investigation, prevention, or enforcemer
laws described in paragraph (1); and

(C) a plan for coordinating the programs funded under this section
other federally funded technical assistance and training programs, in
ing directly funded local programs such as the Edward Byrne Memor
Justice Assistance Grant Program authorized by subpart 1 of part E of
I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C.
3750 et seq.).

(3) **Matching funds.**—The Federal share of a PRO-TIC grant may not
exceed 50 percent of the costs of the program or proposal funded by th
TIC grant.

(4) **Authorization of appropriations.**—

(A) **Authorization.**—There is authorized to be appropriated to carry
out this subsection the sum of $25,000,000 for each of fiscal years 20
through 2013.

(B) **Limitation.**—Of the amount made available to carry out this sub-
section in any fiscal year, not more than 3 percent may be used by th
torney General for salaries and administrative expenses.

***Sec. 402 · Improved Investigative and Forensic Resources for En
Laws Related to Intellectual Property Crimes.***

(a) **In General.**—Subject to the availability of appropriations to carry out
this subsection, the Attorney General, in consultation with the Director of

Federal Bureau of Investigation, shall, with respect to crimes related to th
of intellectual property—

(1) ensure that there are at least 10 additional operational agents of
eral Bureau of Investigation designated to support the Computer Crime
Intellectual Property Section of the Criminal Division of the Department
Justice in the investigation and coordination of intellectual property crim

(2) ensure that any Computer Hacking and Intellectual Property Crim
Unit in the Department of Justice is supported by at least 1 agent of the
Bureau of Investigation (in addition to any agent supporting such unit a
the date of the enactment of this Act) to support such unit for the purpo
investigating or prosecuting intellectual property crimes;

(3) ensure that all Computer Hacking and Intellectual Property Crime
Units located at an office of a United States Attorney are assigned at lea
sistant United States Attorneys responsible for investigating and prosec
computer hacking or intellectual property crimes; and

(4) ensure the implementation of a regular and comprehensive train
program—

(A) the purpose of which is to train agents of the Federal Bureau o
Investigation in the investigation and prosecution of such crimes and
enforcement of laws related to intellectual property crimes; and

(B) that includes relevant forensic training related to investigating
prosecuting intellectual property crimes.

(b) Organized Crime Plan.—Subject to the availability of appropriations to carry out this subsection, and not later than 180 days after the date o enactment of this Act, the Attorney General, through the United States A neys' Offices, the Computer Crime and Intellectual Property section, and Organized Crime and Racketeering section of the Department of Justice, in consultation with the Federal Bureau of Investigation and other Federal enforcement agencies, such as the Department of Homeland Security, sha and implement a comprehensive, long-range plan to investigate and pros international organized crime syndicates engaging in or supporting crimes ing to the theft of intellectual property.

(c) Authorization.—There are authorized to be appropriated to carry out this section $10,000,000 for each of fiscal years 2009 through 2013.

***Sec. 403 · Additional Funding for Resources to Investigate and P Intellectual Property Crimes and Other Criminal Activity Involving***

(a) Additional Funding for Resources.—

(1) Authorization.—In addition to amounts otherwise authorized for resources to investigate and prosecute intellectual property crimes and criminal activity involving computers, there are authorized to be approp for each of the fiscal years 2009 through 2013—

(A) $10,000,000 to the Director of the Federal Bureau of Investigat
and

(B) $10,000,000 to the Attorney General for the Criminal Division o
the Department of Justice.

(2)Availability.—Any amounts appropriated under paragraph (1) shall
remain available until expended.

(b)Use of Additional Funding.—Funds made available under subsec-
tion (a) shall be used by the Director of the Federal Bureau of Investigatio
the Attorney General, for the Federal Bureau of Investigation and the Crim
Division of the Department of Justice, respectively, to—

(1) hire and train law enforcement officers to—

(A) investigate intellectual property crimes and other crimes comm
through the use of computers and other information technology, inclu
through the use of the Internet; and

(B) assist in the prosecution of such crimes; and

(2) enable relevant units of the Department of Justice, including units
sponsible for investigating computer hacking or intellectual property cri
to procure advanced tools of forensic science and expert computer fore
assistance, including from non-governmental entities, to investigate, pr
and study such crimes.

***Sec. 404 · Annual Reports.***

(a)Report of the Attorney General.—Not later than 1 year after the
date of the enactment of this Act, and annually thereafter, the Attorney G
shall submit a report to Congress on actions taken to carry out this title.
initial report required under this subsection shall be submitted by May 1, 2
All subsequent annual reports shall be submitted by May 1st of each fiscal
thereafter. The report required under this subsection may be submitted as
of the annual performance report of the Department of Justice, and shall i
the following:

(1) With respect to grants issued under section 401, the number and
of State and local law enforcement grant applicants, the number of gra
issued, the dollar value of each grant, including a break down of such v
showing how the recipient used the funds, the specific purpose of each
and the reports from recipients of the grants on the efficacy of the prog
supported by the grant. The Department of Justice shall use the informa
provided by the grant recipients to produce a statement for each indivi
grant. Such statement shall state whether each grantee has accomplish
purposes of the grant as established in section 401(b). Those grantees
compliance with the requirements of this title shall be subject, but not l
to, sanctions as described in the Financial Guide issued by the Office of
Programs at the Department of Justice.

(2) With respect to the additional agents of the Federal Bureau of Inv
gation authorized under paragraphs (1) and (2) of section 402(a), the n
of investigations and actions in which such agents were engaged, the ty
each action, the resolution of each action, and any penalties imposed in
action.

(3) With respect to the training program authorized under section 40
the number of agents of the Federal Bureau of Investigation participatin
such program, the elements of the training program, and the subject m
covered by the program.

(4) With respect to the organized crime plan authorized under sectio
402(b), the number of organized crime investigations and prosecutions
sulting from such plan.

(5) With respect to the authorizations under section 403—

(A) the number of law enforcement officers hired and the nu
trained;

(B) the number and type of investigations and prosecutions resultin
from the hiring and training of such law enforcement officers;

(C) the defendants involved in any such prosecutions;

(D) any penalties imposed in each such successful prosecution;

(E) the advanced tools of forensic science procured to investigate,
ecute, and study computer hacking or intellectual property crimes; an

(F) the number and type of investigations and prosecutions in such
were used.

(6) Any other information that the Attorney General may consider rele
to inform Congress on the effective use of the resources authorized unde
tions 401, 402, and 403.

(7) A summary of the efforts, activities, and resources the Departmen
Justice has allocated to the enforcement, investigation, and prosecution
tellectual property crimes, including—

(A) a review of the policies and efforts of the Department of Justice
related to the prevention and investigation of intellectual property cri
including efforts at the Office of Justice Programs, the Criminal Divisio
of the Department of Justice, the Executive Office of United States Att
neys, the Office of the Attorney General, the Office of the Deputy Atto
General, the Office of Legal Policy, and any other agency or bureau o
Department of Justice whose activities relate to intellectual property;

(B) a summary of the overall successes and failures of such policies
efforts;

(C) a review of the investigative and prosecution activity of the Dep
ment of Justice with respect to intellectual property crimes, including

(i) the number of investigations initiated related to such crimes;

(ii) the number of arrests related to such crimes; and

(iii) the number of prosecutions for such crimes, including—
(I) the number of defendants involved in such prosecutions;
(II) whether the prosecution resulted in a conviction; and
(III) the sentence and the statutory maximum for such crime, a
well as the average sentence imposed for such crime; and
(D) a Department-wide assessment of the staff, financial resources
other resources (such as time, technology, and training) devoted to t
forcement, investigation, and prosecution of intellectual property crir
including the number of investigators, prosecutors, and forensic spec
dedicated to investigating and prosecuting intellectual property crim
(8) A summary of the efforts, activities, and resources that the Depar
of Justice has taken to—
(A) minimize duplicating the efforts, materials, facilities, and proce
of any other Federal agency responsible for the enforcement, investig
or prosecution of intellectual property crimes; and
(B) enhance the efficiency and consistency with which Federal fun
and resources are expended to enforce, investigate, or prosecute inte
property crimes, including the extent to which the Department has ut
existing personnel, materials, technologies, and facilities.
(b) Initial Report of the Attorney General.—The first report required
to be submitted by the Attorney General under subsection (a) shall inclu
summary of the efforts, activities, and resources the Department of Justic
allocated in the 5 years prior to the date of enactment of this Act, as well
1-year period following such date of enactment, to the enforcement, inves
and prosecution of intellectual property crimes, including—
(1) a review of the policies and efforts of the Department of Justice re
to the prevention and investigation of intellectual property crimes, inclu
efforts at the Office of Justice Programs, the Criminal Division of the Dep
ment of Justice, the Executive Office of United States Attorneys, the Offi
the Attorney General, the Office of the Deputy Attorney General, the Of
of Legal Policy, and any other agency or bureau of the Department of Ju
whose activities relate to intellectual property;
(2) a summary of the overall successes and failures of such policies
efforts;
(3) a review of the investigative and prosecution activity of the Depar
of Justice with respect to intellectual property crimes, including—
(A) the number of investigations initiated related to such crimes;
(B) the number of arrests related to such crimes; and
(C) the number of prosecutions for such crimes, including—
(i) the number of defendants involved in such prosecutions;
(ii) whether the prosecution resulted in a conviction; and

(iii) the sentence and the statutory maximum for such crime, as
as the average sentence imposed for such crime; and

(4) a Department-wide assessment of the staff, financial resources, a
er resources (such as time, technology, and training) devoted to the en
ment, investigation, and prosecution of intellectual property crimes, inc
the number of investigators, prosecutors, and forensic specialists dedic
investigating and prosecuting intellectual property crimes.

(c)Report of the FBI.—Not later than 1 year after the date of the enact-
ment of this Act, and annually thereafter, the Director of the Federal Bure
Investigation shall submit a report to Congress on actions taken to carry o
title. The initial report required under this subsection shall be submitted b
1, 2009. All subsequent annual reports shall be submitted by May 1st of e
cal year thereafter. The report required under this subsection may be sub
as part of the annual performance report of the Department of Justice, an
include—

(1) a review of the policies and efforts of the Bureau related to the pr
tion and investigation of intellectual property crimes;

(2) a summary of the overall successes and failures of such policies
efforts;

(3) a review of the investigative and prosecution activity of the Burea
respect to intellectual property crimes, including—

(A) the number of investigations initiated related to such crimes;

(B) the number of arrests related to such crimes; and

(C) the number of prosecutions for such crimes, including—

(i) the number of defendants involved in such prosecutions;

(ii) whether the prosecution resulted in a conviction; and

(iii) the sentence and the statutory maximum for such crime, as
as the average sentence imposed for such crime; and

(4) a Bureau-wide assessment of the staff, financial resources, and o
resources (such as time, technology, and training) devoted to the enfor
investigation, and prosecution of intellectual property crimes, including
number of investigators, prosecutors, and forensic specialists dedicated
vestigating and prosecuting intellectual property crimes.

(d)Initial Report of the FBI.—The first report required to be submitted
by the Director of the Federal Bureau of Investigation under subsection (c
include a summary of the efforts, activities, and resources the Federal Bu
Investigation has allocated in the 5 years prior to the date of enactment o
as well as the 1-year period following such date of enactment to the enfor
investigation, and prosecution of intellectual property crimes, including—

(1) a review of the policies and efforts of the Bureau related to the pr
tion and investigation of intellectual property crimes;

(2) a summary of the overall successes and failures of such policies efforts;

(3) a review of the investigative and prosecution activity of the Burea respect to intellectual property crimes, including—

(A) the number of investigations initiated related to such crimes;

(B) the number of arrests related to such crimes; and

(C) the number of prosecutions for such crimes, including—

(i) the number of defendants involved in such prosecutions;

(ii) whether the prosecution resulted in a conviction; and

(iii) the sentence and the statutory maximum for such crime, as

as the average sentence imposed for such crime; and

(4) a Bureau-wide assessment of the staff, financial resources, and c resources (such as time, technology, and training) devoted to the enfor investigation, and prosecution of intellectual property crimes, including number of investigators, prosecutors, and forensic specialists dedicated vestigating and prosecuting intellectual property crimes.

## Title V—Miscellaneous

### *Sec. 501. GAO Study on Protection of Intellectual Property of Manufa*

(a)Study.—The Comptroller General of the United States shall conduct a study to help determine how the Federal Government could better protect intellectual property of manufacturers by quantification of the impacts of ported and domestic counterfeit goods on—

(1) the manufacturing industry in the United States; and

(2) the overall economy of the United States.

(b)Contents.—In conducting the study required under subsection (a), th Comptroller General shall examine—

(1) the extent that counterfeit manufactured goods are actively being ficked in and imported into the United States;

(2) the impacts on domestic manufacturers in the United States of cu law regarding defending intellectual property, including patent, tradem and copyright protections;

(3) the nature and scope of current statutory law and case law regard protecting trade dress from being illegally copied;

(4) the extent which such laws are being used to investigate and pros acts of trafficking in counterfeit manufactured goods;

(5) any effective practices or procedures that are protecting all types lectual property; and

(6) any changes to current statutes or rules that would need to be im
plemented to more effectively protect the intellectual property rights o
manufacturers.

(c) REPORT.—Not later than 1 year after the date of the enactment of this
the Comptroller General shall submit to Congress a report on the results o
study required under subsection (a).

***Sec. 502. GAO Audit and Report on Nonduplication and Efficiency.***

Not later than 2 years after the date of enactment of this Act, the Comp
ler General shall conduct an audit and submit a report to the Committee o
Judiciary of the Senate and to the Committee on the Judiciary of the House
Representatives on—

(1) the efforts, activities, and actions of the Intellectual Property Enfo
ment Coordinator and the Attorney General in achieving the goals and p
poses of this Act, as well as in carrying out any responsibilities or duties
signed to each such individual or agency under this Act;

(2) any possible legislative, administrative, or regulatory change
Comptroller General recommends be taken by or on behalf of the Intelle
Property Enforcement Coordinator or the Attorney General to better ach
such goals and purposes, and to more effectively carry out such respon
ties and duties;

(3) the effectiveness of any actions taken and efforts made by the Int
Property Enforcement Coordinator and the Attorney General to—

(A) minimize duplicating the efforts, materials, facilities, and proce
of any other Federal agency responsible for the enforcement, investig
or prosecution of intellectual property crimes; and

(B) enhance the efficiency and consistency with which Federal fun
and resources are expended to enforce, investigate, or prosecute inte
property crimes, including whether the IPEC has utilized existing person-
nel, materials, technologies, and facilities, such as the National Intelle
Property Rights Coordination Center established at the Department
Homeland Security; and

(4) any actions or efforts that the Comptroller General recommends
taken by or on behalf of the Intellectual Property Enforcement Coordina
and the Attorney General to reduce duplication of efforts and increase t
ficiency and consistency with which Federal funds and resources are ex
to enforce, investigate, or prosecute intellectual property crimes.

***Sec. 503 · Sense of Congress.***

It is the sense of Congress that—

(1) the United States intellectual property industries have created mi
of high-skill, high-paying United States jobs and pay billions of dollars in
nual United States tax revenues;

(2) the United States intellectual property industries continue to repre
a major source of creativity and innovation, business start-ups, skilled
creation, exports, economic growth, and competitiveness;

(3) counterfeiting and infringement results in billions of dollars in lost
revenue for United States companies each year and even greater losses
the United States economy in terms of reduced job growth, exports, ar
competitiveness;

(4) the growing number of willful violations of existing Federal crimin
laws involving counterfeiting and infringement by actors in the United S
and, increasingly, by foreign-based individuals and entities is a serious
to the long-term vitality of the United States economy and the future c
petitiveness of United States industry;

(5) terrorists and organized crime utilize piracy, counterfeiting, and i
fringement to fund some of their activities;

(6) effective criminal enforcement of the intellectual property laws ag
violations in all categories of works should be among the highest priorit
the Attorney General;

(7) with respect to all crimes related to the theft of intellectual prope
the Attorney General shall give priority to cases with a nexus to terroris
organized crime; and

(8) with respect to criminal counterfeiting and infringement of compu
software, including those by foreign-owned or foreign-controlled entities
Attorney General should give priority to cases—

(A) involving the willful theft of intellectual property for purposes o
commercial advantage or private financial gain;

(B) where the theft of intellectual property is central to the sustaina
and viability of the commercial activity of the enterprise (or subsidia
involved in the violation;

(C) where the counterfeited or infringing goods or services enables
enterprise to unfairly compete against the legitimate rights holder; or

(D) where there is actual knowledge of the theft of intellectual prop
by the directors or officers of the enterprise.

## Appendix F · Notes

1. This appendix contains provisions from the Prioritizing Resources and Organizatio
Intellectual Property Act of 2008, Pub. L. No. 110-403, 122 Stat. 4256, that do not a
Title 17 of the *United States Code*.

# Appendix G

## The Satellite Television Extension and Localism Act of 2010[1]

***Section 1 · Short Title; Table of Contents.***

(a) Short Title.—This Act may be cited as the ''Satellite Television Extens and Localism Act of 2010''.

* * * * * * *

**Title I—Statutory Licenses**

* * * * * * *

***Sec. 104 · Modifications to Cable System Secondary Transmissio Under Section 111.***

* * * * * * *

(d) Effective Date of New Royalty Fee Rates.—The royalty fee rates established in section 111(d)(1)(B) of title 17, United States Code, as ame subsection (c)(1)(C) of this section, shall take effect commencing with the accounting period occurring in 2010.

* * * * * * *

(f) Timing of Section 111 Proceedings.

* * * * * * *

(h) Effective Date with Respect to Multicast Streams.

(1) In general.—Subject to paragraphs (2) and (3), the amendments ma by this section, to the extent such amendments assign a distant signal lent value to the secondary transmission of the multicast stream of a pr transmitter, shall take effect on the date of the enactment of this Act.

(2) Delayed applicability.—

(A) Secondary transmissions of a multicast stream beyond the local service area of its primary transmitter before 2010 act.—In any case in which a cable system was making secondary tra missions of a multicast stream beyond the local service area of its pri

transmitter before the date of the enactment of this Act, a distant sig
equivalent value (referred to in paragraph (1)) shall not be assigned t
ondary transmissions of such multicast stream that are made on or b
June 30, 2010.

(B) Multicast streams subject to preexisting written agreements for the secondary transmission of such streams.—In any case in which the secondary transmission of a multicast stream of a p transmitter is the subject of a written agreement entered into on or b June 30, 2009, between a cable system or an association representin cable system and a primary transmitter or an association representin primary transmitter, a distant signal equivalent value (referred to in p graph (1)) shall not be assigned to secondary transmissions of such ticast stream beyond the local service area of its primary transmitter are made on or before the date on which such written agreement exp

(C) No refunds or offsets for prior statements of account.—A cable system that has reported secondary transmissions of a multi stream beyond the local service area of its primary transmitter on a s ment of account deposited under section 111 of title 17, United State before the date of the enactment of this Act shall not be entitled to a refund, or offset, of royalty fees paid on account of such secondary tr missions of such multicast stream.

(3) Definitions.—In this subsection, the terms ''cable system'', ''secon transmission'', ''multicast stream'', and ''local service area of a primary mitter'' have the meanings given those terms in section 111(f) of title 1 States Code, as amended by this section.

* * * * * * *

### *Sec. 107 · Termination of license.*

(a) Termination.—Section 119 of title 17, United States Code, as amende this Act, shall cease to be effective on December 31, 2014.2

(b) Conforming Amendment.—Section 1003(a)(2)(A) of Public Law 111–118 (17 U.S.C. 119 note) is repealed.

### *Sec. 108 · Construction.*

Nothing in section 111, 119, or 122 of title 17, United States Code, incl the amendments made to such sections by this title, shall be construed to the meaning of any terms under the Communications Act of 1934, excep the extent that such sections are specifically cross-referenced in such Act regulations issued thereunder.

## Appendix G · Notes

1. This appendix contains provisions from the Satellite Television Extension and Loc
Act of 2010, Pub. L. No. 111-175, 124 Stat. 1218, that do not amend Title 17 of the
*States Code*.

2. The STELA Reauthorization Act of 2014 repealed section 107(a). Pub. L. No. 11
128 Stat. 2059, 2066.

# Appendix H

## The Unlocking Consumer Choice and Wireless Competition Act

***Section 1. Short Title.***

This Act may be cited as the ''Unlocking Consumer Choice and Wireless
petition Act''.

***Sec. 2. Repeal of Existing Rule and Additional Rulemaking by Libr
Congress.***

(a) Repeal and Replace.—As of the date of the enactment of this Act, para
graph (3) of section 201.40(b) of title 37, Code of Federal Regulations, as
and revised by the Librarian of Congress on October 28, 2012, pursuant to
Librarian's authority under section 1201(a) of title 17, United States Code,
have no force and effect, and such paragraph shall read, and shall be in e
such paragraph was in effect on July 27, 2010.

(b) Rulemaking.—The Librarian of Congress, upon the recommendation
of the Register of Copyrights, who shall consult with the Assistant Secreta
Communications and Information of the Department of Commerce and re
and comment on his or her views in making such recommendation, shall
termine, consistent with the requirements set forth under section 1201(a)
title 17, United States Code, whether to extend the exemption for the cla
works described in section 201.40(b)(3) of title 37, Code of Federal Regula
as amended by subsection (a), to include any other category of wireless d
addition to wireless telephone handsets. The determination shall be made
first rulemaking under section 1201(a)(1)(C) of title 17, United States Cod
begins on or after the date of enactment of this Act.

(c) Unlocking at Direction of Owner.—Circumvention of a technologi-
cal measure that restricts wireless telephone handsets or other wireless d
from connecting to a wireless telecommunications network—

(1) (A) as authorized by paragraph (3) of section 201.40(b) of title 37
of Federal Regulations, as made effective by subsection (a); and

(B) as may be extended to other wireless devices pursuant to a det
nation in the rulemaking conducted under subsection (b); or

(2) as authorized by an exemption adopted by the Librarian of Congr
pursuant to a determination made on or after the date of enactment of
Act under section 1201(a)(1)(C) of title 17, United States Code,

may be initiated by the owner of any such handset or other device, by anc
person at the direction of the owner, or by a provider of a commercial mo
radio service or a commercial mobile data service at the direction of such

or other person, solely in order to enable such owner or a family member
owner to connect to a wireless telecommunications network, when such c
tion is authorized by the operator of such network.

(d)Rule of Construction.—

(1)In general.—Except as expressly provided herein, nothing in this Ac
shall be construed to alter the scope of any party's rights under existing

(2)Librarian of congress.—Nothing in this Act alters, or shall be con-
strued to alter, the authority of the Librarian of Congress under section
of title 17, United States Code.

(e)Definitions.—In this Act:

(1)Commercial mobile data service; commercial mobile radio
service.—The terms ''commercial mobile data service'' and ''commercia
bile radio service'' have the respective meanings given those terms in s
20.3 of title 47, Code of Federal Regulations, as in effect on the date of
enactment of this Act.

(2)Wireless telecommunications network.—The term ''wireless
telecommunications network'' means a network used to provide a comm
mobile radio service or a commercial mobile data service.

(3)Wireless telephone handsets; wireless devices.—The terms
''wireless telephone handset'' and ''wireless device'' mean a handset or
device that operates on a wireless telecommunications network.

## Appendix H · Notes

1. The Unlocking Consumer Choice and Wireless Competition Act, Pub. L. No. 113-1
Stat. 1751, enacted in 2014, does not amend Title 17 of the *United States Code*.

# Appendix I

## The STELA Reauthorization Act of 2014[1]

***Section 1 · Short Title; Table of Contents.***

(a)Short Title.—This Act may be cited as the ‘‘STELA Reauthorization Act of 2014’’.

* * * * * * *

**Title II—Copyright Provisions**

* * * * * * *

***Sec. 202 · Termination of License.***

* * * * * * *

(b)Conforming Amendment.—Section 107(a) of the Satellite Television Extension and Localism Act of 2010 (17 U.S.C. 119 note) is repealed.

**Appendix I · Notes**

1. This appendix contains provisions from the STELA Reauthorization Act of 2014, P No. 113-200, 128 Stat. 2059, that do not amend Title 17 of the *United States Code*.

# Appendix J

## Marrakesh Treaty Implementation Act

***Section 1 · Short Title.***

This Act may be cited as the “Marrakesh Treaty Implementation Act”.

# Appendix K

## Orrin G. Hatch–Bob Goodlatte Music Modernization Act[1]

***Section 1 · Short Title; Table of Contents.***

(a) Short Title .—This Act may be cited as the “Orrin G. Hatch–Bob Goodlatte Music Modernization Act”.

* * * * * * *

**Title I—Music Licensing Modernization**

***Sec. 101 · Short Title.***

This title may be cited as the “Musical Works Modernization Act”.

* * * * * * *

***Sec. 102 · Blanket License for Digital Uses and Mechanical Licen***

* * * * * * *

(c) Effective Date of Amended Rate Setting Standard.—The amendments made by subsection (a)(3) and section 103(g)(2) shall apply to any ing before the Copyright Royalty Judges that is commenced on or after the of the enactment of this Act.

* * * * * * *

(d) Technical and Conforming Amendments to Title 37, Part 385 of the Code of Federal Regulations.—Not later than 270 days after the date of enactment of this Act, the Copyright Royalty Judges shall amend the re tions for section 115 of title 17, United States Code, in part 385 of title 37, Federal Regulations, to conform the definitions used in such part to the de tions of the same terms described in section 115(e) of title 17, United Stat as added by subsection (a). In so doing, the Copyright Royalty Judges shal adjustments to the language of the regulations as necessary to achieve th purpose and effect as the original regulations with respect to the rates an previously adopted by the Copyright Royalty Judges.

* * * * * * *

(e) Copyright Office Activities .—The Register of Copyrights shall engage in public outreach and educational activities—

(1) regarding the amendments made by subsection (a) to section 115 17, United States Code, including the responsibilities of the mechanical ing collective designated under those amendments;

(2) which shall include educating songwriters and other interested pa with respect to the process established under section 115(d)(3)(C)(i)(V) 17, United States Code, as added by subsection (a), by which—

(A) a copyright owner may claim ownership of musical works (and shares of such works); and

(B) royalties for works for which the owner is not identified or locat shall be equitably distributed to known copyright owners; and

(3) which the Register shall make available online.

* * * * * * *

(f) Unclaimed Royalties Study and Recommendations

(1) In general—Not later than 2 years after the date on which the Regi of Copyrights initially designates the mechanical licensing collective u section 115(d)(3)(B)(i) of title 17, United States Code, as added by subs (a)(4), the Register, in consultation with the Comptroller General of the States, and after soliciting and reviewing comments and relevant inform from music industry participants and other interested parties, shall subm the Committee on the Judiciary of the Senate and the Committee on the ciary of the House of Representatives a report that recommends best p that the collective may implement in order to—

(A) identify and locate musical work copyright owners with unclaim accrued royalties held by the collective;

(B) encourage musical work copyright owners to claim the royalties those owners; and

(C) reduce the incidence of unclaimed royalties.

(2) Consideration of recommendations.—The mechanical licensing collective shall carefully consider, and give substantial weight to, th ommendations submitted by the Register of Copyrights under paragrap when establishing the procedures of the collective with respect to the—

(A) identification and location of musical work copyright owners; a

(B) distribution of unclaimed royalties.

* * * * * * *

***Sec. 103 · Amendments to Section 114.***

* * * * * * *

(c)Use In Musical Work Proceedings—

(1)In general—License fees payable for the public performance of sou recordings under section 106(6) of title 17, United States Code, shall no taken into account in any administrative, judicial, or other governmenta ceeding to set or adjust the royalties payable to musical work copyright for the public performance of their works except in such a proceeding t or adjust royalties for the public performance of musical works by mean a digital audio transmission other than a transmission by a broadcaster may be taken into account only with respect to such digital audio transm

(2)Definitions.—In this subsection:

(A)Transmission by a broadcaster.—The term "transmission by a broadcaster" means a nonsubscription digital transmission made by a restrial broadcast station on its own behalf, or on the behalf of a terre broadcast station under common ownership or control, that is not par an interactive service or a music-intensive service comprising the tra sion of sound recordings customized for or customizable by recipient service users.

(B)Terrestrial broadcast station.—The term "terrestrial broadcast station" means a terrestrial, over-the-air radio or television broa station, including an FM translator (as defined in section 74.1201 of t Code of Federal Regulations, and licensed as such by the Federal Com nications Commission) whose primary business activities are compris and whose revenues are generated through, terrestrial, over-the-air b cast transmissions, or the simultaneous or substantially-simultaneous tal retransmission by the terrestrial, over-the-air broadcast station o over-the-air broadcast transmissions.

(d)Rule of Construction.—Subsection (c)(2) shall not be given effect in interpreting provisions of title 17, United States Code.

* * * * * * *

(e)Use in Sound Recording Proceedings.—The repeal of section 114(i) of title 17, United States Code, by subsection (b) shall not be taken into ac in any proceeding to set or adjust the rates and fees payable for the use o recordings under section 112(e) or 114(f) of such title that is pending on, menced on or after, the date of enactment of this Act.

* * * * * * *

(f) Decisions and Precedents Not Affected.—The repeal of section 114(i) of title 17, United States Code, by subsection (b) shall not have any upon the decisions, or the precedents established or relied upon, in any p ing to set or adjust the rates and fees payable for the use of sound recor under section 112(e) or 114(f) of such title before the date of enactment o

* * * * * * *

(h) Effective Date of Amended Rate Setting Standard.—The amend- ments made by subsection (a)(1) shall apply to any proceeding before the right Royalty Judges that is commenced on or after the date of the enactm this Act.

* * * * * * *

***Sec. 105 · Performing Rights Society Consent Decrees.***

(a) Definition.—In this section, the term "performing rights society" has meaning given the term in section 101 of title 17, United States Code.

(b) Notification of Review.—

(1) In general.—The Department of Justice shall provide timely briefing upon request of any Member of the Committee on the Judiciary of the S and the Committee on the Judiciary of the House of Representatives reg the status of a review in progress of a consent decree between the Unit and a performing rights society.

(2) Confidentiality and deliberative process.—In accordance with applicable rules relating to confidentiality and agency deliberative proc Department of Justice shall share with such Members of Congress detail timely information and pertinent documents related to the consent de review.

(c) Action Before Motion to Terminate.—

(1) In general.—Before filing with the appropriate district court of the United States a motion to terminate a consent decree between the Uni States and a performing rights society, including a motion to terminate sent decree after the passage of a specified period of time, the Departm Justice shall—

(A) notify Members of Congress and committees of Congress descr in subsection (b); and

(B) provide to such Members of Congress and committees informat regarding the impact of the proposed termination on the market for l ing the public performance of musical works should the motion be gr

(2)Notification .—

(A)In general.—During the notification described in paragraph (1), and not later than a reasonable time before the date on which the De ment of Justice files with the appropriate district court of the United S a motion to terminate a consent decree between the United States a performing rights society, the Department of Justice should submit to chairmen and ranking members of the Committee on the Judiciary of Senate and the Committee on the Judiciary of the House of Represen a written notification of the intent of the Department of Justice to file motion.

(B)Contents.—The notification provided in subparagraph (A) shall include a written report to the chairmen and ranking members of the mittee on the Judiciary of Senate and the Committee on the Judiciary the House of Representatives setting forth—

(i) an explanation of the process used by the Department of Justi to review the consent decree;

(ii) a summary of the public comments received by the Departm of Justice during the review by the Department; and

(iii) other information provided to Congress under paragraph (1)

(d)Scope.—This section applies only to a consent decree between the U States and a performing rights society.

* * * * * * *

***Sec. 106 · Effective Date.***

This title, and the amendments made by this title, shall take effect on t of enactment of this Act.

* * * * * * *

**Title II—Classics Protection Act**

***Sec. 201 · Short Title.***

* * * * * * *

This title may be cited as the “Classics Protection and Access Act”.

* * * * * * *

## Title III—Allocation for Music Producers

### *Sec. 301 · Short Title.*

This title may be cited as the "Allocation for Music Producers Act" or the Act".

* * * * * * *

### *Sec. 303 · Effective Date.*

(a)In General.—Except as provided in subsection (b), this title and the amendments made by this title shall take effect on the date of enactment Act.

(b)Delayed Effective Date.—Paragraphs (5)(B) and (6)(E) of section 114(g) of title 17, United States Code, as added by section 302, shall take January 1, 2020.

* * * * * * *

### *Sec. 401 · Severability.*

If any provision of this Act or any amendment made by this Act, or any cation of such provision or amendment to any person or circumstance, is be unconstitutional, the remainder of the provisions of this Act and the an ments made by this Act, and the application of the provision or amendme any other person or circumstance, shall not be affected.

## Appendix K · Notes

1. This appendix contains provisions from the Orrin G. Hatch–Bob Goodlatte Music M ernization Act, Pub. L. No. 115-262, 132 Stat. 3676, that do not amend Title 17 of th *States Code*.

# Appendix L

## Satellite Television Community Protection and Promotion Act of 2019, Title X of the Further Consolidated Appropriations Act, 2020[1]

***Section 1101 · Short Title.***

This title may be cited as the “Satellite Television Community Protection Promotion Act of 2019”.

* * * * * * *

***Section 1102 · Eligibility to Receive Signals Under a Distant-Signal License***

* * * * * * *

(b)Previously Covered Subscribers Under the STELA Reauthorization Act of 2014.—

(1)In General.—A subscriber of a satellite carrier who receives the secondary transmission of a network station under the statutory license in 119 of title 17, United States Code, as in effect on the day before the da the enactment of this Act, and to whom subsection (a)(2)(B) of such sec as amended by subsection (a), does not apply, shall continue to be eligi receive that secondary transmission from such carrier under such licens at the royalty rate established for such license by the Copyright Royalty or voluntary agreement, as applicable, until the date that is the earlier

(A) May 31, 2020; or

(B) the date on which such carrier provides local-into-local service all DMAs.

(2)Definitions.—In this subsection, the terms “satellite carrier”, “subscriber”, “secondary transmission”, “network station”, and “local-into-service to all DMAs” have the meaning given those terms in section 11 title 17, United States Code.

### Appendix L · Notes

1. This appendix contains provisions from the Satellite Television Community Protec and Promotion Act of 2019, Pub. L. No. 116-94, 133 Stat. 2534, that do not amend T of the *United States Code*.

# Appendix M

## Copyright Alternative in Small-Claims Enforcem Act of 2020

* * * * * * *

### DIVISION Q - FINANCIAL SERVICES PROVISIONS AND INTELLECT PROPERTY

* * * * * * *

### Title II — Intellectual Property
### Subtitle A—Copyrights

* * * * * * *

***Section 212 · Copyright Small Claims.***

(a) Short title. —This section may be cited as the ‘‘Copyright Alternative Small-Claims Enforcement Act of 2020’’ or the ‘‘CASE Act of 2020’’.

* * * * * * *

(d) Implementation.—

(1) In general.—Except as provided in paragraph (2), not later than 1 y after the date of enactment of this Act, the Copyright Claims Board esta under section 1502 of title 17, United States Code, as added by subsect of this section, shall begin operations.

(2) Extension.—The Register of Copyrights may, for good cause, exten the deadline under paragraph (1) by not more than 180 days if the Reg of Copyrights provides notice of the extension to the public and to Cong

(e) Study.—Not later than 3 years after the date on which the Copyright Claims Board issues the first determination of the Copyright Claims Board der chapter 15 of title 17, United States Code, as added by subsection (b) section, the Register of Copyrights shall conduct, and report to Congress o study that addresses the following:

(1) The use and efficacy of the Copyright Claims Board in resolving co right claims, including the number of proceedings the Copyright Board could reasonably administer.

(2) Whether adjustments to the authority of the Copyright Claims Boa are necessary or advisable, including with respect to—

(A) eligible claims, such as claims under section 1202 of title 17, U
States Code; and

(B) works and applicable damages limitations.

(3) Whether greater allowance should be made to permit awards of a
neys' fees and costs to prevailing parties, including potential limitations
such awards.

(4) Potential mechanisms to assist copyright owners with small claim
ascertaining the identity and location of unknown online infringers.

(5) Whether the Copyright Claims Board should be expanded to offer
diation or other nonbinding alternative dispute resolution services to int
ested parties.

(6) Such other matters as the Register of Copyrights believes may be
nent concerning the Copyright Claims Board.

(f) Severability.—If any provision of this section, an amendment made by
this section, or the application of such provision or amendment to any per
or circumstance is held to be unconstitutional, the remainder of this sectio
the amendments made by this section, and the application of the provisio
amendment to any other person or circumstance, shall not be affected.

## Appendix M · Notes

1. This appendix contains provisions from the Copyright Alternative in Small-Claims
forcement Act of 2020, Division Q, Title II, Subtitle A of the Consolidated Appropriatio
2021, Pub. L. No. 116-26, 134 Stat. 1182, that do not amend Title 17 of the *United S*

# Appendix N

## Title 18 — Crimes and Criminal Procedure, U. S. Code

### Part I—Crimes
### Chapter 113—Stolen Property

* * * * * * *

***§ 2318. Trafficking in counterfeit labels, illicit labels, or counterfeit documentation or packaging***

(a) (1) Whoever, in any of the circumstances described in subsection (c), knowingly traffics in—

(A) a counterfeit label or illicit label affixed to, enclosing, or accompanying, or designed to be affixed to, enclose, or accompany—

(i) a phonorecord;

(ii) a copy of a computer program;

(iii) a copy of a motion picture or other audiovisual work;

(iv) a copy of a literary work;

(v) a copy of a pictorial, graphic, or sculptural work;

(vi) a work of visual art; or

(vii) documentation or packaging; or

(B) counterfeit documentation or packaging, shall be fined under this title or imprisoned for not more than 5 years, or both.

(b) As used in this section—

(1) the term "counterfeit label" means an identifying label or container that appears to be genuine, but is not;

(2) the term "traffic" has the same meaning as in section 2320(f) of this title;

(3) the terms "copy", "phonorecord", "motion picture", "computer program", "audiovisual work", "literary work", "pictorial, graphic, or sculptural work", "sound recording", "work of visual art", and "copyright owner" have, respectively, the meanings given those terms in section 101 (relating to definitions) of title 17;

(4) the term "illicit label" means a genuine certificate, licensing document, registration card, or similar labeling component—

(A) that is used by the copyright owner to verify that a phonorecord, a copy of a computer program, a copy of a motion picture or other audiovisual work, a copy of a literary work, a copy of a pictorial, graphic, or sculptural work, a work of visual art, or documentation or packaging is not counterfeit or infringing of any copyright; and

(B) that is, without the authorization of the copyright owner—
(i) distributed or intended for distribution not in connection with
copy, phonorecord, or work of visual art to which such labeling con
nent was intended to be affixed by the respective copyright owner;
(ii) in connection with a genuine certificate or licensing documen
knowingly falsified in order to designate a higher number of license
users or copies than authorized by the copyright owner, unless tha
certificate or document is used by the copyright owner solely for t
purpose of monitoring or tracking the copyright owner's distributio
channel and not for the purpose of verifying that a copy or phonore
is noninfringing;

(5) the term "documentation or packaging" means documentation or
aging, in physical form, for a phonorecord, copy of a computer program
of a motion picture or other audiovisual work, copy of a literary work, co
of a pictorial, graphic, or sculptural work, or work of visual art; and

(6) the term "counterfeit documentation or packaging" means docum
tion or packaging that appears to be genuine, but is not.

(c) The circumstances referred to in subsection (a) of this section are—

(1) the offense is committed within the special maritime and territor
jurisdiction of the United States; or within the special aircraft jurisdictio
the United States (as defined in section 46501 of title 49);

(2) the mail or a facility of interstate or foreign commerce is used or
tended to be used in the commission of the offense;

(3) the counterfeit label or illicit label is affixed to, encloses, or accom
or is designed to be affixed to, enclose, or accompany—
(A) a phonorecord of a copyrighted sound recording or copyrighte
musical work;
(B) a copy of a copyrighted computer program;
(C) a copy of a copyrighted motion picture or other audiovisual wo
(D) a copy of a literary work;
(E) a copy of a pictorial, graphic, or sculptural work;
(F) a work of visual art; or
(G) copyrighted documentation or packaging; or

(4) the counterfeited documentation or packaging is copyrighted.

(d) Forfeiture and Destruction of Property; Restitution.—
Forfeiture, destruction, and restitution relating to this section shall
be subject to section 2323, to the extent provided in that section, in
addition to any other similar remedies provided by law.

(e) Civil Remedies.—

(1) In general.—Any copyright owner who is injured, or is threatened
with injury, by a violation of subsection (a) may bring a civil action in ar
propriate United States district court.

(2)Discretion of court.—In any action brought under paragraph (1), the court—

(A) may grant 1 or more temporary or permanent injunctions on su terms as the court determines to be reasonable to prevent or restrai violation of subsection (a);

(B) at any time while the action is pending, may order the impound on such terms as the court determines to be reasonable, of any articl is in the custody or control of the alleged violator and that the court h reasonable cause to believe was involved in a violation of subsection and

(C) may award to the injured party—

(i) reasonable attorney fees and costs; and

(ii)(I) actual damages and any additional profits of the violator, provided in paragraph (3); or

(II) statutory damages, as provided in paragraph (4).

(3)Actual damages and profits.

(A)In general.—The injured party is entitled to recover—

(i) the actual damages suffered by the injured party as a result a violation of subsection (a), as provided in subparagraph (B) of th paragraph; and

(ii) any profits of the violator that are attributable to a violation o subsection (a) and are not taken into account in computing the act damages.

(B)Calculation of damages.—The court shall calculate actual dam-ages by multiplying—

(i) the value of the phonorecords, copies, or works of visual art w are, or are intended to be, affixed with, enclosed in, or accompani by any counterfeit labels, illicit labels, or counterfeit documentatio packaging, by

(ii) the number of phonorecords, copies, or works of visual art wh are, or are intended to be, affixed with, enclosed in, or accompani by any counterfeit labels, illicit labels, or counterfeit documentatio packaging.

(C)Definition.—For purposes of this paragraph, the “value” of a ph norecord, copy, or work of visual art is—

(i) in the case of a copyrighted sound recording or copyrighted m cal work, the retail value of an authorized phonorecord of that sou recording or musical work;

(ii) in the case of a copyrighted computer program, the retail val an authorized copy of that computer program;

(iii) in the case of a copyrighted motion picture or other audiovis
work, the retail value of an authorized copy of that motion picture
audiovisual work;

(iv) in the case of a copyrighted literary work, the retail value of
authorized copy of that literary work;

(v) in the case of a pictorial, graphic, or sculptural work, the reta
value of an authorized copy of that work; and

(vi) in the case of a work of visual art, the retail value of that wo

(4)Statutory damages.—The injured party may elect, at any time be-
fore final judgment is rendered, to recover, instead of actual damages
profits, an award of statutory damages for each violation of subsection
a sum of not less than $2,500 or more than $25,000, as the court consi
appropriate.

(5)Subsequent violation.—The court may increase an award of dam-
ages under this subsection by 3 times the amount that would otherwis
awarded, as the court considers appropriate, if the court finds that a pe
has subsequently violated subsection (a) within 3 years after a final jud
was entered against that person for a violation of that subsection.

(6)Limitation on actions.—A civil action may not be commenced un-
der this section unless it is commenced within 3 years after the date on
the claimant discovers the violation of subsection (a).

### *§ 2319 · Criminal infringement of a copyright*

(a) Any person who violates section 506(a) (relating to criminal offenses
title 17 shall be punished as provided in subsections (b), (c), and (d) and s
penalties shall be in addition to any other provisions of title 17 or any othe

(b) Any person who commits an offense under section 506(a)(1)(A) of ti

(1) shall be imprisoned not more than 5 years, or fined in the amount
forth in this title, or both, if the offense consists of the reproduction or d
bution, including by electronic means, during any 180-day period, of at
10 copies or phonorecords, of 1 or more copyrighted works, which have
retail value of more than $2,500;

(2) shall be imprisoned not more than 10 years, or fined in the amoun
forth in this title, or both, if the offense is a felony and is a second or su
quent offense under subsection (a); and

(3) shall be imprisoned not more than 1 year, or fined in the amount
forth in this title, or both, in any other case.

(c) Any person who commits an offense under section 506(a)(1)(B) of ti

(1) shall be imprisoned not more than 3 years, or fined in the amount
forth in this title, or both, if the offense consists of the reproduction or d
bution of 10 or more copies or phonorecords of 1 or more copyrighted w
which have a total retail value of $2,500 or more;

(2) shall be imprisoned not more than 6 years, or fined in the amount
forth in this title, or both, if the offense is a felony and is a second or su
quent offense under subsection (a); and

(3) shall be imprisoned not more than 1 year, or fined in the amount
forth in this title, or both, if the offense consists of the reproduction or d
bution of 1 or more copies or phonorecords of 1 or more copyrighted wo
which have a total retail value of more than $1,000.

(d) Any person who commits an offense under section 506(a)(1)(C) of ti

(1) shall be imprisoned not more than 3 years, fined under this title,
both;

(2) shall be imprisoned not more than 5 years, fined under this title, o
if the offense was committed for purposes of commercial advantage or
financial gain;

(3) shall be imprisoned not more than 6 years, fined under this title,
both, if the offense is a felony and is a second or subsequent offense u
subsection (a); and

(4) shall be imprisoned not more than 10 years, fined under this title,
both, if the offense is a felony and is a second or subsequent offense u
paragraph (2).

(e) (1) During preparation of the presentence report pursuant to Rule 32
the Federal Rules of Criminal Procedure, victims of the offense shall be pe
ted to submit, and the probation officer shall receive, a victim impact stat
that identifies the victim of the offense and the extent and scope of the in
and loss suffered by the victim, including the estimated economic impact
offense on that victim.

(2) Persons permitted to submit victim impact statements shall inclu

(A) producers and sellers of legitimate works affected by conduct
volved in the offense;

(B) holders of intellectual property rights in such works; and

(C) the legal representatives of such producers, sellers, and holder

(f) As used in this section—

(1) the terms “phonorecord” and “copies” have, respectively, the me
set forth in section 101 (relating to definitions) of title 17;

(2) the terms “reproduction” and “distribution” refer to the exclusive
of a copyright owner under clauses (1) and (3) respectively of section
(relating to exclusive rights in copyrighted works), as limited by section
through 122, of title 17;

(3) the term “financial gain” has the meaning given the term in sectio
of title 17; and

(4) the term “work being prepared for commercial distribution” has t
meaning given the term in section 506(a) of title 17.

### § 2319. Unauthorized fixation of and trafficking in sound recordings and music videos of live musical performances

(a) Offense.—Whoever, without the consent of the performer or performers involved, knowingly and for purposes of commercial advantage or private financial gain—

(1) fixes the sounds or sounds and images of a live musical performance in a copy or phonorecord, or reproduces copies or phonorecords of such a performance from an unauthorized fixation;

(2) transmits or otherwise communicates to the public the sounds or sounds and images of a live musical performance; or

(3) distributes or offers to distribute, sells or offers to sell, rents or offers to rent, or traffics in any copy or phonorecord fixed as described in paragraph (1), regardless of whether the fixations occurred in the United States;

shall be imprisoned for not more than 5 years or fined in the amount set forth in this title, or both, or if the offense is a second or subsequent offense, shall be imprisoned for not more than 10 years or fined in the amount set forth in this title, or both.

(b) Forfeiture and Destruction of Property; Restitution.—Forfeiture, destruction, and restitution relating to this section shall be subject to section 2323, to the extent provided in that section, in addition to any other similar remedies provided by law.

(c) Seizure and Forfeiture.—If copies or phonorecords of sounds or sounds and images of a live musical performance are fixed outside of the United States without the consent of the performer or performers involved, such copies or phonorecords are subject to seizure and forfeiture in the United States in the same manner as property imported in violation of the customs laws. The Secretary of Homeland Security shall issue regulations by which any performer may, upon payment of a specified fee, be entitled to notification by United States Customs and Border Protection of the importation of copies or phonorecords that appear to consist of unauthorized fixations of the sounds or sounds and images of a live musical performance.

(d) Victim Impact Statement.

(1) During preparation of the presentence report pursuant to Rule 32 of the Federal Rules of Criminal Procedure, victims of the offense shall be permitted to submit, and the probation officer shall receive, a victim impact statement that identifies the victim of the offense and the extent and scope of the injury and loss suffered by the victim, including the estimated economic impact of the offense on that victim.

(2) Persons permitted to submit victim impact statements shall include

(A) producers and sellers of legitimate works affected by conduct involved in the offense;

(B) holders of intellectual property rights in such works; and

(C) the legal representatives of such producers, sellers, and holder

(e) Definitions.—As used in this section—

(1) the terms "copy", "fixed", "musical work", "phonorecord", "repro "sound recordings", and "transmit" mean those terms within the meani title 17; and

(2) the term "traffic" has the same meaning as in section 1027 of this title 18.

(f) Applicability.—This section shall apply to any Act or Acts that occur on or after the date of the enactment of the Uruguay Round Agreements Act.

***§ 2319. Unauthorized recording of motion pictures in a motion pic exhibition facility***

(a) Offense.—Any person who, without the authorization of the copyright owner, knowingly uses or attempts to use an audiovisual recording devic transmit or make a copy of a motion picture or other audiovisual work pro under title 17, or any part thereof, from a performance of such work in a m picture exhibition facility, shall—

(1) be imprisoned for not more than 3 years, fined under this title, or

(2) if the offense is a second or subsequent offense, be imprisoned fo more than 6 years, fined under this title, or both.

The possession by a person of an audiovisual recording device in a mot picture exhibition facility may be considered as evidence in any proceedin termine whether that person committed an offense under this subsection, not, by itself, be sufficient to support a conviction of that person for such

(b) Forfeiture and Destruction of Property; Restitution.—Forfeiture, destruction, and restitution relating to this section shall be subject to tion 2323, to the extent provided in that section, in addition to any other s remedies provided by law.

(c) Authorized Activities.—This section does not prevent any lawfully authorized investigative, protective, or intelligence activity by an officer, a or employee of the United States, a State, or a political subdivision of a St by a person acting under a contract with the United States, a State, or a p subdivision of a State.

(d) Immunity for Theaters.—With reasonable cause, the owner or lessee of a motion picture exhibition facility where a motion picture or other aud visual work is being exhibited, the authorized agent or employee of such o or lessee, the licensor of the motion picture or other audiovisual work be exhibited, or the agent or employee of such licensor—

(1) may detain, in a reasonable manner and for a reasonable time, an son suspected of a violation of this section with respect to that motion p or audiovisual work for the purpose of questioning or summoning a law forcement officer; and

(2) shall not be held liable in any civil or criminal action arising out of detention under paragraph (1).

(e) Victim Impact Statement.—

(1) In general.—During the preparation of the presentence report under rule 32(c) of the Federal Rules of Criminal Procedure, victims of an offen under this section shall be permitted to submit to the probation officer a tim impact statement that identifies the victim of the offense and the ex and scope of the injury and loss suffered by the victim, including the es economic impact of the offense on that victim.

(2) Contents.—A victim impact statement submitted under this subsec tion shall include—

(A) producers and sellers of legitimate works affected by conduct volved in the offense;

(B) holders of intellectual property rights in the works described in paragraph (A); and

(C) the legal representatives of such producers, sellers, and holder

(f) State Law Not Preempted.—Nothing in this section may be construed to annul or limit any rights or remedies under the laws of any State.

(g) Definitions.—In this section, the following definitions shall apply:

(1) Title 17 definitions.—The terms “audiovisual work”, “copy”, “copy- right owner”, “motion picture”, “motion picture exhibition facility”, and mit” have, respectively, the meanings given those terms in section 101

(2) Audiovisual recording device.—The term “audiovisual recording device” means a digital or analog photographic or video camera, or any technology or device capable of enabling the recording or transmission copyrighted motion picture or other audiovisual work, or any part there regardless of whether audiovisual recording is the sole or primary purp of the device.

### *§ 2319B. Illicit digital transmission services*

(a) Definitions.—In this section—

(1) the terms “audiovisual work”, “computer program”, “copies”, “co owner”, “digital transmission”, “financial gain”, “motion picture”, “moti ture exhibition facility”, “perform”, “phonorecords”, “publicly” (with res to performing a work), “sound recording”, and “transmit” have the mea given those terms in section 101 of title 17;

(2) the term “digital transmission service” means a service that has t mary purpose of publicly performing works by digital transmission;

(3) the terms “publicly perform” and “public performance” refer to th clusive rights of a copyright owner under paragraphs (4) and (6) of sect 106 (relating to exclusive rights in copyrighted works) of title 17, as lim sections 107 through 122 of title 17; and

(4) the term "work being prepared for commercial public performanc means—

(A) a computer program, a musical work, a motion picture or othe audiovisual work, or a sound recording, if, at the time of unauthorize public performance—

(i) the copyright owner has a reasonable expectation of commer public performance; and

(ii) the copies or phonorecords of the work have not been comm cially publicly performed in the United States by or with the author tion of the copyright owner; or

(B) a motion picture, if, at the time of unauthorized public performa the motion picture—

(i)(I) has been made available for viewing in a motion-picture exh tion facility; and

(II) has not been made available in copies for sale to the gener public in the United States by or with the authorization of the co right owner in a format intended to permit viewing outside a mo picture exhibition facility; or

(ii) had not been commercially publicly performed in the United States by or with the authorization of the copyright owner more tha 24 hours before the unauthorized public performance.

(b)Prohibited Act.—It shall be unlawful for a person to willfully, and for purposes of commercial advantage or private financial gain, offer or provi the public a digital transmission service that—

(1) is primarily designed or provided for the purpose of publicly perfo works protected under title 17 by means of a digital transmission witho authority of the copyright owner or the law;

(2) has no commercially significant purpose or use other than to publ perform works protected under title 17 by means of a digital transmiss without the authority of the copyright owner or the law; or

(3) is intentionally marketed by or at the direction of that person to p mote its use in publicly performing works protected under title 17 by m a digital transmission without the authority of the copyright owner or th

(c)Penalties.—Any person who violates subsection (b) shall be, in additio to any penalties provided for under title 17 or any other law—

(1) fined under this title, imprisoned not more than 3 years, or both;

(2) fined under this title, imprisoned not more than 5 years, or both, i

(A) the offense was committed in connection with 1 or more works prepared for commercial public performance; and

(B) the person knew or should have known that the work was bein prepared for commercial public performance; and

(3) fined under this title, imprisoned not more than 10 years, or both,
offense is a second or subsequent offense under this section or section
(d)Rule of Construction.—Nothing in this section shall be construed to—
(1) affect the interpretation of any other provision of civil copyright l
including the limitations of liability set forth in section 512 of title 17, or
ciples of secondary liability; or
(2) prevent any Federal or State authority from enforcing cable theft
of service laws that are not subject to preemption under section 301 of

* * * * * * *

### *§ 2323. Forfeiture, destruction, and restitution.*

(a)Civil Forfeiture. —
(1)Property subject to forfeiture.—The following property is subject to forfeiture to the United States Government:
(A) Any article, the making or trafficking of which is, prohibited unc
section 506 of title 17, or section 2318, 2319, 2319A, 2319B, or 2320
ter 90, of this title.
(B) Any property used, or intended to be used, in any manner or pa
commit or facilitate the commission of an offense referred to in subpa
graph (A).
(C) Any property constituting or derived from any proceeds obtaine
directly or indirectly as a result of the commission of an offense refer
in subparagraph (A).
(2)Procedures.—The provisions of chapter 46 relating to civil forfeiture
shall extend to any seizure or civil forfeiture under this section. For seiz
made under this section, the court shall enter an appropriate protective
with respect to discovery and use of any records or information that has
seized. The protective order shall provide for appropriate procedures to
that confidential, private, proprietary, or privileged information contain
in such records is not improperly disclosed or used. At the conclusion of
forfeiture proceedings, unless otherwise requested by an agency of the
States, the court shall order that any property forfeited under paragraph
destroyed, or otherwise disposed of according to law.
(b)Criminal Forfeiture.—
(1)Property subject to forfeiture.—The court, in imposing sentence
on a person convicted of an offense under section 506 of title 17, or sec
2318, 2319, 2319A, 2319B, or 2320, or chapter 90, of this title, shall or
addition to any other sentence imposed, that the person forfeit to the U
States Government any property subject to forfeiture under subsection
that offense.
(2)Procedures.—

(A) In general.—The forfeiture of property under paragraph (1), including any seizure and disposition of the property and any related ju or administrative proceeding, shall be governed by the procedures se in section 413 of the Comprehensive Drug Abuse Prevention and Con Act of 1970 (21 U.S.C. 853), other than subsection (d) of that section.

(B) Destruction.—At the conclusion of the forfeiture proceedings, the court, unless otherwise requested by an agency of the United St shall order that any—

(i) forfeited article or component of an article bearing or consisti of a counterfeit mark be destroyed or otherwise disposed of accord to law; and

(ii) infringing items or other property described in subsection (a) and forfeited under paragraph (1) of this subsection be destroyed o erwise disposed of according to law.

(c) Restitution.—When a person is convicted of an offense under section 506 of title 17 or section 2318, 2319, 2319A, 2320, or chapter 90, of this title, the court, pursuant to sections 3556 and **3664** of this title, shall order the person to pay restitution to any victim of the offense as an offense ag property referred to in section 3663(c)(3)(A)(ii) of this title.

## Appendix N · Notes

1. In 1962, section 2318, entitled "Transportation, sale, or receipt of phonograph re bearing forged or counterfeit labels," was added to Title 18 of the *United States Co* L. No. 87-773, 76 Stat. 775. In 1974, section 2318 was amended to change the pen L. No. 93-573, 88 Stat. 1873. The Copyright Act of 1976 revised section 2318 with a ment in the nature of a substitute. Pub. L. No. 94-553, 90 Stat. 2541, 2600. The Pira Counterfeiting Amendments Act of 1982 again revised section 2318 with an amend in the nature of a substitute that included a new title, "Trafficking in counterfeit lab phonorecords, and copies of motion pictures or other audiovisual works." Pub. L. No 96 Stat. 91. The Crime Control Act of 1990 made a technical amendment to section to delete the comma after "phonorecords" in the title. Pub. L. No. 101-647, 104 Sta 4928. In 1994, section 2318(c)(1) was amended by inserting "section 46501 of title of "section 101 of the Federal Aviation Act of 1958. Pub. L. No. 103-272, 108 Stat. 7 The Violent Crime Control and Law Enforcement Act of 1994 amended section 2318 inserting "under this title" in lieu of "not more than $250,000." Pub. L. No. 103-322 1796, 2148. (As provided in 18 U.S.C. 3571, the maximum fine for an individual is $250,000, and the maximum fine for an organization is $500,000.)

The Anticounterfeiting Consumer Protection Act of 1996 amended section 2318 changing the title, by amending subsection (a) to insert "a computer program or do tation" through to "knowingly traffics in counterfeit documentation or packaging for puter program" in lieu of "a motion picture or other audiovisual work" and by amen

subsection (b)(3) to insert “computer program” after “motion picture.” Pub. L. No. 1
110 Stat. 1386. The Act also amended section 2318(c) by inserting “a copy of a cop
computer program or copyrighted documentation or packaging for a computer prog
into paragraph (3) and by adding paragraph (4). *Id*. at 1387.

The Anti-counterfeiting Amendments Act of 2004 amended section 2318 by chan
its title, by amending subsection 2318(a) in its entirety; and by amending paragrap
(3) in its entirety. Pub. L. No. 108-482, 118 Stat. 3912-3913. It amended paragraph
by deleting “for a computer program” after “packaging.” *Id*. at 3914. It amended su
2318(d) by inserting “or illicit labels” after “counterfeit labels,” wherever it appears
inserting the text at the end of the sentence, after “such labels affixed.” *Id*. The Act
a new subsection (f). *Id*.

The Protecting American Goods and Services Act of 2005 amended section 2318
its entirety to make the definition for “traffic” the same as in 18 U.S.C. 2320(e). Pub. L. No.
109-181, 120 Stat. 285, 288. As explained in more detail in endnote 2, Congress lat
Title 18 to move the definition of “traffic” from section 2320(e)(2) to section 2320(f)
out amending the cross-reference in section 2318(b)(2) of Title 18.

The Prioritizing Resources and Organization for Intellectual Property Act of
amended section 2318 by revising the section designations for subpart (a), by revis
section (d) in its entirety and by deleting (e) and redesignating (f) as the new (e). Pu
110-403, 122 Stat. 4256, 4261. The Copyright Cleanup, Clarification, and Correction
2010 amended paragraph 2318(e)(6) by inserting “this” before “section.” Pub. L. No
124 Stat. 3180, 3182.

2. The Transnational Drug Trafficking Act of 2015 amended the definition of “traf
section 2318(b)(2) of Title 18 to incorporate by reference the definition of “traffic” i
tion 2320(f)(5) of Title 18. Pub. L. No. 114-154, 130 Stat. 387. Section 2320(f)(5) of
states: “the term ‘traffic’ means to transport, transfer, or otherwise dispose of, to a
for purposes of commercial advantage or private financial gain, or to make, import,
obtain control of, or possess, with intent to so transport, transfer, or otherwise dispo

3. The Piracy and Counterfeiting Amendments Act of 1982 added section 2319 to
of the *United States Code*. This section was entitled “Criminal infringement of a cop
Pub. L. No. 97-180, 96 Stat. 91, 92. In 1992, section 2319 was amended by substitu
subsection (b), by deleting “sound recording,” “motion picture” and “audiovisual w
subsection (c)(1) and by substituting “120” for “118” in subsection (c)(2). Pub. L. No
106 Stat. 4233. In 1997, a technical amendment corrected the spelling of “last” in s
(b)(1) to “least.” Pub. L. No. 105-80, 111 Stat. 1529, 1536.

In 1997, the No Electronic Theft Act amended section 2319 of Title 18 as follows:
subsection (a) by inserting “and (c)” after “subsection (b),”; 2) in subsection (b), in
preceding paragraph (1), by inserting “section 506(a)(1) of title 17” in lieu of “subs
of this section,”; 3) in subsection (b)(1) by inserting “including by electronic means”
inserting “which have a total retail value” in lieu of “with a retail value,” 4) by redes
subsection (c) as subsection (e); and 5) by adding new subsections (c) and (d). Pub
147, 111 Stat. 2678. The Act also directed the United States Sentencing Commissio
that the applicable guideline range for a defendant convicted of a crime against int
property … is sufficiently stringent to deter such a crime” and to “ensure that the g

provide for consideration of the retail value and quantity of the items with respect t
the crime against intellectual property was committed." *Id*. See also note 6, chapte

The Intellectual Property and High Technology Technical Amendments Act of 20
amended paragraph (2) of section 2319(e) by substituting sections "107 through 1
"107 through 120." Pub. L. No. 107-273, 116 Stat. 1758, 1910.

The Artists' Rights and Theft Prevention Act of 2005 amended the beginning of th
sentence of 17 U.S.C. 2319(a) by substituting "Any person who" in lieu of "Whoever." Pub
No. 109-9, 119 Stat. 218, 220–221. It amended subsection 2319(a) by substituting
tions (b), (c) and (d)" in lieu of "subsections (b) and (c). *Id*. at 221. It amended the f
of subsection 2319(b) by inserting "section 506(a)(1)(A)" in lieu of "section 506(a)(
Act amended the first line of subsection 2319(c) by inserting "section 506(a)(1)(B) o
in lieu of "section 506(a)(2) of title 17, *United States Code*." *Id*. It also amended sub
(e) by adding a new paragraph (3). *Id*. Finally, the Act amended section 2319 by ad
new subsection (d) and redesignating the following subsections accordingly, as (e)

The Prioritizing Resources and Organization for Intellectual Property Act of
amended paragraph 2319(b)(2) by inserting "is a felony" after "offense" and by del
section (a)" and inserting "paragraph (1)." Pub. L. No. 110-403, 122 Stat. 4256, 426
amended paragraphs 2319(c)(2), (d)(3) and (d)(4) by making similar changes. *Id.* a

4. In 1994, the Uruguay Round Agreements Act added section 2319A to Title 18 o
*United States Code*. This section was entitled "Unauthorized fixation of and traffickin
sound recordings and music videos of live musical performances." Pub. L. No. 103-4
Stat. 4809, 4974. In 1997, the No Electronic Theft Act amended section 2319A by re
nating subsections (d) and (e) as subsections (e) and (f), respectively, and by addin
tion (d). Pub. L. No. 105-147, 111 Stat. 2678. See also note 3, *supra*, regarding the
Sentencing Commission.

The Protecting American Goods and Services Act of 2005 amended section 2319A
in its entirety to make the definition for "traffic" the same as in 18 U.S.C. 2320(e). Pub. L. No.
109-181, 120 Stat. 285, 288. As explained in more detail in note 2, Congress later a
Title 18 to move the definition of "traffic" from section 2320(e)(2) to section 2320(
without amending the cross-reference in section 2319A(e)(2) of Title 18.

The Prioritizing Resources and Organization for Intellectual Property Act of
amended section 2319A by revising subsection (b) in its entirety and by substitutin
sentence for the last sentence in subsection (c). Pub. L. No. 110-403, 122 Stat. 425

5. The Protecting American Goods and Services Act of 2005 amended the definiti
"traffic" in section 2319A(e)(2) of Title 18 to incorporate by reference the definition
fic" in section 2320(e)(2) of Title 18. Pub. L. No. 109-181, 120 Stat. 285, 288. But th
tion is no longer contained in section 2320(e)(2) of Title 18 because the National De
Authorization Act for Fiscal Year 2012, Pub. L. No. 112-81, 125 Stat. 1298, 1499, mo
section 2320(f)(5) of Title 18 which states: "the term 'traffic' means to transport, tra
otherwise dispose of, to another, for purposes of commercial advantage or private f
gain, or to make, import, export, obtain control of, or possess, with intent to so tran
transfer, or otherwise dispose of." The definition in section 2320(f)(5) is the same a
in section 2320(e)(2).

6. The Uruguay Round Agreements Act was enacted on December 8, 1994.

7. The Artists' Rights and Theft Prevention Act of 2005 added a new section 2319 of the *United States Code*. Pub. L. No. 109-9, 119 Stat. 218.6. The Prioritizing Resou Organization for Intellectual Property Act of 2008 amended subsection 2319(b)(2) entirety. Pub. L. No. 110-403, 122 Stat. 4256, 4261.

8. The Consolidated Appropriations Act, 2021 amended chapter 113 of Title 18, *U States Code*, by adding a new section 2319C, "Illicit digital transmission services.'' P 116-260, 134 Stat. 1182, 2175–2176.

9. The Prioritizing Resources and Organization for Intellectual Property Act of 20 amended chapter 113 of Title 18, *United States Code*, by adding a new section 232 ture, Destruction, and Restitution." Pub. L. No. 110-403, 122 Stat. 4256, 4262–63. S replaces section 509 of Title 17, *United States Code*, which was repealed. *Id*. at 122

# Appendix O

# Title 28 — Judiciary and Judicial Procedure, U. S. Code

**Part I — Organization of Courts**
**Chapter 5 — District Courts**

* * * * * * *

***§ 137 — Division of business among district judges***

(a) In General.—The business of a court having more than one judge sh
be divided among the judges as provided by the rules and orders of the c

The chief judge of the district court shall be responsible for the observa
of such rules and orders, and shall divide the business and assign the cas
as such rules and orders do not otherwise prescribe.

If the district judges in any district are unable to agree upon the adopt
of rules or orders for that purpose the judicial council of the circuit shall m
the necessary orders.

(b) Random Assignment of Rate Court Proceedings.—

(1) In general.—

(A) Definition.—In this paragraph, the term 'performing rights soci-
ety' has the meaning given the term in section 101 of title 17.

(B) Determination of license fee.—Except as provided in subpara-
graph (C), in the case of any performing rights society subject to a co
decree, any application for the determination of a license fee for the
performance of music in accordance with the applicable consent dec
shall be made in the district court with jurisdiction over that consent
cree and randomly assigned to a judge of that district court according
the rules of that court for the division of business among district judg
provided that any such application shall not be assigned to—

(i) a judge to whom continuing jurisdiction over any performing
rights society for any performing rights society consent decree is a
signed or has previously been assigned; or

(ii) a judge to whom another proceeding concerning an applicati
for the determination of a reasonable license fee is assigned at the
of the filing of the application.

(C) Exception—Subparagraph (B) does not apply to an application
to determine reasonable license fees made by individual proprietors u
section 513 of title 17.

(2) Rule of construction.—Nothing in paragraph (1) shall modify the rights of any party to a consent decree or to a proceeding to determine sonable license fees, to make an application for the construction of any sion of the applicable consent decree. Such application shall be referred judge to whom continuing jurisdiction over the applicable consent decr currently assigned. If any such application is made in connection with proceeding, such rate proceeding shall be stayed until the final determi of the construction application. Disputes in connection with a rate proc ing about whether a licensee is similarly situated to another licensee s not be subject to referral to the judge with continuing jurisdiction over applicable consent decree.

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**Part IV—Jurisdiction and Venue**
**Chapter 85—District Courts; Jurisdiction**

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***§ 1338. Patents, plant variety protection, copyrights, mask works, trademarks, and unfair competition***

(a) The district courts shall have original jurisdiction of any civil action ing under any Act of Congress relating to patents, plant variety protection rights and trademarks. No State court shall have jurisdiction over any cla relief arising under any Act of Congress relating to patents, plant variety tion, or copyrights. For purposes of this subsection, the term "State" incl any State of the United States, the District of Columbia, the Commonwea Puerto Rico, the United States Virgin Islands, American Samoa, Guam, an Northern Mariana Islands.

(b) The district courts shall have original jurisdiction of any civil action serting a claim of unfair competition when joined with a substantial and re claim under the copyright, patent, plant variety protection or trademark

(c) Subsections (a) and (b) apply to exclusive rights in mask works un chapter 9 of title 17, and to exclusive rights in designs under chapter 13 17, to the same extent as such subsections apply to copyrights.

## Chapter 87—District Courts; Venue

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### *§ 1400 · Patents and copyrights, mask works, and designs*

* * * * * * *

(a) Civil actions, suits, or proceedings arising under any Act of Congre
relating to copyrights or exclusive rights in mask works or designs may b
tuted in the district in which the defendant or his agent resides or may be
(b) Any civil action for patent infringement may be brought in the judic
district where the defendant resides, or where the defendant has committ
of infringement and has a regular and established place of business.

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## Chapter 91—United States Court of Federal Claims

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### *§ 1498 · Patent and copyright cases*

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(b) Hereafter, whenever the copyright in any work protected under the
right laws of the United States shall be infringed by the United States, by
poration owned or controlled by the United States, or by a contractor, su
tractor, or any person, firm, or corporation acting for the Government an
the authorization or consent of the Government, the exclusive action wh
may be brought for such infringement shall be an action by the copyright
against the United States in the Court of Federal Claims for the recovery
reasonable and entire compensation as damages for such infringement,
ing the minimum statutory damages as set forth in section 504(c) of title
United States Code: Provided, That a Government employee shall have a
of action against the Government under this subsection except where he
in a position to order, influence, or induce use of the copyrighted work by
Government: Provided, however, That this subsection shall not confer a r
action on any copyright owner or any assignee of such owner with respe
any copyrighted work prepared by a person while in the employment or s
of the United States, where the copyrighted work was prepared as a part
official functions of the employee, or in the preparation of which Governm

time, material, or facilities were used: And provided further, That before action against the United States has been instituted the appropriate corp owned or controlled by the United States or the head of the appropriate ment or agency of the Government, as the case may be, is authorized to into an agreement with the copyright owner in full settlement and compr for the damages accruing to him by reason of such infringement and to s the claim administratively out of available appropriations.

Except as otherwise provided by law, no recovery shall be had for any fringement of a copyright covered by this subsection committed more th three years prior to the filing of the complaint or counterclaim for infringe in the action, except that the period between the date of receipt of a wr claim for compensation by the Department or agency of the Governmen corporation owned or controlled by the United States, as the case may be ing authority to settle such claim and the date of mailing by the Governm a notice to the claimant that his claim has been denied shall not be coun a part of the three years, unless suit is brought before the last-mentioned

(c) The provisions of this section shall not apply to any claim arising in foreign country.

* * * * * * *

(e) Subsections (b) and (c) of this section apply to exclusive rights in m works under chapter 9 of title 17, and to exclusive rights in designs under 13 of title 17, to the same extent as such subsections apply to copyrights.

## Appendix O · Notes

1. In 2018, the Orrin G. Hatch–Bob Goodlatte Music Modernization Act amended sec by adding "(a) In General.—The business" to the first paragraph and by adding subsect (b), "Random Assignment of Rate Court Proceedings" to the end of the section. Pub. L. No. 115-264, 132 Stat. 3676, 3726.

2. In 1948, section 1338, entitled "Patents, copyrights, trademarks, and unfair co tion," was added to Title 28 of the *United States Code*. Pub. L. No. 773, 62 Stat. 869 1970, the title of section 1338 and the text of subsection (b) were amended to inser variety protection " after "patent." Pub. L. No. 91-577, 84 Stat. 1542, 1559. In 1988 Improvements and Access to Justice Act amended section 1338 by adding "mask w the title and by adding subsection (c). Pub. L. No. 100-702, 102 Stat. 4642, 4671. In Digital Millennium Copyright Act (DMCA) amended the title by inserting "designs," after "mask works." Pub. L. No. 105-304, 112 Stat. 2860, 2917. The DMCA also amended subsection (c) by inserting ", and to exclusive rights in designs under chapter 13 of title 17 "chapter 9 of title 17." *Id.* In 1999, the Anticybersquatting Consumer Protection Act

section 1338 throughout to change “trade-mark” and “trade-marks” to “trademark
“trademarks,” respectively. Pub. L. No. 106-113, 113 Stat. 1501, 1501A-551, app. I.
19(a) of the Leahy-Smith America Invents Act amended the second sentence of sub
1338(a) in its entirety and added a third sentence. Pub. L. No. 112-29, 125 Stat. 284

3. In 1948, section 1400, entitled “Patents and copyrights,” was added to Title 28
*United States Code*. Pub. L. No. 773, 62 Stat. 869, 936. In 1988, the Judicial Improve
and Access to Justice Act amended subsection (a) by inserting “or exclusive rights i
works” after “copyrights.” Pub. L. No. 100-702, 102 Stat. 4642, 4671. In 1998, the D
lennium Copyright Act (DMCA) amended subsection (a) to insert “or designs” after
works.” Pub. L. No. 105-304, 112 Stat. 2860, 2917. The DMCA also amended the section
heading to “Patents and copyrights, mask works, and designs.” This amendment in
period at the end, after “designs.” In 1999, a technical amendment deleted the per
L. No. 106-44, 113 Stat. 221, 223.

4. In 1960, section 1498 of Title 28 of the *United States Code* was amended to ad
sections (b) and (c). Pub. L. No. 86-726, 74 Stat. 855. The Copyright Act of 1976 am
section 1498(b) to insert “section 504(c) of title 17” in lieu of “section 101(b) of title
L. No. 94-553, 90 Stat. 2541, 2599. The Federal Courts Improvement Act of 1982 ar
section 1498(a) to insert “United States Claims Court” in lieu of “Court of Claims” a
subsections (b) and (d), to insert “Claims Court” in lieu of “Court of Claims,” wherev
appeared. Pub. L. No. 97-164, 96 Stat. 25, 40. In 1988, the Judicial Improvements a
to Justice Act amended section 1498 by adding subsection (e). Pub. L. No. 100-702,
4642, 4671. The Federal Courts Administration Act of 1992 amended section 1498 b
ing “United States Court of Federal Claims” in lieu of “United States Claims Court,” w
it appeared, and by inserting “Court of Federal Claims” in lieu of “Claims Court,” wh
it appeared. Pub. L. No. 102-572, 106 Stat. 4506, 4516. In 1997, the No Electronic T
Act amended section 1498(b) to insert “action which may be brought for such infrin
shall be an action by the copyright owner” in lieu of “remedy of the owner of such c
shall be by action.” Pub. L. No. 105-147, 111 Stat. 2678, 2680. In 1998, the Digital
Copyright Act amended subsection (e) by inserting, “, and to exclusive rights in des
chapter 13 of title 17,” after “chapter 9 of title 17.” Pub. L. No. 105-304, 112 Stat. 2

# Appendix P

## Title 44 Public Printing and Documents, U. S. Code

### Chapter 21 National Archives and Records Administration

* * * * * * *

#### *§ 2117 · Limitation on liability*[1]

When letters and other intellectual productions (exclusive of patented n
published works under copyright protection, and unpublished works for wh
copyright registration has been made) come into the custody or possessio
Archivist, the United States or its agents are not liable for infringement of
right or analogous rights arising out of use of the materials for display, ins
research, reproduction, or other purposes.

### Appendix P · Notes

1. In 1968, this section, originally designated as section 2113, which is entitled “Lim
liability,” was added to Title 44 of the *United States Code*. Pub. L. No. 90-620, 82 St
1291. The 1976 Copyright Act amended section 2113 in its entirety. Pub. L. No. 94-
2541, 2599. The National Archives and Records Administration Act of 1984 amende
2113 by redesignating it as section 2117 and by inserting “Archivist” in lieu of “Adm
of General Services.” Pub. L. No. 98-497, 98 Stat. 2280 and 2286.

# Appendix Q

## The Berne Convention Implementation Act of 1

### Sec.1 · Short Title and References to Title 17, United States C

(a)Short Title.—This Act, may be cited as the "Berne Convention Imple
mentation Act of 1988".

(b)References to Title 17, United States Code.—Whenever in this Act an amendment or repeal is expressed in terms of an amendment to or a of a section or other provision, the reference shall be considered to be m a section or other provision of title 17, United States Code.

### Sec. 2 · Declarations.

The Congress makes the following declarations:

(1) The Convention for the Protection of Literary and Artistic Works, s at Berne, Switzerland, on September 9, 1886, and all acts, protocols, ar sions thereto (hereafter in this Act referred to as the "Berne Convention not self-executing under the Constitution and laws of the United States.

(2) The obligations of the United States under the Berne Convention n be performed only pursuant to appropriate domestic law.

(3) The amendments made by this Act, together with the law as it ex on the date of the enactment of this Act, satisfy the obligations of the U States in adhering to the Berne Convention and no further rights or inte shall be recognized or created for that purpose.

### Sec. 3 · Construction of the Berne Convention.

(a) Relationship with Domestic Law.—The provisions of the Berne Convention—

(1) shall be given effect under title 17, as amended by this Act, and a relevant provision of Federal or State law, including the common law; a

(2) shall not be enforceable in any action brought pursuant to the pro sions of the Berne Convention itself.

(b)Certain Rights Not Affected.—The provisions of the Berne Conven- tion, the adherence of the United States thereto, and satisfaction of Unite obligations thereunder, do not expand or reduce any right of an author of whether claimed under Federal, State, or the common law—

(1) to claim authorship of the work; or

(2) to object to any distortion, mutilation, or other modification of, or derogatory action in relation to, the work, that would prejudice the auth honor or reputation.

* * * * * * *

## Sec. 12 · Works in the public domain.

Title 17, United States Code, as amended by this Act, does not provide right protection for any work that is in the public domain in the United Sta

## Sec. 13 · Effective date: effect on pending cases.

(a)Effective Date.—This Act and the amendments made by this Act take effect on the date on which the Berne Convention (as defined in section 1 title 17, United States Code) enters into force with respect to the United S[2]

(b)Effect on Pending Cases.—Any cause of action arising under title 17, United States Code, before the effective date of this Act shall be governed provisions of such title as in effect when the cause of action arose.

## Appendix Q · Notes

1. This appendix consists of provisions of the Berne Convention Implementation Act Pub. L. No. 100-568, 102 Stat. 2853, that do not amend Title 17 of the *United State*

2. The Berne Convention entered into force in the United States on March 1, 198

# Appendix R

## The Uruguay Round Agreements Act of 1994

### Sec. 1. Short Title and Table of Contents

(a) Short Title.— This act may be cited as the "Uruguay Round Agreements Act".

* * * * * * *

### Sec. 2. Definitions.

For purposes of this Act:

(1) GATT 1947; GATT 1994—

(A) GATT 1947.—The term "GATT 1947" means the General Agreement on Tariffs and Trade, dated October 30, 1947, annexed to the Final Act Adopted at the Conclusion of the Second Session of the Preparatory Committee of the United Nations Conference on Trade and Employment, as subsequently rectified, amended, or modified by the terms of legal instruments which have entered into force before the date of entry into force for the WTO Agreement.

(B) GATT 1994.—The term "GATT 1994" means the General Agreement on Tariffs and Trade annexed to the WTO Agreement.

(2) HTS.—The term "HTS" means the Harmonized Tariff Schedule of the United States.

(3) International trade commission.—The term "International Trade Commission" means the United States International Trade Commission.

(4) Multilateral trade agreement.—The term "multilateral trade agreement" means an agreement described in section 101(d) of this Act (other than an agreement described in paragraph (17) or (18) of such section).

(5) Schedule XX.—The term "Schedule XX" means Schedule XX of the United States of America annexed to the Marrakesh Protocol to the GATT 1994.

(6) Trade representative.—The term "Trade Representative" means the United States Trade Representative.

(7) Uruguay round agreements.—The term "Uruguay Round Agreements" means the agreements approved by the Congress under section 101(1).

(8) World trade organization and WTO.—The terms "World Trade Organization" and "WTO" mean the organization established pursuant to the WTO Agreement.

(9) WTO AGREEMENT.—The term "WTO Agreement" means the Agreement Establishing the World Trade Organization entered into on April 15

(10) WTO MEMBER AND WTO MEMBER COUNTRY.—The terms "WTO member" and "WTO member country" mean a state, or separate customs t ritory (within the meaning of Article XII of the WTO Agreement), with respect to which the United States applies the WTO Agreement.

## Title I—Approval of, and General Provisions Relating to, the Uruguay Round Agreements

### Subtitle A—Approval of Agreements and Related Provisions

#### *Sec. 101 · Approval and entry into force of the Uruguay Round A*

(a) APPROVAL OF AGREEMENTS AND STATEMENT OF ADMINISTRATIVE ACTION.—Pursuant to section 1103 of the Omnibus Trade and Competitiven Act of 1988 (19 U.S.C. 2903) and section 151 of the Trade Act of 1974 (19 2191), the Congress approves—

(1) the trade agreements described in subsection (d) resulting from Uruguay Round of multilateral trade negotiations under the auspices of General Agreement on Tariffs and Trade, entered into on April 15, 1994 submitted to the Congress on September 27, 1994; and

(2) the statement of administrative action proposed to implement the ments that was submitted to the Congress on September 27, 1994.

(b) ENTRY INTO FORCE.—At such time as the President determines that a su ficient number of foreign countries are accepting the obligations of the Ur Round Agreements, in accordance with Article XIV of the WTO Agreement, to ensure the effective operation of, and adequate benefits for the United St der, those Agreements, the President may accept the Uruguay Round Agr and implement article II of the WTO Agreement.

(c) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated annually such sums as may be necessary for the payment by United States of its share of the expenses of the WTO.

(d) TRADE AGREEMENTS TO WHICH THIS ACT APPLIES.—Subsection (a) applies to the WTO Agreement and to the following agreements annexed to th Agreement:

(1) The General Agreement on Tariffs and Trade 1994.
(2) The Agreement on Agriculture.
(3) The Agreement on the Application of Sanitary and Phytosanitary M
(4) The Agreement on Textiles and Clothing.
(5) The Agreement on Technical Barriers to Trade.
(6) The Agreement on Trade-Related Investment Measures.

(7) The Agreement on Implementation of Article VI of the General Agreement on Tariffs and Trade 1994.

(8) The Agreement on Implementation of Article VII of the General Agreement on Tariffs and Trade 1994.

(9) The Agreement on Preshipment Inspection.

(10) The Agreement on Rules of Origin.

(11) The Agreement on Import Licensing Procedures.

(12) The Agreement on Subsidies and Countervailing Measures.

(13) The Agreement on Safeguards.

(14) The General Agreement on Trade in Services.

(15) The Agreement on Trade-Related Aspects of Intellectual Pr
Rights.

(16) The Understanding on Rules and Procedures Governing the Settl
of Disputes.

(17) The Agreement on Government Procurement.

(18) The International Bovine Meat Agreement.

***Sec. 102 · Relationship of the agreements to United States law a***

(a) Relationship of Agreements to United States Law.

(1) United States law to prevail in conflict.—No provision of any
of the Uruguay Round Agreements, nor the application of any such prov
to any person or circumstance, that is inconsistent with any law of the U
States shall have effect.

(2) Construction.—Nothing in this Act shall be construed

(A) to amend or modify any law of the United States, including any
relating to—

(i) the protection of human, animal, or plant life or health,

(ii) the protection of the environment, or

(iii) worker safety, or

(B) to limit any authority conferred under any law of the United Sta
including section 301 of the Trade Act of 1974,

unless specifically provided for in this Act.

(b) Relationship of Agreements to State Law.

(1) Federal-State Consultation.—

(A) In General.—Upon the enactment of this Act, the President shall
through the intergovernmental policy advisory committees on trade e
lished under section 306(c)(2)(A) of the Trade and Tariff Act of 1984 (
U .S .C. 2114c(2)(A)), consult with the States for the purpose of achievi
conformity of State laws and practices with the Uruguay Round Agree

(B) Federal-State Consultation Process.—The Trade Representa-
tive shall establish within the Office of the United States Trade Repre
tive a Federal-State consultation process for addressing issues relating t

Uruguay Round Agreements that directly relate to, or will potentially
a direct effect on, the States. The Federal–State consultation process
include procedures under which—

(i) the States will be informed on a continuing basis of matters u
the Uruguay Round Agreements that directly relate to, or will poter
have a direct impact on, the States;

(ii) the States will be provided an opportunity to submit, on a cor
tinuing basis, to the Trade Representative information and advice w
respect to matters referred to in clause (i); and

(iii) the Trade Representative will take into account the informati
and advice received from the States under clause (ii) when formula
United States positions regarding matters referred to in clause (i).

The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Federal-State consultation process established by this paragraph.

(C) Federal-State Cooperation in WTO Dispute Settlement.—

(i) When a WTO member requests consultations with the Unite States under Article 4 of the Understanding on Rules and Procedur Governing the Settlement of Disputes referred to in section 101(d) (hereafter in this subsection referred to as the "Dispute Settlement derstanding") concerning whether the law of a State is inconsisten the obligations undertaken by the United States in any of the Urug Round Agreements, the Trade Representative shall notify the Gover the State or the Governor's designee, and the chief legal officer of risdiction whose law is the subject of the consultations, as soon as p after the request is received, but in no event later than 7 days ther

(ii) Not later than 30 days after receiving such a request for cons tions, the Trade Representative shall consult with representatives State concerned regarding the matter. If the consultations involve laws of a large number of States, the Trade Representative may co with an appropriate group of representatives of the States concern determined by those States.

(iii) The Trade Representative shall make every effort to ensure t the State concerned is involved in the development of the position the United States at each stage of the consultations and each subs stage of dispute settlement proceedings regarding the matter. In p lar, the Trade Representative shall—

(I) notify the State concerned not later than 7 days after a WTO member requests the establishment of a dispute settlement pan gives notice of the WTO member's decision to appeal a report by a dispute settlement panel regarding the matter; and

(II) provide the State concerned with the opportunity to advise and assist the Trade Representative in the preparation of

information and argumentation for any written or oral presentati
by the United States in consultations or in proceedings of a pane
the Appellate Body regarding the matter.

(iv) If a dispute settlement panel or the Appellate Body finds that
law of a State is inconsistent with any of the Uruguay Round Agree
the Trade Representative shall consult with the State concerned in
fort to develop a mutually agreeable response to the report of the
or the Appellate Body and shall make every effort to ensure that th
concerned is involved in the development of the United States posi
regarding the response.

(D) Notice to States Regarding Consultations on Foreign Subcentral Government Laws.—

(i) Subject to clause (ii), the Trade Representative shall, at least
days before making a request for consultations under Article 4 of t
Dispute Settlement Understanding regarding a subcentral governm
measure of another WTO member, notify, and solicit the views of, ap-
propriate representatives of each State regarding the matter.

(ii) In exigent circumstances clause (i) shall not apply, in which c
the Trade Representative shall notify the appropriate representativ
each State not later than 3 days after making the request for consu
tions referred to in clause (i).

(2) Legal Challenge.—

(A) In General.—No State law, or the application of such a State law
may be declared invalid as to any person or circumstance on the grou
that the provision or application is inconsistent with any of the Urugu
Round Agreements, except in an action brought by the United States
the purpose of declaring such law or application invalid.

(B) Procedures Governing Action.—In any action described in subparagraph (A) that is brought by the United States against a Stat
any subdivision thereof

(i) a report of a dispute settlement panel or the Appellate Body o
vened under the Dispute Settlement Understanding regarding the S
law, or the law of any political subdivision thereof, shall not be con
ered as binding or otherwise accorded deference;

(ii) the United States shall have the burden of proving that the la
that is the subject of the action, or the application of that law, is in
sistent with the agreement in question;

(iii) any State whose interests may be impaired or impeded in th
action shall have the unconditional right to intervene in the action
a party, and the United States shall be entitled to amend its compl
to include a claim or cross-claim concerning the law of a State that
intervenes; and

(iv) any State law that is declared invalid shall not be deemed to
been invalid in its application during any period before the court's
ment becomes final and all timely appeals, including discretionary
view, of such judgment are exhausted.

(C)Reports to Congressional Committees.—At least 30 days be-
fore the United States brings an action described in subparagraph (A)
Trade Representative shall provide a report to the Committee on Way
Means of the House of Representatives and the Committee on Financ
the Senate—

(i) describing the proposed action;

(ii) describing efforts by the Trade Representative to resolve the
ter with the State concerned by other means; and

(iii) if the State law was the subject of consultations under the Di
pute Settlement Understanding, certifying that the Trade Represen
has substantially complied with the requirements of paragraph (1)(
connection with the matter.

Following the submission of the report, and before the action is bro
the Trade Representative shall consult with the committees referred
the preceding sentence concerning the matter.

(3)Definition of State Law.—For purposes of this subsection—

(A) the term "State law" includes—

(i) any law of a political subdivision of a State; and

(ii) any State law regulating or taxing the business of insurance;

(B) the terms "dispute settlement panel" and "Appellate Body" hav
meanings given those terms in section 121.

(c)Effect of Agreement with Respect to Private Remedies.

(1)Limitations.—No person other than the United States—

(A) shall have any cause of action or defense under any of the Urug
Round Agreements or by virtue of congressional approval of such ar
agreement, or

(B) may challenge, in any action brought under any provision of la
any action or inaction by any department, agency, or other instrum
tality of the United States, any State, or any political subdivision of
State on the ground that such action or inaction is inconsistent with s
agreement.

(2)Intent of Congress.—It is the intention of the Congress through
paragraph (1) to occupy the field with respect to any cause of action or
under or in connection with any of the Uruguay Round Agreements, incl
ing by precluding any person other than the United States from bringing
action against any State or political subdivision thereof or raising any d
to the application of State law under or in connection with any of the Ur
Round Agreements—

(A) on the basis of a judgment obtained by the United States in an
brought under any such agreement; or
(B) on any other basis.

(d) Statement of Administrative Action.—The statement of adminis-
trative action approved by the Congress under section 101(a) shall be reg
as an authoritative expression by the United States concerning the interpr
and application of the Uruguay Round Agreements and this Act in any ju
proceeding in which a question arises concerning such interpretation or
application.

***Sec. 103 · Implementing actions in anticipation of entry into forc***

(a) Implementing Actions.—After the date of the enactment of this Act—
(1) the President may proclaim such actions, and
(2) other appropriate officers of the United States Government may is
such regulations,
as may be necessary to ensure that any provision of this Act, or amendme
by this Act, that takes effect on the date any of the Uruguay Round Agree
enters into force with respect to the United States is appropriately implem
on such date. Such proclamation or regulation may not have an effective
earlier than the date of entry into force with respect to the United States o
agreement to which the proclamation or regulation relates.

(b) Regulations.—Any interim regulation necessary or appropriate to carr
out any action proposed in the statement of administrative action approve
section 101(a) to implement an agreement described in section 101(d) (7
(13) shall be issued not later than 1 year after the date on which the agre
enters into force with respect to the United States.

## Appendix R · Notes

1. This appendix consists of provisions of the Uruguay Round Agreements Act, Pub.
103-465, 108 Stat. 4809, that do not amend Title 17 of the *United States Code*.

# Appendix S

## GATT / Trade-Related Aspects of Intellectual Property Rights (TRIPs) Agreement,[1] Part II

* * * * * * *

### Section 6: Layout-Designs (Topographies) of Integrated Circuit

* * * * * * *

***Article 35 · Relation to IPIC Treaty***

Members agree to provide protection to the layout-designs (topographie integrated circuits (hereinafter referred to as "layout-designs") in accorda Articles 2–7 (other than paragraph 3 of Article 6), Article 12 and paragraph Article 16 of the Treaty on Intellectual Property in Respect of Integrated Ci and, in addition, to comply with the following provisions.

***Article 36 · Scope of the Protection***

Subject to the provisions of paragraph 1 of Article 37 below, Members s consider unlawful the following acts if performed without the authorizatio the right holder: [2] importing, selling, or otherwise distributing for commercial purposes a protected layout-design, an integrated circuit in which a prote out-design is incorporated, or an article incorporating such an integrated only insofar as it continues to contain an unlawfully reproduced layout-de

***Article 37 · Acts Not Requiring the Authorization[3] of the Right Ho***

1. Notwithstanding Article 36 above, no Member shall consider unlawful performance of any of the acts referred to in that Article in respect of an tegrated circuit incorporating an unlawfully reproduced layout-design or article incorporating such an integrated circuit where the person performi ordering such acts did not know and had no reasonable ground to know, w acquiring the integrated circuit or article incorporating such an integrated cuit, that it incorporated an unlawfully reproduced layout-design. Member provide that, after the time that such person has received sufficient notice the layout-design was unlawfully reproduced, he may perform any of the with respect to the stock on hand or ordered before such time, but shall b to pay to the right holder a sum equivalent to a reasonable royalty such a be payable under a freely negotiated license in respect of such a layout-d

2. The conditions set out in sub-paragraphs (a)–(k) of Article 31 above s ply *mutatis mutandis* in the event of any nonvoluntary licensing of a layou or of its use by or for the government without the authorization of the righ

### *Article 38 · Term of Protection*

1. In Members requiring registration as a condition of protection, the ter protection of layout-designs shall not end before the expiration of a period years counted from the date of filing an application for registration or from first commercial exploitation wherever in the world it occurs.

2. In Members not requiring registration as a condition for protection, la designs shall be protected for a term of no less than ten years from the da first commercial exploitation wherever in the world it occurs.

3. Notwithstanding paragraphs 1 and 2 above, a Member may provide protection shall lapse fifteen years after the creation of the layout-design.

## Appendix S · Notes

1. For an explanation of the relationship of this section of TRIPs to Title 17 of the *Un States Code*, see the second paragraph of note 8, chapter 9, *supra*.

2. Article 36 includes footnote 9 that states, "The term 'right holder' in this Secti be understood as having the same meaning as the term 'holder of the right' in the Treaty." The IPIC Treaty, which was signed in Washington, D.C., on May 26, 1989, is known as the Treaty on Intellectual Property in Respect of Integrated Circuits.

3. See note 2, *supra*.

# Appendix T

## Definition of “Berne Convention Work”

The WIPO Copyright and Performances and Phonograms Treaties Implementation Act of 1998 deleted the definition of “Berne Convention work” from section 101.[1] Pub. L. No. 105-304, 112 Stat. 2861. The definition of Berne Convention work, as deleted, is as follows:

A work is a “Berne Convention work” if—

(1) in the case of an unpublished work, one or more of the authors is a national of a nation adhering to the Berne Convention, or in the case of a published work, one or more of the authors is a national of a nation adhering to the Berne Convention on the date of first publication;

(2) the work was first published in a nation adhering to the Berne Convention, or was simultaneously first published in a nation adhering to the Berne convention and in a foreign nation that does not adhere to the Berne Convention;

(3) in the case of an audiovisual work—

(A) if one or more of the authors is a legal entity, that author has its headquarters in a nation adhering to the Berne Convention; or

(B) if one or more of the authors is an individual, that author is domiciled, or has his or her habitual residence in, a nation adhering to the Convention; or

(4) in the case of a pictorial, graphic, or sculptural work that is incorporated in a building or other structure, the building or structure is located in a nation adhering to the Berne Convention; or

(5) in the case of an architectural work embodied in a building, such building is erected in a country adhering to the Berne Convention.

For purposes of paragraph (1), an author who is domiciled in or has his habitual residence in, a nation adhering to the Berne Convention is considered to be a national of that nation. For purposes of paragraph (2), a work is considered to have been simultaneously published in two or more nations if its dates of publication are within 30 days of one another.

### Appendix T · Notes

1. For the legislative history of the definition of “Berne Convention work,” see note 1, *supra.*

*The Congress shall have Power ...*
*To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.*

united states constitution ,
article i, section 8




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